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Attorney-General v Monko
[1986–1989] 1 EA 1 (CAT)

Division: Court of Appeal of Tanzania at Dar-Es-Salaam

Date of judgment: 12 June 1987

Case Number: 10/87

Before: Makame, Kisanga and Omar JJA

Sourced by: LawAfrica

[1] Elections – Counting of ballots and votes – Persons with the responsibility to count the ballots

and votes – Procedure of counting the ballots and votes – Whether this duty to count ballots and votes can be delegated – Effect of failure to mix ballots – Right of a person to a recount – Whether reasons to be given before recount conducted.

Editor's Summary

The respondent had petitioned for nullification of the elections in Singida Rural constituency during the 1985 general elections alleging electoral malpractices by his opponent and irregularities by the election officials. The Court cleared his opponent but went ahead to nullify the elections on grounds of irregularities by the election officials alone.

Hence this appeal.

Held – Section 73 of the Elections Act assigns to the Returning Officer and Assistant Returning Officer the duty of counting the ballot papers and the votes. Likewise, section 74(1) makes it plain that the Returning Officer and the Assistant Returning Officer have the duty of counting and recording the ballot papers and of counting the votes.

It is not provided in the Act that the enumerators may assist in the performance of these acts and hence any such counting of ballot papers by enumerators would not comply with section 73. Such contravention affected the results essentially since tampering with the ballot papers by the enumerators could not be ruled out.

Failure to mix the votes by itself did not affect the results of the election. The main object of mixing the votes is to preserve the secrecy of the ballot and the mischief of not preserving the secrecy cannot have affected the results because it cannot be used to inflate or deflate the votes or to shift the votes one way or another.

A party to an election has a right to a recount which should not be denied on any ground. When the request is made it is not open to the Returning Officer to consider whether the request is unreasonable; he has no choice but to grant it. His discretion only comes in during the third or subsequent request when he may refuse it if the result of the last two re-counts were the same. It then follows that the person making the request is not obliged to give to the returning officer the reasons for his request.

It is open to reasonable doubt whether these contraventions did not affect the results of the elections.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Nonga v Attorney-General and another [1971] HCD 258

Judgment

Makame, Kisanga and Omar Jja: This is an appeal by the Attorney-General against the judgment of the High Court (Ruhumbika J) allowing the election petition filed by the respondent, Mr Joseph Musa Monko. The respondent had contested the 1985 general election in the Singida Rural constituency. He lost heavily to his opponent, one Mr Yona Sinda Isingo by a margin of 12 633 votes. In his petition to the High Court the respondent had alleged a number of grounds of complaint ranging from corruption and malpractices by his opponent, to irregularities and non-compliances with the provisions of the Election Act on the part of the election officials. The High Court disallowed the petition in respect of all the allegations made against his opponent but found for the respondent in respect of two allegations made against the election officials. The appellant's opponent was therefore cleared by the High Court of all the allegations made against him, and the appeal before us is by the Attorney-General alone.

The two issues on which the Court nullified the election had been framed, with the consent of the parties, as follows:

> "3 (*a*) Whether or not the petitioner, who was present when the counting was completed, requested the Returning Officer to have the votes recounted but that request was refused so as to constitute non-compliance with the provision of section 78(1) of Act number 1 of 1985 and whether that affected the election results as provided for under section 108(3) of the same Act.
>
> (*b*) Whether or not the counting procedure was followed as provided for under section 73 of Act 1 of 1985 and whether that affected the election results under section 108(3)(*c*) of the same Act."

We propose to deal with issue number 3(*b*) first.

Section 73 of the Elections Act of 1985, which is said to have been contravened, says:

> "73. Before the Returning Officer and Assistant Returning Officers proceed to count the votes, they shall, in the presence of the counting agents, if any, open each ballot box and, taking out the ballot papers, shall count and record the total number thereof, and then mix together the whole of the papers contained in the ballot boxes."

The trial Judge found that the ballot boxes were opened and the ballot papers therein were counted, not by the Returning Officer and the Assistant Returning Officers personally, but by the enumerators, who were secondary school students, in the presence of these officials. He also found that the ballot papers were never mixed. The contents of each ballot box were counted separately and after the officials had recorded the count, the contents were returned into the boxes and that was all. These findings of fact are fully justified on the evidence.

Then the learned Judge went on to hold that the fact of opening the ballot boxes and counting the ballot papers therein by the enumerators, and the failure to mix the ballot papers before taking the final count, contravened the provisions of section 73 and that such contravention affected the results in terms of section 108(3)(*c*) of the Act. He said in effect that such contravention made it impossible to ensure against any tampering with the votes by the enumerators or otherwise to ascertain the correctness of the count which was done. For this view he relied on the case of *Nonga v Attorney-General and another* [1971] HCD 258 decided by the High Court. That decision was based on non-compliance with the provisions of section 88 of the Elections Act of 1970 which are in part material with those of section 73 of the new Act, and the facts thereof were on all fours with those of the present case.

Mr J *Mrema*, the Principal State Attorney appearing for the appellant, conceded that there was a contravention of section 73 only to the extent of failure to mix the ballot papers before the final count was taken. He stated, however, that the participation by the enumerators in counting the ballot papers as they did was in accordance with the very provisions of section 73 of the Act. To appreciate this, the learned counsel went on, one has to read section 73 not in isolation but together with section 71, especially subsection (2), and section 74(1) of the Act. Mr GC *Alimwike*, the learned advocate for the respondent strongly resisted such argument and strenuously sought to defend the decision of the trial Judge.

We propose to set out in full sections 71, 73 and 74(1) of the Act for ease of reference with a view to a detailed examination of the provisions in the light of the submissions by counsel.

> "71 (1) The Returning Officer shall make arrangements for counting the votes in the presence of the counting agents as soon as practicable after the close of the poll in the constituency and shall, so far as practicable proceed continuously with the counting, allowing only reasonable time for refreshment, until it is complete.
>
> (2) The Returning Officer shall appoint such number of persons as he shall consider necessary to assist him in counting the votes and such persons shall be known as enumerators.
>
> 73 Before the Returning Officer and Assistant Returning Officers proceed to count the votes, they shall, in the presence of the counting agents, if any, open each ballot box and, taking out the ballot papers, shall count and record the total number thereof, and then mix together the whole of the papers contained in the ballot boxes.
>
> 74 (1) The Returning Officer and Assistant Returning Officers, while counting and recording the number of ballot papers and counting the votes, shall keep the ballot papers with their faces upwards."

It is quite apparent that section 73 assigns to the Returning Officer and Assistant Returning Officers the duty of counting the ballot papers and the votes. This is done at two different stages: the ballot papers are counted at the initial stage when the ballot boxes are opened and the contents of each box are counted and recorded separately, while the votes are counted after all the ballot papers in all the ballot boxes have been poured out and mixed together. Likewise section 74(1) makes it very plain that it is the Returning Officer and the Assistant Returning Officers who have the responsibility of counting and recording the ballot papers and of counting the votes. Up to that point there is

not much difficulty. Subsection (2) of section 71 empowers the Returning Officer to appoint enumerators to assist him in the counting of votes, and a lot of controversy turned on the precise role of the enumerators under section 73. Mr *Mrema*'s submission, in effect, was that since the Returning Officer and Assistant Returning Officers are charged with the responsibility of counting the ballot papers and the votes, then the role of the enumerators in assisting them should extend to the counting of both the ballot papers and the votes. Mr *Alimwike*'s view, however, was essentially that, since section 73 does not say that the Returning Officer and the Assistant Returning Officers are to be assisted by enumerators in counting the ballot papers, then the section must be read literally to mean that the ballot papers are to be counted by the Returning Officer and the Assistant Returning Officers personally and unaided by the enumerators.

Admittedly the section poses some difficulty of construction. When section 73, and indeed section 74(1) too, talk of the Returning Officer and the Assistant Returning Officers counting the votes, that is to be construed to mean counting the votes with the assistance of the enumerators. This is because of subsection (2) of section 71, which provides for the appointment of enumerators to assist the Returning Officer in counting the votes. But in sympathy with Mr *Mrema*'s view it could be argued that since section 73 places on the Returning Officer and the Assistant Returning Officers the duty of counting both the ballot papers and the votes, then it would appear somewhat illogical to say that the enumerators may assist only in counting the votes and not the ballot papers: because the duty is imposed equally in respect of counting the two. However, as Mr *Alimwike* submitted, the provisions of section 73 are clear and unambiguous. It is there clearly stated that before the Returning Officer and the Assistant Returning Officers proceed to count the votes, they shall open each ballot box, take out the ballot papers, count them and record them. It is not provided that the enumerators may assist in the performance of these acts, and we have no good reason for reading such provision into the section. It may very well be that the framers of the section regard the initial counting of the ballot papers as a crucial or strategic point in the counting process for checking against possible mischief, and for that reason they require the Returning Officer and the Assistant Returning Officers to handle the situation personally. We are, therefore, constrained to hold that the trial Judge was justified to take the view that the counting of the ballot papers by the enumerators was a non-compliance with the provision of section 73.

The learned Judge found that this contravention affected the results of the election essentially because tampering with the ballot papers by the enumerators could not be ruled out. We are unable to say that he erred in coming to that view.

We now turn to the other contravention of section 73, namely, the failure to mix the votes. As stated earlier, this contravention was conceded, and the only question raised was whether it affected the results. The trial Judge held that it did, but counsel for the appellant has submitted that it did not. We are prepared to hold that failure to mix the votes, by itself, did not affect the results of the election. For, it seems to us that the main object of mixing the votes is to preserve the secrecy of the ballot. The mischief of not preserving that secrecy cannot have affected the results because it could not be used to inflate or deflate the votes or to shift the votes one way or the other.

The remaining ground concerns the respondent's demand or request for a re-count of votes. The trial Judge found that at the end of counting the votes, the respondent had requested the Returning Officer for a recount of the votes in respect of two divisions, that is, Mtinko and Sepuka, but the Returning Officer refused the request. The total votes cast for both divisions was shown to be 26 000. Mr *Mrema*, while conceding that the request was made, submitted that the respondent subsequently abandoned it voluntarily and permitted the Returning Officer to proceed to announce the results. In the light of the evidence on record, we are more inclined to the view that the respondent's request was, in fact, turned down. The respondent's right to demand a re-count of the votes is conferred by section 78 of the Election Act which provides that:

> "78 (1) A candidate or his counting agent may, if present when the counting or any recount of the votes is completed, require the Returning Officer to have the votes recounted or again recounted but the Returning Officer may refuse to make a third or subsequent recount if the results of the last two recount were the same.
>
> (2) No step shall be taken on the completion of the counting or any recount of votes until the candidates and counting agents present at the completion thereof have been given a reasonable opportunity to exercise the right conferred by subsection (1)."

It was common ground that the respondent made the request after he had been in the counting room for some time to see for himself what was going on, and also after he had had a discussion with the counting agent who duly advised him to ask for a recount of the votes. According to the Returning Officer, this is how he reacted to the request:

> "I told Monko that section 83 required me to allow a recount, but I needed Monko to consult his counting agent before we recount the votes for the two divisions. Monko went to consult his counting agent. As he came back the students murmured. I cooled the students in that the candidate had the right to have a recount. Thereafter I asked Monko and said in a depressed manner that I could go ahead announcing the results. I contacted him the second time and he said I go ahead. He left immediately. I therefore announced the results. I think Monko was not satisfied with the results and not that he was not allowed a recount. If he had insisted for a recount no doubt I should have recounted."

Incidentally, the witness's reference to section 83 appears to be an error because, as he has been shown, the right of a candidate for a re-count of the votes is conferred by section 78 of the Elections Act, while section 83 thereof deals with a completely different subject. Now, upon reading the passage quoted above, one gets the impression that the Returning Officer was bent on refusing the request. Why should he require the respondent to consult his counting agent as a condition for granting the request when the law does not impose any such condition at all? One also gets the impression that what the Returning Officer says is not what really happened. If the respondent had been in consultation with his counting agent only shortly before he asked for the re-count, was he likely to go back to him when asked by the Returning Officer to do so, especially considering that his counting agent had duly advised him to ask for a recount? What new thing did he hope to get from a repeated discussion with the agent? The respondent as a former Member of Parliament, no doubt, knows very well the importance of being a Member of Parliament. Was he likely to give in so easily and to abandon willingly his request for a recount? These are some of the matters which, in our view, seem to render more likely the respondent's version

that there was a protracted argument during which the request for a recount was repeatedly refused. And the impression we get is that in the circumstances obtaining at the material time the respondent had felt that it was futile to try any more to vindicate his right. The Returning Officer was determined and pressing to have his way and to have the results announced. The respondent and his counting agent reluctantly had to yield to such pressure and determination. Indeed, these are the circumstances in which the respondent's counting agent said he had signed the certificate (exhibit D8) purporting to show that the process of counting the votes was conducted properly. He stated that he had signed the certificate on the respondent's advice in order to end the argument, although the respondent intimated his intention to take up the matter in court. In short, we increasingly feel that the respondent and his agent reluctantly and under pressure gave in to the Returning Officer while the respondent reserved his right to pursue the matter in court later on. In such circumstances the respondent could hardly be said to have willingly abandoned his request.

There was some argument on whether the right for a re-count, once it is made, is granted automatically. Mr *Alimwike* submitted that it is, but Mr *Mrema* took the view that it is granted only upon reasonable grounds being shown. Neither counsel referred us to any authority on this point. In the instant case the respondent gave a number of reasons for his request. These may be summarised as follows:

(*a*) Form 16, showing the number of persons who had voted was not used to check the correctness of the ballot papers in the corresponding ballot boxes.

(*b*) The votes were not mixed in a single container or heap before the final count was taken.

(*c*) Some ballot boxes were recorded more than once and were counted more than once.

(*d*) The respondent believed that he had got more votes than his opponent.

Thus the request for a recount in this case was duly accompanied by grounds in support thereof. The Returning Officer's defence, of course, was that he did not refuse the request but that the respondent willingly abandoned it. Since the Returning Officer could not be believed on this point then it really amounts to saying that he denied the respondent what appears to be an important legal right without assigning any reason therefor. That was both unfortunate and improper, and it is hardly necessary to observe that such conduct on the part of a public official is to be strongly deprecated. But the question still remains whether the respondent was obliged to give reasons at all for his request. Bearing in mind that we are dealing with a rare type of cases, which come up only once every five years, we consider it appropriate to decide on that question even though it was not really necessary for the disposal of this appeal.

Section 78(1), which is reproduced above and which confers the right of re-count clearly gives the Returning Officer discretion to refuse the request if it is made during the third or subsequent recount, and if the results of the last two recount were the same. But the section says nothing about such discretion respecting the first and second requests for recount. There is nothing in that subsection to suggest that the request is or may be refused on grounds of unreasonableness.

This subsection appears to borrow in part from rule 47(1) of the English Parliamentary Elections Rules cited in *Halsbury's Laws of England* (3 ed) Volume 14 at paragraph 244. That rule says:

> "A candidate or (. . .) his election agent may, if present when the counting or any recounting of the votes is completed, require the returning officer to have the votes recounted or again recounted, but the returning officer may refuse to do so if in his opinion the request is unreasonable."

Here the Returning Officer is given discretion to refuse the request on grounds of unreasonableness, and the discretion is exercisable at all stages of the request including the request for the first recount. We like to think that the framers of our section 78(1) were aware of the English Rule 47(1) because of the striking similarities in the wording of the two provisions. And yet with such awareness, they did not use the concept or idea of unreasonableness as the basis for the exercise of the discretion. We think that this was not accidental. We are reinforced in this view by a reference to the corresponding provision in our own old law, the National Assembly (Elections) Act of 1964 (Chapter 551). Section 62(1) thereof makes provisions, which for practical purposes are identical with those of the English Rules 47(1) giving the Returning Officer discretion to refuse the request on grounds of unreasonableness. That Act was repealed by Act number 25 of 1970 whose section 93 re-enacted the right of recount in terms similar to those of section 62(1) of the 1964 Act except for the concept of unreasonableness. Under the 1970 Act the discretion of the Returning Officer is exercisable only on the third or subsequent request for recount, and if the results of the last two recount were the same. The 1970 Act was repealed by the present Elections Act of 1985 whose section 78(1) as reproduced herein earlier re-enacts the right of recount in terms identical with those of section 93 of the 1970 Act. The point we are making is this: The framers of section 93 of the 1970 Elections Act, now re-enacted in identical terms by section 78(1) of the present Act, must have been aware of the provisions of section 62(1) of the National Assembly (Elections) Act 1964 because of the striking similarities in those provisions. But instead of using unreasonableness as the basis for the exercise of discretion by the Returning Officer to refuse the request, they used other criteria, namely, the number of recount asked for, and whether the results of the last two recount tallied. We think that the departure from the concept of unreasonableness as was enacted under the 1964 legislation was deliberate. It seems that the Legislature intended to restrict the exercise of discretion by the Returning Officer in this regard. Upon construction of section 78(1) of the Act we are of the view that when the request is made, it is not open to the Returning Officer to consider whether the request is unreasonable; indeed he has no choice but to grant it. His discretion comes in only during the third or subsequent request when he may refuse it if the results of the last two recount were the same. It then follows that the person making the request is not obliged to give to the Returning Officer the reasons for his request. In these circumstances it is to be hoped that the right will not be open to abuse. Prudence would require that those who seek to exercise that right should act responsibly and do so only in deserving cases.

It was contended for the appellant that even if the respondent's request was in fact refused, such refusal did not affect the results because a recount would merely serve to verify the results without affecting the results themselves. It was also contended that if the refusal had any affect at all, then it affects both candidates equally.

As stated earlier, the respondent had requested for a re-count because, among other things, Form 16 had not been used during the counting to compare the votes as counted with the number of persons who had voted. On the evidence there was room for the view that at least in some cases Form 16 was not used, and that instead the counter foils were used for that purpose. But there was abundant evidence that whether it was the counter-foils or it was the Form 16 that was used, there were cases where the physical count of the votes in the ballot box was in excess of the corresponding number of persons shown to have voted. Again the respondent's ground of over-recording also finds support, for instance, in the testimony of the Returning Officer whose official records (exhibit P14) show that ballot box SG/V/185 was recorded for both Mtinko and Mgori divisions while ballot box SGD/V/162 whose contents were fully counted was not shown to be assigned to any polling station. All these matters clearly introduced confusion in the proper counting of the votes. Thus there was this confusion on the one hand. And on the other there was the failure by the Returning Officer and the Assistant Returning Officers to check against possible tampering with, or swapping, of, the votes by the enumerators, coupled with the failure to mix the votes before taking the final count. The learned trial judge, in affect, said that the net result of all these non-compliances was to render the figures of the votes totally unreliable.

We think that it is at least open to a reasonable doubt whether these contraventions did not affect the results of the election. In our view they render it uncertain whether the respondent's opponent who was shown to have won the contest by a big majority of 12 633 votes, was really elected by the majority of persons voting in accordance with the provisions of the Election Act.

Mr *Mrema* further submitted that in the event it is found that the respondent's request for a recount was refused by the Returning Officer, then it would be open to this Court to grant the same and thus save avoiding the election altogether. Mr *Alimwike*, however, took the view that such a source would not provide a remedy because judging from the way some of the exhibits appeared or were being handled at the trial, in which he took part, there can be no assurance that the votes have been kept intact. In the first place the respondent in his petition to the High Court had not asked for a recount of the votes, and indeed throughout the trial there was no suggestion of any such request. It is difficult, therefore, to see the ground on which this Court can properly consider the issue of a recount. Even if such a course was in law open to us, it might still not serve a useful purpose if, as suggested by Mr *Alimwike*, there is no assurance as to the proper preservation of the votes or if, as suggested by the trial Judge, the votes might have been tampered with by the enumerators.

In the final analysis we are satisfied that the learned trial Judge was justified to find that there were contraventions of sections 73 and 78 of the Election Act and that the contraventions affected the results of the election. In the appeal before us no sufficient grounds have been advanced on which to fault that judgment. We therefore dismiss the appeal and uphold the order declaring the election in this case void.

For the appellant:
J Mrema, Principal State Attorney

For the respondent:
GC Alimwike

Attorney-General v Theuri
[1986–1989] 1 EA 9 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment:	30 January 1986
Case Number:	51/85
Before:	Kneller, Hancox and Nyarangi JJA
Sourced by:	LawAfrica
Appeal from:	

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[1] Court of Appeal Rules – Extent of unfettered discretion under rule 4, as amended – Whether exercised correctly in allowing notice of appeal from High Court order granting mandamus to be filed out of time – Successful respondent acting in person – Whether entitled to costs on the same basis as an advocate.

Editor's Summary

The respondent applied to the High Court for orders of *mandamus* directed to the Attorney-General, the Secretary to the Council of Legal Education, and the Principal of the Kenya School of Law with the object of achieving his qualification to practise as an advocate under the Advocates Act (Chapter 16), and under the Advocate (Admission) Regulations. On 20 May 1985, the High Court (O'Kubasu and Abdulla JJ) substantially granted the application, though not specifically directed to the Attorney-General, who appeared also for the Secretary and the Principal respectively.

The Principal complied with the High Court order but the secretary did not, taking the view that the decision as to whether he should do so, and as to whether an appeal should be lodged, should be a matter for the full Council of Legal Education, which did not meet until 8 June 1985.

On 13 June the Attorney-General applied to extend the time for filing the notice and memorandum of appeal so as to file them out of time. On 22 July Platt AJA allowed the application and the notice of appeal was filed the following day. The respondent then applied to refer the matter to the full Bench, and, on the success thereof, sought costs on the same basis as an advocate.

Held – While the discretion to allow an extension of time under rule 4 is now a perfectly free one that discretion had to be exercised in accordance with recognised judicial principles, and on the facts of each particular case.

A genuine mistake or misunderstanding on the part of the application was a matter to be taken into account, especially if the delay was short, but in other cases it might be dangerous to allow the extension because rules of practice were nearly always founded on legal principle and their neglect could lead to a disregard of the principle involved.

In the instant case the single Judge of Appeal had exercised his discretion on the basis that the Secretary had to obtain the authority of the Council before embarking on the appeal and that that was the cause of the delay.

That was erroneous because the real reason for the delay was the failure of state counsel who took the judgment of the High Court to lodge the notice of appeal, or to inform his superior, the Chief State Counsel, who has conducted the case, of the result or of Chief State Counsel to give the necessary instructions to lodge an appeal if the decision was adverse to the Attorney-General. Since the notice of appeal was a simple document requiring no particular skill it was a precaution which should have been taken within the time prescribed by rule 74(2).

Platt AJA, was, however, correct in declining to take the merits of the main appeal into account, in accordance with the decision in *Palata Investments Ltd v Burt and Sinfield Ltd and others* [1985] 1 WLR 942.

Since the respondent acted in person, and there was, unlike England, no provision in Kenya allowing a litigant to recover any part of the costs as if the work had been done by an advocate, he could only be indemnified against the costs he had actually incurred. Since he had not engaged an advocate he was not entitled to any costs under that head, and his costs would be fixed at KShs 1 200.

Reference allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Mbogori and Mbogori v Raliwala civil application number Nai 34 of 1985

Meru Farmers Co-operative Union Ltd v Suleiman (2) [1966] EA 442

Njagi v Munjiri [1975] EA 179

United Kingdom

Gatti v Shoosmith [1939] 3 All ER 916

London Association for the Protection of Trade v Greenlands Ltd [1916] 2 AC 15

Mcleod-Johnstone-Hart v Aga Khan Foundation [1984] 1 All ER 239; [1984] 1 WLR 994 (CA)

Palata Investments Ltd v Burt and Sinfield Ltd [1985] 1 WLR 942 – **DA**

Ruling

Kneller, Hancox And Nyarangi JJA: On 19 December 1985 we had three matters before us in which the Attorney-General on the one hand and Mr Theuri on the other were the parties.

The first was a reference by Mr Theuri to the Court because he wished to have the decision of a single Judge of the Court reversed. The single Judge was Platt AJA who had allowed the application of the Attorney which he had made by a motion on notice filed on 13 June 1985 under rule 4 of the Court of Appeal Rules.

The Attorney moved for orders:

> "That the time to lodge the notice of appeal be enlarged and (that the) notice of appeal and memorandum of appeal be allowed to be filed out of time and for an order that the costs of and incidental to this application abide the result of the said appeal."

The learned Judge heard the parties on this on 19 July and in a ruling delivered on 22 July he allowed the motion in part extending the time in which the Attorney might lodge the notice of appeal up to the end of the next day, 23 July, and awarding the costs of the application to Mr Theuri in an event but adjourning *sine die* the Attorney's application for the time in which to institute the appeal to be extended.

The Attorney's notice of appeal was from a decision of the High Court in Nairobi (O'Kubasu and Abdullah JJ) of 20 May 1985 whereby orders of *mandamus* went forth, first, to the Secretary of the Council of Legal Education to issue to Mr Theuri a certificate of enrolment, with retrospective effect from 25 July 1983, and to register Mr Theuri's articles of clerkship with retrospective effect from 18 January 1984, and, secondly, to the Principal of the Kenya School of Law to admit Mr Theuri to the School to continue a course of legal education in preparation for the examinations specified in Part IV of the Advocates (Admission) Regulations. Mr Theuri was awarded the costs, disbursements and out of pocket expenses which had been necessarily and properly incurred in obtaining these orders.

At the end of the reference we declared Mr Theuri had succeeded in persuading us that the decision of Platt AJA should be reversed, and so it was. The costs of the reference and the motion before Platt AJA were reserved until we had delivered our reasons and heard the submissions of Mr *Shields*, the Chief State Counsel, for the Attorney and of Mr Theuri. We now give our reasons for what we did.

There are some facts and some principles which form the background to the reasons and we must include them here now.

Platt AJA under rule 4 had to exercise judicially a discretion, which was whether or not by his order he should extend time to lodging of the notice of appeal and, if he decided to do so, on what terms he should do so. It is a wide discretion and almost unfettered, for the only constraint imposed by the rule is that the terms should be just. It is a difficult one to exercise because it must embrace all the circumstances of the case and the rights of the parties.

A reference is technically not an appeal but it has the nature of one, as Sir Charles Newbold P of the former Court of Appeal for Eastern Africa explained, and that court decided it would not interfere with the exercise of a discretion of a single Judge of that court from whom the reference came unless it was clear that the single Judge erred or exercised his discretion on improper grounds, the onus being on the one who asked for the reference to establish this. Duffus VP and Spry JA (as they then were) agreed with all that (see *Meru Farmers' Co-operative Union Ltd v Suleman* (2) [1966] EA 442 at 443). This Court follows the same principles (*Mbogori and Mbogori v Raliwala* civil application number Nai 34 of 1985 (Mombasa 5 of 1983) 30 January 1984, Mombasa).

Mr *Shields* had opposed Mr Theuri's motion for the orders of *mandamus* right from the outset in the High Court but he had to be in another court in Mombasa when the judgment of the two Judges was delivered, so Mr Muhoro of the chambers of the Attorney-General took it, and this was done on 20 May 1985.

Thereafter the Attorney had 14 days in which to lodge his notice of appeal, according to rule 74(2), that is to say on or before 3 June.

Now a notice of appeal is an uncomplicated document. Musyoke JA of the former Court of Appeal for East Africa described a notice of appeal over ten and half years ago in *Njagi v Munyiri* [1975] EA 179 at 180 as:

> ". . . nothing more than a formal written information to the Court of an intention to appeal, and it may be withdrawn at any time. It is normally lodged as a matter of course, on payment of a small fee, by any person wishing to appeal against a decision of a superior court, irrespective of whether the intended appeal has merits or not, and no documents of the superior court are required at this stage. Accordingly the applicant's contention that his failure to lodge the notice of appeal in time was caused by the High Court's inability to supply certain documents is irrelevant."

Today we would not go so far as to suggest that a notice of appeal should be lodged as a matter of course, whether the appeal had merits or not, but certainly no skill in drawing one or filing it is necessary. The fee is only KShs 150 for everyone save for the Attorney for whom there is no charge at all.

And today at any time after lodging such a notice any appellant may lodge and serve a notice withdrawing it and if the respondent consents the appeal is struck out with no order as to costs. If the respondent objects then the appeal stands dismissed with costs. This can be found in rule 93. We presume Mr Theuri would not have objected to the Attorney withdrawing this appeal.

During his submissions in the course of this reference Mr *Shields*, the Chief State Counsel, cited the opening passage of the speech of Lord Parker of Waddington in *London Association for the Protection of Trade v Greenlands Ltd* [1916] 2 AC 15 at 38:

> "Mr Lords, the irregularities which characterised the pleadings in the present case and the unusual course taken (apparently without objection from anyone) by the trial Judge have, in my opinion, considerably obscured the real issue. In some cases, no doubt, a waiver of technical points may be conducive to substantial justice being done between the parties. In others, again, it may be dangerous if only because the dividing line between technicality and substance is not always clearly defined. A rule of practice, however technical it may appear, is almost always based on legal principle, and its neglect may lead to a disregard of the principle involved."

And with all of that, of course, we most respectfully agree. We suppose, also, that what Mr *Shields* was at pains to impress upon us was that Mr Theuri's proceedings were marked by irregularity and the learned Judges of the High Court took unusual courses, or cut corners, with the result that some principles involved were disregarded and the order of *mandamus* should not have gone forth.

Assuming for the present, then, that all that is so, there could be no doubt that if the High Court Judges succumbed to Mr Theuri's entreaties for these orders the Attorney would have to lodge a notice of appeal at once. He was not ready to do so until 13 June which was ten days out of time.

We do not mean the Attorney in person was not ready but those from his chambers who were representing him and opposing Mr Theuri's application.

The delay of ten days was due, according to the affidavit of the Secretary of the Council of Legal Education, in support of the Attorney's motion before Platt AJA, to his asking the Council whether an appeal should be lodged which it authorised on 8 June, and the Secretary then asking the Attorney to appeal. So it was the Secretary who had been responsible for the delay and that was because he could do nothing without the *imprimatur* of the Council.

The Principal of the Kenya School of Law on the other hand moved to comply with the orders of *mandamus* and did not wait to ask anyone if he should ask the Attorney to appeal from them.

Platt AJA in his ruling found that the Secretary decided not to comply with the High Court's orders but, instead, to appeal. He consulted his diary and found that it had been decided on 20 April that the Council would meet again on 8 June so he put the matter of whether or not he should appeal in the agenda for that date.

The learned Judge found that the discretion he had to exercise was wide and merely confined by imposing terms which are just. He cast the burden of showing why this indulgence should be granted on the one who asked for it. There had to be some reason for this, he declared, though it need no longer be a special or sufficient one.

He followed the approach of Lord Greene MR in *Gatti v Shoosmith* [1939] 3 All ER 916 at 919 in which the discretion of the Court of Appeal in England was held to be a perfectly free one, so that the only question was whether, upon the facts of each particular case, that discretion should be exercised. Furthermore, if the applicant had made a mistake, whether or not, upon facts of each individual case, it would be a proper ground for allowing an appeal to be effective though out of time or unjust to allow the appellant to succeed upon that argument.

Platt AJA found on the facts of the individual case before him the Secretary had to obtain the authority of the Council before embarking on the appeal (if he wanted to have the support and assistance of the Council) and that alone is what caused the delay. He added:

> ". . . certainly he would need to explain his position to the Council, and seek the Council's support. In view of the publicity that the matter had attracted, he would need to proceed carefully, and if the Council felt that the Secretary should follow the lead of the Principal of the School of Law, then there would be no appeal. The Secretary would not want to attract opprobrium by lodging a notice of appeal and then withdrawing it. The few days out of time allowed for due process of consultation, and I think that that was a responsible attitude in the circumstances of the case.
>
> On the other hand, suppose I take Mr Theuri's point of view and consider the Secretary to have been mistaken it is clear that it would be a very understandable mistake; indeed just such a mistake for which *Gatti v Shoosmith* provides an answer.
>
> The delay was one of only a few days.
>
> In all the circumstances I am quite satisfied that the delay is one which should be executed under the new rule 4, all other things being equal . . ."

He did not take the merits of the intended appeal into consideration because there had been no special emphasis on it though he thought the "situation seems arguable". In this he was correct, according to the recent decision of Sir John Donaldson MR in *Palata Investments Ltd and another v Burt and Sinfield Ltd and others* [1985] 1 WLR 942.

We must ask what was the reason in *Gatti v Shoosmith* for the appellant's failure to institute his appeal in time. Lord Greene MR described it as:

> ". . . a mere misunderstanding, deposed to on affidavit by the managing clerk of the appellant's solicitors – a misunderstanding which, to anyone who was reading the rule without having the authorities in mind, might very well have arisen. The period involved is a very short one, it is only a matter of a few days, and the appellant's solicitors within time, informed the respondent's solicitors by letter of their client's intention to appeal. This was done within the strict time, and the fact that the notice of appeal was not served within the strict time, was due entirely to the misunderstanding."

We appreciate that Platt AJA did no more than take the same approach of the Master of the Rolls to misunderstandings but it seems to us with profound respect that no-one in the application with which he was dealing misunderstood anything, with or without reading our rules, or having the authorities in mind.

The Attorney's opposition to the application of Mr Theuri to the High Court for those orders was led or conducted by Mr *Shields*. There would have been some discussion before or during the course of the proceedings in that Court as to whether there would be an appeal if Mr Theuri were successful. And with the irregularities and unusual courses that there were which obscured some vital principle an appeal could and should have been launched as soon as the Judges of the High Court had concluded their judgment.

Mr *Shields* never heard it delivered, it is true, but Mr Muhoro did, and, we trust, took a note of not only the results but the main reasons for it. They were not telephoned to Mr *Shields* at Mombasa before he read of them in newspapers there.

They may have been telephoned later for all we know; just when Mr *Shields* saw the item in the newspaper we were never told.

There was no need for any collection of the sum needed for filing the notice of appeal. This might be a problem for a poor lay litigant. There was apparently no doubt that the judgment should be appealed, though we do not endorse that having not heard any appeal from it. All that had to be done was for someone in the chambers of the Attorney to draw, sign and file this notice which could be withdrawn later at any time and in our view (pace Platt AJA) without any opprobrium.

What happened? The Secretary of the Council chose not to obey the simple orders of the High Court but to find out from the Council if they should be appealed. He thought they had been wrongly issued, and he and the Council approached the matter of appealing from them in a calm deliberate unhurried fashion.

But while they did so, the 14 days passed. Now all the people involved in this matter, save for Mr Theuri, were professionals. We cannot, with respect, accept that they were right to let this happen, and we cannot find any circumstances that justified such a lapse.

Thus, it was for these reasons that we decided that Mr Theuri had persuaded this Court that the learned single Judge had exercised his discretion on improper grounds because he appropriated the delay to the Secretary's desire to take instructions before launching the appeal rather than to State Counsel's failure to take immediate action or seek instructions from his superior when the adverse decision was given. Accordingly we reversed him.

Now we turn to the question of who should pay the costs of the reference and of the motion before the single Judge and after that the other two applications between the parties which we had adjourned until today.

Ruling

Mr Theuri asks this Court to award him the costs of this reference because he succeeded in persuading the Court to reverse the decision of the single Judge of Appeal, and costs follow the event. He claimed he had done much research into the facts for the reference and into the law relating to such a reference, into the judicial exercise of the discretion vested in a single Judge of Appeal by the amended rule 4 of the Court of Appeal Rules and into the question of whether or not the time for lodging a notice of appeal under rule 2 (*ibid*) should be extended.

Mr *Shields*, the Chief State Counsel, for the Attorney-General, opposed the award of costs to Mr Theuri because he was not an advocate. He submitted that all he was entitled to was what he had spent necessarily and properly on paying the fees for filing documents and serving them and the expenses of attending the hearing of the application and the reference.

Starting from the provisions in the Court of Appeal Rules relating to any decision about the payments of costs, we find that the Court may assess them or direct them to be taxed, and any decision as to the payment of costs, not being a decision whereby the amount of the costs is assessed, shall operate as a direction that the costs be taxed (rule 105(1)).

The Registrar (or Deputy Registrar) of this Court is the taxing officer and has the power to tax the costs between party and party of or arising out of any application or appeal of this Court (rules 2 and 108(1)).

"Application" and "appeal" do not, however, include "a reference" according to their definitions in the Rules, but although the term "reference" is in the side note to rule 54(1), which provides for "a reference", yet that rule, in itself, stipulates that any person being dissatisfied with the decision of a single Judge (of Appeal) in any civil matter may apply to the single Judge informally at the time when the decision is given or by writing to the Registrar within seven days thereafter to have any order, direction or decision of a single Judge varied, discharged or reversed by the Court (rule 54(1)(*b*)). It is in the Rules, and in effect, a reference is just another application and the Deputy Registrar is the taxing officer for it as for an "appeal" or an "application".

And such costs are to be taxed in accordance with the rules and the scale set out in the Third Schedule of the Rules (rule 108(2)).

There in the Schedule will be found a provision that the Deputy Registrar must allow the reasonable expenses of a party who appeared in person at the hearing of an application or an appeal (and those of witnesses who give evidence at any such hearing) (paragraph 19).

Now what Mr Theuri seeks, we believe, is an award that will include not only a sum for the work he did in preparing this matter for the application to the single Judge of Appeal and for the work he did for the reference to this Court but also another sum for the notional costs of briefing an advocate for both matters or part thereof.

Mr *Shields* is, of course, correct when he says that Mr Theuri cannot rely on the provisions of The Advocates (Remuneration) Order because Mr Theuri is not an advocate.

In England, by Order 62, rule 28A of the Rules of the Supreme Court, Parliament has provided an exception to the Principle that by an award of costs a successful party is only to be indemnified against costs which he has incurred. The exception is that a successful litigant in person (in England) who suffers a pecuniary loss can recover for work done by him up to two thirds of that which would have been allowed for that work if a solicitor had done it. Disbursements are allowed in full provided they would have been allowed if incurred by a solicitor. A notional disbursement such as fees for counsel or part of these fees was not covered because the successful litigant in person had not incurred them (see Lloyd J in *McLeod-Johnstone-Hart v Aga Khan Foundation* [1984] 1 All ER 239; [1984] 1 WLR 994).

Here in Kenya we do not have such an order and rule in our legislation and we respectfully draw the attention of the Rules Committee to the English ones for introduction, if it thinks fit, into the Civil Procedure Rules.

Returning to Mr Theuri, we find he is entitled, as a successful litigant in person, to an indemnity from the respondent Attorney against the costs he has in fact incurred in bringing this application to the single Judge of Appeal and then of this reference to the Court, because costs follow the event, unless the Court or Judge shall for good reason otherwise order, and we cannot find any good reason to order otherwise (section 27(1) of the Civil Procedure Act (Chapter 21)).

We cannot make any order against the Council of Legal Education, its Secretary at the relevant time or now, or the Principal of the Kenya School of Law because none of them was a party to the application or the reference.

The Attorney can, of course, we respectfully suggest, decide out of which vote by Parliament for his chambers or for the Council of Legal Education the costs should be approved and paid to Mr Theuri.

The costs are limited to the payment Mr Theuri incurred necessarily and property for this application and reference, and they include reasonable expenses for his attendance at both.

We acknowledge and appreciate the extent of Mr Theuri's work and research in both applications, and particularly the fact that he listed the authorities and copied the unreported ones for us in obedience to our rule 26.

We can do no more for him because we apply, and do not create, any law in such matters.

We take one more step, however, in the interest of both parties, or so we think, and we fix these costs for the application and the reference together at one sum of KShs 1 200 in the hope of ending this litigation. This course should obviate their taxation or a reference under rule 109 from the Deputy Registrar to a single Judge of Appeal, or an adjournment by him to the Court, or an application to the full court by any party dissatisfied with what the single Judge did.

For the Attorney-General:
F Shields, Chief State Counsel

For the respondent:
In person

Azolozo v Republic
[1986–1989] 1 EA 16 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	10 September 1986
Case Number:	88/85
Before:	Hancox JA, Platt and Gachuhi AJJA
Sourced by:	LawAfrica
Appeal from:	

[1] Criminal law – Forgery – What constitutes a false document under section 349 of the Penal Code – Jurisdiction of Court of Appeal – Cross appeal by the Attorney-General – Whether the Republic can appeal against a decision of the High Court in first appeal – Sections 348A, 354(3), 361(1), (3) and (4) and 379(5) – Criminal Procedure Code.

Editor's Summary

The appellant, who had been employed for ten years as a civilian accounts clerk in Kisumu Police Headquarters, was convicted by the Acting Resident Magistrate on six counts of forging travel warrants, contrary to section 349 of the Penal Code, and on six counts of stealing by a person employed in the public service, contrary to section 281 of the Penal Code. These counts represented six separate transactions relating to forgery and misappropriation, and the appellant received 12 and 18 months' imprisonment concurrently on the respective sets of charges. On the first appeal the High Court quashed the convictions on counts 9 to 12, representing the last two transactions, but upheld the other four forgery convictions. The first appellate Judge, however, took the view that it was not established beyond reasonable doubt that the appellant had taken or converted the monies represented in the remaining four stealing charges, and allowed the appellant's appeals on counts 2, 4, 6 and 8. The appellant then preferred a second appeal to the Court of Appeal on the forgery charges, namely counts 1, 3, 5 and 7, and the Republic cross-appealed against the High Court's decision on counts 2, 4, 6 and 8.

Held – Forgery had not been established in counts 1, 3, 5 and 7 because the travel warrants were that which they purported to be, namely warrants authorising the journeys by the three police officers concerned. The fact that the warrants contained numerous false statements did not render those documents false in themselves. The appeals on those charges would therefore be allowed.

A right of appeal must be specifically conferred by statute.

Hancox JA dissenting – section 361 of the Criminal Procedure Code, in contrast to sections 348A and 354(3)(*c*), and despite the generality of the opening words in subsection (1), namely "a party to an appeal from subordinate court may appeal against the decision of the High Court . . ." was neither intended nor is appropriate to deal with acquittals.

There was nothing to show that section 361, having been designed to cover appeals by convicted persons, had been expressly enlarged to permit appeals by the Republic. In the previous decisions, which might appear to be to the contrary, this point was never properly argued.

Accordingly the words in subsection (1), "a party to an appeal" were not apt to include the Attorney-General, for to do so would place a person acquitted in jeopardy of having his freedom taken away thereafter, which was not the intention of the Legislature, as shown by section 379(6) of the Code.

Per Hancox JA – The circumstantial evidence established beyond reasonable doubt that the appellant stole the sums stated in counts 2, 4, 6, and 8 and the High Court erred in finding to the contrary.

Subsection (3) of section 361 contained limiting words, showing that only an appeal by a convicted person was envisaged, whereas there were no such limiting words in subsection (1). The words "any party to an appeal" accordingly included the Republic, which was demonstrably a party to the first appeal to the High Court.

Following *King-Emperor v Banoari Lal Sarma* [1945] 1 All ER 210 at 216 the subsection had to be given its plain meaning, and it was not possible to look elsewhere for a restricted meaning.

Appeal allowed. Cross-appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Chandaria v Republic [1966] EA 246

Republic v Agweyu [1979] LLR 2952 (CAK)

Republic v Kimani [1984] LLR 1852 (CAK)

Republic v Oyier [1984] LLR 1727 (CAK)

Uganda v Shah [1961] EA 30

United Kingdom

Attorney-General v Sillem (1864) 10 HLC 704

Gelberg v Miller [1961] 1 WLR 153

King-Emperor v Benoari Lal Sarma [1945] 1 All ER 210 – **F**

Public Prosecutor v Oli Hee Koi [1968] AC 829

Seward v Vera Cruz (1884) 10 App Cas 59

Smith v Brown [1871) 6 QBD 729

Judgment

Hancox JA: The appellant had been employed for some ten years as a civilian clerk in the Provincial Police Headquarters at Kisumu. He was one of four persons so employed at the material time in a section which was under the charge of Paul Mutua Masila, PW6, the provincial executive officer. The second in command of that section was David Heyi, PW2, in whose custody the police road travel warrants book was kept and who was a signatory to those warrants. Six of those travel warrants formed the subject of the forgery charges against the appellant in this case. The charges of stealing by a person employed in the public service, contrary to section 280 of the Penal Code, represented (save in two instances) the amounts shown on the travel warrants which the appellant was alleged, and indeed the Magistrate so found, to have misappropriated to his own use. There were thus six separate transactions, each represented by a forgery charge and a theft charge, with which the appellant was faced when he appeared before the Acting Resident Magistrate at Kisumu on 4 April 1984. All the offences were alleged to have occurred in the months of March, April and May 1983, and it was the appellant's contention at his trial that he had been instructed to prepare the travel warrants by Heyi, who brought him the travel warrants book and a list of the personnel to be transferred. At least four of the travel warrants in question were admittedly signed by Heyi, against whom the trial Magistrate obviously felt there was a degree of suspicion.

The Magistrate found that the details inserted in the warrants by the appellant were false, in the sense that they were for journeys that were never made by the police officers concerned, and in one instance that the officer named in the travel warrants does not even exist. He went on to hold that the travel warrants were false in themselves, that there was clearly an intent to defraud proved against the appellant and forgery was established contrary to section 349 of the

Penal Code. He held that the appellant therefore forged all six the travel warrants which were the subject of counts 1, 3, 5, 7, 9 and 11, convicted him on those counts and sentenced him to 12 months' imprisonment concurrently on each count.

As regards the charges of stealing by a person employed in the public service, counts 2, 4, 6, 8, 10 and 12, the Magistrate found that the appellant had inserted his own vehicle, a Peugeot saloon number KND 841, in the travel warrants for journeys that were never made, and that the inference was irresistible that he had stolen the amounts stated in the stealing charges, which should rightfully have been paid into the Provincial Police Headquarters' coffers at Kisumu. In some cases he used the fictitious name of HA Mugobe, but not in respect of the cheque for KShs 2 609, which was cashed for him by Winfred Achieng' (PW9) at the Kenya Commercial Bank in May 1983. Accordingly the Magistrate convicted the appellant also on counts 2, 4, 6, 8, 10 and 12, and awarded him 18 months' imprisonment on each count, to run concurrently with each other and with those passed on the forgery counts.

The learned Judges on the first appellate court allowed the appellant's appeals on counts 9, 10, 11 and 12, representing two transactions, on the basis that the roll which allegedly showed that there was no such officer as PC Patrick Onyango was never produced at the trial, that his non-existence was therefore not satisfactorily proved and consequently the falsity of the travel warrants in respect of those two transactions had not been established. They, however, held that all the other travel warrants, forming the subject of counts 1, 3, 5 and 7, did not merely contain false statements but were false documents in themselves, within the definition in section 347 of the Penal Code and within a passage which they then cited from *Kenny's Outlines of Criminal Law* (19 ed) at 387.

In respect of the stealing charges the High Court held as follows:

> "The appellant received money on the basis of these travel warrants four of which were proved to be forged. He received the money in five cases by cash and in one case by cheque, after the relevant documentation had been approved. He may have obtained the money on the basis of improper documentation, but he did not steal the money. There was no taking or conversion on this part, and theft was not proved.
>
> Accordingly we allow the appeal in respect of counts 2, 4, 6, 8, 9, 10, 11 and 12."

The matters with which the Court, on the second appeal, is now concerned, accordingly, are an appeal from the High Court's dismissal of the appellant's first appeal on the first four forgery charges (counts 1, 3, 5 and 7) and a purported cross-appeal by the Republic, filed during the course of the hearing, against the same court's decision allowing the appellant's first appeal in respect of the stealing charges (counts 2, 4, 6 and 8). I say "purported appeal" because although there have been instances in which the Republic has preferred a second appeal against the High Court's decision on an appeal from a subordinate court, notably in *Republic v Oyier* [1984] LLR 1727 (CAK), and *Republic v Agweyu* [1979] LLR 2952 (CAK) the point as to whether there is jurisdiction to entertain a second appeal by the Republic through the Attorney-General does not appear to have been specifically decided. In this connection I note that this Court's predecessor said in *Chandaria v Republic* [1966] EA 246 at 248 (an exchange control case on appeal from the High Court of Kenya):

> "It may be observed in passing that the rules of this court make no provision for cross-appeals in criminal appeals. We think, however, that it was clearly right to give notice to the Court and to the appellant of the intention to raise this matter and it was immaterial whether it was formally done by notice or informally by letter."

In that case, as I understand it, however, the Republic was not substantively appealing against the allowance of an appeal by the High Court (which had dismissed the first appeal), but against that portion of the High Court's judgment which had held that certain immigration forms completed by the appellant were inadmissible. In other words, the Republic put forward an opposing contention in law to set against that of the appellant, but within the appellant's appeal. The point as to whether the opening words of subsection (1) of section 361 of the Criminal Procedure Code, namely:

> "A party to an appeal from a subordinate court may, subject to subsection (8)", (which is irrelevant here) "appeal against the decision of the High Court in its appellate jurisdiction on a matter of law . . ."

permit the Attorney-General so to appeal, has never been the subject of a considered decision by this Court.

Before I deal with the aspect of jurisdiction, however, I propose to consider the appellant's appeal against the dismissal of his appeal on the forgery charges. The learned Judges of the High Court correctly appreciated the law as to when a document is properly said to be forged, but did they correctly apply those principles of law which they stated to the travel warrants with which we are concerned in the instant case?

In my view, applying the passage quoted from *Kenny's Outlines of Criminal Law* by the High Court, which is in agreement with *Russell on Crime* (12 ed) at 1225 *et seq* and the cases therein set out, the travel warrants in question were that which they purported to be, namely warrants authorising the journeys respectively by PC Ismail Obati and his wife, PCH Amira and his wife and family and sergeant James Odhiambo and his wife and family, on the dates and to the destinations stated in them. Each warrant obviously contained numerous false statements and the basis for each, namely the journey said to be authorised, was false. But it cannot be said that the warrants were false in themselves, in that they purported to be what they were not. I think the situation is precisely covered by the penultimate sentence of the passage quoted from Kenny.

Very probably the evidence would have established charges of fraudulent false accounting within section 330(*a*) of the Penal Code, a travel warrant being a document which belonged to the appellant's employers. Unfortunately no such charges were brought, and we do not think that subsection (4) of section 361 of the Criminal Procedure Code enables us to substitute a conviction under section 330. The appellant is therefore entitled in law to succeed on his appeal in respect of counts 1, 3, 5 and 7.

I therefore now turn to the cross-appeal by the Republic. The Republic objects to the findings at the conclusion of the High Court judgment, that, notwithstanding that the appellant (who is now also, of course, the respondent to the cross-appeal), had received the money stated in each theft charge on the basis of the travel warrants, there was no taking or conversion on his part and theft was not proved.

Before this Court can consider this it is necessary to be satisfied that we have jurisdiction to entertain an appeal (whether it be by way of a substantive or a cross-appeal) by the Republic. I have already set out the opening words of subsection (1) of section 361 of the Criminal Procedure Code. It is well settled that a right of appeal to any party does not exist unless it is conferred on him by statute. Accordingly, does subsection (1) apply to the Republic? In my view it

cannot be gainsaid that the Republic was a party to the appeal from the subordinate court in this case. The subsection does not contain limiting words such as are to be found in subsection (3), which refers to a party to an appeal who has, or has not, as the case may be, been properly convicted by the subordinate court. Similarly, subsection (4) limits the party to the appeal by providing "where a party to an appeal has been convicted of an offence . . ."

There are no such limiting words in subsection (1), and I conclude, therefore, that that subsection must be given its plain meaning, and that it is not necessary to look elsewhere for a restricted meaning. It is not permissible, in my view, to resort to rules of construction or interpretation if the words are plain, and I quote from Lord Simon LC's judgment in the Privy Council case of *King-Emperor v Banoari Lal Sarma* [1945] 1 All ER 210 at 216 as follows:

> "Again and again, this Board has insisted that in construing enacted words we are not concerned with the policy involved or with the results, injurious or otherwise, which may follow from giving effect to the language used."

In my view the phrase "a party to an appeal from a subordinate court" is not confined to a convicted person. Accordingly the Republic, having been a party to the first appeal from the subordinate court, is in my judgment entitled to appeal to this Court from a decision of the High Court allowing an appeal. This conclusion would appear also to gain support from *Uganda v Shah* [1961] EA 30 where the Uganda Public Prosecutor appealed from a High Court decision quashing the respondent's conviction. Furthermore, in the recent case of *Republic v Kimani* [1984] LLR 1852 (CAK) though admittedly not after full argument, this Court consisting of Kneller and Nyarangi JJA and myself said, in relation to a preliminary point taken by the respondents on an appeal by the Attorney-General from a decision of the High Court:

> "Mr Otieno's submission is that the Attorney could not appeal from the decision of the learned Judge because he had in effect decided nothing save to say that the trial by the Magistrate was a nullity and we should begin committal proceedings. The Attorney's appeal lay under section 348A Criminal Procedure Code and that was not applicable to anything the High Court decided for it was confined to a subordinate court's order and the provisions of that section ousted those of section 36(1) of the Code which were confined to any party to an appeal from a decision of the High Court in its appellate jurisdiction. Mr Chunga's point is that section 348A is nothing to do with this appeal and it is a simple appeal by the Attorney on behalf of the Republic, which was a party to the appeal from the learned Judge of the High Court's decision in its appellate capacity, and therefore within the provisions of section 361(1) of the Code. We agree with Mr Chunga's submission. It is well within the provisions of section 361 of the Criminal Procedure Code."

I therefore proceed to consider the ground of the cross-appeal to which I have already referred. The Magistrate's finding on the stealing aspect of the case was that the appellant received the monies stated in the six stealing counts; namely counts 2, 4, 6, 8, 10 and 12, in his own name or that of HA Mugobe. We are, of course, no longer concerned with counts 10 and 12. He went on to find that none of the three police officers, PC Ismael Obati, Cpl E Amira or Sgt James Odhiambo, had made the journeys stated in the respective travel warrants which were the subject of counts 1, 3, 5 and 7 and in respect of which the theft charges were brought as counts 2, 4, 6 and 8. There was evidence on which he was entitled so to find. Though the travel warrants were not, in law, forgeries, they were undoubtedly fraudulent in the sense that they contained false statements and were issued in respect of journeys that were never made. The

Magistrate concluded by finding, in effect, that the inference was irresistible that the appellant had stolen the respective amounts, which were the subject of the stealing charges. I entirely agree. As this Court said in *Republic v Francis Otieno Oyier* (*supra*) it was a finding based on credibility of the witnesses, and unless no reasonable tribunal could make such a finding or the Magistrate had erred in his findings, or had acted on wrong principles, the first appellate court should have respected it.

I consider the High Court erred when it said that the appellant did not steal the monies. The circumstantial evidence in my view established beyond reasonable doubt that he did and it was incapable of explanation upon any other reasonable hypothesis. In my judgment the Republic is therefore entitled to succeed on its cross-appeal.

The result is, then, that we allow the appellant's second appeal on counts 1, 3, 5 and 7, quash the convictions thereon and set aside the sentences imposed. I would also allow the Republic's cross-appeal as regards counts 2, 4, 6 and 8 and restore the convictions thereon and I would make the same order as we did in *Republic v Francis Otieno Oyier*, where the aspect of sentence (which was then, as here, a ground of appeal to the High Court) was not decided upon (because the appeal had been erroneously allowed) and remit the case back to the High Court for consideration of the sentence by another Judge. However, the majority of the Court takes a different view and the cross-appeal is therefore dismissed.

Platt AJA: I would happily agree with the result of this appeal as set out by Hancox JA in his judgment, but for the section dealing with the right of appeal to this Court, from an acquittal by the High Court on first appeal to it, from a decision of the subordinate court. As Hancox JA has pointed out, it is well-settled that a right of appeal does not exist unless it is conferred by statute and, in the instant case, that depends on section 361(1) of the Criminal Procedure Code which provides that:

> "A party to an appeal from a subordinate court may, subject to subsection (8), appeal against a decision of the High Court in its appellate jurisdiction on a matter of law, and the Court of Appeal shall not hear an appeal under this section:
>
> (*a*) on a matter of fact, and severity of sentence is a matter of fact; or
>
> (*b*) against sentence, except whether a sentence has been enhanced by the High Court, unless the subordinate court had no power under section 7 to pass that sentence."

It is to be gathered from those provisions, that "second appeals" as the marginal note calls them, are limited appeals; limited to matters of law, and limited in the case of sentence to cases of excess of jurisdiction beyond section 7 of the Code, unless the High Court has enhanced sentence.

It is by its tenor a restrictive provision in general dealing with an appellant's convictions. It is convicts, of course, who might wish to appeal against sentence. Subsection (3) deals with the case of a convict not properly convicted on some count, but can be properly convicted on another, in which case the Court of Appeal can affirm, reduce or enhance the sentence in substitution. Subsection (4) deals with alternative verdicts and lawful sentences, which apply to them. Subsection (5) provides that an appeal may be dismissed, although the point raised might be decided in favour of the appellant, if it considers that no miscarriage of justice has in fact occurred.

It is difficult to see this subsection as referring to other than the appeal of a convicted person. Subsection (6) is for granting bail to a convicted person who is a party to the appeal. Subsection (7) deals with revisions of the High Court. The High Court cannot convert a finding of acquittal into one of conviction. So this can only concern convicted persons. Subsection (8) again emphasises the limited character of appeals; there are to be no third appeals, and no appeals against a refusal to admit an appeal out of time. The general words "a party to an appeal" were originally employed to cover persons convicted and others who had had an order made against them, such as costs or forfeiture. Hence, as Hancox JA has pointed out, the question for decision is whether the section can be read as permitting the Attorney-General to appeal against an acquittal by the High Court.

The problem may arise in two ways; the first when the Magistrate's Court has convicted a person, but the High Court on first appeal has acquitted that person; and the second when both the Magistrate and the High Court have acquitted a person, may the Attorney-General appeal to this Court under section 361 of the Criminal Procedure Code? The essence of the argument that the Attorney-General can so appeal, lies in the generality of the words of subsection (1) – "a party to an appeal from a subordinate court" may appeal against a decision of the High Court in its appellate jurisdiction on a matter of law. It is easily pointed out that the Attorney-General would be a party to the appeal from a subordinate court, whether or not that court convicted or acquitted. The Attorney-General is always represented on appeals. But it is section 348A of the Code which provided for the first time in 1967 (Act number 13 of 1967 section 3) that the Attorney-General could appeal from an acquittal (*inter alia*) after a trial held by a subordinate court, to the High Court on a matter of law. It follows then that, whether the subordinate court convicted or acquitted, the Attorney-General would be either respondent or applicant with the only difference that, in an appeal by a convicted person, the appeal could be on a matter of fact as well as law (see section 347(2) of the Code); whilst if the Attorney-General appealed against an acquittal, that would only concern a matter of law.

The Attorney-General thus being a party to an appeal from a subordinate court, is it proper to permit him to appeal to the Court of Appeal against either the acquittal of the accused person by the High Court on first appeal, or the double acquittal of the accused by the subordinate and High Courts as a result of the operation of section 348A of the Code?

In my opinion, the Court is not entitled to give the Attorney-General any such right of appeal. But I must express regret at not being able to agree with those decisions, in which this right has been granted to the Attorney-General. In some of those decisions there was no argument on the question now raised. In the latest decision, despite the existence of earlier decisions, it did not proceed beyond the simple grammatical application of the general words of section 361(1) of Code. It is admitted that a full argument was not addressed to the Court on the question of whether the general words in the section having been originally applied to convict the appellant it should then be widened to include an appeal by the Attorney-General in the case of acquittal. With reference to *Uganda v Shah* [1961] EA 30 nothing is said as to the provisions of law in Uganda which justified the appeal against the acquittal by the High Court being entertained by the Court of Appeal for Eastern Africa. There is no

reasoned decision of this Court or its predecessor on the point now in question. Therefore, it follows that the Court is not bound by decisions in which no reasons were given on this point for allowing the Attorney-General to appeal against an acquittal by the High Court acting in its appellate jurisdiction, and *a fortiori* it is not bound by decisions in which the point was not taken and no reasons were given at all as in the Uganda case.

As I have said, the opening words of section 361 are general words. Lord Hodson explained in *Public Prosecutor v Oie Hee Koi* [1968] AC 829 at 860 when dealing with an offence for "any person" to have in his possession without lawful excuse in a security area firearms, ammunition or explosives, that it was true the language of section 57 (of a certain Malaysian Act) covers any person; but upon its proper construction, section 57 could not be read so widely as to cover members of the regular Indonesian armed forces, fighting as such in Malaysia in the course of what it had been assumed was an armed conflict between Malaysia and Indonesia. The Act was an international security measure, part of the domestic law, and not directed at the military forces of a hostile power attacking Malaysia. That is a vivid illustration of reading too much into general words, which were grammatically applicable, but would, if so read, alter the real intention of the legislature.

That case directs attention to the true intention of the legislature, and I propose to consider the historical background to the Code as well as the presumptions which may legitimately be drawn. The Code must be read as a whole.

One of the fundamental notions of English criminal law is that prosecution should not be persecution, so that, for instance, a person should have extended to him a fair hearing; he should not be tried again for the same offence, and should not be punished twice for the same offence. Once a person had been acquitted he had acquired his freedom which was not to be taken away lightly. It has not been possible, however, to grant an accused person his freedom on acquittal in all events. There was the procedure of a case stated. In 1959, section 379 of the Code was enacted whereby, if a person tried by the High Court in its original jurisdiction, had been acquitted, the Attorney-General could file a certificate that a point of law of exceptional public importance had arisen, which in the public interest the Court of Appeal should determine. That court would then deliver a declaratory judgment, which would not operate to revise the acquittal, but would bind the Courts in the ordinary way as the law to be followed.

By 1959 section 361 of the Code operated only in the case of convicted persons. That appears from the nature of the section in all its parts, as explained earlier, in the context of the Code at that time. The powers of the High Court on an appeal against an acquittal, enacted under section 348A, in 1967, are clearly set out in section 354(3)(*c*) of the Code, as distinct from an appeal against conviction in section 354(3)(*a*) of the Code. Indeed, the powers of the High Court in an appeal against conviction, against sentence, against acquittal, and from any other order, are set out separately, from which a coherent code emerges, in relation to the various kinds of appeals which may be lodged before it. Section 361, by contrast, has no such logical development, if it should be that the Attorney-General should be able to appeal against an acquittal in either of the two situations which have been envisaged. Compared with section 354(3)(*c*) above, section 361(2) is not especially apt to deal with acquittals, and

indeed it is not clear whether bail should be taken to ensure the respondent's attendance for conviction and sentence. In at least one case, the acquitted respondent is still at large awaiting recapture. It is not clear either in what way sentence should be imposed, since this Court has no powers on second appeal to pass sentence. It may be questioned whether it is apt for this Court to enter or cause to have entered a substantive verdict of guilty after an acquittal, having in mind that there is provision for declaratory judgments in section 379 of the Code. It does not appear logical that an acquittal by the High Court should be treated on a first appeal to this Court as a declaratory matter, but after two appeals to a gap with no clear results being provided for. Of course, this Court can send everything back to the lower courts, with probably unfortunate delays, and in the case of the Attorney-General losing the appeal under section 348A, after the accused person has been acquitted twice. That circumstance especially causes one to wonder whether section 361 was really intended to deal with acquittals.

The essence, then, of the objection to extending section 361 to appeals against acquittals, is that, while section 348A was carried through to a fairly logical conclusion in section 354, and section 379 received its concomitant provisions in a later subsection of that section, there are no express provisions for the result of an appeal against an acquittal in section 361. What has happened is that without special provision, the general words of section 361, which were designed to deal with the appeals from convicted persons, and other persons against whom orders were made, are being construed more widely to accommodate appeals against acquittals. It should be said here that in the Court of Appeal Rules, no provision has been made for cross-appeals by the Attorney-General against an acquittal, which has been proposed in this case.

It is a principle of construction that the history of an enactment may be considered. The Court is not to be oblivious of the history of law and legislation in order to fairly ascertain what the intention of Parliament is (see *Maxwell on Interpretation of Statutes* (12ed) at 47 *et seq*). It would be normal to read section 361 as at the time it was passed (see *Maxwell* ibid at 85). There is a presumption creating new and enlarging existing jurisdictions (*Maxwell* at 159). In *Craies on Statute Law* (17ed) at 122 it is said that express language is necessary to add to the jurisdiction of a superior court. "The creation" said Lord Westbury "of a new right of appeal is plainly an act which requires (distinct) legislative authority" (see *Smith v Brown* [1871] 6 QBD 729 at 735 approved in *Seward v Vera Cruz* (1884) 10 App Cas 59; particularly *Attorney-General v Sillem* (1864) 10 HLC 704 at 720). A modern example lies in *Gelberg v Miller* [1961] 1 WLR 153).

The provisions of section 1(1) of the Administration of Justice Act (1960) that: "for the purpose of disposing of an appeal under this section the House of Lords may exercise any powers of the Courts below" does not authorise the House to exercise the powers of the Divisional Court or Court of Appeal (Criminal Division), to certify that a point of law of general public importance is involved in its decision in a criminal cause or matter (*Maxwell* at 160 and 161). On the other hand, if express words are used, jurisdiction will be exercised.

Therefore, it is my view that section 361, having originally been designed to cater for appeals by convicted persons (*inter alia*), and not for appeals brought by

the Attorney-General against acquittals, must have been expressly enlarged if such appeals against acquittals are to be fitted into its general words. As section 361 was not expressly enlarged for this purpose since the enactment of section 348A of the Code, it is neither legitimate for historical reasons, nor for reasons of principle based on presumptions which may properly be drawn, to include appeals against acquittals within the general words in section 361. It is certain that the legislature did not envisage or intend section 361 to cater for such appeals before 1967, and there have been no express indications that this must be the case after 1967.

It follows that I would allow the appeal of the appellant, quash all convictions and sentences, and set him at liberty forthwith unless held for any other lawful cause.

Gachuhi AJA: I too would agree with the result set out by Hancox JA allowing the appellant's appeal on counts 1, 3, 5 and 7 but do not agree with him on the cross-appeal.

To start with, the point now raised by the cross-appeal has been argued and decided before and has not really been argued before us. The respondent in the cross-appeal is a layman. I doubt whether he really conceived what would be the result if the cross-appeal is allowed. He was released from prison by the High Court on his appeal having been allowed after serving the sentence imposed on counts 2, 4, 6, 8, 9, 10, 11 and 12. He has been enjoying freedom since then. If cross-appeal succeeds, he has to go back to serve another six months. It does not seem that our Criminal Procedure Code (Chapter 75) has provided for such eventuality.

For the state to have a right to appeal to the Court of Appeal, such right has to be specifically conferred by Statute. To start with, the state had no right of appeal against the acquittal by the subordinate court until such right were confirmed by section 348A of the section reads:

> "When an accused person has been acquitted on a trial held by a subordinate court, or where an order refusing to admit a complaint or formal charge, or an order dismissing a charge, has been made by a subordinate court, the Attorney-General may appeal to the High Court from the acquittal or order on a matter of law."

This right was the subject of amendment of the Criminal Procedure Act (Chapter 75) by Act number 13 of 1967. The same Act brought amendments to section 354(3)(*c*).

Appeals from an acquittal by the High Court in the exercise of its original jurisdiction is by a certificate signed by the Attorney-General that the determination of the trial involve a point of law of exceptional public importance. The Court of Appeal shall then review the case or such part of it. This provision in section 379(5) of the Criminal Procedure Code (Chapter 75). The effect of such an appeal is to obtain a declaratory judgment on the point of law, without however prejudicing the acquittal. A declaratory judgment shall not operate to reverse an acquittal.

Section 354(3)(*c*) allows the Attorney-General to appeal from an acquittal by the subordinate court to the High Court. Section 379(5) allows the appeal from an acquittal by the High Court to Court of Appeal only for a declaratory judgment on a point of law on exceptional public interest. There is no specific provisions allowing an appeal by the Attorney-General from an acquittal by the High Court in its appellate jurisdiction.

Section 361 deals with second appeals. It starts with "a party to an appeal from a subordinate court . . .". My feeling is that "a party to an appeal" in this section does not include the Attorney-General. The section gives the convicted person a right of second appeal to the Court of Appeal. The section would also apply where the Attorney-General had appealed against the acquittal, while the other party would appeal to the Court of Appeal. The section would also apply in the case of a private prosecution appeal.

I am aware of previous decisions by this Court on appeal by the Attorney-General, but those appeals were not argued on the point as now discussed in this judgment. Furthermore, there are no reasons given why it was right to allow the Attorney-General to appeal an acquittal by the High Court to the Court of Appeal overlooking the provisions of section 379(5) of the Criminal Procedure Code.

Taking into consideration all these provisions, I feel that the cross-appeal filed by the Attorney-General is not proper and it should be struck out.

For the appellant:
In person

For the Republic:
JW Bwonmonga, Principal State Counsel

Baiywo v Bach
[1986–1989] 1 EA 27 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	24 November 1987
Case Number:	122/86
Before:	Nyarangi, Platt and Apaloo JJA
Sourced by:	LawAfrica

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[1] Civil procedure – Service of summons – Process server serving on son-in-law of appellant – Wife of appellant confirming service – Process server not stating what effort made to serve on appellant personally – Whether service proper.

[2] Civil procedure – Setting aside ex parte *judgment – Appellant saying he has a good defence – Good defence merely alleged – Appellant must demonstrate not merely allege.*

Editor's Summary

The respondent filed suit against the appellant in the High Court. The process server went to the appellant's home to serve the summons but did not find the appellant. Instead he found the appellant's son-in-law, upon whom he served the summons in the presence of some other persons including the appellant's son. No appearance was entered neither was a defence filed and interlocutory judgment was entered. The matter then proceeded *ex parte* and judgment was entered against the appellant.

The appellant applied to set aside the *ex parte* judgment arguing that Order V, rule 12 of the Civil

Procedure Rules had not been complied with and that no prc*per se*rvice had been made. The High Court rejected the application and the appellant moved to the Court of Appeal advancing a similar argument. He relied on the case of *Waweru v Kiromo* (1969) EACA 172 to support the contention

that service was defective because the process server had not shown that the defendant (the appellant) could not be found. The appellant argued that he never saw the summons but only knew of the matter when he later found his wife with a notice of taxation.

Held – There is a qualified presumption in favour of the process server, and the burden lies on the party questioning it (*MB Auto Mobile v Kampala Bus Service* [1966] EA 480 approved). On that basis it must be accepted that the process server served the summons on the appellant's son-in-law.

Although the affidavit of service was silent on whether any effort had been made to find the appellant personally, process servers are simply required to take reasonable steps, and if summons get in the hands of a defendant in time, the object of the exercise of service is achieved (*Waweru v Kiromo* (*supra*) doubted). It was clear from the affidavit of the process server at the time of serving the notice of taxation, that the appellant had received the summons and told his wife that he would go to Nandi town to meet the respondent and settle the dispute. Thus the shortcomings regarding what enquires were made under Order V, rule 9 were curbed.

The appellant did not show that he had a good defence to persuade the Court to set aside the judgment, even if the service was a proper one (*Evans v Bartlam* [1973] 2 All ER 646 approved and followed).

Appeal was dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Erukana Kavuma v ST Mehta [1960] EA 305

Kanji Naran v Ramji (1954) 21 EACA 20

MB Automobile v Kampala Bus Service [1966] EA 480 – **APP**

Mbogo v Shah [1968] EA 93

Patel v EA Cargo Handling Services Ltd [1974] EA 75

Pirbhai Lalji and Sons Ltd v Hassanali Devji [1962] EA 306

Robinson v Oluoch [1971] EA 376

Waweru v Kiromo (1969) EACA 172 – **DT**

United Kingdom

Amin Rasheed Shipping v Kuwait Insurance Co [1983] 1 All ER 873

Evans v Bartlam [1937] 2 All ER 646 – **APP** and **F**

Gardner v Jay [1885] 29 Ch D 50

Judgment

Platt JA: The appellant Shadrack Arap Baiywo had been sued by the respondent Bodi Bach for damages, because the appellant had first sold to the

respondent half of the appellant's shop on plot number 3 Kapugorian Market in 1971, and then in 1981 had forcefully repossessed the shop. It appears that the respondent did not sue for the eviction of the appellant but merely for damages:

(*a*) for the value of the half-shop which was lost;

(*b*) compensation for improvements; and

(*c*) loss of profits through interruption of business.

The respondent Bodi Bach brought his suit on 12 November 1985. The summons to the appellant was allegedly served on 23 November 1985. It appears from the proceedings that on 13 December 1985 the respondent applied for judgment in default of the appellant entering an appearance on filing a defence. The form of the application appears to follow Order IXA, rule 5 of the Civil Procedure Rules, whereby interlocutory judgment was prayed for pending the matter being set down for the assessment of damages. That application was acceded to and interlocutory judgment was entered on 13 March 1986. On the same day the damages were assessed, and on 8 April 1986, judgment was given for KShs 210 000.

According to the appellant, when he came to his Ibanja Village home in Nandi District, he found his wife with a notice of taxation. This notice had been served on 2 May 1986. It was 5 May 1986 when the appellant received the notice. On 17 May 1986, the appellant came to the High Court, Kisumu, and found that judgment in default had been entered under Order IXA, rule 10. What is stated here is gained from the appellant's affidavit dated 12 May 1986 in support of the chamber summons filed on 13 May 1986.

At the hearing it was contended that Order V, rule 12, of the Rules had not been complied with. The learned Judge considered that it had been; he did not call upon Mr *Owuor*, and forthwith, on 19 June 1986 held that service had been proper and that judgment was duly entered. The Judge dismissed the application and the appellant appeals against that dismissal.

The issues taken on this appeal in grounds 1, 2 and 3 (grounds 4 and 5 having been abandoned) are that, first, the service of summons to enter appearance was irregular. Second, it is said that the learned Judge ignored the fact that judgment had been obtained *ex parte*, so that the appellant, as defendant, had never been able to present the merits of his case to the Court. Thirdly it is said that the learned Judge relied only on the affidavits, and, ignored the facts given by the defendant's counsel in chambers. On this last issue, it is not clear what matters were ignored, but in general the Judge should rely principally upon the affidavits; and if there is important information for consideration it ought to be put on affidavit, unless the other side has clearly agreed to the inclusion of information to which he may wish to reply. It is curious that ground 33 has been raised at all, and as it is not clear with what it is concerned, it is left aside and grounds 1 and 2 are taken as those principally in issue.

The first ground emphasises that if there is no service, then *ex debito justitiae*, the judgment by default must be set aside. Of course, judgment by default can only be entered if there has been an initiating process concerning which the defendant is in default (*Kanji Naran v Ramji* (1954) 21 EACA 20 to which Mr *Njuguna* referred). In what way was the summons declared as unserved? Mr *Njuguna* relied upon *Waweru v Kiromo* (1969) EACA 172 for support for the proposition that the service was defective because the process server had not

shown that the defendant, who is now the appellant, could not be found. He protested that Order V, rule 12 of the Civil Procedure Rules made service conditional on the process server really ascertaining that the defendant could not be found, and, second, that the adult member of the defendant's family who had been served was a member who was actually residing with the defendant.

Rule 12 provides as follows:

> "12. Where in any suit the defendant cannot be found, service may be made on an agent of the defendant empowered to accept service, or on any adult member of the family of the defendant who is residing with him."

It is to be noticed that the argument presented to the learned Judge is recorded as concerning the issue whether Mr John Kipkemboii Murgor, the son-in-law of the defendant, and who resided with him, was a family member. The learned Judge thought that he was, and he must surely be right. But the present contentions of Mr *Njuguna* were not put to the learned Judge, as far as the record reveals, and his attitude to them is not known.

That raises the preliminary issue, as it were, of the role of this Court. The decision of the House of Lords in *Evans v Bartlam* [1937] 2 All ER 646 has been the foundation of the approach of the Courts in East Africa to the present problems for some time, and it was greatly relied upon in those two leading East African cases *Mbogo v Shah* [1968] EA 93 and *Patel v EA Cargo Handling Services Ltd* [1974] EA 75. The House of Lords decision has nourished the views in succeeding decades of English lawyers up to modern times, so that May LJ was still to find the source of the rule of the Court of Appeal in the opinion of Lord Wright (at 654 in *Evan*'s case) which he explained in *Amin Rasheed Shipping v Kuwait Insurance Co* [1983] 1 All ER 873. Lord Wright's observations were:

> "It is clear that the Court of Appeal should not interfere with the discretion of a Judge acting within his jurisdiction, unless he is shown to have applied a wrong principle, the Court must, if necessary, examine anew the relevant facts and circumstances, in order to exercise by way of review a discretion which may reverse or vary the order. Otherwise, in interlocutory matters, the Judge might be regarded as independent of supervision. Yet an interlocutory order of the Judge may often be of decisive importance on the final issue of the case, and may be one which requires a careful examination by the Court of Appeal."

Lord Wright then went on to approve of the opinion of Bowen LJ (in *Gardner v Jay* [1885] 29 Ch D 50) that the discretion must be exercised according to common sense and according to justice. That is in the same spirit as the approach in *Mbogo v Shah* (*supra*) where it is said that the discretion is to be exercised:

> ". . . in the light of all the facts and circumstances both prior and subsequent and of the respective merits of the parties, it would be just and reasonable to set aside or vary the judgment, if necessary, upon terms to be imposed."

In the light of these principles it is the duty of this Court to review all the circumstances whether or not they were all taken before the High Court.

In those circumstances, it will be fitting to state the facts here. The process server's return of service comprise in short form what happened:

> "2. On the 23 November 1985 being unable to find the defendant Mr Shadrack KA Baiywo at his home, I served Mr Jason Kipkemboii Murgor who introduced

> himself to me as Mr Baiywo's son-in-law and they stay together; with a true copy of the Summons together with the copy of the plaint at Kaptumo at 11.30am by tendering a copy thereof to him and requiring his signature on the original summons. The said Mr Jason Kipkemboii Murgor accepted service by signing on the reverse side of the original summons in the presence of Mr John Rono and Mr Sammy Baiywo, the son of the defendant."

On this statement Order V, rule 12 would apply and the question is what must the process serve do to satisfy the Court that the defendant could not be found.

The process server enlarged the details of service in his affidavit dated 16 May 1986 in reply to that of Mr Baiywo. The latter affidavit dated 12 May 1986 is comprised of three important statements: first, Mr Baiywo lives in Kesses area in Uasin Gishu District, and at Ibanja in Nandi District. Second, he came to find the notice of taxation with his wife at Ibanja. He had never seen the summons to enter appearance. Third, Jason Kipkemboii Murgor was not known to him and did not live with him.

Mr Abwao answered that this friend Mr John Rono, the appellant's son Sammy Arap Baiywo, and the Assistant Chief Naphtali Kemboi, all informed him that Jason Kipkemboi Murgor was the son-in-law of the appellant and lived with the latter. It was the appellant's wife, Ziporah Baiywo, who had confirmed to Mr Abwao the process server, that the appellant had received the summons and plaint in November 1985, and she wondered why the appellant had not settled the matter as he had said he would. On the strength of these affidavits it would seem that, in fact, the appellant had not been present at his home in Ibanja, the inference being that he had been at his other home in Kesses. The service on Jason Arap Murgor would appear to have been proper, as an adult member of the family jointly residing with the appellant, and finally that service had indeed been effected in November 1985.

There is a qualified presumption in favour of the process server recognised in *MB Automobile v Kampala Bus Service* [1966] EA 480 at 484 as having been the view taken by the Indian Courts in construing similar legislation. On Chitaley and Annaji Rao *The Code of Civil Procedure* Volume II at 1670, the learned commentators say:

> "3. Presumption as to service – There is a presumption of service as stated in the process server's report, and the burden lies on the party questioning it, to show that the return is incorrect. But an affidavit of the process server is admissible in evidence and in the absence of contest it would normally be considered sufficient evidence of the regularity of the proceedings. But if the fact of service is denied, it is desirable that the process server should be put into the witness box and opportunity of cross-examination given to those who deny the service."

On that basis, it must be accepted that the process server did serve Mr Jason Arap Murgor, who was shown to be the son-in-law of the appellant and residing with him. But that does not conclude the matter, because the affidavit of the process server is uninformative about his inability to find the appellant. Mr *Njuguna* is right to point out that the affidavit is almost studiously silent on this question. A process server is required to make reasonable inquiries in order to serve the summons on the defendant personally.

On the other hand the opinions quoted in *Waweru* strike an odd note. In *Erukana Kavuma v ST Mehta* [1960] EA 305 Sir Audley Mckisack CJ, Uganda criticised the process server for revealing a "most inadequate ground" for saying that he could not find the defendant whom he had been told had gone to India.

One wonders what more the process server would have done. In *Pirbhai Lalji and Sons Ltd v Hassanali Devji* [1962] EA 306, Sir Audley McKisack again criticised that process server who had gone to the defendant's house on several occasions when he had called there on two consecutive days. It was said that the process server ought to have done more to establish the fact that the defendant could not be found.

The process servers will face different situations. They will meet on occasion hostility, they will often face people determined not to tell them anything; they will face defendants intent on avoiding being found. They will also face co-operative people, and when they do, they should try and find out if the defendant has more than one address, or when he is expected home, and try to meet him. It seems that in the Uganda cases, rather too much was expected of the process server, whilst in the instant case, with so many co-operative people rather more information could have been elicited. Nevertheless it would be rather better for the Court to take clear responsibility, criticise the process servers less and direct them more as to what is required. That power is given in Order IXA, rule 10.

Another aspect of *Waweru*'s case is also unsatisfactory. It is not correct to say that a service which is not entirely satisfactory and by itself might have to be set aside cannot ever become a good service. It may be that the object of this type of service was achieved, in that the adult member of the family may have given the summons, to the defendant within time for the defendant to act. If that was the case, that would be equivalent to personal service, and the irregularity in not inquiring after the defendant would be cured. The scheme of the rules is clear from Order V, rule 9 onwards. Personal service is the ideal, but may not be possible to achieve. Rule 9 commences with the words "whenever it is practicable", before providing for personal service. Then there is rule 17 providing for substituted service. These rules illustrate that defendants may make it impossible or very difficult to effect personal service. Process servers are not detectives, but are simply required to take reasonable steps, and if a summons gets to the hands of a defendant in time, that is the object of the whole exercise. Of course, if service is late, the defendant can either appear and defend late (*Robinson v Oluoch* [1971] EA 376 at 378) or he can seek to set aside the process, at which time the Court has power to adjust the rival claims according to common sense and according to justice, under rule 10.

In the present case, the appellant's wife told the process server that the appellant had received the summons in November 1985, and he had said he would go to Nandi town to meet the respondent and settle the dispute. That has not been contraverted by evidence in a reply to the process server on that point. The process server must therefore be accepted in what he says. In the result, the service was effected and so any shortcomings in stating what inquiries were made were cured. The service was proper.

On the second limb of the case, no defence was put forward by the appellant. He simply said he had a good defence. What was it? This Court has often quoted the explanation of Lord Alkin in *Evans v Bartlam* (*supra*) on the point:

> "The discretion is in terms unconditional. The Courts however have laid down for themselves rules to guide them in the normal exercise of their discretion. One is that, when the judgment was obtained regularly, there must be an affidavit of merits, meaning that the appellant must satisfy the Court that he has a *prima facie* defence . . ."

> The principle obviously is that, unless and until the Court has pronounced a judgment upon the merits, or by consent, it is to have the power to revoke the expression of its coercive power when that has been obtained only by a failure to follow any of the rules of procedure."

That is a definitive statement. If there are merits in the defence, it would be unjust not to allow them to be heard, even if judgment had been obtained regularly. On the other hand, if there are no merits, judgment should stand. Hence the practice grew up to set out the defence on affidavit sufficiently to indicate a *prima facie* defence. The appellant has not done so.

Looking at all the circumstances, there is no ground upon which this Court should exercise its discretion to vary or discharge the judgment entered by default. I would dismiss the appeal with costs.

Apaloo JA: I also agree, Platt JA has set out the facts and the relevant matters for consideration with his usual clarity. An examination of the facts and those matters carry, to my mind, the clearest conviction that although the appellant was not present when the process server sought to serve the plaint on him, it was delivered to him shortly afterwards by his son-in-law with whom the process server left it.

Unless there is a statutory definition of a member of family, common sense suggests to me that a son-in-law who lives with the appellant and who is not shown to be an infant, answers the description of "an adult member of the family". It seems to me that the appellant had no answer to the respondent's case on the merits. Had he one, he would not have sought to set the judgment aside, on what strikes me as a bare technicality.

Whether on the material presented to him the Judge should have set the judgment aside and reopened the matter was entirely for his discretion. The learned Judge exercised that discretion against the appellant. What should be the attitude of this Court when invited to review a Judge's discretion has been settled for years. The relevant judicial decisions both here and in England have been referred to in the full judgment of Platt JA.

It is sufficient for me to say that I find no ground to interfere with the Judge's discretion and, indeed, think on the facts he exercised this discretion correctly and arrived at an eminently just result. Like my brothers, I also think that this appeal fails and should be dismissed with costs.

Nyarangi JA: I agree.

The question for consideration is whether the process server served the appellant's son-in-law who was residing with the appellant at the time. Notwithstanding strenuous argument to the contrary, there was overwhelming evidence in support of valid service.

All in all, the appellant failed wholly to show that the decision of the High Court should be interfered with.

As Apaloo JA also agrees, the appeal is dismissed with costs as Platt JA proposes.

For the appellant:
Njuguna

For the respondent:
Owuor

Bakshish Singh and Brothers v Panafric Hotels Ltd
[1986–1989] 1 EA 34 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	8 October 1986
Case Number:	5/84
Before:	Kneller, Nyarangi JJA and Gachuhi AJA
Sourced by:	LawAfrica

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[1] Construction contract – Tender accepted by the employer – Date of commencement not agreed – Contractor refusal to carry out the works – Whether there was a breach of contract.

Editor's Summary

The contractor (appellant) offered in form of tender to carry out to completion certain alterations to Panafric Hotel which the employer (respondent) accepted. The formal agreement would be executed afterwards.

The contractor refused to carry out the works thereby compelling the employer to consider other tenders at considerable loss, including liquidated damages for extra time taken in completing the contract which it claimed from the contractor. The contractor contended that there was no contract as both the date for commencement and possession of the site had not been agreed and as this was an essential term in a building contract there was no contract.

The trial Judge found that there was a contract between the parties and neither the uncertainty nor the desire to execute a more formal contract affected it. The Judge awarded damages in the sum of KShs 107 915,03.

On appeal:

Held – An agreement in which some crucial point of the contract matter is left undetermined is no contract at all.

The date for possession and commencement of the works is a critical point of the agreement as it is on those dates that the dates of completion of the works may be determined.

In the absence of a date for commencement of the works there was no concluded contract.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Tarmohamed v Lakhani [1958] EA 567

United Kingdom

Branca v Cobarro [1949] 2 All ER 101

British and Beningtons Ltd v NW Cachar Tea Co [1923] AC 48

British Bank for Foreign Trade Ltd v Novinex Ltd [1949] KB 623

Kemp v Rose (1858) 65 ER 910

May and Butcher Ltd v R [1934] 2 KB 17

Judgment

Kneller, Nyarangi JJA and Gachuhi AJA: Panafric Hotels Limited (the employer) is a company that carries on a hotel business in Nairobi. Bakshish Singh and Brothers (the contractor) is a firm with its principal place of business in the same city.

The employer alleged that on 11 August 1975 the contractor offered in a form of tender sent to Dalglish Marshall and Associates, Chartered Architects (the architects) as agents of the employer, "to carry out to completion" certain alterations (the works) to the Panafric Hotel (the hotel) for KShs 675 038,37 which the architects on instructions by the employer accepted in a letter of 5 September 1975. Thus there was a contract made, or so said the employer. The contractor then refused to carry out the works which was a breach of the contract. The employer had to put the works out to tender again and suffered considerable loss which was particularised as:

A.	The difference between the contractor's tender and the actual costs incurred in carrying out the works	107 871,12
B.	Four weeks delay in beginning the work @ KShs 10 000 a week	40 000,00
C.	Seven weeks delay in extra time taken by the contractors to complete the works @ KShs 10 000 a week	70 000,00
	Total	217 871,12

which the contractor refused to pay the employer who filed a plaint in the High Court in Nairobi in December 1976 claiming that sum with costs and interest on both sums.

Why did the contractors reject that claim? By its defence of 21 December that year it did by pleading:

(*a*) the tender and letter did not make a contract because the date of giving possession of the site to the builder by the employer was not agreed and that was an essential term which was one that could only be agreed or decided after 5 September 1975; or

(*b*) the letter was a counter-offer, which was not accepted because it was not an unconditional acceptance; or

(*c*) the tender and the letter constituted a complete contract but it was subject to a condition precedent that the contractor and employer would agree on the date when the one gave the other possession of the site which they never did; or

(*d*) the architects, by their letter of 12 September 1975, waived the obligation of the contractor to perform it or confirmed his release from it; or

(*e*) the employer was estopped from enforcing the contract or relying on its breach because the architects by their second letter told the contractor it need not begin the works but it would not be asked to tender again which the contractor relied upon to its detriment.

The employer in its reply of late January the next year denied the second letter was a waiver or release in itself or that there was consideration for either or that its representation raised an estoppel and, if it raised any of those defences, then the architect had actual or implied authority to do so.

Those, in brief, were the pleadings which were closed at the end of January 1977. The trial began before Mr Justice Masime in mid-November 1980. An agreed bundle of correspondence was put in and the employer called Mrs Hepple, an architect and partner in Dalgliesh and Marshall, and Mr Levitan, a quantity surveyor with Barker and Richard, a Nairobi firm of quantity surveyors. The contractor called no witness.

Mrs Hepple and Mr Levitan provided this material for the learned Judge. The contractor's tender was one of six for the hotel's extensions. Barker and Richard reported on each. The employer told Mrs Hepple to accept that of the contractor which she did in the letter of 5 September 1975. A few days later the contractor met Mrs Hepple and Mr Levitan to agree on a date for the contractor to begin the work but the contractor without giving a reason announced the withdrawal of their tender. It was advised to think again and promised to do so but there was no change of attitude, so, by the letter of 12 September, the architects reluctantly accepted the withdrawal of their tender (but did not release the contractor from the contract) and added that this and another similar incident meant they would delete the name of the contractor from their list for tenders for future projects of any size.

Mrs Hepple in her letter of 5 September had this last paragraph:

> "Will you please contact the writer as soon as possible so that a date may be agreed for commencement of the work?"

but the date was never agreed. And in the appendix to the conditions of the contract are these two lines:

"Date for possession	Clause	To be arranged upon signing
	21	the contract"

This was usually part of such a contract because, among other things, the contractor has to mobilise his men, machines and materials from his stores or other sites before bringing them to the site and the employer has to re-arrange his business (in this case that of an hotel) to make the site available. More often than not the parties assumed the work will begin as soon as possible. When this date has been agreed, it and the consequent date for completion would be put in this schedule to the contract and the employer would sign the contract. It is not feasible to write these dates into the contract earlier.

The contractor would have been given possession of the site "pretty well immediately" according to Mr Levitan if it had not gone back on its tender.

Didar's tender was slightly higher than that of Sarikas Decorazzo and Contracting Company (Sarikas). Mr Levitan recommended Didar because Sarikas did not specify their unit rates which meant their unit process could not be determined. The employer had to wait for its Board of Directors to approve of Didars's tender which took ten days. Didar was given possession of the site a month later (on 21 October 1975) and completed the extensions satisfactorily and on time.

The delay cost the employer KShs 217 817,12 which was calculated in the way set out in the plaint. The price to be paid to the contractor and paid to

Didar was known, the employer provided the figures for the loss of rental income and in clause 8 of the Bill of Quantities and clause 22 of the Contract Damages for delay are fixed at KShs 10 000 a week.

Mr Couldrey (for the employer in the High Court) submitted the only issue was whether the contractor's tender and employer's letter of acceptance of 5 September 1975 constituted a contract? They did, he asserted, even though for possession of the site was at large and a formal agreement was to be executed.

Mr *Esmail* (for the contractor in both courts) declared it abandoned the defences of waiver and estoppel so there remained four issues which were:

(1) Did the tender and letter of 5 September amount to a concluded contract?

(2) Did the last paragraph of the letter indicate the employer's acceptance was conditional?

(3) Was it a condition precedent?

(4) If there was a concluded contract, what damages?

The last one was affected by three matters which were:

(*a*) Did the employer mitigate them?

(*b*) Was there any delay in completion?

(*c*) Was KShs 10 000 a week damages for delay a penal clause?

Then he submitted that the date the contractor was to begin his work was an essential term in any building contract and because that had not been agreed there was no contract. He did not rely on the fact that there was no formal executed expression of it. The parties could not be *ad idem* because the contract was incomplete. A realistic specific date in the tender for beginning the work was the solution to the question of how to have such a date without negotiation. Here it was left to later agreement. Alternatively, the fact that the parties would meet and agree on when the contractor could have the site was either a counter-offer or condition precedent.

Turning to damages, Mr *Esmail* claimed the evidence of Mrs Hepple and Mr Levitan was too thin to amount to proof of the sum claimed as damages. There was no attempt to persuade Sarikas to submit their unit rates. And, he asked rhetorically how can there be delay in completion by the contractor or Didar if the date when the contractor had to begin its work was not known? Or how could damages be calculated? So KShs 10 000 a week was clearly a penalty.

And those were the submissions on that evidence put before Mr Justice Masime. His judgment was for the employer against the contractor for KShs 107 915 with interest on that sum at 8% a year from 2 December 1976 to 31 March 1982 which amounted to KShs 46 027,95 and further interest at 12% a year on both sums from 1 April 1982 to 10 June 1983 which came to KShs 15 468,80. Those figures when totalled up came to KShs 169 411,75, on which interest at 12% a year was to run from 19 June 1983 until it was all paid off.

The learned Judge set out a resume of the evidence of Mrs Hepple and Mr Levitan, the contractor's tender with its clause about a formal agreement being prepared and his three issues which were:

"1. does the exhibited correspondence exchanged between the parties constitute a complete contract?

2. if a complete contract is constituted was there a breach of it?

3. if so, what damages are payable for such breach?"

He also referred to relevant paragraphs of *Halsbury's Laws of England* (4ed) (1973); *Branca v Cobarro* [1949] 2 All ER 101 and *Tarmohammed v Lakhan* [1958] EA 567 and the submissions of Mr Couldrey for the employer and Mr *Esmail* for the contractor on them.

He held that the tender and first letter amounted to a complete offer and acceptance. The fact that the parties desired the contract to be put into more formal legal shape did not make it an incomplete one. The uncertainty of the date for beginning and, therefore, finishing the work did not affect the completeness of the contract. These were only matters for negotiation and agreement for the purpose of executing the contract. When the contractor resiled from the contract it committed a breach of it. The architects were obliged to find others to carry out the work.

Coming to the issue of quantum of damages, Mr Justice Masime found that the employer had failed to prove the fact that Didar began these works four weeks later than the contractor would have (all being well) was attributable to the contractor's withdrawal from the contract. Didar was hired ten days after the contractor defaulted and the employer took another month to hand over the site.

So he went on to allow the claim for damages for the delay in having the works completed but he reduced the period from seven to four weeks. His reasons for doing this were that the standard building contract form provides for the time for completion to be extended for good cause so it would be unjust to compute that period with reference to the contractor's estimate of 27 weeks and Didar's of 20, and, secondly, the contractor's figure for the completion in a shorter time while Didar claimed a higher sum for doing this in a longer time.

He refused to reduce the figure of KShs 10 000 damages a week for delay although there was no evidence to indicate how it was reached because it was in the terms which the contractor accepted.

When it came to what sum the contractor was liable to pay the employer for the difference between the former's tender and the price Didar was paid it was KShs 107 871.

This table shows the difference between the relevant tenders:

	Price in KShs	*Period in Weeks*
The contractor	675 038-37	20
Sarikas	742 953-40	16
Didar	788 191-24	27

By deducting the contractor's bid from Didar's that leaves that KShs 107 871 which is what the employer claimed. Subtract the contractor's claim from that of Sarikas and KShs 67 915,03 is left. Mr Justice Masime chose the latter smaller one. He rejected the larger one because it was based on the fact that Sarikas was not chosen because it had kept mum about its unit costs. He agreed it was the duty of the contractor to mitigate the losses they suffered by asking Sarikas for its unit costs.

He added the award of KShs 40 000 for delay in completion to the KShs 67 915,03 for the extra costs in hiring a more expensive contractor and the award came to KShs 107 915,03 to which he added interest at court rates.

The contractor appealed and the employer cross-appealed. The contractor was dissatisfied because it maintained there was no contract between the parties since the essential terms of it had not been agreed or the acceptance of the tender submitted by the employer was an agreement to enter into a further agreement which was never reached. It asserted that without an agreed date to begin the work the employer could not say there had been any delay in completing it, if the tender of Sarikas had been accepted there would have been no delay, KShs 10 000 damages for each week of delay was a penalty and the contractor's failure to object to it was immaterial.

The employer complained of the Judge's refusal to award them any damages for Didar's delay in beginning the job and taking time to finish it and reducing the damages claimed for having to accept Didar's higher bid on the ground that the employer should have accepted that of Sarikas which was contrary to the advice of Mr Levitan.

The submissions for the employer and for the contractor by Mr *Deverell* (in place of Mr Couldrey for the employer) and by Mr *Esmail* (again for the contractor) in this Court were most helpful but we have to add that they were along the same lines as those put forward in the High Court but in more detail so we had, among other matters, more authorities cited to us than those put before the learned Judge.

Now the reported East African or Kenyan authorities on building contracts brought to our notice were meagre. The English ones were numerous and so were references to text books on them by English qualified authors. Nevertheless, we will take notice of the latter only when there is nothing local on the point and when the English ones are correct and appropriate.

The first, it cannot be a matter of surprise, is that the result always depends on the circumstances, the proved circumstances of each trial and appeal. Then follows the basic one that to be a good contract there must be a concluded bargain, and a concluded contract is one which settles everything that is necessary to be settled and leaves nothing to be settled by agreement between the parties (Viscount Dunedin in *May and Butcher Ltd v R* [1934] 2 KB 17 at 21; *British Bank for Foreign Trade Ltd v Novinex Ltd* [1949] KB 623). So, an agreement between two parties to enter into an agreement in which some crucial point of the contract matter is left undetermined is no contract at all (Lord Buckmaster *May and Butcher* at 20). But if there is silence on that point sometimes it is provided for by implying the test of reasonableness, eg the reasonable price of goods which the Sale of Goods Act of 1893 supplies or the contractor will complete the work within a reasonable time of being given possession of the site. On the other hand it is a perfectly good contract if it is agreed that one party should decide the point. Where there is provision for the parties to agree the critical point later (and they never do) there is no contract (Viscount Dunedin (*ibid*) at 21).

If a provisional agreement intended to be binding is reached until a subsequent agreement in precise and formal language is drawn and executed the provisional one is fully and immediately binding (*Branca v Cobarro* [1947] 2 All ER 101 (CA); *Karmali Tarmohamed and another v Lakhani and Co* [1958] EA 567 at 568 (CAU)).

When the time of completion in a written building contract signed by the employer is blank even if he and the contractor are told verbally of the date it is

not enough to seek an order to introduce this term into such a contract by parol evidence. There must be something very strong in the case before this can be done, especially where it introduces a penalty or forfeiture (*Kemp v Rose* (1858) 65 ER 910 at 913, 914 Sir John Stuart, Vice Chancellor).

Finally, a party is entitled to resist an action for breach of contract on any ground that is available even though before action he gave no reason at all (*British and Beningtons Ltd v NW Cachar Tea Co* [1923] AC 48 at 71, Lord Sumner (HL)).

Turning back to the relevant circumstances in this appeal, we appreciate that they include the form of the tender in which the contractor declared it had examined the drawings, conditions of contract, bills of quantities and specifications for the works and then "offered to perform and complete the works in conformity with them for KShs 675 938,37". It also undertook to complete and deliver the first phase (to turn some rooms on the seventh floor of the hotel into offices) for use and occupation by the employer within eight weeks of being given possession of the site and the second (turning the existing ground floor offices into bedrooms) within 12 weeks of completing the first. All that is clear.

Then comes:

> "Unless and until a formal agreement is prepared and executed this tender together with your written acceptance thereof shall constitute a binding contract."

And this tender was accepted by the employer in its architects' letter of 5 September 1975.

The date for the possession of the site is not specified in the tender or the letter of acceptance, nor is the date for the beginning of the works. And upon the date when possession is given hang the dates for the completion of the two parts of the works. The date for possession must, therefore, be what Viscount Dunedin in *May and Butcher Ltd* (*supra*) called a critical point in the agreement.

Does this silence, seeming silence, mean the employer can unilaterally choose the date he will give possession of the site? In fact, there is no silence on the matter. The conditions of the contract, mentioned in the tender, stated that it will be found in the appendix to the local standard agreement and schedule of conditions of a building contract and the conditions for this particular contract declared that that date was "to be arranged upon the signing of the contract" (see clause 21 of the standard form and its appendix and the special conditions). It was not in the appendix and it was not arranged by the parties. The employer's architect asked the contractor in the letter accepting the tender to get in touch with her for a date to be agreed for the work to begin. So, in short, this was not a date in a contract which was left blank but one to be arranged or agreed by the parties. There was no concluded bargain. It follows that there was no breach of it and the employer suffered no damage.

The appeal is allowed with costs (including the abortive part-heard appeal which was overtaken by the retirement of Mr Justice Chesoni), the judgment of the High Court is set aside and one for the contractor against the employer dismissing the latter's suit with costs substituted. The cross-appeal is dismissed with costs.

Orders accordingly.

For the appellant:
A Esmail

For the respondent:
WS Deverell

Bananahill Investment Ltd v Panafrican Bank Ltd and others
[1986–1989] 1 EA 41 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 July 1987
Case Number:	68/86
Before:	Nyarangi, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Injunction – Ex parte *injunction – Principles for grant – Whether an* ex parte *order of injunction can be granted without service to the other party of the application – Whether evidence by way of affidavits in application for injunction is complete.*

Editor's Summary

The appellant applied to the appellate court under rule 5(2)(*b*) of the Court of Appeal Rules for an order of injunction pending the hearing of the intended appeal against the dismissal of a similar application in the High Court.

The application in the High Court was for an interim injunction restraining the respondents from selling the suit property pending the hearing of the suit. In dismissing the application, the learned Judge had held that the plaintiff did not satisfy the Court that it had a *prima facie* case with probability of success and that it will suffer irreparable harm not compensatable in damages if the prayer was declined.

Counsel for the appellant argued that having all the information brought before him, the learned Judge was wrong in refusing to grant injunction and that he considered only two grounds of the three possible grounds for granting injunctions as settled by Spry VP in *Giella v Cassmann Brown and Co Ltd* [1973] EA 358.

Held – Order XXXIX, rule 3 of the Civil Procedure Rules forbids the grant of an *ex parte* order of injunction without the other party being served with an application.

As a matter of pleadings one should not pre-empt his evidence before the trial. Evidence by way of affidavits in an application for injunction is not complete. Such evidence for showing that the applicant has a case which can justify the granting of injunction to restrain from doing or failing to do something which if done or the failure to do it, will cause the plaintiff to suffer irreparable harm.

In *Giella v Cassmann Brown and Co Ltd* (*b*) Spry VP settled it as follows: "If the Court is in doubt, it will decide an application on the balance of convenience."

Platt JA dissenting – In the light of the facts put before the learned Judge (High Court), it is my opinion (this Court's opinion) that he acted under the first principle, within the law, reasonably and that therefore he exercised his discretion judicially. That meant that he was not called upon to consider the balance of convenience on what he was told. There was no probability of success.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Giella v Cassman Brown and Co Ltd [1973] EA 358

Mureithi v City Council of Nairobi civil appeal number 5 of 1979

Salim v Okongo civil appeal of 1975

Sargeant v Patel (1949) 16 EACA 63

United Kingdom

American Cynamid Co v Ethicon Ltd [1975] 1 All ER 504

Royal British Bank v Turquand [1843–60] All ER Rep 435

Judgment

Gachuhi JA: The plaintiff Bananahill Investment Limited is a limited liability company. It owns a property known as land registration number 209/572 on Moi Avenue together with the building on it. One of the shareholders of the plaintiff was Peter Joseph Gachathi (now deceased) who holds 49.999% shares. The estate of Peter Joseph Gachathi is administered by the Trustee Department of the Standard Chartered Bank Africa PLC. There is a dispute as to the shareholdings of the second and third respondents.

The plaintiff by its amended plaint filed on 9 April 1986 state that in September 1980 the Board of Directors sought and obtained a loan of KShs 10 million from Habib Bank Zurich for building and development of the said property. Thereafter, the second and third defendants approached the first defendant for a loan of KShs 20 million as claimed, for the same purpose of development of the said property. It is alleged that the first defendant proceeded to grant the said loan without the authority or consent of the Board of Directors. It is alleged by the plaintiff that the said loan of KShs 20 million was utilised personally by the second and third defendants and was never applied for the purpose of building or developing the plaintiff's company and that the directors of the plaintiff company were never made aware of the transaction relating to the acquisition of the said financial accommodation.

It is further alleged that the second and third respondents falsely and fraudulently proceeded to execute a charge over land registration number 209/572 as security for the said loan without advising or seeking consent, from the Trustee Department of the Standard Chartered Bank PLC as administrators of the estate of the late Peter Joseph Gachathi.

It is further claimed by the plaintiff that the second and third defendants fraudulently and falsely represented themselves to the first defendant as persons with authority to act for the plaintiff into a large financial liability without the knowledge, authority or consent of the plaintiff company or the Standard Chartered Bank Africa plc and that the second and third defendants applied the proceeds of the loan unto themselves and refused, failed and/or neglected to effect loan payments thereby exposing the property land registration number 209/572 to sale and disposal under mortgage terms created during the acquisition of the said loan. Plaintiff further alleges that the first respondent acted negligently and irregularly in failing and refusing to verify the authenticity of the loan application, presented by the second and third defendants and failing to ensure that proper and adequate authority and the approval by the board of directors was made available to the first defendant. The first defendant under the powers of the mortgage concluded a sale by private treaty of said property for the sum of KShs 22 million. The sale agreement, it is alleged, was registered at the land office. The plaintiff states that the property is valued at KShs 35 million and that the selling price of KShs 22 million is below the market price. The plaintiff therefore prayed that the Court should grant a perpetual injunction restraining the sale and disposal of the said property, a declaration that the defendants are jointly and severally negligent and fraudulent in securing the loan committing the plaintiffs; a declaration that the plaintiff company is not liable to the first defendant in the repayment of a loan irregularly and improperly sought and obtained; damages and costs.

The plaintiff obtained an *ex parte* order in the High Court on 27 March 1986 restraining the sale which order was fixed for hearing *inter partes* on 17 April 1986. On 17 April, counsel for the plaintiff and counsel for the first defendant obtained a consent order for adjournment and for extension of the *ex parte* injunction order to 22 April 1986, then hearing was adjourned to 28 April 1986, when the hearing took place before Schofield J. In dismissing the application, the learned Judge said that the plaintiff did not satisfy the Court that it had made a *prima facie* case for probability of success, or that the plaintiff will suffer irreparable harm which cannot be compensated in damages. The *ex parte* order made on 27 March 1986 was vacated on 28 April 1986.

The appellant applied to this Court under rule 5(2)(*b*) of the Court of Appeal Rules in civil application number 69 of 1986 praying that the Court be pleased to grant an injunction pending the hearing of the intended appeal against the dismissal of the application in the High Court before Schofield J. The Court (Kneller, Nyarangi JJA and Gachuhi AJA), after hearing argument by the counsel for the parties, granted the order on 8 May. The Court was satisfied that this appeal was not frivolous.

Mr *Hira* complains that at the time of the hearing of the application in the High Court, the interim injunction order granted by Gicheru J on 27 March 1986 had elapsed. In answer to this I would say that Order XXXIX, rule 3 of the Civil Procedure Rules forbids the granting of an *ex parte* order of injunction without the other party being served with an application. The same rule allows for an urgent order being granted *ex parte* but for a limited period of 14 days. The application has to be urgent and not remain pending for long.

My understanding of this rule is that it is designed to prevent placing hardship on the respondent. The application must be heard and be determined one

way or the other without delay. At times it may not be possible to hear the application within 14 days but procedure allows for such extension of time by the order of the Court which is in most cases by consent of the parties with the concurrence of the Judge in order to accommodate the parties and the Court. In this case the interim order was extended by consent on 10 April 1986 to 17 April 1986 when it was stood over to 22 April 1986. It is not possible from the record to state whether the *ex parte* order was extended further. The hearing of the application *inter partes* took place and was finalised on 28 April 1986 when the application was dismissed and the *ex parte* injunction order vacated.

Whether or not the *ex parte* injunction order had lapsed at the time the hearing took place, does not invalidate the hearing of the application *inter partes*. The appeal to this Court is as a result of the dismissal of the application. This Court granted, at first, an interim *ex parte* order till the hearing of the application *inter partes* in the civil application number 69 of 1986. The application was heard *inter partes* and injunction granted on 8 May 1986 to last till the determination of the appeal.

The case for the first defendant is that it was at all times aware that the applicant obtained a loan of KShs 10 million from Habib Bank AG Zurich but was not aware of the purpose for obtaining such loan. The first defendant admits having granted a loan of KShs 20 million to the applicant/plaintiff against the security of land registration number 209/572 Moi Avenue. At the time of granting this loan, there was a mortgage over the same property in favour of Mercantile Finance Company limited and not Habib Bank AG Zurich for KShs 12 211 314-165. Part of the loan of KShs 20 million was used to redeem the mortgage in favour of Mercantile Finance Co Ltd. The first defendant further state that prior to the mortgage, it was dealing with the applicant and was owed money and was entitled to act on the basis of representations made by the directors and shareholders and their representative.

At this point, it is fair to see as to who are the shareholders and directors for the company. According to John Kimani Gachathi, his late father was the main shareholder and Ratilal Shah was to pay for his shares equal to his father’s shares. According to John Kimani Gachathi, there is a dispute over this issue particularly as to whether Ratilal Shah ever paid for his shares. The return of allotment is alleged to have been filed after the death of Peter Joseph Gachathi. Some correspondence show that Ratilal Shah had promised to pay for his share but he did not. According to Modadugu Chadra Gupta for the first defendant a search was made at the registry of companies which indicate that Peter Joseph Gachathi was allocated 24 998 shares and Ratilal Khetshi Shah 25 000 shares. The other two remaining shares are subscribers shares, one to PJ Gachathi and the other to BW Gachathi. The directors of the company are Mrs Beatrice Wanjiku Gachathi, Stephen Njoroge Mirie, Winfred Nyambura Gachathi, Secretary Ratilal Shah, Raju Shah and GM Chamungwana Manager, Trustee Department of Standard Chartered Bank Africa PLC as an alternate director. John Kimani Gachathi further states in his affidavit that Mr Chamungwana and himself were appointed bank signatories while Ratilal Shah was responsible for dealings with the contractors. It is further alleged that Ratilal Shah stampeded the board meeting into a resolution to borrow KShs 20 million from the first defendant so that half of that amount would be utilised to pay off the previous indebtedness and the other half would complete the construction of the building. In spite of the protestation of the board meeting Ratilal Shah and his brother

Rajukent Shah who by then became directors, mysteriously and without authority or consent of the board meeting acquired a loan on behalf of the plaintiff company of KShs 20 million from the first respondent. The Shahs executed the mortgage. The dispute centres on this act because, when Mr Gupta stated that before granting of the loan, Panafrican Bank Ltd was owed money by the plaintiff, that must have been an account operated by John Kimani Gachathi and GM Chamungwana and Ratilal Shah. John Kimani Gachathi and GM Chamungwana do not appear to have been involved in the borrowing of KShs 20 million. In fact, the complaint by Mrs Beatrice Wanjiku Gachathi to the Standard Chartered Bank Africa PLC is on the basis that she only knew of the mortgage with Mercantile Finance Company Limited and not with the first defendant and wondered how the mortgage was created and where money went to. Due to this complaint Standard Chartered Africa PLC commenced investigation. The conclusion of the investigation has not been made available to the Court.

There also appears from the documents exhibited by the plaintiff in the affidavit of John Kimani Gachathi that relationship between Gachathi's group and the Shah brothers had been strained. They could not hold meetings together. Either board meetings were called off at a short notice or that the Shah brothers would not attend. Mrs Gachathi had to turn to Mr Chamungwana for advice. Gachathi's group complained that they were kept in the dark.

Mr Gupta's affidavit brings in another picture. In November 1983 a loan of KShs 6 million was to be raised from the respondent on a second charge. The loan was to be sanctioned by Mr Chamungwana. The resolution for borrowing KShs 20 million posed at a meeting of 30 July 1984 was signed by the Shah brothers. Gachathi's group as well as Mr Chamungwana appear not to have signed the resolution. It stated that it was an extraordinary meeting at which all members of the company were present. This is disputed.

Mr *Khaminwa* argues that Schofield J having all this information before him was wrong in refusing to grant the injunction. The Judge considered only two grounds of the three possible grounds for granting injunction as settled by Spry BP in *Giella v Cassman Brown and Co Ltd* [1973] EA 358. The learned Judge stated that the applicant had not made a *prima facie* case for a possibility of success and that the applicant had not shown that it will suffer irreparable harm which cannot be compensated in damages. Mr *Khaminwa* argues that the Judge ought to have considered the other ground of convenience. The Shah brothers have not been served and until they file their defence the truth of the matter will not come out. The case should not be determined on affidavits alone. There is an allegation of negligence and conclusion. The amount involved is colossal and the staus quo should be maintained. The Judge ought to have ordered the suit to proceed expeditiously and an order for substituted service given.

Mr *Hira*'s line of argument is that the respondent was dealing with a limited liability company which executed a mortgage over the property, the subject matter of sale. He referred to Indian Commentaries in support of his submission. As far as the respondent was concerned, it acted properly and since the applicant has failed to honour its obligation under the terms of the mortgage, it had to exercise its powers of sale either by public auction or by a private treaty. For this reason the respondent entered into an agreement of sale of the property with Jefro Properties Limited of Nairobi for the sum of KShs 24 million. The argument went further that, although the applicant complains that it was not aware of the borrowing, it has not challenged the mortgage for over one year.

The truth of the matter is that the whole matter is not in court. The learned Judge in his ruling stated:

> "I can find nowhere in the affidavits proof in the way of tangible evidence of any fraud or even negligence by the defendants. It may be forthcoming."

As a matter of pleadings one should not pre-empt his evidence before the trial. Evidence by way of affidavits in application for injunction is not complete. Such evidence for showing that the applicant has a case which can justify the granting of an injunction to restrain from doing or failing doing something, which, if done or failure to do it will cause the plaintiff to suffer irreparable harm. In certain cases, harm caused can be compensated in damages. In other cases, the suit is so obvious that there is no chance of the plaintiff succeeding. There are other borderline cases in *Giella v Casmanns Brown and Co Ltd* (*b*) Spry VP settled it as follows: "If the Court is in doubt, it will decide an application on the balance of convenience."

Mr *Khaminwa* argued vehemently on this ground. He referred to the House of Lords decision in *American Cynamid Co v Ethicon Ltd* [1975] 1 All ER 504. Madan JA as he then was in his judgment in *Wairimu Mureithi v City Council of Nairobi* civil appeal number 5 of 1979 at 4 referred to this case and referred to the speech of Lord Diplock at 406 and 408 as reported in [1975] AC 396. The continuation in the paragraph therein referred to, is:

> "If on the other hand, damages would not provide an adequate remedy for the plaintiff in the event of his succeeding at the trial, the Court should then consider whether, on the contrary hypothesis that the defendant were to succeed at the trial in establishing his right to do that which was sought to be enjoined, he would have sustained by being prevented from doing so between the trial. If damages in the measure recoverable under such an undertaking would be an adequate remedy and the plaintiff would be in a financial position to pay them, there would be no reason on this ground to refuse an interlocutory injunction."

The property is in the centre of the city currently valued at KShs 35 million by the applicant and KShs 22 million by the respondent. Proof of the market value will have to be given at the trial. If the sale is completed before the suit is heard and finalised the applicant might lose this city centre property which might be difficult to replace with another as good with any damages the respondent is ordered to pay and does pay. There is dispute of the value which can only be sorted out on the evidence at the trial. For this reason, I feel that the learned Judge ought to have considered the third ground that in the case of doubt the application should have been decided on a balance of convenience.

I would allow this appeal with costs. I would set aside the order of the High Court of dismissal of the application and substitute therefor with an order of perpetual injunction restraining the first defendant, its agent or representatives from selling, disposing off, or auctioning the property known as land registration number 209/572 Moi Avenue, Nairobi, till the determination of the suit. The applicant will give a written undertaking guaranteed by a bank or an insurance company in damages. The parties should now go to the High Court and seek representation to proceed with the hearing of the suit expeditiously.

Platt JA: I have benefited from studying the judgment of Gachuhi JA but unfortunately I cannot agree in the result. I need not repeat all the facts of this extraordinary story but it will be necessary to concentrate upon the salient and pivotal events.

This is an interlocutory appeal against the exercise of the discretion of the learned Judge who refused an interlocutory injunction pending trial. In coming to his decision he was bound by the principles set out in *Giella and Cassman Brown* [1973] EA 358 confirmed by *Salim v Okong'o* civil appeal of 1975 which are that the applicant must show a probability of success, that damages would not be sufficient, but that in case there is doubt the balance of convenience must be sought. This Court is also bound by these principles, since they emanated from the predecessor of this Court whose decisions are usually followed, but more especially because they have been universally followed by all Kenyan courts ever since. Since then there has been the illuminating decision by the House of Lords in *American Cyanamid Co v Ethicon Ltd* [1975] 1 All ER 504 and the appellant preference for it by Madan JA in *Wairimu Mureithi v City Council of Nairobi* civil appeal number 5 of 1979. The gist of the judgment in the *American Cyanamid* case was decisively to reject the first principal in *Giella*'s and to treat the whole matter as one of convenience as if the case was a matter of doubt because no decision should have been made at the interlocutory stage. The two approaches therefore overlap as far as the third principle in *Giella*'s case is concerned on the question of convenience, and also on the second principle concerned with the question of damages being a sufficient remedy. I have no doubt that it will soon be necessary for this Court to reconsider *Giella*'s case in the light of the *American Cyanamid* case, because, with respect to all concerned, the reasoning would appear to be superior to that in *Giella*'s case: but when changes of direction in such matters could be carried out by way of the seemly procedure which is provided for these changes. That procedure has not been called for in this case by the parties, and, therefore, like the learned Judge, it is right that this Court should consider the issues which arise on the existing law.

The learned Judge made two salient findings. He found no tangible proof of any fraud or negligence on the part of the Bank to show *prima facie* that the plaintiff company had shown a probability of success in the main suit. Secondly, he held that the disputes were of a financial nature. The plaintiffs had not shown that they would suffer irreparable harm which could not be compensated in damages if the application is refused.

As Lord Diplock emphasised in the *American Cyanamid* case, if damages in the measure recoverable at common law would be an adequate remedy and the defendant would be in a financial position to pay them, no interlocutory injunction should normally be granted, however strong the plaintiff's claim appeared to be at that stage. In this case there are two factors which do not appear to have been noticed by the learned Judge. The first is that, though there were financial dealings between the parties, the essence of the suit is that the defendant Bank has exercised its power of sale as a mortgage of the plaintiff company's property. The loss of the property is the matter to concentrate upon. In the case of the sale of immovable property it is a great hardship to lose it, and damages are not usually a suitable compensation. Moreover, the second aspect is that the Bank has not stated in any affidavit that it would be prepared to pay damages of the order of KShs 20 million. These days the World Bank is not necessarily a password for financial liquidity. It may be that this Bank is in a strong position but it ought to have appeared in evidence. I would agree that the learned Judge was in error on the second principle.

Damages not being a suitable means of compensation, then, the first and third principles need to be considered. The learned Judge did not consider the third principle, but found the matter closed after considering the first. Let us then see if that amounts to the judicial exercise of his discretion. For if he exercised his discretion according to law and came to a fair decision, then this Court would not morally interfere (*Sargeant v Patel* (1949) 16 EACA 63; *Wairimu Mureithi* case *supra*).

The learned Judge took a positive view of the situation before him, that there was no tangible evidence of fraud or negligence by the Bank. The second and third defendants, the brothers Ratilal and Rajukent Shah, have not yet been brought into the picture as they have not been served. The applicant submitted that their presence might aid his case. That sounded strange from a party accusing a Bank of fraud and negligence. But it is of a piece with the amended plaint. In contravention of Order VI of the Civil Procedure Code no proper particulars were given of the fraud or negligence alleged. The vague idea was pleaded that the Bank was jointly and severally liable for fraud with the two Shahs because the Bank did not seek to ascertain from the plaintiff company whether the two Shahs had the authority and consent from the plaintiff company to commit the plaintiff company to a loan of the order of KShs 20 million. Similarly, negligence was alleged because the Bank refused to verify the authenticity of the loan application and in neglecting to ensure that proper and adequate authority and consent had been given by persons in authority as directors of the plaintiff company. It seems that the plaintiff company alleged that the Trustee Department of the Standard Chartered Bank African PLC as Administrators of the estate of the late Peter Joseph Gachathi, was not of the situation.

Peter Joseph Gachathi founded this company in 1973 with a capital of KShs 20 000 and two original shares were held by Mr Gachathi and his wife Mrs Beatrice Wanjiku Gachathi. The directors were Mr Gachathi and Ratilal Shah. The company appears to have proceeded on the basis of mortgages to the Kenya Commercial Bank in sums of KShs 4 million and KShs 350 000 up to 1978. By this time John Kimani Gachathi it seems had become company secretary. The capital was raised to £50 000 and now Peter Joseph Gachathi held 24 999 shares, Mrs Gachathi 1 share, and Mr Shah 25 000. In 1980 Peter Joseph Gachathi and the Trustee Department of Standard Chartered Bank African PLC represented by Mr Chamungwana administered his estate. Mrs Beatrice Gachathi became a director first in December 1979, so did John Kimani Gachathi and Mr Rajukent Shah joined his brother Ratilal in 1982. Mr Godfrey Chamungwana became an alternate director to Mr Kimani Gachathi. Mrs Gachathi and her son John Kimani Gachathi as well as Winifred and Rosemary Gachathi, who were appointed secretaries, continued in positions of prominence it seems from then on. In September 1980, the plaintiff borrowed KShs 10 million from Habib Bank AG Zurich. A mortgage was given to Mercantile Finance Company for KShs 10 million in 1983. In September 1984 KShs 20 million was borrowed on mortgage from the defendant Pan Africa Bank. These matters are all to be found in the company registrar. The director must have known them. They and the trustee ought to have known them.

As far as the defendant Bank is concerned, the plaintiff opened up an account with that Bank on 9 February 1983 operated by John Kimani Gachathi, Mr Chamungwana and Rajukent Shah and enjoyed unsecured overdraft facilities of KShs 1 million. This was increased to KShs 3 million in July 1983 and KShs 6 million in November 1983. Kimani Gachathi apparently approved of this: (See folio 104). Habib Bank was paid off out of the Mercantile Finance loan (folio 79). The latter was paid off out of the mortgage money raised from the first defendant Bank of KShs 20 million. The resolution on folio 78 supports this loan. It was signed by the two Shahs who were directors. KShs 12 211 314,65 was paid to Mercantile Finance, and KShs 6 million was outstanding to the first defendant Bank, and the balance was left to the plaintiff company. The Gachathi family were involved in the running of the plaintiff company. It is difficult to see how they were not aware of all that happened. How did they think that Mercantile Finance had been paid off? Nothing happened until April 1985 when Mrs Gachathi began to complain. The Trustees put in Lloyd Masika to take over from the Shahs in 1985. By December 1985 the Trustees thought that there was not much use continuing with the property unless the leases and income were put on a proper footing. The Trustees, however, later wished to delay sale. The first defendant Bank explained that sale was the best way out in March 1986. But the Trustees as Chartered Bank were offered the chance to take over the liability. It refused. Lloyd Masika who were managing the property had become a great probability since September 1985 as the letter to Mr Chamungwana from Ratilal Shah explain (folio 119). Another KShs 12 million was required. In these circumstances it seems strange to blame the first defendant Bank. First the Gachathi family were directors and often company secretaries and shareholders throughout. They observed the build-up of indebtedness.

Second, this build-up involved the first defendant Bank in ever-increasing sums. Mr Kimani Gachathi agreed to that at least up to KShs 6 million. But indebtedness up to KShs 10 million had also been agreed.

Third, the Trustees were involved in this build-up of indebtedness. Mr Kimani and Mr Chamungwana were bank signatories. Even Mr Gachathi knew that Mercantile Finance had loaned the plaintiff company money to pay off Habib Bank AG Zurich which, according to Mr Ratilal Shah, had threatened sale.

Fourth, the plaintiff company benefited in the sum of over KShs 12 million when Mercantile Finance was paid off. The interest on this loan alone was over KShs 2 million.

Fifth, the Shahs were directors and well-known to the Pan Africa Bank as such. The company was entitled to borrow money in accordance with the memorandum. There was the company resolution. What should the Pan Africa Bank inquire about? It could act under *Royal British Bank v Turquand* [1843–60] All ER Rep 435. It would seem to have been protected.

Sixth, the plaint itself pleads that Pan Africa Bank served notice of sale (paragraph 12). It cannot now be asserted in affidavit form that no notice was given. There is, no doubt, non-payment of capital and interest.

Seventh, if the plaintiff company wishes to redeem let it do so by paying the outstanding loan. Redemption always means payment.

But no one, not even the Trustees, have come forward to redeem. It is noticeable that the Trustees have not volunteered any information as to their position. They have not complained. But they knew of the general indebtedness as Mr Shah had told them, and requested more capital. They know of the threatened sale. Pan Africa had told them. It is all very well to advise on applying for an injunction. They had to redeem.

In the light of the facts put before the learned Judge, it is my opinion that he acted under the first principle, within the law, reasonably and that therefore he exercised his discretion judicially. That meant that he was not called upon to consider the balance of convenience. On what he was told, there was no evidence of a probability of success. If the plaintiff is to succeed it must sharpen up its case a great deal, and there is no guarantee that it can do so. The situation in this appeal must not be confused with decisions of this Court concerning its original jurisdiction under rule 5(2)(*b*) of the Court of Appeal Rules. In this appeal, there is no ground upon which to interfere.

I agree with Gachuhi JA's interpretation of Order XXXIX of the Civil Procedure Rules. Consequently I would dismiss the appeal with costs.

Nyarangi JA concurred in the judgment of Gachuhi JA.

For the appellant:
Khaminwa

For the respondent:
Hira

Berkley-Steward Ltd and others v Waiyaki
[1986–1989] 1 EA 50 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	5 February 1988
Case Number:	65/84
Before:	Nyarangi, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Damages – Quantum – Head injury resulting in serious brain damage.

[2] Damages – Quantum – Injury to liver with haemorrhage and injury to head with retrograde amnesia.

[3] Negligence – Traffic accident – Absence of direct evidence on how accident occurred – Whether both drivers equally to blame.

Editor's Summary

A collision took place at night on Ngong Road, Nairobi, between a Range Rover owned and driven by Waiyaki and a Datsun saloon car owned by Berkley-Steward Ltd and driven by Cottle in which Mrs Cottle was a passenger. Both vehicles were extensively damaged and Waiyaki, Cottle and Mrs Cottle

were seriously injured. Waiyaki sued Cottle and Berkley-Steward Limited in High Court civil case number 3086 of 1981 for general and special damages claiming the accident was due to the negligence of Cottle. Berkley-Steward Limited, Cottle and Mrs Cottle brought a separate action, being High

Court civil case number 2452 of 1982, against Waiyaki claiming damages in respect of the damage of the Datsun and for personal injuries sustained by Cottle and Mrs Cottle.

At the trial, when the two suits were consolidated, Waiyaki testified that he was on the correct side of his road and this was corroborated by his passenger G. Neither Cottle nor Mrs Cottle had any recollection of the particulars of the accident because of loss of memory resulting from the injuries suffered by them. Cottle called M, a motor vehicle assessor, to give expert testimony on his behalf. M had no personal knowledge of the accident nor did he investigate into the matter. On the basis however of photographs of the scene of the accident and of the two vehicles involved, he came to the conclusion that "the impact was not of a parallel nature" and that it was "essentially an angular impact to the Datsun . . . from the off-side front corner diagonally towards the centre of the vehicle". The trial Judge rejected M's evidence, preferred the evidence of Waiyaki and G and held Cottle wholly and solely negligent. Accordingly, he awarded substantial damages to Waiyaki and dismissed the claims of Berkley-Steward Limited, Cottle and Mrs Cottle against Waiyaki.

However, in case he was found to be wrong on appeal, he went on to assess the damages which he would have awarded to Cottle and Mrs Cottle had he held in favour of Cottle on the issue of liability.

The trial Judge assessed the damages which he would otherwise have awarded to Cottle and Mrs Cottle as follows:

Cottle:	
Pain, suffering and loss of amenities	KShs 1 500 000
Loss of future earnings	KShs 1 800 000
Special damages	KShs 480 000
Mrs Cottle:	
Pain, suffering and loss of amenities	KShs 500 000
Loss of future earnings	KShs 336 000
Special damages	KShs 192 000

Berkley-Steward Limited, Cottle and Mrs Cottle appealed against the trial Judge's decision both on the issue of liability and on the quantum of damages awarded to Waiyaki. Waiyaki cross-appealed against the assessment of damages made in respect of Cottle and Mrs Cottle. When the appeal came on for hearing, it was disclosed that Berkley-Steward Limited, Cottle and Mrs Cottle's appeal both against the award of damages in favour of Waiyaki and the issue of liability in Waiyaki's action (number 3086 of 1981) had been compromised and that the only questions left for determination were the issues of liability and quantum in Berkley-Steward Limited's, Cottle's and Mrs Cottle's appeal against Waiyaki in civil case number 2452 of 1082. Counsel for Waiyaki raised a preliminary point that since the two actions had been consolidated the compromise of Cottle and Mrs Cottle's appeal against Waiyaki in civil case number 3086 of 1981 necessarily precluded them from challenging the trial judge's determination on the issue of liability in civil case number 2452 of 1982 but this objection was overruled.

Held – The trial Judge was right in rejecting McIntyre's evidence as there was no credible direct evidence of how the accident occurred.

Neither Waiyaki nor Cottle witnessed sufficiently what happened immediately before the accident and their evidence did not explain the damage caused to the two vehicles; it was therefore impossible to decide on their evidence who was to blame for the accident.

Since there was no concrete evidence to distinguish between the blameworthiness or otherwise of the two drivers, both should be held equally to blame.

The damages payable to Cottle and Mrs Cottle would be reassessed as follows:

Cottle:	
Pain, suffering and loss of amenities	KShs 400 000
Loss of future earnings	KShs 617 500
Special damages	KShs 240 000
Mrs Cottle:	
Pain, suffering and loss of amenities	KShs 150 000
Loss of future earnings	KShs 140 000
Special damages	KShs 92 000
BS Limited:	
Agreed value of the Datsun	KShs 37 500

Appeal allowed

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Butt v Khan (1982–1988) 1 KAR 1

Lakamshi v Attorney-General [1971] EA 118

Mariga v Musila (1982–1988) 1 KAR 507

Oluoch v Robinson [1973] EA 108

Selle v Associated Motor Boat Co Ltd [1968] EA 123

Simon and another v Carlo and others [1970] EA 118

Tayab and others v Kinanu (1982–1988) 1 KAR 90

Welch v Standard Bank Ltd [1970] EA 115

Williamson Diamonds Ltd v Brown [1970] EA 1

United Kingdom

Baker v Market Harborough Industrial Co-operative Society Ltd [1953] 1 WLR 1472

Fitzgerald v White (*Kemp and Kemp* para 3-016/1)

Pritchard v Cobden (*Kemp and Kemp* para 3-014/1)

Judgment

Nyarangi, Platt and Gachuhi JJA: This is an appeal by Berkeley-Steward Limited, David Cottle and Jean Susan Cottle against the judgment of the High Court (Sachdeva J. as he then was) dated 8 December 1983 arising out of an episode in August 1979 when motor vehicle registration mark KLS

505 a Range Rover owned by Lewis Kimani Waiyaki collided with motor vehicle registration number KQC 290, Datsun 160J which was being driven from the opposite direction by David Cottle and owned by Berkeley-Steward Limited.

What happened in this case was that on 10 August 1979 at about 8:30pm Kimani Waiyaki (Waiyaki) was driving on Ngong Road towards the city centre from Langata area. By the entrance to Lenana School while allegedly on his correct side, Waiyaki heard a bang. Just before the bang, he had seen a car being driven at high speed from the opposite direction. That car had its full lights on. Waiyaki was rendered unconscious by the bang.

Gitau, one of the two passengers in Waiyaki's car, was seated next to Waiyaki. On seeing the car from the opposite direction, he cautioned Waiyaki. It was, however, too late and the two vehicles collided. Gitau said Waiyaki was all the time on his correct side and that the other car came onto Waiyaki's side.

The Cottles had no recollection of the particulars of the accident. Mr Cottle blamed the serious injuries he sustained on his inability to remember anything at all about the collision. Mrs Cottle, however, said she and her husband went to Impala Club where they had one or two beers. They stayed at the club for two hours.

The appellant company and Mr and Mrs Cottle called Mr McIntyre, a motor vehicle assessor, who had done five years' apprenticeship with the East African Railways and Harbours, a fellow of the Chartered Institute of Transport, and member of the Royal Aeronautical Society and a surveyor and accident investigator to Lloyd's aviation department, to testify. The witness had no personal or direct knowledge of the accident. He did not investigate. He had however seen the photographs of the scene of the accident and of the two motor vehicles involved. Mr McIntyre came to the conclusion *inter alia* that,

> "It is clear that the impact was not of a parallel nature. The road is 10.21 feet wide and clearly there is ample room for the two vehicles to pass one another safely if they are on their own side of the road. There is a continuous white line in the centre of the road. We have essentially an angular impact to the Datsun . . . that is the direction of the impact force is from the off-side front corner, diagonally towards the centre line of the vehicle. This is noticeable in the lower photograph in 21D. One can see where the driver's windscreen and door pillar is impacted towards the centre of the vehicle as well as rearwards. It was not a parallel glancing below. . ."

The trial Judge rejected Mr McIntyre's evidence and preferred the version of Waiyaki and his witness and held that the evidence of Waiyaki and Gitau was "truthful and cogent". Upon that view the trial Judge concluded that Mr Cottle was wholly and solely negligent for the accident and so was 100% liable.

Before referring to the contentions and submissions on behalf of the appellants, we wish to state very briefly the reasons why the Court ruled against Mr *Shah*'s preliminary point. Mr Shah argued that, despite the consent as contained in a joint letter dated 22 October 1985 by which the appeal and cross-appeal so far as they concerned Lewis Kimani Waiyaki were withdrawn, he could still argue the issue of liability and quantum of relation to the appeal against the judgment in High Court civil case number 2454 of 1982. Mr *Shah* contended that the decision of the issue of liability affected the two suits numbered High Court civil case number 3086 of 1981 and High Court civil case number 2454 of 1982.

Mr *Sampson* replied that his clients appealed against the trial Judge's finding on liability in both suits but one was compromised.

It is clear from the consent letter dated 22 October 1985, that of its two parts, the first concerns High Court civil case number 3086 of 1981 and the

second portion refers to another case, High Court civil case number 2454 of 1982. The appeal in High Court civil case number 3086 of 1981 was settled between the appellants and Lewis Kimani Waiyaki. We venture to take a direct route and say that as there was no credible, direct evidence as to how the accident happened. The trial Judge correctly rejected in total the evidence of McIntyre. McIntyre saw photographs of the scene and on that attempted to reconstruct the scene. A photograph shows heavy impact rather high up at the front door of the Range Rover.

Thus, this witness suggested that the Datsun came into the Range Rover's front wheel at an angular position. However, that suggestion appears to have been based on a photograph which was not produced. Besides, if as again suggested it was a head-on collision the whole or much of the bonnet of the Range Rover exhibited on page 69 of the second volume of the Court record would have folded up or inwards, depending on the force of the other car.

There came a point in the argument when the question was posed by the Court if the photograph on exhibit 21(D) irresistibly led to the conclusion that the Datsun collided with the Range Rover behind the wheel of the Range Rover. It seems to us that on exhibit 21(D) and 21(B) either version, or indeed neither, is possible.

There was no investigation of the scene of the accident, and therefore no sketch of the scene prepared and produced. The bare narrative of the accident gives rise to a number of possibilities. Either Waiyaki was driving on his correct side and the Datsun hit his vehicle on its correct side or Mr Cottle was driving on his correct side where the Range Rover crushed it. Another possibility is that both vehicles were over the middle of the road. On the evidence of Waiyaki and Gitau, the Datsun banged the Range Rover. The other passenger in the Range Rover, Wachega, was not called to give evidence. Would section 119 of the Evidence Act apply? The section provides:

> "The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case."

The evidence as to the common events and the human conduct of Waiyaki and Gitau in relation to the accident is in our opinion scanty. It is impossible to presume any fact as regards the person who was not called to testify. The section therefore has no application to the circumstances of this case. The other side did not apply for the other person in the Range Rover to be produced.

There is one substantial difference between the evidence of Waiyaki and Gitau. Waiyaki said the oncoming car had very powerful lights. Gitau said nothing of the sort. Gitau's ultimate view of the matter was that the accident happened very quickly and he had no knowledge of it apart from the split second when the other car had left its side of the road. This witness could not tell about the position of the Range Rover soon after he saw the Datsun from the opposite direction. In our judgment it is implicit in the evidence of Waiyaki and Gitau that neither of them witnessed sufficiently what happened just before the unexpected accident, or during the collision and after the crash they became unconscious, and perhaps confused, according to the doctors. Their evidence does not assist to explain the damage to the two vehicles as it appears on the exhibited photographs. We have to say respectfully that we do not regard the evidence of the two men as powerful or convincing.

It is to be borne in mind that this is a first appeal which was heard by way of a re-trial as a result of which the whole evidence falls to be reconsidered, evaluated and conclusions drawn: *Williamson Diamond Ltd v Brown* [1970] EA 1 and *Selle v Associated Motor Boat Co Ltd* [1968] EA 123 at 126 per Sir Clement De Lestang. The collision is a fact. It is, however, not reasonably possible to decide on the evidence of Waiyaki and Gitau who is to blame for the accident. In this state of affairs the question arises whether both drivers should not be held to blame.

In *Baker v Market Harborough Industrial Co-operative Society Ltd* [1953] 1 WLR 1472 at 1476, Denning LJ (as he then was) observed *inter alia* as follows:

> "Everyday, proof of collision is held to be sufficient to call on the defendants for an answer. Never do they both escape liability. One or the other is held to blame, and sometimes both. If each of the drivers were alive and neither chose to give evidence, the Court would unhesitatingly hold that both were to blame. They would not escape simply because the Court had nothing by which to draw any distinction between them . . ."

See also *Welch v Standard Bank Ltd* [1970] EA 115 at 117 and *Simon and another v Carlo and others* [1970] EA 285. It cannot be doubted that both drivers are to blame. In the ultimate analysis of the evidence in the instant case, the circumstances are such that there is no concrete evidence of distinguishing between the two drivers. The drivers should therefore be held equally to blame (*Lakamshi v Attorney-General* [1971] EA 118 at 120). On that principle we would apportion negligence on a 50:50 basis. We would set aside the judgment of the High Court in this respect and substitute in favour of the appellants a 55% degree of negligence.

We turn now to the appeal on the quantum of damages affecting the parties in High Court civil case number 2454 of 1982.

This Court is entitled to interfere with an award of damages if, as was stated in *Butt v Khan* (1982–1988) 1 KAR 1 as per Law JA:

> "It is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the Judge proceeded on wrong principles or that he misapprehended the evidence in some material respect, and so arrived at a figure which was either inordinately high or low."

The task, a difficult one of determining money compensation in cases of this type, is essentially a matter of opinion of judgment arrived at on consideration of all the relevant factors and circumstances, due regard being paid to the current range of awards. As the trial court's finding on liability has been upset, in this case the quantum of damages too has to be looked at afresh. Mr Cottle suffered the serious injuries which were explained in the medical reports of Mr David Stuart, Mr Beecher, Dr Risao, Mr Patel, Professor Ruberti and of Napier and Warrington Health Authorities, UK. He sustained serious physical injuries, the most serious of which is the head injury. The permanent disability to the brain was assessed at 50% to 60%. He claimed KShs 4.6 million for pain and suffering and loss of amenities and the trial Judge awarded KShs 1.5 million for general damages if Mr Cottle had been wholly successful.

The circumstances in *Tayab and others v Kinanu* (1982–88) 1 KAR 90 and *Butt v Khan* (1982–88) 1 KAR 1 are not parallel. *Mariga v Musila* (1982–88) 1 KAR 507 is in our view of assistance, only with regard to the principle of lost years which does not apply here. The facts in the English cases of *Prichard v Cobden*

and in *Fitzgerald v White* (*Kemp and Kemp*, paragraphs 3-014/1 and 3-016/1) are different and so distinguishable from the facts of this case. In the latter case, the plaintiff became severely blunted intellectually, emotionally empty and functioned at borderline defective level. We have not been able to extract much assistance from the English cases. We do not minimise the injuries which Mr Cottle suffered. He has a very important loss of concentration and memory for recent events. By October 1983, he was improving slowly and wished to return to school to improve his ability. We think it is putting it too high to say that Mr Cottle's injuries are comparable to those suffered by Mr Fitzgerald. He will not improve much more. As he gets older his disability will be more marked.

In the present, case bearing in mind the degree of liability, we would award a sum of KShs 400 000 as general damages to Mr Cottle. We would reduce the award suggested by the High Court accordingly.

We turn to the second question of loss of salary and damages for loss of future earnings. A multiplier of 15 years' purchase seems reasonable. A sum of KShs 617 500 for loss of future earnings would not be excessive, taking into account the pattern of awards. Mr Cottle, then aged 38, was fairly young at the time of the accident. He is unable to resume his trade. Loss of past salary is a matter of arithmetic and we would approve the sum of KShs 240 000.

There then follows the claim of Mrs Cottle who was aged 37 at the time of the accident. She had recovered completely from the head injuries. She, however, has retrograde amnesia that will be permanent. She became pregnant in September 1981 but the pregnancy was terminated in November 1981. She was involved in the road accident on 10 August 1979. In our opinion it is perfectly apparent that the termination of the pregnancy probably caused by blood transfusions of a different blood group was not due to the accident and so does not affect the award.

In June 1985, Mrs Cottle had hopes of getting a good job. In *Oluoch v Robinson* [1973] EA 108, the plaintiff's leg was injured and he sustained an injury to the brain. Epilepsy set in. An award of KShs 220 000 was made. In *Butt v Khan* (1982–1988) 1 KAR 1 the plaintiff's frontal bone of the base skull was fractured. The award was KShs 300 000. In *Tayab and others v Kinanu* (1982–1988) 1 KAR 90 the plaintiff received a linear fracture of the right parietal bone of the skull, bruises over the right side of the face and head. She developed controllable epilepsy. An award of KShs 750 000 was reduced to KShs 275 000. The value of money has fallen over the years. Comparing Mrs Cottle's injuries with the more serious injuries which were suffered by the plaintiffs in the cases cited and bearing in mind the degree of liability and taking into account the pattern of awards in personal injury cases, we would award KShs 150 000 to her for general damages. We would reduce the award of the High Court and substitute for the trial Judge's assessment a figure of KShs 150 000. There can be no reasonable dispute about the sum of KShs 92 000 for pre-trial loss.

We will deal next with the claim concerning loss of future earnings.

The High Court gave its judgment on 8 December 1983. Mrs Cottle had hopes of getting a job in June 1985. A multiplier of four years is alright, we think, for loss of future earnings which, in the circumstances, and bearing in mind the advanced payment and an element of tax should be KShs 140 000.

We should close by a very brief reference to the cross-appeal. Mr *Shah* attacked the awards as being manifestly excessive in the circumstances of Kenya. Mr *Sampson* too urged that the awards to Mr and Mrs Cottle were too high. We have already covered the matters submitted during the cross-appeal. Both counsel made their submissions on the basis of findings by the High Court on liability. We have interfered with the decision of the High Court on liability and on the quantum of damages, the cross-appeal is dismissed as far as liability is concerned. The appeal succeeds on both liability and on quantum.

The awards we have suggested if invested wisely should generate sufficient interest, which, when added to the figure of the awards, should go some way to compensate the injured parties.

We summarise what we have done. We have awarded KShs 400 000 to Mr Cottle as general damages, KShs 617 500 to him for loss of future earnings and another sum of KShs 240 000 for loss of past salary.

Interest shall be paid on general damages from the date of the judgment of the High Court and the interest on the other two amounts, ie KShs 617 500 and KShs 240 000 also from the date of the judgment of the High Court. There will be no order as to costs in favour of Mr Cottle.

To Mrs Cottle we award KShs 150 000 for general damages, KShs 92 000 for pre-trial loss and KShs 140 000 for loss of future earnings. Mrs Cottle will have costs and interest on KShs 92 000 from the date of filing this claim and the total of KShs 290 000 (KShs 150 000 + KShs 140 000) from the date of the judgment of the High Court.

In the result, we would set aside the decision of the High Court insofar as it relates to High Court civil case number 2454 of 1982, and, having re-assessed liability, apportion it on a 50:50 basis. We would award the amount suggested hereinbefore to Mr Cottle and to Mrs Cottle separately. The value of the vehicle KQC 290 169J belonging to the other appellant was agreed by consent at KShs 37 500.

We would give 50% of the costs of the cross-appeal with interest thereon.

That is the order of this Court.

For the appellants:
RN Sampson

For the respondent:
AB Shah and *Njoroge*

Chege and another v Vesters and another
[1986–1989] 1 EA 57 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 June 1988
Case Number:	4/84
Before:	Nyarangi, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

[1] Damages – Cost of future domestic help and assistance – Whether court should allow for future inflation in determining the multiplicand.

[2] Damages – Quantum – Claim by husband for loss of consortium *and loss of* servitium.

[3] Damages – Quantum – Housewife aged 33 – Multiple severe physical injuries – Whether and if so to what extent court should have regard to "brackets" or range of awards in comparable cases.

[4] Damages – Interest on general damages – Whether interest should be awarded from the date of the suit.

Editor's Summary

As a result of a motor accident on 4 April 1979, the first appellant, a 33-year-old Dutch housewife resident in Nairobi at the time of the accident, suffered the following injuries:

(*a*) brain concussion;

(*b*) fracture of the right transverse process of the seventh cervical vertebrae (base of the neck at the back;

(*c*) fracture of two ribs of the right side and two on the left;

(*d*) fracture of the right shoulder blade (scapula);

(*e*) comminuted, compound fracture of the lower end of the right humerus;

(*f*) compound fracture of the right olecranon;

(*g*) closed fracture of mid-shaft right femur with medial comminution;

(*h*) compound fracture of the lateral condyle of the left femur;

(*i*) compound fracture of the eminentia inter condylar of the left tibia with wide exposure of the knee joint;

(*j*) compound fracture dislocation of the right ankle;

(*k*) fracture of the right patella which was undisplaced.

She was immediately admitted to the ICU at the Nairobi Hospital where she remained in a deep coma because of the brain concussion and consequently did not require any anaesthetic for the first operation. She underwent immediate tracheostomy (making a hole in front of the neck to introduce a rubber pipe connected to a machine to enable breathing) as the fracture of the ribs on both sides made breathing difficult. Thereafter she underwent several other surgical operations and procedures, including bone grafting and the implanting of metal devices, to fix the various fractures.

She remained in the ICU for 14 days during the first 10 of which she was unconscious. On regaining consciousness, she could not at first recognise her husband or her two teenage sons. She was discharged from hospital 11 weeks after the accident and taken to Holland for motorised physiotherapy to save and thereafter develop mobility of the various joints. On return to Nairobi, she underwent a further operation to remove metal implants from the right elbow and chiselling off a newly formed bone in the joint. She was in hospital for this operation for nearly 2½ weeks.

The first respondent then moved to South Africa where her husband was transferred. At the time of the trial, in early 1983, she was still living in South Africa but was likely to return to Holland with her family in another two years.

At the time of the trial, her right elbow was 15 degrees short of full extension, flexion was about 100 degrees, rotation (85 degrees to 90 degrees normal) was more or less destroyed as it was barely 5 degrees. The loss of function of the right elbow was medically assessed at 50%. There was no loss of extension or rotation in the right knee while flexion at 140 degrees was close to normal. Loss of function of the right knee was about 10% to 15% but would increase to 30% if, as was recommended, a patellectomy was carried out. There was a loss of flexion of 20 degrees in the left knee whose loss of function was 20%. There was a severe loss and limitation in her right ankle. The first respondent's toes, as a result of the injury to the ankle, were constantly pointing downwards and could not lift at all. She could therefore only shuffle about instead of walking normally. She needed a special heel fitted to her right shoe. The loss of function in the right ankle was 40%. The extension and flexion in the right wrist was reduced to about 50 degrees to 60 degrees (normal 85 degrees) either way and loss function was assessed at 20%. She was now left with unsightly and ugly scars at the front of the neck, on her right eyebrow, on the outer aspect of her right thigh, on the inner side of the left knee, on the inside of the right ankle and on the right elbow. Two of these scars could be improved by plastic surgery but others were permanent.

There was a great likelihood of the condition of her limbs deteriorating in future because of osteo-arthritis developing in the right elbow, post traumatic arthrosis appearing in the left knee and right ankle and a chondromalacia patellae developing in the right knee cap. As a result she could end up in a wheelchair in about 10 years. During this period she would require further operations to treat her various joints.

Before the accident the first respondent was a tall, well-proportioned and attractive woman. She had trained as an occupational therapist and practised as such in Holland before her marriage. She had also been a part-time freelance model both before and shortly after her marriage. She was now unable to resume either occupation on her return to Holland. Before the accident she was also a keen horsewoman and had done high horsemanship tests of horse and rider for competitive purposes in Holland. She had also done a great deal of sailing in Holland and had enjoyed dancing and swimming but was now unable to indulge in any of these pastimes. Her married life was affected not only because of the difficulty and pain during sexual relations but also because she had become depressed, forgetful and irritable. She could no longer drive a car, go shopping or do heavy household chores. For a hobby, all she could now do was some sewing and embroidery. The trial Judge found that "from a healthy outdoor woman with a zest for outdoor physical activities, this unfortunate woman has been rendered into a house-bound semi-cripple". As a result, she would now require domestic help and assistance for the rest of her life.

The second respondent, the husband, claimed damages for loss of consortium and loss of *servitium* consequent upon his wife's injuries.

The trial Judge awarded the first respondent general damages of KShs 910 000 for pain, suffering and loss of amenities, KShs 140 000 for the cost of future surgical and cosmetic operations and for future medication, KShs 150 000 for the cost of future domestic help and assistance and KShs 172 800 for loss of future earnings. He also awarded the husband KShs 20 000 for loss of consortium and KShs 20 0000 for loss of *servitium*. Finally, the trial Judge awarded

interest at court rates on the general damages payable to both respondents from the date of suit until payment. The appellants appealed to the Court of Appeal and contended:

1. that the amount of KShs 910 000 for pain, suffering and loss of amenities was so excessive as to merit interference by the Court of Appeal;
2. that the trial Judge was wrong in law to take future inflation into account in assessing damages for the cost of domestic help and assistance;
3. that the amounts awarded for loss of consortium and loss of servitium were excessive and unreasonable; and
4. that the trial Judge erred in awarding interest on general damages from the date of the suit instead of from the date of the judgment.

Held – The award of KShs 910 000 for pain and suffering and loss of amenities was out of keeping with other awards for comparable injuries and should be reduced to KShs 550 000.

The trial Judge had erred in taking account of the incidence of future inflation in assessing general damages for the cost of future domestic help and assistance; consequently the award of KShs 150 000 for this head of damages should be reduced to KShs 123 750.

The awards of KShs 20 000 to the husband for loss of consortium and loss of *servitium* respectively were manifestly excessive and should be reduce to KShs 10 000 in each case.

The award of interest on general damages from the date of the suit was wrong and should be set aside.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bhogal v Burbridge [1975] EA 285

Butt v Khan (1982–1988) 1 KAR 1

Kigaragari v Aya [(1982–1988) 1 KAR 768

Kitavi v Coastal Bottlers Ltd (1982–1988) 1 KAR 891

Kitwai v Singh High Court civil case number 841 of 1978

Mariga v Musila (1982–1988) 1 KAR 507

Shabani and another v City Council of Nairobi (1982–1988) 1 KAR 681

Southern Engineering Co Ltd v Mutia (1982–1988) 1 KAR 878

Waringa v Nthenge High Court civil case number 3239 of 1981

United Kingdom

Angus v Jones (*Kemp and Kemp* para 1-217)

Benham v Gambling [1941] AC 157

Best v Samuel Fox Co Ltd [1951] 2 KB 639; [1952] AC 716

Chapman v Lidstone (*Kemp and Kemp* para 10-210)

Choo v Camden and Islington Area Heath Authority [1979] All ER 332

Cookson v Knowles [1979] AC 556

H West and Son Ltd v Shephard [1964] AC 326

Midland Bank Trust Co Ltd v Green [1982] 2 WLR 1130

Thomas v French (*Kemp and Kemp* para 10-665)

Vaughan v Howe (1983) CLY 998

Judgment

Nyarangi JA: This is an appeal from part of a judgment of Cockar J given on 27 April 1983 when he decided to award KShs 910 000 to the first respondent for pain, suffering and loss of amenities of life, KShs 150 000 to the first respondent for domestic help assistance, KShs 20 000 for loss of *consortium* and KShs 20 000 for loss of *servitium* to the second respondent. Mr *Inamdar* for the appellants, while acknowledging that Maria Vesters was seriously injured at the age of 33, that there were some eight medical reports by which the Judge accurately summarised her injuries, she was discharged after two months and 20 days, was held to have suffered a total disability of 55%, there was appearance of scars and changed personality, some possibility of epilepsy in the future, and a possibility of Maria Vesters ending up in a wheelchair, nevertheless submitted that having regard to the gravity and diversity of the injuries, at the time of the trial, Maria Vesters had made good recovery, her disabilities were nothing exceptional and that, while she was deserving of a generous award, an award of KShs 910 000 is by any standards known to courts in Kenya out of keeping with awards for comparable injuries. Severe injuries are bound to have severe consequences, argued Mr *Inamdar,* and there is a general pattern of awards which provides for resultant disabilities; unless therefore there is some exceptional circumstance, the award applicable here ought to remain within the established and known bracket. Counsel cited several English and Kenyan decided cases and on those authorities urged that a fair award for pain, suffering and loss of amenities would be in the region of KShs 450 000. The Court was also pressed to reduce the award for loss of *consortium* and to hold that any award for loss of *servitium* should here be substantially less than KShs 20 000.

Counsel on behalf of the respondents replied to this on 26 and 27 April. Among other things, he accepted as correct the authorities cited by counsel for the appellants but asked for the part where the Judge had erred. He submitted that the Judge saw Maria Vesters, perused medical reports on her and considered her testimony which was virtually unchallenged. Mr *Georgiadis* argued that assessment of an award is a matter of judicial discretion which should not be interfered with unless it is wrong in principle. Counsel for the respondents contends that there is a danger to be avoided in a desire for uniformity in these matters, and, further, that Maria Vesters suffered horrific injuries and the prognosis is not for improvement. Counsel supported the Judge's award saying that he had not gone astray, had borne in mind her long painful hospitalisation, the seven separate operations and that she is due to have another four, the possibility of future epilepsy and the evidence of continuing pain and discomfort, all of which, submitted counsel, takes the case out of the ordinary case. The question was posed whether in exceptional cases this Court will have sufficient elbow room to disregard brackets of awards which in any case are not sacrosanct or whether this Court will adopt a strait-jacket approach. Should the

individual suffer or be sacrificed at the altar of brackets even when no comparable case can be found? Mr *Georgiadis* cited several authorities in support of his argument that the awards are not so inordinately high as to warrant interference. Counsel for the respondents recognised that normally he would have felt that the awards made by the Judge were on the higher side. However, in the instant case, considering what is just, the case has to be regarded as exceptional.

As to all this, Mr *Inamdar* replied that the appellants rely on the principle that the awards are so manifestly excessive as to amount to a wrong award. Brackets or modes applied by the Courts do not constitute strait-jackets but are for maintenance of some uniformity and some consistency in awards.

The distinct question raised on this appeal is whether the trial Judge's awards are so inordinately high that they must be a wholly erroneous estimate of the pain, suffering and loss of amenities sustained by Maria Vesters and the loss of *consortium* and of *servitium* sustained by the second respondent:

The view of the law as to when this appellate court may interfere with an award of damages was stated in *Butt v Khan* (1982–1988) 1 KAR 1 as follows:

> "An appellate court will not disturb an award of damagtes unless it is so inordinately high or low as to represent an entirely erroneous estimate. It must be shown that the judge proceeded on wrong principles, or that he misapprehended the evidence in some material respect, and so arrived at a figure which was either inordinately high or low."

I approach this case upon the basis that the task of the assessment of damages is not easy. I see the warning of Lord Morris in *West (H) and Son Ltd v Shephard* [1964] AC 326 at 353 as clearly indicating the direction which this Court will consider.

Before coming to the crucial part of this case, I think there is much to be said for the view which was expressed in *Kigaragari v Aya* (1982–1988) 1 KAR 768 in these words:

> ". . . awards made in this type of cases or in any other similar ones must be seen not only to be within the limits set by the decided cases but also to be within what Kenyans can afford. That must bear heavily upon the Court. The largest application should be given to that approach. As large amounts are awarded they are passed on to members of the public, the vast majority of whom cannot just afford the burden, in the form of increased costs for insurance cover . . . or increased fees."

I pause to mention a relevant holding in a decision of this Court dated 10 September 1985, in *Southern* Engineering *Co Ltd v Mutia* (1982–1988) 1 KAR 878.

Holding (iii) states that in future in personal injury cases, where there are Kenya authorities on the point, in which the main essentials bear comparison with the facts of the one before the Court, and they otherwise bear a reasonable measure of similarity to it, Kenyan authorities should be used to the exclusion of others, save those from neighbouring jurisdiction with similar conditions to those obtaining in Kenya.

Let me turn then to consider the authorities relied upon in support of the parties to this appeal. Certain of them appear to me not to be relevant at all. The first of the various authorities upon which Mr *Inamdar* relied in *Mariga v Musila* (1982–1988) 1 KAR 507 for the proposition that severe injuries are bound to have severe consequences and that awards in such cases do provide for resultant disabilities. In *Thomas v French* (*Kemp and Kemp* at paragraph 10-665), a case decided on 16 May 1983, a girl then aged 23, had her leg severed.

She was seriously mentally depressed and the English Court of Appeal accepted that it would take some considerable time for her to adjust and accept the fact of the loss of her leg. She was awarded £28 000 general damages for pain, suffering and loss of amenities.

Maria Vesters was 33 at the time of the tragedy. She was very severely injured and suffered much resultant pain. Her torture, mental and physical, as a result of her injuries could not, however, compare with an amputation.

In *Kitavi v Coastal Bottlers Ltd* (1982–1988) 1 KAR 891, an award of KShs 475 000 was made for total blindness, an injury of the utmost gravity.

In *Vaughan v Howe* (1983) CLY 998, the respondent suffered multiple serious injuries reasonably comparable to those of Maria Vesters. The agreed general damages for pain and suffering and loss of amenities was £25 000.

The next case is *Chapman v Lidstone* (*Kemp and Kemp* at paragraphs 1-210), where a woman suffered a spinal fracture the effect of which was to render her completely paraplegic. General damages for pain and suffering and loss of amenities was in December 1982 assessed at £50 000. In another paraplegic case *Angus v Jones* (*Kemp and Kemp* at paragraph 1-217) the plaintiff aged 26 at the material time was awarded £40 000 for pain, suffering and loss of amenities.

Now, there can be no possible fair comparison between the injuries of Maria Vesters and the consequences of the injuries in paraplegic cases. Likewise it seems to me that the award of KShs 700 000 in *Lydia Warinya v George Wilson Nthenge* High Court civil case number 3239 of 1981 was for more serious injuries. There the plaintiff was to be confined to a wheelchair permanently, with more chances of developing pressure sores.

In September 1981, Kneller J (as he then was) awarded KShs 400 000 for loss of both legs to the plaintiff in *Peter Kitwai v D Singh* High Court civil case number 841 of 1978 who was aged 33 years at the time of the accident. Maria Vesters's injuries do not in my judgment compare with the loss of both legs.

The facts of the injuries sustained by Maria Vesters may be out of the ordinary. However, overall, her injuries could not reasonably be held to cause more pain, suffering and loss of amenities than that suffered by one who loses eyesight and has to face the catastrophic nature of blindness.

The next matter concerns the question of domestic assistance. In *Cookson v Knowles* [1979] AC 556 at 577 it was stated that the Courts in assessing damages in personal injury cases should leave out of account inflation. The measure of a proper award is a sum of money which, if wisely invested, would yield an income that goes some way to compensate the plaintiff. The Judge erred because there was no evidence before him that this case is so exceptional as to make it necessary for the provision for future inflation. The correct award for domestic assistance here is therefore, KShs 123 750 which amount is substituted for KShs 150 000.

I now pass to the authorities to which we were referred by counsel for the respondents. I find it more convenient to discuss the twin issues of *consortium* and *servitium* towards the end of my judgment.

From *Shabani and another v City Council of Nairobi* (1982–1988) 1 KAR 681 Mr *Georgiadis* cited the well-known passage as to when an appellate court will disturb an award of general damages. On the other parts of the case, counsel for the respondents cited *Bhogal v Burbridge* [1975] EA 285 and urged that the principles therein stated be applied to this case.

There can, in my opinion, be no doubt that it is plain on the authorities cited to the trial court and to this Court that the awards of damages must be disturbed for being so inordinately high as to present an entirely erroneous estimate. It is significant and unfortunate that the trial Judge made no effort to find a local comparable or analogous case with the instant one. Now, speaking for myself, I am far from convinced that the grave injuries suffered by Maria Vesters, their consequences, including the fact that there will be other operations, that there is a possibility of epilepsy and that she is likely to end up in a wheelchair – none of this is collectively graver than the loss of eyesight. The continuing pain, discomfort and the loss of amenities which the plaintiff in *Mariga v Musila* (1982–1988) 1 KAR 507 suffers seems to be greater than that now experienced by Maria Vesters. At least she has the remaining operations upon which to pin some hope of improvement. I am very conscious that several operations on a person with the state of health of Maria Vesters will cause very much pain and suffering. Zablon Mariga's conditions are however likely to get worse, not better. There is no medical opinion to the contrary. Nor could I be readily persuaded that their collective effect, the loss of both legs and the loss of eyesight and the severing of a leg of a young girl should be regarded as any less serious than Maria Vesters's injuries. To the anxieties Mr *Georgiadis* I say this:

> "The law is a living thing: it adopts and develops to fulfil the needs of living people whom it both governs and serves. Like clothes it should be made to fit people. It must never be strangled by the dead hand of long discarded custom, belief, doctrine or principle" – per Sir George Baker at 9, *Midland Bank Trust Co Ltd and another v Green* [1982] 2 WLR 130.

In view of these considerations and bearing in mind that as far as possible awards for general damages should be reasonably consistent and have a real bearing to the Kenyan situation, I would reduce the award for pain, suffering and loss of amenities to the first respondent Maria Vesters to KShs 550 000 to that extent I would disturb this particular award of the trial Judge.

There then follow the two issues of claimed loss of *consortium* and of *servitium*.

So far as *consortium* is concerned, it is conceded on all hands that as a result of the accident, Maria Vesters and her husband were separated, first for five months and later for another two or so months. During this short period the second respondent did without his wife's companionship. There is an impairment in the social life of the couple to the clear disadvantage of the second respondent.

In *Best v Fox Samuel Co Ltd* [1959] 2 KB 639 Birkett LJ observed as follows at 664:

> "There would appear to be no case where damages have been recovered save for the loss of, as distinct from any impairment of, *consortium*."

The view that I take is that *consortium* is incapable of minor separate subdivisions each of which would give a cause of action. *Consortium* must be viewed as one whole entity. Again, as Birkett LJ stated in *Best*, at 665:

> "Companionship, love, affection, comfort, mutual services, sexual intercourse – all belong to the married state."

Serious injury to any of the components that go to make *consortium* would affect all the others. Definitely the type of injuries which Maria Vesters sustained affected every ingredient of *consortium*, giving the second respondent a cause of action. I would say it is a question of evidence and all the surrounding circumstances whether there has been loss of *consortium* or not. Each case would

be judged on its own facts. An award of KShs 20 000 to the second respondent for loss of *consortium* is in my opinion manifestly excessive.

Maria Vesters was not away for too long. One of course is aware that while at home she experiences pain and that affects the whole issue of *consortium*. I would reduce the award to the second respondent for loss of *consortium* in this case to KShs 10 000.

Finally, the law recognises the loss of service: per Lord Reid in *Best v Fox Samuel Co Ltd* [1952] AC 716 at 794. The second respondent has to do the shopping, gardening and transporting of children. Before she was injured, Maria Vesters, like other housewives, used to see to all those matters. Yet, she is at home, not confined to a wheelchair and is able to assist by keeping a watchful eye on what is done and how it is done. She is therefore able to assist to some degree. The second respondent told the trial Judge that:

> "Before the accident she ran the home . . . Now she does only light work, house-hold work. She does the cooking, dusting, making beds."

The trial Judge tended to overlook Maria Vester's capacity to assist the second respondent. I regard the award of KShs 20 000 as manifestly excessive. I would reduce it to KShs 10 000. To sum up, having disturbed the trial Judge's awards, I would make the following awards:

(i) KShs 550 000, general damages for pain, suffering and loss of amenities to Maria Vesters, the first respondent.

(ii) KShs 123 750 for domestic help and assistance to the first respondent.

(iii) KShs 10 000 to the second respondent for loss of *consortium*.

(iv) KShs 10 000 to the second respondent for the loss of *servitium*.

I would allow the appeal to that extent.

I would set aside the award of interest at the rate of 2% pa from the date of filing suit.

As Gachuhi and Apaloo JJA agree, it is so ordered.

Gachuhi JA: I have had the advantage of reading the judgment prepared by my Lord Nyarangi JA in draft form with which I agree. However, I wish to add that the main complaints in the appeal are against the awards under the following heads:

1. The award of KShs 910 000 for pain suffering and loss of amenities of life;
2. The award of KShs 150 000 for domestic help and assistance;
3. The award of KShs 40 000 to the husband for loss of consortium and servitium;
4. The award of 2% interest from the date of filing suit to the date of judgment.

It is not disputed that Mrs Vesters who was injured in a road accident on 4 April 1979, as a result of which the driver of the other vehicle died, suffered serious injuries. She was hospitalised from 4 April 1979 to 2 June 1979, a period of about four months. The injuries as described in the medical reports are serious. In fact Mr *Inamdar* is of the view that Mrs Vesters due to her injuries is entitled to a very high award but such award should not be outside the brackets of the damages awarded in cases of other serious injuries. Mr *Georgiadis* submits that in trying to keep to the parameters of damages within a bracket range, it may cause injustice; Mrs Vesters should be treated as a special case due to her serious injuries. He also submitted, and I agree, that no two accidents can result in the same injuries.

I would stress that, though Mrs Vesters suffered serious injuries and will bear the effect of the injuries and ugly scars for the rest of her life, that would not make her case to be treated any differently from other cases, some of which are most serious. There are more serious injuries as in the cases of quadriplegia, paraplegia, loss of limbs, legs and arms, total blindness and multiple injuries for which damages awarded are within a certain bracket. In those cases the injured persons have to depend on other people in one way or another as they had become cripples. Some cannot walk, feed or dress themselves but are confined to wheelchairs. For myself those cases are more serious and would deserve serious consideration. This does not mean that I do not sympathise with Mrs Vesters's injuries. I very much do. Mrs Vesters is at least mobile, she can move around the house, though she cannot do gardening or drive as she used to do in the past and will no longer be a model. In the course of time, however, some of the injuries could be improved, as she gets used to the situation. I have to consider the range of damages that have been awarded in the past judgments in order to place Mrs Vesters in one of those brackets.

It is trite law that in awarding damages, the Court has to take into consideration comparable awards. The awards should not be too high or too low so as not to reasonably provide the injured person with something for pain, suffering and loss of amenities. It is impossible to compensate such pains and suffering in monetary form. Mr *Inamdar* has, and I would commend him for this, produced a vast list of authorities on the subject which lays down the principles of awarding damages and the comparable awards prior to and after the judgment appealed against. Mr *Georgiadis* supports them. These authorities are local as well as the English decisions. The stress is that local decisions should be applied wherever possible while overseas decisions should be of persuasive nature and worthy of consideration. The Court of Appeal both in England and in Kenya have been reducing damages awarded by the High Court so as to be within the comparable bracket. My Lord Nyarangi JA has cited some of the cases. I have been persuaded by the submissions made, based on these authorities, to believe that the trial Judge, while seized with all the facts of the case and the law in the matter, if the authorities now referred to us were referred to him, he could have considered them and probably followed them. The damages awarded under this head in the past judgments are between KShs 300 000 and KShs 600 000. The damages Cockar J awarded under this head was in excess and outside the bracket of decisions of this Court. It is for this reason that I believe that the amount should be reduced to a realistic figure supported by other decisions. I agree that the figure of KShs 550 000 proposed by my Lord Nyarangi JA should be a reasonable award under this head.

As the award for her domestic help and assistance, the trial Judge made a correct assessment of KShs 8 250 per year. With a multiplier of 15 it gives the sum of KShs 123 000. But the Judge increased the sum of KShs 8 250 to KShs 10 000 per year taking inflation into account. As I had earlier said on authorities, had the House of Lords judgment in *Lim Poh Choo v Camden and Islington Area Health Authority* [1979] 1 All ER 332 been cited to Cockar J at least he would have read the judgment of Lord Scarman at 193 where the question of inflation was held to be speculative and that it should not be considered or taken into account. The amount awarded if invested will earn interest that would compensate for the inflation. For this reason, I would also agree that the amount of KShs 150 000 should be reduced to KShs 123 750 based on the actual assessment of KShs 8 250 per year.

Now for the loss of *consortium* and *servitium*, the husband was awarded KShs 40 000. The only period that the wife stayed away from the husband was at the time she was in hospital for a period of about six months. Since then, they have been together. The only loss at the time was a temporary period of absence and the extra burden the husband carried due to the wife's handicap as a result of her injuries. The wife having been compensated for future help and assistance the husband is not entitled to damages for future assistance that he will render to his wife. The only aspect that may need consideration is the marital relationship. The wife, according to her evidence, was in her early thirties but complained that she was unable to perform marital relationship due to pain in her legs. She had two children who were in school. There is no evidence that she was expected to have more children. In English cases the amount awarded is as low as £20. The husband would only be entitled to a nominal figure in that case. I would agree that the figure of KShs 40 000 should be reduced by half to give the figure of KShs 20 000 as proposed by my Lord Nyarangi JA.

The only other matter is the question of interest. Though the award of interest is at the discretion of the Court, Mr *Georgiadis* conceded to this ground straight away which saved Mr *Inamdar* submitting on it.

As the appellants have succeeded on the points argued, and dropped the argument on the award of loss of future earnings, I would allow this appeal to the extent of the reduction of the amount and award full costs of the appeal to the appellants.

Mr *Inamdar* informed the Court that the decretal amount was paid to the respondent immediately after judgment and that it might have been invested. I would order that the amount paid in excess be refunded to the appellants with the interest earned on that amount.

Apaloo JA: At about 8:30am on 4 April 1979, a collision occurred between a Fiat saloon car driven by the first respondent and a Peugeot car in charge of one Jane Wanjiku Chege on the Nairobi-Thika Road. Both cars were extensively damaged and Jane Chege lost her life as a result of the injuries she sustained in the accident. The first respondent who survived, also sustained very severe multiple injuries. She claimed that the accident was caused by the negligent driving of the deceased Jane Chege. So she brought an action against the administrator of her estate as well as Chege Kimotho, the owner of the Peugeot car. He was sued on the basis of vicarious responsibility. They are the appellants in this appeal.

The first respondent Maria Vesters, lived with her husband. He, for his part, joined the action and claimed damages against both appellants on the ground that by reason of the first respondent's injury and consequent disablement, he lost her society and services. On the pleadings, both appellants denied negligence and pleaded that:

> "the accident occurred due to the sole or substantial negligence of the first plaintiff (meaning the first respondent) in driving, managing or controlling the motor vehicle."

The respondents disputed this and joined issue with the appellants on their averment. But when hearing of the suit opened before Cockar J on 14 December 1982, both appellants reversed their position and admitted liability for negligence. Accordingly, the learned Judge was not troubled with the issue whose negligence caused the accident. The only question he was asked to

decide was the quantum of damages to which either respondent was entitled to receive. On 27 April 1983, the Court delivered judgment and awarded the first respondent general damages only.

In a judgment which ran into 20 pages of typescript and, which is difficult to fault, the learned Judge summarised the first respondent's injuries and related the medical evidence and the prognosis of the first respondent's ailment. A great number of decided cases was cited to him, apparently to guide him on what sum to award in respect of each head. The Judge said he considered all those cases and the awards made to them and came to the conclusion that for the first respondent's injuries and "permanent disability", the sum of KShs 910 000 was adequate and proceeded to award that sum in favour of the first respondent.

The Judge also felt that in view of the first respondent's injuries and permanent disability, she would be severely handicapped in the performance of her ordinary chores. The Court thought she would therefore require domestic help at a cost of KShs 8 250 per annum for at least 15 years. But taking account of future inflation, the learned Judge rounded the figure of KShs 8 250 to KShs 10 000 per annum and awarded her an aggregate sum of KShs 150 000 under this head. The sums awarded to the first respondent under the two foregoing heads, namely (*a*) pain, suffering and loss of amenities of life; and (*b*) for domestic help, were questioned on this appeal. To this, I will return.

With regard to the husband, that is the second respondent, the judge considered that as a result of the injury to his wife, he suffered impairment in the sexual, social and domestic aspects of his married life and ought to be compensated for this as the accident disabled the wife from rendering some of the ordinary domestic services that the wife rendered to her husband, such as "shopping, gardening and transporting children" the latter was entitled to compensation for these. The learned Judge accordingly assessed compensation under either head, namely, first, loss of consortium and, second, loss of services as KShs 20 000 each making an aggregate sum of KShs 40 000 under both heads.

The appellant's appeal to this Court and invited us to say that both awards were excessive or were based on wrong principles of law or were otherwise too high and should be reduced. Mr *Inamdar* who appeared for the appellants and who presented a full and convincing argument, acknowledged that the first respondent suffered horrific injuries and was entitled to generous compensation. He was not prepared to question the medical evidence as to the extent and severity of the first respondent's injuries nor the rather dismal prognosis made by the doctors.

He would not quarrel with the finding that the first respondent who was a model, underwent a change of personality and may well suffer epilepsy in the future. Counsel also said that he would take no issue with the Judge's holding that the first respondent, a healthy outdoor woman with a zest for outdoor physical activities has been rendered into a house-bound semi-cripple. Mr *Inamdar* felt it would be difficult not to feel sympathy for the first respondent in view of the extensive nature of her injuries and it may be anything but easy to resist the temptation of approaching the question of an adequate compensation for her without some emotion.

But counsel saw and pointed out some consequence of the accident which could be said to be redeeming features. The first respondent was not

immobilised nor was she bedridden. She also had the use of her hands and legs and could do some slight domestic work. Although marital relations with her husband was impaired by her multiple injuries, it was not altogether impossible. True, the first respondent's handsome facial features were marred by scars, but these could be corrected, at least up to a point, by plastic surgery. So, although in the submission of counsel, the first respondent was deserving of generous damages, she ought not to be awarded what was more than adequate. And in the contention of counsel, the damages of KShs 910 000 awarded to her for pain, suffering and loss of amenities of life, was much too high and was wholly out of step with the general trend of awards made in this country and in England.

Counsel cited and relied on a great number of decided cases and indeed gave us each a bulky file containing 39 cases showing awards made in diverse cases here and in England and submitted that the multiple injuries sustained by the respondent though grave, were less serious than paraplegic cases where the compensation awarded for pain and suffering were comparatively lower. Counsel also took us through at least four cases in which he said injuries suffered by the victims were comparable to those suffered by the first respondent in each of which the compensation was a lot less than the sum awarded in this case. Accordingly, Mr *Inamdar* invited to reduce the compensation of KShs 910 000 awarded to the first respondent under the head pain, suffering and loss of amenities. It is difficult not to be persuaded by counsel's helpful and thorough argument.

But Mr *Georgiadis* for the respondents, submitted that the damages awarded under this head was fair and reasonable and could be supported. He said the first respondent suffered what was by common consent, horrific injuries. While the Court ought to have recourse to guides, he said, the assessment of compensation is discretionary and there is no showing that the learned Judge misapprehended the facts or went astray on any point of principle. According to counsel, the first respondent suffered injury on almost every part of her body, was detained in hospital for five months and had no fewer than seven separate operations. And her prognosis is not that of improvement, but deterioration and an increasing load of pain. According to counsel, the first respondent who was an attractive woman of 33, is now a depressed and suicidal wreck and has become a great burden.

Counsel argued that the main complaint of the appellants was that the sum awarded did not fit into a known bracket and that the desire for uniformity, though desirable, may well result in injustice.

Insofar as Mr *Georgiadis* says, not two injuries are exactly alike and that slavish adherence to brackets may result in a denial of justice in an individual case, I think that is a fair and right-minded observation. But my understanding of the bracket, is that it does not fix a sum certain to which, like the prosecutor's bed, all awards for similar or almost similar injuries must fit. The bracket only provides a range. The rationale for this appears to be that an award of compensation, like the administration of justice itself, must, as far as possible, be consistent and predictable. Judicial impartiality demands like compensation for like injury. But the fact that the extent and severity of the injury may vary from person to person, is cared for by a range, a broad pattern. And within that range, what is fair and reasonable to award in each individual case, is a matter for judicial discretion. Appellant intervention in the quantum awarded can only arise or be justified if that sum violently departs from the range which the collective good sense of the Judges, have, over a period of time established.

The grounds on which an appellate court may interfere with an award of damages, is now trite learning. They are, first, the Judge acted on a wrong principle of law, second, the Judge misapprehended the facts or, third, the Court for some reason made a wholly erroneous estimate of the damage suffered. I, of course, accept without hesitation that the learned Judge in the instant case stated the facts accurately without any establishment or embroidery. He did not slip on any principle of law. But having looked at and considered the compensation awarded for comparable or almost comparable injuries both before and after the date of the judgment, I think a fair and reasonable compensation should be within the KShs 400 000 to KShs 500 000 bracket. If that be right, I am driven to the conclusion that the award of KShs 910 000 is inordinately high and must be a wholly erroneous estimate of the damage suffered by the first respondent. My Lord Nyarangi JA considers KShs 550 000 fair and reasonable under this head. That exceeds the upward limit of my bracket by KShs 50 000. Since there is no objective guideline which can point to the correct assessment, the difference between us is only a matter of "balance and preference". I would not make a song and dance of this marginal difference and will go along with the KShs 550 000 which my Lord has proposed. I would also accordingly reduce the compensation for pain, suffering and loss of amenities of life to that figure.

The appellants also complained that the sum awarded for future domestic help was, in part, arrived at on a wrong principle of law and should be reduced. The learned Judge actually assessed the sum of KShs 8 250 per annum and took a multiplier of 15 years. But he said: "Keeping rising labour costs in mind, I feel a sum of KShs 10 000 is a fair estimate."

Although he did not, in terms, so put it, what he did was to take into consideration future inflation. That does not strike me as unreasonable. But such a course was disapproved by high judicial authority. In *Choo v Camden and Islington Health Authority* [1979] 1 All ER 332, to which Mr *Inamdar* helpfully referred us, Lord Scarman, speaking for the House of Lords, said:

> "The law appears now settled that only in exceptional cases where justice can be shown to require it, will the risk of future inflation be brought into account in the assessment of damages for future loss."

The reason for this appears to be that the rate of future inflation is too speculative a matter to be built in the award of damages. It was thought future inflation can better be taken care of in sound investment. There is no showing here that this is an exceptional case or that any grounds be taken into account. Accordingly, unless *Lim v Camden Health Authority* was wrongly decided and Mr *Georgiadis* shrank from saying so, or that this decision ought not to be followed in this country, the conclusion is inescapable that in fixing the future loss at KShs 150 000 instead of the KShs 123 750, the learned Judge acted on a wrong principle of law and his assessment should be reduced to a sum which takes no account of future inflation. That sum is KShs 123 750.

That brings me to the damages awarded to the husband per *quod consortium et servitium amisit*. The total sum awarded for both loss of *consortium* and of services is KShs 40 000. In view of the comparatively large sums awarded to the wife, this sum can be said to be child's play. But the objection taken to the quantum of the award appears to be taken as a matter of principle only.

Although there was at one time difference of judicial opinion whether an action lies for impairment as distinct from total loss of *consortium*, the better view is that an action will lie for impairment only. The learned Judge found that the husband's enjoyment of sexual life with his wife has been curtailed. He held that this affected his physical and emotional life, and he ought to be compensated for this. I have no quarrel with that. The question the learned Judge omitted to address, was what sort of compensation would be awarded to the husband for that?

The wealth of judicial opinion is that such compensation should be modest. In England, sums as low as £20, £30, £40 and at most £200 were awarded in a number of cases under this head. I think it is the sort of compensation that in another branch of the law of tort would be called a *Benham v Gambling Award*. If the Judge awarded as much as KShs 20 000 (the equivalent in 1983 of £10 000) for impairment, then the figure he would award for total destruction of *consortium* would be mind-boggling. That would be wrong in principle. Like my Lord Nyarangi JA, I also think KShs 10 000 reasonable. It is even certainly more than modest.

The learned Judge awarded a similar sum to the husband for loss of his wife's services. Again, the loss of *servitium* is only partial. The wife, fortunately, has the use of her hands and legs and can do light domestic work. She herself has been compensated for domestic help that she may need in the future and the husband will not be out of pocket for this. True as the Judge found, she cannot now do shopping, gardening or driving. But it cannot be supposed that the husband lent no hand in these essentially joint household "occupations". The learned Judge seems to have fixed the quantum of the compensation on the footing that the wife will render no domestic service at all in the future or that the husband will be out of pocket in funding this. Again, that basis must be wrong. In the circumstances, I also think KShs 20 000 is excessive and would reduce it to KShs 10 000.

The appellants complained in ground 12 of their memorandum that the learned Judge erred in awarding interest in favour of the first respondent at the rate of 2% per annum from the date of plaint till the date of judgment. Counsel for the respondent frankly conceded that the award was made in error and declined to support it. So the appellants were spared the trouble of addressing any argument to us on that ground. I agree that that award cannot stand and must go. In the result, like my Lord Nyarangi JA, I would allow the appeal in the following respects, namely:

(*a*) I would vary the award made in favour of the first respondent by substituting for KShs 910 000 the sum of KShs 550 000.

(*b*) I would also vary the award of KShs 150 000 made in favour of the same respondent by substituting for it the sum of KShs 123 750.

(*c*) I would set aside the interest of 2% per annum from date of filing till date of judgment made in favour of the first respondent.

(*d*) I would set aside the award of KShs 40 000 made in favour of the second respondent and substitute for it, the sum of KShs 20 000.

As the appellants have succeeded in reducing the damages to an appreciable extent, I would award them two-thirds of the costs of this appeal.

I would also order that the judgment debt and costs, if paid in full, should be refunded to the extent reduced in this judgment. It is only right that I should extend to counsel on both sides our thanks for the considerable assistance they rendered us, especially Mr *Inamdar* who provided us with the many authorities and other material on which he relied.

For the appellants:
IT Inamdar and *AU Joshi*

For the respondents:
BN Georgiadis

Chege v Suleiman
[1986–1989] 1 EA 72 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	13 July 1988
Case Number:	12/87
Before:	Apaloo, Masime JJA And Gicheru AJA
Sourced by:	LawAfrica

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[1] Appeal – Competency – Appeal from order – Formal order not extracted until after appeal filed – Appeal incompetent – Rule 85(1) – Court of Appeal Rules – Section 66 – Civil Procedure Act (Chapter 21).

[2] Appeal – Supplementary record – Appeal incompetent due to failure to extract formal order – Whether can be cured by the filing of a subsequent supplementary record.

[3] Order – Appeal from order – Whether appeal competent when filed before a formal order was extracted.

Editor's Summary

On 5 February 1987, the appellant filed a record of appeal, appealing against a ruling of Kwach CA dismissing an interlocutory application for an injunction. The record did not contain the formal order of the Court. That order was extracted on 30 September 1987 and was therefore filed as a supplementary record of appeal. The respondent applied to strike out the appeal on the ground that as no formal order was in existence at the time the record of appeal was filed, the Court had no jurisdiction to entertain the appeal.

Held – The failure to extract the order before launching the record of appeal goes to the root of the Court's jurisdiction and since that jurisdiction is founded on statute it cannot be invoked unless the intending appellant strictly complies with its provisions.

Since the appeal when filed was incompetent for lack of jurisdiction, it could not be rendered competent by the subsequent extraction of the formal order and its incorporation in a supplementary record of appeal.

Appeal struck out.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Alibai v Raichura 20 EACA 24

Githere v Kimungu [1983] LLR 2749 (CAK)

Mohamedhbai Co Ltd v Ghani 19 EACA 30

Old East African Trading Co Ltd v Jetha 23 EACA 164

Judgment

Apaloo, Masime JJA And Gicheru AJA: On 17 December 1986, the High Court (Kwach Commissioner) dismissed an application for injunction brought against the respondent after a hearing *inter partes*. The dispute related to the possession of a shop known as Safariland Boutique. The appellant was apparently aggrieved and dissatisfied with the ruling and purported to appeal to this Court. On 5 February 1987, he lodged a record of appeal in apparent compliance with rules 81 and 85(1) of the Court of Appeal Rules.

The record contains a five-page ruling of the Court. But it did not contain the formal order of the Court. That order was extracted on 30 September 1987 and filed as a supplemental record on 10 March 1988. But on 12 December 1987, the successful respondent brought this motion and prayed that the record of appeal be struck out and the appeal itself be dismissed with costs.

The main reason given for this application is that, as the formal order was not in existence at the time, the record of appeal was filed, there was no jurisdiction to entertain the appeal. It was contended, therefore, that this appeal is incompetent and should be struck out. It seems on the face of it to be a hard decision to dismiss *in limine* what may well be a deserving appeal on what seems to be a highly technical point. But a succession of cases, which counsel for the applicant brought to our attention, decide that failure to extract the decree or order of the Court before launching the record of appeal is a point which goes to the jurisdiction of the Court and since the jurisdiction of this Court is founded on statute, it cannot be properly invoked unless the intending appellant strictly complies with its provisions.

Thus in *Mohamedhbai Co Ltd v Ghani* 19 EACA 30 it was held by the East Africa Court of Appeal that as the intending appellant had not drawn the formal order before purporting to appeal against it, the purported appeal cannot be entertained. A preliminary objection to the entertainment of the appeal was upheld and the appeal was dismissed *in limine*. In *Alibai v Raichura* 20 EACA 24, the headnote reads:

> "An order is a formal expression of any decision of a civil court which is not a decree. An appeal does not lie from such decision where no formal expression of the decision has been filed."

That seems to be the consistent trend of the decisions. Also in *Old East African Trading Company Ltd v Jetha* 23 EACA 164 it was held that:

> "As no order has been extracted at the time of lodging the appeal, there was nothing to appeal from. The appeal was incompetent and there was no jurisdiction to hear it."

In this case, it was not in dispute that the record of appeal was filed in February 1987. No order was extracted by that date. It was not extracted till seven months later, namely, in September 1987. So, if the holdings in these cases still stand, the appellant can have no valid answer to the preliminary objection. Although a number of amendments have been made to the Procedure Rules since those decisions, rule 85(1) still provide that a record of appeal "*shall* contain . . . the judgment or order".

Counsel for the appellant has sought to get round these holdings by submitting that although no formal order was in existence when the record of appeal was filed, it has since been extracted and filed by a supplemental record. Accordingly, counsel submitted that no prejudice resulted to the applicant by this omission.

Mr *Khaminwa* also referred us to the ruling of Hancox JA in *Githere v Kimungu* [1983] LLR 2749 (CAK) in which the applicant sought the exercise of the Court's discretion to extend time to file both notices of appeal and for instituting the appeal. In his ruling, the learned justice of appeal said:

> "The relation of rules of practice to the administration of justice is intended to be that of a handmaid rather than a mistress and that the Court should not be so far bound and tied by the Rules, which are intended as general rules of procedure, as to be compelled to do that which may cause injustice in a particular case."

Counsel said the objection merely raised a procedural point which this Court, in its inherent jurisdiction, can waive.

But we concur positively in the submission of Mr *Lakha* that this is not a procedural but a jurisdictional point. Those holdings were founded on a proper interpretation of section 66 of the Civil Procedure Act which confers a right of appeal from the High Court to this Court from "decrees and orders of the High Court". And those holdings were predicated on the fact that, since the appeal could only lie against a decree or order, no competent appeal could be brought unless those decrees or orders were formally extracted as the basis of the appeal.

Accordingly, sorry though we are, we are precluded by authority from entertaining this appeal. We hold that it is incompetent and accordingly strike it out with costs. We also discharge and revoke the stay of execution granted by this Court pending the hearing and determination of the appeal.

For the appellant:
J Khaminwa instructed by *Khaminwa and Khaminwa*

For the respondent:
AA Lakha

Chemwolo and another v Kubende
[1986–1989] 1 EA 74 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	30 October 1986
Case Number:	103/84
Before:	Platt, Gachuhi and Apaloo JJA
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[1] Negligence – Interlocutory judgment given ex parte *in default of appearance – Appearance before assessment of damages – Whether the Judge rightly exercised his discretion in refusing to set aside the judgment – Order 9A, rule 5 – Civil Procedure Rules.*

Editor's Summary

The first appellant was driving a motor vehicle in the course of his employment with the second appellant when he collided with a motor cycle ridden by the respondent thereby occasioning him serious injuries. The first appellant was charged and convicted of careless driving contrary to section 49(1) of the Traffic Act. The advocate for the respondent who had hitherto exchanged correspondence with the insurers of the appellants and their advocate served summonses on the appellants and obtained interlocutory judgment under Order 9A, rule 4. The appellants entered an appearance through their advocates who applied to set aside the judgment on the grounds that circumstances precluded them from entering appearance and that the respondent contributed to the accident.

The learned Judge dismissed the application on the ground that the appellants' insurers had not bothered to enter appearance and there was no defence in view of the conviction of the first appellant.

Held – The Court has unlimited discretion to set aside or vary judgment entered in default of appearance upon such terms as are just in the light of all the facts and circumstances both prior and subsequent and of the respective merits of the parties (*Kimani v McConnel* [1966] EA 547).

Where a regular judgment had been entered the Court would not usually set aside the judgment unless it was satisfied that there was a triable issue.

In this case there was a triable issue on contributory negligence which would affect the quantum of damages.

Looking at all the facts there was an explanation for delay.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Kimani v McConnell [1966] EA 547

Mbogo v Shah [1968] EA 93

Patel v EA Cargo Handling Services Ltd [1974] EA 75

Queen's Cleaners and Dyers v EA Community and others [1974] EA 229

Robinson v Oluoch [1971] EA 376

United Kingdom

Evans v Bartlam [1937] AC 473

Judgment

Platt JA: This appeal was brought against the decision of the High Court of Kenya given on 28 March 1984 by which the learned Judge refused to exercise his discretion derived from Order 9A, rule 10 of the Civil Procedure Rules.

The defendants in the case, Philip Keipto Chemwolo and the Mumias Sugar Company Limited, had applied to set aside a judgment by default entered for the plaintiff, Mr August Kubende on 27 February 1984. The defendants had not appeared before an interlocutory judgment was entered under Order 9A, rule 5 of the Civil Procedure Rules, but they did appear before assessment of damages.

The chronological order of events appears to have been that the motor vehicle accident in which the plaintiff was seriously injured occurred on 14 June 1982. At the time, the plaintiff was riding a motor cycle, while Mr Chemwolo was driving a motor vehicle in the course of his employment with the Mumias Sugar Company Limited. There was affidavit evidence to the effect that on 24 August 1983 Mr Wamalwa Nakhulo, the plaintiff's advocate, addressed a letter of demand to the Lion of Kenya Insurance Company Limited, who insures the Mumias Sugar Company Limited for motor vehicle and Workmen's Compensation claims. On 20 September 1983 Daly and Figgis, advocates representing both defendants, requested a medical report and alleged that both parties were at fault. On 15 November 1983 Mr Wamalwa Nakhulo supplied a medical report and proposed terms of settlement. The report suggested that the plaintiff suffered permanent brain damage and consequential epilepsy and other difficulties. In the meantime, Mr Chemwolo had been charged with careless driving contrary to section 49(1) of the Traffic Act (Chapter 403) and proceedings commenced on 18 June 1982, some four days after the traffic accident. The trial proper commenced on 25 October 1982 and was concluded on 16 December 1982, with the conviction and fine imposed upon Mr Chemwolo. On 15 November 1983 Mr Wamalwa Nakhulo notified Daly and Figgis that Mr Chemwolo had been convicted of careless driving and on 23 November 1983 he sent to those advocates copies of proceedings and judgment. He then says that he understood from his client that the client was being harassed so that it was necessary to bring proceedings, and that he filed these proceedings on 9 January 1984. Mr Wamalwa Nakhulo then explained that as there was no indication from Lion of Kenya Insurance Company Limited that they would receive summons on behalf of their insured, he served the summons directly on the two defendants who received service on 3 February 1984. There is no doubt that that date is correct. A copy of the summons has been put before this Court and it is clear that ten days was allowed for an appearance to be entered. Appearance was only entered on 12 March 1984 as Mr *Noad* of Daly and Figgis explained in his affidavit, dated 16 March 1984. The appearance was entered a month late. Whilst the appearance was being entered, an application was made for entering judgment under Order 9A, rule 4 of the Civil Procedure Rules for liquidated damages, and interlocutory judgment under rule 5 of those Rules. The application was granted on 27 February 1984 and the date for the assessment of damages was fixed for 20 March 1984. On 19 March 1984 Mr *Noad* appeared in court having applied to set aside the default judgment, and the matter was argued before the learned Judge on 20 March 1984.

The learned Judge correctly appreciated the powers that he had under Order 9A, rule 10 of the Rules and that his discretion had been explained by the Court of Appeal in *Patel v East African Cargo Handling Services Ltd* [1974] EA 75. Having then studied the affidavits of Mr *Noad* and Mr Wamalwa Nakhulo and their submissions, he refused to exercise his discretion, because Lion of Kenya Insurance Company Limited had never bothered to enter an appearance;

indeed they had ignored or at least treated the correspondence from plaintiff's counsel casually. In those circumstances he did not consider that "reasonable cause had been shown for the defendant's failure to enter an appearance within the stipulated time". Neither had it been demonstrated to his satisfaction that there was a good defence especially in view of the conviction of the first defendant in Kakamega Magistrate's traffic case number 1820 of 1982. The learned Judge had earlier referred to the question of contributory negligence in the light of the opinion expressed in *Queen's Cleaners and Dyers v EA Community and others* [1972] EA 229. In spite of that authority, the learned Judge came to the conclusion that having studied the lower court's proceedings in the *Traffic* case (*supra*) he was of the view that not even a *prima facie* case of contributory negligence could be established against the first defendant, Mr Chemwolo. Consequently he dismissed the application.

The appeal to this Court concerns purported misdirections of fact and law which are alleged to appear in the ruling of the learned Judge. Perhaps a suitable summary of the grounds of appeal would be that Lion of Kenya Insurance Company Limited was in itself at fault for the delay in entering an appearance, and certainly it was quite wrong for the learned Judge to have expressed the view that the Lion of Kenya Insurance Company had never bothered to enter an appearance. Secondly, there was a good defence on liability as to contributory negligence and of quantum of damages. The plaintiff would make a major claim for possible brain damage, and taking all the circumstances into account, despite the delay of four weeks in entering an appearance, it was not just in the circumstances to preclude the defence from being heard. I should perhaps say that the defendants, Mr Chemwolo and the Mumias Sugar Company Limited are the present appellants and Mr Kubende is the respondent. But it is just as convenient to refer to the parties as they appear in the suit.

There is one further matter to which I must refer and that is that at the hearing of this appeal, Mr Wamalwa Nakhulo had disappeared to the Western part of Kenya, and Mr *Nagila* stepped in and thus enabled the Court to keep to the list and hear the appeal. The Court was grateful to Mr *Nagila*, who, I am satisfied, advanced every argument that could be advanced on behalf of the respondent.

It is right to commence a consideration of the issues which arise by setting out the proper approach which this Court must adopt. Order 9A, rule 10 of the Rules confers upon the Court an unlimited discretion to set aside or vary a judgment entered in default of appearance upon such terms as are just. In *Patel v EA Cargo Handling Services Ltd* (*supra*) the Court of Appeal, following its previous decision in *Mbogo v Shah* [1968] EA 93 adopted the opinion of Harris J in *Kimani v McConnell and another* [1966] EA 547 where he said:

> "In the light of all the facts and circumstances both prior to and subsequent of the respective merits of the parties, it would be just and reasonable to set aside or vary the judgment, if necessary, upon terms to be imposed."

But the Court went on to explain (at 76), that the main concern was to do justice to the parties and would not impose conditions on itself to fetter the wide discretion given it by the Rules. On the other hand, where a regular judgment had been entered, the Court would not usually set aside the judgment, unless it was satisfied that there were a triable issue which raised a *prima facie* defence which should go to trial. The Court adopted the views expressed by the House of Lords in the case of *Evans v Bartlam* [1937] AC 473 and, while

the quotations from Lord Russells' speech were relevant to Mr *Inamdar*'s particular argument, the views expressed by Lord Atkin at 480 are of greater relevance to the present appeal. Lord Atkin observed:

> "The discretion is in terms unconditional. The Courts, however, have laid down for themselves rules to guide them in the normal exercise of their discretion. One is that where the judgment was obtained regularly there must be an affidavit of merits, meaning that the applicant must produce to the Court evidence that he has a *prima facie* defence. It was suggested in argument that there is another rule that the applicant must satisfy the Court that there is a reasonable explanation why judgment was allowed to go by default, such as mistake, accident, fraud or the like. I do not think that any such rule exists, though obviously the reason, if any, for allowing judgment and thereafter applying to set it aside is one of the matters to which the Court will have regard in exercising its discretion. If there were a rigid rule that no one could have a default judgment set aside who knew at the time and intended that there should be a judgment signed, the two rules would be deprived of most of their efficacy. The principle obviously is that unless and until the Court has pronounced a judgment upon the merits or by consent, it is to have the power to revoke the expression of its coercive power where that has only been obtained by a failure to follow any of the rules of procedure."

I would draw special attention to the principle stated by Lord Atkin in the last sentence. It is primarily important to ascertain whether there are merits which ought to be tried. At the same time this Court will not lightly interfere with the discretion of the trial Judge unless it is satisfied that he misdirected himself in some matter, and as a result arrived at a wrong decision, or unless it is manifest on the case as a whole that the Judge was clearly wrong in the exercise of his discretion, and that as a result there has been a miscarriage of justice (see *Mbogo v Shah* (*supra*)).

In the light of these principles, I turn to consider whether there were issues which merited ventilation in a trial. Mr *Noad* submitted that there were grounds upon which a defence at least of contributory negligence could be advanced. He pointed out that there were some grounds for thinking that the plaintiff had been driving his motor-cycle at a high speed without wearing his crash helmet. These facts appear to emerge from the evidence recorded in the traffic case. On the part of Mr *Noad* it was reasonable to indicate the source of the evidence which might be relied on in the trial. The learned Judge went much further. He held that in view of Mr Chemwolo's conviction and in view of the lower court's proceedings, it would be concluded that not even a *prima facie* case of contributory negligence could be established. On the basis of *Patel*'s case, the question was whether a triable issue arose. If the plaintiff was not wearing a crash helmet and was riding his motor-cycle at a high speed, surely a triable issue arose as to contributory negligence, which might affect the overall position of liability and quantum on damages. With respect, it was not for the learned Judge to read proceedings in the *Traffic* case (*supra*) as if the evidence recorded there was the final position in the case. Not only is it notorious that different aspects of the evidence emerge during a civil case, while not disturbing a conviction, but it is also well known that both parties to an accident might have driven carelessly and each could be convicted of careless driving for their respective types of carelessness. It was therefore premature to come to the conclusion that not even a *prima facie* case of contributory negligence could be established. It would have been right to have held that there was some evidence upon which a triable issue as to contributory negligence arose on the strength of the proceedings in the traffic case.

Now, it was correct for the learned Judge to refer to Mr Chemwolo's conviction because section 47A of the Evidence Act (Chapter 80) declares that where a final judgment of a competent court in criminal proceedings has declared any person to be guilty of a criminal offence, after the expiry of the time limited for appeal, judgment shall be taken as conclusive evidence that the person so convicted was guilty of that offence. It follows that, in the civil proceedings which are contemplated, Mr Chemwolo's conviction will be conclusive evidence that he was guilty of carelessness. But that does not matter, because it may also be that Mr Kubende was guilty of carelessness, and if that were to be so, then the position would be as explained in *Queen's Cleaners and Dyers Ltd v EA Community and others* (*supra*) and, despite Mr Chemwolo's conviction, the issue of contributory negligence may still be alive if the facts warrant it. In the present case there was a triable issue in contributory negligence which would affect the quantum of damages.

If this is true, then I have to consider all the circumstances in the case to ascertain whether it would be just to set aside the judgment by default.

To begin with, the facts in the replying affidavit of Mr Wamalwa Nakhulo do not support the charge that Daly and Figgis were delaying the matter. If Mr Wamalwa Nakhulo commenced correspondence on 24 August 1983 and in September 1983 a medical report was requested which was supplied on 15 November 1983, it was a matter which Lion of Kenya Insurance Company Limited had to consider in the light of the proceedings and judgment in the *Traffic* case (*supra*) forwarded on 23 November 1983. Mr *Noad* replied on 22 December 1983 that the matter was being considered which must be reasonable. On these facts it must be an exaggeration to complain that Daly and Figgis had not replied to letters of the plaintiff's counsel, and to have made it impossible for negotiations for a settlement. Indeed it must be that the condition of the plaintiff, medically speaking, had not become clear until Professor Ruberti had reported his findings on 8 November 1983.

On the other hand, what might strike the casual observer as strange, is Mr Nakhulo's decision to serve the summons directly on the defendants. The negotiations had since August 1983 been conducted with Daly and Figgis on behalf of the Lion of Kenya Insurance Company Limited and a letter to Daly and Figgis inquiring whether they would accept the summons would appear to have been a logical result from correspondence. As it was, the defendants were given ten days to enter an appearance from Mumias, which was a very short period for allowing an entry of appearance for persons so far away in Western Kenya. The usual practice is to allow even up to 21 days for persons so far away. As Mr *Nagila* wishes to point out, an extra 11 days would not have covered the time taken up to 12 March to enter an appearance. That is quite true. But it is an indication that the defendants were being asked to enter an appearance within a period of time which they might find difficult to comply with. That is one of the reasons which must be considered when the Court might wish to stay its coercive power, to employ Lord Atkin's lucid phrase.

Considering these facts in the light of the ruling, it is clear that the learned Judge misdirected himself. It is not a case where the defendants ignored the summons. The defendants sent the summons to their insurer's agent, Minet ICDC Limited, who then forwarded the summons to Lion of Kenya Insurance Company Limited and the latter forwarded them to Mr *Noad*. All of this would

have been avoided if Mr Wamalwa Nakhulo had enquired from Daly and Figgis whether it would accept service of the summons, since Mr Wamalwa Nakhulo was in correspondence with the advocates of the insurance company. Had the learned Judge looked at all these facts, he could not possibly have come to the conclusion that no explanation had been shown for the defendant's failure to enter appearance in time.

The result is that the misdirections both on the question whether there were triable issues, and the reasons for the delay were such that they affected the way in which the learned Judge exercised his discretion. In all the circumstances, it would be just that the default judgment should be set aside, and allow the parties to go for trial on the issues in this suit. I would therefore allow the appeal.

As Gachuhi and Apaloo JJA both agree, there will be an order that the appeal will be allowed with costs in this Court and in the High Court in the matter of the application to set aside the judgment by default in the High Court. The ruling of the High Court is set aside, and there will be substituted therefor an order setting aside the judgment by default with costs and of the application and all thrown away costs. The remaining costs in the High Court will abide the event.

Gachuhi JA: I also agree with the judgment prepared by Platt JA that the Judge ought to have rightly exercised his discretion in setting aside the *ex parte* judgment. The effect of the applicant/defendant could file the defence. Appearance may be entered at any time before the entry of judgment notwithstanding that the time limited in the summons has expired (*Robinson v Oluoch* [1971] EA 376). The interlocutory judgment for liquidated damages was entered on 27 February 1984. The suit was to be set down for assessment of damages later. Appearance was entered before assessment. Hearing date for the assessment of damages had been listed and damages may not be the only issue. According to Mr *Noad*, negligence is also in issue, there being the possibility of raising contributory negligence. There are triable issues which should not be shut out.

Where an advocate is acting for his client and has had exchange of correspondence with the other side, it is up to him and without being asked by the other side, to obtain his client instructions to accept the service of the process. He should notify the other side that he has instructions to accept the service on behalf of his client. If that is not the case, then immediately they learn that a statutory notice has been served on their client, the advocate should write to the advocates for the plaintiff demanding a copy of the plaint or make a search at the Court registry for the Court file where he could take a copy of the plaint and enter appearance at once to safeguard his client's interest. Equally the same, the advocate for the plaintiff could enquire from the advocate for the defendant whether he has instructions to receive the process. There is no reason why the counsel for the applicant could not take either of these steps. Again, there is no reason why the defendants could not send the summons by express means to their advocate. There is, somehow, a confusion somewhere between the counsel. I cannot understand why there was this rush or the fear entertained by the plaintiff while the limitation period was not running out.

I would allow this appeal and set aside the order of the High Court. I also agree with the proposed order for costs.

Apaloo JA: I agree that the judgment entered against the appellant in default of appearance should be set aside. Like Platt JA, I am unable to agree that it was competent for the learned Judge to merely peruse the record of the criminal trial and conclude that a *prima facie* case on contributory negligence cannot be established. The defendants say that the plaintiff was himself the author of his own misfortune because he drove at great speed and as a motor-cyclist failed to wear a crash helmet. If they establish these averments at the trial, the Court may well feel that the plaintiff was in part to blame for the accident. The Court would then come under a duty to assess his own degree of blameworthiness. Depending on the Court's assessment of responsibility for the accident, such apportionment may affect, perhaps in a substantial manner, the quantum of damages to which the plaintiff is entitled. Or it may affect it in a negligible way.

Whatever it is, there is a triable issue on the plea of contributory negligence. That being the view of the matter that commends itself to me, it would seem to me to be opposed in principle to shut out the defendants from putting forward their version of the facts. As to the strictures the Judge made with regard to the defendants' alleged indifference in entering appearance or their casual treatment of correspondence, I agree with what has fallen from the lips of Platt JA and I need say no more on it.

True, there was some delay in entering appearance but I cannot accept it was an unreasonable delay, or it was the type that disables a plaintiff from relief in equity. In all events, such delay was satisfactorily explained. When I asked counsel for the respondent what loss or damage would result to him if this suit were substituted to a hearing on the merits, he said nothing that I think should inhibit the Court from allowing this suit to be heard on its merits. I recorded counsel as saying that a court's discretion should not be exercised in favour of a negligent applicant. I think the charge that the appellants were negligent is one that can be questioned. But counsel seems to think that defendants deserve punishment and must be shut out for their negligence.

I think a distinguished equity Judge has said:

> "Blunders will continue to be made from time to time and it does not follow that because a mistake has been made that a party should suffer the penalty of not having his case determined on its merits."

I think the broad equity approach to this matter, is that unless there is fraud or intention to overreach, there is no error or default that cannot be put right by payment of costs. The Court, as is often said, exists for the purpose of deciding the rights of the parties and not for the purpose of imposing discipline. In this case, the appellants offered to pay the costs thrown away as a condition for setting aside the judgment. The respondent will not agree.

I am unwilling to believe that in opposing the application for setting the judgment aside and allowing a hearing on the merits, the object of the respondent was to snap at the judgment. In a case in which, if the defendants were permitted a hearing, the quantum of the liability to pay damages may be much less.

The learned Judge claimed on the authority of *Patel v EA Cargo Handling Services Co Ltd* (*supra*) that he has wide discretion: true, he has but his exercise of the discretion, was, in my opinion, coloured by his faulty appreciation of the evidence on the question of delay and the appellants' so-called casual attitude to the correspondence. In these circumstances, it seems to me entirely just that subject to paying the costs thrown away, the appellants should

be let in to defend. For my part, I accept the contention of the appellants in paragraph 7 of their memorandum of appeal that precluding them from entering appearance because of the four weeks delay, judged against the facts of the case and the surrounding circumstances, would be an extreme penalty and would, to my way of thinking, be wrong and unjust.

Accordingly, as I said, I agree that the appeal be allowed and an order be made in terms proposed by Platt JA.

For the appellants:
T Noad

For the respondent:
CB Nagila

Choge and others v Republic
[1986–1989] 1 EA 82 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	10 July 1985
Case Number:	69/84
Before:	Hancox, Nyarangi JJA And Platt AJA
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[1] Criminal law – Murder – Circumstantial evidence – Admissibility of dying declaration – Whether sufficient proximity of death – Circumstances in which receivable in evidence – Evidence of prior arrangement to kidnap deceased and take him to first appellant's house – Statements of co-accused – Admissibility and weight as against another accused – Meaning of "taken into consideration" – Voice identification – Admissibility and weight – Effect on appeal of items of evidence erroneously regarded as providing corroboration – Meaning of "hostile" witness – Sections 14, 15, 32(1), 33(a) and 163(1)(c) – Evidence Act (Chapter 80) – Sections 379(5) and 382 – Criminal Procedure Code (Chapter 75).

Editor's Summary

The first appellant, Choge, and the deceased, Tenai, owned neighbouring farms in the Moi's Bridge area of the Kitale District. It was alleged that there had been some prior trouble between them relating to the loss of Choge's seat in Parliament in the 1979 elections, and consequently of his position as an assistant minister.

The prosecution case was that Choge had made an arrangement with the second appellant, Musamali, the former fourth accused, Mbugwa, Charles Musosi and two Nandi tribesmen to arrest Tenai and take him to Choge's house. The payment for this was to be KShs 36 000, of which KShs 6 000 was said to have been paid on the road after the attack on Tenai and the remainder was due to be paid at Choge's house the day afterwards.

At about 8pm on 30 March 1982, Tenai, in a red Mazda, left Moi's Bridge in order to return to his house along Cherangani Road. He was last seen driving the Mazda at 8:15pm near Moiben Bridge. There was some evidence that bags of seeds had been placed on the road so as to cause Tenai to stop and be ambushed.

According to Musamali's statement, he and two Nandi tribesmen waylaid Tenai and attempted to arrest him, but in view of his strength and physique failed to subdue him. He fired one shot in the air and another at Tenai's foot but "through bad luck" it wounded Tenai in the abdomen. Tenai's driver, Okumu, who had been on a separate journey, drove along the same road as the deceased at 8:20pm in a Chevrolet pick-up and saw the red Mazda in the left side ditch. He reversed and was shot in his left hand, neck and left eye. He heard someone who he said was Choge, say in Swahili "push him aside" "remove the key" and "finished". He crawled to Tenai's farm to get help and as a result reports were sent to two police stations by vehicle. The police found both the Mazda and the Chevrolet stationary when they arrived. Tenai called from the nearby bushes and they found him with a stomach injury and in great pain. He was admitted to Kitale Hospital at 11pm with extensive and severe internal injuries, as a result of which he died in Nairobi Hospital on 7 April.

As he was about to enter the police Land Rover, Tenai said, pointing at Choge's farm, "we have been killed by this rubbish". Shortly before this he had given a verbal account of what had happened to him, but did not mention Choge. At midnight in the hospital he told a senior police officer that he had also been robbed. Okumu was also admitted to the same hospital, and the following day a 7.65 mm bullet was removed from his left arm.

The appellants were duly arrested for murder together with two others, Peter Baraza and Samuel Mbugwa, who was said to be the son of Nahashon and who was acquitted after trial in the High Court.

At their trial the prosecution tendered in evidence, as against Choge, subsequently repudiated police statements of the former suspect Peter Baraza, and of Musamali, which identified Choge as talking with the two Nandi tribesmen at Moi's Bridge for about ten minutes. Musamali's statement also recounted the alleged financial arrangement, and he made a second, oral, statement which named Choge as present when Tenai was shot. A *nolle prosequi* had been entered in respect of Peter Baraza before the trial. He was not called by the prosecution but as a defence witness by Musamali.

As against Musamali the case consisted of ballistics evidence, which showed that spent cartridges found at the scene of the crime and near Tenai's farm, together with one live bullet and the one which had lodged in Francis Okumu's arm, were of 7.65 mm calibre and matched a Skorpion pistol buried in the ground to which Musamali led a police party in the middle of May. The police also found keys in Musamali's house which matched vehicles and padlocks which had belonged to Tenai. As regards the third appellant (Maiyo) the only evidence put forward were statements by Musamali and Peter Baraza incriminating him, plus some bus tickets found on him which suggested that he had travelled to Moi's Bridge on the fatal day. All three appellants appealed against their convictions. The appeal of Musamali was dismissed and that of Maiyo allowed, and the appeal proceeded mainly on the submissions regarding the statements, the dying declarations and the voice identification put forward as against Choge.

Held – Peter Baraza's incriminating police statement could not in any way be substituted for, or treated as, sworn testimony. It could only be used for the limited purpose of contradicting testimony (which he gave on behalf of Musamali at the trial) or of impeaching his credit. Neither could be treated as a

hostile witness as “hostile” means “adverse to the party calling him”, which in this case was Musamali.

If Peter Baraza had been a former accused person, his statements could, at most, only be taken into account as against his co-accused, but as a *nolle prosequi* had been entered before the trial began he had not become a co-accused, and the authorities were quite clear that, for such a statement to be admitted that:

(*a*) it must be a confession; and

(*b*) the maker must be tried jointly with the person against whom it is rendered in evidence.

It was, consequently, a misdirection for the trial Judge to have referred to the evidence given by Peter Baraza, as it had only consisted of an unsworn statement.

As regards the statements of Musamali, tendered against Choge, it was an essential pre-requisite under section 32 of the Evidence Act that for the statement to be admissible as against a co-accused it must amount to a full admission of the offence, and the statement of 16 May did satisfy that test.

A confession of an accused person only provided evidence of the weakest kind as against his co-accused, and can only be taken into consideration, that is to say, it can only be used as lending assurance to evidence which narrowly falls short of the standard of proof necessary for a conviction.

In the instant case the Judge had treated the statements of Peter Baraza and Musamali as part of the framework of the case against Choge, and the other evidence of the dying declarations and the voice identification as corroborative thereof, rather than vice versa.

As regards the declaration by the deceased, only the first one indicated that it was Choge who shot him. The second and third indicated that it was the son of Nahashon, that is, the former fourth accused, who was acquitted at the trial. As contrasted with the law of England, the Indian and Kenya law did not require, as a condition of admissibility, that the deceased person should have “a settled, hopeless expectation of death”. In the instant case the deceased had died a week later. Nevertheless, in the circumstances of the case, the declarations by the deceased, though admissible, could not be solely relied on to obtain a conviction, and could only be added to other evidence which incriminated Choge.

The evidence of Francis Okumu as to what befell him was admissible as part and parcel of the same transaction (the *res gestae*) as the shooting of Tenai. In particular his evidence that he recognised the voice of Choge, was properly received.

However, the fact that Francis Okumu had not mentioned that he recognised Choge’s voice when he crawled to the deceased’s farm lessened the force of that evidence, especially as this evidence was only put forward as corroborative of Musamali’s statement, and not as substantive evidence. Consequently, it would be unsafe to regard the voice identification as free from the possibility of error.

The sum total of the evidence against Choge raised very strong suspicion but was insufficient to prove his guilt beyond reasonable doubt.

Appeals by Choge and Maiyo allowed. Appeal of Musamali dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Abdala bin Wendo v R (1953) 20 EACA 166

Aueriko and another v Uganda [1972] EA 193

Anupchand Shah and another v Republic (1985) 2 KAR 27

Anyumba s/o Omolo v R (1953) 20 EACA 218

Davis v Edinburgh Magistrates (1953) SC 34

George Karanja Mwangi and others v Republic (1984) 1 KAR 567

Gopa s/o Gidamebanya and others v R (1953) 20 EACA 318

Karaya s/o Njonji and others v R (1953) 20 EACA 324

Kingoro wa Cakuha v R (1946) 13 EACA 98

Kinyori s/o Karuditu v R (1956) 23 EACA 480

Magayi and others v Uganda [1965] EA 667

Migezo Mibinga v Uganda [1965] EA 71

Okale v Republic [1965] EA 555

Paul Nakwabe Ekai v Republic (1981) 2 KAR 1

Pius Jasanga s/o Akumu v R (1954) 21 EACA 331

R v Bakari s/o Abdulla (1949) 16 EACA 84

R v Eligu s/o Odel (1943) 10 EACA 90

R v Gilani (1945) 12 EACA 87

R v Mitilande (1940) 7 EACA 46

R v Tomu s/o Ngulombe (1942) 10 EACA 54

R v Wanjerwa (1944) 11 EACA 93

Roria v Republic [1967] EA 583

Rosemary Njeri v Republic criminal appeal number 27 of 1977

Shantilal Maneklal Ruwalla v R [1957] EA 570

Simeon Mbelle v Republic (1984) 1 KAR 578

Mungai and others v Republic [1965] 1 EA 782

Ssentale v Uganda [1968] EA 365

Vincent Munyi Boni Karukenya and others v Republic (1984) 1 KAR 540

Wilson Kinyua and another v Republic criminal appeal number 70 of 1979

United Kingdom

Mahon v Osborne [1939] 1 All ER 535

R v Bedingfield (1879) 14 Cox CC 341

R v Birch (1924) 18 CAR 26

R v Golder (1961) 45 CAR 5

R v Harris (1927) 20 CAR 144

R v Moloney [1983] 1 All ER 1025

R v Perry [1909] 2 KB 697

R v Steane [1947] 1 KB 997

R v Turnbull [1976] 3 All ER 549

R v White (1922) 17 CAR 60

R v Woodcock [1787] 1 Leach 500

Ratten v R [1971] 3 All ER 801; [1972] AC 378

Swami v King-Emperor [1939] 1 All ER 397

Teper v R [1952] AC 480

Judgment

Hancox, Nyarangi JJA and Platt AJA: On the morning of 30 March 1982, the deceased Michael Kiptanui Tenai, who had two farms in the district, left Murkuywo Farm, near Moi's Bridge in the Kitale area, driving his red Mazda pick-up KUC 475. After giving instructions to his driver, Francis Okumu, he made various calls during the day and was seen by witnesses in Kitale, Matunda and Moi's Bridge. He returned to Moi's Bridge at about 7:00pm, made two calls there and left at about 8:00pm in the Mazda, driving along the Cherangani Road to his home. This vehicle was one of four oncoming vehicles seen by the ploughing contractor, Solomon Kipyator Seuree, near the Moiben Bridge as he was on his way home from Karara to Kilimo farm at about 8:15pm that evening.

The red Mazda was next seen in the ditch alongside the Cherangani Road by Michael Bett Siror and his passenger Julius Mutai as they passed shortly afterwards. At first they decided to stop their car, but then thought better of it. Julius Mutai saw two men leaning on the red car. Both these witnesses mentioned that they saw an oncoming white Peugeot 404 station wagon about 200 meters further on.

Meanwhile Okumu had travelled to Kakamega in another of the deceased's vehicles, a white Chevrolet pick-up, KSD 087. He also returned to Moi's Bridge at 8:00pm and left it at 8:20pm, taking the same road. As Okumu reached the turning to Pembeni Farm, which is about 3½ miles from Moi's Bridge and belongs to the first appellant, who was the deceased's next door neighbour, he saw the red Mazda in the ditch on the left side of the road. He reversed to see what had happened and was then shot in his left hand, his neck and again in the left eye. It is probable that there were two shots and not three. He heard someone saying in Swahili "push him aside" and "remove the key".

After the assailants had left, Okumu managed to crawl to Murkuywo Farm where he met the deceased's wife and his workmen. They had already heard gunshots and had sent a milk lorry to report to Moi's Bridge Police Station. When Okumu arrived the wife sent another report to Cherangani Police Station.

The Moi's Bridge police were the first to arrive. Both the deceased's vehicles were facing Cherangani, the red Mazda in the ditch and the white Chevrolet at an angle on the road. There were some maize seed bags and a robe on the Mazda. At this stage the deceased called from the nearby bushes, asking if they were police. He was found by them some 20 paces away, with a stomach injury and in great pain. He was taken to Kitale District Hospital and admitted there at around 11:00pm with bleeding wounds in the right lumbar area and the left upper abdomen. There were indications of damage to internal organs. Dr Witte testified at the preliminary inquiry that he had told the patient his chances of survival "were not very good". Tenai nevertheless asked the doctor to help him, in effect to do what he could for him. This formed the basis of the submissions of Mr Etyang on behalf of the Republic that the statements made by the deceased that evening were admissible as those which are compendiously called "dying declarations" under section 33(*a*) of the Evidence Act (Chapter 80).

The deceased underwent an operation and blood transfusion that night (Dr Witte said he was given as much as 16 pints of blood), but his condition remained serious and he was airlifted to Nairobi Hospital by the flying doctor services the following day. A further operation was carried out there, but he died on 7 April as a result of his injuries, and specifically because of respiratory failure and a shattered kidney due to a bullet wound. Francis Okumu was taken by the Cherangani Police from the deceased's farm, also to Kitale District Hospital, and admitted the same night. He had a serious injury to his left eye and a small swelling on his left arm, which, on incision on 13 April, was found to be caused by a 7.65 mm bullet which had lodged there. No bullet was found in the deceased's body, in which there was both an entry and an exit wound.

The three appellants were arrested on the present charge respectively on 13 April 1982, 14 May 1982 and 19 May 1982. They were charged before the examining Magistrate with two others, Peter Baraza, in respect of whom a *nolle prosequi* was entered, and Samuel Macharia Mbugwa, who was acquitted after trial by the High Court. They were each convicted of murder and sentenced to death. Each now appeals to this Court against his conviction and sentence.

The prosecution case as presented against the three appellants at their trial was that, prior to 30 March 1982, there was an agreement between a group of people which included Charles Musosi, two Nandi tribesmen, the second appellant, and Samuel Macharia Mbugwa, formerly the fourth accused, to arrest a certain old man, who was Tenai, and to take him to the house of another old man, who was Simon Kiptum arap Choge, the first appellant. This was said to be at the instance of the first appellant, a former assistant minister in the Government, and a Member of Parliament until 1979, when he lost his seat, who would pay them KShs 36 000 for carrying out that which was described as "the work". If the prosecution case was accepted there could be no question but that Charles and the second appellant were to be armed with guns when they went to arrest Tenai.

On the evening of 30 March, at a place called Kitale House, the group hired the vehicle of Peter Baraza for KShs 130 to take them to Moi's Bridge. At Moi's Bridge it was arranged that they would proceed to Cherangani Road, which runs through Pembeni Farm, throw two bags of maize seed on the road and then waylay and arrest the old man, meaning Tenai, who would be in a red Mazda which was seen to be leaving Moi's Bridge at about that time.

They then proceeded in Baraza's vehicle and in a yellow Mazda, which appears to have joined them at Moi's Bridge, and which some of the group entered, along Cherangani Road, following the red Mazda, until they came upon Tenai picking a bag of maize seeds from the road and the red Mazda, which was by then stationary. This was the man to be arrested. Tenai, who was a big man (of very strong physique according to SSP arap Tuwei who had known him since 1979), proved stronger and more difficult to subdue than was expected and the efforts of three of the gang to tie him with rope were unsuccessful.

According to the first written statement of the second appellant made on 16 May 1982, one of the two Nandis, whom he described as the brown Nandi tribesman, (and who, in his second written statement of 19 May, he named as the third appellant) told him to "shoot". He had already cocked his gun ready

for firing as he was afraid of the two Nandis. In this statements, which was repudiated at the trial, the second appellant continues:

> "Therefore when I was told to shoot I fired one shot in the air. At that time the two Nandi tribesmen and that man whom we were required to arrest stood up. That man started to run away and the brown Nandi tribesman kept on pressing me to shoot the man. Therefore I aimed at his foot but before I aimed properly and through bad luck my finger pressed the trigger and only one bullet came out. The man was hit by the bullet and fell down."

Later on in this statement he described how, when the Chevrolet vehicle came along, he hid himself under the red Mazda, and was again ordered by the Nandi tribesman to shoot the driver. He shot him "as he was trying to come out". He then fired a second shot at him.

Thus, as Mr *Kapila*, appearing for the first appellant, Choge, on this appeal, said, in addressing the Court on ground 2 of his memorandum of appeal, the statement was to that extent exculpatory, inasmuch as in that passage the second appellant was claiming that the shooting of the deceased was unintentional. Therefore, Mr *Kapila* said, whatever might be the position as regards the second appellant in relation to that statement's admissibility or value, it could not even achieve the weak status of evidence which section 32 of the Evidence Act (Chapter 80) would give it because it did not amount to a confession under subsection (2) of that section, which he contrasted with the definition in section 25.

While some of them were still trying to subdue Tenai, the Chevrolet pick-up driven by Francis Okumu arrived and stopped, with the result we have already stated. Shortly before or shortly after the attack on Tenai a party of men in a vehicle invaded Tenai's home, where his wife and other employees were, and fired three shots, one of them damaging the water tank, but since none of these men or the vehicle was identified in this portion of the evidence it did not carry the case any further, save that a cartridge of the same calibre as the others was found at the gate three days later.

After the shooting of Tenai the assailants made off. There was a suggestion in the various statements that the two vehicles met on the way back to Kitale and that KShs 6 000 was paid to Charles, with the promise that the remaining KShs 30 000 would be paid at Choge's house. Some money in excess of the agreed fare was offered to the taxi-driver, Baraza, but it was refused.

The case against the first appellant, Choge, consisted of the following:

(i) That which we may at this stage and for convenience refer to as dying declarations made by Tenai after the police arrived at the scene of the crime and subsequently in hospital.

(ii) Evidence by Wilson Birech (PW14) of a meeting between Choge and others at the Kitale Hotel, on the morning of the fatal day, at which Choge said words to the effect that Tenai and his friend (or hanger-on), Birech, would perish. On that occasion Choge was said to be wearing a raincoat, dark glasses and a green polo necked sweater. A green polo necked sweater, exhibit 39, was recovered from the house of Choge by the police on 1 April 1982, and identified in Court as belonging to her husband by Mrs Sarah Choge (DW1).

(iii) Francis Okumu's evidence that he recognised the voice which said "*sukuma kando*" ("push him aside"), "*toa kifunguo*" ("remove the key") and then "*kwisha*" ("finished") as that of Choge. He said he was familiar with Choge's voice whom he had spoken with and whose voice he had heard at rallies.

(iv) The unsworn and subsequently repudiated police statement of Peter Baraza, a former accused person, on 21 May 1982, that Choge was the man who joined the two Nandi tribesmen after they had stopped and alighted at Moi's Bridge before proceeding along Cherangani Road. He saw Choge at a distance of about 15 paces in the lights of his car which he switched on and off. Choge was wearing a coat which looked black, and he conversed with the Nandi tribesmen for about ten minutes. Baraza saw them return to the Modern Bar, from which they had come. Baraza was eventually called as a defence witness for the second appellant. A great deal of his testimony comprises an account of long periods of ill-treatment of him by the police, but he expressly said that he was not beaten for the purpose of procuring this statement. Mr Musyoka Annan, on behalf of the third appellant, reminded us that Peter Baraza had testified to the Court that he was reporting a traffic incident that had occurred at 8:00pm at Kitale Police Station. No oral or documentary evidence was called to support this.

(v) The recorded, but unsworn, police statements of John Wanzila Musamali, the second appellant, which stated respectively that according to Charles (meaning Charles Musosi) Choge was their paymaster, at whose house they would receive the remaining KShs 30 000 for "the work", on the following day, and that there was a well-built man, bald at the front and wearing a green sweater, whom he saw talking to the two Nandis at Moi's Bridge, and who came out of the bushes at the scene of the shooting. In the second oral statement to CI Kuria on 14 May the second appellant named Choge as being present when Tenai was shot.

The alleged dying declarations of the deceased were, first, that as he was about to enter the police Land Rover, which had arrived at the scene, he paused, pointed at Choge's farm and said to PC Makhoka and Kahiga, "*tumeuwawa na hii gasia*", the literal meaning of which is "we have been killed by this rubbish". Secondly, according to the deceased's driver, Wilson Tarus, as they were crossing the fence in order to get to the police vehicle the deceased said to him:

> "When I came from Moi's Bridge I found a maize seed bag on the way; I stopped and put the maize bag into the vehicle; then I drove ahead a bit and found another maize seed bag; whilst I was trying to get the maize bag and put it onto the vehicle people sprang on me; the man who sprang on me was the son of Nahashon the one who brought the vehicle from Exakta; they were seven in all; we struggled until I overpowered them. Whilst I was still struggling with them another vehicle came from Moi's Bridge direction; as that vehicle arrived they left me and shot at me."

The son of Nahashon to whom he referred was Samuel Macharia s/o Nahashon Mbugwa, the former fourth accused, whom the Judge acquitted. He had purchased the Toyota pick-up vehicle KLP 647, depicted in the photographs exhibits 43P and Q from Ramnik Shah (PW13) a spare parts dealer, who ran the Exakta agency in Kitale, on 13 March 1982. He was seen with it by Julius Kirwa (PW24) (who also saw him at the Modern Bar at Moi's Bridge on the fatal evening) during the three days prior to the shooting. This was the

vehicle which was stopped on the morning after the crime by Cpl Mukwana as it was coming from Moi's Bridge past the scene and the driver, who was the fourth accused, was the first suspect to be arrested. It was also one of the four oncoming vehicles seen by the farming contractor, Solomon Kipyator Seuree (PW17), at the Moiben Bridge on the Cherangani Road to pass him at about 8:15pm on the night of the shooting; the others being KSD 430, KUC 475 (the deceased's Mazda) and KSG 271.

This declaration did not, of course, name the first appellant, but its importance was, as Mr *Kapila* stressed during his submissions on his behalf in this appeal, that, having been made very shortly after the shooting, it would reasonably be expected that Tenai would have mentioned Choge in it, had he been at the scene. Yet according to Mr *Kapila*, the Judge, in that which may be compendiously described as an inconsistent verdict, and one made solely in deference to the opinions of the assessors, convicted Choge and acquitted Samuel Macharia, against whom there was a stronger case.

The third declaration, assuming it may be so called, was made to Senior Superintendent Waiter arap Tuwei, when he saw Tenai in the Kitale Hospital at about midnight on the night of the shooting, the English translation of which is as follows:

> "Arap Tuwei, I have been killed by arap Nahashon who bought a vehicle recently from an Asian in Kitale."

Also at the Hospital Tenai made a declaration to Joel Rono (PW70) very similar in terms to the one spoken to Tarus, mentioning the son of Nahashon but not Choge. He also complained that KShs 2 000 had been taken from him by his attackers, and we note that the police who found him observed that Tenai's back pockets had been turned out. We note also that Tarus, who also accompanied the deceased to the hospital, did not refer to the declaration, about which he had testified, being repeated at the hospital, and that neither he nor Joel Rono mentioned that the deceased said "*tumeuwawa na hii gasia*" to the police officers as he was being assisted away from the scene. Moreover, on the way to Kitale in the police Land Rover, according to PC Rotich, the deceased volunteered that he knew who had shot him but he did not say his name. Finally, on the day following the shooting the deceased said to his sister, Mary Chebotale (PW21) that he had been shot by an enemy whom he did not know. All these factors were relied on by Mr *Kapila* as showing that which he claimed was the inherent unreliability of the only declaration which named Choge, apart altogether from the question of its legal admissibility and evidential weight at the trial.

We now turn to summarise the case against the second appellant. Apart from the police statements, on the morning after the shooting of Tenai, Corporal Mukwana and PC Wainaina found one expended cartridge and one live bullet (which was subsequently fired by the ballistics expert) (exhibits 67 and 68 at the trial) on the road opposite the red Mazda and the white Chevrolet, at the respective positions shown in photographs A and B of exhibit 43, and on the plan (exhibit 112). Close to these they saw some broken glass (the right window of KSD 067 had been shattered) and a sandal, shown in photograph F, which does not seem to have been traced to any of the attackers. Both the items of ammunition were handed to Superintendent Kariuki of Scenes of Crime, CID Headquarters, and marked exhibit 68 at the trial. Another cartridge, exhibit 66, which was found by the deceased's eldest son early on 2 April, close to the gate

of his farm, and the live bullet head which was lodged in Francis Okumu‘s arm (exhibit 70), were also given to Mr Kariuki, on 17 April. He marked the former and wrapped the latter in wire gauze. All this ammunition was of 7.65 mm calibre.

In the early part of May 1982 five robberies took place in the Kitale area. Of these, as Mr *Kibuthu* rightly said in his submissions before us on behalf of the second appellant, only two were supported by the evidence of the persons robbed, namely one committed on the night of 6 May at the home of John Kimeto Nyikei (PW32) at Chebalungu Farm, and another on the night of 9 May at the dwelling of Esther Ngulabi Abwochi at the Makutano scheme. The admission of the evidence relating to these two robberies was strenuously resisted by the defence at the trial, and vehemently attacked during the appeal, on the grounds that it related to evidence of crimes in which the second appellant was said to have been involved, other than those charged. It was thus claimed that it was inherently inadmissible as being gravely prejudicial without there being any foundation for its admission, for example as showing a state of mind or an alleged system under sections 14 and 15 of the Evidence Act, or otherwise.

John Kimeto said he knew the second appellant well and had met him at the Gakumo Hotel in Kitale on 3 May while he was purchasing spares in Kitale, and that they had tea together. There was a discussion about whether he should buy a vehicle at an auction sale. During the robbery on 6 May, which was carried out by six people, Kimeto said he recognised the second appellant, who took a leading part and who threatened to kill him with the gun which he had if he did not produce KShs 20 000. He was beaten with a flexible rod (exhibit 73) and a simi (exhibit 74), and his left little finger was broken. The Judge, however, did not accept Kimeto’s identification of the second appellant, but he did not reject the rest of his evidence. Two gunshots had been fired as the robbers approached the house. Many items were taken. Similarly, during the robbery of 9 May some shots were fired and there were demands for money, though no identification was made. Esther purported to identify the gun as exhibit 7.

Two empty cartridges were found outside the window of John Kimeto’s house by IP Mbogo on 7 May, and two in the house of Esther, and one just outside her kitchen door by IP Mbogo and CI Kuria on 10 May. All these cartridges, which comprised exhibits 77 and 79, were likewise of 7.65 mm calibre and were handed over to Superintendent Kariuki for transmission to the ballistics expert.

Three items were purportedly identified by Kimeto as having been used by the gang in the course of the robbery, namely a three-cell torch which he gave them, the flexible rod with which he was beaten, and the simi, produced as exhibits 72, 73 and 74. These items were said to have been discovered by the police when they were led by this appellant to the place where the Skorpion pistol was found five days later, on 14 May. Finally, as regards this portion of the case, a watch belonging to Esther Ngulabi was found in a box inside the house in which the appellant was arrested, also on 14 May. Much was made by Mr Kabuthu on behalf of the second appellant during the appeal regarding the discrepancy in the dates as to when this watch was found, and when it was identified by its owner, and of other discrepancies which, he submitted, cast

doubt on the credibility of all the police officers who testified as to the search of the second appellant's house and the discovery of the gun and led to the inevitable inference that some, if not all, of these items were planted on him by the police.

Early on 14 May 1982, a party of 14 police officers under CI Kuria (PW52), and including IP Mbogo (PW42), PC Corporal Matolo (PW36) and PC Kinyoti (PW56), raided a house in Shimo-la-Tewa village near Kitale. They found the second appellant and his wife sleeping there. On searching a box inside the house the police found keys which on being tested by IP Mbogo were found to fit Tenai's vehicles and padlocks in his house. Dinah Tenai swore that these keys had been in the possession of the deceased. CI Kuria also found the watch belonging to Esther Ngulabi.

The second appellant was arrested and taken to Kitale police station. There, in the course of interrogation, he revealed to the police that he had a gun. This verbal statement was challenged and admitted after a trial within a trial. The appellant then led the police party in a vehicle across a river and to a forest near Shimo-la-Tewa Village. There, in what appears to have been a hollow beneath a large tree, at the appellant's direction, PC Kinyoti dug in the soft soil with his hands and recovered that which he said was a two-cell torch (nevertheless identified as exhibit 72) and a simi in a sheath. Upon the appellant's instructions to dig further he found the Skorpion pistol, exhibit 71, with a magazine of six rounds of 7.65 mm ammunitions (exhibit 76) and one round of 7.65 mm ammunition in the gun chamber. The gun was cocked and ready to fire. Nearby the flexible metal rod (exhibit 73) was found. There was, which would appear to have been unseemly rejoicing and singing by the police at the discovery of the weapon which was in due course collected by the ballistics expert, Senior Superintendent Ndunguga (PW33), who flew to Kitale for that purpose on 15 May. He identified it as of 7.65 mm calibre. After carrying out tests and firing five rounds of the ammunition in the magazine from the Skorpion pistol he formed the opinion that the cartridges found by the police near the two vehicles on 31 March, that found at Tenai's gate on 2 April, the bullet found in Francis Okumu's arm, the two cartridge cases found outside John Kimeto's house, and the three found in Esther Ngulabi's house were all fired from the Skorpion pistol. He based his opinion on microscopic examination of the ejection markings on the spent cartridges and the rifling striations on the bullet extracted from Francis Okumu's arm.

The evidence of the ballistics expert as to his conclusions does not appear to have been seriously challenged in cross-examination. Thus the prosecution established the link between the Skorpion pistol, which is of Czechoslovakian manufacture, on the one hand, and the spent cartridges found at the scene of the shooting, at Tenai's gate, and at the houses of the two robbery victims of 6 and 9 May, and the live bullet taken from Francis Okumu's arm, on the other. It follows that if the evidence of the police officers as to the finding of the Skorpion pistol on 14 May, is, contrary to the submissions of Mr *Kibuthu* – who demonstrated by close analysis that there were several inconsistencies therein – to be accepted, there existed a strong circumstantial case against the second appellant without the necessity of resorting to his three recorded statements tendered in evidence by the prosecution.

Apart from the verbal statement, which was the first intimation to the police that the second appellant knew the location of the Skorpion pistol, which the Judge thought was admissible as real evidence under section 31 of the Evidence Act, without the necessity for a trial within a trial (although one was in fact held), this appellant made one other oral statement in the forest on 14 May as to the identities of the other suspects, two recorded enquiry statements under caution on 16 and 19 May 1982 (exhibits 104 and 105) and one charge and caution statement on 22 May (exhibit 107). All of them were inculpatory and all were challenged, with the result that no less than five trials within trials were held during the hearing of this case with respect to statements allegedly made by the second appellant. Medical evidence, put forward as consistent with his allegations of ill treatment, was called by the defence during the trial within a trial to determine the admissibility of the second oral statement, but on none of the other occasions when the assessors were absent. The two medical witnesses, Dr Gathua and Dr Patel were, however, called on behalf of the defence in the main trial. This procedure was strongly criticised by Mr *Kibuthu* because he said his client had been deprived not only of having evidence in his favour considered by the Judge as each issue of a statement's admissibility arose, but also because the separate allegations by the defence in relation to each statement could not thereby be considered by the assessors. Indeed, we note that it was at the behest of the Magistrate conducting the preliminary inquiry in this case that the second and third appellants were examined by doctors Patel and Gathua: that on 22 May 1982 by Dr Njenga having revealed no evidence of any injuries on the second appellant, nor any complaints thereof. The remaining material against him was Peter Baraza's statement to the police of 21 May to which we shall shortly refer.

We now come to the case against the third appellant. This consisted almost entirely of statements incriminating him made by the second appellant and by Peter Baraza, inasmuch as the name of the third appellant appears from the context of these statements to have been suggested to their respective makers by the Assistant Commissioner of Police, Mr Okoko (and he did not shrink from admitting this in his evidence), who had recorded the two enquiry statements from the second appellant and the one from Peter Baraza. In addition, Birech said that two of the people with Choge in the Kitale Hotel on the morning of 30 March "resembled" the third appellant and the fourth accused. Finally, there was the evidence of the bus tickets found in his pockets on being searched after his arrest on 19 May which suggested that this appellant had travelled between Eldoret and Moi's Bridge on the fatal day. The third appellant made an exculpatory statement under caution to Mr Okoko on 25 May 1982 (exhibit 106), stating where he had been on 30 March and denying any knowledge of the circumstances of the death of Tenai.

According to the first appellant, Choge, his relationship with Tenai since he had moved to the area and purchased Pembeni Farm in 1973 had been good throughout. Tenai was a nominated Councillor of the Trans Nzoia County Council. Choge disagreed with the deceased's wife, Dinah, that there had been a series of disputes between them, some involving the police, starting with incidents in 1981 when Choge was said to have ordered someone to cut down Tenai's trees, and when Choge himself fell into that which was described as "a river of hyenas", for which he alleged the deceased was responsible. Choge said this was the product of his political enemies inciting her to tell lies against him

to the Court. Birech did not agree as to the origin of the ill feeling. He said it began after Choge lost his parliamentary seat at the 1979 elections and that Choge had blamed it on Tenai, who was allegedly responsible for his losing his friendship with the Vice President.

On the fatal day Choge testified that he went to Kitale in the morning and confirmed that he was at Kitale Hotel, his normal place for refreshment, at about 11:00am. At no time did Birech join him, nor was he there with any of his co-accused. In the evening he had left the Kitale Hotel at almost the same time as Mr Muliro (who was offered to the defence for cross-examinations (PW66)), to whom he had lent his driver. This was between 6:30pm and 7:15pm. Mr Muliro put the time he left at 7:30pm. He drove to Pembeni Farm via Moi's Bridge, had some milk and retired to bed. Under cross-examination he said he had arrived at his house by 7:25pm. He did not see any vehicle at the side of the road, nor did he hear any shots that night. He only learned of the shooting of Tenai the following day, and was angry with the police for not calling for his assistance. He was interviewed briefly by IP Mbogo on 31 March, and arrested for the first time at 1:00am on that which would appear to have been 11 April. He was released some three days later, re-arrested about 11 April, and finally on 13 April. He suggested that Birech had lied because he was jealous of his, Choge's, farm and large income. He also said that the second appellant had implicated him falsely because of propaganda and that he had colluded with the police to fabricate a story.

Sara Choge corroborated her husband's story. She said that they had normal relations with Tenai and, indeed, had allowed Tenai to use their milk cooling facilities. On 30 March Choge returned to their farm at around 7:30pm, having left it that morning. He was now wearing the green polo-necked sweater, a raincoat, or the gumboots subsequently taken possession of by the police. He drank some milk and went to bed. He did not go out that evening. Thus an alibi was raised, and in this connection Mr *Kapila* submitted that it was inherently improbable that Choge would go to the scene of the intended abduction of Tenai if the case for prosecution was that he had paid others to do it. Surely, Mr *Kapila* said, Choge would remain at a safe distance. He also submitted that Mrs Choge gave very impressive evidence despite being subjected to a long and searching cross-examination.

The second appellant made his defence unsworn. He gave an account of how he left the Trans-Nzoia District on 27 March to go to Bumala in Busia. From there he went to Mukaya's village because his wife had delivered a child. He remained at Mukaya until 2 March when he went to Soroti in Uganda to take photographs of a wedding there. There was evidence from Peter Baraza, his first defence witness, that the second appellant's occupation was as a photographer at Mr Elgon Studio. The second appellant said he returned to Mukaya via Mbale, on 30 March arriving at between 8:00pm and 9:00pm and slept at his brother-in-law's house. He stayed for a funeral ceremony and did not leave Mukaya until 2 April, returning to Kitale on 4 April. He agreed that he had been with John Kimeto on 3 May in the course of which the purchase of a vehicle was discussed, but denied any involvement in the shooting of Tenai, or in the robbery at John Kimeto's house. Thus, he also put forward on alibi, but his brother-in-law Alfred Mulani, when called as a defence witness, denied that he had seen the second appellant at all during 1982.

The second appellant denied that Tenai's keys or Esther's watch were found in his house when he was arrested on 14 May. After being taken to the Police Station on that day, he gave an account of prolonged ill treatment and beatings by the police, in particular by IP Mbogo, CI Kuria and PC Kinyoti, and of being repeatedly asked "where is the gun". He said he knew nothing about any gun. He was taken blindfolded to a forest at Kitale and eventually to that which he described as the forest of section 6 at Kitale. PC Kinyoti dug under a tree and unearthed a paper bag in which were two guns. After further questioning and ill treatment throughout the next ten days during which time he acknowledged an association with Peter Baraza but denied any with the first or the third appellants, and was forced to thumbprint some papers, he was eventually taken before the Kitale Court on 24 May. Further interrogation ensued and he was examined by Dr Patel and Dr Gathua on 31 May. They gave evidence on his behalf regarding the injuries they observed. The second appellant maintained, therefore, that all the incriminating exhibits, including the gun, the torch and the watch had been planted on him by the police. The rest of the evidence on this appellant's behalf was given at the trial by Peter Baraza, whom Mr *Musyoka-Annan* (who appeared in the appeal for the third appellant only) suggested must have possessed some strength of character, inasmuch as knowing he had given an incriminating statement, and that another witness had been prosecuted for perjury for going back on his statement, he nevertheless came forward to testify for the second appellant. It followed that it was highly unlikely that Peter Baraza would have told lies on his behalf.

Peter Baraza was the subject of considerable controversy in this appeal. The prosecution did not call him as a witness, nor were they obliged to do so. As a former accused person it was probably more appropriate that the defence should call him as their witness. In his evidence at the trial Peter Baraza said that he was at the Rock Hotel Night Club in Kitale, where he did a flourishing business with a taxi, a cream coloured Peugeot 404, KLE 928, on 30 March. He was in the club from 6pm to 8pm. At 8pm a young man called him out to report that another vehicle had reversed into his taxi, hence the report to the Police Station, to which we have already referred at 8:30pm. It was suggested that this report was recorded in the Occurrence Book, which none of the parties sought to produce. Thus Peter Baraza neatly accounted for his movements during which Tenai was shot.

Baraza denied that he knew any of the accused persons, save for the second appellant whom he had known as a photographer in Kitale since 1981. He did not go to Pembeni Farm on 30 March or anywhere near the scene of the crime. Thus he totally repudiated his statement of 21 May, and adopted the denial in his charge and caution statement of 22 May. As regards the former he claimed that some papers were waved at him by the police, and that there were 17 signatures on the statement which were similar to his but which were not his. This was the statement which was put forward as part of the case against each of the three appellants and the first ground in each of the three memoranda of appeal and the arguments thereon were devoted to attacking the learned Judge's reliance on it. Mr *Etyang*, however, submitted that the Judge did not treat the statement as substantive evidence. He said that it was entitled to consideration by the Judge and the assessors and to be weighed with his evidence in Court and the statement of the second appellant. Mr *Etyang* invited us to look again at the authorities to which Mr *Kapila* had referred us in addressing us on this aspect of the case.

The statement in question was produced as an exhibit during Peter Baraza's examination in chief. His account of how his taxi was hired to take the gang to Moi's Bridge for KShs 130 to some extent matches the first written statement of the second appellant, and he confirmed that he had refused the excess money offered to him. The two Nandi tribesmen feature prominently in this statement, and, as we have said, he said he saw Choge with them at Moi's Bridge before the shooting.

Mr *Kapila*'s submissions as regards Peter Baraza's statement may be stated shortly. As a recorded police statement, not made on oath, not subject to the test of cross-examination, exhibit 122 could not take the place of sworn testimony. It could only be used for the limited purpose of contradicting the witness under section 163(1)(*c*) of the Evidence Act, and thus impeaching his credit. Mr *Kapila* compared Baraza with a hostile witness and cited portions of Archbold's *Criminal Pleading, Evidence and Practice* (4ed) at paragraphs 521 and 521a, on this question. Naturally, Baraza could not have been a hostile witness because that term only applies when the witness is hostile, in the sense of adverse, to the party calling him. Nevertheless, we think that the authorities he cited are relevant to the issue raised here**.** The report in *R v White* (1922) 17 CAR 60, shows that it is one thing to say that, in view of an earlier statement, the witness is not to be trusted, but quite another to say that the earlier statement, which he now repudiates, is to be substituted for his testimony in Court. In *R v Harris* (1927) 20 CAR 144, the principal prosecution witness in a prosecution for incest denied at the trial that her father had committed the act alleged. The Lord Chief Justice said:

> "If, therefore, it appears that he had formerly said or written the contrary of that which he has sworn (unless the reason of his having done so is satisfactorily accounted for), his evidence should not have much weight with a jury, and if he has formerly sworn the contrary, the fact (although no objection to his competency: Teal, 11 East, 309: 1809), is almost conclusive against his credibility; in other words, it was permissible to cross-examine this girl upon the assertions she had previously made, not for the purpose of substituting those unsworn assertions for her sworn testimony, but for the purpose of showing that her sworn testimony, in the light of those unsworn assertions, could not be regarded as being of importance."

The emphasis is ours.

The cases of *R v Birch* (1924) 18 CAR 26, and *R v Golder* (1961) 45 CAR 5 are to the like effect. Even stronger is the East African case of *R v Gilani* (1945) 12 EACA 87 where the Court of Appeal said:

> "It cannot be too strongly emphasised that no previous statement, whether by way of deposition or otherwise, can under any circumstances become substantive evidence at the trial. For the Court to say: 'I do not believe the evidence given by the witness at the trial but believe his previous statement and convict the accused on that' is to contravene the most vital and elementary rules of evidence. As Scrutton LJ, so pertinently put it in *Hobbs v Tinling* [1929] 2 KB 21: 'the defendants would, however, be entitled to cross-examine on such facts to prove that the witness was not a credible person and to employ that proof of unreliability to the evidence he had given in chief. But by destroying evidence you do not prove its opposite. If by cross-examination to credit you prove that a man's oath cannot be relied on, and he had sworn he did not got to Rome on 1 May, you do not, therefore, prove that he did go to Rome on 1 May, there is simply no evidence on the subject'."

Mr *Etyang*, however, sought to persuade us that the question very much depended on the reason why a witness went back on his previous statement

which was material in deciding what weight should be given to it. In *R v Harris* for instance, it is suggested that the position as to the former statement might be different where the reason for the witness having retracted it is satisfactorily accounted for.

Harris's case does indeed refer to the reason for retraction, but in the context of the degree of credibility to be accorded to the witness's testimony in court, and not for the purpose of elevating the former statement to the status of sworn testimony. Further, in *R v Golder* it was said that if the hostile witness says he was threatened the Judge may direct the jury that they could act on the subsequent testimony, but that would only affect the previously repudiated statement if the witness admits in court that that which he previously said was the truth. It is not the position here, for Baraza consistently maintained in court that he had not made the statement of 21 May. It is true, as Mr *Etyang* emphasised, that in the statement Baraza said that if he revealed what had happened his whole family would be "finished". Consequently, Mr *Etyang* argued in effect that the conditions for the admissibility of Peter Baraza's statement were satisfied and that it could be taken into consideration.

We are unable to agree. It would be a most dangerous extension of the law of evidence if an unsworn statement could be treated as equivalent in any sense to sworn testimony. Neither can we agree that the learned Judge did not so regard it, for in his summing-up he said at one stage to the assessors:

> "There is the evidence of Baraza that two Nandi tribesmen entered the car and joined the group that was at Kitale Lions Club bus stop. This seems to tally with the A2's statement on the matter. The A2 said lights of KUC 475 were on and Baraza's statement says much the same thing."

He refers to the evidence of Peter Baraza in this way more than once, and shortly before this passage he had told them:

> "Learned Senior State Counsel drew your attention to a portion of the statement of Baraza. He submitted that there was in the statement a plausible fact as to why Baraza should seek to alter his position. He was referring to the fact that in the statement Baraza said that after the events that we are trying in this court he was warned by the A3 that if he disclosed anything he and his family would be finished; and you will of course remember that Baraza gave us a full analysis of his family, that is, his wife, children, father, mother and his brothers. In the light of this evidence you may feel that perhaps you want to decide that the statement of Baraza is in fact true."

These, and previous passages to which we need not refer in detail, may well have misled the assessors into thinking that the statement of 21 May could be substituted for Baraza's sworn testimony and contained the truth, which, as we have shown, is quite contrary to the authorities and the principle. Having done this the Judge then misdirected himself in his judgment as follows:

> "In the light of all the evidence I believe that Baraza's statement is true and that it is his sworn evidence in this court which is untrue in some material particulars. I am mindful that the evidential value of Baraza's statement is watered down by his repudiating or retracting it (see *Archbold* (4ed) 1979 paragraph 521a) but having put it against the rest of the evidence I find it consistent with it."

When Mr *Musyoka-Annan* came to address us on this issue he submitted that the reliance which the Judge thereby showed he had placed on Baraza's statement had the effect of totally vitiating the trial as against his client. In adopting this course, Mr *Musyoka-Annan* said, the Judge had taken his cue from the learned Principal State Counsel, to whose submissions he drew our attention.

We observe, however, as we did during Mr *Musyoka-Annan*'s argument, that at no time did he, as counsel for the first and third appellants during the trial, register any objection to this course.

The third appellant told the Court that Choge had previously given him a piece of land at Kaptumo to work on, with the proviso that he should report "anything bad" happening to the sugar cane which was on the land. He would receive occasional remuneration from Choge, but his normal occupation was as a '*fundi*" and a farmer. On 30 March 1982, the third appellant left home at 8:00am so as to build a house for one arap Kosut. He worked until midday and was back at home by 2:00pm. He did not go anywhere after that and denied any knowledge of the shooting, as he did in both his inquiry and charge and caution statements to the police made on 25 May. He also denied knowing Peter Baraza. The inquiry statement was very similar to that which he said to the Court.

The rest of his unsworn statement in court was an account of his arrest at Eldoret Police Station on 19 May, to which he had gone for a different purpose, and of his being taken to Kitale Police Station. There he was taken to the office of Mr Okoko, who was asking the second appellant if he knew "this person", referring to the third appellant. The second appellant denied knowing him. Soon after he was blindfolded and taken in the back of a vehicle to where there were some tall trees. He was undressed and beaten on the soles of his feet by the police in an attempt to get him to admit that he was at Choge's home on 30 March. The same process was repeated the next day but failed to elicit any such admission from the third appellant. He told the Magistrate of this in court, and at the resulting medical examination showed the doctor the soles of his feet, and that one of his toenails had come out due to a beating with a hippo whip.

This appellant was also examined on 31 May by doctors Patel and Gathua. Each, when testifying for the second appellant, said they observed a bruise on this appellant's left big toe, two linear bruises, on the left sole of his foot and one on the right, and an irregular circular bruise on the lateral aspect of his left leg. The injuries were not less than one week old, and were consistent with this appellant's allegations of beating. As Mr *Musyoka-Annan* said, none of these findings were rejected by the Judge. He fully associated himself with Mr *Kibuthu*'s submissions, on behalf of the second appellant, in respect of whom there were medical findings on this aspect of the case, and we think it appropriate, while dealing with it, to refer to a passage in *Aneriko and another v Uganda* [1972] EA 193 at 194, to which Mr *Musyoka-Annan* drew our attention, in which this Court's predecessor stated:

> "At trials within trials, both appellants denied that they had made the charge and caution statements attributed to them. They claimed that they had been beaten and forced to impress their thumbprints on papers that had already been prepared. Some support for these claims is to be found in medical evidence. Both appellants were found by a doctor to have injuries that were between one and three days old, when they had both been in custody appreciably longer than that. The judge rejected the evidence of the appellants as to their having been beaten while in prison, and it is quite possible that it was exaggerated. We think, however, that he lost sight of the fact that the burden of proof that the statements were voluntary was on the prosecution and that evidence that the appellants had been subjected to some violence while in custody made the discharge of that burden very much more difficult."

Another matter to which Mr *Musyoka-Annan* drew our attention was that the second appellant's statement of 10 May, with which we will deal in further detail at a later stage, did not name the third appellant, either as one of the two Nandi tribesmen or otherwise. Indeed Mr Okoko said he had asked the second appellant to give him the names of these men, but he had not given them. Mr Okoko did not even known the name of the third appellant until IP Ndegwa (who had arrested him outside the Police Station in Eldoret) brought the third appellant to him in Kitale at about 2:00pm on 19 May. He recorded the second appellant's second written statement at 5:25pm on the day, and it must have been then that Mr Okoko informed him of the name of the third appellant. It was only after that that the second appellant referred to the third appellant in his charge and caution statements (of 22 May), and even then there were some questions that contain passages which appeared in the English translation of that statement and did not appear in the original. We therefore doubt, even assuming the statements of the second appellant did have any substantial value as against the third appellant under section 32(1) of the Evidence Act, that it could be said that those statements "affected" the third appellant, inasmuch as the name was put into the mouth of the second appellant and not given of his own volition. These remarks, of course, apply with equal force to the oral statement in the forest of 14 May purporting to implicate the third appellant, because it is clear from the context of the two written enquiry statements that the second appellant did not know Kipkirong's name at that time, but merely knew him as the brown Nandi tribesman. Moreover, it was misdirection on the facts for the Judge to say in his judgment:

> "Finally A2 says that he identified A3 at Kitale Police Station and A3 in his unsworn statement in Court confirms this."

For the third appellant categorically said that the second appellant denied knowing him, when confronted with him at Kitale Police Station on 19 May.

Similarly, there was, Mr *Musyoka-Annan* said, a question mark about Birech's evidence, affecting his client (quite apart from the lack of a positive identification in the Hotel) because he indicated that he had never seen either of them before, yet he had mentioned Kipkirong Maiyo's name in his police statement of 5 April. Since Birech did not see the third appellant again until 24 May in the dock at the Kitale court, that was the earliest date on which he could have known his name. And why, Mr *Musyoka-Annan* asked, should the fourth accused be relegated to the description "A3 and others" by the Judge in his judgment when it was perfectly clear from Birech's evidence that both this appellant and the fourth accused had occupied the same status in Birech's mind as regards their respective identifications. How was that consistent with the conviction of the third appellant and the acquittal of the fourth accused?

Having set out the events leading up to the shooting of Tenai and immediately thereafter, and having summarised the prosecution case against each of the three appellants, their respective defences thereto and the submissions on this appeal, we proceed to examine in more detail the appeals of each of them against their convictions.

As regards the appellant Choge, Mr *Kapila* was able to point to a number of misdirections by the learned Judge, both to himself and to the assessors, in dealing with the police statements of Peter Baraza and of the second appellant. These formed the subject of the first and second grounds of the first appellant's supplementary memorandum of appeal (which replaced the original joint memorandum of appeal) and we find it convenient to deal with them first.

It is important to see Peter Baraza's statement, with which we have already dealt in outline, in its true perspective. It could, as we have said, be put to him for the purpose, and only for the purpose, of impeaching his credit under section 163(1)(*c*) of the Evidence Act. The fact that Peter Baraza was formerly an accused person does not give the statement the limited admissibility which section 32(1) of the Evidence Act provides, for that section must be strictly construed, as is made clear in the commentary to its forerunner, section 30 of the Indian Evidence Act (Sarkar's *Law of Evidence* (10ed) at 292 and 293, so that for it to be admissible the accused person must be tried jointly with the confessing criminal. By no stretch of the imagination could Peter Baraza be described as "a person being tried jointly" with the other appellants "for the same offence" as that section requires. Mr *Etyang* made a valiant attempt to support the admission of the statement, if not as evidence, then at least for the purpose of weighing it with the other evidence in the case, in particular the statements of the second appellant, and because it puts both Baraza and the second appellant at the scene of the shooting. This would serve to distinguish it from the situation in, for instance, *White*'s case (*supra*), in which there was no evidence other than that of Gilbert to connect the prisoner with the crime. Moreover, there was no suggestion that the statement was obtained as a result of beating or torture of any kind, for Peter Baraza himself said:

> "I was not beaten, not mishandled, not abused – no attempt was made to make me sign these statements"

and

> "I was not beaten for the purpose of recording a statement and I denied everything they asked me."

There is all the difference, Mr *Etyang* said, between a statement repudiated or retracted because it was obtained, or the signatures to it were obtained, by threats or force used, so that the statement does not represent the truth, and one which does represent the truth, because it is shown circumstantially to coincide with other evidence, including real evidence, and which is repudiated because it is the truth, but that the truth cannot be told because of threats by those implicated to destroy the maker's family. Apart from this, Mr *Etyang* said, the statement only gives an account of transporting the gang to the scene and of seeing Choge at Moi's Bridge in a black coat, and does not show that Baraza played a central role in the shooting. These are attractive submissions, but, we are satisfied, insufficient to render Peter Baraza's statement admissible under any of the provisions in the Evidence Act to which we were referred. Furthermore, while it is true to say that Peter Baraza reiterated in relation to the repudiated statement of 21 May that he was not beaten in any way for the purpose of obtaining it, there can be no doubt that he made similar allegations as the appellants did, that he was physically assaulted and injured while in police custody. He was not examined by Dr Njenga, but it is equally undeniable that Dr Patel found on Peter Baraza injuries consistent with his having been beaten on his examination on 31 May, as the P3 clearly shows.

Before the police statements made, or allegedly made, by the second appellant can in any way be taken into consideration against the first appellant, they must be shown to be admissible under section 26 of the Evidence Act, and the burden of establishing their voluntariness rests throughout on the prosecution (see *R v Mitilande* [1940] 7 EACA 46; *Aneriko and another v Uganda* (*supra*)). We shall deal with this aspect at a later stage.

The learned Judge, meticulously, held a trial within a trial to determine the admissibility of each statement. As we have observed, he was not so meticulous regarding the necessity of calling medical evidence on all those trials within trials. The position, however, is not as serious as in the case of *Vincent Munyi Boni Karukenya and others v Republic* (1984) 1 KAR 540, when the learned Judge had not only used the evidence of the doctor called during one accused's trial within a trial to determine the admissibility of statements made separately by two other accused persons, but had also failed to ensure that the doctor's evidence was repeated in front of the assessors, in direct contravention of the rule laid down in *Kinyori s/o Karuditu v R* (1956) 23 EACA 480 at 482. Moreover, he had proceeded to read to the assessors all that which had taken place during their absence, instead of letting them hear the evidence for themselves. In *George Karanja Mwangi and others v Republic* (1984) 1 KAR 567, medical evidence of the utmost materiality was not given at all during the trial within a trial to determine the admissibility of the third appellant's statement. In *Anupchand Shah and another v Republic* (1983) 2 KAR 27, we had the extraordinary spectacle of the assessors remaining in court during a trial within a trial at the request of defence counsel. Neither was the Judge so meticulous in dealing with the presence of police officers during the first medical examination of the second appellant by Dr Njenga, which would obviously inhibit him as regarding any injuries which he might wish to draw to the medical officer's attention. This is the subject of the clear authority of this Court in *Anupchand Shah v Republic* 2 KAR 27 at 39-40 and in *Paul Nakwale Ekai v Republic* (1981) 2 KAR 1.

If, and only if, the statement in question is admitted as against the maker does the question of its being taken into consideration against another accused person arise. The ensuring part of this judgment which deals with the relevance of Musamali's statements to the case against Choge is therefore subject to that which we shall say at a later stage when considering their admissibility as against Musamali.

As Mr *Kapila* stated, the first requirement under section 32 is that the statement in question must amount to a confession, the definition of which, in subsection (2*)* of that section, is narrower than in section 25, for the purpose of section 26. He made it clear that he was assuming that the second appellant's police statements were properly admitted for the purpose of his argument, though this was, of course, without prejudice to the submissions of Mr *Kibuthu*, on grounds 2 and 3 of his client's memorandum of appeal, that they were not. Subsection (2) of section 32 states:

> "(2) In this section 'confession' means any words or conduct, or combination of words and conduct, which has the effect of admitting in terms either an offence or substantially all the facts which constitute an offence."

"Offence" includes the abetment of, or an attempt to commit the offence.

Mr *Kapila* took us through the statement of 16 May 1982, with particular reference to the passage we quoted earlier in this judgment, in an attempt to show that the second appellant was not confessing to the offence of murder. He criticised the Judge's description of the statements as confessions, but in this respect we consider the criticism was unjustified. It is perfectly clear from the statement of the 16 May, to which the other two were ancillary, that the second appellant, when he was approached by Charles Musosi, agreed to take part in the plot to arrest the old man as proposed by Charles. He was specifically told that two guns would be necessary to complete "the work". Why did

he agree to take part in the plot? It was because, as he says in his statement of 22 May: "I agreed because of money (KShs 30 000) which I was given" and in the first statement he states that he accepted KShs 1 600 from Charles on the way back to Kitale. Moreover, the second appellant had a gun which he was in the process of selling, but with which, at the outset of the journey from Kitale House at 7:30pm on 30 March, he had armed himself. So of his own volition he went along with the rest of the group knowing (if the statement is to be believed) that firearms would be necessary to accomplish the purpose envisaged, which, even if not murder at its inception, was clearly an unlawful purpose. While three of the others were trying to subdue Tenai (who had been indicated as the person to be arrested) he used that gun, on his own showing, aiming at a part of the deceased – even if it was only at his foot – but hitting him in the abdomen. He then fired twice more when Francis Okumu arrived.

With all respect to Mr *Kapila*, and accepting the narrower definition of confession in section 32(2) as the test, it is difficult to see how the second appellant could have confessed (assuming the statement was admissible and not given under duress) more completely than in that statement, to the offence of murder, bearing in mind the definitions of malice aforethought in section 206 of the Penal Code. Similar considerations apply to the statements of 19 and 22 May which augment that of 16 May. We have examined those statements in detail and we cannot see that they are in any degree exculpatory. If the second appellant was intending to put forward a defence of non-intention, as Mr *Kapila* claimed, then he did not do it successfully, for to aim a loaded weapon, and, as he admitted, one which was cocked and ready for firing (as it was when it was found on 14 May), at a person whom he and the other members of the group were, at the very least, intending to assault and confine, and to overcome his resistance thereto, must in our view amount to a confession of the offence of murder if death resulted, as it did, from the shooting.

There is all the difference between the circumstances as related here by the second appellant (always subject to the admissibility of his statement) and those, for instance in the recent case of *R v Moloney* [1983] 1 All ER 1025 in which the appellant, whilst intoxicated, fired a gun at and killed his stepfather, and in which his defence was "I did not aim the gun at him . . . It was just a lark". In such a case it would be very likely that a defence of non-intention would succeed, as the House of Lords held it did. They also held that in a crime of specific intent, that intent must be proved and they adopted Lord Goddard's statement to that effect in *R v Steane* [1947] 1 KB 997 at 1004. In the instant case the intent would be amply established by the deliberate aiming of the gun at Tenai in the course of the attack on him.

To this extent we agree with Mr *Etyang*'s submissions and there is no need for us to deal in any depth with his submissions on this point. He referred to *Gopa s/o Gidamebanya and others v R* (1953) 20 EACA 318, in which a similar submission was made on behalf of certain of the appellants who had made extra-judicial statements to a Magistrate which were sought to be used against other appellants. The Court of Appeal for Eastern Africa followed the well-known Indian case of *Swami v King-Emperor* [1939] 1 All ER 397 and cited Lord Atkin's definition of a confession at 405 of the report, the first part of which stated:

> "No statement that contains self-exculpatory matter can amount to a confession if the exculpatory statement is of some fact which, if true, would negative the offence

> alleged to be confessed. Moreover, a confession must admit in terms either the offence, or, at any rate, substantially all the facts which constitute the offence. An admission of a gravely incriminating fact, even a conclusively incriminating fact is not of itself a confession – for example, an admission that the accused is the owner of, and was in recent possession of, the knife or revolver which caused a death with no explanation of any other man's possession."

They also cited a valuable passage from the American case of *State v Guie* as to the distinction between an admission and a confession, and continued:

> "Thus, although a statement may contain self-exculpatory matter it can still be a confession if the self-exculpatory matter does not negative the offence alleged to be confessed."

These authorities were, of course, decided under the Indian Evidence Act which was in force in Kenya until 10 December 1963, in which there was no corresponding definition of a confession, so that the statutory definitions in the Kenya Evidence Act have supplanted the previous law on the subject. Nevertheless we apprehend that, as the definition in subsection (2) is taken almost verbatim from the extract from *Swami v King-Emperor* which we have quoted, the principles that were set out in relation to confessions in *Gopa v R* (*supra*) are still applicable. Therefore, in the instant case, the fact that the second appellant said that before he could aim properly his finger pressed the trigger "by bad luck", even if intended to be exculpatory, would not, for the reasons we have already stated, negative the offence alleged. Mr *Etyang* also cited a passage from the case of *Magayi and others v Uganda* [1965] EA 667. However, that was a decision on common intent and it was held that the fact that the appellants were acting under orders which were obviously unlawful could not have the effect of relieving them from criminal responsibility. We consider therefore that, as it were, the precondition to the taking into account of the statements as against other accused persons was satisfied.

Mr *Kapila* also commented on the manner of recording the statements, inasmuch as the cautions, and in one instance, the charge and caution were in English, whereas the actual statements were taken in Swahili, and their translations put in evidence, suggesting that a printed form was used, with the inference that cautions were not administered. It may be that the police do adopt a common form for the purpose of taking statements, but the officers concerned in the taking of these statements, Mr Okoko and Inspector Munyole, testified that the cautions were administered in each instance, and we see no ground for believing otherwise.

Having reached the conclusion that the statements of the second appellant did amount to confessions, we then have to decide the extent to which, if they are admissible at all, those statements could be taken into account against the first and third appellants. We took the opportunity to state the position in law regarding such material quite recently in the *Karukenya* case (*supra*), where we set out the following passages from the decisions in *Anyuma s/o Omolo v R* (1953) 20 EACA 218 and *Karaya s/o Njonji and others v R* (1953) 20 EACA 324. The first one is (1 KAR 540 at 549):

> "But section 30 (of the Indian Evidence Act which corresponds now to section 32(1) of the Evidence Act (Chapter 80) merely says that a confession by a co-accused may be 'taken into consideration' as against the accused and the substantive question in each case is what weight can properly be given to it. As was said in the case cited above – 'a confession by a prisoner A which involves the guilt of prisoner B is of itself, unsupported by other testimony, evidence of the weakest possible kind against B'. It is of course accomplice evidence which needs corroboration and this need is the

> greater when the maker of the statement has sought to retract it, for as the Court said in *Yasin v King-Emperor* (1901) ALR 28 Cal 689:
>
> 'It is obvious that a retracted confession should carry practically no weight as against a person other than the maker; it is not made on oath, it is not tested by cross-examination, and its truth is denied by the maker himself, who had thus lied on one or more occasions. The very fullest corroboration would be necessary in such a case, far more than would demanded for the sworn testimony of an accomplice on oath.'
>
> It is perhaps scarcely necessary to point out that an extra-judicial confession by one co-accused be corroborated by the similar confession of another accused."

In the second case the Court said (1 KAR 540 at 549):

> "As regards the statements, the mistake the learned Judge made was in the use he made of section 30 of the Indian Evidence Act. Every commentary which has ever been written on this much discussed section has emphasised the need for care and restraint in the application of the section. The reason is obvious for the section does reflect a deviation from the English law of evidence, in that it allows, under certain circumstances, a statement by one accused, not taken in the presence of the other accused or tested by cross-examination to be taken into consideration against that other accused person.
>
> The section has presented much difficulty in India over the years, and we are well aware that there are conflicting decisions. We are quite satisfied, however, from our study of the Indian cases that it is incorrect to regard a confession made by one accused in an extra-judicial statement as a basis for a case against a co-accused, and to hold that with some corroboration it is safe to convict. On the contrary what is needed is independent evidence from a trustworthy source, which, when linked and supported by the confession of the co-accused, removes beyond any reasonable doubt the question of innocence."

We reiterate that those passages represent the correct principles in the application of the section.

Mr *Kapila* also referred us to a passage at 293 of the *Commentary* by Sarkar in *The Law of Evidence* (10 ed) in relation to section 30 of the Indian Evidence Act (the forerunner of our section 32), which we have already mentioned and which shows that the section was also looked on with general disfavour in India. More recently in *Wilson Kinyua and another v Republic* criminal appeal number 70 of 1979 (which also followed *Anyuma s/o Omolo v Republic* (*supra*)) Madan JA, in delivering the judgment of the Court said:

> "Under section 32(1) of the Evidence Act the evidential value of a confession by an accused person is that it can only be used as lending assurance to other evidence against the co-accused, evidence which narrowly falls short of the standard of proof for a conviction. It cannot be used as the basis of the prosecution case. *Gopa s/o Gidamebanya and others* (1953) 20 EACA 318; *Muthigo Muigai and others* (1954) 21 EACA 267."

Another authority cited to us, *Gopa s/o Gidamebanya* (*supra*) was also quoted with approval in *Kinyua*'s case.

The learned Judge in the instant case cited several of the cases we have just mentioned and in his judgment directed himself as follows:

> "It has also been held that the only way in which an accused's confession can be taken into consideration against a co-accused is as evidence, and that it would be difficult to conceive of a case in which it would be proper to convict on the unsupported evidence afforded by the confession of a co-accused; regarding the corroborative evidence it has been held that it is not necessary that such evidence should itself be sufficient to support a conviction (*R v Wadingombe bin Mkwanda and another* (1941) 8 EACA 33).

> Regarding the evidential value of a confession the Court of Appeal in (*Wilson Kinyua and another v Republic* criminal application number 70 of 1979 – Nyeri) has recently stated that a confession can only be used as lending value to other evidence against a co-accused; it cannot be used as the basis of the prosecution case – *Gopa s/o Gidamebanya and others v R* (1953) 20 EACA 318) and *Muthigo Mwigai and others v R* (1954) 21 EACA 267) followed."

We have no quarrel with that direction, as it stands. But Mr *Kapila*'s complaint was that the learned Judge had made a synthesis of the statement of Peter Baraza on the one hand and of the statements of the second appellant on the other. The former was wholly inadmissible as against any of the appellants while the latter were only admissible against them for the limited purpose we have stated. We think there is justification in this complaint, for in his judgment the Judge closely analyses each statement, matching each phrase as it occurs, the one with the other. For example he says:

> "A2 says that Charles came to him at that stage in a Peugeot 404 station wagon and that A2 then got into the vehicle followed by two Nandi tribesmen; Baraza's statement agrees with this as it says that at the bus stage when A2 got in two Nandi tribesmen also got in and on his inquiring about it was told by Charles to go on as he would be added money as for passengers."
>
> "Then there is A2's statement that the gang used Peter Baraza's Peugeot 404 station wagon white to go to Moi's Bridge; Peter Baraza in his evidence has stated that he owns such a car and used it as stated; and PW11, PW20 and PW24 all saw a white Peugeot 404 station wagon car around the scene of the shooting of the deceased near the deceased's car KUC 475; that car had slowed down after passing KUC 475 at Al's gate. Again Peter Baraza in his statement which I believe to be true despite his repudiation of it states that he ferried the gangsters to the scene of the shooting."

(This is almost a repetition of a similar passage in the summing-up). Next he says:

> "A2 says that he knew Baraza and his vehicle and Baraza in his statement says he knew A2 as 'John' and in his evidence in court says he knew A2 since 1981."

Again:

> "A2 says that the lights of KUC 475 were on when the gangsters found it stopped on the road; Baraza's statement agrees."

And:

> A2 says that during the attack on the deceased Baraza turned the vehicle and drove back towards Moi's Bridge direction to hide the vehicle but did not go very far; PW11 says that he saw a vehicle approach him slowly switching its lights off and on and Baraza in his statement says he turned round and drove up to the junction of the road at Moiben River bridge and stopped."

Finally the Judge said:

> "A2 says he was given some money but that Baraza refused the money he was offered; Baraza in his statement says much the same thing."

A similar pattern was followed in his direction to the assessors. For example, at one stage the Judge said:

> "Gentlemen assessors that is the statement of Baraza you heard Baraza give evidence in court and that you consider his evidence when I come to it: you will want to look at it against that evidence. You may also like to put both statements against the dying declaration allegedly made by the deceased and then you would also wish to put those statements against the circumstantial evidence appearing on this case. My next order will be the law, but before I go to the law I will want to deal with the evidence of the defence."

Baraza's statement is also matched with the other evidence with the phrases "tie-in" and "fit in" being used. This led to Mr *Kapila*'s conclusion that the misdirection in relation to Peter Baraza's statement were so inextricably interwoven with his directions concerning the admissible evidence that it was impossible to separate, or even distinguish, the misdirections from the rest, with the result that his client's appeal should succeed on ground 1 alone. Finally we have the extraordinary passage indicating that because the supposed threat by the third appellant involved Baraza's family, this provided corroboration "of the fact that (Baraza) has a family". We consider that this phrase is not only a non-sequitor, but indicates that the learned Judge was prepared to treat trivial details as providing corroboration for that which was inadmissible and therefore incapable of being corroborated.

We have already referred to Mr *Etyang*'s submissions regarding Peter Baraza's statement in this appeal. In his address to the trial Judge and the assessors Mr *Etyang* invited the Court to take Peter Baraza's statement of 21 May into consideration and told them that it was consistent with the statement of the second appellant. Indeed, it was he who suggested to the Court that the details which Peter Baraza gave of his family provided corroboration of his retracted statement. The fact that he was inviting the Court to treat the retracted statement as representing the truth is evident from the following extracts from his submissions:

> "And A2 was brought there by Peter Baraza – see his evidence; his statement is not a confession, from the contents of the statement it is clear Baraza dissociated himself from the offence; Baraza recorded two statements and made sworn evidence. The charge and caution statement; he said he had worked since 2:00pm but in court he said he had worked from 6:00pm. When asked which version was correct he said what he told the inspector. The witness in effect admitted he was telling lies to the Court. At page 384 he says he made a report at Kitale Police Station at 7:45pm compared to page 380 line 16 where he says he arrived at the station at 8:30pm. I asked the Court to reject the statement made to PW54."
>
> "Why would Baraza change his statement? The statement provided the answer he was warned that if he disclosed what happened he and his family would be wiped out. Baraza has a family at risk of being wiped out – page 379 – he gives details of his entire family. I submit that the reason why Peter Baraza has retracted or repudiated his statement is because of the threat by A3 to wipe out his (Baraza's) family if he should disclose what happened. The fact that in his sworn evidence Baraza has given details of his entire family corroborates in my view his retracted statement in one material particular. The statement taken alongside all the other evidence may be taken into consideration by the Court – the effect is that both A2 and Peter Baraza went at the scene. So we now know how A2 went to the scene."
>
> "The witness Baraza also approached with lights of his car. Baraza confirms the lights of the KUC 475 were on. Baraza could not have been driving without his lights on."

In the last passage Mr Etyang appears to us to be submitting to the Court that the retracted statement of Peter Baraza regarding the lights of KUC 475 being on at the material time was an accurate statement of fact. It would thus seem that the errors of the High Court in this respect are at least in part due to the prosecution putting forward as true that which was an obviously inadmissible statement. Moreover, it is impossible to estimate the degree of influence this had on the assessors, in the absence of clear warning by the Judge to the assessors (which there should have been) that they should totally disregard Peter Baraza's first police statement.

We have already dealt with that statement twice in this judgment, while we were considering its effect *simpliciter*. We now have to deal with it in view of Mr *Kapila*'s submissions that the damage was done in this case because that statement was used not only on its own, but in conjunction with the evidence, for the purpose of matching and confirming, or being confirmed by, other statements and evidence.

We are bound to say that the passages in the summing-up and in the judgment in relation to Peter Baraza's statement of 21 May to which we have referred, and those which we have not set out but to which Mt *Kapila* referred us, are misdirections. Their effect will have to be decided by us in the course of the rest of this judgment. Mr *Kapila* cited a passage in the third edition of *Halsbury's Laws of England*, Volume 10, at paragraph 987 regarding the effect *of* a misdirection in law. The corresponding passage in the fourth edition Volume 11 at paragraph 651 is to the like effect, and we set it out:

> "In order to avail an appellant, a wrong decision of the Court of trial on a question of law must be in a matter of substance. If it relates to the wrongful admission or exclusion of evidence the Court of Appeal will consider the probable effect on the minds of the jury of that evidence."
>
> If misdirections as to the law applicable is established, the appeal will be allowed, unless it can be shown by the prosecution that the jury must have convicted had there been a proper direction."

Archbold's *Criminal Pleading, Evidence and Practice* (4 ed) at paragraph 417 is to the same effect.

Thus if there is misdirection on the law the conviction will be quashed unless the prosecution (on whom the burden lies) satisfies the appeal court that the jury (in this case the assessors and the Judge) would necessarily have convicted had there not been the misdirection. More opposite to the present case is this passage occurring at paragraph 652 of Volume 11 of the fourth edition:

> "A material irregularity may arise in the course of a trial where there has been misdirection or an erroneous decision by the Judge on a matter relating to the evidence."

The learned authors go on to state:

> "It is not every irregularity that is a ground for quashing the conviction, but only one which goes to the root of the case."

Mr *Kapila* referred us to a further passage from *Archbold* at paragraph 1423, where it is stated that the conviction is liable to be quashed if the Judge erroneously points to a part of the evidence as being corroborative when it is not. Mr *Kapila*, of course, and the other counsel appearing before us, adopted his submissions in relation to Peter Baraza, submitted that the misdirections regarding Peter Baraza, whether his statement was viewed alone or in conjunction with other evidence or statements covering the same ground, were fatal to the whole case against the first appellant. Mr *Etyang* in effect invited us to say that, even if we disagreed with his argument, no failure of justice had occurred and we should apply the curative provisions of section 382 of the Criminal Procedure Code, remembering that the proviso thereto provides that in determining this question the Court shall have regard to whether the objection "could and should have been raised at an earlier stage of the proceedings". In our opinion it was the duty of each counsel for the defence at the trial to have taken vigorous objection to the use of Peter Baraza's statement at all, whether for corroboration or otherwise, and in particular to have objected to Mr *Etyang*'s

submissions on the point, so that the damaging material was not let in front of the assessors. In our view the first ground of the second appellant's memorandum of appeal drafted by Mr *Kibuthu*, who did not appear for him at the trial, states very aptly the error that was committed in the High Court, and, for convenience, we set it out here:

> "The learned Judge erred in law in relying on the statements of Peter Baraza the first defence witness of the appellant as evidence against the appellant either by way of corroboration or otherwise."

Reverting to the second appellant's statements, it is again clear from the summing-up that, despite the correct direction to which we have recently referred, the Judge did direct the assessors that these statements amounted to evidence against the first appellant, for he said:

> "It is clear that this section (section 32(1)) permits the use of confessions by one accused as evidence on other accused."

There follow passages in the summing-up to the effect that various portions of the second appellant's statements are "corroborated" by other pieces of evidence. These are more glaring in the judgment and we give the following instances:

> "A2 says that he saw a person resembling Al and wearing a polo neck sweater similar to that he had seen Al wearing at Moi's Bridge emerge from the bush at the scene of the deceased's shooting; this seems to be corroborated by PW11's evidence that he heard the voice of Al at the scene.
>
> A2 talks of having seen Al at Moi's Bridge wearing a polo neck sweater which seemed to be greenish; PW14 had testified that he saw Al at Kitale Hotel at 11:00am wearing a sweater which he identified as exhibit 39; and exhibit 39 has been admitted as belonging to Al.
>
> I appreciate that Al in his defence painted himself as an extremely wealthy man and said that if he wanted one million shillings he would get it from the bank; however the evidence of A2 is that the shooting of the deceased was a KShs 36 000 job and on the previous day Al had arranged for and been paid KShs 38 100 – see PW35 A1 and DW1 for Al."

The Judge ended this portion of his judgment with the following words:

> "In the circumstances it is clear that A2's confessions are corroborated in all material particulars by independent evidence of the circumstantial evidence."

Immediately following this there occurred the passage to which Mr *Kapila* took great exception in his final address, and we set this out also:

> "I have considered the alleged untruths but I do not find them so material as to necessitate the rejection of a confession in view of the overwhelmingly material aspects in which they are corroborated by the rest of the evidence as I have demonstrated herein above."

It certainly does seem from that unfortunate passage that the learned Judge is reversing the onus as to the admissibility of these statements, as Mr *Kapila* claimed.

We did not understand that Mr *Etyang*, in this Court at any rate, dissented from the principles which are to be applied regarding the degree of weight retracted statements are to be given against a co-accused person under section 32(1). Whether he did so or not, we are satisfied that in the passages which we have just set out the learned Judge adopted a fundamentally wrong approach in treating pieces of evidence as providing corroboration of the second appellant's statements as against another accused person. This is contrary to authority, as is

shown by the following further passage from Gopa's case at 322, which we now set out:

> "Returning now to the submission by the appellant's counsel that the learned trial misdirected the confession as the basis of evidence against a co-accused and thus looking for corroboration, we are abundantly satisfied from the authorities cited above that that approach is the wrong one and that a confession can only be used as lending assurance to other evidence against the co-accused evidence which only falls short by a very narrow margin of the standard of proof necessary for a conviction. Our attention has been drawn to *Rex v Wadingombe Bin Mkwanda and others* (1941) 8 EACA 33, in which section 30 of the Indian Evidence Act was considered and on which it does seem that the wrong approach was made in that the Court looked for evidence corroborating a confession which implicated a co-accused. We note, however, in that case that the appellants were unrepresented and so the point was probably not fully argued."

It might be thought that the penultimate passage which we have just quoted from the judgment was intended to refer only to corroboration of the second appellant's retracted confession *per se*, but in its context it does appear that the Judge is considering those confessions as against the other appellants, for he continued:

> "I hold that the confessions of A2 are true after analysing them as above and putting them against the defences which the accused and each of them have put up. Accused defence is a mere denial coupled with an allegation of fabrication of the case against him by the prosecution witnesses and A2's and A3's defence are those of alibi."

The emphasis is ours.

Having taken the submissions by both sides on the aspect of Peter Baraza's and the second appellant's statements as far as we can at this stage, we now turn to ground 3 of the first appellant's memorandum of appeal, which relates to the dying declarations. Only one of them need concern us as regards the first appellant because all the others implicated the son of Nahashon, who was the fourth accused person before the High Court.

Mr *Kapila* dwelt on this aspect of the case at some length when arguing ground 6 of the first appellant's memorandum of appeal. He maintained that it was perfectly clear from the pattern of the submissions and of the summing-up that the prosecution were pressing for a finding of guilty in respect of the fourth accused, and that it was only when the assessors unexpectedly found him not guilty that the Judge was forced to rationalise that opinion in his judgment. In other words, he performed a somersault, as one of our members commented during the hearing of the appeal.

The relevance of Mr *Kapila*'s submissions on ground 6 in relation to the dying declaration was of course that by his acquittal of the fourth accused the Judge rejected, or must be taken to have rejected, the more positive statements of the deceased implicating the fourth accused as unreliable, and yet he accepted the remark "*tumeuwawa na gasia hii*" while he was pointing at Choge's farm, as part of the evidence satisfying him of the first appellant's guilt beyond reasonable doubt.

Mr *Etyang* submitted that the fourth accused was acquitted, and acquitted wrongly, not because the Judge did not believe the evidence of the dying declarations which named the fourth accused, whom he found was "circumstantially placed to be one of the attackers", but because he was unable to accept that there was sufficient further material to support the dying declarations,

despite the evidence regarding the maize bags. The Republic had not appealed against the finding, so as to obtain a declaratory judgment under section 379(5) of the Civil Procedure Code, as it had not been certified that the point involved was of such exceptional public importance as to justify the Attorney-General's certificate.

The prosecution tendered the evidence of the dying declarations, including the one "*tumeuwawa na gasia hii*" under paragraph (*a*) of section 33 of the Evidence Act, which produced section 32(1) of the former Indian Evidence Act. Mr *Kapila* said it was a misnomer to characterise it as a dying declaration. Both he and Mr *Etyang* referred to us passages in the commentary in Sarkar on that subsection. It will suffice to quote three passages from the commentary, starting with the principle of English law extracted from the judgment of Eyre CB, in *R v Woodcock* [1787] 1 Leach 500 at 504 as approved in *R v Perry* [1909] 2 KB 697 at 701:

> "The general principle on which this species of evidence is admitted is that they are declarations made in extremity, when the party is at the point of death, and when every hope of this world is gone, when every motive to falsehood is silenced, and the mind induced by the most powerful considerations to speak the truth; a situation so solemn and so awful is considered by the law as creating an obligation equal to that which is imposed by a positive oath administered in a court of justice."

Secondly, the distinction between English and Indian law, and therefore Kenyan law, as regards the reception of dying declarations is well stated as follows:

> "Under the English law, it is essential to the admissibility of dying declarations, first, that the declarant should have been in actual danger of death at the time when they were made; secondly, that he should have had a full apprehension of his danger; and lastly, that death should have ensued. These three things must be proved to the satisfaction of the Judge, before a dying declaration can be received."

These restrictions do not appear in section 32. It is not required that the maker should be in expectation of imminent death, nor is it restricted to cases of homicide only. It is admissible also in civil cases.

Thus under the Act:

> "(1) A dying declaration is relevant whether the person who made it was or was not, at the time it was made under expectation of death, that is, it is immaterial whether there existed any expectation of death at the time of the declaration."

Thirdly, the principle governing the weight to be given to such statements is set out in this passage:

> "It is submitted that although the Act has made a great departure from the English law in regard to the conditions of admissibility of dying declarations, the greatest caution must be exercised in considering the weight to be given to this species of evidence on account of the existence of many circumstances which may affect their truth and the principles of English law should be adhered to as far as possible. Nothing short of a settled, hopeless expectation of imminent death in the mind of the declarant would induce an English Judge to admit such evidence. Even a sense of impending death does not always rouse the same feelings in every one and there may be persons who cannot get rid of the passions of anger or revenge even in the moment of death. Thus in *R v Crockett* 4C and P544, the dying declaration was 'that damned man has poisoned me'. If such are feelings of a person when he is at the moment of death, how unreliable may be the statement of one who is not expecting death. It should also be borne in mind that such statement is not on oath, neither can there be any cross-examination. Moreover the statement is generally made at a time when exhaustion and strong physical pain deaden all feelings and confuse the declarant's intellectual powers."

This opinion of the learned authors receives support from the following portion of the judgment of the Court of Appeal for Eastern Africa in *Pius Jasanga s/o Akumu v R* (1954) 21 EACA 331 at 333:

> "In Kenya the admissibility of a dying declaration does not depend, as it does in England, upon the declarant having at the time, a settled, hopeless expectation of imminent death, so that the awful, solemnity of his situation may be considered as creating an obligation equivalent to that imposed by the taking of an oath.
>
> In Kenya (as in India) the admissibility of statements by persons who have died as to the cause of death depends merely upon section 32 of the Indian Evidence Act. It has been said by this court that the weight to be attached to dying declarations in this country must, consequently, be less than that attached to them in England, and that the exercise of caution in the reception of such statements is even more necessary in this country than in England. (*R v Mayovya bin Msuma* (1939) 6 EACA 128. See also *R v Premananda*, (1925) 52 Cal 987).
>
> The question of the caution to be exercised in the reception of dying declarations and the necessity for their corroboration has been considered by this court in numerous cases, and a passage from *Field on Evidence* (7 ed) has repeatedly been cited with approval:
>
> 'The caution with which this kind of testimony should be received has often been commented upon. The test of cross-examination may be wholly wanting; and . . . the particulars of the violence may have occurred under circumstances of confusion and surprise calculated to prevent their being accurately observed . . . The deceased may have stated his inferences from facts concerning which he may have omitted important particulars, from not having attention called to them. (*Ramazani bin Mirandu* (1934) 1 EACA 107; *R v Okulu s/o Eloku* (1938) 5 EACA 39; *R v Muyovya bin Msuma* (*supra*)).'
>
> Particular caution must be exercised when an attack takes place in darkness when identification of the assailant is, usually, more difficult than in daylight (*R v Ramazani bin Mirandu* (*supra*); *R v Muyovya bin Msuma* (*supra*)). The fact that the deceased told different persons that the appellant was the assailant is evidence of the consistency of his belief that such was the case: it is not guarantee for accuracy (*ibid*).
>
> It is not a rule of law that, in order to support a conviction, there must be corroboration of a dying declaration (*R v Eligu s/o Odel and another* (1943) 10 EACA 9; *Re Guruswani* (1940) Mad 158), and there may be circumstances which go to show that the deceased could not have been mistaken in his identification of the accused (See, for instance, the case of the second accused in *R v Eligu s/o Odel* and *Epongu s/o Ewunyu* (1943) 10 EACA 90), but is, generally speaking, very unsafe to base a conviction solely on the dying declaration of a deceased person, made in the absence of the accused and not subject to cross-examination, unless there is satisfactory corroboration. (*R v Said Abdulla* (1945) 12 EACA 67; *R v Mgundulwa s/o Jalo and others* (1946) 13 EACA 169 at 171)."

It must also be remembered that the declaration in *Pius Akumu*'s case was made in answer to questions by a police officer, which lessened its value, and, moreover, that the deceased in that case was suffering from "a terrible wound" the effects of which might dim his memory or weaken his intellectual powers. It nevertheless follows that in the present case we must bear in mind the effect of the deceased's wound from two points of view, first, its effect on his mental powers, and secondly as to whether he was so gravely injured, as Mr *Etyang* submitted, that the statement can fairly be said to have been made when death was, if not imminent, obvious to Tenai that it would occur in the near future.

Before returning to the facts, we will consider briefly three further East African authorities to which we were referred on the subject of dying declarations.

Mr *Etyang* cited *Migezo Mibinga v Uganda* [1965] EA 71, where the decision really turned on the fact that the appellant made no reply when the deceased taxed him with having beaten him, and it was held that unless the appellant had in some way acknowledged the accusation, his silence could amount to scant, if any, corroboration thereof. As regards the probative force of a dying declaration the Court said:

> "Although there is no rule of law that to support a conviction there must be corroboration of such statements, it is generally recognised that it is very unsafe to base a conviction solely on them."

Okale v Republic [1965] EA 555 of the same volume, which was cited also in relation to other grounds of appeal, expresses the Court's view in similar terms (at 559) with a reference to the fact that the deceased was not at the time of making the declaration (which in that case was about 12 hours after the attack and 16 days before he died) in immediate expectation of death. Although the Court there said that the Judge had not approached the evidence with "that degree of circumspection which the law enjoins", it is clear that it regarded the evidence as admissible. The direction in *Okale v Republic* (*supra*) was approved by the Kenya Court of Appeal very recently in *Mbelle v Republic* (1984) 1 KAR 578.

In the much earlier case of *R v Eligu s/o Odel* (1943) 10 EACA 90, however, the appeal court gave a somewhat stronger direction when it said:

> "Here we repeat what this court said in the case of Rex v Muyovya bin Msuma 6 EACA 128 at 129:
>
> 'We are not prepared to rule that in no circumstances can a conviction proceed upon evidence consisting of a dying declaration, but on the other hand we are prepared to say that a careful direction should be given by the Judge as to the nature of such evidence and the caution with which it should be received.'
>
> He also directed himself and the assessors as to whether there was any corroboration of the deceased's statement. Corroboration is desirable, of course, though we do not say that it is always necessary to support a conviction. To say so would be to place such evidence on the same plane as accomplice evidence and that would be incorrect."

The attitude of the English courts, however, has recently changed towards such evidence as is shown by *R v Turnbull* [1984] All ER 549, which the Court of Appeal said that there was no doubt that if the same events occurred now, the dying woman's statement in *R v Bedingfield* (*infra*) would have been admitted. That case referred to *Ratten v R* [1972] AC 378 which concerned the admission or rejection of words spoken over the telephone by a woman about to be murdered.

In his submissions Mr *Kapila* said, justifiably, that apart from that one remark "*tumeuwawa na gasia hii*", the deceased repeatedly failed to tell anyone that the first appellant, Choge, was responsible for his injury, which subsequently proved fatal, but instead concentrated that which he was saying on the son of Nahashon (the fourth accused).

We have already referred to this evidence in some detail earlier in this judgment, but we repeat the uncontroverted facts, which must weaken the force of the statement by the deceased, namely that Tenai said, first, that he knew who had shot him, but did not say his name, and, secondly, to his sister, that he had been shot by an enemy whom he did not know. We agree also that while there

was a considerable body of evidence against the fourth accused, in that the Toyota vehicle he had recently purchased from the Exakta agency, KLP 647, was seen at Moi's Bridge and being driven near the scene of the shooting on the fatal evening, and he was arrested with it the next day, in addition to the dying declaration made against him, the Judge nevertheless seems to have taken fright at the assessors' opinions and proceeded to an acquittal.

It is apparent that Tenai's condition deteriorated rapidly during the remainder of the evening of 30 March, for when the police first reached him he was able to stand, though he needed to be helped to the police Land Rover. Before he entered it he made a despairing gesture towards Choge's farm as he said "*tumeuwawa na gasia hii*". When he reached the District Hospital he was in a serious condition and required treatment. It is clear from Dr Witte's deposition that Tenai must then have known that he might die. It follows, in our opinion, that the statement is admissible as a dying declaration under section 33(*a*), in view of the commentary from Sarkar which we have set out, and under the plain wording of our section in the Kenya Evidence Act, because it was a statement made by Tenai as to the circumstance which resulted in his death. But, equally, in view of the wording of the *Commentary* and of the effect of the decisions we have set out above, particularly *Akumu v R* (*supra*) the force of the declaration is further lessened by the fact that, even though the deceased expected death, it was not so imminent that the solemnity of the situation obtained at the time the words were said. It is also lessened by the fact that Tenai did not say to anyone other than the two police corporals at the scene that Choge was responsible for his death and it is noteworthy that Tarus, who was with them, did not mention it. He did not say so at the hospital to SSP Tuwei, when, admittedly, the interview was interrupted by the doctor taking Tenai to the operating theatre, but it could reasonably be supposed that if Tenai mentioned arap Nahashon to Mr Tuwei he could equally have referred to Choge. Furthermore, as we have just said there were his two later remarks to PC Rotich, and to his sister the next day, which referred to the shooting but did not name Choge.

In the circumstances of this case therefore, we consider that the declaration can only be received with caution and that the degree of weight to be attached to it can only be such that it could be added to the other evidence said to incriminate Choge. It would certainly be unsafe to base a conviction solely on it, particularly in the light of the recorded view of the assessors that the deceased had made a mistake in identifying another of the accused.

The fourth ground related to the evidence of Francis Okumu which we have already summarised. The first part of this ground avers that the shooting of Francis Okumu, during which he claimed that he recognised Choge's voice, was not part of the *res gestae* and therefore irrelevant and inadmissible. The relevant provision, section 6 of the Evidence Act, identical in terms to its predecessor states:

> "Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction are relevant whether they occurred at the same time and place or at different times and places."

Mr *Kapila*'s submissions on this part of ground 4 may be stated thus: that by the time Francis Okumu arrived on the scene the transaction during which Tenai was shot was over. The crime against him was, as it were, complete. When Okumu came past, reversed to see what was happening, and was shot for his

pains, another offence commenced. There was nothing to show that the participants in the second crime were the same as the first, and, moreover, the motivating force behind the order to shoot in the second crime was almost certainly different from the first. Consequently, the evidence of Francis Okumu as to what he heard was irrelevant to the charge in question.

An explanation of that which is conveniently, but not always accurately, included in the term "*res gestae*" is to be found in the speech of Lord Wilberforce in *Ratten v R* [1971] 3 All ER 801 at 806; [1972] AC 378 at 385 as follows:

> "The expression '*res gestae*', like many Latin phrases, is often used to cover situations insufficiently analysed in clear English terms. In the context of the law of evidence it may be used in at least three different ways.
>
> 1. When a situation of fact (eg a killing) is being considered, the question may arise when does the situation begin and when does it end. It may be arbitrary and artificial to confine the evidence to the firing of the gun or the insertion of the knife, without knowing in a broader sense, what was happening. Thus in *O'Leary v R* (1946) 73 CLR 566, evidence was admitted of assaults, prior to a killing, committed by the accused during what was said to be a continuous orgy. As Dixon J said at 577:
>
>   'Without evidence of what, during that time, was done by those men who took any significant part in the matter and especially evidence of the behaviour of the prisoner, the transaction of which the alleged murder formed an integral part could not be truly understood and, isolated from it, could only be presented as an unreal and not very intelligible event.'
>
> 2. The evidence may be concerned with spoken words as such (apart from the truth of what they convey). The words are then themselves the *res gestae* or part of the *res gestae*, ie, are the relevant facts or part of them.
>
> 3. A hearsay statement is made either by the victim of an attack or by a bystander indicating directly or indirectly the identity of the attacker. The admissibility of the statement is then said to depend on whether it was made as part of the *res gestae*. A classical instance of this is the much debated case of *R v Bedingfield* (1879) 14 Cox CC 341, and there are other instances of its application in reported cases. These tend to apply different standards, and some of them carry less than conviction. The reason, why this is so, is that concentration tends to be focused upon the opaque or at least imprecise Latin phrase rather than upon the basic reason for excluding the type of evidence which this group of cases is concerned with."

In most such cases the question of what is or what is not part of the *res gestae* arises in relation to the reception of hearsay evidence under an exception to the rule excluding it, as was the case in *Teper v R* [1952] AC 480, where the admission of a woman's voice shouting at a man leaving the scene of a fire came into question. The woman was not called as a witness and the Privy Council held that the evidence of his statement should have been excluded. In the instant case Mr *Kapila* put forward his submissions regarding the *res gestae* as supporting his contention that the incident concerning Francis Okumu was irrelevant to the charge against Choge.

In *Teper v R* (*supra*) Lord Normand said (at 487):

> "How slight a separation of time and place may suffice to make hearsay evidence of the words spoken incompetent is well illustrated by the two cases cited. In *Bedingfield*'s case a woman rushed with her throat cut out of a room in which the injury had been inflicted into another room where she said something to persons who saw her

> enter. Their evidence about what she said was ruled inadmissible by Cockburn CJ. In *O'Hara*'s case, a civil action, the event was an injury to a passenger brought about by the sudden swerve of the omnibus in which she was travelling. The driver of the omnibus said in his evidence that he was forced to swerve by a pedestrian who hurried across his path. Hearsay evidence of what was said by a man on the pavement at the scene of the accident as soon as the injured party had been attended to was held to be admissible in corroboration of the driver's evidence. But what was said 12 minutes later, and away from the scene, by the same man was held not part of the *res gestae*."

Just before, he said:

> "This, at least, may be said, that it is essential that the words sought to be proved by hearsay should be, if not absolutely contemporaneous with the action or event, at least so clearly associated with it, in time, place and circumstances, that they are part of the thing being done, and so an item of part of real evidence and not merely a reported statement."

Bearing in mind, then, that we are not immediately concerned with the question of hearsay, but with that of identification, we proceed to analyse the evidence to which Mr *Etyang* drew our attention when replying to the first part of ground 4.

The sequence of events was, in this respect at least, reasonably clear from the evidence. The shopkeeper Ambalal Patel who was not challenged on this point said that Tenai and Birech had left his shop at 8:00pm and which was when, according to Birech, it had begun to rain. Tenai gave Birech the KShs 20 for his accommodation and then entered his vehicle to drive home along the Cherangani Road. The distance to the next-door farm, which is that of Choge, from Moi's Bridge was stated to be about 3½ miles on a non-tarmac road. There was no estimation of the time which it takes to drive that distance, and doubtless a few minutes would have been taken up while Tenai removed the maize seed bags from the road.

Neither was there any real dispute that Francis Okumu left Moi's Bridge to travel along the same road at 8:20pm. There is nothing to show that his journey was interrupted and we think it is a reasonable construction to put upon the events that 20 minutes at the most separated the arrival of Tenai and of Okumu at the same place on the road. It is obvious that the attack on Tenai had not by then been completed. We think that the second attack on Okumu was part and parcel of the transaction involving Tenai which was still taking place. We therefore agree with Mr *Etyang* that the evidence of Okumu as to what befell him, and, in particular, as to what he saw and heard at that time is both relevant and admissible. His evidence as to the identification by voice of Choge was therefore properly received.

The question for us is, then, with reference to the second and third parts of ground 4 of the first appellant's memorandum of appeal, whether the evidence given by Francis Okumu, that he recognised Choge's voice during the attack on him, could safely be accepted as true, for if this question is answered affirmatively, it would be an almost inevitable inference that if Choge took part in the attack on Okumu, he was also concerned in that of Tenai.

Mr *Kapila* submitted that this was unsatisfactory evidence. At best, he said, Choge's voice was identified by only five words, and possibly less, under conditions which were difficult, as Okumu had been shot twice and had received a serious injury to his eye. In his police statement Francis Okumu only

referred to two of those words namely "toa Kifunguo" as having been uttered by Choge. However, the most telling point Mr *Kapila* made regarding Okumu's evidence in this respect was that when he managed to crawl through to Tenai's house he did not say that he had recognised Choge's voice as being at the scene. That was his first opportunity to do so. Had he said so there is very little doubt that both Dinah Tenai and the watchman Kiprono, and the deceased's relative Samuel Kipkoech Mutai, would have referred to it. The fact that he did not say so at a time when, though *in extremis*, it might reasonably be expected that Okumu would name his assailant or assailants if he knew him or them, is, again, a factor which lessens the force of his evidence, since he was able to describe in some detail how he had come upon the deceased's car. All this, Mr *Kapila* submitted, had to be set against the background of the inherent improbability of Choge going to the scene of the shooting if he had paid others to do the job for him.

Mr *Etyang*, however, put matters in a different light. Unfortunately, in a part of his submission, rather than treating the evidence of voice identification, if believed, as substantive evidence in itself he tended to treat it as confirmatory evidence of the truth of the second appellant's statement and as corroborative thereof. Nevertheless, he put forward Francis Okumu's evidence as showing that the first appellant was at the scene, and also that the second appellant was there, because Okumu's account corresponded circumstantially to the sequence of events in the second appellant's statement. It was because the members of the gang feared possible identification by Okumu that they decided to shoot him and so finish him off. It was illustrative of the pattern of events and how matters developed unexpectedly, forcing the gang to change the original plan (which was merely to kidnap Tenai) because two things went wrong: first the deceased was strong enough to overpower an attack by three men, and, secondly, Francis Okumu arrived on the scene fortuitously, before they had completed their purpose.

There can be no doubt that the evidence of voice identification is receivable and admissible in evidence and that it can, depending on the circumstances, carry as much weight as visual identification, since it would be identification by recognition rather than at first sight. In *Rosemary Njeri v Republic* criminal appeal number 27 of 1977, a victim of the offence of grievous harm testified she heard the appellant say "break her legs". The reception of this evidence was upheld in the High Court on the first appeal and also on the second appeal, in which this Court said:

> "Mr Otieno has submitted that identification by voice is less satisfactory than visual identification. In our view it can be equally safe and free from error, more so if the identification takes place at night. We agree with the two lower courts that in the particular circumstances of this case, the appellant and the complainant being familiar with each other for many years, the possibility of error was excluded."

More recently in *Simeon Mbelle v Republic* (*supra*), in which Mr *Etyang* was quick to point out that only two words "*ni mimi*" (it is me) sufficed as regards voice identification, we said at 10:

> "In relation to the identification by voice, care would obviously be necessary to ensure (*a*) that it was the accused person's voice (*b*) that the witness was familiar with it and recognised it and (*c*) that the conditions obtaining at the time it was made were such that there was no mistake in testifying to that which was said and who said it. In the instant case we are satisfied, on our own evaluation, as we have indicated, that the reception of the evidence as to the voice identification and the dying declaration was correct and safe."

In the instant case the learned Judge told the assessors they might find that the voice was that of Choge. In his judgment he made an express finding that it was, when he said: “Al is the one whose voice PW11 heard when he was shot”.

Was he justified in this finding, particularly in view of the fact that he coupled it with other findings in relation to the dubious evidence of Birech, with the caution statements of the second appellant, with the statement of Peter Baraza, which, contrary to the Judge’s finding, had no evidential value against any of the appellants, and with the evidence that Choge was the man in the green polo-necked sweater who was seen at Moi’s Bridge and at the scene of the shooting? The Judge did not direct himself that it was necessary to approach the evidence of the identification of Choge with some caution in view of Okumu’s failure to say that Choge was his assailant at the first opportunity, a matter stressed by Mr *Musyoka-Annan* in his submission on behalf of the first appellant at the end of the prosecution case. Moreover, although the two police officers, IP Michael Mbogo and Sgt Gilbert Amolo, testified that Okumu had mentioned Choge to them, Okumu himself was not asked about it, so that the police officers’ evidence was to that extent hearsay.

We propose to consider next the submissions on ground 7 of Choge’s memorandum of appeal, which concerned Birech. He said he was stigmatised by Choge as a friend of Tenai where he approached the group in the Kitale Hotel on the morning of 30 March, and that Choge threatened that they would perish together. Choge, however, denied that he had seen Birech that day. The significance of the alleged encounter was that Choge was said to have been wearing the green polo-necked sweater which the second appellant said Choge was wearing both at Moi’s Bridge and when he saw him at the scene of the shooting. We have already commented on the weakness of that evidence as against Choge. As we said it is not permissible to treat the evidence of Birech as providing corroboration of the second appellant’s statement insofar as it implicates Choge. We have considered and examined Mr *Etyang*’s submissions on this ground, but in our opinion the evidence of Birech, even taken with the other material in this case, was insufficient to enable the Court to be satisfied beyond reasonable doubt that Choge was one of Tenai’s assailants. Undoubtedly the second appellant’s statements, the dying declaration, and the evidence of voice identification, combined with that of Birech were sufficient to raise a case against Choge. The sum total of those items of evidence cast considerable suspicion on him.

However, it is to be remembered that Peter Baraza’s statement was inadmissible, and that those of the second appellant could do no more than lend assurance to an otherwise strong prosecution case. Yet the Judge used these two items in his directions to the assessors and in his judgment as the framework of the case against Choge. He treated the other evidence, consisting of the dying declaration (which was in the circumstances insufficient to form the basis of a conviction), the voice of identification and the evidence of Birech as merely corroborative thereof. In these circumstances we cannot say that if the Judge had not adopted this fundamentally wrong approach in directing the assessors and himself that they would have returned an opinion and he a verdict of guilty.

We propose to deal with the remaining grounds of Choge's appeal relatively briefly. Ground 6 refers to the inconsistency in finding that a reasonable doubt existed in respect of Samuel Macharia Mbugwa's guilt and that neither in the summing-up, nor, more appropriately, in the judgment, was there any consideration of the effect of that verdict on the prosecution case against Choge. We have already dealt with this aspect of the case at some length. While we understand Mr *Etyang*'s submissions on this issue, which were that the Judge did not reject the dying declaration which named the fourth accused, but found the supporting evidence inadequate, it cannot be gainsaid that the effect of the judgment was that the more definite declarations naming the son of Nahashon, together with the supporting evidence regarding the vehicle KLP 647, were regarded as being inadequate for a finding of guilt beyond reasonable doubt against him. Yet the much more vague declaration put forward as incriminating Choge, plus the voice identification and the incriminating statements by Peter Baraza and second appellant (the one inadmissible and the other of little weight), and the evidence of Birech were held sufficient to establish Choge's guilt. The impression is bound to be left in the mind of this Court that the assessors rejected the stronger evidence against Mbugwa, in respect of whom they thought there had been a mistake in identification, but were prepared to find Choge guilty, despite the fact that this was virtually upon the identification of a single witness, about which there was no warning in accordance with the clearly stated authorities of *Abdala bin Wendo v R* (1953) 20 EACA 166 and *Roria v Republic* [1967] EA 583. The fact that it was a voice identification does not lessen the need for caution where it is by a single witness.

Reverting to ground 5, the question of common intent or the lack of it was not put forward as a major factor in the case. In his reply Mr *Kapila* submitted that there had in any event been a radical departure from the plan to kidnap Tenai as it was originally conceived. It is obvious that those who did take part in the attack on Tenai knew at least that two members of the gang had pistols, and it is equally obvious that all were prepared to overcome any resistance by force if necessary. There was no departure from the common plan as in *Kingoro wa Cakuha and another v R* (1946) 13 EACA 98, and, subject to the issue of identity, we agree with Mr J *Etyang*'s submission that so far as those proved to be present during the attack on Tenai was concerned the direction of the Court of Appeal for Eastern Africa in *Mungai and others v Republic* [1965] 1 EA 782, applied. Nevertheless, in view of our conclusions regarding the identification of Choge it is unnecessary for us to consider this ground further.

We turn now to ground 8 which avers that the Judge erred in rejecting the alibi of the first appellant. We have already set out Choge's account of his movements on 30 March and that of his wife. As part of his address on this ground Mr *Kapila* complained that the Judge showed much tolerance towards the many inconsistencies in the prosecution evidence, but that he was prone to dismiss that of the defence witnesses out of hand. He gave several instances, one of which relates to Jim Kiptum Choge, the first appellant's son, whose evidence concerned an incident outside the Magistrate's Court in Nakuru during the Preliminary Inquiry into this case. In dealing with this matter the Judge said to the assessors: "Secondly Al called Choge, his son. I can tell you straight away that you can ignore that evidence" and proceeded to give as his reason the supposed discrepancy in dates that that evidence revealed. Mr *Etyang* referred to us the directions of the Judge to the assessors and to himself on the question of

alibi, and submitted that they were adequate to indicate that the burden of proof always rests on the prosecution to dislodge it. We do not, however, feel it is necessary to take this ground any further in view of our conclusions on the evidence against Choge. His alibi may not have been true, but by reason of the deficiencies in the prosecution case to which we have referred in detail it was not in our opinion proved to have been untrue.

The ninth ground concerned the motive behind the crime. In our opinion there was some evidence to suggest that the relationship between Tenai and Choge had initially been good but that it had deteriorated during 1981 as a result of a series of incidents between them. Several police investigation files were put in evidence to rebut Choge's suggestion that his complaints had not been investigated by the police. The evidence of the background was thus put forward as establishing that Choge had a motive to kill the deceased, and that he in fact master-minded the plan that was said to have been formulated.

As Mr *Etyang* said, subsection (3) of section 9 of the Penal Code does not require the prosecution to prove motive (unless the provision creating the offence so states), but evidence of motive is always admissible provided it is relevant to the facts in issue. In the *Karukenya* case (*supra*) we referred to the following two passages which give an indication of the value to be attributed to such evidence (1 KAR 540 at 543):

> "Whilst motive and opportunity are important matters to be considered when weighing the prosecution case they cannot in themselves be regarded as corroboration" (*R v Keriheimeiza w/o Tankikwawa* (1940) 7 EACA 67).
>
> "We appreciate of course that evidence of motive and opportunity is not of itself corroboration, but such evidence in conjunction with other circumstances may constitute such circumstantial evidence as to furnish some slight corroboration in a case where the degree of criminal complicity to be attributed to the alleged accomplice is very slight indeed" (*R v Wanjerwa* (1944) 11 EACA 93 at 96).

The evidence of the ill-feeling that was produced at the trial would therefore have been a corroborative factor had the other evidence been satisfactory, but as this was not so, again, we feel that it is unnecessary to take this ground any further.

We come to the final ground argued on Choge's behalf, which is ground 10, ground 11 having been effectively abandoned as a separate ground, though without prejudice to the other grounds. We think there was some substance in Mr *Kapila*'s complaint regarding the burden of proof in view of the unfortunate phrases which the learned Judge used in the course of his summing-up and judgment. Two instances will suffice. In dealing with the admissibility of the second appellant's statement (which were of course part of the case against Choge) the Judge said:

> "I found no reasons to hold that the statements were not volunteered and I admitted each one of them into evidence."

He went on to direct himself in this passage, which we have already set out, as follows:

> "I have considered the alleged untruths but I do not find them so material as to necessitate the rejection of A2's confessions in view of the overwhelmingly material aspects in which they are corroborated by the rest of the evidence as I have demonstrated herein above."

Secondly, he said, as regards the evidence of Mr Tuwei:

> "I am not convinced that PW60 had any reason to nor that he did fabricate anything against the A1 using PW68 or PW15 and PW70."

These phrases come perilously near to suggesting that the burden lay on the respective appellants to convince the Court that the allegations they put forward were true.

We appreciate that in a protracted and difficult case it would be unreasonable to expect the Judge to have committed no errors at all and not occasionally to have made some misstatement. As Goddard LJ said in *Mahon v Osborne* [1939] 1 All ER 535 at 566:

> "Has there ever been, I wonder, a summing-up of a long and difficult case, by even one of the greatest masters of our law, which does not contain some sentence which, taken by itself, is open to criticism? The most that can be required is that the Judge, in addition to stating the law correctly, shall give a fair summary of the evidence and of the contentions of either side."

But when there is a fundamentally wrong approach to the case by selecting as the main plank, as it were, of the prosecution case first an inadmissible statement and secondly evidence that can only lend assurance to other evidence, then misstatements and misdirections assume great importance. We referred earlier to passages in *Halsbury's Laws of England* and in *Archbold* regarding misdirections in law and material irregularities. In our judgment the reception of Peter Baraza's statement, and the weight he attributed to the second appellant's confessions as against Choge, amounted to material irregularities which went to the root of the case. The first also amounted to a misdirection in law because it is well settled by authority that a previous unsworn statement of a witness can only be used to discredit that witness. We cannot possibly say that in the absence of those material irregularities and of the misdirection in law to which we have just referred the assessors and the Judge would necessarily have convicted Choge. For these reasons we have no option but to hold that the conviction of Choge is unsafe and unsatisfactory and should therefore not stand.

It is right to say that we have considered whether in his case we should order a retrial on the principles which we stated in *George Karanja Mwangi and others v Republic* (1984) 1 KAR 567, namely that it is permissible so to order if the Appellate Court is of the opinion that on a proper consideration of the admissible, or potentially admissible, evidence a conviction might result. However, in our opinion the matters to which we have adverted were too fundamental to permit of that power being invoked and that it would not be proper in all the circumstances of this case to do so. Accordingly, we allow Choge's appeal against his conviction.

We now turn in detail to the appeal of John Wanzila Musamali.

The memorandum of appeal of this appellant, who is hereafter referred to simply as Musamali, contains nine grounds of appeal. The fifth ground was abandoned by Mr *Kibuthu*, who argued the rest of the grounds. The sixth ground with which the ensuing part of the judgment is concerned, states as follows:

> "The learned Judge misdirected himself in law and in fact in relying on the evidence of the gun and any ammunition produced before him without sufficiently or at all connecting it with the appellant."

Arguing the appeal on this ground, Mr *Kibuthu* pointed out, correctly, that the main evidence relevant thereto is that of IP Mbogo (PW42), CI Kuria (PW52), PC Kinyoti (PW56), John Kimeto (PW32) and SSP Nduguga (PW33), that IP Mbogo gave evidence after the Judge had ruled that the statement of Musamali about the gun is admissible under section 31 of the Evidence Act without ascertaining if Musamali made the statements, and that according to the evidence of IP Mbogo, CI Kuria, and PC Kinyoti, several items, including the torch (the other items are dealt with in another portion of this judgment), were found at the tree in the forest. Mr *Kibuthu* submitted that the discovery of the several items is so closely bound with the account of IP Mbogo, CI Kuria and PC Kinyoti that if there was any evidence that any of the items was not found at the scene, then it would cast doubt on the account of each of these three witnesses and so adversely affect their credibility.

Mr *Kibuthu* then submitted that there were discrepancies in the evidence because some of the items were seen by John Kimeto before 14 May 1982, on which day the items were allegedly found by IP Mbogo, CI Kuria and PC Kinyoti. Mr *Kibuthu* referred to some six passages in the relevant evidence and urged that the account of the three witnesses, IP Mbogo, CI Kuria and PC Kinyoti, taken together with that of John Kimeto made it doubtful if the items were discovered on 14 May 1982 because it could not be said that John Kimeto forgot that date; further that as Musamali had denied that he directed police officers to where the gun was found the Judge should have examined the conflicting evidence and ought to have explained to the assessors during the summing-up the contradictions in the evidence of the four witnesses whose testimony covered the gun and the other articles found at the same time and place.

Mr *Kibuthu* queried the prosecution's claim that the police officers who found the gun did not know where they were going and that they were directed there by Musamali because, argued Mr *Kibuthu*, there is evidence that Cpl Matolo (PW36) had been instructed to be at the river base near the tree where the gun was found before the party of police officers walked downhill, crossed the same river and found the gun, the torch and the simi. Mr *Kibuthu* argued that the conflict in the evidence affecting the vital item was difficult to resolve, that it is possible that the gun was obtained by police officers earlier, and therefore it could not be connected with Musamali, especially bearing in mind that the matter leading to the discovery of the gun was not recorded and that if Musamali was volunteering the particular information on 14 May 1982, all that would have appeared in his statement made on 16 May 1982. Moreover, on the evidence of Dina Tenai (PW6) and Kerich (PW22) there was shooting at the deceased's home at about the time the deceased was shot as a result of which there were at least two people with Skorpion guns on 30 March 1982. Therefore, the Judge should have enquired about the shooting incident at the deceased's home and should have properly directed the assessors before connecting Musamali with the gun. Mr *Kibuthu*'s final submission on the gun was that it could not be held beyond reasonable doubt that the Judge correctly in law connected Musamali with the gun (notwithstanding his insistence that he did not know where the gun was and that police officers had the gun and the ammunition which was produced). On being reminded by Mr *Etyang* that the alibi which Musamali raised had been displaced by this appellant's witness and that the respondent Republic intended in reply to contend that the rejection by

the Judge of the alibi was circumstantial evidence favouring the respondent, Mr *Kibuthu* retorted that the alleged displacement of the alibi did not strengthen the case of the prosecution, insofar as Musamali would have been entitled to remain silent, leaving it to the prosecution to prove their case as by law required. Even in those circumstances the Judge should have considered the whole evidence before finding Musamali guilty, and it was one thing to dislodge the alibi and quite another to prove that Musamali was at the scene of the crime at the material time. Mr *Kibuthu* yet reserved his position on the point of the alibi until Mr *Etyang* had replied.

Replying to Mr *Kibuthu* on this ground, Mr *Etyang* stated that Musamali was arrested on 14 February 1982 at his house, that before his arrest, empty cartridges had been recovered from the scene of the crime and that during the questioning of Musamali by IP Mbogo and CI Kuria Musamali told the two police officers, without use of any force on him, that he had a gun. Later that day Musamali pointed out a place beneath a tree to PC Kinyoti. The witness dug up the place and found a torch and a *simi*. PC Kinyoti dug deeper at the suggestion of Musamali and removed a Skorpion automatic pistol which was taken to the ballistics expert. SSP Nduguga (PW33), and a foundation was laid for invoking section 31 of the Evidence Act. Mr *Etyang* argued that after police officers were told where the gun was it was reasonably necessary for them to take security measures to ensure their personal security and to prevent the escape of the suspect before they went there. Mr *Etyang* contended that there is no evidence that there was an advance party of police officers at the tree near where the gun and the other articles were found and that it does not make sense for police officers to beat Musamali and thereafter take him to the tree in the forest to recover that which they had there planted. On the evidence of SSP Nduguga (PW33) Mr *Etyang* said the expert witness had to refer to sufficient ejector markings and rifling striations to convince himself that the Skorpion pistol was used to fire the exhibited cartridge case, and that the ballistics expert made exhaustive explanations of what he did. He referred to the decision in *R v Tomu s/o Ngulombe* (1942) 10 EACA 54 and submitted that the evidence on the gun fits neatly into section 31 of the Evidence Act, and that following the decision in the *Karukenya* case (*supra*) the conduct of Musamali in leading policemen to the forest and there pointing out where the gun was found was additionally admissible circumstantial evidence under section 8 of the Evidence Act, all of which established that Musamali was in possession of the gun from which the fatal bullet was fired; that the possession irresistibly show that Musamali was at the scene of the crime and that unlike *Kingoro wa Cakuha v R* (1946) 13 EACA 98, it was presence with participation. That the recovery of a fired cartridge and a live bullet by CPL Mukwana (PW30) while he guarded the scene and the removal of a bullet from Okumu's left arm by Dr Njenga. (PW12) which was handed over to Sgt Amolo (PW57) who in turn handed it to SSP Nduguga (PW33) could only mean that whoever shot Okumu must have used the Skorpion pistol, thus connecting Musamali as the man who shot Okumu at the scene. At this stage Mr *Kapila* produced to the Court photographs showing cartridge cases where the pin strikes and lines on fired bullets. But Mr *Etyang* said the prosecution did not inquire if the police had a Photostatting machine during 1982.

In reply Mr *Kibuthu* reiterated, as regards the gun, that the Judge was bound to consider if IP Mbogo (PW42) was a credible witness and if the account of

that witness about the discovery of the gun was true. That was all the more necessary, said Mr *Kibuthu*, because the evidence of the witness on the finding of the torch, the keys and the watch was shown to be unreliable. Finally, Mr *Kibuthu* submitted that the quantity and quality of the evidence about the discovery of the gun was unsatisfactory and that, although the alibi of Musamali was dislodged, the prosecution did not prove beyond reasonable doubt that Musamali was at the scene of the crime.

Having set out the arguments and submissions advanced on behalf of the appellant and the respondent Republic on ground six, the stage has been set for us to relate the submissions to the evidence and make our own findings on the facts and on the law bearing in mind the following passage explained in *Shantilal Maneklal Ruwalla v R* [1957] EA 570:

> "On first appeal from a conviction by a Judge or Magistrate sitting without a jury the appellant is entitled to have the appellate court's own consideration and views of the evidence as a whole and its own decision thereon. It has the duty to rehear the case and reconsider the materials as it may have decided to admit. The appellate court must then make up its own mind not disregarding the judgment appealed from but carefully weighing and considering it. When the question arises which witness is to be believed rather than another and that question turns on manner and demeanour, the appellate court must be guided by the impression made on the Judge or Magistrate who saw the witnesses, but there may be other circumstances, quite apart from manner and demeanour which may show whether a statement is credible or not which may warrant a court in differing from the Judge or Magistrate even on a question of fact turning on the credibility of witnesses whom the appellate court had not seen. On second appeal it becomes a question of law as to whether the first appellate court on approaching its task, applied or failed to apply such principles."

See also *Digest EA Criminal Case Law* 1957 Supplement at 14.

As we have outlined already, IP Mbogo and his party went to the house of Musamali at 5:30am on 13 May 1982 on information. After Musamali was awakened, a box in his house was searched and keys and a watch were found. The house is very close to the river bank. IP Mbogo cautioned Musamali and interrogated him and was told about the gun. Then, led by Musamali, the party left the police station following Milimani road, a longer route. After IP Mbogo parked his car, they went downhill, crossed the river, walked uphill to the forest and Musamali showed them the tree in the forest area where Musamali asked the policemen to dig and dig deeper still. CI Kuria's description of the journey to the tree was substantially similar to that of IP Mbogo. CI Kuria added that after the gun was found the whole police team was happy. PC Kinyoti had gone across a ditch to the tree before the others. PC Kinyoti also said the party was taken through a thick spot and then led to a big tree where he, PC Kinyoti, started scratching with his own hands and found a torch, and after Musamali encouraged him to dig deeper, he found and removed the Skorpion automatic pistol. Musamali answered the prosecutions' claim about the gun in an unsworn statement, saying the allegations were, "nothing but lies", that on 14 May 1982 he was not awakened by the police but that they banged the door and found him sleeping. The keys and the torch were not found in his house. He was then taken to the forest, tied with rope, blindfolded, had his legs and hands tied, was lifted and put on top of a tree, beaten by IP Mbogo, CI Kuria, PC Kinyoti and other policemen and asked where the gun was. His brother-in-law was beaten too. And so was another who was staying with him. Musamali said he was alone taken, yet again, to a forest, there

blindfolded, told that was the end of his life, tied to a tree, beaten and asked if he killed Tenai. He replied he did not know Tenai. He was then untied, placed near a vehicle, saw other policemen tying other people to the same tree, was told by a Mkamba policeman that he was suffering for nothing and that even if he denied it, they knew where the gun was, and that he, "told them if they knew where the gun is please take me there so you can take the gun" and that thereafter the policeman told the others that he had said that they should go where the gun was whereupon he, Musamali, was put in a vehicle, taken to a forest of section 6, then to Shimo-la-Tewa forest, there held by his waist across the river where there were other policemen, escorted and pushed into a forest of many trees, ordered to sit and saw PC Kinyoti digging in the presence of IP Mbogo and shortly later Musamali saw PC Kinyoti removing two guns from the paper found underneath the tree. On being asked if he knew anything about the gun, Musamali replied he knew nothing and that he did not know "who might have fabricated the story about the gun so that I can lose my life" adding that, "the person who told the police must be the one who brought the gun near my house . . .". It is inconceivable that the party of police officers would have taken the route to the forest, which, according to the prosecution evidence and the statement of Musamali was a difficult and meandering route, without direction or prior knowledge of the layout. Nobody would possibly have travelled towards the material tree without a clear and definite purpose. Musamali lived close to the forest and can be presumed to have known the neighbourhood so well as to be able to easily lead the way. His version of what took place as he was held by his trousers has remarkable similarity to the prosecution tale except for his allegation that he was tortured. The short but difficult journey to the forest was embarked upon after police officers had found the keys to the Mazda vehicle and a watch. The discovery of the two items in Musamali's box and house naturally had a real effect on Musamali. It is significant that Musamali implies in his statement that a person must have told the police officers about the gun. In those circumstances, Musamali must have rationalised and concluded that police officers had some knowledge about the gun and that it was risky and wholly without merit not to disclose the actual location of the gun. There was no way, on the evidence, the police party would have got to the tree without being led there. And, but for the suggestion to PC Kinyoti to dig deeper the gun might not have been found. The gun was hidden in the ground. Ordinarily that is not quite how to plant something on another. If, as was suggested by Mr *Kibuthu*, police officers knew where the gun was hidden, there would have been no necessity for them and Musamali to have taken the roundabout way to get to the tree. The logical, quick and secure step to be taken would surely have been for police officers to march Musamali to the tree, there point out the gun *per se* instead of invoking section 31 of the Evidence Act. The assertion that the police officers planted the gun on Musamali invites the question, without shifting any burden, if burying the gun in the ground under a tree in a thick forest, albeit close to Musamali's house, would have provided an adequate link with Musamali. Any planting of the gun to have had a connecting link to Musamali would have been effected within some area or property fully under the control or use of Musamali, not in a forest over which Musamali had no right. There was no advance party of police officers at or near the forest where the gun was found. PC Matolo (PW36) was one of policemen who raided Shimo-la-Tewa village on 14 May 1982 on the instructions of CI Kuria. The corporal was in charge of dog handlers and he and his party laid an ambush away from the village. The corporal could not see

CI Kuria or those who accompanied him. It is manifest that the corporal and his team were engaged in a different exercise which took place near Musamali's house. While CI Kuria, IP Mbogo, other policemen and Musamali were in the forest, PC Kinyoti went across a ditch to the tree. On no fair view of the matter could PC Kinyoti be said to have formed an advance party. If, as is likely, a few police officers who accompanied Musamali to the forest walked ahead to view the area and ward off any danger, they would be no advance party because there was just one party led by Musamali. The more we consider the defence that the gun was planted, the more hollow it becomes. In the summing-up to the assessors, the Judge specifically mentioned the prosecution's allegation that Musamali offered to and led police officers to a place near his house where the gun was found. In his judgment, the Judge approvingly discussed the evidence which influenced him to find Musamali guilty. We have analysed and considered this part of the case and we entertain no doubt that Musamali led the party of police officers to the forest and on to the tree where the gun was dug out. The gun was discovered in consequence of the information given by Musamali and so the prosecution properly invoked section 31 of the Evidence Act. SSP Nduguga, a firearms examiner, examined the gun, and found it capable of being fired and complete in all its component parts. The gun had sometime or other been fired.

SSP Nduguga (PW33) received all five the recovered cartridges and examined each microscopically and compared them with three spent cartridges, which had all been fired from the gun. The firearms examiner "found sufficient matching ejection markings to convince me that the pistol . . . was used to fire the cartridge cases . . ."

The firearms examiner appears, with all due respect to him, to have exceeded his role as an expert. It was not for him to find sufficient matching ejector markings. That was the duty of the Judge aided by the assessors. The function of the expert witness was succinctly stated by Lord President Cooper in *Davis v Edinburgh Magistrates* (1953) SC 34 at 40 when he said:

> "Their duty is to furnish the Judge or jury with the necessary scientific criteria for testing the accuracy of their conclusions, so as to enable the Judge or jury to form their own independent judgment by the application of these criteria to the facts proved in evidence."

See also *Evidence by Cross* (2ed) at 362. The prosecution had called the firearms expert to assist the Court and the Court did not expect, "an oracular pronouncement by an expert" (*Davies v Edinburgh Magistrates* (*supra*)).

In automatic weapons, the ejector mark upon a fired cartridge may be compared with the characters of the metal block of the firearm which causes the ejection of the cartridge (see *Glaister's Medical Jurisprudence and Toxicology* (13ed) at 289). Specific identification of individual weapons requires that the cartridge component is marked enough to receive the imprint of microscopic structures, that the marks present be reproduced in a specimen and that the marks are sufficiently distinctive to be specific (see *Gradwohl's Legal Medicine* (3ed) at 214). The standard method of comparing cartridge cases is by producing comparison microscope photographs, and so, as Mr *Kapila* observed, for the SSP to be able to compare the spent cartridges he had to have the equipment to magnify and produce photographs of the same type as exhibit A, exhibit B and exhibit C (all of this Court).

Mr *Etyang* could not say whether in 1982 the Kenya Police had the relevant micro-photographic machine, although it is clear that one was in operation the following year as we were shown microphotographs in another case. It has come to our notice in reviewing several cases concerning guns, that there is no practice of producing the microphotographs. It ought to be standard practice to do so, in accordance with the *Davis* case (*supra*). It may not be fatal if that is not done, depending on the circumstances, and whether any particular point arises necessitating scrutiny of the comparison by the Courts. No such point arose in this case. The defence took no objection at the trial, and indeed seemed to be unaware of the true position; nor was it raised in the appeal. Be that as it may, the prosecution must prove its case. SSP Nduguga examined the cartridges under a microscope. He explained what he did. The Judge accepted his findings. We have scrutinised the evidence. It is a very clear explanation. The officer has a very long experience in this particular field and has always been found trustworthy. We have therefore been persuaded to accept his evidence as accurate and reliable and we find that the gun was used to fire the cartridges.

The fact of the discovery of the gun no longer rests on the statement of Musamali but on the evidence of CI Kuria, IP Mbogo and the other police officers (*R v Tomu* (1943) 10 EACA 54). The next question is whether that evidence is reliable.

Apart from possession of the gun, the torch and *simi* near the tree in the forest, the appellant was found in possession of the keys of the Mazda, the keys of the locks in the deceased's compound and a watch. Of these things the keys refer particularly to this case, while the torch and watch refer to other alleged thefts. In these circumstances, the appellant challenges:

(1) the introduction of the torch and watch as inadmissible evidence (ground 4); and

(2) that the possession of the various keys was false and that fact throws doubt on the possession by the appellant of the gun (ground 7).

On the first of these headings, the two other incidents occurred shortly after the incident in question; and before the appellant was apprehended. It is permissible under section 57 of the Evidence Act (Chapter 80) to adduce such evidence in rebuttal or anticipation of the defence of innocence or accident in relation to the possession of other articles. That type of defence might easily have been advanced in the case of the keys, and, therefore, in the words of the section the evidence is directly relevant to a fact in issue. That defence, or some other defence, might have been advanced in relation to the gun. It is a question to be weighed carefully, because it is possible that the probative effect of such evidence can be outweighed by the prejudicial effect. Having attempted to make that evidence for ourselves, we think that the learned Judge was entitled to admit that evidence. It tended to prove that the appellant was not in innocent possession of any of the articles found in his house, or pointed out by him. But that again depends upon whether the evidence was intrinsically reliable.

That brings us now to the second point, whether the evidence of the keys was uncertain, to the extent that there is a doubt that the police officers had possession of the keys before they were alleged to have been found with the appellant. Consequently, it is said that the prosecution had not ruled out the possibility that these articles had been planted on this appellant by the police, including the gun.

There is no doubt that errors arose as to dates in the case of the watch and torch. There is a good deal of erratic evidence as to how Mrs Tenai and her employees dealt with the keys of the deceased's cars, how the cars were immediately moved to the police station, how they were returned and when new ignition switches were fitted. There appear to be contradictions in the evidence of Mrs Tenai and the driver, Wilson. The driver's evidence appears more straight-forward. It is Mrs Tenai's evidence which causes trouble, because the sequence of events related by her is not chronologically in order. The other trouble is that the police witnesses were not asked to explain exactly what they did with the vehicles, how they removed them from the site, by what method of propulsion, and in what condition they found them and returned them to the deceased's farm. Did they tow them; did they arrange a temporary starting procedure by connecting wires; did they have some spare keys?

In the case of the watch, the date given when the owner saw the watch being the day before it was alleged to have been with Musamali, is clearly a mistake of carelessness. The rest of the evidence shows without doubt that the owner was shown the watch after the police raided Musamali's home. In the case of the keys of the deceased's car, it is difficult to unravel all the knots in the evidence. We find we cannot place any weight upon it.

Nevertheless, muddled evidence does not necessarily indicate a fraudulent planting of articles on the accused person and the question is whether the prosecution proved beyond doubt that the evidence of the police officers is reliable. We have reached the conclusion that the witnesses were inaccurate but not fraudulent. The muddle over the date on the watch, identified by its owner, is a clue to this evidence. Of course, there are many ways in which these problems can be avoided and are too well known for us to repeat. Having considered all that Mr *Kibuthu* very properly submitted and drew to our attention, nevertheless we are satisfied that the inaccurate evidence does not in any way detract from the evidence that the gun was pointed out by the appellant.

The alibi of Musamali was dislodged by DW3 Alfred Mulani, his brother-in-law and his own witness, who said he was not seen at all in 1982 although Musamali had stated that he was at Mukaya in Uganda from 28 March 1982 to 2 April 1982 and that he went to his brother-in-law on 28 March 1982. Musamali did not assume any burden to prove this alibi (*Ssentale v Uganda* [1965] EA 365 at 369H–I). Nevertheless it cannot be overlooked that Musamali had lied as to his whereabouts at the material time. There was a suggestion that the gun had been stolen, although obviously it had been unlawfully obtained. Musamali is proved to have been in possession of the gun, capable of firing the type of bullet that killed the deceased. That illegal possession was so proximate in time having regard to the time the crime was committed that in all the circumstances of this case it can safely be presumed that the fatal shot was fired by Musamali using the gun. Compare *R v Bakari s/o Abdulla* (1949) 16 EACA 84.

To sum up, there is no ground on which we can possibly disturb the conviction against Musamali on the basis of the evidence which we have already referred to.

However, it is necessary for us still to consider the submission relating to the confession statements made by the appellant Musamali. It is said that they were wrongly admitted, without confirming that they were voluntarily made. It was also wrong to disregard the evidence of Dr Kantilal Patel and Dr Samuel Gathua, the witnesses in the trial within a trial, and in shifting the burden of proof to the appellant.

Doctors Patel and Gathua gave evidence in the trial within a trial and as witnesses for the defence in the main trial.

The statements in question were:

1. the verbal statement to IP Mbogo (PW42) on 14 May 1982;
2. the verbal statement to CI Kuria (PW52) on 14 May 1982;
3. the written statement on 16 May 1982 to Senior Assistant Commissioner Okoko;
4. the written statement on 19 May 1982 to Mr Okoko; and
5. the written statement on 22 May 1982 to IP Munyole.

Dr Gathua and Dr Patel gave evidence to the effect that on 31 May 1982, Dr Gathua examined Musamali in the presence of Dr Patel, an advocate and a police officer. The doctor found a linear bruise on the left side extending to the buttocks and one bruise on the sole of each foot. It was the complaint of Musamali that these injuries had been received by him between 13 and 15 May the doctors found that possible. They could have been a week old, a fortnight old, but not more than a month old.

On the other hand, Dr Njenga had testified in the main trial, that on 22 May 1985, when examining Musamali for age and mental condition, he had not seen any injuries; in particular the linear bruises extending to the buttocks, nor those on the sole of each foot. He was not told of any. But his primary purpose was age and mental condition and he was not asked to find out whether the appellant had any injuries. That is clear in the form requesting this particular examination. There was therefore a considerable conflict of opinion.

Three problems faced the learned Judge:

(1) In order to deal with the question whether the confession statements were voluntary, did the opinion of the doctors Gathua and Patel leave a reasonable doubt as to whether the appellant had been beaten while he was kept in custody from the 14 May to 22 May 1982?

(2) Could the learned Judge rely on Dr Njenga's evidence without calling him to give evidence in the trial within a trial?

(3) Even if the learned Judge thought that the confessions were voluntary, as Dr Gathua and Dr Patel were called as witnesses in the main trial, it was necessary to leave the question again to the assessors for them to decide what weight to place upon them.

When these problems are fairly considered it becomes apparent that the statements were wrongly admitted.

It is clear that if the evidence of doctors Gathua and Patel is reliable, no amount of explaining away their evidence suffices to relieve doubt on the voluntariness of the statements, or any of them. The injuries could reasonably have existed on 13 and 15 May 1982. On the other hand, in order to deal with the conflict between their evidence and that of Dr Njenga, it would have been proper for Dr Njenga to have been called to give evidence in the trial within a trial so that the nature of his examination could be ascertained. It is not self-apparent that an examination for age and mental condition would necessarily reveal whether there were injuries on the back of the appellant or under his feet; indeed, such an examination would not necessarily reveal such injuries; especially in the case of an adult male of over 30 years.

Therefore, in the circumstances of this case before the learned Judge could rely upon Dr Njenga's evidence, in order to dispute the evidence of the other doctors, Dr Njenga should have been called. That follows the principle of a trial within a trial, where witnesses in a main trial are called again to give evidence in the trial within a trial, so that if there is objectionable evidence it can be excluded before the assessors hear it. Without calling Dr Njenga it was surely unsatisfactory to compare Dr Njenga's untested evidence, and the fact that no complaint was made to him by the appellant, with the evidence of the two doctors who actually saw the injuries.

That covers the first two problems and on the third one can see the situation in a broader context. The defence called the two doctors to give evidence in the main trial, which challenged the voluntariness, and at least the weight, to be placed on the statements. It was therefore an issue which the learned Judge had to deal with in summing-up to the assessors. While it may be that the Judge's duty is to rule on the admissibility of evidence at the time when objection is taken to it during the trial, yet, having admitted evidence, it is for the assessors to decide what weight to place on it. It may follow that if the assessors, having considered all the evidence, are not satisfied that the confession statements are voluntary, even though admitted in evidence, they may decide to place no weight upon them.

Unfortunately, the learned Judge took the view that having admitted the evidence, there was no need to leave the question of its weight to the assessors. He made no point in summing-up that they should consider what weight to place upon the appellant Musamali's statements, in view of the contradictory medical evidence. Had he done so, it is quite possible that the assessors would not have placed weight upon them. It is not possible for this Court to decide what the effect of a proper summing-up would have been. It is not surprising that the assessors relied on the appellant's statements because they were put before them as evidence, to consider as to their truth in relation to Baraza's statement. As we have said, Baraza's statement was not in any way admissible. Thus without it, and without a proper direction on Musamali's statement, it cannot possibly be said that the assessors would certainly have relied on them.

There were other questions raised, namely whether these statements were really true or only partially so, and even whether they amounted to confessions. It is difficult at this stage to unravel the truth because of the effects of admitting Baraza's statement in the High Court. It is sufficient for us to say that it seems to us that the open conflict in the medical evidence left considerable doubt whether the confessions were voluntary, and the passage in *Aneriko v Uganda* (*supra*), which we have already set out at length, is particularly appropriate to the circumstances here. There, the length of custody was not stated in the report. Here it was two days before the first written statement, five days before the second and eight days before the third. At the time of examination by doctors Patel and Gathua the length of custody was no less that 16 days. With the evidence of injuries which both those doctors gave it is clear that on the authority of *Aneriko*'s case these statements should have been rejected, as against Musamali.

Moreover, as this matter was not tested by leaving it to the assessors to assess their weight, we are bound to come to the conclusion that the confession statements of the appellant Musamali could not have been relied upon, except as provided by section 31 of the Evidence Act (Chapter 80).

As there was, as we have demonstrated, ample other evidence establishing the guilt of Musamali, the rejection of his police statements does not, in our judgment, affect his conviction for this offence. We therefore dismiss his appeal against conviction and the sentence passed upon him.

Finally, we come to the third appellant. We did not require Mr *Musyoka-Annan* to address us on his case in reply to the Republic's submissions. The only evidence against him was, as we said, the statements of his co-accused, Musamali, the first statement of Baraza, the imperfect identification of him at the Kitale Hotel and the bus tickets. The first, for the reasons we have extensively set out, cannot form the basis of a conviction. The second was inadmissible, the third too vague and the fourth inconclusive without more. We therefore allow the third appellant's appeal against his conviction.

Accordingly, we dismiss the appeal of Musamali against his conviction and sentence of death, but we allow the appeals of Choge and Kipkikong and quash their respective convictions for murder and set aside the sentences of death passed upon them.

For the first appellant:
AR Kapila and *Ishan Kapila*

For the second appellant:
KM Kibuthu

For the third appellant:
J Musyoka-Annan and *DK Maraa*

For the Republic:
AGA Etyang and *Major JQ Mbewa*

Gachue v Ngumburu
[1986–1989] 1 EA 130 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	9 March 1988
Case Number:	72/85
Before:	Platt, Apaloo JJA and Masime AJA
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[1] Limitations of Actions Act – Interpretation of section 22 of the Limitation of Actions Act (Chapter 22) – Person under a disability whether the six-year period in section 22 starts to run after the disability has ceased – Whether disability lengthens the period of limitation – Whether section 22 provides a limitation period of its own to cut down section 7 of the Act.

Editor's Summary

The appellant had been sued in the Resident Magistrate's Court by a young man for whom the appellant had been an extra "customary guardian" as the High Court described him. The respondent

had sought to evict the appellant and in the Resident Magistrate's Court the Magistrate dismissed the suit. The respondent appealed to the High Court. The High Court ruled that the transaction was a contract for necessaries and required consent of the Land Control

Board and that at the time of the transaction the respondent was a minor. The appellant appealed to the Court of Appeal. The issues were whether when respondent signed his agreements acknowledging payments for sale of land to the appellant when he was a minor, and whether section 22 of the Limitation of Actions Act (Chapter 22) extended the Limitation period.

On appeal to the Court of Appeal:

Held – If the period prescribed by the Act (Limitation of Actions Act (Chapter 22)) and the disability of the person (to whom the right of action accrued), ceases after the period has elapsed, that person has six years to bring his suit from the time that person became able to look after his affairs.

The limitation period starts from the time the right of action accrued and runs the course, after or during which the six-year period starts.

Section 22 does not provide for the case where the right of action has accrued to a person not under a disability but which overwhelms him. He has the normal period, or, the disability gives him no greater period of grace. Section 22 only applies to cases where the person is under a disability at the time the right of action accrued.

Section 22 does not provide a limitation period of its own to cut down section 7 of the Act. It merely provides further time in certain circumstances. The section applies to a case of disability continuing up to the time of or after the period of limitation ends in the first place and, secondly, to any case where the six-year period is available to extend the period.

For the purposes of this appeal the period of limitation was 12 years under section 7 of the Act (Chapter 22) and as the six-year period would fall within the 12 years the respondent did not need the aid of an extension to the period of 12 years. Consequently, the judgment of the trial court was set aside and an order made that the appellant gives vacant possession of the suit land to the respondent.

Appeal dismissed.

Case referred to in judgment

(“**A**” means adopted; “**AL**” means allowed; “**AP**” means applied; “**APP**” means approved; “**C**” means considered; “**D**” means distinguished; “**DA**” means disapproved; “**DT**” means doubted; “**E**” means explained; “**F**” means followed; “**O**” means overruled)

Mungai v Mwaura civil appeal number 80 of 1976

Judgment

Platt JA: The appellant had been sued in the Resident Magistrate’s Court on 9 April 1976, by a young man for whom the appellant had been an extra “customary guardian” as the High Court described him. It would seem to be a strange fact that the plaintiff, Humphrey Kamau Gachue, should bring a suit against the man who brought him up after Humphrey had been orphaned; and that seems to have been the basic attitude of the trial court in dismissing the suit. The High Court on first appeal, while sympathetic, allowed the appeal and gave judgment for Humphrey. Now Humphrey’s benefactor, Peter Kamau Gachue, has appealed to this Court.

In 1965 Humphrey and Peter agreed that Humphrey would sell his registered land to Peter to raise school fees to pay for private secondary education. The price of the land was KShs 2 000. In 1967 there were two agreements, one in January and the second in May, acknowledging the payments made. The price was fully paid in May 1967. The two features around which this case revolves may now be explained. It may be that Humphrey was a minor. On one view of the case, the age of majority was 18 years and Humphrey attained that age in 1966, so that he had attained the age of 19 years in 1967 when he signed the agreements and acknowledgements of that year. The other view of the case is that the age of majority was 21 years and that Humphrey was at all material times a minor. The second feature is that no consent of the Land Control Board was obtained. The sale was null and void on 14 August 1967 at the latest. That follows, as the High Court explained, from the provisions of section 218 of the Constitution which provided for Land Control, before the Land Control Act of 1967 came into force in December 1967. Following from the contract becoming null, the only factor that would save Peter, would be 12 years adverse possession. This he had never attained. From August 1967 to 9 April 1976 was a period of less than nine years. Even if one takes the agreement in 1965 the period is less than 11 years. Hence whether Humphrey was a major or a minor, he had sought to evict Peter before the period had expired, as provided in section 7 of the Limitation of Actions Act (Chapter 22).

In this awkward situation, Mr *Gatimu*, for the appellant, Peter, sought an interpretation of section 22 of the Limitation of Actions Act, which Mr *Gatimu* contended saved the day for the appellant Peter. Section 22 provides as follows:

> "22. If on the date when right of action accrued for which a period of limitation is prescribed by this Act, the person to whom it accrues is under a disability, the action may be brought at any time before the expiration of six years from the date when the person ceased to be under a disability or died, whichever event first occurred, notwithstanding that period of limitation has expired."

Mr *Gatimu* construed these words as meaning, in the context of this case, that if Humphrey was a minor in 1967, then when he attained his majority say in 1969, he had six years from then in which to bring his action. That would be by 1975. Consequently as the suit was brought in 1976 it was time-barred. When section 7 of the Act was put to Mr *Gatimu* which provides a limitation period of 12 years for the recovery of land; Mr *Gatimu* argued that the two sections were in conflict, a matter which ought to be clarified.

What can be said for Mr *Gatimu* is that the wording of section 22 is not as clear as it might be. But the clue to the section resides in the words, "notwithstanding that the period of limitation has expired". The concept is that if the period prescribed by the Act has elapsed, and the disability of the person (to whom the right of action accrued) ceases after the period has elapsed, that person has six years to bring his suit, from the time that person became able to look after his affairs.

The essentials therefor are that the limitation period starts from the time that the right of action accrued and runs its course, after or during which the six-year period starts.

In *Mungai v Mwaura* civil appeal number 8 of 1976 Mustafa JA rejected an interpretation by which the period did not commence until the disability ceases. With respect, that must be so because otherwise the period of six years

would not fit in; or alternatively would supplement the period of limitation. Mustafa JA observed:

> "It seems clear that time begins to run when the cause of action accrues, and in the case of a minor, the time limit is extended for 6 years after he has obtained his majority, not that time only begins to run after he has attained his majority."

But this is clear only in the case provided for in section 22, namely that the limitation period has elapsed, at the time of or before the disability ceases; then the six years begins. What is not clear is what is to happen if the disability ceases during the course of the limitation period. It would be comforting to be able to say that disability always lengthens the period of limitation. But it does not. Section 22 does not provide for the case where the right of action has accrued to a person not under a disability, but which overwhelms him. He has the normal period and the disability gives him no greater period of grace. Section 22 only applies to cases where the person is under a disability at the time the right of action accrued. It would appear that a similar construction is necessary if the six-year period ends before the period of limitation. If the person cannot take advantage of it, so much the worse for him. That is explained in the commentary in *Halsbury's Laws of England* (4ed) Volume 28 at 388 paragraph 868. Dealing with section 22 of the English Limitation Act 1939 which is precisely similar in terms to section 22 of the Kenya Act, the authors explain:

> "This provision is a saving clause which does not of itself impose a disability, and while he is under a disability, a plaintiff to whom the provision applies may bring his action in the same way as if it had not been passed and may also do so within the statutory period after the determination of the disability."

That passage then provides the answer to Mr *Gatimu*'s question. Section 22 does not provide a limitation period of its own to cut down section 7 of the Act. It merely provides further time in certain circumstances. Moreover, the disabled person can always bring his action before and after his disability within the period. Hence section 22 applies to a case of disability continuing up to the time of or after the period of limitation ends in the first place and, secondly, to any case where the six-year period is available to extend the period. Two examples will make this clear:

1. For the whole period of limitation the person is under a disability. The day after the end of the period the disability ceases. The person has six years within which to act. But he may always bring his suit before the end of the limitation period despite his disability.
2. The period of limitation runs from 1967 for 12 years until 1979. The disability exists from before 1967 and ceases in 1977. The six-year period starts in 1977 and continues to extend the limitation period until 1983. But if the disability ceased in 1969, the six-year period ending before 1979, is of no practical use. The person must act within the normal period of 12 years.

Applying those principles to this appeal whatever the age of majority was in 1967 either 18 or 21 years, and assuming that the plaintiff, Humphrey, was a minor, even up to 1969, the period of limitation was 12 years under section 7 of the Act (Chapter 22). If the disability ceased in 1969 and the six-year period would fall within the 12 years, and was of no practical importance. The plaintiff though disabled brought his suit for eviction in 1976 and consequently the period of adverse possession ended on 9 April 1976. He did not need the aid of an extension to the period of 12 years. It follows that the High Court was quite right in the result reached. A contract for necessaries, if this sale be such, cannot stand without consent of the Land Control Board.

The High Court did not, however, spell out the terms of its order. I would order that the judgment of the trial court be set aside, and there should be substituted therefor judgment for the plaintiff that the defendant do give vacant possession of land registration number Loc 12/Subloc 2/160 within six months from today's date. No order should be made for *mesne* profits. The plaintiff should have the costs of the trial in the Resident Magistrate's Court. Costs have already been awarded in the High Court to the plaintiff/appellant. The costs of the appeal to the Court of Appeal should be the costs of the successful plaintiff/respondent.

As Apaloo JA and Masime AJA agree, it is so ordered.

Apaloo JA and Masime AJA concurred in the judgment of Platt JA.

For the appellant:
PS Gatimu

For the respondent:
DG Njoroge

Gathere v Gathere
[1986–1989] 1 EA 134 (HCK)

Division:	High Court of Kenya at Nairobi
Date of judgment:	1 February 1988
Case Number:	317/84
Before:	Buttler-Sloss J
Sourced by:	LawAfrica

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[1] Family – Marriage – Presumption of marriage – Objection to petition for grant of letters of administration of deceased's estate – Objector cohabited with deceased for some time though no marriage ceremony performed – Whether cohabitation can be evidence from which it may be presumed that parties to the cohabitation did marry –Whether the objector was a wife of the deceased for succession purposes.

Editor's Summary

Elizabeth Mumbi and George Kinyanjui filed a petition jointly applying for letters of administration of the estate of one John Gathere Kinyanjui (deceased). The petitioners described themselves as the only spouse and son of the deceased respectively.

Margaret Wanjiru Gathere filed notice of objection to making of a grant on the ground that she was a lawful wife of the deceased having been married under Kikuyu customary law. Evidence was led about the objector's long association and cohabitation with the deceased. In her submissions, the objector relied on the doctrine of presumption of marriage and averred that in view of her long association and cohabitation with the deceased the Court should presume that she was married to the deceased and she should be declared a widow of the deceased for purposes of the administration of his

estate.

Held – Cohabitation can be evidence from which it may be presumed that the parties to the cohabitation did marry. However, cohabitation is not in itself tantamount to marriage and the two should not be confused since marriage entails clear legal obligations and cohabitation does not (*Njoki v Mutheru* [1984] LLR 214 (CAK) followed).

In the present case, there was to some degree cohabitation between the deceased and the objector. The Court was however unable to presume from that cohabitation that there was a marriage between the deceased and the objector. The objector was therefore not a wife of the deceased for purposes of succession.

Objection dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Njoki v Mutheru [1984] LLR 214 (CAK) – **F**

Judgment

Butler-Sloss J: These proceedings arise out of the death, on 27 March 1984 of John Gathere Kinyanjui. He died intestate.

By a Petition dated 13 April 1984, Elizabeth Mumbi and George Kinyanjui Gathere jointly applied for Letters of Administration. In paragraph 2 of their petition, the petitioners described themselves as: "The only spouse and son of the deceased respectively."

On 31 May 1984, notice of objection to making of grant was filed on behalf of Margaret Wanjiru Gathere. In paragraph 1 of her notice, the objector averred that she was a lawful wife of the deceased having been married under Kikuyu customary law.

On 8 March 1985, Sachdeva J made an order that evidence be taken *viva voce*, and that the hearing of the objection be set down for one whole day on 30 April 1985. The hearing of the objection was begun before myself on 19 June 1985. It was concluded on 17 November 1987 when advocates for the parties, in lieu of final speeches, undertook to supply submissions in writing. The written submissions of Mr *Masese*, advocate for the applicant, Elizabeth Mumbi, are dated 1 December 1987.

The written submissions of Mr *Murungi*, advocate for the objector, Margaret Wanjiru Gathere, are dated 15 December 1987.

The Court is indebted to Mr *Masese* and Mr *Murungi* for their careful expositions of the law applicable to the case, and for their succinct evaluations of the evidence that was given. Their exertions in the case have greatly helped the Court in identifying and resolving the issues of fact and law upon which the case turns.

At the outset of the hearing, and before the objector was called to give evidence, Mr *Masese*, advocate for the applicant, stated the question in issue to be whether or not the objector was married to the deceased. He agreed that if the Court held the objector to have been married to the deceased then the applicants would not object to her joining them in the administration of the estate. Mr Kamau Kuria, who then appeared for the objector, conceded that the applicant, Elizabeth Mumbi was a widow of the deceased, and that the joint applicant George Kinyanjui Gathere was a son of the deceased. In evidence,

the applicant said that she married the deceased in 1958, and on that point her evidence was not challenged. The marriage was assumed to be a marriage by Kikuyu customary law.

In the first paragraph of his written submissions, headed "The Law," Mr *Murungi* states that it is not the objector's case that she, the objector, was married to the deceased under Kikuyu customary law. This is an important departure by the objector from the terms of her notice of objection which have already been quoted, and may be quoted again:

> "The objector herein is a lawful wife of the deceased having been married under Kikuyu Customary Law."

This departure raises the question:

> "If the objector was not married to the deceased under Kikuyu Customary Law, then what law requires the Court to recognise her relationship with the deceased as a marriage?"

The answer is to be found in the same paragraph where Mr *Murungi* says:

> "The objector's case is that in view of her long association and co-habitation with the deceased this court should presume that she was married to the deceased, and she should be declared a widow of the deceased for the purposes of the administration of his estate."

In support of this contention, Mr *Murungi* cites the leading case of *Njoki v Mutheru* [1984] LLR 214 (CAK), and, in particular, certain passages in the dissenting judgment delivered in that case by Madan JA (as he then was). The appellant in that case, Mary Njoki, like the objector in the present case, did not claim to have undergone any ceremony of marriage. Nevertheless she was saying to the Court that a presumption of marriage arose, from long co-habitation and repute, that she was the deceased's wife, sometimes referred to as "common-law wife" (at page 2 line 15). At page 9 line 18, the learned Judge of Appeal refers to the concept of presumption of marriage which, he says, is not new in Kenya. At line 25 he quotes Wambuzi P as saying:

> "The presumption has nothing to do with the law of marriage as such, whether this be ecclesiastical, statutory or customary. The presumption is nothing more than an assumption that the parties must be married irrespective of the nature of the marriage actually contracted, I would add also irrespective of marriage if one is not actually contracted."

In this, I understand the learned Judge of Appeal to be saying that even where there is clearly no marriage, the Court can and should construct a marriage, and that there are advantages in doing so. Such a power is, however, impliedly disclaimed by Kneller JA at page 8 line 24 where the learned Judge of Appeal, after reviewing the authorities, says:

> "The authorities do not, to my understanding of them, go so far as to say that co-habitation and repute constitute a marriage. They can be part of a mode of proving one in that they are substituted for some missing element or elements."

At page 11 line 25, and following on to page 12, Kneller JA lists seven forms of marriage that are available in this country. He concludes, on page 12, with the words:

> "These are, I apprehend, enough for all the peoples of this country."

The learned Judge of Appeal does not include in his list a marriage that is to be presumed from the fact of co-habitation, a constructive marriage, a marriage by judicial decree or a so-called "common-law" marriage.

Following in the present case, the majority judgments delivered by the Court of Appeal in *Njoki*'s case, I hold that co-habitation can be evidence from which it may be presumed that the parties to the co-habitation did marry. I further hold that co-habitation is not, in itself, tantamount to marriage, and believe that the two should not be confused since marriage entails clear legal obligations and co-habitation does not.

In the present case, I find that there has been, to some degree, co-habitation between the deceased and the objector. I am unable to presume from that co-habitation that there was a marriage between the deceased and the objector since the objector, who asks me to make that presumption, herself avers that there was no marriage between the deceased and herself.

It follows that the basic question in this case as to whether or not the objector was a wife of the deceased, must be answered in the negative. The objection fails and is accordingly dismissed. The applicants may proceed with their application for Letters of Administration in the normal way.

As to costs, I order that the applicant's costs be in the administration, that is, they will be payable out of the estate. I make no order for costs against the objector since I consider that the deceased, by his long association with the objector, helped to create the dispute that has had to be resolved through this litigation.

For the applicant:
Masese

For the respondent:
Murungi

Hassan v Nathan Mwangi Kamau Transporters and others
[1986–1989] 1 EA 137 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	14 February 1986
Case Number:	123/85
Before:	Kneller, Hancox and Nyarangi JJA
Sourced by:	LawAfrica

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[1] Quantum of damages – Road accident – Death of deceased aged 17 as a result of defendant's negligence – Whether "lost years" principle should apply in the case of a dead plaintiff – Whether Judge erroneously took into account factors not covered by the evidence – Correct sum to be awarded – Law Reform Act (Chapter 26).

Editor's Summary

On 16 February 1980, the deceased, a youth of 17, was fatally injured in a traffic accident on the main Nairobi/Mombasa road. His father was duly appointed administrator of his estate and instituted proceedings under the Law Reform and Fatal Accidents Acts against the drivers and owners of the

vehicles involved, for damages, *inter alia*, for the loss of his maintenance and support, and for general damages. The claim under the Fatal Accidents Act was withdrawn at the close of the hearing.

The trial Judge, basing his decision on the English case of *Gammel v Wilson* [1982] AC 27, which, in turn, was based on section 1(1)(*c*) of the Law Reform (Miscellaneous Provisions) Act of 1934 (since repealed), held that the lost years principle applied by the Court of Appeal in *Mariga v Wambua* (1982–1988) 1 KAR 507 in the case of a living plaintiff, applied also to a "dead" plaintiff, whose cause of action survived for the benefit of his estate under the Kenya Law Reform Act. He then awarded a total of KShs 353 100, which included KShs 320 000 for damages for the lost years, using a multiplier of 16. The plaintiff appealed against the award, contending that it was manifestly too low, and the cross-appeal was abandoned, so that the Court of Appeal did not have to consider the entitlement of a dead plaintiff to damages for the lost years, but only the quantum thereof.

Held – The Judge had erred in disregarding the custom in Kenya whereby families expect their children to assist in their support when they become adults, in importing his own experience as to whether the deceased might change his mind (before or after qualifying) about following his chosen career as an architect, and in regarding the evidence of two professional architects as to their earnings, as a guide to that which the deceased might have been expected to earn, as of no assistance.

In view of these and other unfortunate passages in the judgment it was manifest that the Judge had acted on wrong principles in his award, which would be increased to KShs 380 000 for the lost years.

Per Nyarangi JA – The financial assistance relative to the ability of the deceased which is normally expected and readily provided is obliterated by the death. The cost of bringing up the deceased and the expense of his/her education is lost, never to be redeemed. All the benefits that would accrue to the parents, and where it applies, to younger brothers and sisters of the deceased as the deceased matured physically and materially are extinguished. Now, almost all assistance of this kind would in the conditions of Kenya be almost wholly economic in substance. So much so that the loss caused by the death could never be adequately compensated in monetary terms. No question of a windfall to the parents can therefore reasonably arise. The sole issue all the time is the assessment of a fair award in the circumstances of any one case.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Attorney-General v Waiyera (1982–1988) 1 KAR 84

Butt v Khan (1982–1988) 1 KAR 1

Mariga v Musila (1982–1988) 1 KAR 507

Singh and another v Singh and Handa (1955) 22 EACA 129

United Kingdom

Adsett v West [1983] 2 All ER 985

Elson v Crookes [1911] 106 LT 462

Gammel v Wilson [1982] AC 27; [1981] 1 All ER 578

Harse v Pearl Life Assurance Co [1904] 1 KB 558

Howard v Refuge Friendly Society [1886] 54 LT 644

Kandalla v British European Airways Corporation [1981] QB 158

Lim Poh Choo v Camden and Islington Area Authority [1979] 2 All ER 910

Pickett v British Rail Engineering Ltd [1980] AC 136

Rose v Ford [1937] AC 826

West (H) and Son Ltd v Shephard [1963] 2 All ER 625; [1964] AC 326

White v London Transport Executive [1982] 1 QB 489

Judgment

Kneller JA: Sheikh Mushtaq Hassan (Hassan or the appellant) was awarded KShs 600 being the agreed special damages with interest at 12% a year from 25 September 1981 until payment in full, KShs 352 500 general damages with interest at 12% from 14 June 1985 until payment in full, his costs, including those of two advocates, by the High Court in Mombasa (Mr Justice Aragon) on 14 June 1985 all of which has to be paid by one or more of the following – Nathan Mwangi Kamau Transporters, Michael Njogu, Joseph Katende, Muragwe Damas, Tasneem Lalani and Sheheen Lalani (the respondents).

Hassan is, apparently, dismayed by the paucity of the general damages (KShs 352 500 or £17 625) which is described in his memorandum of appeal filed on 31 October 1985 as so inordinately low that it is a miscarriage of justice. His advocates (Mr *Gautama* and Mr *Diniz*) in Hassan's memorandum of appeal listed and Mr *Gautama* urged the reasons for what they call this miserable amount. They were that the learned Judge misdirected himself by:

1. ignoring the material evidence of Grewal and Martins;
2. drawing inferences adverse to Hassan based on the differences in living and working conditions in Mombasa and Nairobi; and
3. overlooking the probability that Sheikh Ishtiaq Hassan (Hassan's second son) would have increased his earnings as the years rolled on and not continued to earn KShs 60 000 (£3 000) a year; or the Judge erred when he:
4. misunderstood the effect of the evidence of Grewal and Martins;
5. forgot their evidence was not rebutted; and
6. took into account his own experience of life at a university and in Mombasa or in Nairobi which was irrelevant.

The respondents' advocates (Mr *Mwaura* and Mr *Guram*) filed a joint notice of cross-appeal in Mombasa on 14 November 1984 asking this Court to vary or reverse that award because Mr Justice Aragon:

(*a*) having rejected the evidence of Grewal and Martins as having no probative value then proceeded to award damages for them on his estimate of what the deceased would have earned and saved

had he survived; and

(*b*) the award was inordinately high.

Mr *Guram* led Mr *Mwaura* at the hearing of the appeal in Mombasa on 24 January 1986 and when it began he said the respondents abandoned the cross-appeal. Mr *Gautama* asked for it to be dismissed with costs and we reserved our ruling on it until we delivered the judgment. Thereafter Mr *Guram* opposed Mr *Gautama*'s pleas for an increase in this award.

This Court, I remind myself, is only entitled to increase an award of damages by the High Court if it is so inordinately low that it represents an entirely erroneous estimate or the party asking for an increase must show that in reaching that inordinately low figure the Judge:

(*a*) proceeded on a wrong principle; or

(*b*) misapprehended the evidence in some material respect.

See Briggs JA in *Channan Singh and another v Channan Singh and Handa* (1955) 22 EACA 129; Law JA in *Butt v Khan* (1982–1988) 1 KAR 1; Hancox JA in *Mariga v Musila* (1982–1988) 1 KAR 507.

And a member of an appellate court when he naturally and reasonably says to himself "what award would I have made?" and reaches his own figure must recall that it should be in line with recent ones in cases with similar circumstances and that other Judges are entitled to their views or opinions so that their figures are not necessarily wrong if they are not the same as his own (*West (H) and Son Ltd v Shephard* [1964] AC 326; [1963] 2 All ER 625 at 635 ER (HL) Lord Morris of Borth-Y-Gest).

And the Judges of both courts should recall that inordinately *high* awards in such cases will lead to monstrously high premiums for insurance of all sorts and that is to be avoided for the sake of everyone in the country (Lord Denning MR in *Lim Poh Choo v Camden and Islington Area Authority* [1979] 2 All ER 910; Hancox JA *Mariga v Musila* (*ibid*)).

Here I must set out some undisputed facts to form a background to this contest. Hassan is a Caltex employee and he and his wife had two sons. The second was Sheikh Ishtiaq (Ishtiaq) who died on 18 February 1980 in the Kenyatta National Hospital 48 hours after being involved in a traffic accident near Hunter's Lodge on the Mombasa Nairobi road at about 9:00pm. He was a passenger in a Tasneem Lalani's vehicle driven by Sheheen Lalani which collided with a lorry and its trailer owned by Nathan Mwangi Kamau Transporters driven by Michael Njogu which had smacked into a vehicle owned by Joseph Katende driven by Muragwe Damas.

The respondents jointly and severally agreed they were liable in negligence for the death of Ishtiaq. Hassan's advocate withdrew his claim under the Fatal Accidents Act (Chapter 32) on 25 October 1984 near the end of the trial and thereafter confined it to damages for the estate of Ishtiaq (of which he was appointed the administrator) under the Law Reform Act (Chapter 26) and the headings of (i) pain and suffering; (ii) loss of expectation of life; and (iii) the lost years. The parties agreed on a figure of KShs 7 500 for the first and KShs 25 000 for the second. The total of those two sums is KShs 32 500 (£1 625).

This left only the third, the lost years, for assessment and the figure reached by the Judge was KShs 320 000 (£16 000).

And how did the Judge calculate that sum? He estimated that Ishstiaq would have earned an average of KShs 60 000 (£3 000) a year and then he deducted

two-thirds for his expenses which left Ishtiaq with KShs 20 000 surplus a year. Next he multiplied that sum by 16 (the multiplier having been agreed by the parties) and so he came to his KShs 320 000 (£16 000) for the lost years. He would not be lured into an award of KShs 900 000 (£45 000) by the eloquence of Mr *Gautama*.

Mr Justice Aragon in his judgment held that under the Law Reform Act damages for the lost years are recoverable for his estate where the victim dies in or as a direct result of an accident and before he can institute an action.

The reason for this was that to all intents and purposes the Law Reform Act of Kenya was identical with the Law Reform (Miscellaneous Provisions) Act of 1934 of England so it was reasonable when the circumstances justified it to adopt when appropriate any clearly correct decision of an English Court in its interpretation of the English Act.

It was held, for example, in *Rose v Ford* [1937] AC 826 that whenever a person dies as a result of another's negligence then because before his death he had a cause of action for damages for loss of expectation of life that cause survived his death for the benefit of his estate. And this principle was also part of the Law of Kenya.

Later, in *Pickett v British Rail Engineering Ltd* [1980] AC 136 the House of Lords held that a living plaintiff was entitled also to damages for the "lost years". Pickett instituted his action and appealed but died before it was heard so his widow as administratrix carried on the appeal.

And it took the next step in *Gammel v Wilson* [1981] 1 All ER 578; [1982] AC 27 by holding that they are recoverable by and for the estate of a victim who *dies* before the action is instituted (just as Ishtiaq did).

Mr Justice Aragon was of the view that all that was good law because the death of the injured party before he could file suit made no difference. The provisions of the Law Reform Act were to bury the maxim "*actio personalis moritur cum persona*" and so not to follow the English decisions would simply resurrect it.

The fact that in England Parliament specifically smothered the effect of *Gammel v Wilson* (*ibid*) by legislation did not deflect the learned Judge. He observed that *Pickett's* case had been unhesitatingly applied in Kenya by this Court (Hancox JA and Chesoni and Nyarangi AJJA) on 16 March 1984 in Nakuru in *Mariga v Musila* because it was an appropriate English decision to which it was right to pay regard to in the circumstances prevailing in Kenya.

There has been no cross-appeal from that part of the learned Judge's decision. There have been about three years for the Parliament of Kenya to legislate against the principle in *Gammel v Wilson* had its shadow disturbed the executive, legislature or insurance companies.

Then, having declared that principle to be part of the law of Kenya, Mr Justice Aragon went on to set out various guidelines to the assessment of damages for "the lost years" from other relevant English decisions including: *Howard v Refuge Friendly Society* [1886] 54 LT 644; *Harse v Pearl Life Assurance Co* [1904] 1 KB 558; *Elson v Crookes* [1911] 106 LT 462; *White v London Transport Executive* [1982] 1 QB 489 at 499; *Adsset v West* [1985] 2 All ER 985 at 989.

My summary of their relevant principles is this:

(i) a parent cannot insure the life of his child;

(ii) the death of the victim of the negligence does not increase or reduce the damages for the lost years;

(iii) the sum to be awarded is never a conventional one but compensation for a pecuniary loss;

(iv) it must be assessed justly and with moderation;

(v) the complaints of insurance companies at the size of such awards should be ignored;

(vi) disregard remote inscrutable speculative claims;

(vii) deduct the victim's living expenses during the lost years for they would not form part of the estate;

(viii) a young child's present or future earnings in most cases would be nil;

(ix) an adolescent's would usually be real, assessable and small;

(x) the amount will vary greatly from case to case for it depends on the facts of each one including the victim's station in life;

(xi) calculate the annual gross loss;

(xii) apply the multiplier (the estimated number of lost working years accepted as reasonable in each case);

(xiii) deduct the victim's probable living expenses of a reasonably satisfying enjoyable life for him or her; and

(xiv) living expenses include the reasonable cost of housing, heating, food, clothing, insurance, travelling, holidays, entertainment, social activity and so forth.

Lord Scarman was, with great respect, right in his speech in *Gammel v Wilson* when he said (at 78):

> ". . . if sufficient facts are established to enable the Court to avoid the fancies of speculation, even though not enabling it to reach mathematical certainty, the Court must make the best estimate it can. In civil litigation it is the balance of probability which matters . . ."

And again later on in it:

> ". . . subtle mathematical calculations based as they must be on events or contingencies of a life which he will not live are out of place; the Judge must make the best estimate on the known facts and his prospects at the time of his death."

At this point I should now return to the facts and set out what those facts and prospects were.

Ishtiaq was 18 when he died. He was a healthy Kenya citizen of Indian and middle class origin from Nairobi. He hoped to be an architect and he would have begun to study the subject at Nairobi University in September 1980.

Grewal and Martins who are architects in Mombasa testified as to their own careers and earnings and what Ishtiaq might have earned. Grewal is a partner and Martins an associate in the Mombasa office of the well-established firm of Hughes and Polkinghorne. Martins gets 10% of the profits of the Mombasa office which in 1983 was KShs 140 000 (£7 000) gross. Their evidence was

that it would take Ishtiaq five years to qualify and then he would get a job with a salary of KShs 60 000 (£3 000) to KShs 84 000 (£4 200) a year. Two years later, if he passed the examination, he would become a registered architect and could practice as his own or, if reasonably competent, become a partner or an associate in a firm. He would earn KShs 96 000 (£4 800) to KShs 108 000 (£5 400) a year until he had six to seven years experience when it might rise to KShs 120 000 (£6 000) to KShs 144 000 (£7 200) a year. An associate or a partner has a house and a car provided free and his water, professional subscriptions, electricity and telephone bills paid by the firm. The prospects for building architects finding a job in late October 1984, which is when these two gave evidence, was dim because there was a recession in the building trade but it was thought that that would pass and then much would depend on Ishtiaq's ability and industry.

Ishtiaq's father, Hassan, and elder brother, Zubair, dealt with Ishtiaq's life up to his death. They spoke of him as a Kenya citizen, enjoying good health, as they did, very keen on being an architect and very artistic. They would provide for him until he could stand on his own. He had done well in his "O" level examinations and poorly in his "A" level ones. There were numerous friends of the family who would employ him when he graduated. There was some suggestion that Ishtiaq had wanted to be an aeronautical engineer but had bowed to the wishes of the family (probably those of his father, in fact) and decided to study and practice architecture. At one point Mr *Guram* for the Lalanis conceded that Ishtiaq was a healthy, able and virtuous young man.

When it came to the submissions (which Mr Justice Aragon heard) Mr *Gautama* suggested Ishtiaq might have lived another 47 years or more having graduated in 1986. Then for two years he would have had a surplus of KShs 14 400 (£720) a year, KShs 90 000 (£4 500) for the next three years, KShs 195 000 (£975) for the next five years and then he would have become an associate with a surplus of KShs 51 000 (£2 500) a year. He handed up a calculation of all this for the 16 years agreed to be the multiplier which concluded with a total surplus of KShs 923 400 (£46 170). Mr *Mwaura* castigated all that as completely speculative and invited Mr Justice Aragon to exercise the discretion of the Court in finding a figure roundabout KShs 200 000 (£10 000) which would be a reasonable one remembering that there should be some discount for a "cash" payment. Mr *Guram* was at that state content to suggest there should be no award for the "lost years" for *Gammel v Wilson* had not been applied in Kenya hitherto.

Mr Justice Aragon found all this cogent, lucid and most helpful. He went on to make some calculations. He began with the salary of a High Court Judge which he put at KShs 128 000 (£6 400) a year, deducted 45% for income tax which brought it down to KShs 70 400 (£3 520) a year and then lopped off another KShs 10 400 (£520) which left Ishtiaq with KShs 60 000 (£3 000) a year income.

Two-thirds of that went to cover his expenses each year and that left KShs 20 000 (£1 000) a year as his annual surplus. Then he multiplied the surplus by 16 and achieved the sum of KShs 320 000 (£16 000) which he called "a more realistic figure" in the general circumstances prevailing in Kenya.

It is not the KShs 200 000 suggested by Mr *Mwaura* and far off the KShs 900 000 of Mr *Gautama*'' calculations.

This was apparently the first time any court in Kenya made any award for the “lost years” when the victim had died before instituting a suit, so there are no reported decisions of the Courts in neighbouring countries on the issue that I can find. It is therefore impossible to calculate a figure that is in line with recent ones in cases with similar circumstances.

The learned Judge was entitled to his views and opinions on what was the appropriate sum.

He was of the view an award would do Ishtiaq no good because he was dead, and it would provide a windfall for his dependants or those deemed to be his dependants, which in this case were his father and mother, who in fact were not his dependants when he died and had not sustained an economic loss. They had, he acknowledged, lost Ishtiaq but that was not a loss that could be compensated for by money. None of this is objectionable and he went on later faithfully to apply *Gammel v Wilson* because he had just held it was the law.

There were, however, some unfortunate asides which plainly affected his approach and, in my respectful view, led him into error.

He described as outrageous and pernicious Mr *Gautama*’s submission that in Kenya parents expect to be maintained in the autumn and winter of their life. He rejected it as an incorrect approach to such an award. The fact of the matter is, however, that today parents and children in most Kenya families do expect their children when adults to help their parents if they need it and, in my view, that should be encouraged and not fulminated against as “a system of gerontocracy at its worst.”

Then the learned Judge had it in mind that Ishtiaq might change his mind about being an architect. This was a possibility but there was nothing to suggest this was probable. The learned Judge did so after his first two years in his university, he revealed, but that, with respect, was irrelevant. He also wondered if Ishtiaq might change his career when he had qualified as an architect. This, again, was not prompted by anything in the evidence.

These ruminations led the learned Judge to declare the evidence of Grewal and Martins to be of no assistance in determining what Ishtiaq would have earned had he qualified and practised as an architect. He added to that by saying that he knew Grewal and Martins and they are both exceptionally gifted in their callings whereas Ishtiaq was unexceptional. The learned Judge overlooked the fact that Ishtiaq had begun well enough by being accepted by the University of Nairobi to read architecture and the Judge’s own views of the ability of Grewal and Martins should not have been allowed to influence his view of the value of their testimony which was relevant and unchallenged.

Likewise the Judge brought in the differences in the competition among professionals in Nairobi and Mombasa and how that would affect the earnings of Grewal and Martins and what they thought Ishtiaq might earn if he were launched in his career as an architect. Grewal and Martins made helpful general observations on the salaries of emerging architects and were not questioned on the differences between those for Nairobi and Mombasa architects so that was also something the Judge imported into the trial which he should not have done.

It is also not clear why he should choose as his starting point the salary of a High Court Judge when all along the evidence was kept to Ishtiaq’s ability and probable future as an architect. And an average of only £3 000 a year salary for Ishtiaq is probably an unwarrantedly low estimate.

It seems to me, therefore, that the learned Judge, with respect, proceeded on those wrong principles and in so doing reached an inordinately low figure.

Following the guidelines I set out earlier in this judgment I reach the figure of KShs 380 000 as compensation for the loss his estate suffered for Ishtiaq's lost years. This is KShs 60 000 (£3 000) more than the learned Judge awarded and cannot, I think, be termed mere tinkering with his figure. It is also not an inordinately high award but a reasonable one which might serve as a negotiating point for such claims in the future.

I propose, therefore, that the appeal should be allowed with costs, the decree of the High Court should be varied by increasing the award of damages by KShs 60 000 from the date of the High Court judgment, and since it was abandoned when the hearing began there should be no order for the costs of the cross-appeal.

Hancox and Nyarangi JJA agree so those are the orders of the Court.

Nyarangi JA: I agree, and I take respectfully the same view of the points raised by the appeal as Kneller and Hancox JJA. I think that a question of some general importance is raised by this case and I therefore propose to give, shortly, my reasons for agreeing that the appeal succeeds.

The learned trial Judge expressed strong sympathy with the views of Griffiths J in *Kandalla v British European Airways Corporation* [1981] QBD 158 at 169D and then observed:

> "The damages will be enjoyed by persons who, in actual fact, may well not have sustained any economic loss whatsoever as a result of the deceased's death as is the case in the present suit . . ."

That may well be the case in England and Wales – I will later explain why I am excluding Scotland – but in the context of Kenya, and that is the relevant context, parents of a deceased young man who would have been preparing himself for a career with a view to looking after his parents in their old age suffer real economic loss. The financial assistance relative to the ability of the deceased which is normally expected and readily provided is obliterated by the death. The cost of bringing up the deceased and the expense of his/her education is lost, never to be redeemed. All the benefits that would accrue to the parents, and where it applies, to younger brothers and sisters of the deceased as the deceased natured physically and materially are extinguished. Now, almost all assistance of this kind would in the conditions of Kenya be almost wholly economic in substance. So much so that the loss caused by the death could never be adequately compensated in monetary terms. No question of a windfall to the parents can therefore reasonably arise. The sole issue all the time is the assessment of a fair award in the circumstances of any one case. The award, the subject matter of this appeal, was obviously affected by the sympathy the trial Judge had arising from a judgment which related to a different society with a different culture. The Judge had before him a suit involving Kenya parties and he was therefore duty bound to apply the decision of the English High Court having due regard to the customs and reasonable expectations under the culture of the parents of the deceased who are Kenyans. It was an error on the part of the Judge to approach the case as if the appellants were citizens of the UK and as if the trial was held in London. The error improperly influenced the Judge to make a very low award.

A child has no insurable interest in the life of his parent (*Howard v Refuge Friendly Society* [1886] 54 LT 644). A parent has by relationship no insurable interest in the life of his child. In Scotland, however, "a parent has the right to be supported by his child, and vice versa and each will accordingly have an insurable interest in the life of the other, limited to the amount reasonably necessary to protect the assured against the contingency of the death of the life assured" (see for example *Houseman's Law of Life Assurance* (8 ed) at 30 paragraph 2). So, the Scots, an economically advanced community of the UK who are anxious to preserve their culture, expect their children to support them. And of course, children in Scotland get married, too. That is not different from the expectations of Kenyan parents. The trial Judge knows rather more about Scotland than I do. To assert therefore that the Kenya custom is anathema and will hinder development is tantamount to saying that no other developed people anywhere practice that custom. With respect that is factually fallacious.

At the trial it was conceded on behalf of the respondents that the deceased was "a healthy, able and virtuous man". Notwithstanding the concession, in his judgment the trial Judge held that he was left with:

> "a young man of upper middle class background with a good education, a pleasant personality but with nothing exceptional. I estimate that such a person would most likely earn on the average about KShs 60 000 per annum."

At a stroke the trial Judge wrongly belittled the deceased's ability and under that misdirection wrongly estimated the average annual earning of the deceased at KShs 60 000. At one stage the trial Judge speculated to the disadvantage of the deceased by implying that the deceased would have changed his mind about studying architecture. Lord Scarman advised against all speculation in *Gammel v Wilson* [1982] AC 27 at 78; [1981] 1 All ER 578 and that is the proper and fair approach.

That leads me to a branch of the case upon which I may have to make remarks which may cause pain. I shall do so with regret but this Court ought not to make a precedent where there is none and where there are good reasons why there is none. Dealing with Mr *Gautama*'s urging that the damages which were sought would not be a windfall because parents in Kenya looked forward in old age to be maintained by their children, the trial Judge remarked as follows:

> "To my mind that is both an outrageous and pernicious doctrine to which I will not subscribe . . ."

Later, the Judge observed:

> "If the children wish to assist the parents that is highly commendable . . . but to impose a duty on them to support their parents is wrong. I can see no reason why children should be bound to provide for improvident parents . . ."

In general, in Kenya children are expected to provide and do provide for their parents when the children are in a position to do so and to the extent of their abilities. The children are expected to do that by the established customs of the various African and Asian communities in Kenya. This particular custom is broadly accepted, respected and practised throughout Kenya both by Africans and Asians. I would say the application of the custom at family level is the basis of the national ethos of being mindful of others' welfare. In the Asian community, the custom is supported by the Hindu religion whose influence on the life of the Hindu community is well nigh total. That is common knowledge. With

regard to Africans, the Courts in Kenya exercise their respective jurisdictions *inter alia* to the extent the circumstances of Kenya and its inhabitants permit and subject to the qualifications those circumstances render necessary. The trial Judge's contemptuous remarks about the custom of the people is contrary to section 3(1) of the Judicature Act (Chapter 8) and therefore to be regretted and disapproved. The custom could not possibly be said to be repugnant to justice and morality. The custom is well within the tenets of the great religions of Hinduism, Christianity and Islam. It is a custom the practice of which appeals to ordinary people in Kenya, is not malevolent and the trial Judge's view that it is "outrageous and pernicious" is not well-founded and must be rejected. I would say a Judge should be very slow to criticise any particular custom of people. There always is a purpose for the practice of a custom. Human beings do not partake for too long in customs which are not beneficial to them. If a Judge is required to apply a custom, it is often safe to summon to its assistance one of more competent assessors from the tribe or community of the parties to the action – see section 87 of the Civil Procedure Act – before making critical comments on a custom. It is clear from the relevant part of his judgment that the trial Judge does not fully understand the substance and application of the material custom. For example, children assist parents as a moral obligation when it is necessary and having regard to their means. Such assistance is not intended, in the remotest, to interfere with the necessity for such children to look after their own families. Kenyan parents like to take part in the marriage of their children, and so they would have a real interest in the welfare of their children, daughters-in-law and grandchildren. If only for that reason parents in Kenya would be wary to ask for or look forward to such assistance as would wreck the marriages of their children or inconvenience their grandchildren. In Kenya, as elsewhere, children are dear to their parents' hearts and to their pockets. Also, children in Kenya by custom inherit some property from their parents to enable the children to prepare themselves to provide assistance when the time comes. The trial Judge had no evidence for his erroneous conclusions and, I dare say, his contempt for the custom affected his assessment of the award. How can it be otherwise after the trial Judge held it was outrageous for children to be expected to provide for their parents? In so many words, the trial Judge told the appellant that it was outrageous for him to expect assistance from his sons and that, for that reason, he wouldn't award him very much. That was an error. For all those reasons, and for the other reasons given in the judgment of Kneller and Hancox JJA, I feel obliged to yield to the appellant's contention and I concur that the trial Judge proceeded on wrong principles and reached such a low figure that we must interfere, allow the appeal and raise the award to KShs 380 000.

I concur with the order proposed on costs.

Hancox JA: The appellant sued the six respondents in his capacity as the administrator of his late son's estate for damages for negligence, for his death as a result of a multiple collision on the Nairobi/Mombasa road, near Hunter's Lodge in February 1980. The action was brought under the Law Reform and Fatal Accidents Acts. The boy was just under 17 (not 18) years of age at the time of his death.

Liability was admitted and most of the issues as to quantum of damages were agreed before Aragon J, who tried the case at Mombasa in October 1984. In the result the learned Judge awarded damages as follows:

(i) Agreed special damages

KShs 600

(ii) Damages for lost years using a multiplier of 16	KShs 320 000
(iii) Agreed damages for loss of expectation of life	KShs 25 000
(iv) Agreed damages for pain and suffering	KShs 7 500
Total	KShs 353 100

Accordingly, in this appeal the only figure that was contested was (ii) above. The entitlement of the appellant on behalf of the dead plaintiff, under *Gammel v Wilson* [1982] AC 27, and the appropriate statute in Kenya, to damages for the lost years, as found by the Judge, was not challenged in this Court, so we had no jurisdiction or occasion to consider that which we expressly left open in *Mariga v Musila* (1982–1988) 1 KAR 507, namely the validity of an award of damages for the lost years for a dead (as opposed to a living) plaintiff, whose death was caused by the negligence of the defendant.

Having read his judgment in draft, I find myself in complete agreement with all that has fallen from Kneller JA. I agree that the main award was such that it warrants interference by this Court and I agree with the figure of KShs 380 000 proposed by Kneller JA. That makes a total of KShs 413 000 with the special damages, which, on any showing will produce a handsome income on investment to the surviving family of the deceased, though it is sad comfort to them.

I will just add a sentence or two regarding the deceased's prospects. Mr *Gautama*, who argued his case at length and with much repetition on behalf of the appellant, cannot get away from the fact that the calculation he provided at the hearing showing the breakdown of the figure of KShs 923 000 which he then proposed as the correct amount to be awarded, inevitably included the deceased's prospects by way of promotion if he went into government, local government, or a large firm, and by way of reward if he entered private practice, alone or with others, both of which were envisaged by the evidence of a partner in Messrs Hughes and Polkinghorne, Mr Grewal PW4.

We said specifically in *Attorney-General v Waiyera* (1982–1988) 1 KAR 84, that it must be shown to be likely that the plaintiff would have achieved promotion for damages to be given under this head. There was, and could be, no such proof in this case for the deceased had not yet embarked on his career. So that is a factor to be taken into account on the other side of the scales. Another factor not taken into account by the Judge on the respondent's side, though mentioned in argument, was that there should be some discount to atone for a lump sum being paid immediately.

I also find myself in agreement with Kneller and Nyarangi JJA, whose judgments I have also read in draft, that it was improper for the Judge to describe the humane practice of children looking after and maintaining their parents in their advancing years as "outrageous and pernicious". It is nothing of the kind, and, as we have said repeatedly, both common law and its applicability must be tempered and adjusted to the circumstances, needs and generally held views of the people of Kenya who come to its courts to receive justice from tribunals appointed to consider those very circumstances, needs and views.

Finally, I feel bound to say that I am obliged to Mr *Guram* for his very concise and noticeably proper conduct of the respondent's case, and who rightly conceded his cross-appeal at the outset. I would dismiss the cross-appeal but with no order as to its costs. I would allow the main appeal to the extent indicated by Kneller JA. I also agree with the order as to costs proposed by him.

For the appellant:
SC Gautama and *A Diniz*

For the respondent:
S Guram and *K Mwaura*

Hastings Irrigation (K) Ltd v Standard Chartered Bank (K) Ltd and others
[1987] 1 EA 149 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	2 December 1987
Case Number:	172/87
Before:	Hancox, Nyarangi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Company law – Debenture – Appointment of receivers and managers under power contained in debenture – Failure of negotiations – Thereafter – Whether receivers entitled to sell charged property – Whether temporary injunction to restrain such sale should be granted – Principles governing exercise of powers under debentures and of interference with due commercial practice by court orders – Section 69(1) – Indian Transfer of Property Act of 1882 – Rule 5(2)(b) – Court of Appeal Rules.

Editor's Summary

By a debenture executed in October 1978, the applicant company charged its property, including, *inter alia*, a leasehold ten acre plot of land at land registration number 8116 Nairobi, with the discharge of advances made by the Standard Chartered Bank, the first respondent to the application, up to a limit of KShs 6 million.

In November 1978, a related company, "Concrete Pipes", entered into a guarantee of the applicant's advances and executed a charge over the same parcel of land, which was subdivided between the two companies in November 1982.

The Company experienced difficulty in servicing its loan from the Bank and it was common ground that it had "defaulted perpetually" on its loan, whilst the overdraft was always withdrawn beyond the authorised limit. In addition, the component members of the company, Concrete Pipes, the Agricultural Development Corporation (the ADC) and Hastings Irrigation of Nebraska, USA had entered into a joint venture agreement in December 1977, which had not prospered due to the withdrawal of support by the Bank and the ADC. In the result the Bank, acting under its powers in the debenture, appointed the second and third respondents as receivers and managers of the company's assets in February 1987.

Following the appointment of the receivers, energetic negotiations followed between the Bank, the ADC and the ICDC with a view to restructuring and refinancing the company, but these foundered and the Bank threatened to sell the company's assets by newspaper advertisements successively on 14

August and 20 and 27 November 1987. After the first advertisement the company filed suit claiming an injunction against all the respondents to restrain the sale and also

a temporary injunction to the same effect, which was refused by the Judge on 11 November 1987. The applicant company appealed against the order and sought an injunction under rule 5(2)(*b*) of the Court of Appeal Rules, submitting that the sale would cause irreparable harm, that the assets, including the plot of land, would be likely to be sold at an undervalue, and that the balance of convenience clearly lay in favour of granting the injunction.

Held – In view of the clear and continuing breaches of covenant in the debenture on the part of the company, it could not be contended otherwise than that the appointment of the receivers and managers in February 1987 was a valid exercise of the power contained in the debenture executed in October 1978.

The principles to be applied in the granting of temporary injunctions were as laid down in *Giella v Cassman Brown and Co Ltd* [1973] EA 358; first that the applicant must show a *prima facie* case with a probability of success; secondly, that the applicant would otherwise suffer irreparable injury; thirdly, that if there is any doubt the Court will decide the matter on the balance of convenience.

It was not appropriate, within the above principles, for the Court to interfere in the passage of the receivership unless it could be shown that the conduct of the receivers and managers was seriously oppressive, or not in accordance with the recognised principles of law and of commercial practice, or that there were clear and compelling reasons to do so.

The facts on record showed that the Bank had exercised restraint in that it made no attempt to compel the receivers to act while credible negotiations were in progress.

In the instant case there were no clear or compelling reasons which would justify the Court in interfering with the due course of a lawful and recognised commercial practice of exercising the power of sale contained in a debenture.

Application refused.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Giella v Cassman Brown and Co Ltd [1973] EA 358

Mohamed v Madhani (1953) 20 EACA 8

Simlani v Magotswe civil appeal number 1 of 1987

Judgment

Hancox, Nyarangi JJA and Masime AJA: By a debenture dated 19 October 1978, the applicant company, Hastings Irrigation (Kenya) Limited, whom we shall call "Hastings Irrigation", thereby charged all its undertaking, goodwill, assets, book debts and property whatsoever and wheresoever, both present and future, including all its uncalled capital, with the payment and discharge of all moneys and liabilities thereby agreed to be paid or discharged, in favour of the Standard Bank Limited, who were the predecessors of the first respondent to this application (therein and hereinafter called "the Bank").

The debenture was said to be in consideration of the Bank having agreed to make or continue to make advances to Hastings Irrigation, of permitting it to overdraw on its current account and granting to it other financial accommodation from time to time. The limit of the security provided by the debenture was stated at KShs 6 million, ranked as a first charge on all Hastings Irrigation's property, operated as a fixed charge on its immovable property and as a floating charge over all the other property concerned.

The debenture contained the usual power in favour of the debenture holder to appoint a receiver and manager of the property charged, which was exercisable after the principal moneys became due and payable either by way of lawful demand or under clause 10 thereof. Clause 10 provided, *inter alia*, that those moneys should become due and payable:

> "(*d*) If an order is made or a resolution is passed for the winding up of the company, or a petition for such winding up is filed . . .
>
> (*f*) If the company (meaning Hastings Irrigation) commits or attempts or purports to commit any breach of the covenants herein contained . . ."

The next relevant security to which we should refer is a guarantee, executed by a company known as Concrete Pipes and Products (1970) Limited, up to the limit of the amount stated in the debenture, on 29 November 1978, of Hastings Irrigation's utilisation of the Bank's facilities by way of overdraft, also in favour of the Bank. This guarantee was reinforced by the execution on 26 November 1982, of a charge by Concrete Pipes and Products over its leasehold property at land registration number 8116, Nairobi, amounting to ten acres. The legal date of redemption was stated in that document to be 3 December 1982, after which any sums owing by Hastings Irrigation were payable upon written demand by the Bank. The mortgage debt was to become payable without demand, and the statutory power of sale exercisable, if an order was made, or an effective resolution passed, for the winding-up of the mortgagor (Concrete Pipes) or of the borrower (Hastings Irrigation). The statutory power of sale under section 69(1) of the Indian Transfer of Property Act of 1882, was, as is required, subtended to the instrument of charge.

The connection between the two companies is demonstrated from a perusal of the record, which is before us, in two respects in particular, namely that Hastings Irrigation had as its component parts Concrete Pipes and Products, the Agricultural Development Corporation ("the ADC") and the Hastings Irrigation Pipe Company of Nebraska, USA. They all entered into the Joint Venture Agreement made on 21 December 1977, whereby Hastings Irrigation was formed. Secondly, the ten-acre property at land registration number 8116, Nairobi which Concrete Pipes and Products had charged to the Bank in November 1982, has now been subdivided into two portions, one for Hastings Irrigation and the other remaining with Concrete Pipes and Products. It is presumably the sale of the present subdivided plot which is threatened in the advertisements in the edition of the *Daily Nation* of 20 and 27 November 1987, respectively.

Exercising its powers under the debenture the Bank appointed two receivers and managers, who are named as the second and third respondents, by an instrument dated 4 February 1987. This appointment apparently galvanised the applicants into action, and, as appears from the affidavit of Hezekiah Gitata filed in the High Court on 11 September 1987, energetic negotiations took

place between the Bank, the ADC, Hastings Irrigation and ICDC during the initial period of the receivership, with a view to refinancing and restructuring Hastings Irrigation. As appears from the affidavit, the ADC withdrew the rug from under Hastings Irrigation, and the Bank also refused to participate further, and this undoubtedly precipitated the first advertisement by the second receiver and third respondent in the *Daily Nation* of 14 August 1987, threatening to sell the assets of Hastings Irrigation, with the closing date for offers stated as 11 September 1987.

This, in turn, seems to have precipitated the filing of a summons and plaint by Hastings Irrigation, against the present respondents on 18 August 1987, claiming an injunction to restrain them from proceeding with the sale of the assets, and for the true accounts of the Bank loan and the receivership to be rendered to the Court and to the plaintiff.

Hastings Irrigation, through its advocates, then sought a temporary injunction from the High Court, which was opposed by the respondents on the grounds stated in the notice of opposition filed under Order L, rule 16 of the Civil Procedure Rules, and, in the event, refused by Mbogholi Msagha J on 11 November 1987, who applied, though he did not accurately state, the principles governing the granting of such injunctions laid down by this Court's predecessor in *Giella v Cassman Brown and Co Ltd* [1973] EA 358 at 360. The balance of convenience is the third limb of the test, not the balance of probabilities.

It is from this decision of the High Court that the main intended appeal is brought, by a notice of appeal filed on 16 November 1987, and this Court's jurisdiction to grant a similar injunction is invoked by virtue of the amendment to rule 5(2)(*b*) of our Rules passed by legal notice number 14 of 1984. We would observe that there were a number of defects in the compilation of the record of appeal of which we had occasion to complain during the course of the *ex parte* hearing of the application before us, not the least of which was the misstatement of the rule in the heading and the erroneous reliance on the inherent jurisdiction provisions of rule 1(3). It is well established that that rule can only be prayed in aid in the absence of other, specific, remedies, such as is claimed here.

The basis of the submissions of Mr *Thiongo* (who appeared on behalf of the applicant) before us was that by reason of the two recent advertisements to which we have referred, the sale of Hastings Irrigation's assets is imminent, that this will cause irreparable harm, that there is a likelihood that the assets will be disposed of at an undervalue, and that the balance of convenience clearly lies with the granting of the order sought, and thus the staus quo preserved until this application can be heard *inter partes*.

A subsidiary point taken by Mr *Thiongo* was that the company was in the joint venture agreement with the other parties we have already mentioned for the purpose of manufacturing in Kenya aluminium irrigation pipes, which is of clear benefit to the people and to the economy of Kenya, there being as yet only a few companies operating in the field. This is indicated by the extracts from the newspaper reports which appear in the record as annexures to this agreement dated 21 December 1977, which was subsidiary to the joint venture agreement of the same date, to which we have already made reference. In

support of this we also quote from paragraphs 7.03 and 8.0 of the Hastings Irrigation's re-financing proposals which state:

> "7.03 The irrigation industry is of vital importance to the future economic stability of this country which is deeply centered on Agriculture. There will be increased need to have more indigenous Kenyans participating in the Industry.
>
> 8.0 The recovery of (Hastings Irrigation) will largely depend on the company's ability to capture a sizeable share of the irrigation pipes market in which it has not featured prominently ever since it was established in 1979 . . ."

Mr *Thiongo* said in his submissions that Hastings Irrigation had put forward very concrete re-financing proposals, of which the above quotations form part, and that those, together with the scheme of arrangement whereby the ICDC have offered to pay KShs 2 million towards the re-financing recited at paragraph 15 of the plaint, show that it would be a tragedy to allow the threatened sale to go ahead simply because ADC have "sabotaged", as it is put, the negotiations which were proceeding so fruitfully until 27 July 1987. The affidavit supporting this present motion states also that the assets available as security, over KShs 80 million, are far in excess of the Bank's "disputed" claims. This suggestion that there is a valid dispute over the Bank's claims is inconsistent not only with the draft petition for the approval of a scheme of arrangement under section 207 of the Companies Act (Chapter 486), exhibited to Mr Gitata's earlier affidavit, in which it is stated, at paragraph 9:

> "The business of Hastings Irrigation Kenya Limited did not prosper and in February 1987, the said Bank duly appointed (the two receivers of the assets in question) . . ."

No complaint is made there that the appointment of the receivers was premature or other than correct, as Mr *Thiongo* seemed to be claiming in the submissions, neither, as the respondents point out in their joint notice of opposition filed in the High Court, was any objection made to that appointment for the first six months of the receivership. They also state:

> "The appointment was made following default on the part of the plaintiff and such default is not denied."

Moreover even if there is a dispute it would not materially affect the position because in the Bank manager's affidavit of 10 September 1987, the indebtedness is stated as amounting to over KShs 11.5 million, well in excess of the KShs 6 million limit, so it is self-evident that the indebtedness itself constitutes a breach of the conditions.

Much stronger against the applicants is the admission at paragraph 2.06 of the refinancing proposals, part of which we now set out:

> "Because of liquidity constraints it experienced during maiden operations, HIK found it increasingly difficult to service the KShs 6 million loan borrowed from the Standard Bank in 1979 for the purpose of financing part of the projects cost. The company defaulted perpetually on the loan component of KShs 3 million while the overdraft was always withdrawn beyond the authorized limit. The Bank had therefore to close down the overdraft facility in 1981 after all the efforts to get it regularised proved unsuccessful."

There can be no doubt, in our view, that that admission, filed as part of the applicant's own case as recently as June 1987, brings into play the power contained in clause 11 of the debenture to appoint the receivers, since there was a clear breach of the covenants and conditions therein by Hastings Irrigation. Indeed, it would be hard to imagine a clearer admission than that Hastings Irrigation "perpetually defaulted on its loan" and "was continually overdrawn

beyond the authorised limit". It also, very probably, brought into operation the enforcement provisions of the charge executed by Concrete Pipes and Products in 1982, so that the property at land registration number 8116, or that part if it which after the subdivision belongs to that company, would be at risk whether the sale is made by the receivers under the debenture, or by the Bank under the charge. In these circumstances, while paying heed to the claims in paragraph 8 of Mr Gitata's first affidavit, it seems to us that no extra risk is caused to Concrete Pipes' property than is already inherent in the guarantee and subsequent charge which it executed.

Mr *Thiongo* referred us to one of two authorities upon which he urged us to rely in granting this temporary remedy. The first was *Mohamed v Madhani* (1953) 20 EACA at 8, in which the Court held that to justify the immediate grant of an injunction *ex parte* there must be immediate danger to the property concerned. The second was *Simlani v Magotswe* civil appeal number 1 of 1987, which was clearly a decision of this Court on the circumstances of that particular case and does not bind us to follow that, or any other course, on this application. In any event neither case concerned the exercise of a power of appointing a receiver under a debenture or the conduct of the receivership after a valid appointment had been made.

We do not think it can be seriously contended on behalf of the applicant, on the material before us at any rate, that the appointment of the second and third respondents as receivers and managers on 4 February, this year, was other than a valid exercise of the power contained in the debenture. Mr *Thiongo* virtually conceded as much. Once that happened it does not seem to us appropriate for the Court to interfere in the passage of the receivership unless it can be shown that the conduct of the receivers and managers is seriously oppressive, or not in accordance with the recognised principles of law and of commercial practice.

The material we have indicates that the reverse has been the case, for not only did the receivers desist from any attempt to enforce the security while credible negotiations were going on, but that, as appears from paragraph 8 of Mr Muhindi, the Bank manager's affidavit of 10 September 1987, the Bank even gave the applicant a first option to purchase the debenture. In these circumstances, the claim that the Bank had "exercised the maximum restraint" would appear to be fully justified.

While we would not go so far as to say, as the respondents do in their notice of opposition to the High Court application, that the Court "has no jurisdiction to interfere with the exercise of a statutory power of sale" (a claim no doubt made in view of the words "without the intervention of the Court" in section 69(1) of the Transfer of Property Act), we certainly think that we should not interfere with a validly appointed receivership unless there are clear and compelling reasons for us to do so. No clear or compelling reasons, in our judgment, appear on the present material filed in this application. It is accordingly refused. Since the respondents have incurred no costs in attending the *ex parte* application, no order in that respect is necessary. Although this is an *ex parte* matter the voluminous record produced before us, amounting to well over 400 pages, without even an index to guide us, has necessitated a thorough investigation of the facts presented in arriving at our decision not to grant the relief sought.

For the applicant:
N Thiongo

For the respondent:
Information not available

Isingoma v Uganda
[1986–1989] 1 EA 155 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	22 March 1989
Case Number:	10/84
Before:	Wambuzi CJ, Lubogo AJSC and Oder JSC
Sourced by:	LawAfrica

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[1] Evidence – Confession – Retracted confession – Trial within a trial – Whether corroboration necessary – Going principles in admitting confession.

[2] Evidence – Of children – Child of tender years – Procedure of admitting his evidence – Definition of child of tender years.

Editor's Summary

The appellant was convicted by the High Court of Uganda of murder. The deceased was a young boy of about 15 years of age. On the material day, the deceased's brother, one Christopher Nzinda, went home to collect foodstuff, which their mother gave him. He then returned to a place called Kinyala where he lived and schooled. He was accompanied by the deceased. They travelled on a bicycle on which they also carried foodstuff in a sack. On the same day, the deceased left Kinyala to return home. The appellant and his co-accused requested a lift from the deceased. The deceased was never seen alive again. A search led to a discovery of the sack in which the deceased and his brother had carried foodstuff. In a sugar plantation the search party, acting on information, proceeded to the home of the appellant's father where they found the appellant, his co-accused and twin brother eating. On seeing the party, the appellant fled away. The co-accused was arrested and made a detailed confession implicating the appellant. A further search led to a discovery of the t-shirt which the deceased had put on the day he was last seen alive and the bicycle he had used. The t-shirt was bloodstained and was found tied on the bicycle's carrier. The co-accused then led the search party to the sugar plantation where the body of the deceased was found with no shirt but in shorts. The appellant was subsequently arrested and he confessed to participating in killing the deceased. At the trial he retracted the confession but the trial Judge, after a trial within a trial, found that it was voluntarily made. On conviction, the appellant preferred an appeal on the grounds that the cause of death had not been proved that the trial Judge had misdirected the assessors on the element of the offence to be proved, the conviction was against the weight of evidence; that evidence of a child of tender years had been received and relied on without account and that the trial court had relied on an uncorroborated confession.

Held – It is the duty of a first appellate court to re-consider the evidence, evaluate itself and draw its own conclusion (*Okemo v Republic* [1972] EA 32 adopted).

In the absence of special circumstances, the expression "child of tender years" means any child of an age or apparent age of under 14 years (*Kibangeny Arap Kolil v Republic* [1959] EA 92 followed).

A trial court should accept any confession which has been retracted or repudiated or both retracted and repudiated with caution and must, before finding a conviction on such a confession, be fully satisfied in all the circumstances of the case that the confession is true (*Tuwamoi v Uganda* [1967] EA 84 adopted).

Appeal dismissed.

Cases referred to in Judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Batala v Uganda [1974] EA 402

Bernado Mugaya v Uganda EACA criminal appeal number 20 of 1971

Beronda v Uganda [1974] EA 46

Kibangeny Arap Kolil v Republic [1959] EA 92 – **F**

Okemo v Republic [1972] EA 32 – **A**

Republic v Bakari s/o Abdalla (1949) 16 EACA 84

Riano s/o Lenalainer and another v Republic [1960] EA 960

Salle v Associated Motor Boat Company [1968] EA 123

Solomon Mungai and others v Republic [1965] EA 782

Tomasi Omukono and another v Uganda criminal appeal number 4 of 1978

Tubere s/o Ocen v Rex (1945) 12 EACA 63

Tuwamoi v Uganda [1967] EA 84 – **A**

Yowana Serwadda v Uganda [1978] CAU judgments Part 1 128

United Kingdom

R v Campbell [1956] 2 All ER

R v Surgenor [1940] 2 All ER 249

Judgment

Wambuzi CJ, Lubogo AJSC and Oder JSC: This is an appeal by Andrea Isingoma against a conviction for murder on 14 September 1984 by the High Court of Uganda sitting in Masindi. He was jointly convicted with another man who has not appealed, apparently because he escaped from prison after their trial and conviction.

The deceased, David Biribahwa, was a young boy of about 15 years of age who lived with his mother in Karujubu Village in Masindi District. He had two younger brothers, Christopher Nzinda

(PW3) and Bernard Bahemaiso (PW6), who were schooling and living in Kinyala near the sugar plantation and works, away from their home. They lived in a rented room in the area where the appellant and his co-accused also lived. The appellant, about 21 years at the time, was a porter in the sugar works. On 27 November 1981 PW3 went

home to collect foodstuff, which their mother gave him. He then returned to Kinyala, escorted by the deceased. They travelled on a bicycle on which they also carried foodstuff in a sack.

The bicycle belonged to one of their uncles. At about 4:00pm the same day, the deceased left Kinyala to return home. He was in the company of the appellant and his co-accused, both of whom apparently had requested a lift from the deceased. The deceased was never seen alive again. When he did not reach home, a search was made all over the locality and in Kinyala area by relatives, chiefs and the police who, on 30 November 1981, discovered in the sugar plantation first the sack in which the deceased and his brother had carried foodstuff. On information received, the search party proceeded on a tractor to the home of the father of the appellant, where they found him, his co-accused and twin brother eating. On seeing the search party, the appellant fled away. Efforts to chase and catch him failed. The other man and the appellant's twin brother, however, remained where they were found. The other man made a clean breast of what had happened, implicating the appellant in the death of the deceased. The search party found in the house of the appellant at his father's home, the T-shirt which the deceased had put on the day he was last seen alive and the bicycle he had used. The T-shirt was bloodstained and was found tied to the carrier of the bicycle. The co-accused then led the search party to the sugar plantation, where the body of the deceased was found with no shirt but in shorts. The body was removed to Masindi Hospital where a post mortem examination was done on 1 December 1981. The appellant was subsequently arrested and on 3 December 1981 made an extra-judicial statement before the Chief Magistrate of Masindi. In the statement the appellant confessed to participating in killing the deceased. At his trial he retracted it, but the learned trial Judge found, after a trial within a trail, that it was voluntarily made. In his judgment he believed the statement as being true. He also found it to have been corroborated by other independent evidence. At his trial, the appellant gave sworn testimony in which he denied any knowledge of the death of the deceased. He also put up an alibi, saying that after seeing the deceased, where Bahemaiso lived on the material date, he went to the well to collect water and never went anywhere else. The learned trial Judge rejected the denial and alibi and convicted the appellant on the strength of the circumstantial evidence which he found had been proved beyond reasonable doubt. These included the evidence of PW6 that the appellant was in the company of the deceased when PW6 left the deceased returning home, the recent possession of the deceased's T-shirt and bicycle by the appellant and the confession.

In this Court, Mr *Ssengendo*, counsel for the appellant, argued six out of seven grounds of appeal which were listed in the memorandum of appeal. He apparently abandoned ground seven without expressly saying so. The first two grounds, which he took together, are that:

> "1. The trial Judge erred in law to convict the appellant of murder when the cause of death was not proved; and
>
> 2. The learned trial Judge misdirected himself and the assessors on the elements of the offence to be proved."

The basis of these grounds of appeal are to be found in the evidence concerning the post mortem report which was made after examination of the body of the deceased at Masindi Hospital, by Dr Mohamed Ali and the relevant finding of the learned trial Judge on it. That doctor did not give evidence at the trial of

the appellant. The post mortem report was produced in evidence and read out by Dr Olwedo (PW1) who had worked with Dr Ali in Masindi Hospital for seven years. In his evidence, Dr Olwedo confirmed that the post mortem bore the signature of Dr Ali. According to the report, the post mortem examination was done on 1 December 1981. External injuries found on the body were three bruises, each measuring three inches by two inches on the left side of the neck; a circular bruise six inches by one inch around the lower part of the neck; a crescentic cut on the tongue which was protruding out; abrasion two inches by one inch over the left arm. Internally both jugular vessels were crushed, and there was haematoma in the neck muscles. Cause of death was axphyxia due to strangulation. In cross-examination, Dr Olwedo explained that the injuries on the deceased could not have been caused by beating. The injury on the neck could have been caused by something tightening on it. A rope around the neck could have caused the injury. Dr Olwedo concluded that normally in strangulation the tongue protrudes out when the victim is struggling for air.

Regarding the post mortem report and the cause of death, the learned trial Judge made the following finding in his judgment:

> "According to the evidence before me as contained in exhibit P1 (the post mortem report) which was explained to the Court by the first prosecution witness, Dr Olwedo, and supported by the evidence of Rwakaikara (PW5) the prosecution has proved beyond reasonable doubt that the deceased died as a result of violence. The only difficulty I have is in respect of the cause of death. In the post mortem report Dr Ali gives the cause of death as asphyxia due to strangulation. On the other hand, A2 described the mode of assault on the deceased. He says the deceased was hit with a stick although he does not say how many times. Although expert evidence may be useful, to the Court, it is for the Court to evaluate and make a finding on such evidence. I am inclined to accept the version of A2. If the deceased was hit several times around the region of the neck while lying down, it is likely that the jugular muscles would be crushed on both sides. I find that this is what happened. The deceased died not of strangulation, but by being beaten on the neck region with a stick. Repeated beatings around the neck with a stick are capable of causing the external injuries described by the doctor in the post mortem report."

Mr *Ssengendo* for the appellant argued in this Court that the learned trial Judge fell in error in accepting the evidence of Dr Olwedo, when there was no evidence that Dr Ali had left the country so that evidence could not be introduced of a person who knows his hand writing. In the absence of that evidence the trial Judge was not entitled to conclude that Dr Ali had left the country. In the learned counsel's view introduction of the post mortem was highly irregular and prejudicial to the appellant. Secondly, counsel argued that the learned trial Judge ought to have exercised his discretion to exclude the post mortem report; while the post mortem report stated that the deceased died of strangulation, the learned trial Judge found that he did not die of strangulation but by being beaten on the neck region with a stick. Further, according to the learned counsel, even if the deceased had died of beating the learned trial Judge still had to find that there was malice aforethought on the part of persons who killed him. In counsel's view, the bruises on the neck of the deceased were not signs of malice aforethought even if they were caused by beating. Counsel then relied on the case of *Tubere s/o Ocen v Rex* (1945) 12 EACA 63.

We find no merit in the objection by Mr *Ssengendo* to the production of the post mortem report on the deceased by Dr Olwedo (PW1). In the first place, the appellant was represented by counsel at his trial in the lower court. There

was no objection to Dr Olwedo producing the post mortem report in evidence. Indeed the then counsel to the appellant, Mr Karwani did cross-examine Dr Olwedo on the report. Secondly, although it was not specifically stated that Dr Ali, who performed the post mortem examination on the body of the deceased was not available to testify, all parties, including the learned trial Judge, proceeded as if the witness, Dr Ali, was not available. In these circumstances we are unable to say that the learned trial Judge was wrong in admitting the post mortem report in evidence.

Be that as it may, the learned trial Judge had considerable difficulty in dealing with the post mortem report and the cause of death. The source of his difficulty was his preference for the cause of injuries on the neck of the deceased as stated in the appellant's extra-judicial statement to that which Dr Ali stated in the post mortem report and was explained by PW1 in evidence. In the appellant's statement, he stated as follows:

> ". . . On the same day, we arrange to wait for the deceased and that was about 6:00pm. Then the deceased came and greeted A1 after greeting, A1 beat the deceased fell down and I also went and kicked the deceased. I took the bicycle but A1 told me to kill the deceased because he knew him. If I left alive, he would accuse him. . ."

On the basis of this statement, the learned trial Judge proceeded in our view, without justification, to put forward a theory of his own regarding the cause of death. It did not apparently occur to him that the appellant might have lied about how the deceased was killed. The theory the learned trial Judge put up was obviously inconsistent with the clear cause of death which was stated in the post mortem report. Asphyxia due to strangulation as the cause of death was consistent with injuries which Dr Ali found on the neck and which Dr Olwedo explained in his evidence.

In the light of this medical evidence the trial Judge obviously misdirected himself in finding that the deceased was hit several times around the neck while lying down, for which there was not the slightest evidence, for the appellant's statement does not mention any beating on the neck of the deceased. It was also a gross misdirection to find that the deceased died not of strangulation but of repeated beatings around the neck.

It is the duty of a first appellate court to reconsider the evidence, evaluate it itself and draw its own conclusion. This duty was put thus by the predecessor of this Court in *Okemo v Republic* [1972] EA 32 at 36:

> "The first appellate court must reconsider the evidence, evaluate it itself and draw its own conclusions, in deciding whether the judgment of the trial court should be upheld, as well of course as deal with any questions of law raised on the appeal see *Salle v Associated Motor Boat Company* [1968] EA 123."

As this is a first appeal we see what is stated above as our duty in this case. The learned trial Judge's finding as to cause of death having been so contrary to obvious and unchallenged medical evidence which he had before him we consider that he ought to have found that the deceased died of asphyxia due to strangulation. We accordingly so find. No miscarriage of justice to the accused would arise as a result of that finding since, had the learned trial Judge directed himself properly, he would inevitably have come to the same conclusion. All the evidence to support such a conclusion was given before him.

The deceased having died of strangulation as we have found, it is obvious that whoever strangled him intended to cause his death. This conclusion is

irresistible from the medical evidence available. In the circumstances, there is no doubt that his death was caused by malice aforethought. The learned trial Judge in our view would have reached the same conclusion but for his misdirection already referred to above. In the light of the aforegoing, the first two grounds of appeal fail.

Group three is that the weight of evidence was against the conviction. This should be the other way round: that the conviction is against the weight of evidence. This group is too general and offends against the provisions of rule 63(2) of the rules of this Court which states that:

> "63(2) The memorandum of appeal shall set forth concisely and distinct heads numbered consecutively, without argument or narrative, the grounds of objection to the decision appealed against, specifying in the case of a first appeal, the point of law or fact and in the case of any other appeal, the points of law, which are alleged to have been wrongly decided."

In the case of *Riano s/o Lenalainer and another v Republic* [1960] EA 960 the East Africa Court of Appeal was faced with a similar situation and it drew the attention of counsel to that court's practice note number 8 of 1955, (1955) 22 EACA 544 which stated as follows:

> "(8) East Africa Court of Appeal Rules of 1954 rule 34(2). Memorandum of appeal in criminal matters complained of. Where an appellant is represented by counsel, he will not be allowed to argue any point under a general ground of appeal, such as, 'the conviction was bad in law' or 'the conviction was against the weight of evidence. In particular details must be given of any alleged misdirection."

In the instant case although counsel was allowed to argue this ground of appeal, general as it was, we would like to draw the attention of counsel to the necessity to comply with rule 63(2) in future.

Under this ground, counsel argued that if there was any conviction it should have been one of robbery. After the learned trial Judge had rejected strangulation as the cause of death, there was no evidence of malice aforethought if the deceased died of beatings with sticks as the learned trial Judge found was the case. We think that this argument has no merit in view of what we have now found to have been the cause of death. We have also already found that whoever strangled the deceased did so with the intention of killing him. So this ground, too, must fail.

Ground four of the appeal is that the learned trial Judge erred in law in admitting and relying on the evidence of children of tender age without warning himself of the danger of doing so. Mr *Ssengendo* submitted that the trial Judge fell in error by admitting the evidence of Bahemaiso (PW6) a child of tender years (who was almost 12 years) without warning himself. Regarding Nzinda (PW3) counsel said that he was 16 years of age; therefore a border-line case; and so the leaned trial Judge should have carried out an inquiry.

Here again, although the appellant was represented by counsel in the lower court, no objection was raised against the receipt on oath of evidence of the two witnesses, Christopher Nzinda and Benard Bahemaiso. In fact, the issue of any of these witnesses being of tender years was not before the Court. In respect of the younger brother, Bahemaiso, however, the learned trial Judge said in his judgment:

> "The first prosecution witness to connect A1 with the deceased is PW6 Benard Bahemaiso who saw the deceased leave Kinyala on 27 November 1981 in the company of A1 and A2. I observed this witness in the witness box. Although aged thirteen years, he is intelligent and gave his evidence in a forth right manner."

Evidence of children of tender years at trials in the High Court in this country is governed by section 38(3) of the Trial on Indictments Decree of 1971, which states as follows:

> "Where in any proceedings any child of tender years called as a witness does not, in the opinion of the Court, understand the nature of an oath his evidence may be received, though not given, on oath if, in the opinion of the Court, he is possessed of sufficient intelligence to justify the reception of the evidence, and understands the duty of speaking the truth:
>
> Provided that where evidence admitted by virtue of this subsection is given on behalf of the prosecution the accused shall not be liable to be convicted unless such evidence is corroborated by some other material evidence in support thereof implicating him."

In a series of decided cases, the procedure of receiving such evidence has been laid down by this Court and its predecessors. The procedure where the child is sworn was laid down in the case of *Kibangeny Arap Kolil v Republic* [1959] EA 92. A very instructive part of the judgment at 95, states as follows:

> "We would also refer to the duty that has been held incumbent upon the Court in England in similar cases. The corresponding statutory provision there is in section 38(1) of the Children and Young Persons Act of 1933, the wording of which, for all relevant purposes, is identical with that of section 19(1) of the Oaths and Statutory Declaration Ordinance. In *R v Surgenor* [1940] 2 All ER 249 the Court of Criminal Appeal, after reciting section 38(1), said:
>
> > 'The section quite clearly states – and this court, has on more than one occasion intimated – that it is the duty of the presiding Judge to satisfy himself whether or not a child of tender age is in a position to be sworn . . . Those who preside over criminal trials ought to remember that it is the duty of the presiding Judge to make an investigation for himself. In that case the child, a girl of nine years, was allowed to give her evidence unsworn and, her evidence not having been of a vital nature such as needed corroboration, the appeal was dismissed in spite of the irregularity, since it had occasioned no miscarriage of justice. But the first duty of the Court where the evidence of a child of tender years is sought to be given was made clear, namely to ascertain whether the child understands the nature of an oath, and to swear him only if he does.'"

As to the meaning of "child of tender years" the Court in *Kibangeny Arap Kolil v Republic* [1959] EA 92 (*supra*) case said, and we agree with that view, that in the absence of special circumstances, the expression means any child of an age, or apparent age, of under 14 years; although as it was said in *R v Campbell* [1956] 2 All ER whether a child is of tender years is a matter of good sense of the Court where there is no statutory definition of the phrase. The two boys in the former case, both of whom were estimated to be under 14 years old were considered as children of tender years. In our country, the Trial on Indictment Decree does not define a "child of tender years".

In the circumstances the definition given by the Court of Appeal in the *Kibangeny Arap Kolil v Republic* [1959] EA 92 (*supra*) case applies to the identical expression "child of tender years" in our Trial on Indictment Decree.

In the instant case, Nzinda (PW3), according to the record, said that he was 15 years old at the time he gave evidence, and this fact was not questioned. This in our view means that he was not a child of an age of under 14 years, and may well be the reason the learned counsel for the defence at the trial did not raise any objection to his evidence being received on oath as it was done, without a *voire dire* as required by law. We would also have expected the

defence counsel to have raised such an objection if Nzinda was "of apparent age under 14 years". In the circumstances, the learned trial Judge had no duty to hold a *voire dire* in respect of Nzinda in accordance with the requirements laid down in *Kibangeny Arap Kolil v Republic* [1959] EA 92 case (*supra*) or "to warn himself" as the memorandum of appeal puts it. We would compare this case with the case of Uganda Court of Appeal, *Tomasi Omukono and another v Uganda* criminal appeal number 4 of 1978 CAU judgments, Part 1 105, in which the trial Judge received on oath the evidence of a child of the age of between 13 and 14 years after merely noting that "the boy appears mature and I consider him able to testify on oath", without holding a *voire dire.* In that case the Court of Appeal of Uganda rejected the appellant's criticism of the reception of the "child witness" evidence on oath, on the grounds that the defence counsel who appeared did not raise any objection and the presumption was that the learned trial Judge was satisfied that the boy was of an age to be sworn and that the defence counsel was of the same view. In the result, we consider that the learned trial Judge properly received the sworn evidence of Nzinda in the manner he did. This ground of appeal insofar as it relates to the evidence of Nzinda must therefore fail.

As regards Bahemaiso, however, his elder brother Nzinda had testified in his cross-examination to the effect that at the time of the incident in November 1981, Bahemaiso was nine years old, which means that when he gave evidence in September 1984, roughly three years later he must have been 12 years or so. Bahemaiso himself said in cross-examination that he was nine years at the time of the incident. It would appear, therefore, that Bahemaiso was within the definition of a "child of tender years". The learned trial Judge himself referred to the age of Bahemaiso as we have already indicated which means he was aware of the need for caution. In our view a *voire dire* should have been conducted in the case of Bahemaiso before he was sworn and should have been directed to the particular question whether Bahemaiso understood the nature of the oath. In the circumstances there is merit in Mr *Ssengendo*'s criticism that the trial Judge received sworn evidence from this witness without complying with the procedure laid down in section 38(3) of the Trial on Indictment Decree. It was a serious error for him not to have done so, leading to a consequence which in our view was fatal to the reception of Bahemaiso's evidence at the trial, but which did not occasion a miscarriage of justice in view of what we have to say below. For exclusion of Bahemaiso's evidence would still have left the evidence of Nzinda intact against the appellant. Nzinda's evidence was similar, nearly in all material particulars, to that of Bahemaiso, and did not need corroboration as a matter of law, having been given as it was by a witness beyond the age of a child of tender years. Even if corroboration were necessary, it was not far to seek. Corroboration was to be found in the house of the appellant hardly three days after the deceased had gone missing.

Besides the learned trial Judge considered recent possession and, relying on *Republic v Bakari s/o Abdalla* (1949) 16 EACA 84, came to the conclusion, rightly so in our view, that there could not have been a better case of presumption of guilt of murder from recent possession of stolen property of the deceased than was the present case. Then there was the appellant's own confession which the learned trial Judge found to have been voluntarily made and believed to be true. In the circumstances, therefore, while this ground of appeal only partially succeeds to the extent that the evidence of Bahemaiso was received by

a procedure that was incurably defective, the partial success does not in our view detract from the ample evidence which we consider justified conviction of the appellant.

Ground five of the appeal is that the learned trial Judge applied wrong principles on the issue of common intent. In this regard counsel submitted that even if the learned trial Judge was to find that there was common intent, that common intent was to steal the bicycle. There was none to murder. Even if the appellant and the co-accused had assaulted the deceased, each of them did so independently. As they were not armed, it was necessary for the trial Judge to find who caused the death.

As two accused persons were jointly charged with the deceased's murder, the learned trial Judge we think properly directed the assessors and himself on the necessity for common intention. In summing up to the assessors, this is what he said:

> "In this case, there are two accused persons. The prosecution must establish that they acted with common intention. The doctrine of common intention. The doctrine of common intent is explained to the assessors."

And in the judgment he said:

> "The next issue to be considered is who caused the injuries which led to the death of the deceased. As there are two accused persons charged with this crime, I must make the following points at the outset. Where more than one person set out to prosecute an unlawful purpose and in the course of prosecution such an unlawful purpose a crime is committed, both or all of them as the case may be are guilty of the offence. In other words, in such cases, the prosecution must prove that the accused persons acted in concert with common intent."

No doubt the learned trial Judge had in mind the provision of section 22 of the Penal Code which provides:

> "When two or more persons form a common intention to prosecute an unlawful purpose in conjunction with one another, and in the prosecution of such purpose an offence is committed of such a nature that its commission was a probable consequence of prosecution of such purpose, each of them is deemed to have committed the offence."

In our consideration of whether this section applies to the instant case, we would like to refer to the case of *Solomon Mungai and others v Republic* [1965] EA 782, because we agree with what the Court said in that case as the correct interpretation of the Kenyan section 21 of the Penal Code, identical to our section 22 of the Penal Code. The Court had this to say:

> ". . .we therefore consider it appropriate to quote at the outset the following passage from the judgment of this court in *Wanjiro Wamiro v Republic* (*supra*):
>
> > 'In order to make the section applicable it must be shown that the accused had shared with the actual perpetrators of the crime a common intention to pursue a specific unlawful purpose led to the commission of the offence charged.'
>
> . . .we think that although the carrying of lethal weapons by one or many who engage in an unlawful act may be cogent evidence of a murderous intention shared by all, it is by no means the only criterion. We think that if there is sufficient evidence from which can be inferred that some instrument or lethal weapon had been used, or violence of any degree had been used in the prosecution of an unlawful common design resulting in death, then if the offence charged was probable consequence of the use of that violence all those proved to have shared in that common design would be responsible for the killing that ensued."

The Court then again referred to a passage in *Wanjiro* (*supra*):

> " 'Common intention' generally implies a pre-arranged plan, but this does not rule out the possibility of a common intention developing in the course of events though it might not have been present to start with."

In the instant case the confession of the appellant established that there was a prior arranged plan between him and his co-accused to prosecute in concert an unlawful design, namely to steal the deceased's bicycle. In the course of prosecuting such unlawful common design, violence was used and the deceased strangled to death. After the bicycle had been stolen and the deceased killed the appellant and his co-accused were found eating together at the appellant's home. The appellant admitted the killing in his extra-judicial statement. The stolen bicycle and the deceased's T-shirt were found in his possession soon after the killing. In the circumstances we are satisfied that section 22 of the Penal Code applied in this case with the result that it is immaterial which of the two accused persons strangled the deceased to death. They were both guilty of his murder. Ground five of the appeal must therefore also fail.

Ground six of the appeal is that the learned trial Judge erred in law and fact on relying on an uncorroborated retracted confession.

The confession was the extra-judicial statement, recorded from the appellant by the Chief Magistrate of Masindi (PW6). As we have already said, the appellant retracted this statement at the trial as a result of which a trial within a trial was held at the end of which the learned trial Judge ruled that it was voluntarily made. It was admitted in evidence after the learned trial Judge found that the confession was voluntary. On the whole, we think that the trial within a trial was properly conducted and that the statement was properly admitted in evidence. Of this confession the learned trial Judge said in his judgment:

> "The noose tightens around the accused (A2) through extra judicial statement to the Chief Magistrate. In his detailed confession, the accused implicates A1 and himself in the murder of the deceased. I have already held that A2's statement was voluntary. I accept substantially what A2 said in his extra judicial statement. I realise that he assigned himself a minor role in assaulting the deceased compared to the part played by A1. All the same, I hold that both accused assaulted the deceased and killed him."

Regarding the appellant's confession, the learned counsel for the appellant submitted that there was no corroboration of this retracted statement, and relied on *Yowana Serwadda v Uganda* [1978] CAU judgments Part 1 128. This is only one of a long line of cases in which this Court and its predecessors have laid down the procedure to be followed and the factors to be considered when an alleged confession is tendered for admission in evidence. Some of the other well-known cases are: *Tuwamoi v Uganda* [1967] EA 84; *Bernado Mugaya v Uganda* EACA criminal appeal number 20 of 1971; *Batala v Uganda* [1974] EA 402; *Beronda v Uganda* [1974] EA 46 etc. In the *Tuwamoi v Uganda* (*supra*) the EACA traced the historical background with regard to retracted and repudiated confessions and came to the following conclusion which is still the law in this country:

> "We would summarise the position thus – a trial court should accept any confession which has been retracted or repudiated or both retracted and repudiated with caution, and must before finding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is true. The same standard of proof is required in all cases and usually a court only acts on the confession if corroborated in some material particular by independent evidence accepted by the Court. But corroboration is not necessary in law and the Court may act on a confession alone if is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot be but true."

In the instant case, both in his summing up and in judgment the learned trial Judge did not appear to have addressed the necessity of corroboration of the appellant's confession, which, according to the learned trial Judge, provided an additional noose around the appellant. This was a misdirection on the part of the Judge, but one which, in the circumstances of this case was not fatal to the conviction of the appellant. For, had he warned or properly directed himself on the necessity for corroboration, the learned trial Judge would inevitably have concluded that the confession was amply corroborated by independent evidence in material particulars. Such evidence include the evidence of Nzinda that the appellant was one of the persons with whom the deceased was last seen alive; the recent possession of the deceased's bloodstained T-shirt and bicycle which were found in the appellant's house and the appellant's fleeing at the sight of the search party without any apparent explanation. In the circumstances we think that ground six of the appeal must also fail.

In the result, we are satisfied that the appellant was properly convicted. His appeal must therefore fail and is dismissed.

Before leaving this case we would like to comment on the absence of counsel for the State at the hearing of the appeal. The Director of Public Prosecutions was served with the hearing notice for the appeal, but there was no explanation for the absence of the State Attorney. This is another case during this criminal appeals session in which the State was not represented. We hope that serious efforts are being made to solve the problems which cause non-representation of the State in criminal appeals in this Court. We direct therefore that a copy of this judgment be sent to the Minister of Justice/Attorney-General for his information and action.

For the appellants:
Ssengendo

For the respondents:
State Attorney

Ismail v Kamukamu and others
[1986–1989] 1 EA 165 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	9 December 1988
Case Number:	7/87
Before:	Manyindo DCJ, Odoki and Oder JJSC
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[1] Advocate – Professional ethics – Advocate cannot be both counsel and witness in the same case – Regulation 8 – Advocates (Professional Conduct) Regulation of 1977.

[2] Affidavit – Content of affidavit – Sources of information must be disclosed – Active partner in a firm can swear affidavit on behalf of the other partners.

[3] Civil procedure – Entering appearance – By partners sued as a firm – Whether separate appearance to be entered for each partner – Order 3, rule 1 – Civil Procedure Rules.

Editor's Summary

An appeal was preferred against the decision of the High Court overruling preliminary objections raised by counsel for the appellant. The preliminary objections were that the respondents' application to set aside the order granting temporary injunction to the appellant was premature and defective. There was a further objection that counsel for the respondents could not act as both counsel and witness in the same case.

In February 1987, the appellant, then plaintiff, filed a suit against the respondents. In the suit, he claimed, *inter alia*, a declaration that he was the rightful allocatee of business premises known as Shop number 5 on plot 47 South Street, Kampala. He also sought an injunction restraining the respondents from interfering with the premises in any way. The appellant obtained a temporary injunction against the respondents on 13 March 1987. On 18 March 1987, Jombwe and Company Advocates entered appearance for all the respondents. On 19 March 1987, the respondents filed a notice of motion seeking to set aside the temporary injunction. The application was supported by two affidavits one sworn by counsel for the respondent and one by the second respondent. The appellant raised preliminary objections to the application dated 19 March 1987. The trial Judge overruled the objections as unmeritorious and ordered the hearing of the application to proceed. This order necessitated the appeal.

Held – Where partners are sued in the firm name and they engage an advocate to enter appearance on their behalf, he may do so by stating the names of the partners individually in the memorandum of appearance. It is not necessary for the partners sued in the firm name and represented by an advocate to enter separate appearances.

An active partner of a business firm has an implied authority to take such steps as are necessary to defend an action brought against the firm which steps may include the employment of an advocate and the swearing of affidavits (*Court v Berlin* [1897] 2 QB 396 and *Tomlison v Broad Smith* [1896] I QB 397 (applied)).

As a rule of practice and professional conduct, and advocate should not act as counsel and witness in the same case (*R v Secretary for State of India* [1941] 2 All ER 546; *Jafferah and another v Borrison and another* [1971] EA 165 and *Gandesha v Killing Coffee Estate Ltd* [1969] EA 299 (adopted)).

Where an affidavit is made on information, it should not be acted upon by any court unless the sources of information are disclosed (*Caspair Ltd v Harry Candy* [1962] EA 414 (followed)).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Caspair Ltd v Harry Candy [1962] EA 414 – **F**

Castelino v Rodrigues [1972] EA 223

Gandesha v Killing Coffee Estate Ltd [1969] EA 299 – **A**

Horra v Horra [1959] EA 981

Jafferah and another v Borrison and another [1971] EA 165 – **A**

Opa Pharmacy v Howse and McGeorge [1972] 1 ULR 115

Posts and Telecommunications v Terrazo Paviors [1973] EA 344

United Kingdom

Court v Berlin [1897] 2 QB 396 – **AP**

Ellis v Wadeson [1899] 1 QB 714

R v Secretary for State of India [1941] 2 All ER 546 – **A**

Tomlison v Broad Smith [1896] 1 QB 386 – **AP**

Judgment

Odoki JSC: This is an appeal against the ruling and order of the High Court whereby the trial Judge overruled preliminary objections raised by counsel for the appellant that that respondents' application to set aside the order granting temporary injunction to the appellant was premature and defective, and that counsel for the respondents could not act as both counsel and witness in the same case.

The background to this appeal is that on 5 February 1973, the appellant was allocated business premises known as Shop number 5 on plot 47 South Street, Kampala. He started operating business on the premises under the name of Bombo City Store. On 4 February 1983, the Departed Asian Property Custodian Board allocated the said premises to the respondents who were then trading as Kawesi Commercial Agencies. The appellant complained to the Ministry of Commerce and the Custodian Board but in vain. In February 1987 he filed a suit in the High Court against the respondents claiming, *inter alia*, a declaration that he is the rightful allocatee of the suit premises and that the allocation to the respondents was illegal and therefore null and void, a permanent injunction restraining the respondents from interfering with the premises in any way and special damages for trespass and wrongful interference.

After filing the suit, the appellant obtained a temporary injunction against the respondents on 13 March 1987. Jombwe and Company Advocates entered appearance for all the respondents on 18 March 1987. The following day, on 19 March, the appellants filed a notice of motion seeking to set aside the temporary injunction. The application was supported by two affidavits, one of which was sworn by Mr Jombwe, counsel for the respondents, and the other by Jimmy Kyeyune, the second respondent.

The trial Judge held that there was no merit in the objections and ordered the hearing of the application to proceed. The appellant now appeals against that order.

The appellant filed seven grounds of appeal. Dr *Khiddu* Makubuya, learned counsel for the appellant, argued the first two grounds together. These are stated as follows:

> "1. That the learned acting Judge misdirected himself and erred in law when he held that the defendants in the Court below had effectively entered appearance as at 19 March 1987 and/or 25 March 1987 and that Order 27, rule 6 of the Civil Procedure Rules operates only where the individual partners are unrepresented.

2. That the learned Judge erred in law when he failed to find that the defendants' application to set aside the temporary injunction was premature and misconceived as at 25 March 1987."

Dr *Khiddu* submitted that the memorandum of appearance filed by the respondents was defective and invalid in as far as it did not comply with Order 27, rule 6 of the Civil Procedure Rules, which provides:

> "Where persons are sued as partners in the name of their firm they shall appear individually in their own names, but all subsequent proceedings shall nevertheless, continue in the name of the firm."

Counsel contended that under this rule, each of the partners must indicate his intention to defend separately.

The trial Judge was therefore wrong to hold that the advocate could enter appearance for all partners in accordance with the provisions of Order 3, rule 1 which states:

> "Any application to or appearance or act in any court required or authorised by the law to be made or done by party in such court may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person or by his recognised agent, or by an advocate duly appointed to act on his behalf:
>
> Provided that any such appearance shall, if the Court so directs be made by the party in person."

It was Dr *Khiddu*'s submission that Order 27, rule 4 is an exception to Order 3, rule 1 and that if there is any conflict between the two provisions, the former prevails because it is a specific and later provision.

Mr *Mpungu*, learned counsel for the respondents, submitted that where a suit is filed against two defendants who engage counsel it is not necessary for them to file separate appearances except where they have different defences. He argued that Order 27, rule 6 applies only where the parties are not represented by counsel, and not, as in the present case, where the respondents collectively engaged Jombwe and Company Advocates as their counsel. Moreover, Mr *Mpungu* submitted, what was important was to name each of the partners and this was done by their counsel in both the memorandum of appearance and notice of appearance. It was counsel's contention that Order 27, rule 6 operates where partners agree to engage an advocate to represent them.

When dealing with the issue of the validity of the appearance, the trial Judge said:

> "I am of the view that since Order 3, rule 1 authorised an advocate to appear on behalf of a party, Mr Jombwe was justified in entering appearance on behalf of the defendants/applicants who are partners. Order 27, rule 6 in my opinion operates where the individual partners are unrepresented and as such each one had to enter appearance individually."

The substantial question to be determined is whether the learned Judge erred in so holding.

In support of his submissions, Dr Khiddu cited several authorities namely Ellis v Wadeson [1899] 1 QB 714; Opa Pharmacy v Howse and McGeorge [1972] 1 ULR 115; Post and Telecommunication v Terrazo Paviors [1973] EA 344 and Mulla on Code of Civil Procedure Volume 11 at 1153. I shall briefly consider them.

In *Ellis v Wadeson* [1899] 1 QB 714 (*supra*) it was held that where an action is brought against a firm in the firm's name a partner defendant is not entitled to

put in a personal defence but only a statement of defence for and in the name of the firm. The Court of Appeal also held that where the partners agree they can put in one defence. Lord Romer LJ said at 717:

> "Seeing that it is a claim against the partnership, they ought if they can agree to put in one statement of defence. Suppose they cannot agree, what then? In our opinion it is clear that each partner who must appear is entitled to put in a separate statement of defence."

This decision is not strictly on the point since it deals with filing a written statement of defence and not entering appearance where the formalities may be different. But even if the principle was applicable then it supports the view that where partners agree they may file a joint memorandum of appearance in their individual names.

Opa Pharmacy v Howse and McGeorge (*supra*) is authority for the proposition that appearance under Order 9, rule 1 means to take a step showing an intention to defend a suit and submit to jurisdiction. Dr *Khiddu* submitted that appearance of partners in their individual names is not a mere legal quibble because each of them must signify his intention to appear and defend the suit. It is true that in *Post and Telecommunication v Terrazo Paviors* (*supra*) the High Court of Tanzania held that appearance of partners individually in their own names is not a mere legal quibble, but it also held that where partners appear by an advocate, the rule is complied with if the advocate states in court the names of the individual partners he is appearing for. Onyuke J dealt at some length with Order 29, rule 6 (which is similar to our Order 27, rule 6) and at 346, he said:

> "Appearance of a partner by an advocate under rule 6 requires in my opinion, in view of the wording of that rule some formality. Dealing with identical provisions in his book on the Indian *Code of Civil Procedure* (10 ed) under the head of 'Appearance of Partners", Mulla at 935 states as follows: 'Though all proceedings in a suit instituted against a firm must be conducted in the firm name, the partners should so far as appearance is concerned appear individually in their own names. The reason of rule is that a firm cannot appear as a firm'. This is another way of saying that a firm is not a legal personality and therefore cannot appear as such. This in my view is not a mere legal quibble. Appearance is the process by which a person against whom a suit has been commenced shows his intention to defend the suit and submits to the jurisdiction of the Court. In the case of a non-legal personality such as a firm it is necessary to have or record the name or names of the partners who are appearing and therefore submitting to the jurisdiction of the Court, and whose acts bind the firm or partnership, hence the wording of Order 19, rule 6. Once this was done, then the proceedings can continue in the firm name which is only a compendious way of describing the partners who compose the firm. It is my view that where a partner or partners appear by advocate it is the duty of the advocate to state in court the name or names of individual partner or partners he is appearing for. In the case of *Tomlison v Broad Smith* [1896] 1 QB 386, cited by Mr Shukla, the solicitor although instructed by the Managing Director of the firm entered appearance not in the name of the firm as such but in the name of each of the partners individually and it was held that he had implied authority to do so."

I respectfully agree with the views expressed by Onyuke J.

From the authorities I have considered it seems clear that where partners are sued in the firm name and they engage an advocate to enter appearance on their behalf he may do so by stating the names of the partners individually in the memorandum of appearance. I find nothing in Order 27, rule 6 to qualify

or conflict with the provisions of Order 3, rule 1. It seems to me that the purpose of Order 27, rule 6 is to ensure that each partner indicates his intention to defend the suit and he can only do so by stating individually his name and not merely hide behind the firm's name. I am therefore of the opinion that Order 27, rule 6 does not require partners sued in the firm name and represented by an advocate to enter separate appearances. It is sufficient if the advocate indicates on one form the names of the individual partners who are entering appearance. The learned Judge was therefore right in holding that the respondents had duly entered appearance.

However, it appears that the respondents were not sued in their firm name in a manner envisaged by Order 27, rule 6. They were sued in their individual names and described as trading as "OK Bazaar". In *Horra v Horra* [1959] EA 981, the plaintiff sued four defendants averring that they were all formerly trading as "Colonial Printing Works". The High Court of Kenya held that the partners were not sued in the firm name in the manner envisaged by Order 29, rule 1 of the Civil Procedure (Revised) Rules of 1948, similar to our Order XXVII, rule 1. The Court held further that the plaintiff should have sued the defendants as the "Colonial Printing Works" to bring himself within the provisions of Order 29 and since this was not done the plaintiff had elected to sue partners individually and as partners of the firm on their joint liability as partners. McDuff J said at 982:

> "I would agree that they have not been sued in the firm name in the manner envisaged by Order 29, rule 1. On the other hand they have been sued in the alternative form that is being named individually but also described jointly in the words 'all formerly trading as Colonial Printing Works'. . . The defendants to the suit were four individuals even though they might have been described as proprietors of the firm. The mere mention of the name of the firm in the description of the defendants did not mean that the firm was being sued."

If the respondents in the present case were not being sued in the firm name in the manner envisaged by Order 27, rule 6 then the provisions of this rule were not strictly applicable to them. Therefore they were entitled to file a joint memorandum of appearance through their advocates. Accordingly, the first two grounds of appeal must fail.

In the third ground of appeal, the appellant complains that the learned Judge erred in law in not finding defective the affidavit of Mr Jimmy Kyeyune dated 18 March 1987 deponed to in support of the respondents' application to set aside the temporary injunction. Dr *Khiddu* submitted that the affidavit of Kyeyune was defective because it did not show that he had authority to swear it on behalf of the other partners and since he did not indicate that he was the active partner the case of *Court v Berlin* [1897] 2 QB 396 was inapplicable. On the other hand Mr *Mpungu* contended that the claim by Kyeyune that he had authority to swear the affidavit had not been disproved by the appellant. He submitted further that it was clear from the affidavit of Kyeyune that he was the active partner and therefore the authority of *Court v Berlin* (*supra*) was against the appellant's argument.

The relevant paragraphs of Mr Kyeyune's affidavit state as follows:

> "1. That I am the second applicant/defendant in the above application and a director in the firm of Messrs OK Bazaar and I have been authorised by the rest of the partners therein and/or by the applicants/defendants herein to swear this affidavit.

2. That I carry on my business under the said firm name at plot number 47/5 South Street and in partnership with Alex Kamukamu, Peace Mazoe and Fred Agaba.

3. That out of the persons named in paragraph 2 herein, I am the only one ordinarily operating business in the said premises.

4. That Alex Kamukamu operates his business in Peeps Uganda Limited situated at plot number 51 Luwum Street Kampala. Peace Mazoe operates her business at Kampala Sporting Centre on Kampala Road and Fred Agaba operates his business at Fort Portal."

The appellant challenges the above statements in his affidavit in reply in these terms:

"6. That there is no evidence to support Jimmy Kyeyune's claim in paragraph I of his affidavit that he has been authorised by the rest of the partners to swear the affidavit.

7. That paragraphs 1, 2, 3 and 4 of Jimmy Kyeyune's affidavit are fundamentally self-contradictory, nugatory and should be struck out."

Paragraph 1 of Kyeyune's affidavit clearly states that he was authorised by the rest of the partners in his firm to swear the affidavit. That in my view is evidence of authority. It was upon the appellant to produce contrary evidence to rebut Kyeyune's claim, and in this he failed. The affidavit of Kyeyune also shows that he was the active or managing partner of the firm as the other partners are engaged elsewhere operating their other businesses. I find nothing fundamentally contradictory in paragraphs 1, 2, 3 and 4 of Kyeyune's affidavit. On the contrary the paragraphs are complementary.

In *Court v Berlin* (*supra*) the active partner in a firm consisting of himself and two dormant partners retained a solicitor to conduct an action for the recovery of a debt due to them. The English Court of Appeal held that the dormant partners must be taken to have given authority to the active partner to employ a solicitor to conduct the action, and therefore they were liable to the solicitor in respect of the costs incurred in the action.

Lord Esher MR said at 398:

> "In this case the plaintiff, a solicitor, was retained to recover a debt due to a partnership firm consisting of three persons. Two of the partners were dormant partners, that is to say their names were not published to the world as being partners in the position of partners and they must be taken therefore to have given authority to the active partner to bind them by contracts made by him in the ordinary course of the firm's business. The recovery of debts to the partnership would be in the ordinary course of such business and therefore the dormant partners must be taken to have given authority to the active partner to employ a solicitor to conduct an action for the recovery of such debts on the ordinary terms."

In *Tomlison v Broad Smith* [1896] 1 QB 397, the Court of Appeal dealt with a similar situation. It held that a managing partner of a business firm has an implied authority to employ a solicitor to defend an action brought against the firm for the price of goods supplied to the firm in the ordinary course of business. Lord Esher MR had this to say at 389:

> "That being the state of things the three of them agreed that Horton should be managing partner of business and that gave him authority to manage all matters which arose in the ordinary course of business of the firm and among other things to order goods. An action was brought by persons who had supplied goods to the firm, and the question is whether such an action is an ordinary incident of business. I am clear that it is, and that the managing partner had authority to deal with such an action and defend it."

It seems clear to me therefore that an active or managing partner of a business firm has an implied authority to take such steps as are necessary to defend an action brought against the firm which steps may include the employment of an advocate and the swearing of affidavits. In the present case, therefore, Mr Kyeyune, the managing partner, had implied authority to swear the affidavit. However, the actual position is that Mr Kyeyune had express authority given to him by the other partners, and therefore his affidavit was valid. Accordingly I find no merit in the third ground of appeal.

The fourth and fifth grounds of appeal were argued together. These grounds were stated as follows:

> "4. That the learned Judge erred in law when he ruled that counsel could give evidence by the Affidavit dated 16 March 1987 and at the same time represent the defendants in the same case.
>
> 5. That the learned Judge erred in law when he failed to give due weight to the legal requirement set out in Regulation 8 of the Advocates (Professional Conduct) Regulations (Stationary Instrument number 79 of 1977) and other legal provisions that counsel should not be a witness in the same case."

Dr *Khiddu* submitted that it was wrong for Mr Jombwe to act as counsel for respondents as well as give evidence by affidavit. He contended that Mr Jombwe would have been better of as a witness since he did not depone of formal matters only but on substantive and contentious matters pertaining to the allocation of the suit premises.

Mr *Mpungu* for the respondents conceded that it is not permissible for an advocate to give oral evidence and at the same time act as counsel in the case. But he contended that where a person swears an affidavit he does not thereby become a witness in the case since a witness must give oral evidence. It was his submission that a lawyer gets authority to swear an affidavit from Order 3, rule 1 and Order 48, rule 3, to accompany applications. Counsel further argued that regulation 8 of the Advocates (Professional Conduct) Regulations 1977 does not prohibit an advocate from swearing an affidavit on formal and non-contentious matters of fact concerning a case in which he appears. Citing *Halsbury's Laws of England* Volume 21 at 417, counsel contended that an affidavit may be sworn by anybody with sufficient knowledge of the matters deposed of. It was Mr *Mpungu*'s submission that an advocate was competent to swear an affidavit in an interlocutory matter which did not finally decide the matter. However, Mr *Mpungu* conceded that the affidavit of Mr Jombwe was defective in that it deposed of matters received on information without disclosing the source of information.

It is trite law that an advocate should not act as a counsel and witness in the same case (*R v Secretary for State of India* [1941] 2 All ER 546; *Jafferah and another v Borrison and another* [1971] EA 165, *Gandesha v Killing Coffee Estate Ltd* [1969] EA 299). This is not only a rule of practice but a rule of professional conduct as provided for in regulation 8 of the Advocates (Professional Conduct) Regulation 1977 which states:

> "No advocate may appear before any court or tribunal in any matter in which he has reason to believe that he will be required as a witness, to give evidence whether verbally or by affidavit, and if, while appearing in any matter it becomes apparent that he will be required as a witness to give evidence whether verbally or by affidavit, he shall not continue to appear.

> Provided that this regulation shall not prevent an advocate from giving evidence whether verbally or by declaration or affidavit on formal or non-contentious matter or fact in any matter in which he acts or appears."

In the instant case, although Mr Jombwe was entitled to act as counsel as well as an affidavit in support of the application, the affidavit offended against the provisions of regulation 8 above in that it contained contentious matters which were not purely formal. Moreover, as pointed out by Mr *Mpungu*, Mr Jombwe's affidavit contained matters relating to how the respondents acquired the suit premises which could only have been stated by him on information received from his clients or other sources. I agree with Mr *Mpungu* that without disclosing his source of information Mr Jombwe's affidavit was materially defective. In *Caspair Ltd v Harry Candy* [1962] EA 414, it was held that where an affidavit is made on information it should not be acted upon by any court unless the sources of information are disclosed. Accordingly, there is merit in grounds 4 and 5, but this is of no consequence to this appeal for the reasons which appear later in this judgment.

The sixth ground of appeal is that the learned Judge erred in law in not finding that as the respondent's notice of motion was supported by a defective affidavit or affidavits, the entire application was manifestly and incurably defective and could not have been entertained. Dr *Khiddu's* submission on this ground was that, since both affidavits were defective, the application ought to have been rejected as the notice of motion did not contain the grounds for the application and therefore could not stand by itself. Mr *Mpungu*, however, submitted that there is no legal requirement that an application must be supported by two affidavits, and therefore the affidavit of Mr Kyeyune which was valid was sufficient to support the application. Counsel further argued that the decision in *Castelino v Rodrigues* [1972] EA 223 saved his clients' application since the grounds for the application were contained in the affidavit of Mr Kyeyune.

In *Castelino v Rodrigues* (*supra*) the notice of motion stated that it was made on the grounds set out in an affidavit annexed to it. It was held that a reference in a document to an annexure incorporates the contents of the annexure in the document. In the present case it was stated in the notice of motion that it was brought upon the grounds and reasons set out in the affidavit of the applicant's counsel, Mr Jombwe and of Jimmy Kyeyune. As I have already held that the affidavit of Kyeyune was valid, I find that it was sufficient to support the application. It follows therefore that the application was proper, and the learned Judge was entitled to entertain it. Hence this ground of appeal also fails.

The seventh and last ground of appeal is that the learned Judge misdirected himself and erred in law generally when he misinterpreted the preliminary points of law raised before him and therefore arrived at an erroneous conclusion.

Dr *Khiddu* sought to argue this ground of appeal on the basis of the observations made by the learned Judge when he was commenting on the unnecessary application for leave to appeal brought before him.

In my opinion the reference to the remarks made by the learned Judge when dealing with the purported application for leave to appeal was unfortunate and not a proper subject for comment or a ground of appeal since this appeal was not against that particular order.

Learned counsel for the appellant was unable to point to any specific misdirections committed or erroneous conclusions arrived at by the learned Judge other than those already argued in the first six grounds of appeal. In my view, the entire ground of appeal was too general and unsustainable since it offended against rule 84 of the Rules of the Court which requires that a memorandum of appeal should state concisely the grounds of objection to the decision appealed against and specify the points which are alleged to have been wrongly decided. I therefore find no substance in this ground of appeal.

Accordingly, I would dismiss this appeal with costs to the respondents.

Manyindo DCJ and Oder JSC concurred in the judgment of Odoki JSC.

For the appellant:
Dr Khiddu

For the respondents:
Mpungu

Italframe Ltd v Mediterranean Shipping Co
[1986–1989] 1 EA 174 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	1 February 1986
Case Number:	18/85
Before:	Hancox JA, Platt and Gachuhi AJJA
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[1] Statute – Interpretation – Literal meaning leading to absurdity – Decree accepted by High Court Registry and assigned a case number – No registration thereof sought – Whether decree transferable for execution under Part III of the Foreign Judgments Enforcement Act (Chapter 43) or registrable under Part IV – Sections 30 to 33 – Civil Procedure Act (Chapter 21).

Editor's Summary

On 12 December 1977 the Tanzanian High Court passed a decree entering *ex parte* judgment for the plaintiff for KShs 122 103,30 plus interest and costs. On 30 June 1982 Mapigano J of the High Court of Tanzania ordered the transfer of the decree to the High Court at Mombasa for execution. The Court registry accepted it and assigned it a case number. The plaintiff then applied, through its advocate in Kenya, for execution of the decree. The defendant moved the High Court to stay or set aside the decree on the grounds of non-registration under Part IV of the Foreign Judgments Enforcement Act (section 12(1) of which requires that application therefore shall be made to a Judge), and in particular on the ground that the defendant did not have notice of the proceedings in Tanzania as required under section 13(1)(iii) thereof.

The plaintiff contended that Part III of the Act applied and that the decree could be executed on its

having been transferred from Tanzania without the necessity for registration.

The trial Judge upheld the defendant's application on the grounds that the words in section 6 "the High Court of Tanganyika" did not apply to Tanzania

and that the deletion of the words “Her Majesty’s” by the Statute Law (Miscellaneous Amendments) Act of 1964 did not avail the plaintiff, but merely recognised the change from colonial to independent states of the former colony of Tanganyika. The plaintiff appealed, contending that it was a mere matter of nomenclature that the draftsman and the legislature had made a mistake and that any other construction would lead to an absurdity.

Held – The amendments of 1964 were of a minor nature and could not be applied so as to include the then new Sovereign State of Tanzania, which had been brought about by the union of Tanganyika with Zanzibar in April 1964.

The country had not even remained the same geographically, as, for instance, had Zambia, which was the subject of the High Court’s decision in *Re Lowenthal and Air France* [1967] EA 75, and which held that there had been a major change of status in that country on Independence in 1964, so that the reference to “Northern Rhodesia” could not be taken to mean “Zambia”.

The Court could not assume that there had been a mistake on the part of the draftsman or of the legislature, and it could not insert for itself in the section a word different from the one used.

Accordingly, section 6 and Part III of the Act did not apply and registration should have been effected under Part IV. The Judge was therefore entirely right to vacate the purported acceptance of the Tanzanian decree.

Per Platt AJA – Judgments given by the High Court of Tanganyika could still be transferred for execution to Kenya even after the High Court in the United Republic had become the High Court of Tanzania. But the trap is, that the converse does not hold good; that is to say that whilst provision is made for reciprocal enforcement of a decree of the High Court of Tanganyika, that provision does not permit the enforcement of a decree in Kenya or the High Court of Tanzania.

It is the duty of the Court to give a sensible meaning to the words of the statute which, if possible, makes it operative. It was perfectly possible to give an operative meaning to the words “The High Court of Tanganyika” in 1964 and for many years thereafter.

The history of the legislation before and after the union of Tanganyika and Zanzibar, and the reciprocal legislation in Tanzania are referred to in the judgment of Platt AJA.

Appeal dismissed.

Cases referred to in judgment

(“**A**” means adopted; “**AL**” means allowed; “**AP**” means applied; “**APP**” means approved; “**C**” means considered; “**D**” means distinguished; “**DA**” means disapproved; “**DT**” means doubted; “**E**” means explained; “**F**” means followed; “**O**” means overruled)

East Africa

In Re Lowenthal and Air France [1967] EA 75

United Kingdom

Bristol Guardians v Bristol Waterworks Co [1914] AC 379

King Emperor v Benoari [1945] 1 All ER 210

Richards v McBride [1881] 8 QBD 119

Judgment

Hancox JA: On 12 December 1977 a decree was given by the High Court of Tanzania at Dar-es-Salaam ordering that *ex parte* judgment be entered for the plaintiff in civil case number 157 of 1976 of KShs 122 103,30 plus interest and costs. The decree was not issued until 6 January 1982. On 23 March of that year the Court certified that the decree remained unexecuted. On the same day Mapigano J ordered the transfer of the decree to Mombasa for execution, and on 30 June the Tanzania High Court re-submitted the certified copies of those documents to this Court.

As Bhandari J from whom this appeal is brought, said, the judgment supporting the decree was not registered in this Court, but was accepted by the High Court Registry and assigned a case number. Accordingly, Part IV of the former Foreign Judgments Enforcement Act (Chapter 43) of The Laws of Kenya ("the Act") (since replaced by the Foreign Judgments (Reciprocal Enforcement) Act of 1984 as from 31 August 1984) was not complied with. Bhandari J took the view that Part IV of the Act, and not Part III, which allows the simplified procedure of transferring decrees from certain neighbouring countries, applied.

Accordingly, he held that the decree was wrongly accepted by this Court and ordered it to be vacated. The consequential steps in execution which were applied for by Messrs Archer and Wilcock (whom Mr Baraza represented on the appeal before us), who are on record for the decree holders, Italframe Limited, on 11 May 1984, and ordered on 24 May, were also vacated.

Bhandari J's reasons for holding that Part III of the Act did not apply were perfectly clear. He took the view that the words "the High Court of Tanganyika" which were substituted for "Her Majesty's High Court of Tanganyika" by the Statute Law (Miscellaneous Amendments) Act of 1964, which came into force on 3 November 1964, did not mean, and could not be taken to mean, the then new state of the United Republic of Tanzania. This comprised both Tanganyika and Zanzibar, and, it is now accepted by both sides, came into being on 26 April 1964. He held that the position had wholly changed since the Act was originally passed while the British Empire existed, that that situation no longer obtained and that consequently the word "Tanganyika" could not be taken to mean Tanzania. He referred to the Kenya High Court decision *In Re Lowenthal and Air France* [1967] EA 75. In that case the judgment, which was from the High Court of Zambia, was registered in Kenya under Part II, but Rudd J at 76 held that:

> "The British Protectorate of Northern Rhodesia attained independence in 1964 and became the independent Republic of Zambia within the Commonwealth.
>
> The question is whether the application of part II of the Act to the superior courts of Northern Rhodesia continued in effect after Zambia became independent so as to apply Part II of the Act to the superior courts of Zambia. In my opinion this question must be answered in the negative.
>
> There was clearly a major legal change of status when Zambia became independent and I think it would not be correct or right to say that the superior courts of Zambia are or were, since the independence of Zambia, superior courts of Northern Rhodesia. In my opinion if Part II of the Act could be applied to the Courts of Zambia, as to which I would reserve my opinion in Kenya to effect the application and I can find no such legislative action which had that effect. For these reasons the present application must succeed."

So in that case, though there was an issue of nomenclature, as Mr Baraza put it when arguing this appeal in front of us, the decision really turned on the fact that there had been a major change of status when the former territory of Northern Rhodesia became the Republic of Zambia in 1964.

Mr Baraza asked us to hold that the draftsman of the 1964 amending Act must have made a mistake and inadvertently used the word "Tanganyika". He submitted that the provision in section 6 would make nonsense unless the word "Tanganyika" were read as Tanzania since by the time it was enacted there was no such country as Tanganyika. This must have been within the knowledge of the draftsman and of Parliament which enacted it.

On the question of the construction of a statute, which would lead to manifest absurdity if interpreted literally, Mr Baraza cited to us several passages from *Halsbury's Laws of England* (3ed) Volume 36. He said that absurdity would result if that part of it which contains section 6 were not applied to Tanzania, because it would then be inoperative, and it must have been the intention of Parliament to apply the less strict system of transferring decrees from neighbouring countries. Once the decree is so transferred it could be executed on persons within the jurisdiction in accordance with the remainder of section 6 and of the ordinary provisions in sections 30 to 33 of the Civil Procedure Act, which relate to the transference of decrees within Kenya. It was not a question of reciprocity, he said (which of course is now rendered essential by the new, 1984, Act), but of a privilege being granted to a neighbouring country to preserve comity between the two. In support of this submission Mr Baraza cited paragraph 582 of *Halsbury's* which I now set out in full:

> "582 Statutes must be so construed as to make them operative. If it is possible, the words of a statute must be construed so as to give a sensible meaning to them, *ut res magis valeat quam periat*. A statute must, if possible, be construed in the sense which makes it operative, and nothing short of impossibility so to construe it should allow a court to declare a statute unworkable. Thus where a statute has some meaning, even though it is obscure, or several meanings, even though there is little to choose between them, the Courts must decide what meaning the statute is to bear, rather than reject it as a nullity. It is not permissible to treat a statutory provision as void for mere uncertainty. Unless the unascertainable meaning and must therefore be regarded as meaningless. Where the main object and intention of a statute are clear, it should not be reduced to a nullity by a literal following of language, which may be due to want of skill or knowledge on the part of a draftsman, unless such language is intractable."

Mr Baraza concluded his argument by urging us that his was clearly an instance of a misnomer, that the learned Judge was wrong in holding, in effect, that the decree should be deregistration because, on the correct interpretation of the Act, no registration of the Tanzania decree was statutorily necessary in the first place.

It is important to bear in mind the stated purpose of the amending Act of 1964. The preamble to the Act says that its purpose is to promote the revision of the laws by making minor amendments to certain written laws. But the memorandum of objects and reasons subtended to the Bill says its purpose is to bring the Statute Law up to date by removing minor errors, anomalies and anachronisms, and by effecting amendments of a minor nature.

What are the amendments in fact effected by the Act? They are clearly minor in nature, and, with regard to both the Act and to the Fugitive Offenders

Pursuits Act (Chapter 87), they are made in the context that Kenya had then recently become independent, as had Uganda and Tanganyika shortly before, and, therefore, quite clearly the reference to "Her Majesty's High Court" and to the "adjoining British Territories", were inappropriate, and anachronisms in the true sense. Further, in the Distress for Rent Act (Chapter 293), the word "Crown" is replaced by more appropriate language. So the pattern of the amendments, at any rate relating to the title of the Courts of the former Sovereign, or its lands, was that the Independence of Kenya was being given effect to in the language of statutes which had previously referred to the Crown.

An amendment, however, relating to a sovereign country cannot in any sense be regarded as a minor amendment. It is not even in evidence, for instance, that Kenya had recognised the new State of Tanzania. Moreover the arguments against construing the words naming the former Crown territory is even stronger than in *Re Lowenthal* (*supra*) because at least there Zambia remained geographically the same as Northern Rhodesia, which cannot be said of Tanzania, which by then included Zanzibar, and was not geographically the same entity.

Furthermore, the passage from *Halsbury* cited by Mr Baraza, which I do not entirely accept, must be read with paragraph 584 which Mr Baraza omitted to read until we drew his attention to it. It states:

> "It is not competent to any court to proceed upon an assumption that Parliament has made a mistake, there being a strong presumption that Parliament does not make mistakes. If blunders are found in legislation, they must be corrected by the legislature, and it is not the function of the Court to repair them. Thus, while terms can be introduced into a statute to give effect to its clear intention by remedying mere defects of language and to rectify obvious misprints or misnomers no provision which is not the statute can otherwise be implied to remedy an omission."

This receives support from the case of *Bristol Guardians v Bristol Waterworks Co* [1914] AC 379, in which the question arose as to whether the workhouse in Bristol was entitled to a domestic water supply in the same way as a dwelling house, though the former was not mentioned in the Bristol Waterworks Act of 1862. Lord Loreburn LC said at 388:

> "Now it is one thing to introduce terms into an Act of Parliament in order to give effect to its clear intention by remedying mere defects of language. It is quite another thing to imply a provision which is not in the statute in order to remedy an omission, without any ground for thinking that you are carrying out what Parliament intended. I ask myself, did Parliament intend that the payment or tender should be a reasonable sum to be fixed if need by the Courts? For what the justices are to determine is only the value of the tenant, not the rate or amount to be paid. I have no ground for believing that Parliament meant this curious method. I do not believe it did and to insert such a provision would be simply making, not interpreting, the law. After all, it is not our function to repair the blunders that are to be found in legislation. They must be corrected by the legislature."

The same principle applies, to my mind, in the instant case. We are not here to speculate on whether the draftsman, or Parliament, intended to apply Part III of the Act to Tanzania. It would be most dangerous for any court to presume to insert in legislation a substantive word naming a new country in a statutory provision. That is for Parliament. In *King Emperor v Benoari Lal Sarma* [1945] 1 All ER 210 at 216, Lord Simon said:

> "Again and again, this Board has insisted that in construing enacted words we are not concerned with the policy involved or with the result, injurious or otherwise, which may follow from giving effect to the language used."

Without any disrespects to Mr Baraza's able and persuasive argument I would therefore conclude that Bhandari J was entirely right in his conclusion that Part III of the Act had not been shown to apply to Tanzania, and that, as registration under Part IV had not been effected, the purported acceptance of the decree by the registry was wrong and that it should be vacated.

I would therefore uphold Bhandari J's decision and I would dismiss the appeal from it with costs. As Platt and Gachuhi AJJA are of the same opinion it is so ordered.

Platt AJA: The High Court in Mombasa refused to accept for registration a decree of the High Court of Tanzania, and to permit the execution of it in Kenya. The Registrar of the High Court of Tanzania had sent the decree in Dar-es-Salaam on 12 December 1977. The decree was issued on 16 January 1982, and the transfer was ordered in March 1982 by a Judge of the High Court, the transfer actually taking place on 30 June 1982. The Registrar of the High Court in Mombasa, having acted upon this matter in June 1984, a process server called at the offices of Ocean Freight Company Limited, and served a notice to show cause why execution should not be levied. Ocean Freight Limited is the agent in Kenya of the Mediterranean Shipping Company, the defendant in the Tanzania suit, against whom judgment had been obtained by the plaintiff Italframe Limited. The defendant protested ignorance of any such suit or judgment against it, and on 20 July 1984 applied to the High Court to set aside the registration. After a careful ruling, the High Court acceded to the request by the defendant, and set aside the registration, together with all orders made in pursuance of the application for execution.

It is from these orders of the High Court that Italframe Limited has appealed. The main contention is that the learned Judge misdirected himself in law in holding that Part III of the Foreign Judgments Enforcement Act (Chapter 43), and in particular section 6, did not apply to the decree of the High Court of Tanzania. Consequently the learned Judge had wrongly directed the Registrar to refuse to accept the decree for execution.

Part III of the Foreign Judgments Enforcement Act is headed "Execution in Kenya of Decrees and Warrants of Certain Neighbouring Countries".

The "certain neighbouring countries" are specified in section 6 of the Act as being Zanzibar, Uganda, Nyasaland and Tanganyika. The Courts in those neighbouring countries in which a decree might be obtained, are described as Her Britannic Majesty's Court of Zanzibar, Her Majesty's Court of Uganda, Her Majesty's court of Nyasaland or Her Majesty's Court of Tanganyika or any court subordinate to those courts. Then in 1964 by the Amending Act 19 of 1964, the words "Her Majesty" describing the High Court of Tanganyika were deleted. So, of the four courts mentioned in sections 6, 7 and 8 of the Act, Her Majesty's title remained except for the High Court of Tanganyika.

Mr Baraza submitted in general that there was no real difference between the styles of the High Court; that is to say it did not matter whether the High Court at Dar-es-Salaam was referred to as the High Court of Tanganyika, or the High Court of Tanzania. In developing his argument, however, he drew his attention to the fact that the state known as Tanganyika had gone through a political change, because of its union with the State of Zanzibar, so that on 26 April 1964 there came into being the United Republic of Tanzania. The Court was entitled, he said, to take judicial notice of that historical fact; and I think

there was no real dispute that was so. But as a result of the birth of the United Republic of Tanzania, Mr Baraza submitted that the amendment in the Amendment Act number 19 of 1964 to the Foreign Judgments Enforcement Act (Chapter 43), was very much behind the times and should be treated as being an error. This error, Mr Baraza claimed, had only been put right by the amendments in Act number 4 of 1984. The position now is that arrangements have been made to accept decrees from the High Court of Tanzania.

On the other hand, Mr Satish Gautama submitted that it was not right for the Court to speculate why the legislature in 1964 concerned itself with the High Court of Tanganyika. He maintained that the basis of executing foreign judgments was the reciprocal advantage gained by the states, which had agreed to execute each other's judgments. It was not to be supposed that the decrees of the High Court of Tanganyika did not exist, or that the Act as amended in 1964 could not operate to advantage. Therefore, the learned Judge was right.

It is no doubt true, that the basic principle upon which neighbouring or other states provide for the enforcement of foreign judgments, is one of reciprocity and the advantage to be gained therefrom. That is clear from the preamble of Chapter 43, the Act is one to make provision for the enforcement in Kenya of judgments obtained elsewhere and for facilitating the enforcement elsewhere obtained in Kenya. Part III of the Act refers to the situation where Her Majesty had established courts in the four neighbouring countries named, in which situation there was in-built reciprocity. Indeed, as far as those countries immediately neighbouring Kenya are concerned, there was at one time a common currency and an organisation providing common services. But as the learned Judge pointed out, once these countries became independent states, it was for them to establish such relations with their neighbours as they desired. In the High Court of Kenya, Rudd J (as he then was) faced that situation in *Re Lowenthal and Air France* [1967] EA at 75. The question was whether the application of Part II of the Foreign Judgments Enforcement Act to the superior courts of Northern Rhodesia, continued in effect after Zambia became independent, so as to apply Part II of the Act to the superior courts of Zambia. Rudd J answered that question in the negative. He pointed out that there was a major legal change of status when Zambia became independent, and therefore it could not be right to say that superior courts in Northern Rhodesia. He was of the opinion that legislative action in Kenya would be needed to provide that Part II of the Act applied to the superior courts of the new state of Zambia. With respect to the learned Judge I would entirely agree.

But it was argued that the situation in Tanzania was not simply that Tanzania had gained independence. With respect, I would have thought that the situation was even more difficult than that sort of change. Here two states joined together, and as we know from history, this came about as a result of revolution in Zanzibar. Despite the union of these two states, Zanzibar retained its own President, Parliament and system of courts, though there were a number of union matters. It was certainly not a case where the union effected a common judicial system throughout the two states. Each one had its own Chief Justice. The question then for the independent Republic of Kenya was, whether it should have a specific reciprocal arrangement with the mainland, which had been known as Tanganyika, and another with the island known as Zanzibar. There was no rush to put these new relations to the test, but what the amending Act of 1964 achieved, was to accept decrees from superior and other courts

of independent Tanganyika. After 1962 the High Court of Tanganyika was not Her Majesty's Court, but was the High Court of Tanganyika of the new independent Republic of Tanganyika. Therefore, it was not wrong to amend the Act, so as to reflect the changed circumstances in Tanganyika before Tanganyika joined Zanzibar to form the United Republic of Tanzania. After the union, it appears that some time was taken to recognise the High Court of Tanzania.

It is of interest to observe what the reciprocal arrangements were in Tanzania. In Chapter 8 of the Laws of Tanzania will be found the provisions of the Foreign Judgments (Reciprocal Enforcement) Ordinance, with deals with the registration of foreign judgments. This Chapter was dealt with in supplements between 1966 and 1970. But it still retained traces of the original Ordinance of 1935 referring to Tanganyika as "the Territory". It is well known that it was then called Tanganyika Territory which was administered under mandate from the league of Nations and later United Nations. In the definition section the following appears:

> "Judgments given in the superior courts in 'the Territory' means judgments given in the High Court of Tanganyika and includes any judgments given in any courts on appeals against any judgments so given."

It is clear therefore that the High Court of Tanganyika was an entity up to 1970. But when one observes the state of the Ordinance after the 1974 Supplement that definition now reads:

> "Judgments given in the superior courts of 'the Territory' means judgments given in the High Court of Tanzania and includes judgments given in any courts on appeals against any judgments so given."

It follows that the High Court of Tanzania had become an entity of that name between 1970 and 1974.

The exact equivalent of Part III of Chapter 43 in Kenya will not be found in Chapter 8 of the Laws of Tanzania, but in Chapter 7 of those Laws. Chapter 7 is called Judgments Extension Ordinance which made provision for the execution in the Tanganyika Territory of the decrees and Warrants of the Civil Courts of the Neighbouring Colony and Protectorates. In Chapter 7 section 2 there is the equivalent of section 6 which Mr Baraza referred to in Chapter 43, Laws of Kenya, and it is in very much the same style. It refers to the case of a decree having been obtained or entered up in Her Majesty's High Court of Kenya Colony and Protectorate, the High Court of Uganda Protectorate, the High Court of Nyasaland or Her Britannic Majesty's High Court of Zanzibar, including the Courts of His Highness the Sultan of Zanzibar. It provides that such a decree may be transferred to Her Majesty's High Court of Tanganyika for execution. That was the position up to the supplement of 1970. But in the supplement of 1974 the modern names now appear, namely: the High Court of Kenya, the High Court of Uganda, the High Court of Malawi and the High Court of Zanzibar. Decrees of these courts may be transferred to the High Court of Tanzania. It is thus clear that it was not wrong for the legislature in Kenya in 1964 to provide for decrees being transferred from the High Court of Zanzibar. It is on this analysis of the situation that one can see the real force of Mr Baraza's question: "What is in a name?" The answer to the question is that the constitutional structure giving authority to the High Court of Tanzania was the United Republic of Tanzania and was not simply the Republic of Tanganyika. It is this change in its constitutional authority which requires other states to decide whether they will enter into reciprocal arrangements.

Applying that approach to the facts of this case, the amending Act number 19 of 1964 was proposed in the form of a Bill, before 26 April 1964, the date on which the United Republic of Tanzania came into being. The amending Act became operative towards the end of 1964 after the Act of Union: but the High Court of Tanganyika continued to be provided for in the United Republic's own legislation until after 1970. It appears that the High Court of Tanzania came into being sometime before 1974. The suit in the High Court in Dar-es-Salaam was filed in 1976 and the judgment was entered in December 1977. It is clear therefore that by the time the suit was filed and the decree given, the documents of the High Court were correctly entitled "the High Court of Tanzania at Dar-es-Salaam". Yet the legislature in Kenya did not deal with this change until 1984. It is a curious aspect of the legislation covering enforcement of foreign judgments, both in Kenya and the United Republic of Tanzania, that there seems to be a time gap between a constitutional change and reciprocal legislation. But it will be understood that the transfer of decrees may well take place a long time after the decree was given. In the present case whilst judgment was given in December 1977 the decree was only drawn up in June 1982 and the order for its transfer was made in June 1982. Before the amending Act of 1964, different periods applied to the enforcement of foreign judgments. In Part II of Chapter 43, an application had to be made within 12 months after the date of judgment or for such longer periods as may be allowed by the Courts. Under Part III no period was laid down. In Part IV the period was six years after the date of the judgment. The question would then arise whether a state would continue to enforce decrees from the High Court or superior court of another country, which emanated from the constitutional predecessors of the current High Court or superior court. In this context it is interesting to note how the legislation in Tanzania both in Chapter 7 and Chapter 8 attempted to cover the historical changes from the superior courts of the Territory to the High Court of Tanganyika, and Chapter 7 which is particularly relevant to Part III of Chapter 43 in Kenya, shows the progress from Her Majesty's courts in the neighbouring countries to the various High Courts in those countries. It follows that judgments given by the High Court of Tanganyika could still be transferred for execution to Kenya even after the High Court in the United Republic had become the High Court of Tanzania. But the trap is, that the converse does not hold good; that is to say, that whilst provision is made for the enforcement of decrees of the High Court of Tanganyika that provision does not permit the enforcement of decrees in Kenya of the High Court of Tanzania.

This analysis illustrates the general principle that it is not for the Court to assume a mistake in an Act of Parliament. This was pointed out by Grove J in *Richards v McBride* [1881] 8 QBD 119 at 122 where he observed:

> "We cannot assume a mistake in an Act of Parliament. If we do so, we should render many Acts uncertain by putting different constructions on them according to our individual conjectures. Draftsmen of the Act may have made a mistake. If so, the remedy is for the legislature to amend it."

(See *Craies on Statute Law* (17ed) Chapter 20; *Halsbury's Laws of England* (3ed) Volume 36 paragraph 584.) It is not the business of the Courts to speculate on the policy intended by the draftsman. It is the duty of the Court to give a sensible meaning to the words of the statute which, if possible, makes it operative. It was perfectly possible to give operative meaning to the words "the High

Court of Tanganyika" in 1964 and for many years thereafter. But unfortunately it was not possible until 1984 to include in those words the High Court of Tanzania. Therefore I agree that this appeal should be dismissed with costs to the respondents.

Gachuhi AJA concurred in the judgments of Hancox JA and Platt AJA.

For the appellant:
H J Baraza

For the respondent:
Satish Gautama and *J Muhuni*

Jabane v Olenja
[1986–1989] 1 EA 183 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	2 September 1986
Case Number:	2/85
Before:	Kneller, Hancox and Nyarangi JJA
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[1] Negligence – Quantum of damages – Collision between tanker and car travelling in opposite directions – Finding by Judge that tanker had encroached two feet over mid-line at time of accident – Finding that total blame lay with tanker driver – Whether contributory negligence established – Car driver injured in left eye, right hand and right knee – Permanent disability in respect of each whether Judge's – Whether Judge's assessment correct.

Editor's Summary

On 21 May 1978 at 7:30pm a collision occurred between a tanker lorry and the respondent's Renault car on the Maseno-Luanda road. The Renault was travelling towards Luanda and the tanker towards Maseno. The trial Judge found that the tanker lorry had encroached two feet over the mid-yellow line and that its driver was wholly to blame for the accident. He expressly found that the respondent was not guilty of any contributory negligence.

The respondent's car was completely destroyed and he suffered injuries to his left eye, right hand and right leg. His residual injuries were a distortion of the vision of his left eye, impaired right hand, a permanent fusion of his right knee and a shortening of his right leg. The Judge awarded him KShs 450 000 general damages for pain and suffering and KShs 336 000 for loss of future earnings.

The appellants appealed, contending that the evidence showed contributory negligence on the part of the respondent and that the Judge should so have found. They also contended that the Judge's award of damages was so excessive as to be wrong in law.

Held – The Judge's finding that the tanker lorry had encroached on to its wrong side was supported by the evidence and was unexceptionable.

However, there was credible evidence that the respondent saw the tanker’s position about one minute before the accident, had sufficient room to take corrective action and yet, having swerved to his left, then swerved to his right into the tanker lorry, the likely cause being that he was dazzled by its headlights.

In those circumstances it was incumbent on the respondent to have taken further avoiding action by slowing down and moving more to his left. In the result he should be held 10% responsible for the accident and the tanker lorry driver 90%.

There was evidence to support the element in the general figure of damages which the Judge included for loss of promotion prospects, but the sum of KShs 450 000 for loss of amenities, pain and suffering wrongly assumed that the infection of the respondent's thigh bone and kidneys were caused by the accident, whereas the evidence showed that they were due to the medical treatment he had received since the accident.

In the result the Judge erred in assessing the general damages for pain and suffering, though not for loss of earnings, and this would be reduced to KShs 352 000 and the total sum further reduced by 10%, for the contributory negligence, to KShs 619 200.

Appeal allowed in part.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bhogal v Burbridge and another [1975] EA 285

Butt v Khan [1982–1988] 1 KAR 1

Lalji v Toka and others [1980] LLR 1294 (CAK)

Mute v Elikana [1975] EA 201

Mwanasokoni v Kenya Bus Services and others [1982–1988] 1 KAR 870

Mwangi v Wambugu [1982–1988] 1 KAR 278

Omari v City Council of Nairobi and Daniel Kahungu (1982–1988) 1 KAR 681

Peters v Sunday Post [1958] EA 424

Price v Kelsall [1957] EA 752

Saif v Sholan (1955) 22 EACA 270

Selle v Associated Motor Boat Co Ltd [1968] EA 123

Shabani and another v City Council of Nairobi and another [1982–1988] 1 KAR 681

Southern Engineering Co Ltd v Mutia [1982–1988] 1 KAR 878

Williamson Diamonds Ltd v Brown [1970] EA 1

Witu v Peake (1913/1914) 5 EALR 17

United Kingdom

Bonham-Carter v Hyde Park Hotel Ltd (1948) 64 TLR 177

West (H) and Son Ltd v Shephard [1964] AC 326

Judgment

Kneller JA: Mr Justice Schofield awarded Highstone Butty Tongoi Olenja, the respondent plaintiff (Olenja) KShs 29 320 special damages with interest on them at 12% a year from 20 February 1980 (the date the plaint was filed) to 22 March 1985 (the date of the judgment) which came to another KShs 17 592 so

the total award for special damages was KShs 46 912. He also assessed the general damages at KShs 786 600. Add these two sums and the result is KShs 833 512.

Mr *Menezes*, the advocate for Mohamed Mahmoud Jabane, the appellant defendant (Jabane), in the memorandum of appeal has complained that:

> "7. The learned trial Judge awarded damages to the respondent, which were so grossly excessive as to be a gross misdirection in law.
>
> 8. The learned trial Judge did not take into consideration that apart of the submission of the respondent regarding general damages were vague, speculative and conjectural without evidence being led on it, and hence should have been ignored by him.
>
> 9. . . .
>
> 10. The judgment of the honourable trial Judge has occasioned a failure of justice and or resulted in a gross miscarriage of justice."

The material put before Schofield J for assessing these awards was not abundant. Olenja's advocate in both courts, Mr *Wasuna*, with the consent of Mr *Menezes*, put in a valuation report on the Renault and a medical report on Olenja. He declared that Olenja claimed special damages for the value of his car and general damages for his injuries. He and Mr *Menezes* announced that they agreed that the Judge should then decide quantum on those two reports. What the awards should have been on only those reports is conjecture but it would have served Olenja right if they had been nominal. It was the duty of his advocate, Mr *Wasuna*, to bring to the notice of the Judge the principles and recent local awards for such claims (*Lalji v Toka and others* [1980] LLR 1294 (CAK); *Bonharn Carter v Hyde Park Hotel Ltd* (1948) 64 TLR 177 at 178).

The Judge called for further information on the scrap value of the vehicle and the respondent plaintiff's loss of employment prospects, which was conscientious and proper of him.

So Mr *Wasuna* returned on another day and, again with the consent of Mr *Menezes*, put in another medical report on Olenja and one from his employer and six salary slips. He then claimed KShs 30 000 for the value of the Renault, KShs 320, for the cost of obtaining (all) the reports and KShs 5 130 for being on half-pay for six months.

He called Olenja who gave his age as 36 on 20 March 1985 and added that he was married, had six children and his injuries had affected his "sexual life" at which point Mr *Menezes* reminded Mr *Wasuna* that they had agreed that damages should be assessed by the Judge on the reports so Olenja gave no more evidence.

Mr *Wasuna* submitted the award for general damages should be made up of sums for

(i) pain, suffering, loss of amenities;

(ii) loss of expectation of life;

(iii) loss of future earnings; and

(iv) loss of earning power.

He then underscored these matters. Olenja suffered considerable pain for a long period of time. His left eye still ached and watered. There was bone infection. His right hand might require an operation later. He could no longer play football, drive safely or squat (repeatedly typed as "squart" in the medical report

for some reason). He was very likely to have to retire ten years before the usual age of 55. He had lost his chances of promotion because he had not been summoned before any promotion boards. So his (annual) increments had been only KShs 100.

Mr *Wasuna* cited some awards of the English courts for comparable injuries from *Kemp and Kemp on Damages*. He then suggested:

(i) KShs 500 000 for pain, suffering, loss of amenities;

(ii) KShs 20 000 for loss of expectation of life;

(iii) KShs 336 600 for loss of future earnings; but

(iv) no specific sum for loss of earning power.

The total of these figures is KShs 856 600.

Mr *Menezes* replied by conceding that Jabane did not dispute the value of the Renault at the time of the accident but reminded the Judge that its scrap value should be deducted from it. The cost of the reports was not challenged.

The claim for six months' pay, he added, had not been pleaded. It was accepted that Olenja suffered severe injuries which reduced the quality of his life. KShs 500 000 was an excessive claim for pain, suffering, loss of amenities and KShs 250 000 at the most would be appropriate. There was no evidence to indicate his life expectancy was affected. Loss of future earnings he had nothing to say about, it would seem, save that local decisions were unhelpful. Finally, there was no evidence to support the respondent plaintiff's claims he would be retired at 45 and not 55. Mr Justice Schofield assessed the value of the Renault at KShs 30 000 and deducted KShs 1 000 for its scrap value. He allowed KShs 320 for the cost of the reports. Thus he reached the total for special damages of KShs 29 320. He refused to add KShs 5 130 to them for the six months' half salary Olenja lost because it was not pleaded.

Turning to the four headings for general damages the learned Judge assessed them thus:

(i) pain suffering loss of amenities – KShs 450 000;

(ii) loss of expectation of life – nil;

(iii) loss of future earnings – KShs 336 000;

(iv) loss of earning power – no figures

Total of those figures is KShs 786 600.

He listed the injuries Olenja suffered and the subsequent surgical and medical treatment he endured. He followed this with an account of his present condition and what the future held for him including further operations. He found the injuries of Burbridge in *Bhogal v Burbridge and another* [1975] EA 285 the nearest to those of Olenja but slightly less severe. Burbridge was awarded KShs 160 000 for pain, suffering, loss of amenities. Inflation, he said, would raise that to a far greater sum. There was no element in Burbridge's award for the cost of a further surgical operation as Olenja might have to have and because Burbridge was a farmer loss of promotion prospects did not arise. He ended up with an award of KShs 450 000 under this heading for Olenja.

But he declined to make any award for loss of expectation of life. The surgeon did not mention it in his first report. He asserted in his second report that Olenja's injuries had "considerably reduced the quality hence the expectancy of his life". The Judge was of the view that a lowering of the quality of life of a man did not mean that his life would automatically be shorter.

The loss caused by the respondent/plaintiff's potential early retirement he found proved. He assessed the compensation for this by taking KShs 2 805 a month (Olenja's salary at the end of March 1985), or KShs 33 600 a year, as the multiplicand and choosing ten as the multiplier and so reached KShs 336 600 as an appropriate award for this item.

The loss of promotion prospects the Judge said must form part of the general award for damages. The letter from his employer clearly indicated that the accident had caused the respondent plaintiff to miss all promotions to date. There was no figure chosen for this loss as far as I can tell. Mr Dhanji opening Jabane's appeal pointed out that the particulars of the respondent/plaintiff's injuries did not mention a brain injury, the kidney failure and subsequent septicaemia was not linked to the injuries he received in the accident, there was no unconsciousness after the accident, fracture of the skull, loss of memory or powers of concentration, headaches or loss of vision. A serious injury to the right knee and shortening of that leg were the only result of the accident. All other injuries had healed. It was an error, Mr Dhanji went on, to assume Olenja would be retired early. Burbridge was also 36 when he had his accident in early October 1975 and his injuries were not less but more severe than those inflicted on Olenja. Loss of future earnings had not been pleaded and should not have been quantified. They were an actual loss and must be proved as part of the special damages. Anyway, the evidence revealed that the loss of half his salary for six months, apart, Olenja returned to his employment on full salary and it increased annually. Loss of earning power or promotion was, Mr Dhanji agreed, part of the general damages. The evidence did not, however, indicate Olenja was suitable for promotion or likely to have been invited to any interview for it. He had missed interviews held between 21 May 1978 (the date of the accident) and 22 November 1979 (the date of his final discharge from hospital) which is 18 months but thereafter it was unclear that he had missed any more. Olenja is a postal clerk and his residual injuries did not indicate he would lose his job or be retired before he was 55. He was still a postal clerk eight years after the accident. If, on the contrary, he were retired at 45 then presumably he would receive a pension, which was something the learned Judge had overlooked.

Mr *Wasuna* supported the assessments of Mr Justice Schofield. He analysed the injuries and their treatment. He computed the time spent in hospital and out-patients' clinics and the number of operations. There were four principal injuries for Olenja and only one for Burbridge. Severe pain continued for Olenja and infection in his knee bone was now incurable. The days of small and stingy awards have gone. When it came to loss of future earnings the test was not whether he would but whether there was a real likelihood that he would be retired at 45. Mr *Wasuna* very properly pointed out that it was his duty to the Court that led him to admit the learned Judge erred in not taking into account the facts that Olenja would receive a reduced pension and be able to invest some of it if he were retired early. There should have been some deduction for these points.

So much for the outline of the findings and reasons for them of the learned Judge on damages. The submissions of the advocates for the parties in both courts are added as a background. What must come next is, what were Olenja's injuries, treatment and consequent condition?

Just after the accident he had a compound comminuted fracture of the right femeral condyles, compound fracture of the neck, of the right metacarpal of the middle finger, injury to the left eye with tear of the cornea and prolapse of the iris, cut wounds and lacerations on the face, right hand, right leg and right foot, head injury and haemorrhagic shock.

He was admitted the same day to Maseno Hospital in very low condition. He was confused, disorientated and in a state if shock. He was resuscitated with intravenous fluids and blood transfusions and he was transferred to the Nyanza General hospital. After two days he had improved enough to have an emergency operation cleaning up and stitching his right thigh and right hand. Another two days passed and he had an operation on his left eye.

May 28 came and he developed jaundice and his temperature rose to 39°C. He was delirious. He had his third operation on his right thigh and it was discovered that its fracture was infected with osteomyilitis so that it had to be drained of pus so that the wound closed. His right lower limb was immobilised in plaster of paris. Two days later his general condition was worsening so he was transferred to the Kenyatta National Hospital. It was now the end of May 1978.

There he was found to be confused and his right thigh severely infected. Worse was to follow. On 13 June he went into a coma because his kidneys failed. They were septicaemic again. Three times in the next week he was put on a kidney machine and then he came out of this coma.

His thigh had to be reopened and cleaned another eight times between 27 June 1978 and 24 February 1981. Sometimes irrigation suction was plugged into it. Sometimes pieces of dead bone and necrotic tissues were removed. Sometimes he was sent home on crutches. Once an arthrodesis of his right knee was done with bone from the right side of his pelvis and a metal plate and another time it was stabilised with a second plate. Finally the plates were removed and the crutches cast aside.

And in the end Olenja had a permanently shortened right leg with a fused knee. His thigh bone was still infected. He could no longer bend at the knee so he could not use a western lavatory or drive a car. He limped. This was a strain on his right ankle and hip. Osteoarthritis would attack his spine and legs early. His right hand was shortened and weaker and might need operation later on. The iris of his left eye was distorted and that eye had to be protected from bright light. Stress in it gave him headaches. His face was scarred which was a social embarrassment. It was difficult to determine in early March 1985 if his brain or kidneys were permanently damaged. All this at the age of 36.

His employer in a letter of 13 March 1985 to his advocate said the accident had:

(*a*) substantially impaired his physical capabilities and drastically affected his performance at work;

(*b*) led to his missing interviews for promotion to assistant postal controller with a salary of KShs 4 800 a month;

(*c*) made it impossible for him to supervise staff in scattered post offices;

(*d*) made it obvious he would be retired early on medical grounds, but when could not be forecast; and

(*e*) reduced him from an active playing member of the post office sports club to a passive non-playing one.

The reported decisions of this Court and its predecessors lay down the following points, among others, for the correct approach by this Court to an award of damages by a trial Judge:

1. each case depends on its own facts;
2. awards should not be excessive for the sake of those who have to pay insurance premiums, medical fees or taxes (the body politics);
3. comparable injuries should attract comparable awards;
4. inflation should be taken into account; and
5. unless the award is based on the application of a wrong principle or misunderstanding of relevant evidence or so inordinately high or low as to be an entirely erroneous estimate for an appropriate award leave well alone.

See generally *Butt v Khan* [1982–1988] 1 KAR 1; *Southern Engineering Co Ltd v Mutia* [1982–1988] 1 KAR 878; *Shabani and another v City Council of Nairobi and another* [1982–1988] 1 KAR 681, Hancox and Nyarangi JJA and Platt AJA, 6 March 1985.

Bearing those principles in mind and applying them to the sums awarded by Mr Justice Schofield it is clear that he did not err in his award of special damages and refusal to award any sum for the loss of salary for six months and loss of expectancy of life. There was no appeal from these matters.

He was right to find on the strength of the employer's letter that Olenja would not be promoted because of his injuries which meant he had lost something called his earning power which was to be considered as part of the general damages (though he did not in the end make any separate award for it). This Court was not asked to remedy the deficiency.

When it came to the sum of KShs 450 000 for pain, suffering, loss of amenities it is clear that it is excessive and must be reduced. Account was not taken, it seems, of the remoteness from the injuries caused by the accident of the infection of the kidneys and of the fracture of the right thigh bone. They were *post hoc* and not *propter hoc* the events of that accident. The recurring and virulent infections probably had their origins in different causes, which we need not specify. Set them aside as not being due to Jabane's negligent driving, and then Olenja's injuries, treatment and residual conditions in March 1985 were near enough those of Burbridge in October 1975 to warrant a similar award under this heading.

It would have to be increased to take account of the fall in the value of money in the last 11 years. The appropriate sum should have been KShs 352 000 and the learned Judge's one of the KShs 450 000 must be reduced to that sum.

The learned Judge chose the correct multiplicand and multiplier for loss of future earnings. He did not, as Mr *Wasuna* said, take into account his reduced pension on early retirement and the opportunity to invest part of it. Jabane's advocates did not complain of this at the trial or in the appeal. There was no evidence on either matter. This Court should not "tinker" with this part of the award for general damages in these circumstances so it will remain unscathed at KShs 366 000.

So far as the issue of liability is concerned I agree with the result reached by Hancox JA, that Jabane and Olenja were negligent in the ration of 90% and 10% respectively.

And when it comes to costs the proposals of Hancox JA are, in my judgment, appropriate. Likewise the refusal of a certificate for two advocates.

Nyarangi JA agrees. Therefore the orders of this Court are that the appeal is allowed in part, the finding of the trial Judge of 100% liability on the part of Jabane is set aside and one of 90% substituted, the finding of the Judge of no contributory negligence by Olenja is set aside and one of 10% substituted, the award of KShs 786 600 general damages reduced to KShs 688 000 and allowing for 10% contributory negligence, to KShs 619 200, the award of special damages, interest and costs in the High Court is confirmed, 60% of his costs of this appeal are to be paid by Jabane to Olenja and the application for a certificate for two advocates is rejected. The advocates of the parties may by consent adjust the figures in these judgments if they are incorrect.

Orders accordingly.

Hancox JA: The respondent who was at the material time a postal officer with the Kenya Posts and Telecommunications Corporation, and is still employed by them, was driving his Renault Saloon KJM 646 along the Maseno Luanda Road in the direction of Luanda when it collided with a tanker lorry number KQL 465, as a result of which the Renault was written off as a total loss, and the respondent received moderately severe injuries, the most serious of which was to his right leg.

The accident occurred at about 7.30pm on 21 May 1978. The Renault had just passed a police road block at Maseno and was on a downhill slope at the time of the impact, with the consequence that the lorry was coming uphill in the opposite direction. The respondent said in evidence that the tanker encroached over to his side of the road by about two feet over the middle yellow line. Its lights were full on, and though the respondent did not specifically say so, his front seat passenger, Wycliff Job Ananda, PW2 said that he was dazzled by its lights so that he could not see properly. Both witnesses said that the Renault swerved to its left in an attempt to avoid collision but the passenger added that the respondent came back on to the road before the collision occurred.

The driver of the tanker, Awes Abdikadir Osiman, was not called in evidence, though he was a defendant to the action in the High Court, with the result that the only witness as to fact (and the only witness apart from the employer, Mohamed Jabane, who was also the first defendant and is currently the appellant in this appeal) was the turn boy Said Mohamed Hirs. He gave a directly opposing account of how the collision occurred but the learned Judge disbelieved him, found that the tanker had encroached over to the respondent's side of the road and answered the agreed issue as to negligence and vicarious liability in favour of the respondent. He expressly found that the respondent was not guilty of any contributory negligence. He went on to award therespondent KShs 29 320 as special damages, and a total of KShs 786 600 by way of general damages, made up as follows:

(i) KShs 450 000 for pain, suffering and loss of amenities of life;

(ii) KShs 336 600 for loss of future earnings.

The second figure was arrived at by an assumption of early retirement, leading to the use of a multiplier of 10 years or 120 months, and a multiplicand of KShs 2 805 per month, being the respondent's earning at the date of the hearing.

The appellant has attacked all these findings on his appeal to this Court. As regards the Judge's findings of facts as to the cause of the accident, Mr *Dhanji*, who led the case for the appellant, cited to us numerous authorities for his proposition that a court on appeal is not bound to follow the trial Judge's findings of fact if it is satisfactorily shown that he had failed to take into account circumstances or probabilities which exist, or if he has made a finding as regards the demeanour of the witnesses which is inconsistent with the totality of the evidence.

In support of this proposition our attention was invited to *Saif v Sholan* (1955) 22 EACA 270; *Price v Kelsall* [1957] EA 752; *Selle v Associated Motor Boat Co Ltd* [1968] EA 123 and *Williamson Diamonds Ltd v Brown* [1970] EA 1. I accept this proposition, so far as it goes, and that this Court does not have the power to examine and re-evaluate the evidence and the findings of fact of the trial court in order to determine whether the conclusion reached on the evidence should stand (see *Peters v Sunday Post* [1958] EA 424). More recently, however, this Court has held that it will not lightly differ from the findings of fact of a trial Judge who has had the benefit of seeing and hearing all the witnesses, and will only interfere with them if they are based on no evidence, or on a misapprehension of the evidence, or the Judge is shown demonstrably to have acted on wrong principles in reaching the findings he did (see in particular *Mwangi v Wambugu* [1982–1988] 1 KAR 278 and *Mwanasokoni v Kenya Bus Services and others* [1982–1988] 1 KAR 870).

More specifically Mr *Dhanji* referred us to *Mute v Elikana* [1975] EA 201, in which the Court of Appeal for East Africa held that where particulars of negligence are pleaded it is incumbent on the trial court to make its own findings on the issues so raised from the material available on record. In the instant case the driver of the tanker was said in the plaint to have been negligent in seven different ways, sub-paragraphed as (*a*) to (*g*) of paragraph 5 of the plaint. Of these at least five are, in my experience, stereotyped allegations of negligence, which can be found in any standard text book on pleadings and in most of the accident actions brought in any of the countries, of which Kenya is one, which apply the common law. It would be a waste of time if every trial court was obliged to weigh and evaluate the evidence, arrive at its findings of fact, and then go on to deal minutely with every standard allegation of negligence which has been lifted out of a book on precedents.

However, there are two allegations in the particulars of negligence, which are special to the facts of this case, namely:

> "(*e*) failing to dim his (the tanker driver's) lights when it was proper to do so.
>
> (*f*) driving on to the wrong side of the road."

Mr *Dhanji* took us through parts of the turnboy's evidence in which he said that the small vehicle (the Renault) was over on to their side of the road, that it came at a very high speed and banged into the tanker, bursting two of the lorry's tyres and one on the trailer. He suggested that that was in fact corroborative of Wycliff's evidence and that the Judge had failed to appreciate this, which led, in part at least, to his finding that the tanker driver was wholly responsible for the accident.

I cannot see that this is so. To my mind the two accounts showed a direct conflict on the facts. In my opinion the learned Judge carefully evaluated both versions of how the collision occurred and it has not been shown that he took

into account facts or factors which he should not have taken into account, or that he failed to take into account matters of which he should have taken account, that he misapprehended the effect of the evidence, or that he demonstrably acted on wrong principles in making his findings. In my judgment he was entitled to find, as he did (notwithstanding that neither side was able to call an independent witness) that the tanker had encroached two feet over the mid-line on to the respondent's side of the road, that the respondent's speed cannot have been very high bearing in mind the road block which he had just encountered, and that the tanker's headlights were full on and not dimmed. He thus answered *in specie* the only allegations of negligence, which were really particular to this case, as opposed to the generalities to which I have just referred.

I would therefore uphold the learned Judge's findings, which I have just set out on which, in my view, he was perfectly right to reach the conclusions that he did.

The only question remaining in my mind as regards liability is what was the true effect of those findings? Should the Judge have found the tanker driver 100% to blame or should he have found that the respondent bore some measure of responsibility for the accident? In other words, within the context of those findings, was there yet room for a valid finding of contributory negligence? Mr *Dhanji* suggested that the respondent must have been going very fast in order to cause the tanker's tyres to burst, and submitted that he was 75% to blame. At the very least, he said, this Court should hold that each driver bore an equal share of responsibility, and that liability should be apportioned on a 50% basis.

I am not prepared to go that far. Neither am I prepared to assume that the road was the normal width of a trunk road, namely 22 feet, so that, on the respondent's half, there would still have been approximately nine feet left for the Renault, being a car of only four to five feet in width, to pass. Moreover, as Mr *Wasuna* said when he was addressing us on behalf of the respondent, the appellant's advocates, having been loud in their complaints about the respondent's pleading, should themselves have complied with the Civil Procedure Rules. They should in their defence have averred in the alternative that if, contrary to their contention, the tanker did go on to its wrong side, then the respondent had failed to take all due measures to prevent the accident and any necessary avoiding action. Mr *Wasuna* submitted that it was sufficient if the respondent had taken the most prudent action in all the circumstances. I think that is a correct proposition.

I have borne all this in mind. After careful consideration of Mr Wasuna's submission on this aspect, I do not think the appellant was precluded on the pleadings from alleging and proving contributory negligence if he could. In my judgment it was established that the tanker came over on to the Renault's side of the road. On the evidence the respondent had about one minute in which to avoid the accident. True he swerved to his left, but he also appears to have come back to his right. This is consistent with the respondent (even though he did not say so) being dazzled by the lights of the tanker, which was a much larger and taller vehicle, as Wycliff said that he (Wycliff) was. In those circumstances it was incumbent on the respondent to slow down even further from the 40kph he said he was doing, and to move more than a little to his left so as to avoid the tanker. The fact that he did not take sufficient avoiding action is

evidenced by the fact of the Renault coming into contact with the tanker and its trailer. I do not consider it is consistent with the proved facts to say that the respondent was entirely free from blame. I would, on the evidence, hold that the respondent was contributory negligent to the degree of 10%. To that extent only would I allow the appeal as regards liability.

Turning now to the quantum of damages, I have had the advantage of reading in draft the judgment of Kneller JA, I entirely agree with it and with the figure he proposes to compensate the respondent for all his pain, suffering and loss of amenities of life. I also agree the Judge was perfectly right to award the sum he did for loss of future earnings.

As regards the costs, each side has had a measure of success, but the preponderance of success on this appeal has been with the appellant. I would award him 60% of his costs of this appeal, but I would not, having considered the matter, certify for two counsel. As the respondent has, in the High Court absolutely, and here substantially, succeeded on the question of liability and on loss of earnings, I would not interfere with the learned Judge's order that the appellant should pay costs of the High Court proceedings.

Nyarangi JA: I entirely agree with everything that has fallen from Kneller and Hancox JJA. I need not rehearse the facts, but out of deference to the clear arguments on both sides in the appeal I add one paragraph.

At this juncture it is apposite to recall that on an appeal against quantum, although the damages awarded by a trial court say, in the opinion of an appellate court, be excessive, the appellate court would not interfere unless there is evidence that the damages have been assessed on wrong grounds or are unreasonable (*Witu v Peake* (1913/1914) 5 EALR 17 and *Butt v Khan* [1982–1988] 1 KAR 1. See also *West (H) and Son Ltd v Shephard* [1964] AC 326 at 353 and *Idi Ayub Omari v City Council of Nairobi and Daniel Kahungu* (1982–1988) 1 KAR 681). It was an error for the trial Judge to take into account the subsequent infection of the kidneys and the fracture in the right thigh bone. There was credible evidence that at the material time the tanker was being driven two feet beyond the yellow line and therefore on its wrong side, that the respondent did stop at the road block and that the respondent, in the circumstances, could not have been driving at too high speed and therefore was in a position to avoid the accident or much of it.

The appellant was highly regarded by his employer because on 13 March 1985 in reply to a letter from the appellant's advocate, the employer stated: "Due to long hospitalisation . . . he missed all the interviews for promotion. . ."

I understand the employer to have been said that but for illness, the appellant would have been interviewed as often as necessary and was bound subsequently to be promoted. On that score the appellant had lost his capability for which the appellant was entitled to appropriate compensation. As Kneller JA states, we were not invited to consider an award for the particular loss.

I agree with the order proposed on costs.

For the appellant:
SS Dhanji and *RD Menezes*

For the respondent:
J Wasuna

Kadamas and another v Municipality of Kisumu

[1986–1989] 1 EA 194 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	29 November 1985
Case Number:	109/84
Before:	Hancox, Nyarangi JJA and Platt AJA
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[1] Prohibition – Council employees dismissed but reinstated after industrial action – Dismissals subsequently reaffirmed by committee of the council – Whether prohibition lies at employees' instance – Whether an infringement of public rights-meaning of "public rights" – Sections 7 and 17 – Trades Disputes Act (Chapter 234) – Sections 12(3), 91 and 92 – Local Government Act (Chapter 265) – Order LIII, rules 1, 2, 3 and 4 – Civil Procedure Rules.

Editor's Summary

The appellants were clerical officers employed by the respondent council who attracted suspicion regarding irregularities in medical claims, and whose dismissals without loss of benefits were recommended by the Finance, Staff and General Purposes Committee of the Council at a special meeting held on 3 June 1981. These operated from the date of their initial suspension from duty on 20 March 1981. It appeared that on that occasion both appellants had had an opportunity of being heard.

As a result of representations by their Union the Minister appointed an investigator under section 7 of the Trades Disputes Act, who advised that the appellants be reinstated. In pursuance of that advice it was resolved at a heads of department meeting on 7 October 1983, that the appellants be reinstated and they were offered and accepted terms of reinstatement in letters of 13 and 15 October 1983.

Without further notice to appellants the committee met again on 28 December 1983, and recommended that the "Council's" earlier decision to dismiss the appellants be reaffirmed. Each appellant then sought and was granted leave to apply for orders of prohibition forbidding the Council to proceed with that resolution.

The matter was heard on 13 June 1984 and on 6 July 1984, Schofield J dismissed the applications on the grounds that the Council had not in any sense been performing a public duty in resolving to dismiss the appellants, but was acting in its private capacity in terminating the services of its own employees. On appeal to the Court of Appeal:

Held – The Finance, Staff and General Purposes Committee of the Council was right in being vigilant to investigate and bring to light a widespread fraud affecting the finances of the council with a view to disciplining those responsible.

It was doubtful, however, if the committee had power to reverse the decision of its parent body, by reaffirming the appellants' earlier dismissals after the invocation of the requisite machinery had resulted in a finding in their favour.

The committee's recommendation in December 1983, whether *ultra vires* or not, would inevitably lead to justifiable fears on the part of the appellants that, no matter what representations they made, or whether they were able to make any at all, they would be dismissed, despite the earlier ruling in their favour.

This constituted a clear infringement of their public rights as citizens to fair treatment and, accordingly, distinguishing (*R v Postmaster-General ex parte Carmichael* [1928] 1 KB 291; *R v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818), they were correct in the circumstances of their case in seeking an order of prohibition to restrain the council from acting on the December 1983 recommendation.

The learned Judge had taken too narrow a view regarding the nature of the infringement of the appellants' rights and the order would be granted.

Appeals allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Hebtulla Properties Ltd v Electro-Services and The Business Premises Rent Tribunal High Court civil case number 336 of 1978

Kiambu District Commissioner v R ex parte Njau [1960] EA 109

Masaka District Growers Co-op Union v Mumpiwakoma Growers Co-op Society [1968] EA 258

Minister of Agriculture miscellaneous civil application number 58 of 1979 (UR)

Republic v Director-General of EA Railways Corporation ex parte *Kaggwa* [1977] KLR 194

Republic v Kisumu County Council and another [1983] LLR 113 (CAK)

United Kingdom

Anisminic Ltd v Foreign Compensation Commission [1969] 1 All ER 208

Birmingham (City of) District Council v O [1983] 1 All ER 497

Cocks v Thanet District Council [1982] 3 All ER 1135

Davy v Spelthorne Borough Council [1983] 3 All ER 278

Godden, Re [1971] 3 All ER 20

HK (an infant), Re [1967] 2 QB 617

Leeson v General Council of Medical Education [1890] 43 Ch D 366

Malloch v Aberdeen Corporation [1971] 1 WLR 1578

O'Reilly v Mackman [1982] 3 All ER 1124

Padfield v Minister of Agriculture, Fisheries and Food [1968] AC 997

R v East Berkshire Health Authority ex parte *Walsh* [1984] 3 WLR 818

R v Electricity Commissioners [1924] 1 KB 171

R v London County Council ex parte *Akkersdyk* [1892] 1 QB 190

R v London County Council ex parte *Entertainments Protection Association Ltd* [1931] 2 KB 215

R v Minister of Health ex parte *Davis* [1929] 11 AC 619

R v Postmaster-General ex parte *Carmichael* [1928] 1 KB 291

R v Secretary of State for the Home Department ex parte *Benwell* [1984] 3 All ER 854

Racal Communications Ltd, Re [1980] 2 All ER 634

Ridge v Baldwin [1963] 2 All ER 66; [1964] AC 40

Vine v National Dock Labour Board [1957] AC 488

Judgment

Hancox JA: The two appellants in this case, Peter Okech Kadamas and John Monday Oloo, were respectively employed by the Municipal Council of Kisumu (the Council) as clerical officers, Kadamas being promoted to Grade V on 15 November 1979 and Oloo being a clerical officer Grade VIII. In March 1981, it appears that there were irregularities in claims under the Medical Reimbursement Scheme and the two appellants were suspended from duty on the 20th of that month in connection therewith.

At a special meeting of the Finance Staff and General Purposes Committee of the council on 3 June 1981, the Town Treasurer stated that Kadamas had been involved in auditing the three fraudulent medical claims on the agenda for the meeting and that in one instance he had himself made a claim for KShs 161,90, when the copy receipt at the chemist's recorded only KShs 14-30. In addition, Kadamas was suspected of being responsible for several missing cash sale receipts. Oloo was also said to have been involved in the three claims by accelerating their processing and payment. Accordingly the Committee recommended that each appellant be dismissed with effect from the date of his suspension on 20 March. Both of them were apparently afforded an opportunity of being heard and each wrote subsequently to the Council denying the accusations.

The Kenya Local Government Workers Union took up the appellants' case with the Ministry of Labour who appointed an investigator under section 7(1) of the Trades Disputes Act (Chapter 234). His findings are embodied in the letter to the Secretary General of the union and to the council dated 20 January 1983. It does not appear that the investigator's findings are binding on the parties to the trade dispute, or are capable of enforcement, under the statute, in contrast to a decision of the Industrial Court under section 17, which is the next step in this part of the machinery set up by the Act for the conciliation and settlement of trade disputes.

The investigator found, in effect, that neither appellant had admitted the accusations made against him, and advised that in the absence of satisfactory proof against them each should be reinstated. Accordingly at that which is recorded as being a head of department meeting of the council on 7 October 1983, it was:

> "Moved, seconded and resolved:
>
> (i) That considering the advice from both the Ministry of Labour and the Federation of Kenya Employers Messrs Peter Oketch Kadamas and John Monday Oduor Oloo be reinstated with immediate effect.
>
> (ii) That the acting Town Clerk be authorised to conclusively negotiate with them the terms of their reinstatement."

To my mind there could hardly be a greater indication that the appellants' reinstatement had the approval of, and was authorised by, the full council, than that recorded resolution. It was implemented by the acting Town Clerk in his letters to both appellants on 13 October, in terms which included their transfer to a different department, which terms were unequivocally accepted by the appellants in their respective letters in reply of 13 and 15 October.

There was therefore a clear and definite offer and acceptance in each case and all would have been well, at least from the appellants' point of view, had not the Finance, Staff and General Purposes Committee met again on 28 December 1983 and "recommended" "that the earlier decision of the council to summarily dismiss the two members of staff be reaffirmed".

The reason given for the reaffirmation of the appellants' dismissals, despite that which seems to have been a unanimous recommendation, not only of the Ministry, but of the Federation of Kenya Employers (the councils' adviser on labour matters), was that the Council's earlier decision to reinstate them had been taken while it was, as it were, in abeyance, having been dissolved for the purposes of the 1983 Local Government Elections by a letter emanating from the Ministry of Local Government on 6 July 1983. I observe, however, that under section 12(3) of the Local Government Act (Chapter 265), each municipality, under its appropriate name, is stated to be a body corporate with perpetual succession. It would not therefore seem that the purported dissolution would have any effect, as the members of the Committee seem to have thought on 28 December, on the validity of the resolution of 7 October.

The appellants, or at any rate their legal adviser, acted with expedition, and sought leave to apply for an order of prohibition under, I presume, Order LIII, rule 1(1), (2) and (3) of the Civil Procedure Rules, though at no stage in the record is it indicated that the application was heard in chambers (as rule 1(2) requires), and that it was granted. The application for the order itself was filed on 20 January 1984, and the Judge (Schofield J) heard argument from both sides on the matter. On 6 July 1984 he delivered his order dismissing the application on the grounds that prohibition did not lie for the enforcement of a private right which (he held) the appellants were seeking in this case.

This issue does not seem to have been specifically canvassed in their opposing arguments by Mr *Omondi*, who has appeared for the appellants throughout, or by Mr *Behan*, who then appeared for the council in the High Court. Mr Behan concentrated on two questions: first, as to whether prohibition would lie to restrain an act which had not yet taken place (since all that had occurred was a recommendation in Committee, which was not binding on the Council). This was the submission before Chesoni J (as he then was) in *Hebtulla Properties Ltd v Electro-Services and The Business Premises Rent Tribunal* High Court civil case number 336 of 1978, in which the tribunal had refused to hear counsel for the landlord on a preliminary objection to its jurisdiction and proceeded to hear the merits of the case, which hearing had, however, not been concluded at the date of the application for prohibition. Secondly, he submitted that prohibition would not go to restrain the Council as it could not be said to have performed any judicial act, as is indicated by the passages cited from *Halsbury's Laws of England* (3ed) Volume II at paragraphs 114 and 115, which are to this effect. It was only in his replying submission that Mr *Omondi* touched on the question of private rights, and it was then that reference was made to civil appeal number 29 of 1983, *Republic v Kisumu County Council and Melktzedek Mindo.* This was an application of *mandamus*, and turned on the question of whether the Kisumu County Council could be compelled to transfer Plot 8 Kombewa Market to one Getura Odhiambo. Schofield J held that the county council was in the same position as any private owner of the plot would have been and that no public duty was involved. He refused the application on that ground and this Court upheld his decision, adding that no court should properly be asked to exercise the discretionary power, assuming it had the power, to force the council to take sides in a matrimonial property dispute.

I may therefore be forgiven for saying that the question of whether the council had engaged in the performance of a public duty or not only came in this case a sidewind at the proceedings in the High Court. Nevertheless that is the gravamen of the decision of which the appellants now complain. It is, accordingly, in my view, that issue upon which this Court should concentrate in this appeal. As I read them, the issue of whether or not there was a breach of a public duty is embraced by grounds 1 to 3 of the memorandum of appeal.

Reference was made in the course of Mr *Omondi*'s submissions to *R v Postmaster General ex parte Carmichael* [1928] 1 KB 291, in which it turned out that the wrong medical officer had certified that the applicant was not suffering from an industrial disease. The order of the Secretary of State had provided that the Post Office medical officer in whose charge the workman was placed should be the certifying surgeon for the purpose of the Workmen's Compensation Act of 1925, and not the chief medical officer to the Post Office, who had in fact examined the applicant and issued the certificate. It was held that the issuing of the purported certificate was in the nature of a judicial act and was therefore a fit subject for *certiorari*.

Mr *Omondi* cited *Carmichael*'s case (*supra*) as authority for the proposition that the Court could come to the aid of the appellants for interference with their rights just as the Kings Bench Divisional Court came to the aid of Mrs Carmichael. The learned Judge's only reference to it was that the certificate affected her rights under the Workmen's Compensation Act, which was a public matter, which thus distinguished it from the present case. I do no think *Carmichael*'s case decided, one way or the other, that the matter there being considered was of a public or a private nature, for no submissions were made to the Court in that regard: merely that the chief medical officer was not the proper officer to sign the certificate so that it could be brought up and quashed.

Another authority to which we were referred was *R v The London County Council ex parte Akkersdyk* [1892] 1 QB 190, in which a committee of the London County Council recommended that a licence for music and dancing on the applicant's premises should be refused. An application for the licence was then made before the full council, which included four members of the committee. It was held that this was a violation of the rule that no person should be plaintiff or prosecutor as well as Judge in the same case. So, here, Mr *Omondi* submitted that the 13 Council members of the Committee, which sat on 28 December 1983, would form the majority for 19 members constituting the full council, which would decide on the recommendation.

There is no evidence or judicially noticeable material before us as to who were the members of the Council at the material time, save for the unilateral letter sent in to the Court after the conclusion of the hearing. References were made by counsel to sections 91 and 92 of the Local Government Act as to the powers of the Council to appoint committees and to the duties of the Finance Committee, and it was queried as to what business the Finance Committee had in purporting the deal with staff matters. The interest of the Finance Committee, which is also a Staff and General Purpose Committee, is in my opinion clear. There was suspicion, and more than that, a number of clerical officers were involved in a racket involving the submission and approval of false medical claims. This would result in serious financial loss to the Council. The Finance Committee, whatever other functions it has as well, would therefore

be vigilant to prevent such frauds in the future. But whether it could in what might be thought a high-handed manner consider and reverse a decision of its parent body, the full Council, after the industrial mechanism for conciliation had resulted in the appellants' reinstatement, is of course the subject of the decision in this case.

The full statement in support of the application for leave and the respective contentions of the applicants through their counsel, Mr *Omondi*, in support thereof, and of the matters advanced in their joint memorandum of appeal, have already been fully narrated by Nyarangi JA whose judgment I have had the advantage of reading in draft. He has also set out the succinct, but nevertheless effective, submissions of Mr *Menezes*, who replied on behalf of the Council.

I find myself in full agreement with Mr *Menezes* that the committee's resolution of 28 December 1983 would, if it were acted upon, be capable of reversing the resolution for reinstatement which had taken place. Whether "dissolved" or not the Council was *sui juris*, a corporate body, and capable of making decisions. However, is it an act of such nature which is susceptible of restraint by a prerogative order? The fact that the employer is a body corporate, sustained by public funds and contributions does not in my opinion, *ipso facto*, render the rights it has and the duties which it owes to its employees as of a public nature. They are ordinary private civil rights of contract between an employer and his employee. Why should an individual who is the employee of a public body be clothed with these exceptional legal rights? They are exceptional because, as everyone very well knows, the ordinary litigant has to go through the due process of the ordinary litigant has to go through the due process of the courts, suffer its delays and so on. Prohibition is, on the other hand, often a speedy procedure. Leave can be applied for *ex parte*, and once obtained, the parties go before the Court on a notice of motion with agreed, or virtually agreed, facts.

As regards the requirement that the act sought to be restrained should be of a public nature the case of *R v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818 provides a recent illustration. This was an application for *certiorari* by an employee of a public body, namely a senior nursing office of the East Berkshire Health Authority, whose services were terminated by the District Nursing Officer, on the recommendation of a committee of inquiry. He then took two parallel steps. First, as here, he set in motion the appropriate industrial dispute procedure. Secondly, he applied for *certiorari* to quash his dismissal and any subsequent appellate proceedings thereto. In relation to the preliminary point raised by the health authority that the judicial review proceedings were incompetent, as relating to a matter of private law, Sir John Donaldson MR said at 824:

> "The remedy of judicial review is only available where an issue of 'public law' is involved but as Lord Wilberforce pointed out in *Davy v Spelthorne Borough Council* [1934] 3 All ER 278; [1934] AC 262, the expressions 'public law' and 'private law' are recent immigrants and whilst convenient for descriptive purposes must be used with caution, since English Law traditionally fastens not so much upon principles as upon remedies. On the other hand, to concentrate on remedies would in the present context involve a degree of circuitry or levitation by traction applied to shoestrings, since the remedy of '*certiorari*' might well be available if the health authority is in breach of a 'public law' obligation but would not be if it is only in breach of a 'private law' obligation."

The Judge referred carefully and fully to *Vine v National Dock Labour Board* [1957] AC 488, *Ridge v Baldwin* [1964] AC 40 and *Malloch v Aberdeen Corporation* [1971] 1 WLR 1578. He seems to have accepted that there was no 'public law' element in an 'ordinary' relationship of master and servant and that accordingly in such a case judicial review would not be available. However, he held, on the basis of these three cases, in particular *Malloch*'s case, that Mr Walsh's relationship to the health authority was not 'ordinary'. He said:

> "The public may have no interest in the relationship between servant and master in an 'ordinary' case, but where the servant holds office in a great public service the public is properly concerned to see that the authority employing him acts towards him lawfully and fairly. It is not a pure question of contract. The public is concerned that the nurses who serve the public should be treated lawfully and fairly by the public authority employing them . . . It follows that, if in the exercise of my discretion I conclude that the remedy of *certiorari* is appropriate, it can properly go against the respondent authority."

The Judge then said that, if he was wrong in this conclusion, it would be appropriate to allow the proceedings to continue as if they had been begun by writ (see RSC Order LIII, rule 9(5))."The Master of the Rolls then continued:

> "Employment by a public authority does not *per se* inject any element of public law. Nor does the fact that the employee is in a 'higher grade' or is an 'officer'. This only makes it more likely that there will be special statutory restriction upon dismissal or other underpinning of his employment. (See per Lord Reid in *Malloch v Aberdeen Corporation* at 1582). It will be this underpinning and not the seniority which injects the element of public law. Still less can I find any warrant for equating public law with the interest of the public. If the public through Parliament gives effect to that interest by means of statutory provisions that is quite different but the interest of the public *per se* is not sufficient.
>
> I have therefore to consider whether and to what extent the applicant's complaints involve an element of public law sufficient to attract public law remedies whether in the form of *certiorari* or a declaration.
>
> The ordinary employer is free to act in breach of his contracts of employment and if he does so his employee will acquire certain private law rights and remedies in damages for wrongful dismissal, compensation for unfair dismissal, an order for reinstatement or re-engagement and so on. Parliament can underpin the position of public authority employees by directly restricting the freedom of the public authority employees thus giving the employee 'public law' rights and at least making him a potential candidate for administrative law remedies. Alternatively it can require the authority to contract with its employees on specified terms with a view to the employee acquiring 'private law' rights under the terms of the contract of employment. If the authority fails or refuses to thus create 'private law' rights for the employee, the employee will have 'public law' rights to compel compliance, the remedy being *mandamus* requiring the authority so to contract or a declaration that the employee has those rights. If, however, the authority gives the employee the required contractual protection, a breach of that contract is not a matter of 'public law' and gives rise to no administrative law remedies."

The Court of Appeal therefore unanimously held that the writ of *certiorari* did not apply to the applicant in that case. I should mention that in the same publication, *R v Secretary of State for Home Department* ex parte *Benwell* [1984] 3 All ER at 854, a prison officer had been dismissed for allegedly taking part in derogatory references to the governor of Dartmoor Prison and for refusing to attend a meeting with the regional director in consequence. He sought *certiorari* which was granted by Hodgson J (who had been overruled in *Ex parte Walsh*

(*supra*), ten days earlier and who distinguished *Ex parte Walsh* on the basis that the applicant had no private law rights as regards the prison service, and had not entered the service under a contract of employment. The Home Secretary's duty to apply the Code of Discipline was a public one in which he had an interest.

Accordingly *certiorari* lay. That case, has, so far, not been reported on appeal.

If the decision in this case turned wholly on whether or not the act sought to be restrained (namely whether or not to proceed with the Resolution of 28 December 1983) was an infringement of the appellants' "public law", as opposed to their "private law", rights, I should be inclined to take the view that it was governed by the principles enunciated by the Master of the Rolls in *Ex parte Walsh.*

However, it will be observed that at the inception of the passages from that case which I have ventured to set out, Sir John Donaldson MR said at 824:

> "As the authority to seek to have the proceedings dismissed *in limine*, if they are to succeed they can only do so on the basis that, accepting all the applicant's complaints as valid, the remedy of judicial review is nevertheless wholly inappropriate and the continuance of the application for judicial review would involve a misuse . . . of the procedure of the Court under RSC Order 53."

It follows from this passage, I think, that it was incumbent on the council to satisfy the Judge *in limine* that the order of prohibition did not lie, and that the question of whether the rights were of a public or private nature were not the only criteria in this respect.

There were considerable factual differences between the situation obtaining in *Ex parte Walsh* (*supra*) and those in the instant case. The terms had been notionally agreed and had received the seal of approval of Whitley Council. His application for judicial review was to bring up and quash his dismissal by the district nursing officer, whereas in the instant case the termination of the services of the two applicants by the Council had itself been reversed (true, after certain industrial and ministerial steps had been taken) and was therefore no longer effective. So the Judge was faced with the situation at a different stage in that which may be compendiously termed as the dismissal proceedings from that which confronted the Court in *Ex parte Walsh* (*supra*). Whether the dismissal of the appellants in this case was rightly reversed was, of course, challenged by the Finance, Staff and General Purposes Committee. But were they entitled so to challenge it, and, moreover, to challenge it in the way that they did, namely by the lesser body reversing the greater? Furthermore, that recommendation was bound to lead to justifiable fears (once they came to know about if) on the part of the appellants that, no matter what they did or said, or what representations they made, thenceforth those would be to no avail. In other words, they would be denied a further hearing on that which, as far as they were concerned until 28 December 1983, had already been settled in their favour. These fears were stressed by Mr *Omondi* during the course of his submissions, and in my view he was right to do so.

What greater infringement of a person's public law rights could there be than that which occurred here? The appellants, some thought wrongly, had their dismissals set aside. A body within the Council, but subordinate to it, then purported to reaffirm their dismissals. That to my mind is a glaring infringement of a citizen's ordinary right to fair treatment. Whatever the nature of the earlier

rights which were affected by the termination of the applicants' services on 3 June 1981, it seems to me that the rights which they had acquired by December 1983, namely to be reinstated on the terms that had been agreed, must be capable of enforcement, in the sense of restraining the Council from acting on the resolution. No other course would, in my judgment, meet the justice of the case.

It follows that, in my opinion, the Judge took a narrow view of the appellants' rights which had been infringed, and this was not a case in which it should have been decided at the outset that prohibition did not lie.

I would therefore allow the appeal and set aside the order of Schofield J, of 6 July 1984. It would seem an unnecessary protraction of the proceedings to send the case back for further hearing of the prohibition application, being, as I said, of the views which I have expressed above. I would therefore grant the order in the terms sought by the applicants in the High Court. I would award the costs of the appeal, and of the hearing in the High Court to the applicants. As Nyarangi JA and Platt AJA are of the same opinion, it is so ordered.

Nyarangi JA: The facts giving rise to this action present no novelty; they afford a typical example of quarrels and disputes between newly elected councillors of local authorities in Kenya and employees of those authorities. The statement of facts of the appellants drawn and filed on 10 January 1984 by Mr *Omondi* on behalf of the appellants was not challenged by the respondent council save for the view that at the time the statement was filed, the appellants were still employees of the Council. The statement is as follows:

> "1. John Oduor Oloo and Kadamas are the applicants herein and presently both of us are employees of the respondents.
>
> 2. On 13 June 1981, John Oduor Oloo and Kadamas were dismissed from the respondent's services on the ground that we were involved in some fraudulent medical claims. A copy of letter addressed to Oloo that was similar to mine is annexed and 'PO1'.
>
> 3. The matter became a trade dispute under the Trade Disputes Act between the respondents and our trade union, the Kenya Local Government Workers Union in which the Minister recommended that Oloo and Kadamas be reinstated. A copy of the Minister's recommendation is annexed and marked 'PO2'.
>
> 4. On the strength of the Minister's recommendation above mentioned and the strength of the advice received from the Federation of Kenya Employers (an organisation of which the respondent is a member, the letter of which is annexed and marked 'PO3') the respondent by resolution dated 7 October 1983 reinstated both John Oduor Oloo and myself. A copy of the said minutes is annexed and marked 'PO4'.
>
> 5. As a result of the local government elections in September 1983 the respondent council was dissolved and its powers bestowed on the respondent's heads of departments as per the circular of whose copy is annexed and marked 'PO5'.
>
> 6. On 13 October 1983 on the strength of the resolution passed on the meeting of 7 October 1983 above referred to letters of reinstatement were addressed to us a copy of which is annexed and marked 'PO6'.
>
> 7. The dispute was thus settled in accordance with the Act.
>
> 8. Suddenly, without any cause, at the respondent's Finance, Staff and General Purposes Committee under its minutes number 21 purported to reverse the respondent's resolution and to recommend that John Oduor Oloo and Kadamas be dismissed.

9. The said committee had no legal authority so to act.

10. The said resolution to be effective is subject to the respondent's confirmation to be effected at any time now.

11. The said resolution of the 28 December 1983 was not in accordance of the rules of natural justice in that we were not heard in the matter."

Relief sought:

"(i) Leave to apply for the order of prohibition against the respondent not to proceed with the said resolution.

(ii) Any other relief at the discretion of this honourable court.

(iii) Costs of these applications."

I would prefer that statement to the Judge's statement contained in the order, the subject matter of this appeal.

The Judge did not, quite properly, go into merits of the case but held that prohibition did not lie in the case. In the opinion of the Judge, an order of prohibition does not lie except to Courts or to the other persons and bodies having legal authority to decide issues affecting the rights of persons and expected to act judicially. The Judge added:

> "It cannot be doubted that in certain of its functions the respondent may make decisions affecting the rights of subjects ie members of the public generally, but in the present case respondent is acting in its private capacity as an employer of certain individuals and is not dealing with questions of a public nature . . ."

The relief sought was rejected and the two aggrieved Council employees appeal to this Court contending that the Finance and General Purposes Committee of the respondent, in passing the material resolution, acted contrary to the Trade Disputes Act, and exceeded its powers disregarding the decision of the heads of departments, that the Judge erred in holding that the suggested dismissal of the appellants was a matter of private contract between the parties, that there was error in the Judge's view as to the circumstances in which an order of prohibition lies and in holding that it had not been shown that the respondent proposed to decide the matter without involving the appellants, and erred further in failing to consider that, even if the appellants were heard, a recommendation made outside the jurisdiction and contrary to natural justice would not be rectified and in holding that the appellants still had a chance to be heard when an agreement had been breached as a consequence of which it would have been nugatory for the appellants to wait until they were heard or not heard. Arguing the first ground of appeal, Mr *Omondi* said that the service contract between the appellants and the Council was affected by the Trade Disputes Act (the Act) (Chapter 234), which provides for a collective agreement superimposed on the service contract, that on 28 December 1983 when the Committee made its recommendation there was no dispute between the parties but that there had been a dispute between the parties in 1981 when the appellants challenged their dismissal as a result of which the Minister of Labour appointed a commission whose recommendation was tantamount to an agreement under section 9 of the Act which agreement the Council accepted, thus resolving the dispute upon which the appellants resumed work. On the second ground, Mr *Omondi* submitted that the Judge erred in equating the rights of the appellants in the action to individual rights. On the fourth ground Mr *Omondi*'s contention was that a defective decision having been taken, the Council would be prejudiced by that decision especially as the Committee which made the recommendation was composed of the 13 members who made the recommendation out of a

total of 19 Council members. The presence of the 13 members in any Committee was enough to vitiate the proceedings. Under ground five, Mr *Omondi* argued that the Judge misdirected himself in holding that the appellants still had a chance to be heard thereby implying that the appellants whose rights were being violated should have awaited the final decision of the Council. Lastly, Mr *Omondi* observed that having proper regard to sections 246 and 268 of the Local Agreement Act (Chapter 265), the administrative circular dated 6 July 1983 which was the basis of the decision of the heads of department of the Council, should be presumed to have lawfully delegated powers to the heads.

In reply Mr *Menezes* for the Council emphasised the corporate nature of the Council and said that the acts of 13 October 1983 and 28 December 1983 were acts of the Council, that the Committee which recommended the dismissal had been appointed pursuant to section 92(1) of the Local Government Act and that the appellants should have filed an action for declaration or for reinstatement or for damages or they should have invoked the Trades Disputes Act. Mr *Menezes* stated that at the time the application was made, the appellants were still working for the Council, no agenda had been served on them to show that the Council would discuss the recommendation made by the Committee and that it was not inevitable that the appellants would be dismissed as no notice to that effect had been served. The Council had not decided on the matter and it could not in those circumstances be said that there was any departure from the rules of natural justice. Mr *Menezes* thought that until the full Council met, it was premature for the application to be made and that the correct remedy would have been to file a suit to ask for an order of injunction. Mr *Menezes* said the presence of and participation in the Council meeting of the 13 members would not necessarily prejudice the appellants, that prohibition should not be granted when there are other remedies, that there was no demand made to the Council by the appellants and therefore that his application should be dismissed with costs.

After the appellants challenged the recommendation of the Finance, Staff and General Purposes Committee (the Committee) that the earlier decision of the Council to summarily dismiss them be reaffirmed, the Minister of Labour invoked section 7(1) of the Trade Disputes Act and appointed the investigator whose recommendations were made to the parties on 20 January 1983. The Council accepted the recommendation that the appellants be reinstated in their employment without loss of any benefits and informed the appellants, in writing, on 13 October 1983 on which day the second appellant (Oloo) accepted the Council's terms for reinstatement. The other appellant accepted the terms on 15 October 1983. Each party was therefore required, under section 9, to secure that copy of the terms of the agreement of reinstatement which was lodged with the Minister consequent upon settlement of the trade dispute (*vide* section 7(4) of the Act).

On 28 December 1983, when the Committee recommended summary dismissal of the appellants no dispute existed or was apprehended. None of the provisions of Part II of the Trade Disputes Act which cover reporting of trade disputes had been invoked. So the Committee was resurrecting the 1981 dismissal, despite the reinstatement, and asking the Council to effect it. But, under the Trade Disputes Act, once there is an agreement it appears it is beyond the powers of the parties to abrogate. The Committee were, by so recommending, asking the Council to infringe the provisions of a statute. The Judge considered none of this.

The aforegoing notwithstanding, the decisive question is whether the Judge was right in deciding that prohibition does not here lie because only individual rights of appellants were affected rather than rights of a body of persons.

Prohibition lies not only for excess of or absence of jurisdiction, but also for departure from rules of natural justice (*Halsbury's Laws of England* (4 ed) Volume 1 at 130 paragraph 138). The High Court in deciding whether or not to grant an order of prohibition would not be fettered by the availability of an alternative remedy. Prohibition may issue against a local authority (see eg *R v London County Council ex parte Entertainments Protection Association Ltd* [1931] 2 KB 215).

In *R v Electricity Commissioners* [1924] 1 KB 171, Bankes LJ at 192 observed that the real question was whether the principles already laid down in reference to the power and duty of courts to issue writs of prohibition applied to the Electricity Commissioners, then a body of recent creation. The learned Lord Justice continued:

> "It has, however, always been the boast of . . . common law that it will, whenever possible, and where necessary, apply existing principles to new sets of circumstances."

Atkin LJ at 205 noted that the writs of prohibition and *certiorari* deal with questions of excessive jurisdiction and that "the operation of the writs has extended to control the proceedings of bodies which do not claim to be, and would not be recognised, as courts . . ."

And therefore that:

> "Whether any body of persons having legal authority to determine questions affecting the right of subjects and having a duty to act judicially, act in excess of their legal authority, they are subject to the controlling jurisdiction of the King's Bench Division exercised in these writs."

This view of Atkin LJ was broadened by the House of Lords in *O'Reilly v Mackman* [1982] 3 All ER 1124 per Lord Diplock at 1131–1132 by excluding Atkin LJ's limitation of the bodies of persons to whom the prerogative writs might issue to those, "having a duty to act judicially". See also *Judicial Review of Administrative Action* by De Smith (2ed) at 389.

In *R v Postmaster-General ex parte Carmichael* [1928] 1 KB 291, an individual, Mrs Ethel Carmichael successfully applied for *certiorari* to go to quash a pretended certificate which was issued by a medical officer other than the one under whose charge the applicant had been placed. And in *R v London County Council* ex parte *Akkersdyk* [1892] 1 QB 190 the London County Council delegated to a committee of their body the hearing of an application for music and dancing licences. The Committee by a majority rejected an application for a licence. The applicant thereupon applied to the Council for a licence. During the hearing by the council some of the members of the Committee were present, but did not vote. They had, however, instructed counsel to represent them before the Council and oppose the application for a licence. Smith J said that an adjudication in which gentlemen had acted both as Judges and accusers could not be upheld. The learned Judge quoted a passage from the judgment of Cotton LJ in *Leeson v General Council of Medical Education* [1890] 43 Ch D at 379 in which he said:

> "Of course the rule is very plain, that no man can be plaintiff or prosecutor in any action, and at the same time sit in judgment to decide in that particular case, either his own case, or in any case where he brings forward the accusation or complaint on which the order is made."

Mr *Menezes* cited the decision in the *District Commissioner, Kiambu v R and others ex parte Ethan Njau* [1960] EA 109 for his submission that the appellants had not requested the Council for a hearing and that a pre-requisite for this application was an enquiry by the appellants. The correct view is, however, that as a general rule a distinct demand for action and an unequivocal outright refusal is a pre-requisite for the grant of an order of *mandamus*. The general rule has no application to the grant of orders of *prohibition* and *certiorari.* And, whereas courts will as a general rule and in the exercise of their discretion refuse an order of *mandamus* when there is an alternative specific remedy at law which is equally convenient and beneficial, *prohibition* lies even when there is an alternative remedy. The decision in *The Republic v Director-General of EA Railway Corporation* ex parte *Kaggwa* was on an application for an order of *mandamus*. *Masaka District Growers Co-op Union v Mumpiwakoma Growers Co-op Society* [1968] EA 258 did not say that a party who fears or who has reason to believe that an irregularity against rules of natural justice affecting a matter concerning him could not form a basis for an application for an order of prohibition. The appellant's main worry was that the Council was about to consider whether or not to dismiss them on a recommendation made in excess of jurisdiction and without reference to them. It could not be reasonably said that the complaint of the appellants was of a minor character. My understanding of the judgment in *Hebtulla Properties Ltd v Electro Services and Equipment Ltd* High Court miscellaneous civil case number 336 of 1978 (UR) is that there the basis for granting an order of prohibition was kept in sight all the way.

It is clear that the whole weight of authority supports the view that the applicant could apply for an order of prohibition to issue, that prohibition lies, and that the Council has a duty to ensure fair play all round. The Council could not reasonably contend that the applicants should have waited for the final decision of the Council before moving the High Court to issue an order of prohibition. Also, it is irrelevant to the application that there were other remedies available to the applicants. All that apart, I entertain serious doubt if the Committee could properly make a recommendation to the Council as a result of which the Council might have to reverse its earlier decision to reinstate the appellants, thereby making nonsense of the settlement of the dispute under the Act. The decision in *R v East Berkshire Health Authority* ex parte *Walsh* [1984] WLR 818; [1984] 3 All ER 425 is distinguishable from the position in this appeal and in my judgment has no relevance. In the *East Berkshire Health Authority* case (*supra*), the applicant was employed under a contract of employment which under the National Health Service (Remuneration and Conditions of Service) Regulation of 1974 *incorporated terms and conditions which were negotiated by a recognised negotiating body* and approved by the relevant English Minister (the emphasis is mine). That is to say, the contract was pursuant to a UK statute and, consequently, whether dismissal from employment by the Health Authority was subject to public law remedies depended on whether there were special statutory restrictions on dismissal. In this action, the Kenyan Minister had invoked a provision of a local statute, the Trade Disputes Act, and appointed an investigator whose recommendation was accepted and acted on by the parties. The appellants sought an order of prohibition directed at the Council, before they were dismissed, to stop the Council from engaging in deliberations intended to breach the settlement worked out by the negotiator. The appellants as employees of the Council were in a class of employees who could be dismissed only if

there was something against them to warrant dismissal (*Ridge v Baldwin* [1963] 2 All ER 66 at 71). They wanted to know what there was against them. Hence the application to stop the Council from considering whether or not to dismiss them before they were heard. Unlike the applicant in the *East Berkshire Health Authority* case (*supra*), there were no special statutory restrictions on dismissal which propped up their employment. All three the judgments in the *East Berkshire Health Authority* case (*supra*) discussed the remedy of judicial review having regard to relevant English legislation which is not *in pari materia* with the Trade Disputes Act and are therefore of no assistance in this appeal.

The appellants as officials of the Council had "no right to acquire any part of the authority's stock of information whether or not confidential".

"They had a need to know" per Lord Brightman in *City of Birmingham District Council v O* [1983] 1 All ER 497 at 505. The Council frustrated the appellants' "need to know" by making the recommendation behind the appellants' backs and so contrary to rules of natural justice.

I would allow the appeal, set aside the order made on 6 July 1984 in civil application number 3 of 1984 and order that an order of prohibition be directed at the Council to prohibit the Finance, Staff and General Purposes Committee from continuing with this matter and also to the full Council from entertaining in any manner the recommendation of the Committee. I would give the costs of this appeal and the costs of the hearing in the High Court to the appellants.

Platt AJA: The Municipal Council of Kisumu dismissed the present appellants, Mr Kadamas and Mr Oloo, from their service with the Council, on 13 June 1981. The matter became a trade dispute under the Trade Dispute Act (Chapter 234), between the Council and the Kenya Local Government Workers' Union. In the course of reconciliation proceedings the Minister recommended the reinstatement of the appellants, a matter which had the support of the Federation of Kenya Employers. That recommendation was signified on 20 January 1983 by letter to the Council. As a result of the local government elections in September 1983, the Council was dissolved and its powers bestowed on the respondent Council's heads of department. The latter body met in a meeting on 7 October 1983 and the following resolution was passed:

"39. Review of Dismissal Cases:

With reference to minute number 34 of the committee members considered the dismissal cases of Messrs Peter Okech Kadamas and John Monday Oloo in details. They considered the recommendation from the Ministry of Labour which advised the council to reinstate the two dismissed members of staff. They also put into account the advice from the Federation of Kenya Employers to the effect that the gentlemen be reinstated. On the above premises, members unanimously resolved that Messrs Peter Okech Kadamas and John Monday Oduor Oloo be reinstated but the acting Town Clerk be asked to conclusively negotiate with them the terms of their reinstatement.

Moved, Seconded and Resolved:

(i) That considering the advice from both the Ministry of Labour and the Federation of Kenya Employers Messrs Peter Okech Kadamas and John Monday Oduor Oloo be reinstated with immediate effect; and

(ii) That the acting Town Clerk be authorised to conclusively negotiate with them the terms of their reinstatement."

In consequence of that resolution, the acting Town Clerk negotiated the terms, which he set out in letters dated 13 October 1983 addressed to both appellants. They accepted the terms by their replying letters of the same date. The dispute was then apparently settled; but two months later after elections, the Finance, Staff and General Purposes Committee recommended that the original dismissal be reaffirmed. The minute says that it was unanimously recommended that the earlier decision of the Council to dismiss summarily the two members of staff be reaffirmed. That decision was taken despite the fact that the acting Town Clerk advised the Committee that reinstatement had been recommended by both the Ministry of Labour and the Federation of Kenya Employers, and that since reinstatement the two employees concerned had committed no new offences. The result was that the Finance, Staff and General Purposes Committee put that resolution to the Council, and since the Committee was composed of the Chairman, the Mayor and 11 other councillors, it was legitimately queried whether the Council could do other than accept it. It was said that the full Council was composed of 19 councillors. If that be so then it must be considered probable that on the mere basis of voting power, the Committee members would sway the Council.

In this situation the appellants prayed for an order of prohibition to issue to the Council to stop the process recommended by the Finance, Staff and General Purposes Committee. The grounds upon which the proposed order was to be made was that the Committee had no legal authority to act as it did and that its resolution of 28 December 1983 infringed the rules of natural justice in that the appellants were not heard in the matter.

The learned Judge declined to issue the order sought. His reasoning appears to embrace three salient points. First, an order prohibition, he said, only lay to courts and to other persons and bodies having legal authority to determine questions affecting the rights of subjects and having a duty to act judicially. He relied on a statement to this effect in *Halsbury's Laws of England* (3 ed) Volume XI paragraph 112. But without quite determining any of the issues raised by this rubric, the learned Judge passed on to decide the second issue, that what the Committee had resolved upon, was a matter between itself in its private capacity as an employer and its employees. No question of public law arose. He thought that this was so even though industrial relations are regulated by statute. Finally, the learned Judge acknowledged that prohibition also lay for departures from the rules of natural justice. As the appellants found that they had not been given a hearing before the relevant Committee, they feared that they would not be given a hearing before the full Council. But there was nothing on record to show that the full Council would do any such thing. So there had been no breach of the rules of natural justice as yet.

In this appeal to this Court all these reasons were challenged by Mr *Omondi*, while Mr *Menezes* supported the decision. In the latter's submissions account must be taken of the discretionary nature of the order asked for, especially when other remedies were available. Secondly, it was stressed that this was a matter which was private to the parties concerned and indeed still inchoate. It was only a recommendation of the Committee and not yet a decision of the Council.

It is clear that the first task of this Court is to determine the general nature of the order of prohibition. In as much as the learned Judge relied upon the

statement of the law in *Halsbury's Laws of England* (3ed), it is of interest to observe what authorities were relied upon thereof. They were *R v Electricity Commissioners* [1924] 1 KB 171 which was approved in *R v Minister of Health ex parte Davis* [1929] 11 AC 619. Those decisions disposed of two arguments, one before the learned Judge and one before this Court. To begin with, while the ancient writ of prohibition was used by the King's Courts to restrain inferior courts from exceeding their jurisdiction, the operation of the writs has extended to control the proceedings of bodies that do not claim to be courts. The argument before the learned Judge that the Council was not a court, was beside the point. Atkin LJ (as he then was) went on to make his famous observation in the *Electricity Commissioners*' case, that was repeated in *Halsbury*:

> "When any body of persons having legal authority to determine questions affecting the rights of subjects, and having the duty to act judicially, act in excess of their legal authority, they are subject to the controlling jurisdiction of the King's Bench Division exercised in these writs."

But to answer one of the arguments which arose in this Court, it was pointed out that prohibition could be invoked at an earlier stage than *certiorari*:

> "If the proceedings establish that the body complained of is exceeding its jurisdiction by entertaining matters which would result in its final decision being subject to being brought up and quashed on *certiorari*, I think that prohibition will lie to restrain it from exceeding its jurisdiction" (per Atkin LJ).

Bankes LJ in the same case explained that objection had been taken that the application had been premature, the matters still being only in its opening stage. But that did not matter. Once the process of exercising excessive jurisdiction had begun, it could be stopped. Indeed, in both the *Electricity Commissioners*' case and *Davis*' case an initial process was prohibited. Therefore, if prohibition lies at all in the present case, it can issue at this stage, it being unnecessary to wait for the full Council's answer, and then for the appellants to suffer dismissal before the situation is to be remedied.

The debate must then move on to the general terms of the modern order of prohibition. The phrase which may have attracted the learned Judge, was Atkin LJ's limitation – "having the duty to act judicially". In 1982 in *O'Reilly v Mackman* [1982] 3 All ER 1129 Lord Diplock had this to say:

> "It will be noted that I have broadened the much cited description by Atkin LJ in *R v Electricity Commissioners* (etc) of bodies of persons subject to the supervisory jurisdiction of the High Court by prerogative remedies (which in 1924 then took the form of the prerogative writs of *mandamus*, prohibition, *certiorari* and *quo warranto*) by excluding Atkin LJ's limitation of bodies of persons to whom the prerogative writs might issue, to those having a duty to act judicially. For the next forty years this phrase gave rise to many attempts, with varying success, to draw subtle distinctions between decisions that were quasi-judicial and those that were administrative only. But the relevance of arguments of this kind was destroyed by the decision of this House in *Ridge v Baldwin* [1964] AC 40. Wherever any person or body of persons has authority conferred by legislation to make decisions of the kind I have described, it is amenable to the remedy of an order to quash its decisions either for error of law in reaching it, or for failure to act fairly towards the person who will be adversely affected if the decision of failing to observe either one or other to the two fundamental rights accorded to him of the rules of natural justice or fairness, viz: to have afforded to him a reasonable opportunity of learning what is alleged against him and of putting forward his own case in answer to it, and to the absence of personal bias against him on the part of the person by whom the decision falls to be made."

The decisions which Lord Diplock had described were those concerning applicants who wished to challenge the lawfulness of a determination of a statutory tribunal or any other body of persons having legal authority to determine questions affecting the common law or statutory rights and obligations of other persons as individuals.

Lord Denning in the *Discipline of Law* has described the development with regard to natural justice (see at 88–93). It does not matter now whether the body acts in a judicial or administrative capacity (see the *Padfield* case [1968] AC 997 and the decisions which followed). The emphasis now is on fair administration (per Lord Parker CJ in *Re HK (an infant)* [1967] 2 QB 617).

The result is that the learned Judge was led astray by counsel into forming too narrow a view of the scope of prohibition. All that was to be decided in this case was:

(1) whether the council had legal authority to determine questions affecting the rights of these appellants;

(2) whether the council erred in law by exceeding its jurisdiction; and

(3) whether it acted unfairly within the relevant rules of natural justice.

One can say categorically that Volume XI of *Halsbury's Laws of England* (3 ed) should no longer be used on this topic. It is out of date in England; it is also out of date in Kenya. For a number of years now the decisions in *Padfield*'s case and *Ridge v Baldwin* have been adopted in Kenya and there is no longer any need to distinguish between judicial and administrative acts (per Simpson J in the *Minister of Agriculture*'s case miscellaneous civil application number 58 of 1979 (UR)).

But the most important part of *O'Reilly* decision was that it was held, that it would, as a general rule, be contrary to public policy and as such an abuse of the process of the Court, to permit a person seeking to establish that a decision of a public authority infringed rights to which he was of an ordinary action, and by this means to evade the provisions of Order 53 for the protection of such authorities. The statement was followed in *Cocks v Thanet DC* [1982] 3 All ER 1135. But this view was tempered in *Davy v Spelthorne BC* [1983] 3 All ER 278. For there, the right to sue for damages for negligent advice was distinguished from the lost right of appeal against an enforcement order. The first was a private law right and the second a public law right. Lord Wilberforce described the importation of the words "public law" and "private law" (at 285). He continued:

> "But by an extension of remedies and a flexible procedure it can be said that something resembling a system of public law is being developed. Before the expression 'public law' can be used to deny a subject a right of action in positive prescription of law by statute or by statutory rules."

The result is that if a matter of public law is directly involved then in general (subject to certain exceptions) the prerogative orders should be resorted to:

> "The public interest in good administration requires that public authorities and third parties should not be kept in suspense as to the legal validity of a decision the authority has reached in purported exercise of decision – making powers for any longer period than in absolutely necessary in fairness to the person affected by the decisions" (per Lord Diplock in *O'Reilly*'s case at 1131).

But if the matter is truly a private law matter, then a civil suit would be appropriate.

At present it is not entirely easy to decide what is a private law matter as distinct from a public law matter. After *Davy v Spelthorne Borough Council* [1983] 3 All ER 278 further development of the distinction between these two branches of law can be seen in the opinions of the English Court of Appeal in *R v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818. It was assumed in *O'Reilly*'s case that with the introduction of the distinction between public and private law, a system of administrative law had been built up in England. On the other hand, in *Davy v Spelthorne Borough Council* [1983] All ER 278 Lord Wilberforce explained, in the quotation above, that this process was far from complete. While, therefore, the formulation which the House of Lords arrived at in *O'Reilly*'s case, that the prerogative writs may be issued for an error of law or failure to comply with rules of natural justice would appear to be the end of that particular chapter, a new development is in progress defining remedies as being those of private law or public law.

The essence of the *East Berkshire* case was that Mr Walsh had been dismissed under his terms of contract, those terms having been approved by the Ministry concerned; consequently the question was whether there was an element of public law involved in his dismissal. The learned trial Judge perhaps understandably followed the line of thought set in train by the House of Lords in *Malloch v Aberdeen Corp* [1971] 1 WLR 1578. In the result the learned Judge (Hodgson J) held that there was a sufficient element in public law for the order of *certiorari* to go to the Health Authority to quash Mr Walsh's dismissal. Mr Walsh had also instituted proceedings in the Industrial Tribunal for unfair dismissal and seeking compensation; but these had been stayed. In the Court of Appeal however, all three Judges unanimously held that it was not a fit case for an order of *certiorari* and that Mr Walsh must be left to his private law rights and remedies.

There are statements of Sir John Donaldson MR which might appear to elucidate the general position in the present case. They are that employment by a public authority does not *per se* inject any element of public law. Nor does the fact that the employee is in a higher grade or is an officer as distinct from the holder of an office; this only makes it more likely that there will be special statutory restrictions on dismissal or other underpinning of his employment. This was said to follow from *Malloch v Aberdeen Corp* [1971] (*supra*). It was the statutory underpinning that injected the element of public law, and it was not possible to equate public law with the interest of the public *per se.* On the other hand, the Master of Rolls explained that:

> "The ordinary employer is free to act in breach of his contracts of employment and if he does so, his employee will acquire certain private law rights and remedies in damages for wrongful dismissals, compensation for unfair dismissal, and order for reinstatement or re-engagement and so on. Parliament can underpin the position of public authority employees by directly restricting the field of the public authority to dismiss, thus giving the employee public rights and at least making him a potential candidate for administrative law remedies. Alternatively, it can require the authority to contract with its employees on specified terms with a view to the employee acquiring private law rights under the terms of the contract of employment. If the authority fails or refuses thus to create private law rights for the employee, the employee will have 'public law' rights to compel compliance, the remedy being *mandamus* requiring the authority so to contract or a declaration that the employee has those rights. If, however, the authority gives the employee the required contractual protection, a breach of that contract is not a matter of 'public law' and gives rise to no administrative law remedies."

That might seem to indicate that in general an order of reinstatement made under the Trade Disputes Act is a "private law" matter and that a breach of such an order would not give rise to a "public law" remedy. Another perspective was put forward by May LJ who explained at 433:

> "Second, over the last decade Parliament has enacted a body of employment protection legislation now considered in the Employment Protection (Consolidation) Act of 1978. This has created a new cause of action and consequent remedies for employees who have been 'unfairly' dismissed. An unfair dismissal under the statute, is by no means simultaneously wrongful dismissal at common law. This new cause of action, however, and the statutory remedies that go with it, are not enforceable by ordinary action, nor indeed by judicial review; they are only available to an employee on a successful application to an industrial tribunal. As Sir John Donaldson has said, Mr Walsh has indeed made an application to such a tribunal alleging that he has been unfairly dismissed and seeking compensation. Any hearing of this case has been adjourned pending determination of the instant proceedings for judicial review.
>
> On successful application to an industrial tribunal alleging dismissal, the tribunal may, in its discretion, order the reinstatement of the employee: see section 69 of the 1978 Act. Such an order cannot be specifically enforced against the employer, but if the latter does not reinstate the employee, whom *ex hypothesi* he has unfairly dismissed, then the employee is entitled to compensation under the 1978 Act, which will in most cases exceed any damages to which the employee might have been entitled for wrongful dismissal at common law."

Then later May LJ observed at 434:

> "For all those reasons I think that earlier decisions in this general field must now be read in the light of the employment protection legislation to which I have referred. The concept of natural justice involved in many of the cases clearly now subsumed in that of an unfair dismissal. To the extent that such cases laid down a principal of law, then of course, they must be followed. As always, however, to the extent that they were really decided on their own facts they provide no precedent for later cases.
>
> Further, I think that at the present time in at least the great majority of cases involving disputes about the dismissal of an employee by his employer, the most appropriate forum for the resolution is an industrial tribunal. In my opinion the Court should not be astute to hold that any particular dispute is appropriate for consideration under the judicial review procedure . . ."

Purchas LJ also agreed.

It is clear now that May LJ has explained that the Minister of Rolls' opinion is a distinct change of direction in English Law. Lord Reid and Lord Denning had for two decades since *Ridge v Baldwin* (mentioned by Lord Diplock above) developed a basis for the Courts to review unlawful and unfair practices in which statutory employees had been treated less well than they might have been. Now we hear that the English Courts are prepared to abandon this jurisdiction, not to the common-law courts, but to the statutory industrial tribunals. Before the Courts in Kenya blindly follow suit, it would be appropriate to pause and consider the position. Certainly in this appeal, it would be unwise to attempt a quality judgment, such as that of May LJ in preferring litigation to go to the Industrial Court in Kenya from which there is no appeal, unlike there is in England, or perhaps more important still, in subsuming that natural justice will prevail in provisions about "unfair dismissal". In Kenya there is no exact parallel to the English "unfair dismissal". Section 15 of the Trade Disputes Act provides for reinstatement of "wrongful dismissal", and that is not quite the same thing, and does not *ipso facto* import the rules of natural justice

into the meaning "wrongful". In addition, these ideas and decisions were not argued before the High Court or this Court, such argument as there was, having been founded in outmoded sentiments of the 1920s. But insofar as the learned Judge in Kisumu made a start with his finding that this was a matter of "private Law", the recent decisions have been out to provoke a consideration of them, and as to the direction in which administrative law in Kenya should develop. But an answer must be given to the learned Judge's finding.

I would start with an up-to-date restatement of Lord Diplock's paraphrase of Lord Atkin's seminal statement in the *Electricity Commissioners*' case. It only needs a few additions and so would read:

> "Wherever any person or body of persons has legal authority conferred by legislation to make decisions in public law, which affect the common law or statutory rights of other persons as individuals, it is amenable to the remedy of judicial review of its decision either for error of law in so acting, or for failure to act fairly towards the person who will be adversely affected, viz: by not affording him a reasonable opportunity of learning what is alleged against him and of putting forward his own case in answer to it, and to the absence of personal bias against him, on the part of the person by whom the decision falls to be made."

The great question then is what is "public law". Until recently "administrative law" covered cases where a body was acting under statutory powers. It had to act within its powers; it had to understand correctly what its powers were (see *Anisminic Ltd v Foreign Compensation Commission* [1969] 1 All ER 208; *Re Racal Communications Ltd* [1980] 2 All ER 634), it had to act fairly (*O'Reilly*'s case). Now despite a statutory background, the inquiry is precisely what is being breached that is complained of. Despite the statutory power to act, has the authority only entered into a private contract, eg for service, for the sale or purchase of goods or other contracts, such as the authority must enter into to carry out its functions. In some ways this is reminiscent of the old distinction between quasi-judicial and administrative duties. Its basis is that it is undesirable for the Court to dictate to local authorities and other bodies how best they should run their affairs. But in the end it may well be as difficult to satisfactorily distinguish what is private from public as it was between quasi-judicial and administrative; and it will be of interest to observe what the English courts make of the process of injection of the "public element" into the affairs of these bodies; for it will always be a matter of choice, perhaps even policy, what factor turns out to be an injection and what factor does not. Take Mr Walsh's situation. His contract had had incorporated into the National Health Service (Remuneration and Conditions of Service) Regulations of 1974 approved by the Secretary of State for Social Services. But that apparently did not count as a statutory injection of public law, for reasons not immediately clear, except that May LJ tribunal that such cases should in future go to the industrial tribunal. I would have thought that such conditions of service which dealt with dismissal, would have counted as statutory underpinning, and I am persuaded that any or any better statutory underpinning will ever be provided by an astute ministry in the future. Indeed, I approach the decision in the *East Berkshire* case with scepticism as possibly being unsuitable to follow in Kenya at present.

But even it I were disposed to follow it, I would find it inapplicable to the circumstances of the present appeal. The appellants did not contest their first dismissal by resort to judicial review; they anticipated the ideal choice of May LJ taking proceedings under the Trade Dispute Act, leading towards the Industrial Court. But unlike their counterparts in England, the appellants had no new

cause of action justiciable by the Industrial Court directly. They had first to take part in the filter proceedings of inquiry and reconciliation. The Minister set upon inquiry, and from the records it seems to have been a very fair inquiry, which recommended that the appellants should be reinstated. The Minister approved and put that to the Council. The Federation of Kenya Employers approved. The council decided to approve. Having thus agreed to the reconciliation proposed two consequences followed. The Minister had no need thereafter to report the trade dispute to the Industrial Court, and the agreement was to be lodged with the Minister. In the event of later industrial strife, the agreement would play its part (see sections 5 to 9 and 29 of the Trade Disputes Act). The acceptance or the agreement was therefore an undertaking that the dispute was at an end and the Minister had no further steps to consider. It must be implied that the parties would abide by the agreement. If they did not, of course, industrial unrest would arise and the reconciliation procedure would be useless. It would mean starting all over afresh, and that cannot have been in the contemplation of the legislature. It is because of this that resort has been made to the Courts for judicial review. This resort is made at a stage which did not fall to be considered in the *East Berkshire* case.

The Council had the statutory power to employ the appellants and no doubt entered into contracts of employment with them. Breaches of such contracts could no doubt be taken to the Courts or to the Industrial Court. This Court has not been shown the terms of those contracts but the Local Government Act does not seem to have provided any statutory underpinning to their terms of dismissal. Nevertheless, the Trade Disputes Act certainly does in connection with the reconciliation process. It provides that the Minister can arrange for reinstatement with the agreement of the parties. Once that has been agreed, the Council's powers to dismiss for the alleged faults at the time would be curtailed. The Council must give up its apparent right to dismiss, and instead reinstate the employees concerned. Can it be anything but unreal to say that there has been no injection of a "public law element" into the contract between the employer Council and its employees? It is clearly a situation where the Minister has intervened and through his statutory powers has altered the position of the parties in such a way that is beyond the powers of the Council to lawfully alter the agreement for reinstatement. It is not suggested that the appellants had done anything wrong since the agreement to reinstate them; nor again that anything further had come to light disqualifying the agreement. The suspicion is that the elected councillors were not disposed to accept the decisions of the interim authority. But whoever represented the Council, the Council was statutorily bound to submit its dismissal of the appellants to inquiry and reconciliation, and having agreed to the reconciliation proposed it was bound to carry it out. As May LJ explained so well, the common law does not admit of specific performance of contracts of service. The appellants could only be awarded the damages limited to the period of notice at common law. The reconciliation gave them much more. It was the advantageous rights to reinstatement that arose out of the reconciliation agreement that the appellants wished to protect by judicial review, and in my judgment either under the old notions of administrative law, or the new notions of public and private law, this was a public matter in which they were entitled to seek protection. Neither the Committee nor the Council itself could re-open the reinstatement agreement, without giving rise to public law rights in the appellants to preserve the rights they had won in the reconciliation process under the aegis of the Minister. Prohibition lies to correct an

excess or absence of jurisdiction. Prohibition also lies for a departure from the rules of natural justice. The Council could hardly be seen to be acting fairly as will be explained presently.

It follows that the order of prohibition was properly called for by the appellants and their last question is whether it is appropriate to grant it. Mr *Menezes* sought to turn our attention to those cases where exceptional or other elements were so compelling that discretion was exercised in not granting the order. But they do not apply here. There is no reason as to why this interference should not be stopped at once. There is no reason why good sense should not prevail to allow the appellants to continue with their duties, in accordance with what would appear to have been a very well-reasoned recommendation from the Minister. In comparison with the Minister's actions, the Committee's procedure of not calling upon the appellants, of not giving them any idea what was against them, or a chance to defend themselves, and then building up a situation when the full Council could hardly have been able to act impartially, seems to be so unfair, that it is well left behind the Council. It will be recalled that in these matters it is not whether the Council would act fairly, but whether it would be seen to have acted fairly (see *Re Godden* [1971] 3 All ER 20).

I would allow the appeal, and I would direct that the order of prohibition be directed to the Council prohibiting it from entertaining the Committee's recommendation in any way. It would grant the appellants the costs of this appeal and the costs in the High Court.

For the appellants:
CN Omondi

For the respondent:
LG Menezes

Kairu v Gacheru
[1986–1989] 1 EA 215 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	30 June 1988
Case Number:	42/87
Before:	Nyarangi, Apaloo and Masime JJA
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[1] Land – Adverse possession – Whether purchase and registration interrupts the period of adverse possession – Inadequacy of Judge's notes – Section 22 – Limitation of Actions Act (Chapter 22) – Order XVII, rules 4 and 5 – Civil Procedure Rules.

Editor's Summary

The appellant purchased two pieces of land in October 1978 and obtained title to the plots but did not enter into possession until two years later in 1980.

The respondent claimed that he had bought the plots ten years before the date of transfer and had

entered into possession and exercised on both acts of ownership openly and undisturbed until the plaintiff tried to fence the plots over 12 years later.

The respondent initiated proceedings by originating summons seeking a declaration that the appellant's title was extinguished and therefore he held such title in trust for the respondent.

To avoid multiplicity of proceedings the learned trial Judge treated the originating summons as a plaint and having heard evidence by both parties found in favour of the respondent.

Held – At the time the appellant sought to enter the suit land his title as well as that of his predecessor in title was extinguished.

The law relating to prescription affects not only present holders of the title but their predecessors (section 7, Limitation of Actions Act).

The appellant held the titles as trustee of the respondent by virtue of section 37 of the Registered Land Act and the respondent was entitled to ask the High Court to be registered as owner in place of the appellant.

Per Nyarangi JA – The appellant took the land subject to overriding interests then subsisting.

Appeal dismissed.

No cases referred to in judgment

Judgment

Apaloo JA: The dispute in this case involves two parcels of land registered in the name of the appellant as title numbers, Loc13/Gitugi – Matuto/T29 and T30. At some time prior to 1978, they were registered in the name of one Mwangi Macharia who was the registered proprietor. (I shall hereafter call him Mwangi.) Mwangi sold the two plots to the appellant in October 1978. The latter registered these two plots under the Registered Land Act and was, on 19 October 1978, issued with two land certificates. The evidence shows that although he obtained title to the plots, the appellant did not enter into possession of either plot. The first significant act of ownership he did on them was to fence them both. They were adjacent plots.

It was this act that gave rise to the action which culminated in this appeal. The respondent claimed that he had bought these two parcels of land ten years earlier. One Muthee Macharia the deceased brother of Mwangi sold number T29 to him on 20 April 1968. On the same day, Mwangi himself sold him T30. The respondent said he entered into possession of the two plots and exercised on both acts of ownership openly and undisturbed from the date of his purchase on 20 April 1968 until they were fenced by the appellant. The respondent also said when he entered into possession of the plots, he grew on them napier grass, planted bananas on them and also constructed a cowshed and a toilet on them. The respondent accordingly claimed that having been in open and undisturbed possession of the land for at least 12 years, he acquired adverse title to them against the appellant who was the registered owner. The appellant, for his part, swore in a replying affidavit that he took possession of the lands as soon as he purchased them at that time, according to his affidavit: "There was nobody in occupation, there were no crops and there was no visible development as alleged in the plaintiff's affidavit." The appellant also contended in his affidavit that Muthee who allegedly sold plot 29 to the respondent had "no *locus standi* in the matter as he had no interest in the premises and any agreement entered into was null and void".

The respondent initiated the proceedings by originating summons and sought a declaration that the appellant's title to both plots was extinguished and that it be declared he held such title in trust for him. As the appellant took issue with the respondent on the facts, this matter could only properly be determined by a plaint. To avoid multiplicity of proceedings, the learned trial Judge proposed to treat the originating summons as a plaint and thereafter resolve the issues joined between them and make consequential orders. Counsel for the appellant did not object to this course. Evidence was accordingly led by both parties on this footing.

On the evidence presented to the Court by both sides, the issues which emerged for decision were:

1. Did both Muthee and Mwangi sell the two plots to the respondent in 1968?
2. If so, did the respondent enter into possession of both plots?
3. If the answer to question 2 is in the affirmative, did the respondent remain in adverse possession against the registered owner for at least 12 years?

In a brief but clear judgment, the learned Judge (Shields J) found that the respondent purchased both lands from the Macharias and went into possession on the date of purchase, namely, 20 April 1968. The Judge also found that upon entry into possession, the respondent "remained in sole beneficial and exclusive possession of the same". The learned Judge then held that the appellant fenced the plots sometime in the latter half of May 1980 "after the Macharias and their transferee's title had been extinguished". Accordingly, the Judge concluded that the respondent has acquired title to the suit premises. He therefore directed the Registrar to amend the register to conform with his holding. He also granted possession of the disputed land to the respondent.

The appellant says that judgment was wrong and ought to be reversed and all orders adverse to the appellant made consequent upon the judgment be set aside. Before dealing with the grounds of appeal, it must be pointed out that the issues which emerged from the evidence and which I have set out above are all simple issues of fact. In a large measure, they depend on the credibility of the two sets of witnesses who testified before the Court, that is, those called by the respondent and those called by the appellant. The learned Judge expressed belief in the respondent's version of the facts. Clearly, he must have made a favourable impression on the Court because the Judge observed that: "The plaintiff struck me as a bright and intelligent man who would take action as soon as his rights were invaded."

Except on one point involving the date, the Judge said: "I accept the rest of the plaintiff's (ie the respondent's) evidence and that of his witness."

The Judge's preference for the respondent's evidence was not seriously challenged before us. That evidence entitled the learned Judge to decide the three issues I have set out in the respondent's favour. It will also entitle the Judge to hold, as he did, that having been in exclusive possession of the suit lands from April 1968 to May 1980, the respondent acquired adverse title to them.

That brings me to the grounds on which the judgment was challenged. The first ground reads:

> "The learned Judge erred in taking the evidence in a scanty, unorthodox and unconventional manner rendering it incoherent and difficult to comprehend or to be given any meaning."

For this counsel relied on Order XVII, rule 5 of the Civil Procedure Rules which enacts that:

> "The evidence of each witness shall be taken down in writing by or in the presence and under the personal direction and superintendence of the Judge, not ordinarily in the form of question and answer but in that of narrative and when completed shall be signed by the Judge."

I think there is something to be said for the contention that the evidence was not recorded in a conventional manner. The learned Judge made a precision of the evidence and some of the sentences were so brief that they had no vowels. Whether the learned Judge was pressed for time or not, it is difficult to say. One would hope that that learned Judge would, when recording evidence in future, be mindful of the requirement of Order XVII, rule 5. But I cannot accept that the laconic formed by the Judge makes the evidence incoherent and difficult to comprehend. Counsel himself referred to portions of his evidence to make his contentions of substance and did not appear to have had any difficulty in following the evidence as recorded. At all events, beyond pointing out the peculiar manner in which the evidence was recorded, counsel did not suggest that complaint alone justified a setting aside of the judgment. I do not think so either.

When the appellant's complaint against the judgment passed from form to substance, it was asserted in ground 2 that:

> "The learned Judge erred in law in that he did not address himself or direct his mind to the law pertaining to adverse possession."

That contention has little weight. The Judge is presumed to know the law. Indeed the law is said to be in the Judge's bosom. The Judge did not make any pronouncement which suggests that his appreciation of the law relating to adverse possession was faulty. It is clear that on the facts which he found, he must have applied the law to reach the conclusion that "the Macharias and their transferee's title had been extinguished". That can only arise by acquisition of prescriptive title by the respondent. Clearly, this ground must fail. In ground 3 it was averred that:

> "The learned Judge erred in that he concluded that the respondent had been in adverse possession of the suit premises for a period of over twelve years while the evidence pointed to the fact that such adverse possession, if any, was less than twelve years."

That is a minor factual complaint which is, in any case, inaccurate. The Judge found that the respondent went into possession of the suit premises on 20 April 1968 and was dispossessed by the appellant "in the latter half of May, 1980". By simple arithmetic, it should not be difficult to find that from 20 April 1968 to 19 April 1980 is 12 years. From 20 April to the latter half of May should be approximately another one month. So in all, the adverse possession found by the Judge was 12 years one month. One does not need the brain of Einstein to conclude that that period is just over 12 years.

> "It was next complained in ground 6 that the learned Judge erred in that he did not appreciate that the plaintiff's adverse possession, if any, of the suit premises was interrupted by acquisition of title and assumption of possession by the defendant of the suit premises before the expiry of the twelve years."

True, the appellant obtained title from Mwangi which he registered in October 1978. But his claim that he then entered into the suit premises in December 1978 to interrupt the respondent's acquisition of prescriptive title was rejected

by the Judge. Indeed, the Court found that the appellant sought to enter the suit land in the latter half of May 1980. He found, and in my opinion, correctly, that at that date, the 12-year period of limitation had run out and the title of the appellant as well as that of his predecessor-in-title was extinguished. That, in my opinion, is a correct appreciation of the relevant law.

The next complaint numbered as ground seven was formulated in these words:

> "The learned Judge erred in that he failed to appreciate that the claim for adverse possession by the plaintiff could not lie against the defendant but against the previous holder of title."

Counsel did not produce any authority for this proposition which appears to be a statement of law. In my opinion, there is no legal warrant for it. On the proved facts of this case, the respondent entered into the suit premises on 20 April 1968. From that day, his possession was adverse to the registered proprietor who was then Mwangi. Over ten years after the respondent began that adverse possession against him, Mwangi sold the premises to the appellant. This was in October 1978. The appellant, according to the Judge's finding, did nothing to interrupt the respondent's acquisition of prescriptive title until May 1980. At that date, the 12-year period had run out. But the appellant took Mwangi's title subject to the right of the respondent in adverse possession and that the limitation period of 12 years commenced in April 1968 when Mwangi was the registered owner and was not interrupted till 20 May 1980, 20 months after the alienation of the land to the appellant.

If the period the respondent was in adverse possession against Mwangi were to be excluded and the period of limitation reckoned only when the appellant became registered proprietor, an owner of land whose title was in danger of being lost by prescription can better his lot by the simple device of alienating the land just a day before the 12-year period had run out. But it is elementary that a grantor of land cannot grant better title than he has. The appellant took Mwangi's title subject to the rights of a prior purchaser in adverse possession. That the law relating to prescription affects not only present holders of title but their predecessors-in title is shown by section 7 of the Limitation of Actions Act. That section says:

> "An action may not be brought by any person to recover land after the end of twelve years from the date on which the right of action accrued to him or if it first accrued, to some person through whom he claims, to that person."

In the context of this case, this means that if instead of the respondent bringing the suit for possession, the appellant had brought it, the respondent would be entitled to set up his adverse possession from 20 April 1968 in as much as that is the date on which the cause of action accrued to Mwangi through whom the appellant derived title. It is manifest that the learned trial Judge was fully cognisant of this principle. That was why he held that "the Macharias and their transferee's title had been extinguished".

In my opinion, the learned Judge's appreciation of the law of prescription was correct. It is counsel's appreciation of it that is faulty.

In grounds 4 and 5, it alleged the Judge erred in believing the respondent's evidence while rejecting the appellant's and was also in error in not evaluating the evidence before reaching his factual conclusion. Without disrespect to counsel, there is hardly any merit in those two grounds. It should suffice to say

that although the judgment was brief, the learned Judge's conclusion was well-reasoned and the appellant had failed to show any flaw in the reasoning of the Court. I think those two grounds must fail and I hold that they have.

Had the plots in dispute not been registered under the Registered Land Act, the appellant's title would have been extinguished *ipso facto* after 12 years from the date of adverse possession. Section 37 of the Act, however, keeps that title alive in the appellant as trustee for the respondent. The respondent is entitled under section 38 of the Act to ask the High Court to order that he be registered as the owner of the land in place of the appellant. The respondent prayed for such order and the learned Judge acceded. In my opinion, he was right.

One complaint which counsel for the appellant made to us repeatedly was that Mwangi, the original vendor of the land to the parties, should have been joined to the suit. It was said if he had been sued, the Court would have been enabled to look at the respondent's purchase of the suit premises and when the respondent's adverse possession actually commenced.

I cannot see why the respondent should be obliged to sue Mwangi against whom he sought no relief. The sale by Mwangi to the respondent could and was indeed proved without joining him as a party. The sale of plot T30 by Mwangi to the respondent was reduced into writing as indeed the simultaneous sale by Muthee of plot T29. By reducing the sales into writing albeit in Kikuyu, both Mwangi and Muthee provided reliable evidence of the sales. This was buttressed by the respondent's immediate entry into the suit plots and the open and undisturbed acts of ownership performed by him.

The relief of the respondent sought was a declaration that he had become owner of the suit premises by adverse possession and that inasmuch as the legal title remained vested in the appellant, he held that title in trust for him. Neither does the respondent need the joinder of Mwangi to establish this claim against the appellant nor does the latter need Mwangi as a joint defendant to enable him to resist the respondent's claim. In my opinion, from the standpoint of the respondent, the joinder of Mwangi would have been pointless and I am satisfied that there was no need for the respondent to incur the trouble and expense of joining Mwangi. I think counsel's contrary submission was unsound.

In my opinion, the judgment and the consequential orders made by the Court below were right and ought to be affirmed. I would accordingly dismiss this appeal with costs.

Nyarangi JA: I agree with Apaloo JA's judgment but would like to state briefly my reasons for dismissing the appeal.

The Judge would have been justified in holding that the appellant purchased the material parcel of land after the respondent had been in adverse possession for a little over ten years. On the evidence, the respondent continued to be in adverse possession until 12 years were over. The appellant did not dispossess the respondent and so as purchaser he took subject to overriding interests then subsisting – section 30 of the Registered Land Act.

In the situation that presented itself, it is clear that the respondent bought the plot and took possession on 20 April 1968. He was dispossessed in June 1980, having been in adverse possession for over 12 years. Thereafter the appellant had section 7 of the Limitation of Actions (Chapter 22) (the Act) to contend with.

There is no doubt that the purchase of the land by the appellant did not affect adverse possession. Also, there is no doubt that, as on 20 April 1968, the appellant held the parcel of land in trust for the respondent (section 37(*a*) of the Act). For that reason the respondent was well within his rights, pursuant to section 38 of the Act, to apply to the High Court for an order that he be registered as the proprietor of the land in place of the appellant.

I agree with the criticism which has been made by counsel for the appellant of the form of taking the evidence. It is yet possible to appreciate the proceedings.

I do not, with great respect, share the view of Apaloo JA on the judgment appealed from. In my view the judgment is scanty and contravenes rule 4 of Order XXII of the Civil Procedure Code. Fortunately, the inadequacy is not fatal, this being a first appeal and there being the evidence to sustain the conclusion of the High Court. It follows that I find that the appeal should be dismissed with costs. As Masime JA also agrees, the order of the Court is that the appeal is dismissed with costs.

Masime JA: I have had the advantage of reading in draft the judgments of Nyarangi and Apaloo JJA. For the reasons they have both given I agree that the appeal should be dismissed. I also share Nyarangi JA's censure of the learned trial Judge's manner of recording the evidence and writing the judgment.

As regards the substance of the appellant's case I would add that if the land in dispute had been agricultural land it is probable that the respondent's overriding interests would have become known in the process of obtaining Land Control Board consent. The appellant might then have taken steps to clothe his bare title with possession as soon as he purchased the plots.

For the appellant:
Kiania Njau

For the respondent:
Mwicigi Kinuthia

Kairu v Shaw and others
[1986–1989] 1 EA 221 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	9 July 1986
Case Number:	21/85
Before:	Madan CJ, Kneller and Nyarangi JJA
Sourced by:	LawAfrica

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[1] Contract – Interpretation of contract – Court to give effect to intention of parties – Meeting of phrase "subject to contract" – Estoppel – Meaning of estoppel.

Editor's Summary

The appellant entered into contract with one Captain David Eimer Edwards (deceased) for the sale to

the appellant of 30 000 acres of agricultural land situated North of Rumuruti township at the agreed price of KShs 7 million. The registered owner of the land at the time was a private limited liability company named Sossian Limited in which Captain Edwards held 49% of the The registered owner of the land at the time was a private limited liability company named Sossian Limited in which Captain Edwards held 49% of the

shares. He was also the sole beneficiary of the remaining 51% shares held by trustees on trust for him. The first three defendants were members of the legal firm of Daly and Figgis Advocates, Nairobi who were executors and trustees of the estate of the late Captain Edwards. The fourth defendant was the private limited company Sossian Limited converted into a public company under the same name. The plaintiff's case, therefore, was that at a meeting on 20 January 1983 held pursuant to or in continuation of previous meetings between the late Captain Edwards and himself, Captain Edwards orally held out that he was the owner of or entitled to deal in or dispose of all the property comprising the subject land at the agreed price of KShs 7 million. Further, the plaintiff contended that at a meeting held on 27 January 1983 by Captain Edwards in the presence and office of the first defendant, it was finally agreed orally that he would sell and the plaintiff would buy all the company's shares for KShs 7 million and that the oral agreement would be reduced into writing by exchange of letters. The appellant brought this return against the respondents seeking the specific performance of the oral contract claimed to have been made on 20 January 1983. The trial Judge dismissed the suit with costs. On appeal.

Held – When interpreting a contract the Court ought to give effect to the intention of the parties as far as possible and in particular avoid deviating interpretations, however, easy or possible they may appear to be.

If effect was to be given to the intention of the parties, on the defendant's own evidence, the letter written to him confirmed the existence of a previous oral agreement between the parties.

The words "subject to contract" have a clear *prima facie* meaning being in themselves merely conditional. There might, however, be a very strong and exceptional context which would induce the Court not to give these words that meaning in a particular case (*Alpenstow Ltd and another v Regalion Properties Plc* [1984] Ch D 545).

The trial Judge ought to have signed the words "subject to contract" once the first defendant testified that he had added them without authority.

An estoppel comes into being if a party to a contract by his act or words induces the other party to the contract to either adopt a disadvantageous position or abandon an advantage under a contact to which he is a party.

Appeal allowed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

United Kingdom

Alpenstow Ltd and another v Regalion Properties Plc [1984] Ch D 545 – **F**

Judgment

Madan CJ: This appeal arises out of a purchaser's suit in the High Court for the specific performance of a contract claimed by the purchaser to have been

made on 20 January 1983 between him and one Captain David Eimer Edwards (since deceased), for the sale to the purchaser of 30 000 acres of agricultural land situated North of Rumuruti township, at the agreed purchase price of KShs 7 million. (The purchaser is hereafter referred to as the plaintiff and the land as the Ranch.)

The suit in the High Court was heard by Butler-Sloss J, limited to the issue of liability only. The primary Judge dismissed the plaintiff's suit with costs on the higher scale. The plaintiff has appealed.

The defendants have lodged notice for affirming the decision of the High Court reading as follows:

> "If any building contract between the parties ever concluded at KShs 7 million (which is denied, the appellant waived his rights under such contract by procuring his company Kairu Enterprises Limited to make an offer for the same shares for KShs 10 million."

The registered owner of the land during 1983 was a private limited liability company named Sossian Limited. Captain Edwards held 49% of the Sossian shares. He was also the sole beneficiary of the remaining 51% shares, which were held by trustees in trust for him.

Captain Edwards died on 18 June 1983 having previously made his will. The first three defendants are members of the legal firm of Daly and Figgis, Advocates, Nairobi. They are the executors and trustees of the Estate of the late Captain Edwards the terms of whose will are said to authorise them to dispose of and sell his shares as the defendants may think fit in their absolute discretion.

The fourth defendant is the private company Sossian Limited converted into a public company under the same name.

The late Captain Edwards therefore as the owner personally and as the beneficiary as aforesaid, of all shares in the private company, and then similarly later of all shares in the public company, the fourth defendant, was in effect and also otherwise in every manner able, as entitled and capable of dealing with and disposing of the Ranch as he pleased by dispossessing himself by sale or otherwise of the private shares, or later the shares of the fourth defendant.

The plaintiff's case was set out in the averments in paragraphs 3 and 4 of the amended plaint as follows:

> "3. At a meeting on the 20 January 1983 held pursuant to or in continuation of previous meetings between the late Captain Edwards and the plaintiff – Captain Edwards orally held out or made the plaintiff to believe that he was the owner of or entitled to deal in or dispose of all the property comprising land, buildings and chattels, except the livestock, which Captain Edwards described as 30 000 acres situated North of Rumuruti township, and he agreed the price of KShs 7 million. The said entire property was commonly referred to as 'the Ranch' by Captain Edwards.
>
> 4. At a meeting held on the 27 January 1983 by Captain Edwards in the presence and office of the first defendant, between Captain Edwards and the plaintiff it was finally agreed orally that he would sell and the plaintiff would buy all the company's shares for KShs 7 million and that the oral agreement be reduced into writing by exchange of letters and the first defendant was expressly instructed to address forthwith a letter to that effect to the plaintiff being the letter dated 28 January 1983, which was affirmed and accepted, as had been by a letter on the plaintiff's behalf dated 31 January 1983 which thereby constituted the agreement; photocopies of the letters are hereto annexed."

The plaintiff stated in his evidence at the trial in the High Court that having heard that the Ranch was for sale he had several meetings with the late Captain Edwards about it during the year 1982; that at one of these meetings Captain Edwards told him that the Ranch had been offered to a Mr GG Kariuki who was then the Minister for Lands in the Government of Kenya, and also a director of the private company. Captain Edwards urged the plaintiff to wait until after 31 December 1982. The plaintiff went to see Captain Edwards again in January 1983. He was told to wait for a further two weeks as he (Captain Edwards) was waiting to hear from the Minister. The plaintiff met Captain Edwards again on 20 January 1983 when the purchase price was discussed between them for the first time and Captain Edwards finally agreed to accept KShs 7 million for the Ranch; that he and Captain Edwards agreed between them for the sale and purchase of the Ranch for KShs 7 million. Captain Edwards undertook to arrange a meeting with his lawyers, the firm of Daly and Figgis. Such a meeting did in fact take place on 27 January 1983 at the offices of Daly and Figgis. Those present at the meeting were Captain Edwards, the plaintiff, the first defendant as a member of the said firm of Captain Edwards' advocates and two other African gentlemen whose scores deserve no further mention in these proceedings.

The plaintiff's evidence continued that at the meeting the first defendant advised transaction by way of sale of shares pointing out that the sale of the Ranch being agricultural land it would require the consent of the Land Control Board under the Land Control Act (Chapter 302) to obviate which, at his suggestion and advice, Captain Edwards and the plaintiff agreed with the private company being converted into a public company and sale of all shares thereof to the plaintiff. The agreement which had been already reached between the parties was reduced into writing by the first defendant including the alteration relating to all the shares in the public company on the instructions of Captain Edwards and therefore on his behalf, in the letter dated 28 January 1983 (exhibit item 13). The letter signed by the first defendant was sent by Daly and Figgis to the plaintiff's advocates – Hamilton, Harrison and Mathews.

The relevant portions of the Daly and Figgis letter which was copied to the plaintiff read as follows (paraphrased):

> "28 January 1983
>
> Daly and Figgis, Advocates.
> DM Kairu, Esq
>
> Dear Mr Kairu
>
> *Subject to Contract – Sale of all shares in Sossian Limited to yourself and three others*
>
> I confirm the points raised at our meeting yesterday morning as follows:
>
> 1 Mr Edwards for whom we act is prepared to sell to you all the share holdings in Sossian Limited for a gross consideration of KShs 7 million.
>
> 2. It would be necessary for us to convert the company from a private company into a public company and upon receipt from you of confirmation that you wish to proceed with this purchase, we will put this in hand immediately.
>
> 3. We confirm the agreement would be drawn in the terms governing the sale of shares, namely:
>
> (*a*) The 10% stake would be held by us as stakeholders pending completion and . .

(*b*) On the date of completion we would hand to you the share certificates together with the signed transfer forms.

(*c*) Provision for payment of withholding Tax.

4. Our clients would sell to you a completely 'clean' company, that is, they would discharge all liabilities up to the date of transfer.

5. Provision on completion for handing over the seal, books of the company, resignation of directors *et cetera*.

6. Provision for payment of stamp duty by the purchaser.

7 and 8. Provision relating to stock on the Ranch not owned by the vendor.

9. 'It was agreed' re the employment of one Mr McCloud for one year.

10. Name of plaintiff's advocates.

We look forward to receiving confirmation that you are prepared to enter into a contract with the above. Upon receipt of your confirmation, we will approach the Honourable Minister.

Yours sincerely

Signed MH Shaw

Daly and Figgis"

The plaintiff's advocates replied to the foregoing letter on his behalf on 31 January 1983 (item 14) as follows:

"31 January 1983

Messrs Daly and Figgis

Dear Sirs

RE: Purchase of all shares in Sossian Limited by DM Kairu.

We refer to your letter of 28 January addressed to our client Mr David Munene Kairu on the above subject.

We hereby confirm our client's acceptance to the offer made in your said letter and we would be obliged if you could let us have a draft agreement urgently. Our client is ready to complete the purchase as soon as possible.

Please have the purchaser named as Mr Kairu and had his nominee or nominees.

Yours faithfully,

Hamilton, Harrison and Mathews

cc Mr Kairu"

A. *The words: "Subject to contract"*

A great deal of time was spent in the primary court concerning these words "subject to contract". The plaintiff's case was that the words "subject to contract", or any such suspense condition, were never mentioned by any one at the meeting held on 27 January 1983 which was held only for the purpose of giving instructions to the first defendant to reduce into writing the agreement already reached between him and Captain Edwards. That these words were written into the agreement which had already been entered into between the parties by the first defendant without any instruction or authorisation from the parties, in particular from or by Captain Edwards. When cross-examined the first defendant finally agreed that he had himself added the words "subject to contract" to make it absolutely clear that his letter was not being put out as an offer capable of being accepted.

In his affidavit sworn on 30 November 1984, the first defendant deponed, *inter alia*:

"I agree that a meeting took place in my office attended by the plaintiff and the late Captain Edwards on the 27 January 1983. At that meeting no oral contract of sale was

> concluded as alleged by the plaintiff while agreement was reached on a number of aspects. I made it clear at the meeting that the negotiations were subject to a proper formal agreement being drawn up. This letter was clearly stated to be '"subject to contract' and sought confirmation that the plaintiff was prepared to enter into a contract on the terms expressed in the letter. This letter did not purport to confirm the existence of a previous oral agreement as alleged in paragraph 3 of the plaint. This letter was not an offer capable of being converted into a contract by acceptance and was not intended to be such."

The learned trial Judge said in his judgment that the plaintiff's case as pleaded in paragraph 4 of the plaint was that it was at the meeting on 27 January, and therefore by implication, and on many earlier occasions, that an agreement was finally recorded. With respect this is unsupportable reasoning. The plaintiff's case was as set out in paragraphs three and four of the amended plaint. The reference to any agreement having been reached on earlier occasions whether by implication or otherwise, was adding non-existent tributaries to the agreement reached between the parties on 20 January 1983. The parties had come to see the first defendant on 27 January 1983 to instruct him to reduce into writing their agreement already reached between them for the sale and purchase of the Ranch for KShs 7 million on 20 January 1983. They did not come to negotiate an agreement in his presence. The parties accepted the defendant's advice to make the transaction by the sale of all shares of converted Sossian Limited instead of the Ranch to circumvent the provisions of the Land Control Act. The modification was agreed by the parties and it became a part of the original agreement already made between them. The first defendant was instructed by Captain Edwards to reduce the agreed terms of the sale into writing. The trial Judge accepted that agreement was in fact reached between the parties at the meeting to transfer to the plaintiff all the shares in the converted Sossian Limited thereby giving effect to the intention of the parties to transfer the Ranch to the plaintiff. This agreement to sell all shares to the plaintiff for the purpose stated kept both intact and enforceable the agreement made on 20 January 1983 which, even if not reduced into writing and being for the sale of shares only, it was specifically enforceable upon proof. The defendant did not carry out his instructions scrupulously when he inserted the words "subject to contract" in the agreement without being authorised by the parties to do so.

The Judge thought that the plaintiff found himself caught on the horns of a dilemma. If he brought an action for breach of contract he must identify and prove the contract on which he sued. Quite so. The Judge, however, went on to say that on the facts of this case it was open to the plaintiff to allege breach of an oral contract which was entered into on 27 January 1983. Such a cause of action could readily be identified. The alternative action open to the plaintiff, which was incompatible with the former, was to allege breach of contract entered into on or about 31 January 1983 when by item 14 he accepted the offer contained in letter item 13. It was a matter of fundamental importance, said the Judge, whether it was the earlier events which were alleged to give the plaintiff his cause of action or whether it was the later events which gave him his cause of action. The Judge considered that unfortunately the necessity of identifying the plaintiff's cause of action had not been observed in paragraph 4 of the plaint where the earlier events had been merged into and confused with the later events with the result that one could not be sure whether the plaintiff was suing on an oral contract made on 27 January 1983, or on a contract made on 31 January 1983.

With respect the Judge should have looked at the realities. The plaintiff's cause of action was set out in paragraphs three and four of the amended plaint. Save for the alteration relating to the sale of all shares of the converted Sossian Limited agreed on 27 January 1983 the oral contract was entered into on 20 January 1983 which provided the plaintiff with an enforceable cause of action on its own. The defendants knew what the plaintiff's cause of action was. They wrote (item 20) to the plaintiff's advocates on 4 March 1983 as follows:

> "We are not in a position at the moment to make any binding agreement in connection with the sale of the shares as any such agreement will automatically be void for lack of land control consent. It was for this reason *inter alia* that our letter of 28 January directed to your client Mr Kairu was specifically made subject to contract."

Having himself advised transaction by sale of shares to obviate consent of the Land Control Board this was an inconsistent reason for the first defendant to offer for not making a binding agreement, which any way was unnecessary for it existed already. In addition to also being an incorrect statement of the law, further according to his own evidence the letter was not made subject to contract for the reason stated in the above letter as hereafter shown.

The Judge erred in looking for an alternative cause of action because what the plaintiff did was to accept and confirm by his letter of 31 January 1983 the same offer which he had already bindingly and conclusively accepted on 20 January 1983 – altered only in the one respect relating to the sale of shares. His acceptance was no more than a confirmation of his previous agreement made between the parties on the 20 January and reiterated by them on 27 January. The plaintiff already had his cause of action; it was a misdirection to think that neither the earlier nor the later events afforded the plaintiff a reliable cause of action. The totality of the events which occurred led by the agreement made on 20 and 27, 28 and 31 January 1983 provided him with his cause of action. The plaintiff's cause of action was born on 20 January 1983 when the parties had arrived at a concluded contract by their own act.

It has been strenuously argued that there was no oral contract entered into between the parties; that this view is reinforced by the entry of events of the meeting of 27 January 1983 recorded by the plaintiff himself in his note book (exhibit 12) in the words "letter of offer to be sent to me". The matter to be considered by the Judge was whether Captain Edwards was bound by the agreement made on 20 January 1983, confirmed and reconfirmed on three separate occasions later, and not how a lay plaintiff described it.

I am of the view that the averments in paragraphs three and four of the plaint are to be read together. The oral agreement reached was repeated in paragraph 4 the second part of which stated that the letter of 28 January 1983 was affirmed and accepted as had been agreed by a letter on the plaintiff's behalf dated 31 January 1983; that that thereby constituted the agreement which can only mean the main and original oral agreement of 20 January 1983 between the parties. The plaintiff was not saying that an oral contract of sale of the Ranch was concluded at the meeting on 27 January 1983. The rest of the several aspects mentioned in that letter merely set out the mechanics of how to give effect to the intention of the parties to complete the sale of all shares of the converted company.

When interpreting a contract the Court ought to give effect to the intention of the parties as far as possible, and in particularly avoid deviating interpretations however easy or plausible they may appear to be.

There would have been no point in having a meeting with the first defendant, or in inserting the words "subject to contract" if the oral contract of sale already reached between the parties on 20 January 1983 was not to be reaffirmed at the meeting. The situation simply was that neither party was free to resile because the negotiations between them had been completed resulting in a valid agreement of sale. Captain Edwards was free to agree to sell to any one he liked, and he did in fact agree to sell to the plaintiff. There was no doubt about it for the defendants' letter ended up by saying that they looked forward to the plaintiff's confirmation that he was prepared to enter into a contract "in accordance with the above." The first defendant deponed in his affidavit of 30 November 1984 that the letter sought confirmation that the plaintiff was prepared to enter into a contract on the terms expressed in the letter. The plaintiff promptly confirmed without any exception or reservation that he was so prepared. Why did the first defendant then not submit a contract! The first defendant sought to rely on the words "upon receipt of your confirmation, we will approach the Honourable Minister" appearing in the letter as indicating that no contract was entered into at the meeting. Quite so. The plaintiff's case was that the agreement of sale was previously reached and it was confirmed at the meeting.

The reference to the Minister could not have had any significance for the defendants do not claim to have acted upon receipt of the plaintiff's acceptance. In the end the company was converted into a public company without the Minister's consent. He had disappeared as an obstacle; he was never proved to have been an obstacle.

If effect is to be given to the intention of the parties, as it must be, then ignoring all the haggling by the first defendant, as it has to be, on his own evidence the letter written by him confirmed the existence of a previous oral agreement between the parties. The first defendant's statement therefore that the letter was not an offer capable of being converted into a contract by acceptance and was not intended to be such is a piece of nonsense. Why write the letter at all! How could a reasonable court accept this type of shifting evidence from a helping witness? For example, the first defendant himself wrote in paragraph 9 of his letter of 28 January 1983 that "*it was agreed*" – re the employment of Mr McCloud (emphasis mine).

With the words "subject to contract" it was capable of being converted into a contract if a contract was submitted and agreed. The first defendant never drew up a draft contract. Without the words "subject to contract" which should not have been included, the letter was definitive in all its terms and a clear affirmation of the contract already entered into by the parties.

The words "subject to contract" have a clear *prima facie* meaning being in themselves merely conditional. There might, however, be a very strong and exceptional context which would induce the Court not to give these words that meaning in a particular case (*Alpenstow Ltd and another v Regalion Properties Plc* [1984] Ch D 545).

On the true construction of the situation such a strong context has been shown. Accordingly the Court will not give the words "subject to contract" their clean *prima facie* meaning in this case.

The trial Judge should have ignored the words "subject to contract" once the first defendant told him that he had added them without authority. Instead he

referred to it as a stumbling block and made it one of the pillars of his judgment. He said:

> "I find (words) must have indicated to lawyer and layman alike, that it was not an unequivocal offer, capable of acceptance, but was subject to something else, and was merely a stage in negotiations. I find this inconsistent with the whole tenor of the letter."

With respect the trial Judge fell into two elementary errors in thinking that the words "subject to contract" indicated that it was not necessarily an unequivocal offer. The trial Judge equated himself with a lawyer and layman who would be looking at the letter without the knowledge of the background to it when he made his assessment of it. The Judge knew the words were unauthorised. He also knew, or should have appreciated, that negotiations between the parties had ended in an agreed sale. To repeat, once the Judge was told by the first defendant that he had inserted the words without authority he should have ignored them which would have reduced his judgment to about half its size. The situation can be conversely stated correctly as follows, that is, that knowing about the events which had taken place between the parties the letter was an unequivocal offer, not subject to something else, not merely a stage in negotiations, and definitely an affirmation of the oral agreement of 20 January 1983.

The trial Judge rationalised by saying that the situation was consistent with the whole tenor of the letter which set out many important and complicated stages which would have to be taken before the parties would be able to enter into a contract. He said there was obviously much work to be done, and he could not believe that Captain Edwards, advised by a careful and experienced advocate such as the first defendant, would have chosen the beginning of that work, rather than the finishing of that work, as the time to enter into a binding contract. He therefore held that neither in form nor in substance was the letter, item 13, an unequivocal offer capable of being accepted so as to form a binding contract. With respect, the Judge conceived a novel commercial theory. The work required to be done to enter into a binding contract is usually done at the beginning rather than at the end of it to make the parties *ad idem* so that they can enter into a contract. If not done in this manner a bargain may easily be lost.

In my view, the trial Judge was not required to speculate about the competence of the first defendant as an advocate; a gratuitous compliment it gives an unfortunate impression of bias in this case. According to the first defendant the many important and complicated stages were that there were some other purchasers, other offers; Kariuki's consent, consent of the Land Board and conversion into a public company.

A careful and experienced advocate as the first defendant impressed the Judge would have taken all these matters in his stride. With the imaginary attributes built up about him, he should have had no difficulty in completing the preliminary stages speedily. I venture to think that a conveyancing lawyer would not normally have considered these items as much work to be done.

To convert a private company into a public company is not to climb Mount Everest. It is an ordinary documentary legal exercise. Advocates do it almost every day of the week. A careful and experienced advocate would have expressly mentioned the specific stage or stages of the other purchasers and their offers, if any, in the letter item 13. In my event it was not alleged that Captain

Edwards was obliged to them contractually. The first defendant's excuses could not have existed. They give the impression of having been conceived and put up at the trial as a defence strategy as was also what he wrote in his aforesaid letter dated 4 March 1983 (item 20) to the plaintiff's advocates.

Let us recall that in his affidavit of 30 November 1984 the first defendant *inter alia* deponed:

> "At the meeting (of 27 January 1983) the plaintiff requested us to conclude an agreement with him prior to approaching Mr GG Kariuki (denied by plaintiff). Both Captain Edwards and myself refused to do this. This is the significance of the last paragraph of the letter dated 28 January 1983",

a reason entirely different from the one given by him in his letter (item 20) and herein set out earlier.

B. The words "affirmed and accepted"

The trial Judge dwelt at length on the words "affirmed and accepted" in paragraph 4 of the plaint. He said that these words succinctly demonstrated the plaintiff's dilemma since the words were entirely self-contradictory, and the letter of 31 January 1983 could not constitute at one and the same time both an affirmation and acceptance. He said it could be construed as affirming, or confirming, an agreement reached on 27 January 1983; alternatively it could be construed as accepting an offer made by the letter dated 28 January 1983 but it could not be construed as serving both purposes. The Judge said that to allege a contract made on 27 January 1983 is incompatible with a contract made on 31 January 1983. With respect, the Judge showed a limited vision. First he overlooked that the plaintiff's advocates in their letter of 31 January 1983 said "we hereby *confirm* our client's acceptance of the offer made in your letter . . ." (emphasis mine).

Unless there be need to split hairs, the long explanation of the difference in the meaning of the two words "affirm" and "confirm" by the Judge was quite unnecessary as clearly the word "affirm" in paragraph 4 was inadvertently used. This was the kind of inadvertent error which the Court would amend upon application or of its own motion, even at the appeal stage, in the interest of justice. The Judge himself seems to have accepted the inadvertent use of the word "affirm" for later he correctly said in his judgment that exhibit 10 was *confirmed and accepted without equivocation* by the plaintiff in exhibit 14 (emphasis mine).

For their own reasons, the defendants on 25 May 1983 offered for sale the fourth defendant's shares, described as the owner of (the Ranch), to several possible purchasers including the legal firm Hamilton, Harrison and Mathews, stating: "Any offer of less than KShs 7 million is unlikely to be successful".

Hamilton, Harrison and Mathews replied by their letter of 1 June 1983 (item 42), offering on behalf of their client "Kairu Enterprises Limited and its partners", to purchase the shares for KShs 10 million. The trial Judge said:

C. "Waiver"

> "Letter, item – 13, has been referred to as a crucial letter, but so also letter, item 42, be considered crucial . . . in which the plaintiff's solicitors made an offer to purchase the shares for KShs 10 million. I cannot accept that such an offer would have been addressed in June 1983 if the plaintiff had had, or even believed he had, a contract in January 1983 to purchase the shares for KShs 7 million".

The defendants have submitted that the plaintiff and Kairu Enterprises Limited be treated as one and the same person; therefore, as stated in their Notice for Affirming the decision of the lower court, the appellant waived his rights under any contract, if binding, by procuring his company Kairu Enterprises Limited to make an offer for the same shares for KShs 10 million. In effect this is an argument in estoppel by inconsistent position, or that a person may not approbate and reprobate for a litigant cannot be permitted to assume inconsistent positions in court to the detriment of his opponent.

An estoppel comes into being if a party to a contract by his act or words induces the other party to the contract to either adopt a disadvantageous position or abandon an advantage under a contract to which he is a party. The first party then is not allowed to benefit from his act or words.

First, what is the disadvantage which the defendants suffered, or the advantage they abandoned, induced by the offer of KShs 10 million. They tried to take advantage of this offer to get out of the contract in their letter of 6 September 1984 (item 61). They were not forced to sell for a lesser price. They used the figure of the plaintiff's already agreed contract as a starting point to entice higher offers. This may be the reason why they never submitted a draft agreement for approval as undertaken to be done by them upon receipt of the plaintiff's acceptance of their letter of 28 January 1983 which they now wish to refer to as an offer.

Secondly, it is basic to the situation in this case that Kairu Enterprises Limited was a separate legal entity. If the offer had been accepted it would not have made the plaintiff the exclusive owner of the Ranch as he would have become by buying all the shares himself. The defendants themselves treated Kairu Enterprises Limited by separately inviting from it an offer to purchase the shares in their letter written by the first defendant on 16 October 1984 (item 63).

The plaintiff never waived his rights under the KShs 7 million contract. If anything, the defendants are estopped from resiling from the agreement of 20 January 1983 by the use they tried to make of it to jack up the price.

D. Conclusion

The result is that I would allow this appeal by setting aside the order of the High Court dismissing the plaintiff's suit, and substitute therefore a declaration that a valid and enforceable contract hereinbefore referred to in detail was entered into between the late Captain David Eimer Edwards and the plaintiff on 20 January 1983 and as confirmed on 27 January 1983 for the sale of all shares of the public company Sossian Limited to the plaintiff for KShs 7 million. Any consequential amendments to paragraphs 3 and 4 of the amended plaint shall be deemed to have been granted to give effect to his decision on appeal.

I would hear arguments as to which of the reliefs prayed for in the plaint should be ordered, and also about costs.

As Kneller and Nyarangi JJA agree it is so ordered.

Kneller and Nyarangi concurred in the judgment of Madan CJ.

For the appellant:
Hamilton, Harrison and Mathews

For the respondents:
Daly and Figgis

Kanja and Nyammo v Tullideph and another

[1986–1989] 1 EA 232 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	8 November 1988
Case Number:	117 and 118/86
Before:	Gachuhi, Apaloo and Masime JJA
Sourced by:	LawAfrica

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[1] Company law – Winding up – Power of the liquidator under section 263 of the Companies Act – Principles under which jurisdiction under the section should be exercised.

Editor's Summary

The appellants sought to have the Registrar orders granting the issue of summonses for their examination under section 263 of the Companies Act discharged by the High Court. Their applications having been dismissed in the High Court. They appealed to have the decision reversed.

In the motion seeking the discharge of the summonses, the appellants, who had controlling interests in two companies and were directors of the company under liquidation, object to their examination on the ground that the "intended examination will be oppressing and that the respondents are acting both arbitrarily and unfairly".

The liquidators/respondents on the other hand averred that their intended examination of the appellants under oath was to ascertain facts concerning the promotion and operation of the company to use such information in deciding who or what company to be sued.

Held – The liquidators were officials appointed by the Court and their main duties were to get assets of the company and ensure in case of an insolvent company, that as much as possible of the company's true assets were available for equitable distribution to creditors, especially unsecured ones.

The principles on which jurisdiction under the section should be exercised "putting the matter very generally" were, first, the liquidator must show the need to examine and, second, the Court must not allow examination when it would be oppressive, vexatious or unfair (Re Rhodes Ltd 1986 followed).

What was oppressive should be determined in the light of modern public policy that anyone involved in the affairs of an insolvent company owed a duty to help the liquidator investigate the affairs of the company in the interests of creditors.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

United Kingdom

Re Bletchley Co Ltd [1974] WAR 630

Re Castle New Homes [1979] 1 WLR

Re Maville [1939] 1 Ch 32

Re Rhodes Ltd 1986 – **F**

Re Rolls Razor Ltd (2) [1969] 3 All ER 1386

Re Spiraflete Ltd [1979] 1 WLR 1096

Judgment

Gachuhi, Apaloo and Masime JJA: On 6 October last, a day after we concluded the hearing of these two consolidated matters, we ordered that both appeals do stand dismissed with costs. We indicated that we would set out our reasons later. This we now do.

There is a limited liability company by the name of Pentax Limited. It is now in liquidation. The evidence available to us does not disclose a great deal about the company or the nature of its business. This is, however, not material for present purposes. It seems, however, that sometime around 1980 or thereabouts, it either had difficulty in paying its debts or was simply insolvent. Sometime in 1983, presumably at the instance of its creditors, a winding-up order was made in respect of it by the Court. Both respondents were appointed liquidators.

The evidence shows that in the course of their duties, the liquidators discovered certain matters which they thought were injurious to the interests of the company and on which they required elucidation. So they addressed both appellants. Both appear to have controlling interests in two companies which were directors of Pentax Limited. They would, in the ordinary course of events, be in a position to shed light on these matters. Both gave answers which the Liquidators thought, as indeed we do, were unhelpful.

So the Liquidators availed themselves of the power conferred on the Court by section 263 of the Companies Act and prayed for the issue of summons to compel the appellants to appear before it and be examined on these matters. Under the winding-up rules, the initial application is cognisable by the Registrar. The respondents made their application to him ex parte and made available to him the usual confidential statement. On the basis of it, the Registrar considered that this was a deserving application and he acceded to it and ordered that summons be issued to the appellants. There is little doubt that the Registrar exercised his discretion for the respondents, On being served with the summonses, both appellants, by separate motions, sought to have the order granting the issue of the summonses for their examination discharged. It was not disputed that they were entitled under rule 7 of Companies (Winding-up) Rules to seek those orders.

Between 26 May 1986 and 4 June 1986, legal argument was presented to the High Court (Porter J) on whether or not the order of the Registrar should be discharged. As we said, the Registrar exercised his discretion in the respondent’s favour. What the appellant sought was that the discretion should be exercised the other way round. It is established by the authorities, that although the Court may come to a different conclusion from the Registrar, the application is not an appeal from the exercise of the Registrar’s discretion to the Court’s. The Court is expected to exercise its discretion de novo and consider whether on the facts, and its view of the law, the order for the issue of the summonses for the

appellant's examination ought to be granted or refused. The learned Judge was fully aware of this position. In a well-considered ruling, the learned Judge expressed his conclusion in these words:

> "I am satisfied that the application for examination is made as part of the enquiries of the liquidator in the liquidation, and not as preliminary to proceedings. And on the conduct of the applicants so far, I am satisfied that it is necessary and not oppressive for examination to be held."

Accordingly the Judge said:

> "I therefore rule that all applications herein be dismissed, the witness summonses to stand."

Perhaps it is necessary to mention that the summonses for examination were taken out against the appellants and an auditor of Pentax Limited. He joined the appellants to contest its validity before the learned Judge. Like the appellants, he also failed. We must assume that he saw nothing wrong with the Court's order and has not joined in this appeal. We mention this only for purposes of completing the record, not because we thought his non-joinder of this appeal has any legal consequence.

The appellants invite us to say that the learned Judge's conclusion was erroneous both on the facts and in law and they prayed that "the decision of the High Court be reversed".

The memorandum of appeal contests the ruling on the facts and in law. Before we deal with the issues of law raised, it is necessary to relate the facts which were put before the Judge and on the basis of which he exercised his discretion against setting aside the summonses for the appellant's examination.

In the course of the investigation into the company's affairs, the Liquidators discovered that house number 28 Ngumo Estate which appeared to be company property was transferred to Mrs NF Kanja who allegedly purchased it for KShs 290 000. No payment seems to have been made and the transfer of the property was registered in March 1980 when the company appeared to have been insolvent. Similarly, house number 26 from the same estate appears to have been transferred by the company to Thammo Holdings Limited, a company in which Mr EK Nyamo had the controlling interest and which company was itself a director of Pentax Limited. The information available to the Liquidators was that that house is now owned by Mr EK Nyamo. The Liquidators enquired from the appellants whether they would each pay the purchase price of KShs 290 000 so that this sum can be available to pay off the company's indebtedness to unsecured creditors. The Liquidators believed that the appellants had no intention of defrauding the creditors.

Secondly, the Liquidators also discovered that Pentax Limited paid fairly large sums to Shangai Builders Limited as "finance interest charges". That company in turn paid a substantial part of this sum to five companies which were directors of Pentax. The Liquidators could not see why these payments should be made and sought their justification. The appellants were directors and the apparent holders of the controlling interest in two of the companies to which these payments were made.

In the course of their investigation into Pentax's affairs, the Liquidators also saw a letter from the company's auditors which seems to show that the appellant Nyamo had been informed, as early as July 1980, that Pentax Limited was insolvent. The liquidators enquired from the appellants when they became

aware of the company's insolvency. Their attention was drawn to the legal provision relating to fraudulent trading. To obtain clarification on these apparently obscure matters, the Liquidators addressed separate letters to each of the appellants. From the correspondence available to us, the appellants provided nothing that can be said to be answers to these enquiries, let alone satisfactory ones. That appears to be the raison d'être for the Liquidators' invocation of the Court's powers under section 263 of the Companies Act.

In the motion seeking the discharge of the summonses, the appellants object to their examination on the ground that the "intended examination will be oppressing and that the respondents are acting both arbitrarily and unfairly". The avowed reason for this, again according to the appellants' affidavit, is that:

> "The object of the intended examination is to enable the respondents to obtain a favourable judgment in an action they are about to begin against either me or Norken Investments Limited."

The liquidators, for their part, denied the object ascribed to them. They say:

> "The purpose of seeking to examine Mr Kanja and others on oath is to ascertain as much as possible about the facts concerning the promotion and operation of the company, many details of which are obscure."

The Liquidators intend to use the information so obtained as a basis to decide who, if any person or company, should be sued.

That, apparently, is what the learned trial Judge preferred, although he did not so put it. He said he was satisfied that the Liquidators' application for examination was part of their enquiries in the liquidation and not as preliminary to proceedings. That holding inferentially rejects the appellants' thesis that the Liquidators were seeking unfairly to make a premature scrutiny of their evidence to enable them to obtain favourable judgment in an action they were minded of instituting against them. The appellants contest this but we are unable to say on what basis we can differ from the learned Judge on this. The Liquidators were officials appointed by the Court and their main duties were to get in the assets of the company and ensure, in case of an insolvent company, that as much as possible of the company's assets were available for equitable distribution to creditors, especially unsecured ones.

There is no reason why they would wish to mistake their true intention and no good reason exists why the Court should attribute to them any other object than they themselves avowed. Unlike the many other cases cited to us, they have not initiated any litigation against the appellants although they did not expressly rule this out. Whether they would eventually mount an action would depend on what their enquiries reveal. And we have already noticed their recourse to the appellants for relevant information was unrewarding. In those circumstances, we should have thought the Liquidators brought themselves squarely within section 263 of the Act and were entitled to have the appellants examined on oath under the beginning but watchful eye of the Court.

But the appellants say that they are entitled to have the summonses discharged because, at least, we must hold that, in view of the nature of he enquiries the Liquidators addressed to them, they must have made up their minds to institute hostile proceedings against them and in view of dicta in a number of English decisions, once the Liquidators formed that intention, the "Rubicon is crossed" and private examination cannot be allowed. The appellants relied strongly on the judgment of Brightma J in Re Bletchley Co Ltd 1974 WAR 630 and that of Simonds J in Re Maville [1939] 1 Ch 32. The facts of those cases

are wholly dissimilar to the instant one and no object would be served in reproducing them in this judgment. But it is right to acknowledge that those learned Judges did make some pronouncement in those cases, which, superficially at any rate, lent some support to the appellants' contention.

However, in Re Castle New Homes [1979] 1 WLR Slade J examined those cases and took a more liberal view of the requirements of the section. So did Megarry J in Re Rolls Razor Ltd (2) [1969] 3 All ER 1386. While we do not burden this judgment with an analysis of these judgments, we prefer their general approach to the holdings in Re Bletchley and in Re Maville as it seems to us that their general approach to the construction of section 263 is more likely to address the mischief at which the section was directed.

The latest English decision on this subject to which our attention was drawn, is Re Rhodes Ltd decided as recently as 26 June 1986. There, Hoffman J brought a refreshingly new thinking on the proper construction and application of the present English equivalent of our section 263. He referred, without analysis, to the decision of Megarry J in Re Rolls Razor Ltd (2) (supra)and in Re Spiraflete Ltd [1979] 1 WLR 1096 and the decision of Slade J in Re Castle New Homes Ltd (supra) and thought the principles on which jurisdiction under the section should be exercised "putting the matter very generally" were, first, the Liquidator must show the need to examine and, second, the Court must not allow examination when it would be oppressive, vexatious or unfair. The Judge thought what was oppressive should be determined in the light of modern public policy that anyone involved in the affairs of an insolvent company owed a duty to help the Liquidator to investigate the affairs of the company in the interests of the creditors. The Judge thought that attitudes and values expressed in cases decided in the Court of Appeal a century ago, but still authoritative, may have become obsolete. Applying those principles, the learned Judge thought the Registrar's order for public examination of the petitioner was not oppressive and dismissed the prayer in the summons.

We are impressed by the learned Judge's reasoning and if we may respectfully say so, his illuminating approach to the construction of section 263 at the present day. If it is a choice between construing the section in a manner which protects the privacy of business transactions as against protection of creditors and shareholders, we think the public interest of this country would be best served by opting for the latter. Hoffman J's test is refreshingly simple and is devoid of the niceties and refinements which characterised some of the older formulations of principle. We also think it is not difficult to apply. So we put to ourselves two questions, namely, first, have the Liquidators shown a need for examination of the appellant? And second, would it be oppressive or unfair to examine them?

As to the first question, we find positively that the liquidators have shown such need. There is *prima facie* evidence that two houses, which belonged to the insolvent company, have found their way into the ownership of the spouses of the appellant directors and no consideration appears to have been given for these changes of ownership. Second, some payments of not insignificant amounts were made by the insolvent company to the appellants' companies for which, *ex facie*, there was no reason, third, the appellants, or one of them appeared to have knowledge, at some time, that the company was incapable of paying its debts but they nevertheless continued to carry on business. It is not

improbable that the appellants have perfectly acceptable explanations for these matters and may well emerge from examination in court unscathed. The Liquidators gave them a fair opportunity of answering these enquiries but they were less than co-operative and seem to have taken a legalistic stance, arguing instead that they could only legitimately disclose these matters in defence to actions which they believed the Liquidators decided to institute against them. We think, if there was ever a need for the invocation of the Court's power under section 263 to compel forensic examination of directors, this case affords an apt one.

As to the second question, we cannot see that it would be either oppressive or unfair to the directors of a company who are in a real sense its fiduciaries to be obliged to provide information about the trade, dealings and other affairs of an insolvent company. They are peculiarly well placed to have the required knowledge or information and it would be wholly wrong to aid them to withhold such information especially where this is required to protect unpaid creditors and contributories. At all events, we believe sound reasons of public policy decided the Legislature to give the Court this unusual inquisitorial power and it would be wrong to whittle it down by needlessly restrictive judicial interpretation. Like Hoffman J, the learned Judge, in this case, Porter J, after a thorough review of the facts and law, declined to prevent the examination of the appellants. Not only was there no showing that any good grounds exist for appellate interference with that decision, but we think on the material presented to the Court and in the light of the confidential statement made available to the Judge and to us, we think this was not only a perfectly proper, but also a wholly correct, exercise of judicial discretion.

Accordingly, at the close of argument, each member of this Court, independently, thought the learned Judge's holding ought to be affirmed and the appeal dismissed with costs. We accordingly so ordered.

For the appellant:
Information not available

For the respondent:
Information not available

Kanyoko t/a Amigos Bar and Restaurant v Nderu and others
[1986–1989] 1 EA 237 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	21 October 1988
Case Number:	142/87
Before:	Nyarangi, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Execution – Motion to arrest before judgment – Alleged increase of rent for premises leased – No order by business premises tribunal – Allegation that defendant likely to abscond and had removed assets from jurisdiction – Lack of evidence to support allegation – Order of execution by attachment granted – Availability of alternative remedy – Observations of court on oppressive nature of application and execution – Section 4(2) – Landlord and Tenant (Shops, Hotels and Catering

Establishments) Act (Chapter 301) – Order XXXVIII, rules 5, 12, Order XXXIX, rules 1, 3 – Civil Procedure Rules.

Editor's Summary

The respondents were the landlords and the appellants the tenants of first floor premises at Nakuru at a rental of KShs 6 000 per month where they carried on the business of a bar and restaurant. The respondents were desirous of increasing the rent to KShs 18 700 per month and served a statutory notice of such increase on the appellant and his partner. Service was, however, denied by the first appellant, who was the active partner in the business. The respondents themselves then referred the matter to the Business Premises Rent Tribunal and the appellant attended the tribunal in response to a notice to do so, but was informed by the tribunal that the case had been withdrawn by the respondents, who on 14 May 1987, commenced an action against the appellants claiming arrears of the increased rent, being the difference between KShs 18 700 and KShs 6 000 per month, totalling KShs 206 400.

Simultaneously, the respondents applied for attachment before judgment of the appellants' assets and this was granted by Masime J on 28 May 1987 in terms of the chamber summons. Warrants of attachment were issued and executed on the same day and brokers' charges of KShs 46 815 incurred. On 20 July 1987 the appellant applied to set aside the attachment, offering to deposit "any security required". On 25 August 1987 Tunoi J set aside the ex parte May order of attachment and directed the defendants (meaning the appellant and his partner) to attend court and furnish security or show cause why they should not do so and the appellant deponed that he had substantial security to offer. Notwithstanding this, Tunoi J held that the appellant had neither shown cause why he should not furnish security nor had he furnished security, and issued a second order to attach the appellants' movable properties up to the value of KShs 240 000 and they, accordingly, remained under attachment. The appellant appealed against the second order of Tunoi J, contending that he had misapprehended the effect of the rules permitting attachment before judgment and had, in effect, given an order to satisfy a decree before the case had been heard.

Held – The appellant had shown more than a plausible case to resist the application for attachment before judgment, even to the extent of giving particulars of his landed property.

The respondents' averments that the appellant had removed or was going to remove the properties from the jurisdiction only rested on information given by persons whose evidence the Court had not heard.

The burden resting on the respondents to show facts justifying the attachment before judgment could only be discharged by testing the rival averments by evidence.

The power to attach before judgment must not be exercised lightly and only upon clear proof of the mischief aimed at Order XXXVIII, rule 5, namely that the defendant was about to dispose of his property or to remove it from the jurisdiction with intent to obstruct or delay any decree that may be passed against him.

The first application for attachment granted by Masime J was not only wrongly made but was shown by the respondents' conduct to have been maliciously made.

The order that the appellant should pay the Court brokers' charges was also maliciously sought by the respondents and also wrongly made. They, and not the appellant, should foot the bill for both sets of the brokers charges, for both the attachments.

Per curiam – Had the respondents entertained a genuine fear that the appellant would remove or dispose of his assets to defeat a judgment they could have invoked Order XXXIX, rule 1 and obtained a Mareva injunction to restrain him from doing so.

If the case teaches anything, it is that courts should be extremely slow in ordering attachment of a defendant's property before judgment, because (*a*) it is inconsistent with justice to exact punishment before the defendants' liability is established; and (*b*) the time-consuming process of the Court may result in the rights and liabilities of the parties not being determined for a long time.

A clearer case of malice on the part of the respondents could hardly be imagined.

Appeal allowed. Orders for attachment and payment of brokers' charges set aside. Respondents to pay the second set of brokers' charge and fees.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Meru Farmers Co-operative Union v Suleiman (2) [1966] EA 442

Ndirangu v Abdallah civil appeal number 10 of 1979

Ndungu v Mbugua and another civil appeal number 112 of 1984

United Kingdom

Lister v Stubbs [1890] 45 Ch D 1

Mareva Compania Naviera v International Bulk Carriers [1975] 2 Lloyds Rep 509

Judgment

Nyarangi, Gachuhi and Apaloo JJA: The appellant, who carries on business under the name and title of Amigos Bar and Restaurant, appeals against a ruling and order of the High Court, Nakuru (Tunoi J) dated 16 September 1987. The Court ordered "court brokers to attach the moveable properties of the appellant to the value of KShs 240 000 and keep the same under safe and secure custody until further orders". The Court also directed that the appellant "meet the Court brokers' charges". As will appear presently, these charges are not inconsiderable.

The appellant says these orders were wholly wrong and should be set aside. The orders were not made pursuant to any judgment delivered against the appellant. They were to forestall an alleged attempt by the appellant to make any decree that may be rendered against him infractuous. What then are the facts?

The appellant and one Joseph Mwago were carrying on business jointly. It was a restaurant and bar. They rented the first floor of the respondent's premises number 451/598 Kenyatta Avenue, Nakuru for the purpose of the business. They appear to be monthly tenants and paid a rent of KShs 6 000 per month.

Some time in 1986, the respondents as landlords were desirous of increasing the rent three-fold. As it was controlled tenancy within the meaning of section 2 of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, the respondents could not lawfully do, without serving on the appellants the notice prescribed by section 4 of the Act. They claimed that on 27 March 1986, they served that notice on the appellant and his erstwhile partner Joseph Mwago. The rent was to be raised from KShs 6 000 to KShs 18 700 per month, and this was to take effect from 1 June 1986. The appellant was either to notify the respondents within one month of the receipt of such notice and whether they accept the increased rent or refer the matter to a tribunal established by the Act. The respondents said the appellant did neither and that therefore the notice had become effective and that the tenants came under a liability to pay the increased rent from 1 June. Mwago admitted receipt of the notice but disclaimed any further interest in the business. The appellant however denied the receipt of that notice.

It appears that when the respondents did not receive the reaction of their tenants, they, by themselves, referred the matter to the tribunal. They must have thought it was a faulty legal step, so they withdrew the matter from that forum. The appellant swore that the only notice he received was to attend the tribunal. When he answered that summons and appeared before the tribunal, he was informed the respondents had withdrawn the "case". The respondents' next course, was to commence an action against the appellant and Joseph Mwago in the High Court. The reliefs sought of the Court and endorsed in the plaint were for:

> "(*a*) A declaration that the rent of the suit premises is KShs 18 700 per month from 1 June 1986.
>
> (*b*) The said sum of KShs 206 400.
>
> (*c*) Mesne profits at KShs 18 700 per month with effect from 1 June 1987.
>
> (*d*) Interest at the rate of 12 per cent per annum and costs."

The appellant's business partner swore that the partnership between them had been dissolved. So he contended that he had no longer any interest in the suit premises. He, therefore, is not a party to this appeal. The appellant, for his part, denied that he had been served with the notice of the increase of rent mandatorily required by section 4 of the Act. So three serious issues were joined between the respondents on one hand and the appellant on the other. They are:

1. Was the notice required by section 4 given and served on the appellant in the manner laid down by the section?
2. If such notice was given, what was its legal effect?
3. It was not proved that such notice was given, was the exaction of the increased rent lawful?

One would expect that these three serious issues would be resolved in the ordinary way by the adduction of evidence. But before the Court could settle down to consider these questions, the respondents moved for "attachment before judgment to secure a sum of KShs 206 400 be issued herein". This application was professedly brought under Order XXXVIII, rules 5 and 12 of the Civil Procedure Rules. It was *ex parte* and no notice of any sort was given to the sitting tenant – the appellant. The chamber summons came before the Court, then constituted by Masime J (as he then was) on 15 May 1987. In

support of this application, the first respondent swore that he had been informed that the appellant was about "to abscond or leave the local limits of the jurisdiction of the Court with intent to delay plaintiffs . . . and to obstruct or delay execution of any decree that may be passed in this matter" and, secondly, that he had further been informed that the appellant "has disposed of and/or removed from the jurisdiction of the Court a number of his properties". On that very day, the order sought was granted. It was promptly executed and before nightfall on that day, a Messrs Kena, auctioneers closed down the appellant's business premises and attached some of his stock-in-trade.

The appellant's reaction to this was understandable. He applied by chamber summons to have the order for action set aside and that he be permitted to provide "any security required". The respondents contested this and whether the order for the attachment should be set aside or not became the subject of rival contentions made to the Judge Tunoi J, by the parties' advocates. On 25 August 1987, the learned Judge delivered a considered ruling in which he held that the *ex parte* order attaching the appellant's property was wrong and he proceeded to set it aside. In so ruling, the learned Judge drew heavily on an unreported judgment of this Court in *Ndirangu v Abdallah* civil appeal number 10 of 1979 in which this Court held that "an *ex parte* attachment before judgment without directing the defendant either to furnish security or to appear and show cause why he should not furnish security breached Order XXXVIII, rule 5 and was a nullity".

The Court accordingly directed that the appellant appear before the Court on 3 September 1987 "either to furnish security or to show cause why he should not furnish security". On that day, both the appellant and his advocate appeared in court and the latter, by argument, sought to show cause why an order to furnish security could not be properly made against the appellant. To buttress this position, the appellant lodged in court an affidavit in which he disputed the averments to which the first respondent deponed. In particular, the appellant swore that he had not recently disposed or removed any of his properties and had no intention of doing so. He said the information given to the first respondent on which he based his supporting affidavit was false and fabricated. To show that he was in a position to pay any judgment that may be given against him, the appellant deponed that he had substantial business interests, being the sole owner of agricultural land at Taboga on plot 44 on which he had erected a substantial residential house worth more than KShs 300 000. The bar and restaurant business itself was a substantial one employing 78 workmen with a daily turnover of KShs 16 000 gross, and that business had been closed down by the attachment order. The appellant also swore that he had hitherto met the contractual rents regularly and the only extant difference between himself and the respondents, was the greatly increased rent. The first respondent, for his part, swore a supplementary affidavit and reiterated his information that the appellant was about to abscond and indeed disposed of or was about to dispose of his properties – so far unspecified. He also averred that the appellant had failed to pay the rent. He also swore that by the earlier attachment, which the Court found to have been wrongly ordered, he had been presented with a bill for KShs 46 815 by the auctioneer and that the appellant be ordered to meet its payment.

On the material presented to the Court, it cannot be gainsaid that the appellant deponed to facts which constitute more than plausible answer to the

respondents' plea for "attachment before judgment". The burden of showing that the appellant had disposed of his properties or removed them from the Court's jurisdiction or was about to abscond in either case with the object of defeating any decree that may be passed against him, lay on the respondents. And it seems clear that on the state of the pleadings and in view of the conflicting affidavits, that burden can only properly be discharged by testing the rival averments by evidence in the conventional way. The respondents' averments only rested on information given to him by parties whom the Court did not see or listen to. Yet, the learned judge felt able to order the attachment of the movable properties of the appellant and that the brokers' charges, for which the appellant was in no way responsible, should be borne by him. The appellant had said in his chamber summons in the alternative that he was willing to provide security and sought the Court's directions as to what security he should provide. That direction was not given. The Court's answer was the order for the attachment of his movable assets. So, on the date when we heard argument, those properties remained in attachment. To date, the auctioneers charges, which the Court ordered to the appellant to pay, must be quite staggering, especially as it is not yet known when the actual case would proceed to a hearing.

One must look at the ratio for the Judge's somewhat oppressive order. As we read them, they are first, the appellant has not paid any rent since June 1986; second, he has not produced evidence of ownership of plot number 44 Taboga; third, he has not "provided for evaluation to indicate the value of the house which was allegedly built on the said plot". The Judge also provided, for good measure, answers to the questions he put to himself, namely:

(1) whether the defendants would be able to honour the decree if passed against them,

(2) whether the plaintiffs have established a prima facie case.

The appellant contends that the learned Judge misapprehended the purpose of the attachment before judgment and misdirected himself on the standard of proof in an application for attachment before judgment. In our opinion, the appellant was right in his contentions.

The Judge said he made the prejudgment order to ensure that the appellant would be able to honour the decree that may be passed against him. If that were the true criterion, then any party who files a suit would be entitled to an automatic order for attachment of the defendant's property to ensure satisfaction of any decree. All he need do is to establish, what the Judge calls, a *prima facie* case. In so directing himself, the Judge missed the real reason the respondents gave for seeking the interim relief, namely, that the appellant on their information was either about to abscond, or had alienated his property with the sole object of defeating the execution of a judgment that they may obtain.

There is no rule permitting attachment of property before judgment according to English practice. Our Order XXXVIII which sanctions this practice was borrowed from the Indian Code of Civil Procedure. The learned author, Mulla, in his treatise on the Indian Code (13 ed) at 1502, says, *inter alia*, of Order XXXVIII, rule 5:

> "The object of this rule, is to prevent the decree that may be passed from being rendered infractuous . . . The order that is contemplated by this rule, is not an unconditional one directing attachment of property, but one calling upon the defendant to furnish security or to show cause why security should not be furnished. Where the defendant offers to give security, the Court should go into the question of its sufficiency, before issuing a final order of attachment."

In this case, the appellant showed by affidavit evidence that he was in a prosperous business and was in a position to meet any decree that may be passed against him. He even gave full particulars of landed property that he owned and its worth in money terms. He also swore that he had not the slightest intention of leaving the jurisdiction. The facts deponed to by the appellant were weightier than the bare hearsay information the first respondent related and on balance, the weight of the affidavit evidence tilted in the appellant's favour. At all events, the appellant offered to provide security if the Court thought this was desired. The Judge did not go into the sufficiency or otherwise of the landed property he was apparently minded to offer. His title deeds were not asked for nor were any enquiries made of his financial standing generally. The appellant was in business which was a going concern and it is unlikely that he would fold up and abscond merely because his landlord asked him for rent – a subject on which he was not shown to be in default until the present dispute.

The learned Judge gave as one of his reasons for making the attachment the fact that the appellant had not paid rent since June 1986. The reason for this is plainly not that the appellant was unable or unwilling to do so, but because its quantum was the subject of the present dispute between the parties. Indeed, as pointed out, the main relief which the respondents sought of the Court was: "A declaration that the rent of the suit is KShs 18 700 per month with effect from 1 June."

The other reliefs sought were purely consequential, depending on the success of the declaratory relief. And whether the enhanced rent was exactable depends on disputed issues of fact which were yet to be resolved.

It is difficult to resist the observation that the order of the seizure of the appellant's property was made somewhat lightly. According to Mulla, when the rules required the Judge to be satisfied:

> "Vague allegations are insufficient. The power to attach is not to be exercised lightly and without clear proof of the mischief aimed" (See Mulla *Code of Civil Procedure* (13 ed) at 1502).

The respondents' hearsay assertion that the appellant was about to abscond was as vague an allegation as can be imagined. And there is no proof of any sort that the appellant was minded of committing the mischief against which the rule is directed, namely the disposal of his properties.

It is also well known that an applicant for attachment before judgment must act *bona fide*. There is evidence, so far unrebutted, which suggests that the respondents' object in seeking the attachment was to punish the appellant and get him out of the premises. There is unchallenged affidavit evidence that before he took out the plaint on 15 May 1987, the respondents had filed the application for attachment. This was a day earlier. That attachment, which was found to be wrongly made, resulted in the closure of the appellant's business. There is also evidence that the respondents wrote to the chairman of the Liquor Licensing Authority in Nakuru requesting them to withhold the appellant's license to operate a "night club bar and restaurant on the above mentioned plot". The respondents also alleged in that letter that:

> "The roof which the tenants have been using as a disco hall was not built to cater for a dance hall, hence the risk of collapsing due to stagnant water and vibration."

The letter then ended with the following plea to the chairman of the Liquor Licensing Authority:

> "It is my humble submission to the Court that the licence should not be granted. I would also like to point out that the tenants have failed to pay for the rent. The matter is with the Court."

This letter was dated 8 May 1987. But, in truth, the suit was not brought until 14 May 1987 and just a day afterwards, the respondents obtained an order for the attachment of the appellant's property and succeeded in having the business closed down. In our opinion, a clearer case of malice on the part of the respondents' can hardly be imagined.

Before us, this indefensible attachment was sought to be defended by argument that the notice for the increase of rent was served on the appellant and that the payment of the enhanced rent was properly demanded and as no payment was made of the increased or contractual rent, the order of attachment was properly made. For authority, counsel referred us to the English decision in *Mareva Compania Naviera v International Bulk Carriers* [1975] 2 Lloyds Rep 509 at 510 where it was held that:

> "If it appeared that a debt was due and owing and there was a danger that the debtor might dispose of his assets so as to defeat it before judgment, the Court had jurisdiction in a proper case to grant an interlocutory injunction."

This is what has come to be known as the Mareva injunction. As we pointed out, there is no provision under English rules of practice to order attachment before judgment. The observations made in *Lister v Stubbs* [1890] 45 ChD 4, suggest that the policy reason for this, is that "the Court has no jurisdiction to protect a creditor before he gets judgment". The granting of the Mareva injunction is of recent vintage and is a modern judicial innovation designed to meet a felt need where defendants beyond the jurisdiction who are sued in England, and have assets there, can quickly put those assets out of the reach of judgment creditors in England.

But that remedy is *in personam* and is directed at the defendant to restrain him from removing his assets out of English court before judgment. It is not a right *in rem* authorising the seizure of the defendant's assets before his liability was established in a judgment. Had the respondents in the instant case entertained a genuine and well-grounded fear that the appellant was minded of removing or disposing of his assets to defeat a possible execution, our procedural rules are not without a remedy they can usefully invoke. They could have availed themselves of Order XXXIX and sought an interim injunction to restrain him from alienating, removing or otherwise disposing of his assets before the delivery of judgment.

In the comparatively recent case of *Ndungu v Mbugua and another* civil appeal number 112 of 1984, where we delivered judgment on 12 February 1987, the High Court as here, ordered attachment before judgment. This resulted in unreasonably large auctioneer's storage charges and other kindred expenses. This Court accepted counsel's criticism of the order of attachment and *inter alia* said:

> "We agree with the appellant that the learned Judge did not explore the facts and law sufficiently widely which caused him to misdirect himself on the principles involved and that he failed to see that the plaintiff/respondent acted unreasonably."

Every word of that passage applies to this case save that in attaching the appellant's stock-in-trade and closing down his business before judgment, the respondents acted not only unreasonably, but also maliciously. We think the order of attachment made by Tunoi J must go as indeed the one made by Masime J went.

As we said, the learned Judge, Tunoi J, also ordered the appellant to apply the brokers' charges. That order was obviously predicated on the fact that the order of attachment was properly made. In our opinion, that order was maliciously sought by the respondents and was wrongly made. Elementary justice requires that the respondents who procured the making of this order, which greatly damnified the appellant, must foot the bill. And we suspect it would be colossal, at least judging from the bill presented by the auctioneer for the first attachment which Tunoi J set aside as having been made in error. For an attachment that covered a period of 13 days, that is, 15 to 28 August 1987, the auctioneer's presented a bill of KShs 46 815.

The present attachment was ordered on 16 September 1987, and is still continuing. If it is revoked on the delivery of this judgment say, on 16 October 1988, after a 13-month period, and assuming the bills are computed on the same basis, the bill should work at something, like KShs 1 196 021. It hardly makes sense for a defendant to be saddled with the payment of over one million shillings security for the payment of the sum of KShs 206 400 alleged debt.

In the *Ndunga* case referred to above, the claim was for KShs 44 000 and this was secured by attachment before judgment, and then, due to a prolonged delay, the Court brokers fees amount to no less than KShs 812 945. This Court thought there must be something seriously wrong and observed:

> "There is another principle with regard to costs which also applies to charges and that it is that the person taking legal action must see that using court process is not taken to the extent of punishment, in the sense that unnecessary charges are heaped upon the other side. If they are, the Court has a discretion to grant relief to prevent an abuse of its own process."

In *Meru Farmers Co-operative Union v Suleiman* (2) [1966] EA 442, Sir Charles Newbold P gave expression to his view on this matter in like vein. He said:

> "The Court should always be extremely anxious to ensure that the due administration of justice does not cause unnecessary expenses. If any course of action which either litigant chooses to adopt would result in unnecessary expense, the Court should be zealous to ensure that a course of action is not open. A court should, above all, be most careful to ensure that it should not itself be used as a tool to incur unnecessary expenses where it is satisfied that such expense is unnecessary."

There is elementary wisdom in these observations. Had the respondent prayed in aid the equitable remedy of interim injunction to restrain the appellant from either absconding or disposing of his assets, assuming these were believed to be the case, the cost to either party would have been within limits permissible by reason and common sense.

If the result of this case teaches anything, it is that courts should be extremely slow in ordering attachment of a defendant's property before judgment, not only because it is hardly consistent with justice to exact "punishment" before the defendant's liability to execution is established, but also because, in view of the tardy and time-consuming process of the Courts, the rights and liabilities of the parties may not be determined for a long time, possibly years.

Our conclusion is that the attachments before judgment made by Tunoi J on 16 September 1987 of the appellant's assets was ill-inspired and was made in error and should be set aside, and that the respondents must pay the broker's charges and fees. We would make the same order in respect of the brokers' charges and fees incurred pursuant to the pre-judgment attachment made on 15 August 1987, by Masime J (as he then was).

We would order the respondent to pay the appellant the taxed costs of these proceedings here and below. We would leave intact the appellant's right to compensation from the respondents for any damages he may have suffered for these manifestly wrongful attachments.

For the appellant:
Information not available

For the respondent:
Information not available

Karura v Republic
[1986–1989] 1 EA 246 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	14 January 1988
Case Number:	170/84
Before:	Nyarangi, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Accused's defence – No reference to the defence in the judgment – Whether the failure affects the judgment.

[2] Circumstantial evidence – Bloodstains found on the appellant's shirt – Burden and standard of proof.

[3] Confession – Retracted and repudiated confession – Need for independent corroboration – Statement recorded by the investigating officer.

[4] Criminal law – Murder – Trial with the aid of assessors – Failure by the Judge to make any reference to their participation – Whether fatal.

[5] Duty of the Court of Appeal on a first appeal.

Editor's Summary

The appellant was charged with three others with murder contrary to section 203 of the Penal Code. His co-defendants were found not guilty and were discharged but the appellant alone was convicted and sentenced to death. He appealed to the Court of Appeal against both conviction and sentence on the grounds that the Judge excluded all reference to the participation of the assessors; that his retracted and repudiated statement of confession was received wrongly in evidence in that it had been recorded by the investigating officer and in any event lacked independent corroboration, and that the

Judge’s failure to consider his defence was prejudicial to him.

Held – The omission by the trial Judge to record detailed participation of the assessors in the trial, though irregular, did not cause any miscarriage of justice to

the appellant and was cured by section 382 of the Criminal Procedure Code. A Judge should always make a careful record showing the full participation of assessors in a trial.

An investigating officer should not record a confession statement by an accused person to avoid any charges of tailoring evidence to support the prosecution case and allegations of use of force upon the accused to extract the confession. The normal practice is for the statement to be recorded by another officer who would later produce it in evidence.

The retracted and repudiated confession of the appellant required independent corroboration which in this case could not be provided by the circumstantial evidence of bloodstains alleged to have been found on the appellant's shirt and which was in several respects conflicting.

The failure by the trial Judge to consider the case for the defence constituted a breach of the rules of natural justice and, therefore, sufficient to unsettle the judgment (*Okale v Republic* [1965] EA 555, followed).

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Okale v Republic [1965] EA 555 – **F**

R v Koske (1949) 16 EACA 153

Tuwamoi v Uganda [1967] EA 84

Judgment

Nyarangi, Platt and Gachuhi JJA: The appellant was charged with three others for the offence of murder contrary to section 203 as read with section 204 of the Penal Code. The three others were found not guilty and were discharged. The appellant was convicted and sentenced to death. He now appeals to this Court against the conviction and sentence.

One of the grounds is that the Judge erred in conducting the case without complying with section 262 of the Criminal Procedure Code. The attack was directed to the fact that much of what would be expected on the record was not there. The selection of the assessors and the recording of their presence in any session is not recorded. The counsel argued that if assessors did any wrong in the case it should be resolved in favour of the appellant. Nothing of such wrong was brought out in the course of the hearing of the appeal.

It is true that there are omissions in the record. However, the assessors could not have been absent or failed to participate in the full trial and yet be able to give their verdict at the conclusion of the hearing. They were selected and were present from the beginning. As the trial proceeded, there were references to the assessors as being recalled though there was no record of the time and at what stage of the proceeding they were requested to leave the Court.

Whether or not the assessors were not recorded as having questioned the witnesses, it is not mandatory that they must do so. As it is not stated that they

were forbidden to cross-examine the witness. This irregularity, if it be such, is curable, as the learned State Counsel submitted under section 382 of the Criminal Procedure Code. We are of the view that the omissions in the record of the proceedings did not cause any miscarriage of justice or prejudice to the appellant, but a more careful record is required showing their full participation in the trial.

The main ground in this appeal is on the confession statement which was retracted and repudiated and the corroborative evidence to make it admissible in evidence. The statement was taken by Inspector Mugambi (PW21) who was also the investigating officer. Counsel for the appellant submits that the Inspector, being the investigator, could have tailored the appellant's statement so as to suit the guilt of the appellant. This statement was retracted and repudiated by the appellant who stated that he was tortured by three police officers and forced to sign it. He gave a detailed account of what transpired. The statement was admitted after a trial within a trial.

We see the danger of the statement being recorded by the investigating officers. The practice has always been that the statement is recorded by another officer, who later would produce it in his evidence, but not the investigating officer in order to avoid this sort of allegation. The matter does not end there. Inspector Mugambi in his evidence stated that he collected clothes worn by all the accused and forwarded them to the government analyst. These clothes were labelled. There is no evidence showing where the appellant's clothes were and how they were collected. No evidence as to how they were packed, how they were received from the government analyst and in whose possession they were until they were produced as exhibits. Inspector Mugambi's evidence that he collected clothes and took them to government analyst is not sufficient. They were not identified as such to the government analyst (PW11). He stated that he received the exhibits from PC David Mutuku Mutie and IP Henry Mugambi. PC David Mutuku Mutie did not give evidence. Which of these exhibits were delivered to the government analyst by Inspector Mugambi and which were delivered by PC Mutie?

This chain of evidence is vital. The evidence before the Court is that the deceased's clothes were bloodstained and were taken together with the deceased's clothes to the government analyst for blood grouping. Without this chain of evidence, it is not possible to say whether or not the appellant's clothes were or were not at one stage in contact with the deceased's bloodstained clothes. There is no evidence that the appellant's shirt which had bloodstain drops was identified in court. It is not certain whether it is the one referred to by Inspector Mugambi. The shirt remains unidentified, and that destroys the basis of the judgment.

The trial Judge convicted the appellant on the confession statement as corroborated by the government analyst's report. Following *Tuwamoi v Uganda* [1967] EA 84 the learned trial Judge was aware of the standard of proof required and in particular that the confession statement must be corroborated in some material particular or by independent evidence acceptable to the Court. In search for corroboration the learned Judge in his judgment stated this:

> "I find both corroboration, and independent evidence, in the evidence given by PW11 Wilson Kibet arap Sogomo. He was the government chemist who gave evidence that the shirt which the first accused was wearing on the night of the 21 and 22 January had two blood-stains at the back. They were stains of human blood, and

> belonged to group A. The first accused's blood group is 'O'. So that the stains on the first accused's shirt were not stains from his own bleeding. How then, one is entitled to ask does a person have someone else's blood-stains on the back of his shirt?"

The government analyst had stated in his report that:

> "The shirt of the first accused, Joseph Njaramba had two small group A human blood-stains on the back lower area".

This is a fact presented to the government analyst as he found it but the identification was hearsay. The government analyst could not give conclusive opinion how bloodstains could have been at the back lower area. That was for the prosecution to prove. The bloodstain could have come from a person other than the deceased. He might have but did not state, how long the bloodstain had been on the shirt of the accused number 1 (the appellant).

The position of these two small bloodstains ought to have been carefully examined and analysed. The government analyst described the shirt as a blue long sleeved shirt. The bloodstains are at the back lower area. This lower back area is not described properly. It is difficult to understand how bloodstains could have been at the back and not in front if the appellant hacked the deceased's head with a *panga*. There are no bloodstains in the front of the shirt, or the sleeves or shoes, or trousers. Is there a possibility of the appellant's supposed shirt coming into contact with other blood, or the deceased's bloodstained clothes so that two small bloodstains could have appeared on the back lower area of the appellant's shirt? Couldn't that be a possibility? This might have been cleared if the chain of evidence had been given that the contaminated clothes were packed and handled with due care to avoid contamination. But in the Court the prosecution did not put forward any reason why the deceased's blood was on the back of the appellant's shirt if indeed it was his shirt.

Bloodstains are circumstantial evidence. In Alan Moritx *Handbook of Legal Medicine* (3 ed) at 108 it is stated:

> "The typing of blood derived from material that is putrid, contaminated, dried or otherwise denatured is [of] difficult or impossible and should only be attempted by persons of great expertness and experience."

This does not underrate the competency of the government analyst who has ten years' experience. It only shows how difficult it is to come to the conclusion which conclusion might be negatived by other factors. The evidence to prove circumstantial evidence is enunciated in *R v Kipkering Koske* (1949) 16 EACA 135 at 136:

> "In order to justify the inference of guilt, the inculpatory facts must be incompatible with the innocence of the accused, and incapable of explanation upon any other reasonable hypothesis than that of his guilt. The burden of proving facts which justify the drawing of this inference from the facts to the exclusion of any reasonable hypothesis of innocence is on the prosecution and always remains with the prosecution. It is a burden which never shifts to the party accused."

If the evidence on bloodstains cannot afford corroboration of the retracted confession statement, then the statement cannot be acted upon. The trial Judge relied on the bloodstains to corroborate the retracted confession statement in order to convict and on no other evidence.

The trial Judge did not consider the case for the defence. A detailed statement by the appellant was not considered. No reference is made of it in the judgment. The trial Judge ought to have considered it. Failure to consider the defence is contrary to natural justice and unsettles the judgment (*Okethi Okale and others v Republic* [1965] EA 555).

This is a first appeal. This Court has to consider the evidence to make its own conclusion. The whole case relies on the bloodstains. The trial Judge asked himself a question: "How then, one is entitled to ask, does a person have someone else's blood-stains on the back of his shirt?"

This Court might also ask a question:

> "Why was there no blood-stain in the front or the sleeves of the appellant's shirt? Is there a possibility of the appellant's shirt being contaminated with the deceased's blood-stained clothes or that their origin was not the blood of the deceased?"

We think that the second posed question is a possibility in the absence of evidence to the contrary. If that may be so, does it afford corroboration that the appellant took part in the killing of the deceased? The link in the evidence leading to the bloodstain is missing and to rely on the bloodstain as corroborative evidence which evidence was not shown to have proved the guilt of the appellant would be unsafe. This is a capital offence and the accused should be sent to the gallows on cogent evidence not tainted with unconnected evidence. Two of the assessors who found the appellant guilty relied on the evidence of bloodstains but one did not. The learned State Counsel also relied on the finding of the trial Judge on bloodstain.

We have evaluated the evidence ourselves and due to our view of unconnected evidence of the exhibits and other irregularities we find it unsafe to allow the conviction to stand. We allow the appeal, set aside the conviction and sentence meted out by the High Court. We order the appellant to be released unless held for other lawful cause.

For the appellant:
Githu Muigai

For the Republic:
S Chana, State Counsel

Katana and another v Republic
[1986–1989] 1 EA 250 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	22 January 1986
Case Number:	202 and 118/85
Before:	Kneller, Hancox JJA and Platt AJA
Sourced by:	LawAfrica

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[1] Criminal law – Theft – Charge of stealing money – Charge sheet giving cash and cheque as one figure – Whether cash includes cheque.

[2] Evidence – Criminal law – Stealing by a person employed in the Public Service – Money stolen used to loan to co-employees – Co-employees testify against appellants – Court failing to condition itself on the evidence – Whether evidence admissible.

Editor's Summary

The appellants were charged in the Magistrate's Court with separate offences of stealing by a person employed in the public service. The money, which the appellants were said to have stolen, was used to give loans to fellow employees.

Some of the witnesses who testified against, the appellants were the receipts of the loans. The evidence of the appellants' Superior at work stated an amount of money that was in the charge sheet. The appellants' were convicted and sentenced to 15 months' imprisonment. Their appeal to the High Court was dismissed and they moved to the Court of Appeal. There was contention that the charge sheet was bad because it lumped cash and cheques in one figure so that theft of cash could not be theft of cheques.

Held – The members of staff who were loaned the money by the appellants were accomplices; their testimony should have been tested in the light of the other evidence. This was not done and their evidence ought to be disregarded.

A charge of stealing money could embrace both cash and cheque as cash. A cheque was money (*Ahmed v Reg* [1957] EA 386 followed; *Shiv Kumar Sofat v Reginam* [1957] EA 840 applied). The two courts below arrived at the correct findings of facts and law and the convictions did not occasion a miscarriage of justice.

Appeal was dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Ahmed v Reg [1957] EA 386 – **F**

Lakhani v Reginam [1962] EA 644 (K)

Shiv Kumar Sofat v Reginam [1957] EA 840 – **AP**

Judgment

Kneller, Hancox JJA and Platt AJA: Francis Mitingi Katana (Katana) and Wilson Otengo Kavai (Kavai) were convicted of separate charges of the offence of stealing by a person employed in the public service contrary to section 280 of the Penal Code and sentenced to 15 months' imprisonment on 28 September 1984 by an Acting Resident Magistrate in Mombasa.

Their separate appeals were admitted to hearing on 23 November that year, consolidated on 19 April 1985, heard on 17 May and dismissed a fortnight later by two Judges of the High Court (Bhandari and Aragon JJ) in Mombasa.

Katana and Kavai have come to this Court with various grounds (and Kavai with supplementary grounds) of appeal. Summarised briefly, they amount to submissions that each is innocent, that Omollo, a higher clerical officer working with them was the culprit, that the evidence against them did not reveal how they were supposed to have stolen so much money when they were collecting crossed cheques and to a much lesser extent cash. The first appellant in this Court, Katana, though he was unrepresented at the trial, added that he was not a lawyer, and that we should not take it against him if his argument was not as erudite as if he were now represented (though he managed to refer to the decision in *Shiv Kumar Sofat v Reginam* [1957] EA 840). The second appellant, Kavai, added, in his supplementary grounds of appeal, that he was at the time

on probation (meaning thereby that he had not yet been confirmed in his appointment) and was therefore not yet fully conversant with the duties of his job.

The particulars of the offences alleged each was a judicial department officer who between 1 January and 1 March 1984 stole KShs 62 261 and KShs 42 236 respectively belonging to the government which came into his possession by virtue of his employment.

It was proved and admitted that between those dates Katana was a clerical officer who dealt with the collection of cash paid in the civil section of the Resident Magistrate's Courts in Mombasa and Kavai the criminal section and what they collected was the property of the government and it came into their possession because of their employment.

They denied in their defences at their trial that they stole any sum while they were doing this work.

The evidence for and against Katana and Kavai may be divided into that of two sets of witnesses and why that should be so will be revealed later in this judgment.

In the first set are Gachirigua, the accounts assistant in the law courts, who was away at Maseno on a course until February, Rose Ochwada, the accountant, and two police inspectors called Huko and Mbaika. And what marks them off from the second set is that none is said to have borrowed cash from either appellant.

Those in the second set admit they did so for their needs, usually in times of trouble, and Omollo also from time to time when he found he was short of his required total while he acted as chief cashier when Gachirigua was away.

Gachirigua outlined the procedure in the Courts for collecting and accounting for cash and cheques. Katana and Kavai accepted the issued receipts out of the receipt books for fines, fees, deposit and in the afternoon brought the lot to Gachirigua or his representative. He added up the figures on the duplicate receipts and then counted the cash and cheques and the two totals should balance. There was a shortfall of KShs 62 261 for Katana and KShs 42 236 for Kavai. He asked them for an explanation.

They said they had lent it or some of it to themselves and to other members of the staff. Each at Gachirigua's suggestion produced IOUs for those sums written by himself and signed by the recipients of the loans. Neither was permitted to lend that money to anyone. Omollo told him he had used some of Katana's and Kavai's collections to make up shortages in his collections. Gachirigua told the Senior Resident Magistrate. He began recovering the loans from the end of February 1984 by deductions from the recipient's salaries save for that of Omollo because his is paid into his bank account.

Rose Ochwada checked the books kept by Katana and Kavai for that period and the cash and cheques accounted for in the duplicate receipts and she reached the same figures as Gachirigua.

The Senior Resident Magistrate called in the Chief Inspector Huko who obtained a written and signed acknowledgement from each appellant of what he could not account for and then arrested and charged them. Mbaika charged and cautioned Kavai who elected to answer it but when Kavai's advocate said the record of it was inaccurate the Magistrate declared the case would be determined on other evidence instead of holding a trial within a trial and the prosecutor then closed the case for the prosecution.

The evidence of the second group which was that of Omollo, the acting chief cashier, Kiambaa, subcashier in the Resident Magistrate's civil registry, Muthama, a clerk in the accounts section, was that each, in common with others, "borrowed" large sums of money from one or both appellants to enable them to surmount various personal or family problems and, in Omollo's case, to make good the shortages in his accounts as chief cashier. None of them, it would seem, asked the appellants the source of each loan.

Katana's sworn defence was that he lent these sums to Omollo and other members of the staff on the orders of Omollo and each was supported by a little written note from Omollo authorising the loan. He knew it was wrong to do this. He had no income apart from his salary so the loans came from the cash he collected on behalf and for government. He borrowed none for himself.

Katana's unsworn defence was that he was not the only person collecting cash in the Resident Magistrate's criminal section during the period in question and until Gachirigua returned from his course there were no complaints of shortages in what he collected. He never stole a cent of all he was supposed to hand over to Omollo. Neither appellant called any witness. Each was disbelieved by the Magistrate and the Judges who, in turn, on a consideration of all the evidence, believed all the witnesses for the Republic. There were concurrent findings of fact by them that each appellant was at the time employed in the public service and during the period he stole the property of his employer, the Government. He used his employer's money at his own will, although he intended to repay it later which is fraudulent and theft (section 268 of the Penal Code).

Omollo was a *particeps criminis* of the first order. The members of the staff who were loaned these sums were accomplices. The Magistrate and the Judges were aware of this but did not warn themselves that the testimony of those in the second set of witnesses had to be tested searchingly to see if what they said, taken together will all the other evidence, was true, and if there was any corroboration of it in the rest of the evidence. We cannot tell what view either of these courts would have taken if they had carried out that exercise.

But discarding the testimony of those members of the staff, as we must, there remains that of the accountants and the police officers together with the defences of each appellant and in it the following matters are to be considered.

The loans are proved and admitted so far as Katana is concerned. The orders of Omollo are not a defence known in law.

The loans are denied by Kavai but proved beyond any reasonable doubt according to the concurrent findings of fact.

Gachirigua on his return from his course at Maseno discovered these defalcations and in the proper performance of his duties asked each appellant to account for them. He gave each a chance to show he was innocent. Their explanations were given in his evidence which each court below accepted as a true account of their replies. Although Gachirigua was in a position of authority so far as each appellant was concerned there was no call for him to caution them until he believed each had committed a criminal offence (*Lakhani v Reginam* [1962] EA 644 (K)).

The evidence about what each did thereafter in the way of writing out what he had loaned to various colleagues and obtaining their signature to it was, no doubt, just what had to be done after each appellant admitted making these

advances in order to recover them. We do not consider that the conditions and circumstances when a superior in a person's employment makes enquiries as to shortages necessarily approximates to those obtaining in a police station or during a police investigation, which is what seems to have led the former Supreme Court of Appeal into making its decision in *Lakhani*'s case. We do not think that evidence was inadmissible because the appellants had not at that stage been cautioned.

On the other hand the replies of each appellant to Chief Inspector Huko before he had cautioned them were inadmissible because, having been called in by the Senior Resident Magistrate and told what Gachirigua had discovered, he had reason to believe each had committed an offence.

Mr *Metho* in making his submissions to us, on behalf of the Republic, seemed to have some difficulty in submitting that the charge as laid cover both cash and cheques, but it is clear to us that this case was brought as that which is usually understood as a "general deficiency" charge which would cover both. In *Ahmed v Reg* [1957] EA 386 at 388, this Court's predecessor clearly held that the "sum of KShs 3 000 in that charge embraced both a cheque and cash in view of the definition of money in section 5 (now section 4) of the Penal Code". The words "the sum of" add nothing to "shillings" followed by the amount. Accordingly, in our opinion, the concurrent findings of fact were correct according to the evidence of the general deficiencies against each appellant given by Mr Gachirigua, and it supported the charges as laid.

So the appellant's complaints that theft of cash should not include theft of cheques, blank or filled in, have no force because the definition of money covers both (see section 4 of the Penal Code and *Shiv Kumar Sofat v Reginam* [1957] EA 840 (K)).

Nevertheless, despite these lapses the Magistrate and the learned Judges were right in their conclusions on the facts and the laws. These convictions are safe. We have no jurisdiction to deal with either appeal against the sentences which were legal.

The result is that we order each appeal to the dismissed.

For the appellant:
Information not available

For the respondent:
Metho

Kenya National Assurance Co Ltd v Kimani and another
[1986–1989] 1 EA 254 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	4 November 1987
Case Number:	42/84
Before:	Nyarangi, Platt and Apaloo JJA
Sourced by:	LawAfrica

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[1] Insurance – Waiver of breach – Estoppel by conduct – Whether insurance company bound to indemnify insured under motor policy for total loss of lorry – Payment byinsured to insurer of

“excess” – Subsequent discovery by insurer that vehicle not maintained in roadworthy condition – Repudiation of liability by insurer for breach of condition of policy

by insured – Whether acceptance of and failure to refund excess constituted a waiver of the breach and/or estoppel by conduct upon which the insureds acted to their detriment – Whether arbitrator's failure so to hold constituted misconduct and justified setting aside the award – Section 24(2) – Arbitration Act (Chapter 49) – Rule 6 – Arbitration Rules – Section 10(1) and (5) – Insurance (Motor Vehicles Third Party Risks) Act (Chapter 405).

Editor's Summary

On 26 June 1976 the respondent's lorry was involved in an accident in Kirinyaga Road, Nairobi, and became a total loss. Damage to two shops and personal injuries to one person was also caused. They accordingly claimed indemnification by the appellants under their policy of insurance. Before making any payment the appellants required the respondents to pay the excess of KShs 12 000 payable by them under the policy. The respondents paid this sum on 28 June 1976, but the appellants then discovered that the lorry had not been maintained in an efficient condition, and, acting under clause 3 of the policy, purported to repudiate liability on the grounds of breach of a material condition, on 1 October 1976.

The claim was referred to an arbitrator under the policy and on 5 June 1981 he found that the acceptance of the excess of KShs 12 000 when the claim was filed did not constitute a waiver of the breach by the appellants.

The respondents challenged this finding in the High Court, and it was common ground that if the arbitrator's finding as regards waiver was erroneous in law it amounted to misconduct entitling them to have the award set aside under section 24 of that Act.

The Judge held that the appellants' failure to refund the KShs 12 000 when they learned of the breach, constituted a waiver of the condition and of the breach and set aside the award. The appellants appealed, contending, *inter alia*, that the acceptance and or retention for the "excess" did not evince an affirmation of the policy on the part of the insurers.

Held – Waiver of the breach of a condition in an insurance contract can only exist if it amounts to an estoppel by conduct on the part of the insurers.

The facts did not support an intention on the part of the insurers to affirm the contract in view of their express repudiation of it on 1 October 1976, and hence they were not estopped by their conduct from relying on their contractual rights.

There was no evidence that the supposed conduct misled the respondents into believing that the appellants would not insist on their rights under the contract – in view of the express repudiation (*Pioneer General Assurance Society v Mukasa* [1974] EA 165 distinguished).

Neither the acceptance nor the retention of the KShs 12 000 excess by the appellants could properly be regarded as conduct on their part exclusively referable to an intention to keep the contract of insurance alive, for they had to meet claims by third parties irrespective of any right of repudiation under section 10(1) of the Motor Vehicle Third Party Risks Act, and they were at liberty to claim recompense from the insured for those outstanding claims.

Per Apaloo JA – There was a material difference between the terms "premium" and "excess". The former is vital to the existence of a binding contract as the consideration moving from one party to another, whereas "excess" is the

insured's agreed contribution to the loss, and its non-payment did not avoid or impair the legal contract of insurance.

It was not entirely clear whether the Judge's decision would have been the same had he appreciated the juristic differences between the two.

Appeal allowed. Award of arbitrator restored.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Moledina and Co v Hoima Ginners Ltd [1967] EA 645

Pioneer General Assurance Society v Mukasa [1974] EA 165 – **D**

Sohan Lal v East African Builders Merchants [1951] 18 EACA 50

South British Insurance Co Ltd v Samiullah [1967] 2 EA 659

Tame v Zagoritis [1960] EA 370

United Kingdom

Absalom (FR) Ltd v Great Western (London) Garden Village Society [1933] AC 395

Champsey Bhara and Co v Balloo Spinning and Weaving Co Ltd [1923] AC 480

Conn v Westminister Motor Insurance Association [1966] 1 Lloyd's Rep 407

George and Goldsmiths v General Burglary Insurance Associates, Re [1899] 1 QBD 595

Hemmings v Sceptre Life Association Ltd [1905] 1 Ch 365

Hodgkinson v Fernie (1887) 140 ER 712

Kelantan Government v Duff Development Co Ltd [1923] AC 395

King and Duveen, Re [1913] 2 KB 32

Landauer v Asser [1905] 2 KB 184

Lickiss v Milestone Motor Policies at Lloyds [1966] 2 All ER 972

Plasticmoda Societa Per Anioni v Davidsons (Manchester) [1952] 1 Lloyd's Rep 527

Judgment

Nyarangi JA: This appeal from the order of the High Court Judge (Sachdeva J as he then was) raises questions of importance in insurance matters. The Judge held that the appellant company had waived their right to repudiate liability by retaining the excess, that retention of the excess after discovery of a breach of the policy by the respondent insurers constituted an intention to affirm the policy and the insured were entitled to rely on the representation arising from the retention of the excess.

The chronology is as follows:

A policy of a motor vehicle registration mark KNN 511 was issued by the appellant company. The policy provided *inter alia* that the appellant as insurer

would indemnify the respondents as the insured against loss or damage to the motor vehicle, its accessories and parts and also against claims by third parties for personal injuries arising out of accidents involving the motor vehicle. Condition three of the policy stated that the insured was obliged to safeguard the motor vehicle from loss or damage and to maintain the vehicle in efficient condition. By clause 10 it was stipulated that due observance and fulfilment of the terms of the policy should be a condition precedent to any liability of the appellant.

On 26 June 1976 the motor vehicle was involved in an accident along Kirinyaga Road, Nairobi when it crashed into a shop owned by two Patels, PM Patel and VM Patel, and occupied by Messrs Kenya Spares Limited. As a result of the accident, the two Patels and the occupants suffered loss and damage and one Mukinya sustained personal injuries. The motor vehicle was extensively damaged and had to be written off. Differences between the appellant and the respondent arose after the appellant repudiated liability to indemnify the respondent. So, as per clause 9 of the policy, the differences had to be and were submitted to AB Shah Esq, advocate. The three differences submitted were:

> "(i) Did the insured comply with the conditions of the contract of insurance in terms of clause 3?
>
> (ii) Is the insured in breach of any of the stipulated conditions?
>
> (iii) Is the insured entitled to an indemnity under the contract of insurance?"

The parties undertook to abide, observe, perform and obey the award to be made and published. In addition, the parties said they would do everything necessary to enable the sole arbitrator to make his award. If any party wilfully or wrongfully did any act to delay or prevent the making of an award, such a party would pay to the other such reasonable costs as the arbitrator would declare in writing. In case a party failed to attend before the arbitrator following reasonable notice, the arbitrator would proceed *ex parte*. Lastly, the parties gave full power to the arbitrator to determine the question of costs including costs to the parties and how the costs etc would be borne. The arbitrator was expected to make his award in writing within one month of the service of the reference on him.

The arbitrator made his award on 5 June 1981. His findings could be summarised as follows: acceptance of the excess at the time the claim was filed did not waive the breach; the question of repayment of excess by the insurer was not considered and the respondent did not demand repayment; the facts as found were that the insurer accepted the excess unaware of the breach of condition and hence the insurer did not waive the alleged breaches, not even by failure to refund the excess; the motor vehicle was not maintained properly; it was maintained in an inefficient condition, and the inefficient condition was on the balance of probabilities the cause of the accident.

The arbitrator proceeded to decide that the insurer is not bound to indemnify the insured respondent in respect of claims arising out of the accident. If the insurer appellant were called upon to satisfy claims made against it pursuant to its statutory liability the insurer was at liberty to claim recompense from the respondent, subject to the insurer accounting for the sum of KShs 12 000 paid to it as the excess.

The next development was a chamber summons taken out on behalf of the respondents under section 24 of the Arbitration Act and rules 4 and 6 of the Arbitration Rules for an order that the award made and filed be set aside and that costs of the application be provided for.

The ruling of the High Court setting aside the award with costs is challenged on several grounds. Mr *Kinyanjui* first referred to ground 6 of the amended memorandum of appeal and appeared to concede that the Judge had jurisdiction to hear the application. Turning to the original memorandum of appeal, Mr *Kinyanjui* argued grounds 2 and 3 together and contended that, notwithstanding that the breach of condition was discovered after the receipt of the excess by the appellant and, although the excess was not returned, the appellant could not be held to have waived its rights under the terms of the policy. Counsel argued that excess is the first amount payable for which the appellant does not indemnify the respondents. It is not a premium which is a consideration. The second question which is raised on behalf of the appellant as contained in grounds 1, 4 and 5 of the original memorandum is whether there was sufficient evidence to constitute the requisite ingredients of waiver. Counsel submitted that there was no representation by conduct on the part of the appellant for the respondents to do any acts, no evidence that the appellant accepted liability under the policy and that waiver is contractual. In the view of Mr *Kinyanjui* there is no duty in law to refund the excess.

Mr *Mitra*'s submissions on behalf of the insured respondents can be briefly summarised. There was no distinct issue of law referred to the arbitrator; no issue of waiver was referred and so if there is an error of law on waiver, the award has to be set aside.

Counsel urged that money paid under the contract would estop the receiver, that no distinction ought to be made between premium and excess. In Mr *Mitra*'s view, excess is additional premium for keeping alive a policy. Nor could any distinction be made between acceptance and retention of the excess. When the excess was paid, the appellant had no knowledge about the motor vehicle. By October 1976 the appellant had full knowledge and by accepting money after the knowledge, the appellant had committed a breach amounting to a repudiation. Mr *Mitra* submitted that there was implied representation because the respondents maintained silence and did not ask for the money paid as excess. That means that the respondents understood the policy to be alive.

The High Court had jurisdiction to deal with the application before it and so consider if there was an error of law on the face of the award arising from the arbitrator's decision on the issue of waiver (*Rashid Moledina and Co v Hoima Ginners Ltd* [1967] EA 645).

Stripped of complications, the question I have to determine, it seems to me, is whether the appellant waived their rights under the policy by accepting and retaining the first amount payable by the respondents.

The material motor vehicle was held not to have been maintained in an inefficient condition, meaning in roadworthy condition (*Conn v Westminister Motor Insurance Association* [1966] 1 Lloyd's Rep 407).

It is appropriate at this stage to deal with the meaning of the terms "premium" and "excess". The amount of premium is a term of the contract between the parties and it depends on the scope of the policy on the risk involved (*Re George and Goldsmiths v General Burglary Insurance Associates* [1899] 1 QBD 595). In practice, the majority of insurance policies provide that payment of premium is a condition precedent to the insurer's liability.

"Excess" is the amount for which the insured insures himself and which under this particular policy had to be paid, as is often the case, at the time the insured requested for indemnity under the policy. The appellant insurer is relieved from liability for the first KShs 12 000 and if the appellant paid claims for damages brought against the respondents, the appellant company would be entitled to recover from the respondents. Here, there is evidence of third party claims made against the appellant. This would explain the arbitrator's finding that the appellant is at liberty to claim recompense from the respondents if the appellant is called upon to meet claims made against it pursuant to statutory liability. Clearly that is why the appellant has not refunded to the respondents the sum of the excess or any part of it. What in my view now matters is that the respondents did not efficiently maintain the vehicle, which is a breach under the policy, and that the appellant has been paid the amount of the excess out of which to meet third party claims. Now that the appellant is possessed of the full knowledge of the breach, he could not reasonably be expected to refund the amount of the excess already paid before the settlement of the outstanding claim. In my judgment it does not matter whether the excess was paid before the appellant was in possession of all the facts about the motor vehicle. The naked fact is that the excess had to be paid as a condition precedent to any liability of the insurer to make payment under the policy.

Mr *Mitra* relied on paragraph 675, *Chitty on Contracts* (21ed) Volume 2 which is headed "waiver of breach of condition" and states as follows:

> "675. Waiver of breach of condition. Acceptance by the insurers of premiums after discovery of the breach of a condition of the policy by the assured evinces an election on their part to affirm the policy (*r*). If such a premium is accepted by their agent, and remitted to them with information of the breach, they must retain it at once if they wish to rescind the policy on the ground of breach of condition(s). So, generally, where the defendants, with full knowledge of the facts (*t*), by their acts or conduct lead the plaintiff reasonably to suppose that they do not intend to treat the contract as at an end for the future, on account of his breach of condition, they are estopped from setting up the breach as a defence (*u*). Thus where agents had accepted life insurance premiums and paid them to the company with knowledge that the assured had broken a condition (*a*), (*b*) and where in a motor insurance case a clerk of the insurers had notice of such a breach and the insurers had subsequently paid a claim under the policy (*c*), the insurers have been held to be estopped from setting up the breach of condition as a defence."

I can say at once that the paragraph is concerned mainly with premium and not excess and so does not support the respondent' case.

I shall return to this passage when I tackle the key issue whether the appellants by their acts or conduct led the respondents to suppose that they do not intend to treat the contract as at an end for the future because of the respondent's breach of a condition.

The acceptance and retention of the excess does not suggest that the appellants had overlooked the observance of the terms of the policy. There is no evidence that, as a result of the retention of the excess, the respondents were misled into acting to their detriment. The appellant did not make any statement or conduct itself with regard to the breach committed by the respondents by not maintaining the motor vehicle in an efficient condition with an intention that the respondents should act upon it. In other words, there is no question here of estoppel by representation.

The point made by Mr *Mitra* about waiver is with respect somewhat audacious. Waiver is an agreement to forego or not to assert a right. In this action, the appellant satisfied the arbitrator that the respondents had not fulfilled a term of the contract. Besides, the appellant wrote to the respondents to repudiate, the insurers' claim to be indemnified, in those circumstances, the point raised on waiver is a bad one.

In *Pioneer General Assurance Society v Mukasa* [1974] EA 165, the respondent was misled by a statement made to her. That has not happened here. The decisions in *South British Insurance Co Ltd v Samiullah* [1967] EA 659 concerned different facts and therefore do not assist here.

It follows from what I have set out that I would allow the appeal, and set aside the judgment and decree of the High Court with costs here and below. As Platt and Apaloo JJA agree, it is so ordered.

Platt JA: I have had the privilege of studying the judgments in draft of Nyarangi and Apaloo JJA and agree in the result proposed by Nyarangi JA. Those judgments set out the history of this dispute fully, and I need only refer to two aspects of the case. The first is to re-consider when the Courts have jurisdiction to interfere with an award where an error lies on the fact of an award. The second is to add a further explanation of the effect of paying an excess, which may arise from the terms of a contract of insurance.

Jurisdiction

It is often thought that the decision in *Rashid Moledina and Co v Hoima Ginners Ltd* [1967] EA 645 is the culmination of several cases such as *Sohan Lal v East African Builders' Merchants* (1951) 18 EACA 50 and *Tame v Zagoritis* [1960] EA 370, but it is not quite the apotheosis of this aspect of the law of arbitration.

It is difficult to spell out what the reference to the arbitration actually was. Knowledge of the reference is vital in these matters, because that is the foundation of the concept of misconduct. Under the Arbitration Act (Chapter 49), as Spry JA explained (at 65 in the *Rashid Moledina* case) an award can only be set aside for misconduct on the part of the arbitrator, and that has been extended by judicial interpretation to include an error of law apparent on the face of the award. Spry JA cites *Landauer v Asser* [1905] 2 KB 184 as authority. The learned Justice of Appeal later explained that *Sohan Lal*'s case was based on the Privy Council decision in *Champsey Bhara and Co v Jivraj Balloo Spinning and Weaving Co Ltd* [1923] AC 480. An extract from that judgment followed:

> "An error of law on the face of the award means, in their Lordships' view that you find in the award or a document actually incorporated thereto, as for instance a note appended by the arbitrator stating the reasons for his judgment, some legal proposition which is the basis of the award and which you can say is erroneous."

The *Champsey Bhara* decision (*supra*) was no doubt binding on the Court of Appeal in *Sohan Lal*'s case (*supra*) in 1951. It was delivered on 6 March 1923. On 22 March 1923, the House of Lords decided *Kelantan Government v Duff Development Co Ltd* [1923] AC 395. The *Champsey Bhara* decision (*supra*) was not referred to. *Landauer v Asser* (*supra*) was distinguished by the Lord Chancellor and disapproved of by Lord Parmoor (at 418). Approval was given to Channel J's statement of the law in *Re King and Duveen* [1913] 2 KB 32 at 36. As Channell J's statement still attracts approval in *Halsbury's Laws of England* (4ed) Volume 2 at paragraph 623, I set it out:

> "It is no doubt a well established principle of law that if a mistake of law appears on the face of the award of an arbitration, that makes the award bad, and it can be set

> aside . . . but it is equally clear that if a specific question of law is submitted to an arbitrator for his decision and he does decide it, the fact that the decision is erroneous does not make the award bad on its face so as to permit of its being set aside. Otherwise it would be futile even to submit a question of law to an arbitrator."

This statement is repeated in paragraph 623 of *Halsbury's* (*supra*). In a note to In *Re King and Duveen* the authors state the following observations:

> "The authorities distinguish two types of cases:
>
> 1. When a specific question of law is submitted to the arbitrator; and
> 2. When a matter or matters in which a question of law becomes material are submitted. In the former the Court cannot, but in the latter it can and will interfere, if an error of law appears on the face of the award. *Absalom FR Ltd v Great Western (London) Garden Village Society* [1933] AC 392 (HL)."

It is therefore clear that the statement of principle in *Champsey Bhara*'s case is incomplete, though it may have been sufficient in those circumstances, and the decision in the *Kelantan Government* case is a further statement, and perhaps not referred to in *Rashid Moledina*'s case (*inter alia*) because of the nature of the reference. Should a case arise when a specific question of law is referred to an arbitrator then *Rashid Moledina*'s case will not have a sufficiently wide statement of principle.

It was recognised in *Rashid Moledina*'s case, that to set aside an award for an error apparent on the face of the award, was an exception. Lord Dunedin in giving the opinion of the Board in *Champsey Bhara*'s case remarked (at 487) that it was certainly not to be desired that the exception should be in any way extended. That remark stemmed from Lord Dunedin's quotation of Williams J's decision in *Hodgkinson v Fernie* 3 CB (NS) 189 at 202 a decision which has had general approval:

> "The law has for many years been settled, and remains so to this day, that, where a cause or matters in difference are referred to an arbitration, whether a lawyer or a layman he is constituted the sole and final Judge of all questions both of law and of fact . . . The only exceptions to that rule, are cases where the award is the result of corruption or fraud, and one other, which though it is to be regretted, is now I think firmly established viz: when the question of law arises on the face of the award. Though the propriety of the latter may very well be doubted I think it may be considered established."

Those sentiments bore fruit in *Rashid Moledina*'s case (*supra*) where Sir Charles Newbold P attended to similar doubts expressed in *Sohan Lan*'s case (*supra*), but decided that the Court should not reject the validity of the exception. One thing is clear. As Channell J observed, unless arbitration is to be meaningless, some line must be drawn so that an arbitrator is actually the sole Judge of questions of fact as well as law. At present that can only be achieved by distinguishing clearly between cases where a specific point of law has been referred to the arbitrator, and where the question of law arises incidentally in a general reference.

Lord Parmoor pointed out in the *Kelantan Government* case (*supra*) that questions of law could be referred to the Courts by a case stated. That is provided for in Kenya by section 22 of the Arbitration Act. The Court may also decide that difficult questions of law should not be referred to arbitration. What is the point, if the Court will interfere if requested to do so? This whole question was put to the parties in the present appeal, but no general discussion of the state or value of the exception was forthcoming. Hence a closer examination of the state of the law will not have to wait for another occasion. It will be sufficient on this appeal to point out the limitations of the *Rashid Moledina*'s case (*supra*).

Applying those principles to the present case, the third reference was in general terms – is the insured entitled to an indemnity under the contract of insurance? The real question would soon be discovered to be whether the retention of the excess paid to the insurer by the insured, amounted in law to a waiver by the insurer of the breach of contract by the insured. Waiver is usually a question of mixed fact and law. Here the breach of the contract was virtually admitted. Payment of the excess was admitted. What was at stake was whether the payment of the excess had the same effect as payment of the premium in keeping the contract alive, or whether the insured, having other claims against him, could reasonably retain the excess. It follows that these subsidiary matters sufficiently widened the inquiry to prevent the third reference being in reality a specific question of law on waiver. That being so, the question of waiver arose incidentally in the course of reference. The High Court therefore had jurisdiction to interfere.

Excess

The High Court was wrong in its view of the facts and inferences to be drawn from them. It was especially wrong on its approach to the excess. The premium paid is the consideration for the contract and concerns the creation of the contract. Consequently, it can be said that payment of premium "keeps the contract alive". The payment of excess must be paid as part of the performance of the contract. By paying the excess, the insured demands performance from the insurer. The excess is that part of the loss not insured. Having paid it, the insured demands performance on that part of the loss that was insured. The excess is not of the same nature as those conditions which must be fulfilled in order that the contract will not be avoided *ab initio.*

Apart from its special nature, the retention of the excess was retained for other reasons than the acceptance of liability by the insurer.

Consequently, I agree with the orders proposed by Nyarangi JA.

Apaloo JA: The appellant, a limited liability company, carries on business as an insurance company. The respondents owned a Leyland Truck number KNN 511 which at some time prior to June 1976, they insured with the appellant under comprehensive cover. On 26 June 1976 that vehicle was involved in an accident along the Kirinyaga Road, Nairobi. It crashed into a shop and also injured some third party. The vehicle was so badly damaged that it was written off as a total loss.

The respondents accordingly sought to be indemnified by the appellant for the loss they sustained by the writing off of the vehicle. It is agreed that it is a term of the policy that the respondents themselves bear the first KShs 12 000 of the total loss, technically called the "excess". So when the respondents filled the appellants claim form, they paid to the appellant this KShs 12 000 excess in accordance with the requirement of the policy.

The evidence shows that this payment was made on 28 June 1976. On 1 October of that year, the appellant, by letter of that date, repudiated liability to the respondents. The reason for this was the alleged breach by the respondents of a condition of the policy which obliged the respondents to maintain the motor vehicle in an efficient condition. When it repudiated the policy, the appellant did not then or at any time afterwards refund to the respondents the KShs 12 000 they had paid as excess. No issue seems to have been made of this until the dispute came before an arbitrator.

The repudiation of liability on the policy by the appellant brought differences between the parties and in accordance with condition 9 of the policy, these differences were submitted to the sole arbitrament of Mr AB Shah. Having taken evidence, he felt satisfied that the vehicle was not maintained in an efficient manner. He accordingly held the "the insurer is not bound to indemnify the insured in respect of claims arising out of the accident".

The respondents raised before the arbitrator, the issue of waiver and the parties agreed that the arbitrator rule on this question of law. The point taken by counsel on behalf of the respondents, was that as the appellant accepted the excess of KShs 12 000 and failed to refund it to the respondents despite the repudiation of liability, the appellant should be held to have waived the breach of the condition and that therefore the respondents were entitled to recover under the policy. That contention was disputed by counsel for the appellant. The learned arbitrator found that there was no waiver.

The respondents contested this holding in the High Court on the ground that the arbitrator having misconstrued the law, was technically guilty of misconduct as to justify the setting aside of the award under subsection 2 of section 24 of the Arbitration Act. In the Court below, counsel for the appellant is recorded to have accepted that if indeed the learned arbitrator's holding on the issue of waiver was erroneous in law, it constituted misconduct and would justify the award being set aside. But he contended that the arbitrator decided that issue of law correctly and resisted the setting aside of the award.

That an error of law on the face of an award amounts in law to misconduct, justifying the intervention of the Court, seems to be the legal position in this country (see *Rashid Moledina and Co v Hoima Ginners Ltd* [1967] EA 645). Having heard argument, the learned Judge arrived at a conclusion diametrically opposite to the one arrived at by the arbitrator. He held that in as much as the company kept the "excess" and failed to refund it to the respondents on learning of the breach, it waived it. The Court accordingly proceeded to set the award aside. It is this that provoked this second appeal to this Court.

The memorandum of appeal contains no fewer than six grounds. But argument before us centred on grounds 2 and 3 which were formulated as follows:

> "2. The learned trial Judge erred in holding that the 'excess' is in its true nature consisted with keeping up the insurance policy and that it is moneys paid to keep up the policy.
>
> 3. The learned trial Judge erred in holding that acceptance or retention of the premium or the excess after discovery of the breach of the policy by the insurers evidenced an election on their part to affirm the policy."

The argument addressed to us by counsel for the appellant followed more or less the grounds of appeal quoted above. It was said waiver being in its nature estoppel by conduct, there could not be one unless the respondents showed that the appellant made a representation either expressly or by conduct which it intended the respondents should act upon and that they acted on it to their detriment. Counsel contended the appellant made no representation of any sort to the respondents and they, on the evidence, cannot be said to suffer any detriment by acting on a representation made to them by the appellant. Accordingly, we were invited to say that the learned Judge was in error in his holding.

For the respondents, it was submitted that although the appellant did not know of the breach of the condition of the policy when the excess payment was

made, when it became cognisant of it, it did not then immediately return the money. In retaining it, it was submitted, the appellant impliedly represented that the policy was still alive. That being so, counsel argued that the appellant waived the breach and could therefore not rely on it to repudiate liability. Both sides cited and relied on a number of decided cases. In some of them waiver was held to have been established, the contrary was held in others. The divergent holdings show that each case was decided on its own special facts.

So the only helpful guidance we can receive from case law on this subject is the principle of law on which these decisions were based. In *Lickiss v Milestone Motor Policies at Lloyds* [1966] 2 All ER 972 and 975 Lord Denning MR said:

> "The principle of waiver is simply this:
>
> that if one party by his conduct leads another to believe that the strict rights arising under the contract will not be insisted on, intending that the other should act on that belief, and he does act on it, then the first party will not afterwards be allowed to insist on the strict rights when it would be inequitable for him to do so."

See also *Plasticmoda Societa Per Anioni v Davidsons (Manchester)* [1952] 1 Lloyd's Report 527. Although in slightly varying language, that is how the underlying principle of waiver was conceived in Hardy Ivamy *General Principles of Insurance*; *Mac Gillivray on Insurance Law* and *Halsbury's Laws of England* (3ed) Volume 22 at 82 to which counsel referred us.

The question for decision is, how does this case stand judged against that authoritative statement of principle? Can it be said on the facts of this case the appellants led the respondents to believe that it will not insist on its contractual right to repudiate liability for non-satisfactory maintenance of the vehicle? It is admitted that at the time the excess payment was made, the appellant did not know of the breach of the condition by the respondents. It is also not in dispute that when it became cognisant of it, it notified the respondents of its intention to repudiate liability. Is the fact that it did not then return the excess, evidence that it intended to waive the breach? In view of its express repudiation of the contract, it would hardly be accurate to say that it impliedly agreed to waive it.

It seems if the retention of the excess cannot be explained on any rational hypothesis, it may be regarded as conduct on the part of the appellant indicative of an intention to keep the contract alive. But it is common ground that third parties have made claims against the appellant which by reason of section 10 of the Motor Vehicles (Third Party Insurance) Act, it had to meet regardless of its repudiation of liability to the respondents. That being so, the retention of the "excess" seems of little significance because the appellant may wish to keep this money to recoup itself in respect of compensation it may make to third parties.

Furthermore, the retention of the excess apart, there is no evidence that the respondents believed that the appellant would not insist on its rights. They cannot reasonably hold any such belief, well knowing that the appellant had informed them that it would rely on the breach to repudiate liability. It is also difficult to see that the respondents can point to anything done by the appellant towards them which will make it inequitable for it to rely on its right of repudiation. In this sense, I think the respondents must be able to say that:

> "In view of what you said or did to us, it would be contrary to your good conscience to insist on your right to repudiate liability."

If they could justifiably say this on the evidence, then they could rightly say, it would be inequitable for the appellant to be permitted to insist on its strict right of repudiation.

The respondents relied on the decision of the predecessor of this Court in *Pioneer General Association v Mukasa* [1974] EA 165. It was there held that as the insurance company misled the insured into believing that there was no urgency over reports in writing, they waived that requirement and could therefore not rely on it to repudiate liability. Clearly, there was evidence there that the company misled the insured and were held disentitled to insist on the requirement of writing. Here, there is no evidence or the faintest suggestion that the appellant led the respondents to believe that notwithstanding the breach of condition by the respondents they would still meet liability under the policy. So this case is plainly distinguishable.

In *Hemmings v Sceptre Life Association Ltd* [1905] 1 Ch 365 – a case on which the respondents relied, it was held that by accepting premium, with knowledge of facts which entitled the insurance company to repudiate, they must be taken to have affirmed the policy and were consequently bound by it. Here, it is common ground that when the excess payment was received, the appellant had no knowledge of the breach. So this case provides no assistance to the respondents.

The respondents also relied on *South British Insurance Company v Samiullah* [1967] EA 659. In this case, on the day the insurance contract was entered into, the insurance company knew the insured had concealed a material fact yet they did not then repudiate the policy or a reasonable time thereafter. Not having done so, it was held that their delay amounted to a waiver of the right to repudiate. Again, the facts of this case have not the slightest affinity to the present case.

An examination of the case law, shows that the plea of waiver failed or succeeded on a disparate set of facts. The only common bond that unites these cases, is the legal principle on which they were based, namely estoppel by conduct. In my opinion, on the facts of this case, the appellant cannot properly be said to be estopped by conduct from relying on its contractual right of repudiation.

This is sufficient to conclude this appeal in the appellant's favour. Mr *Kinyanjui* also complained that part of the trial Judge's error arose from the fact that he equated "premium" with "excess" but says the two are different concepts in insurance law. Mr *Mitra* retorts that these are mere labels or insurance jargon and both related to the payment of money. In the contention of Mr *Mitra* there is no conceptual difference between the two.

Although he did not, in terms, say so, that is how the learned Judge also conceived it. Because he said:

> "Acceptance or retention of the premium or the excess after discovery of the breach of the policy by the insurers evinced an election on their part to affirm the policy."

I think, there is, as a matter of contract law, difference between the two. One is vital to the existence of a binding contract, the other is not. Premium is the consideration that moves from the promisee to the promisor to make the agreement enforceable. In its absence, the agreement will be a *nudum pactum* both in law and equity. "Excess" on the other hand, is the insured's agreed contribution to the loss. Its non-payment does not avoid or impair the legal nature of the contract of insurance. Its only result, is that the insurer's obligation to the insured is diminished to the extent of the excess.

It is not entirely clear whether the Judge's conclusion would have been otherwise if he had appreciated the juristic difference between the two. But to

argue as Mr *Mitra* did that it all related to the payment of money *simpliciter*, seems to me to oversimplify the question and I am in disagreement with him on his contention. I think, therefore, that the learned arbitrator was right in holding that no waiver was established. I think, with respect, the learned Judge's contrary conclusion was erroneous.

Accordingly, in my judgment, there was no error of law on the fact of the award and the Judge below was not justified in setting it aside. It follows that the appellant is entitled to have that award restored. I would therefore allow the appeal and order accordingly.

For the appellant:
S Kinyanjui

For the respondents:
RK Mitra

Kenya Shell Ltd v Kibiru and another
[1986–1989] 1 EA 266 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	2 July 1986
Case Number:	97/86
Before:	Hancox JA, Platt and Gachuhi AJJA
Sourced by:	LawAfrica

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[1] Stay of execution of decree pending appeal – Application to Court of Appeal in its original jurisdiction – Rule 5(2) – Court of Appeal Rules – Whether appeal would be rendered nugatory if stay not granted.

Editor's Summary

The High Court awarded damages in the sum of KShs 201 380 and KShs 5 000 to the two respondents (who were husband and wife) respectively on the ground of the applicant's negligence. An application for stay of execution pending appeal made to the High Court under Order XLI, rule 4(1) of the Civil Procedure Rules was rejected. The applicant thereafter applied to the Court of Appeal under rule 5(2) of the Court of Appeal Rules, having previously filed a notice of appeal but before any appeal was lodged.

The applicant contended that if the damages were paid over to the respondents it would have the utmost difficulty in recovering the monies back if the intended appeal were successful, and the appeal would therefore be rendered nugatory. It therefore prayed that a stay of execution should be granted pending the hearing of the appeal and that the damages should, in the meantime, be deposited in an interest earning account in the joint names of the parties. The respondents argued that since the first respondent was gainfully employed in an executive and pensionable position with Agip Limited, there was no warrant for assuming that they would not be in a position to repay the monies if the appeal had been successful.

Held – Under rule 5(2), the Court must consider whether the proposed appeal would be rendered nugatory unless payment of the decretal sum was stayed.

There was no evidence on the record to justify a finding that the respondents were not likely to repay the decretal sum if the appeal was successful.

Per Hancox JA – although there is no requirement under rule 5(2) that an applicant for a stay shall give security for the due performance of the decree, it was usual for the Court to require such security.

Per Platt AJA – it is not normal in money decrees for the appeal to be rendered nugatory if payment is made.

Application dismissed with costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Butt v The Rent Restriction Tribunal civil application NAI 6 of 1979

Shabani and another v City Council of Nairobi (1982–1988) 1 KAR 681

United Kingdom

Bonham-Carter v Hyde Park Hotel Ltd (1948) 64 TLR 117

Erinford Properties Ltd v Cheshire County Council [1974] 2 All ER 448

Wilson v Church (2) [1879] 12 Ch D 454

Judgment

Hancox JA: We heard application for a stay of execution of the judgment and decree of Shields J dated 13 May in High Court civil case number 540 of 1980 as a matter of urgency. The Judge awarded the two respondents, damages of KShs 201 380 and KShs 5 000 respectively for the appellant's negligence (which he found proved) in respect of an accident involving a gas cylinder on 28 June 1977.

The accident occurred as a result of an explosion at the home of the respondents, who are husband and wife, after the second respondent (the wife) had obtained a replacement gas cylinder filled with gas in return for the empty one she had returned to the Kamukunji Service Station (who were the appointed agents of Kenya Shell Limited) on the day in question. The second respondent had unloaded the cylinder and proceeded to connect it to the cooker when it exploded, causing a serious fire which destroyed the respondent's house at Kangundo Road, Embakasi, which was constructed of wood, and virtually all its contents. It is relevant to state that the house-girl had lit a *jiko* in the same room (it is not stated which room) as that in which the gas cylinder and the cooker were, and it was about ten feet away from the cooker. This was one of the particulars of negligence pleaded by Kenya Shell, who are the present applicants (and the appellants in the main intended appeal), in their defence, denied in the reply and impliedly rejected by the Judge in his judgment. Doubtless, in due cause, Kenya Shell will attack the Judge's finding of negligence, or at any rate full negligence against them and the stated application of the doctrine *res ipsa loquitur*.

However, we are not presently concerned with this aspect, but with the application for the stay, which, I note, is made only under rule 5 of the Court of Appeal Rules, and not under Order XLI, rule 4(1) of the Civil Procedure Rules as Mr *Kwach*, appearing on behalf of Kenya Shell, said at the beginning of his submissions. There is no requirement under rule 5 that the applicant for a stay shall give security for the due performance of the decree, as Order XLI, rule 4(1) provides. All that is required as a pre-condition for the exercise of our discretion under rule 5 is that a notice of appeal has been filed, which Kenya Shell did as on 19 May 1986, six days after the decision of Shields J, and well within time. Nevertheless, I apprehend that it has been usual for this Court to require such security as the price of a stay, or of an injunction, as the case may be, and Mr *Kwach* has at once said that there is no intention on the part of his client to delay or avoid payment of the decretal amount, and that he is prepared to offer any reasonable security that might be thought appropriate, including, as I understand him, a deposit in the joint names of the parties, subject to suitable conditions – hence the reference to Order XXVI, rule 8 of the Civil Procedure Rules.

The main ground on which the stay is sought pending the determination of the appeal is that if the respondents proceed to execute their decree the proposed appeal will be rendered nugatory, because, as I understood Mr *Kwach*'s submissions, if the decretal sum is paid over, Kenya Shell will have the utmost difficulty in recovering it back from the respondents at a later date if the appeal is successful. The same ground was, in effect, relied on in the application for the stay before the learned Judge, as is evident from the first paragraph of his ruling dated 17 June 1986, in which he refused the application.

Mr *Kwach* criticised this ruling in stringent terms. He said it was apparent from it that the learned Judge was prejudiced in his approach and biased against his client. Furthermore, he alleged that at the trial the Judge had rejected his contention that a plaintiff must not only plead but must prove his special damage, just as any other averment made in his claim. In passing I would say that this is, of course, perfectly true, and this Court has recently so held, in *Shabani and another v City Council of Nairobi* (1982–1988) 1 KAR 681 when the following passage from Lord Goddard LCJ's judgment in *Bonham-Carter v Hyde Park Hotel Ltd* (1948) 64 TLR 117 at 178 was approved:

> "Plaintiffs must understand that, if they bring actions for damages, it is for them to prove their damage; it is not enough to write down particulars and, so to speak, throw them at the head of the Court, saying 'This is what I have lost, I ask you to give me these damages'. They have to prove it. The evidence in this case with respect to damages is extremely unsatisfactory."

Mr *Kwach* finally submitted, on this aspect of the case, that a litigant, whether it is Kenya Shell or anyone else, is entitled to exercise their constitutional right of a proper hearing and due account to be taken of their contentions without obstruction. With that last proposition I would also respectfully agree. However, there is no material, as yet, to enable anyone to say whether or not this particular allegation, as regards the special damages, has any substance. The record of the proceedings, though applied for, is, in the nature of things, not yet available, so it is equally impossible to assess the chances of the success of the appeal, which are stated in the affidavit in support of the present motion to be overwhelming. This is presumably in reply to the notice of objection filed in the High Court by the respondents that there was, as then, no indication as to the chances of success in the proposed appeal.

However, the first respondent, Mr Benjamin Karuga Kibuku, who, though not an advocate, spoke on behalf of both of them, has advanced as his main contention the same as he put forward in the High Court application, in reply to the suggestion that he will not repay the decretal amount if the appeal succeeds, namely that there is no evidence that Kenya Shell, as the proposed appellant, will suffer substantial loss or that they will have difficulty, in that event, of recovering the money, as, indeed, the learned Judge found. Mr Karuga emphasised that he holds a good position with Agip, who are in the same business as Kenya Shell, that he is the sales manager and as such a senior executive, with good pensionable prospects after a minimum of ten years' service. This much was not disputed by the appellant.

Mr Karuga continued that there was no reason shown why Kenya Shell would not recover their money if the decree is executed. On the contrary, he alleged that there had been procrastination on their part in supplying him with their report on the accident, which had led to the delay in his filing the suit until February 1980, over two and a half years after the accident. In this connexion I would observe that the report was made fairly promptly, on 28 October 1977, but that there is nothing in law to compel or oblige one party to litigation (or to threatened or contemplated litigation) to disclose his confidential information to the other side, save on an order for discovery, which does not appear to have been made. Neither, astute in the handling of his case as Mr Karuga has been, almost, I may say, without disrespect, to a highly professional standard, did the respondents insert in their pleading that the maxim *res ipsa loquitor* applied.

It is also true to say that, in considering an application for a stay, the Court doing so must address its collective mind to the question of whether to refuse it would, as Mr *Kwach*, urges, render the appeal nugatory. This is shown by the following passage from the judgment of Cotton LJ in *Wilson v Church* (2) [1879] 12 Ch D 454 at 458, where he said:

> "I will state my opinion that when a party is appealing, exercising his undoubted right of appeal, this court ought to see that the appeal, if successful, is not nugatory."

That passage was cited with approval by Megarry J (as he then was) in *Erinford Properties Ltd v Cheshire County Council* [1974] 2 All ER 448 at 454, in which case he was considering whether, having refused an interlocutory injunction to the plaintiffs on the expiry of the undertaking previously given by the council, he yet considered whether he had jurisdiction to grant what was in effect the same relief pending the plaintiffs' appeal from the dismissal of their application with costs. It was the opposite situation from an application for a stay, because, the injunction having been refused, there was nothing left, so it was submitted, to stay. Megarry J rejected that contention and held that there was nothing inconsistent with the two orders because as he said:

> "A Judge who feels no doubt in dismissing a claim to an interlocutory injunction may, perfectly consistently with his decision, recognise that his decision might be reversed, and that the comparative effects of granting or refusing an injunction pending an appeal are such that I would be right to preserve the staus quo pending the appeal."

As I said I accept the proposition that if it is shown that execution or enforcement would render a proposed appeal nugatory, then a stay can properly be given. Parallel with that is the equally important proposition that a litigant, if successful, should not be deprived of the fruits of a judgment in his favour without just cause.

I am bound to say that in the instant case I deprecate the comments of the learned Judge in dismissing the High Court motion for a stay. He referred to the defendant's (the appellant's) singular lack of interest in the case, and to their "laxity" in producing witnesses, and to Kenya Shell using their position to frustrate those who were impertinent enough to sue them. I think this led to Mr *Kwach*'s justifiable complaint in this Court that there would exist some ground in the mind of his clients that they had been unfairly treated. I entirely agree, with the utmost respect, with that which Madan JA (as he then was) had to say in the passage to which Mr *Kwach* referred us, namely *Butt v The Rent Restriction Tribunal* civil application NAI 6 of 1979 at 2 of his ruling.

I therefore think in the circumstances that these comments were unfortunate. Nevertheless, having considered the matter to the full, and with anxious care, there is in my judgment no justification whatsoever for holding that there is a likelihood that the respondents will not repay the decretal sum if the appeal is successful and that the appeal will thereby be rendered nugatory. The first respondent is a man of substance, with a good position and prospects. It is true his house was, in his words, reduced to ashes, but I do not take that against him. Both seem to me to be respectable people and there is no evidence that either will cease to be so, in particular that the first respondent will not remain in his job until pensionable age.

Accordingly, while I have considerable sympathy for Kenya Shell on this application, I consider there is no other course consistent with the material on record, and with the justice of the case, than to refuse the application for a stay made before this Court.

I would therefore dismiss the motion with costs. As the other members of the Court agree it is so ordered.

Platt AJA: This is an application for a stay of execution of a decree of the High Court. The latter refused a stay pending an appeal from that court's judgment. The application is brought directly under this Court's original jurisdiction to be found in rule 5(2)(*b*) of the Court of Appeal Rules.

The appeal is to be taken against a judgment in which was held that the present respondents were entitled to claim damages due to the negligence of the present applicant. It is a money decree. An intended appeal does not automatically operate as a stay. The application for the stay made before the High Court failed because the first of the conditions set out in Order XLI, rule 4 of the Civil Procedure Rules was not met. There was no evidence of substantial loss to the applicant, either in the matter of paying the damages awarded which would cause difficulty to the applicant itself, or because it would lose its money, if payment was made, since the respondents would be unable to repay the decretal sum plus costs in two courts. It was, however, suggested that at least the decretal sum could be placed in an interest-bearing account. All this the applicant proposed to accept in this Court and to give an undertaking as to security.

The respondents nevertheless stood firm. There was no ground for a stay at all, they argued, and therefore they declined to offer to deposit the decretal sum in any account.

I am bound to say that the respondents are right, on the basis of Order XLI, rule 4 of the Civil Procedure Code. There was no evidence of substantial loss, and such loss cannot be inferred in this case.

But this Court must look at the matter from the point of view of rule 5(2)(*b*) of the Court of Appeal Rules, and here the test would be whether the appeal would be rendered nugatory, unless payment of the decretal sum were stayed. It is not normal in money decrees for the appeal to be rendered nugatory, if payment is made. The affidavit in support has not set out any information to show that the appeal will be nugatory. It is loud in its claim that the appeal will fail. But no reasons are given why the appeal will be rendered nugatory. The Court inquired into the respondents circumstances, but the information that was forthcoming did not confirm the applicant's misgivings.

It is usually a good rule to see if Order XLI, rule 4 of the Civil Procedure Rules can be substantiated. If there is no evidence of substantial loss to the applicant, it would be a rare case when an appeal would be rendered nugatory by same other event. Substantial loss in its various forms is the corner stone of both jurisdictions for granting a stay. That is what has to be prevented. Therefore without this evidence it is difficult to see why the respondents should be kept out of their money.

Accordingly, while certain passages in the judgment and ruling gave offence to the applicants, in fact there is no substance to this application, and I would dismiss it with costs.

Gachuhi AJA: The applicant applies to this Court under rule 5(2)(*b*) of the Court of Appeal Rules for a stay of execution pending appeal for which a notice of appeal has been filed but no appeal has yet been filed. The main ground in the application is that if the applicant pays the decretal amount to the respondents or if the respondents execute the decree in their favour, the pending appeal will be rendered nugatory. There is nothing else in the application before this Court. The facts of the case are contained in the judgment of Hancox JA, with which I entirely agree.

The respondents are a husband and wife who obtained a money judgment in the High Court in damages. The applicant, I think, knows the first respondent better since he is a sales manager with Agip an oil company which is a similar business to the applicant. He holds an executive position that may attract a good pension. There is no evidence to show that he is not a man of means. In his argument he states that the applicant has not shown why the Court should grant the order sought while the applicant has not stated the loss it would suffer if the money is paid to the respondents.

The respondents maintain that if money is paid, and the appeal succeeds, the respondents would repay the money. They hesitantly would accept the money being deposited in their joint deposit account where the money will be earning interest.

It is not sufficient by merely stating that the sum of KShs 20 380 is a lot of money and the applicant would suffer loss if the money is paid. What sort of loss would this be? In an application of this nature, the applicant should show the damages it would suffer if the order for stay is not granted. By granting a stay would mean that the staus quo should remain as it were before judgment. What assurance can there be of the appeal succeeding? On the other hand, granting the stay would be denying a successful litigant of the fruits of his judgment. The applicant has not given to court sufficient materials to enable it to exercise its discretion in granting the order of stay.

On my part I cannot find possible evidence to persuade me to grant the order prayed for. It is unfortunate that the High Court passed remarks that may have annoyed the applicant, but that by itself would not be sufficient reason to grant the stay.

I too would dismiss the application with costs.

For the applicant:
RO Kwach

For the respondent:
In person

Khayadi v Aganda
[1986–1989] 1 EA 272 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	29 April 1988
Case Number:	176/86
Before:	Hancox, Gachuhi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Land dispute – Transfer of shares in company holding title by vendor – Reference to panel of elders – Confirmation of elders' award by Magistrate – Whether a valid reference to the elders by the Court – Section 9A – Magistrates Jurisdiction (Amendmen) Act of 1981 – Order XLV, rule 17(2) – Civil Procedure Rules.

Editor's Summary

In December 1979 the appellant's father agreed to sell his five-acre piece of land at Nzoia Sisal Estate to the respondent at an agreed price of KShs 18 500. In fact the five acres were comprised in a share certificate, number 1934, of a land holding company, and the sale was effected by transferring the appropriate number of shares in that company. The appellant objected to the transfer on the grounds that he was assisting his father financially, and that the latter should not have transferred the land outside the family. Accordingly he claimed back the land and offered to refund the money which the respondent had paid. The matter came before a panel of elders, purportedly under Part IIIA of the Magistrates Courts Act, who, on 1 August 1983, awarded the land to the respondent. Each party then applied to the respondent Magistrates' Court respectively to confirm and to revoke the elders' award.

On 15 May 1984, the Senior Resident Magistrate at Kakamega adopted the award as an order of the Court and the first appellate Judge, treating the case as a valid reference to arbitration, dismissed the appeal from that order. The appellant then filed a second appeal.

Held – Whether the award was treated as an arbitration by the elders or, as the Magistrate's Jurisdiction (Amendment) Act, which came into force on 31 December 1981, required, the record of a decision under Part IIIA of that Act, there had never been a valid reference to the panel of elders, who

consequently lacked jurisdiction to make the award.

Per Gachuhi JA and Masime AJA – The Magistrate's Jurisdiction (Amendment) Act of 1981, which provided for the resolution of land disputes by a panel of elders under chairmanship of the District Officer of the area concerned, required that a suit should be filed in the Court in the first instance and that the dispute should then be referred to the panel by the Court.

It was clear from the language of section 9A that the panels of elders provided for in the amending Act derive their jurisdiction from references by the Courts, and that the elders could not, of their own motion, resolve land disputes submitted to them by the parties.

Consequently, in the absence of a valid reference, the elders had no jurisdiction in the instant case to embark on the award and the appellant's challenge to the elders' jurisdiction was well taken.

Appeal allowed. Decisions of the High Court and of the Magistrate's Court set aside.

No cases referred to in judgment

Judgment

Hancox JA: These proceedings seem to have originated from an agreement made on 28 December 1979, between the present appellant's father, Jacob Mulovi, and the respondent, Herbert Aganda, under which the former agreed to sell that which was situated at Nzoia Sisal Estate for KShs 18 500. Of this sum KShs 16 750 was paid by way of deposit, and it was expressed that "the balance of KShs 250 will be paid within three months". This, of course, could not be correct, but the matter is elucidated by the recording of a further payment of KShs 1 500 on 30 August 1980, which, with the balance of KShs 250 there stated to be outstanding agreed with the recorded purchase price of KShs 18 500.

Unfortunately this transaction received less than enthusiastic approval from the present appellant, who is the elder son of the original vendor. In that which I presume was his statement before the elders of the area concerned the appellant recounted that after his father had sold a piece of land in Mahalia Village, he then purchased the eight acres in Nzoia Sisal Estate, which was adjacent to ten acres the appellant already owned. Since he was receiving financial assistance from the appellant, apart altogether from family considerations, he considered that the five acres Jacob had purported to sell to the respondent should have remained within the family. Ngolo Oronje, one of the elders in the village, stated that he had remonstrated with Jacob in 1979 regarding his intention to sell the land, but that the latter remained adamant that the land was his and that he could do whatever he wished with it. Ngolo Oronje was later disbelieved by the panel of elders, who made their award relating to the land on that which appears to be 1 August 1983.

The remaining three acres, from the original eight-acre plot, were divided equally between the appellant's three step-brothers. It appears further from the statement which went before the elders, and from the summary of facts by Aganyanya J, who was the first appellate Judge, and from whose decision this appeal is brought, that the transfer of the land to the respondent was not by way of an outright sale, but took the form of a transfer of the appropriate number of

shares standing in the name of the vendor with the company which held the title to the land. The respondent was then given the share certificate representing the five acres, and this appears in the record of the proceedings. This, then, forms the background of events to the submission, I use that word advisedly, of the dispute to the panel of elders in land dispute number 12 of 1983. They, found that the appellant had been promised a share of the land by his father, and that the matter had really arisen by way of a family dispute rather than as a conflict over the plot of land. The panel ordered that the appellant should permit the respondent to develop the land without interruption and should seek a compensation gift of property from his father.

The parties then filed two separate applications to the Resident Magistrate's Court at Kakamega, the respondent applying on 3 April 1984 to confirm it, and the appellant over a month later applying to revoke or set aside the elders' award. Unfortunately the date stated in the second application as being the date of the elders' award, 15 May 1984, does not agree with the one stated in the award included in the record which is, as I said, 1 August 1983. That date, however, is the one appearing as the date of the delivery of the Magistrate's ruling, which, as was said in the ruling of this Court dated 25 March 1987 (Platt, Gachuhi and Apaloo JJA) adopted the elders' award, declared the respondent in this appeal, (who was the applicant before the Magistrate) to be the legal owner of the portion of the land comprised in share certificate number 1934. The Magistrate had further held that the fact that this transaction was a transfer of shares meant that it did not attract the provisions of the Land Control Act (Chapter 302), so as to require the consent of the local Land Board under the Act.

The appellant appealed against the Magistrate's decision to Aganyanya J, who set out the facts and recited the appellant's case that he had never been a party to referring the decision to the elders and had never submitted to their jurisdiction. He, however, held that it was the appellant and not the respondent who had referred the matter to the elders. He rejected appellant's contention to the contrary and held, in effect, that he was thereafter estopped from objecting to their jurisdiction, which he had himself invoked. In the result he confirmed the Magistrate's decision, which he held was not appealable under Order XLIV (I think he must have meant Order XLV) rule 17(2) of the Civil Procedure Rules.

It is of course correct that if there was a valid reference to arbitration under Order XLV, then if there is no objection to it, or the award is not set aside under any of the rules 13 to 15 of that Order, no appeal lies to a court superior to the one which entered judgment upon the award.

The appellant filed his first application in this Court on 18 February 1987, as it was expressed, to stay the execution of the judgment of Aganyanya J. This Court, in the decision I have already mentioned, said that there was in reality no execution threatened against the land and, accordingly, that an order of a stay was inappropriate. The most for which the appellant was at risk was the costs which he had been ordered to pay.

In my judgment there was no valid suit in existence at the time this mater was purportedly referred to the elders, or when they delivered their award, whichever was the correct date thereof. If that was so there were no proceedings in being in which there could be a valid reference to arbitration, by the

elders or by anyone else, under rules 1 to 3 of Order XLV. Neither have I been able to find any valid arbitration agreement (which would have the effect of staying court proceedings) under the Arbitration Act (Chapter 49).

In these circumstances I cannot see that the matter ever properly came before the Court. It is true that there appears to be a valid land dispute, since the proceedings are described as land dispute number 12 of 1983, at the District Officer's office Lumakanda, but they do not purport to be under any statutory provision such as, for example, section 12 of the Land Adjudication Act (Chapter 284). Even if this was so the procedure to be followed regarding appeals to the Minister under section 29 of the Act is entirely different from that which is applicable to entering judgment in the terms of an award made by arbitrators.

For these reasons, I would hold that the ruling of the Magistrate dated 15 May 1984 was made without jurisdiction, and I would consequently allow the appeal, set aside that ruling and also judgment of the High Court which followed it. I would order that the appeal should be allowed, with costs to the appellant in this Court, in the High Court and in front of the Magistrate. As Gachuhi JA and Masime AJA agree it is to ordered.

Orders accordingly.

Gachuhi JA: I have read the judgment of Hancox JA in draft and I agree with it. However, I would add that it appears that the parties appeared before the District Officer Lumakanda where proceedings proceeded before a panel of elders presided over the District Officer in land dispute number 12 of 1983. It is not clear as to which party or by whose authority the dispute was referred to the panel of elders. If the reference was under the Magistrates' Act (Chapter 10) then the suit should have been filed in the Court first and then the Magistrate would refer the dispute to the panel of elders under the provisions of the Act. Section 9A of the Magistrates' Act provides:

> "(1) Notwithstanding the provisions of sections 5 and 9 or of any other written law conferring jurisdiction but subject to the provisions of this part, no Magistrate's Court shall have or exercise jurisdiction and powers in cases of a civil nature involving:
>
> (*a*) the beneficial ownership of land;
>
> (*b*) the division of, or the determination of boundaries to, land including land held in common;
>
> (*c*) a claim to occupy or work land;
>
> (*d*) trespass to land.
>
> (2) An issue relating to any matter set out in paragraphs (*a*) to (*d*) of subsection (1) shall be referred to a panel of elders to be resolved."

The suit has to be filed in court for the Magistrate to determine the issues involved and then be referred to the elders who should file their award in court. Only by this procedure would the Court have jurisdiction. If the award filed in court and then the Magistrate having perused it and has suggestions to make, he can then refer it to the panel of elders, only then would the panel be seized with the jurisdiction. But as the reference was referred to the elders before coming to court, and without the Court order, the panel of elders had no jurisdiction to hear and determine the matter. The Magistrate had no jurisdiction to grant the order as he did.

I would agree with the order Hancox JA proposes for allowing the appeal.

Masime AJA: The appellant complained to the District Officer Lumakanda against the respondent who had purchased five acres of land comprised in share number 1934 in Nzoia Sisal Estate Limited that DO registered the complaint as land dispute number 12 of 1983 and proceeded to hear it with a panel of elders between 14 July 1983 and on 1 August 1983 made an award.

Thereafter the respondent on 3 April 1984 applied to the Senior Resident Magistrate's Court to adopt the award and enter judgment in this thereof while the appellant on 18 April 1985 applied to the same court for revocation and or setting aside of that award. Both the applications were supported by affidavits. In his ruling read in court on 15 May 1984 the learned Senior Resident Magistrate allowed the respondents application and adopted the award with costs and entered it as a judgment of the Court and declared the present respondent as the legal owner of the share number 1934 comprising five acres of land. The appellant herein was also restrained from interfering with the suit premises.

From that ruling the appellant appealed to the High Court at Kakamega. In that appeal the jurisdiction of the elders to determine the dispute was challenged and it was amended that the elders' award was a nullity for that reason and could not therefore be made into a judgment of the Court. Despite these objections the appeal was dismissed. It is from that dismissal that this appeal arises. In this Court too the appellant has taken the point, *inter alia*, about the jurisdiction of the elders in the following terms:

> "The learned Judge erred in failing to observe that the elders had no jurisdiction to award title to land to anyone and the submission (if any) to elders jurisdiction (which does not exist cannot confer jurisdiction to the elder."

Under the Magistrates' Courts Act as amended by the Magistrate Jurisdiction Amendment Act the Courts role in land disputes was limited to referring them to panels of elders for arbitration. Consequently, panels of elders derive their jurisdiction to deal with land disputes from references by the Court (see section 9A), they cannot of their own deal with such disputes merely because parties submit to them. The appellants' challenge of the elders' award on the basis of lack of jurisdiction is therefore well taken. I therefore agree with my lords Hancox and Gachuhi JJA that this appeal should be allowed and that the appellant should have costs of the suit before this and all the lower courts.

For the appellant:
In person

For the respondent:
In person

Khayugila v Gigi and Co Ltd and another
[1986–1989] 1 EA 276 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	26 November 1987
Case Number:	119/86
Before:	Nyarangi, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

[1] Master and servant – Vicarious liability – Whether driver a servant or an independent contractor at time of accident – Legal principles and test applicable – Whether public policy involved.

Editor's Summary

A motor vehicle (KJY 307) was owned by first respondent company which consisted of two brothers. It was usually driven by an employee, one Zainul Dar, son of one of the brothers. It required to be panel-beaten and sprayed. The work was not major and, to economise, the son did not take the car to the dealer, but he gave it to the second respondent, who did the spray-painting in his spare time. The car was delivered to him at 11:00am on Saturday. Zainul expressly instructed the second respondent not to drive the car except for putting it in and taking it out of the garage. He arranged to collect it at 5:00pm the following day. On the Saturday at 9:00pm, the second respondent drove the motor vehicle from the garage and knocked over and injured the appellant, a pedestrian who sued for his injuries. The only issue in the Court below was the liability of the firm for the negligent driving of the second respondent. The trial Judge absolved the first respondent from liability. The pedestrian appealed.

Held – The second respondent was not the servant of the first respondent, nor was he at the material time acting on the owner's behalf as his agent.

To establish the existence of the agency relationship it was necessary to show that the driver was using the car at the owner's request, express or implied, or on his instructions, and was doing so in performance of the task or duty thereby delegated to him by the owner.

Public policy did not arise, and it did not follow from the fact that the second respondent could not satisfy the decree that the first respondent, as owner, (who had insured the vehicle) should be held vicariously responsible for the negligence of the second respondent, so as to enable the appellant to recover damages.

The second respondent was an independent contractor and, as such a liability did in law not attach to the firm.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Anyanza v Gasperby civil appeal number 31 of 1981

Bachu v Wainaina civil appeal number 14 of 1986

Nakuru Automobile House Ltd v N Ziaudui civil appeal number 63 of 1986

United Kingdom

Morgans v Launchbury and others [1972] 2 All ER 606

Judgment

Apaloo JA: The only question which fell for consideration in this appeal is whether on the uncontroverted facts the learned Judge applied the law correctly when he absolved the first respondent company from vicarious liability for the negligence of the first respondent.

The first defendant is a partnership of two brothers. The firm owned a VW saloon car KJY 307. This car was normally driven by Zainul Dar who was an employee of the firm and a son of one of the partners. Some time in November 1982, Zainul noticed some dents on the car. He thought they should be panel-beaten and sprayed. The normal place where this should have been undertaken, was the well-established motor company of Cooper Motors Corporation.

Zainul thought as it was not really major work and also to economise, these minor repairs should be entrusted to the second respondent, a spray-painter employed by Cooper Motors who did spray-painting in his spare time. The second respondent agreed to undertake the work for consideration which was not disclosed in the evidence. So at about 11:00am on Saturday, 29 November 1982, the second respondent called on Zainul and they both rode in the car to a place near a Hi-life Bar, Mombasa. The car was actually driven by Zainul. At a spot near the Hi-life Bar, Zainul alighted and handed the ignition keys of the car to the second respondent in order to enable to him put the car in a nearby garage and lock his things in it overnight. Zainul expressly instructed the second respondent not to drive the car except for putting it in the garage and taking it out. It was agreed that Zainul was to return at 5:00pm the following day to collect the car. The second respondent estimated he would have completed the work by that time. Zainul returned to the spot at around 5:00pm on Sunday as agreed but neither the second respondent nor the car could be traced. Apparently, the second respondent drove the car to a place called “Magongo” about two miles from the “workshop” at 9:00pm on Saturday and there knocked over and injured the appellant, a pedestrian. When Zainul could not trace the second respondent or the car, he went to the police station and lodged a complaint only to be informed of the accident the previous night. The second respondent was then in police custody.

The appellant then brought the suit which culminated in the appeal against the second respondent as tortfeasor and the first respondent on the ground that the first respondent firm was vicariously liable for the negligent driving of the second respondent. The second respondent’s liability was plain enough and was not contested. The only issue fought in the Court below was the liability of the firm for the negligent driving of the second respondent. The first respondent firm denied that it was vicariously responsible for the negligent driving of the second respondent and also denied any liability to pay damages to the appellant. The learned trial Judge agreed and absolved the first respondent firm from liability. It is this holding that provoked this appeal.

The appellant, by counsel, contends that the firm was liable and that the Court below holding contrary was erroneous and invited us to set it aside. The memorandum of appeal complains that:

> “(*a*) The learned Judge erred in failing to consider the facts and on law the degree of authority and control of vehicle vested by the respondent on the second defendant.
>
> (*b*) The learned Judge erred in his distinction between a servant and an independent contractor.
>
> (*c*) The learned Judge erred in law as well as on facts on the issue of vicarious liability.”

Grounds (*b*) and (*c*) were taken together and the sum total of the argument presented on those grounds was that Zainul was negligent in not enquiring

about the arrangements for the safety of keeping the car overnight. Zainul, it was said, ought to have ensured that the second respondent would not drive the car otherwise than in and out of the garage. It was also said Zainul entrusted the car to the second respondent and gave him control and the keys with troubling to ascertain whether he had a driving licence. He was therefore negligent and thus, his employer, the first respondent firm should be held responsible. The argument on behalf of the appellant proceeded as if the mere handing over of the car by Zainul to the second respondent which Counsel said was negligent, is the sole legal basis for fixing the first respondent with vicarious liability. What is the true legal basis of liability? On this, the common law has been settled for years. The most recent authoritative pronouncement of the basis of liability is the unanimous decision of the House of Lords (*Morgans v Launchbury and others* [1972] 2 All ER 606). It was there held that:

> "In order to fix liability on the owner of a car for the negligence of its driver, it was necessary to show either that the driver was the owner's servant, or that at the material time the driver was acting on the owner's behalf as his agent. To establish the existence of the agency relationship, it was necessary to show that the driver was using the car at the owner's request express or implied or on his instructions and was doing so in performance of the task or duty thereby delegated to him by the owner."

This test was accepted in many common-law jurisdictions, including this country (see for instance the appellate decision in *Anyanza v Gasperby* civil appeal number 31 of 1981; *Bachu v Wainaina* civil appeal number 14 of 1976 and the very recent decision of this Court in *Nakuru Automobile House Ltd v N Ziaudin* civil appeal number 63 of 1986).

How does the issue of liability stand judged against that authoritative statement of the legal principles? It is common ground that the second respondent was not the servant of the first respondent within the normally accepted meaning of that word as understood in this branch of the law. On the facts, the second respondent *vis-à-vis* the first respondent was an independent contractor. Accordingly, the first respondent firm would not ordinarily be vicariously liable for the tort of the second respondent unless the facts show that he was the type of agent described in the *Morgan*'s case (*supra*).

That being so, one must ask the questions:

1. Was the second respondent using the VW car at the material time at the request of the first respondent or on their instructions?
2. If so, was he driving the car in performance of a task or duty delegated to him by the first respondent firm?

On the facts, the first question must be answered firmly in the negative. Not only was the second respondent not using the car at the time of the accident at the firm's request but he was using it furtively against its instructions. Indeed, had this accident not happened, the firm may well not have known that the second respondent drove the car at night on his own and for purposes wholly unconnected with the spraying of the dents.

In view of the answer to the first question, the second does not arise. True, the firm gave him a task to perform, and that task was the repair of dents, and spray-painting thereafter. The one task, which the firm did not give him, was driving the car. That act was, on the undisputed evidence, forbidden. In the circumstances, it is difficult to avoid the conclusion that no liability attaches to the firm on the well-known principle of "respondent superior" and the learned Judge's conclusion on that score cannot be faulted.

Mr *Jiwaji* does not contest the hitherto accepted basis of liability as expounded in the *Morgan* case and the numerous cases which laid down the test for imposing vicarious liability on independent contractors. He says that the distinction drawn by the cases between a servant and an independent contractor is much too technical. He submits that where a vehicle is insured, as in this case, that distinction is immaterial and that as a matter of equity and public policy vicarious liability should be imposed.

One cannot help admiring Mr *Jiwaji*'s boldness and originality but his submission, though superficially attractive, is quite untenable. He says, once a car is insured, the distinction between a servant strictly so-called and an independent contractor should be ignored. Why should the fact of insurance or non-insurance, of a vehicle determine a point of principle? Mr *Jiwaji*'s contention would mean that had the firm not been insured in this case, it should not be fixed with vicarious liability, but as it was, it should be so affixed. Mr *Jiwaji* talks of equity which I understand in the context of this case to mean fairness.

Does fairness require that the firm be fixed with liability in a case in which its car was being driven against its express wishes? Suppose the firm had not been insured? It would ill accord with one's notions of justice that it should be ordered to pay for a contractor's wrong-doing. It was in no sense blameable. Unless expediency is substituted for principle, the legal rule for imposing liability should be the same whether the person sought to be affixed with responsibility for the wrong-doing of another is insured or not. The fact that insurance should feature so prominently in Mr *Jiwaji*'s earnest argument, shows the wisdom in many common-law jurisdictions where the fact that a vehicle was insured, is never disclosed to the Court or jury.

Then Mr *Jiwaji* enlists in aid of his contention "public policy". He says, as a matter of public policy, liability should be imposed. But on this one must tread warily. Public policy has been said to be "an unruly horse". "Once you get astride it, you do not know where it will carry you." I am not persuaded that any sound reason of public policy compels us to draw a distinction in formulating rules of law between a defendant who was insured and one who was not. That seems too fortuitous a circumstance on which to erect a legal principle. And Mr *Jiwaji* did not say what principle of public policy would be advanced by making such a distinction. In my opinion, the basis on which vicarious liability can be affixed on an agent who is not a servant, is too firmly established to be overthrown by sidewind; and that is, the "negligent driver" must be using the vehicle at the time of the accident at "the owner's request or upon his instruction". If, as a matter of social policy, a change of this principle is desirable, one must leave it to the good sense of the legislature.

Although I acknowledge Mr *Jiwaji*'s novel and not uninteresting submissions, I think Mr *Satchu* was right in contending that on the well-established law, the learned trial Judge was right in concluding that the first respondent firm was not vicariously liable for the second respondent's negligent driving. Accordingly, I would dismiss this appeal with costs.

Gachuhi JA: I have read the judgment of Apaloo JA which with I am in full agreement.

I would stress that the issue for determination in this appeal rests upon the doctrine of vicarious liability, whether the owner of the motor car is vicariously liable for the negligence of an independent contractor.

The argument for the first respondent is that the second respondent, a painter, undertook to repair dents and repaint the car for an agreed sum. The car keys were left with him in order to lock his tools in and to put the car in the garage. Those were the instructions or agreement.

The second respondent took on his own, whilst without holding a valid certificate of competency to drive, in that he drove the car at night away from where the vehicle was supposed to be locked at night. Whilst on this illegal drive, he was involved in an accident in which the appellant was injured. Judgment was entered for the plaintiff against the second defendant who never defended the suit. The appellant's argument is that the first respondent entrusted the keys of the car to the second respondent. The second respondent implied had authority to drive it so the first respondent was vicariously liable for the negligence of the second respondent. The appellant is of the view that since the second respondent cannot satisfy the decree, the first respondent, who is the owner, and who had insured the vehicle, should be held responsible or held vicariously responsible for the negligence of the second respondent so as to enable the appellant to recover damages awarded.

The first respondent submitted that the second respondent was an independent contractor and as such no liability should attach to the partners of the firm in law.

Several decisions were cited, both local and the English decisions. All these decisions state that for the owner of the vehicle to be vicariously liable, the driver must be a servant or an agent. For the vehicle owner to be responsible for the negligence of the agent, that agent must have been detailed to do a task beneficial to or on behalf of the owner. The recent decision of this Court in *Nakuru Automobile House Ltd v Nasiruddin Ziaudin* civil appeal number 63 of 1986 (UR) based its decision on *Morgans v Launchbury and others* [1972] 2 All ER 606 and held that the owner of the car was not vicariously liable for the negligence of the driver of the car who had borrowed it to enjoy the rally. The driver was not at the time of the accident driving the vehicle as a servant or an agent of the owner.

In the recent appeal, the second respondent was not driving the vehicle as a servant or agent of the first respondent. The second respondent was not driving for the benefit of the first respondent nor did he have a task to do for and on behalf of the first respondent. He was driving the car for his own benefit and interest. I would also dismiss this appeal.

Nyarangi JA: I agree.

The problem raised in the appeal can be solved in accordance with the guidance given by this Court in *Nakuru Automobile House Ltd v Ziaudin* civil appeal number 63 of 1986.

I agree with the order proposed by Apaloo JA on costs.

For the appellant:
AHA Jiwaji

For the respondent:
M Satchu

Kinuthia v Republic
[1986–1989] 1 EA 282 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment: 14 January 1988

Case Number: 108/87

Before: Platt, Gachuhi JJA and Masime AJA

Sourced by: LawAfrica

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[1] Criminal law – Murder – Judge's disagreement with assessors' opinions – Given in general terms without reference to specific issues – Purpose of assessors – Whether reasons for disagreement should be given in the judgment – Sections 168, 262, 263, 297, 299 and 322 – Criminal Procedure Code.

Editor's Summary

The deceased intervened in a fight between the appellant and one Waititu Ngage. After being separated, the appellant went some distance, picked up a stone and struck the deceased on the head with it inflicting a fatal injury. The appellant ran off but was later arrested by the police as a result of information.

The appellant's version to the Court was at variance with the foregoing and in particular he said that he had met the deceased on the day in question in a bar with two of his witnesses. He bought them beer, but they refused to let him leave until he had agreed to buy them more beer in another bar. They moved onto the veranda which was ½ feet above the ground. The deceased started to pull the appellant and he fell off the veranda on to some stones. They then moved to an open space where the deceased fell down again and died. The appellant was chased, pelted with stones and later arrested, when he was wrongly accused of murder.

There were discrepancies in the evidence of witnesses, some difficulty in locating the stone used by the appellant and in determining whether it had been submitted to the Government analyst. There was no evidence that a stone similar to the one produced could have caused the fracture of the deceased's skull, as could a violent fall from some three feet six inches, if violent. There was no evidence as to the actual state of the ground in front of the veranda, or the state of the road where the deceased was alleged to have fallen.

In summing up to the assessors the Judge drew their attention to the discrepancies in the evidence and explained the difference between murder and manslaughter. The assessors, however, unanimously entered a verdict of not guilty both to murder and to the lesser charge of manslaughter. A general opinion only was given.

The trial Judge held that the deceased died as a result of a fractured skull, the injury having been inflicted by a rock deliberately thrown at him by the appellant. He convicted him of manslaughter. He referred to the opinion of the assessors but did not give his reasons for disagreeing with their opinions.

The appellant appealed on the ground, *inter alia*, that the trial Judge wrongly failed to heed the findings of the assessors.

Held – The purpose of assessors is to make sure that, as far as possible in the most serious cases which are tried by the High Court, the decisions of fact have a broad base conforming with the notions of that part of society to which the accused person belongs.

Assessors are of special value in determining whether an act amounts to provocation. They are of great importance in assessing the contradictory stories in a particular case, can guide the Court as to the manner and customs, and so to the truth of that which the witnesses have said.

The Court must give reasons for its decisions (*R v Paulo Lwevola Mupere* (1943) 10 EACA 63). It is fundamental that the Court gives reasons for disagreeing with assessors.

Assessors should give their opinions both generally and on special points, as the circumstances of a case require, having regard to fairness and the principles of natural justice (*Mohammed Bachu v Regina* (1956) 23 EACA 399 distinguished).

In the light of the conflict between the Judge and the assessors, it was doubtful whether the appellant had received a proper evaluation of his defence (which must have been generally accepted by the assessors). There was no recorded reasoning to provide a balanced and convincing explanation why the assessors' opinions had been disregarded. Their advice was equally as good as that of the learned Judge and the appellant must be given the benefit of the doubt.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Bachu v R (1956) 23 EACA 399 – **D**

R v Mupere (1943) 10 EACA 63

Judgment

Platt, Gachuhi JJA and Masime AJA: The appellant was charged with murder, but was convicted of manslaughter and sentenced to four years' imprisonment. It was found that on 22 December 1985 the witness, Waititu Ngage (PW3), fell into a quarrel with the appellant. The latter knocked him down, kicked and hit him. The nephew of Waititu, Ndungu Kangethe, came up to them and asked the appellant why he was killing his father. Ndungu separated them by getting hold of them. The appellant then went some distance, picked up a stone, came back and hit Ndungu on the head with it, by throwing it. In fact the appellant threw two stones. When Ndungu was hit, he fell down motionless and the appellant ran away. The appellant was chased by Daniel Njoroge Kibe (PW7), and threw stones at this witness. The scene was also observed by Paul Kinuthia (PW5) who came out of his bar, the Mugunda Bar and found, like Daniel Njoroge Kibe was chasing the appellant. But the latter was not apprehended at that time.

There was some difficulty in locating the stone used by the appellant. The stone thought to have been involved had no blood on it, according to the government analyst. There was also some difficulty whether it had been at first submitted to the analyst. But a stone such as the one produced could have

caused the fracture of the deceased's skull. A fall from some three feet six inches if violent could have caused the injury. The depressed fracture on the side of the head had caused intracranial haemorrhage which in turn had caused death.

The defence, in short, was that this Sunday 22 December 1985, the appellant had been drinking with friends. He left them and went to the trading centre and entered the bar of Paul (PW5) and found Waititu (PW3) and Ndungu, the deceased. The appellant bought them beer. Somebody called Njenga came and told Waititu that he would like Waititu, a barber by trade, to cut his hair. Waititu said he was too drunk to do so. The appellant wanted to leave, but the others insisted that he buy them more beer at Mugunda Bar. They went on to the veranda which is raised one and a half feet above the ground. Ndungu, the deceased, started to pull Waititu. The latter fell down and Ndungu fell off the veranda, and landed on stones which were there. The appellant picked up Waititu and the deceased got up himself. They went to an open space in the centre of the village and Waititu and Ndungu started pulling the appellant to Mugunda Bar to buy more beer. The appellant released himself and Ndungu fell again. He did not get up, but was surrounded. The appellant was accused of killing Ndungu. He was assaulted by Njoroge and escaped. He was chased by Njoroge and Kaguru who threw stones at the appellant. The latter was later arrested.

Githoka Gahera spoke for the appellant (PW1) but did not see anything relevant. Peter Njenga (DW2) testified. He had asked Waititu to cut his hair, but then joined in drinking with Waititu, the appellant and the deceased at Gituamba Bar. They wanted to go to the other bar. All three, Waititu Ndungu, deceased and the appellant fell off the veranda. They went on to another place just opposite Mugunda Bar. They were pulling each other and fell down a second time. Waititu and the appellant got up but Ndungu did not. There was no great hostility and the witness saw no stone throwing. The appellant was accused and challenged to a fight. But the appellant ran away.

The learned Judge summed up all this evidence to the assessors. He drew attention to the discrepancies in the evidence quite properly. He explained the state of the ground where the combatants had been. He drew attention to the difference between manslaughter and murder. But the assessors unanimously returned opinions that the appellant was not guilty of any offence. A general opinion only was given. After a credible trial dealing with the evidence correctly, and summing up fairly, if we may say so the learned Judge then precipitated this appeal by taking account of the opinion of the assessors, save that he correctly stated what their opinions were. The ninth ground of appeal is:

> "9. The learned trial Judge wrongly failed to be persuaded by the findings of the assessors."

The other grounds of appeal deal with various aspects of the evidence upon which the appellant contends that Waititu, who was a single witness, ought to have been believed.

This is a first appeal by way of rehearing. This Court is bound to evaluate the evidence for itself in the light of the assessors' opinions and the learned Judge's findings.

We turn first to the principles of law involved.

Section 262 of the Criminal Procedures Code provides that in the High Court "all trials shall be with the aid of assessors".

Section 263 provides that they shall be three in number to be selected from the list of those persons summoned (section 297). They are to attend during all adjourned sittings until the conclusions of the trial (section 299). At the close of the hearing section 322 then provides:

> "(1) When, in a case tried with assessors, the case on both sides is closed, the Judge may sum up the evidence for the prosecution and the defence and shall then require each of the assessors to state his opinion orally, and shall record that opinion.
>
> (2) The Judge shall then give judgment, but in doing so shall not be bound to conform to the opinions of the assessors."

Section 322(4) allows the assessors to retire to consider their opinion and during such retirement to consult one another. If the Judge is not bound by the opinion of the assessors, yet the trial is to be conducted with their aid, what form should this aid take? The purpose of the assessors is to make sure that, as far as possible in the most serious cases which are tried by the High Court, the decisions of fact have a broad base conforming with the notions of that part of society to which the accused person belongs. The assessors are of special value in determining what action amounts to provocation. They are also of great importance in assessing contradictory stories of what occurred in a particular case, and they may be able to guide a Court as to the manners and customs, and so to the truth of what the witnesses have said. It is therefore right and proper that the trial should be with the aid of assessors in the full sense; they should be allowed to ask the witnesses questions; they should have exhibits and reports shown and explained to them; and they should give their opinions in general and on special points as the circumstances of a case require.

Take for instance, *R v Paulo Lwevola Mupere* (1943) 10 EACA 63, a decision which perhaps would not attract modern approval. The modern assessor would have found provocation almost certainly. But to get to a decision which of several acts might be provocative, this Court's predecessor doubted the wisdom of merely allowing a general opinion or verdict to be recorded.

> "It is observed that the assessors merely said 'I find accused guilty of murder'. It is often desirable for the Court of Appeal to know not only the assessor's opinions but also their reasons for their opinions. With regard to the judgment we should have liked a fuller judgment and we attract the attention of the learned Judge to section 168 of the Criminal Procedure Code."

That is to say, the judgment ought to be based on reasons given for the decision. In that case, the assessors agreed with the Judge. Here the assessors disagreed. It is therefore fundamental that the Court gives its reasons for disagreeing with the assessors. Now, of course, in the case of a general opinion the Court will hardly be able to do so. The value of *Paulo Lwevola*'s case is that it established that decisions are to be taken with reasons, which can be seen to prevent arbitrary measures.

Later on in 1956, *Bachu v R* (1956) 23 EACA 399 was decided. The issue was whether the trial was a nullity because the specific opinions of the assessors had not been taken as to whether the evidence showed sufficient provocation to cause an ordinary person of the appellant's community to lose his power of self-control. In considering what might be meant by the phrase "a trial with the aid of assessors", the forerunner of the present section 322 was set out – they are in identical terms – and the Court of Appeal commented that the Code did

not specify that the opinions of the assessors should be taken on every question that arises in a case. The conclusion however at 401 was:

> "We can well imagine cases in which it would be proper and indeed advisable for the trial Judge to obtain a specific opinion from the assessors on a certain point in addition to their opinions on the case as a whole. In fact it is often done, but the Kenya Criminal Procedure Code does not specifically require it to be done in all cases and the interference by this court solely on the ground that the Court had not required an opinion from the assessors upon a particular point as well upon the case as a whole could only be justified if it were shown that is was unfair to the accused or contrary to the principles of natural justice."

The problem in *Bachu*'s case seemed to the Court of Appeal to be resolved as a straight-forward case of mere vulgar abuse exchanged between the deceased and the appellant, with no basis for provocation. Consequently no interference was justified. In the present case it appears to us that specific opinions should have been called for and we would specifically apply the test of unfairness to the accused and natural justice. The Criminal Procedure Code provides that a judgment must contain the points for decisions and reasoned decisions on those points. That is required so that justice may be seen to be done, especially in the serious cases that the High Court deals with.

The learned Judge had before him a very controversial case in which the main participants had all been drinking considerably. As the appellant points out, there was only the evidence of Waititu, a single witness, for the prosecution, against that of Peter Njenga and the appellant. It is very difficult to understand what "corroboration" Paul Mungai Kinuthia offered. He only saw the appellant being chased after Ndungu had fallen down. On either side it was said that the appellant ran away to avoid arrest, either because he was justly accused or unjustly suspected. Again while the prosecution alleged that, the appellant threw stones at his pursuers Peter Njenga said the pursuers of the appellant threw stones at him. Thus Njoroge's evidence of the chase after the appellant is compromised by the evidence of Peter Njenga. But the learned Judge found "corroboration to some degree in Kinuthia's evidence".

The second confrontation is whether the appellant threw the stone which injured the deceased or whether the deceased hurt himself in either of the two alleged falls. The finding of the stone at 10:00pm when Constable Ablon Nyambane visited the scene, after its use at 5:00pm, is rather extraordinary. According to Ablon it was identified by members of the public. Who were they? They were not Waititu, Kinuthia or Njoroge. Waititu identified the stone in Court as the one that hit the deceased. Then he said: "I did not show it to anybody as I did not pick it up. It was the police."

There was no evidence what happened to the stone after it hit the deceased, as to where it landed, or how it was guarded. At any rate none of the prosecution witnesses showed this stone to the police constable, and the evidence stood to be hearsay, unless Waititu could actually identify it for some reason. There were two stones in any case. Whether Waititu could actually identify either of them is problematic. At least he gave no distinguishing marks and they were not collected at once.

On the other hand, it was said that the deceased could not hurt himself by falling off the veranda, or falling on the road. As far as we can tell, the police officers did not give evidence as to the actual state of the ground in front of the

veranda or the state of the road. The fact that the appellant could not quickly pick up a stone to throw, does not necessarily show that there was not a rock or rocky surface, which could not be picked up lying in the dusty surface. It would also depend on the force of the fall from the veranda or again in the road, if that were the case. It is doubtful if the witnesses knew or were asked to describe the surface where the deceased fell.

It seems clear that the learned Judge maintained that the deceased fell over only once, not twice. It seems that he followed Waititu's evidence steadfastly. The defence was very clear that the deceased fell over twice in two different skirmishes.

It is to be inferred from the opinions of assessors that some part or all of Waititu's evidence was not believed. It might be argued that the learned Judge gave his opinion explaining the reasons why he believed Waititu's, Kinuthia's and Njoroge's (PW3 and 5) opinions on the specific aspects of the case. The Judge must have answered their objection in showing the strength of the prosecution case and rejecting the defence. But that is not so. We cannot tell what reasons would have been given. Moreover, it is one thing to disagree with a general opinion which might be considered vague; it is another thing to overrule a specific finding such as that Waititu was not trustworthy; that the stone was not carefully scrutinised; and that the benefit of these doubts must be given to the appellant. It would be very strong action to overrule the unanimous opinion of the assessors on these points, in the circumstances of this case, where there is evidence which might be decided either way.

At least the learned Judge might have analysed the inferences from the assessors' opinions, and taking the most favourable position for the appellant assessed the evidence in that light. That would have gone some way to cure the lack of taking specific opinions; but it would not have provided the Court with what the assessors actually thought. That is alone what would have given his judgment the basis on which to build a reasoned opinion differing from or in agreement with them. As it is, finding against the normal expectation, that the Judge has made findings which are usually rather forced, such as the "corroboration" of Kinuthia the "identification" of the stone; and the "assurance" that the deceased could not have hurt himself in falling. There was no cast-iron evidence to support these findings, but sketchy evidence if any at all.

In these circumstances, looking at the evidence for ourselves in the light of these conflicting opinions, there is doubt whether the appellant did receive a proper evaluation of his defence. His defence must have been accepted by the assessors in general. Against that there is not recorded such reasoning which can be said to provide a balanced and convincing explanation why the said assessors' opinion should not be followed, that we should accept the advice of the assessors as being at least equally as good as that of the learned Judge. The appellant must be given the benefit of the doubt.

The appeal is allowed, the conviction quashed and the sentence set aside. The appellant is to be set at liberty forthwith unless held for any other lawful cause.

For the appellant:
In person

For the respondent:
Information not available

Kinyanjui v Republic
[1986–1989] 1 EA 288 (CAK)

Division: Court of Appeal of Kenya at Nakuru

Date of judgment:	25 February 1988
Case Number:	141/86
Before:	Platt, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Criminal procedure – Charge sheet – Substantive counts including alternative counts of conspiracy.

[2] Criminal procedure – Theft – Accused charged with eight counts of theft – Each count having alternative count of conspiracy to defraud – Accused complaining of prejudice by the charge sheet – Whether charge sheet prejudicial.

Editor's Summary

The appellant was charged before a Magistrate's Court with nine counts of theft and alternative counts of conspiracy against each of the counts. Objection was raised as to the propriety of bringing alternative counts where there were substantive counts. It was argued for the defence that it would be difficult to prepare the defence or even sentence and asked that the charges should be rejected under section 137 of the Criminal Procedure Code. The Magistrate refused the application and the appeal to the High Court rejected. The appellant then moved to the Court of Appeal.

Held – It is not illegal *per se* to join alternative charge of conspiracy; indeed it is not necessarily illegal to frame a substantive charge of conspiracy, together with substantive charges for specific offences (*Musinga v R* (1951) 18 EACA 211; ER 701 approved).

As a general rule, where there is an effective and sufficient charge of a substantive offence, the addition of a charge of conspiracy is not desirable, except where it is in the interest of justice, where there is clear evidence of conspiracy but little evidence that the conspirators committed any of the overt acts or where charges of substantive offence do not adequately represent the overall picture.

The main consideration in deciding whether to admit an alternative court in fairness to the accused, so the accused can know what charges he is facing.

It is usually in order that the prosecution elects whether to proceed with the substantive or alternative counts or be asked to justify its charge sheet (*Uganda v Milenje* [1970] EA 269 approved).

Appeal was allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Mulama v Republic [1976] KLR 24

Musinga v Republic (1951) 18 EACA 211 – **APP**

Uganda v Milenje [1970] EA 269 – **APP**

United Kingdom

R v Cooper and Compton [1947] 2 All ER 701

R v Luberg 19 Cr App Rep 136

Verrier v DPP [1966] 3 All ER 568

Judgment

Platt, Gachuhi and Apaloo JJA: This appeal was well-taken on the point whether, in the case of nine counts alleging a specific offence (eight counts of theft and one count of attempted theft), it was proper to add a count of conspiracy as an alternative. So, for example on the first count, it is alleged that three persons, of whom the present appellant is one, jointly stole KShs 97 655, the property of the Pyrethrum Board of Kenya. The alternative count stated that the three men conspired to defraud the Pyrethrum Board of KShs 97 655.

Similarly seven succeeding charges of the theft of a specific sum of money were followed by an alternative count charging a conspiracy to defraud the Board of that sum of money. The last and ninth count alleged an attempted theft of KShs 270 754,50 and the alternative count alleged a conspiracy to defraud the Pyrethrum Board of that particular sum of money.

When the trial started before the Principal Magistrate on 3 June 1987, the prosecutor applied to put in a substituted charge which introduced the alternative charges of conspiracy. Mr Ochieng was off the mark at once protesting at the inclusion of these alternative charges on the grounds that the distinction must be declared as to whether there was a theft, and if not then let the accused be charged with conspiracy. Mr *Sheth* followed. He added that it was obvious that it would be difficult and embarrassing in preparing the sentence. The charge was bad and should be rejected under section 9(7) of the Criminal Procedure Code. Mr Kimatta agreed that the charges must be clarified so that the accused would know what charges they were facing.

Neither the Principal Magistrate nor the Judge in the High Court had any sympathy for these arguments. Their stand was that the substituted charge sheet was not invalid *per se*, and would not cause prejudice. It appears that the original charge had distinct counts of conspiracy to steal covering the same period. Apparently, the substituted charge had cured one alleged defect of the original charge, where specific thefts were followed by substantive counts of conspiracy. It was thought to make all the difference if the conspiracy counts were alternatives to the specific charges of theft. The learned Judge quoted a High Court decision *Mulama v Republic* [1976] KLR 24 where Trevelyan and Chanan Singh JJ held that the Courts do not and have never looked kindly at conspiracy charges brought instead of specific offences, when specific charges are available. In that case there was only a conspiracy charge which failed because one of two conspirators was acquitted. It is a decision which hardly applies to the facts of this case, although it was correctly decided on its own facts. Whilst the High Court offered its protection in general to accused persons charged with conspiracy, it dismissed the appeal, because no prejudice would be caused in this particular case.

Mr *Sheth*, on behalf of his appellant, and we suppose the other accused persons, has undertaken to challenge these views. His grounds of appeal are that the substantive and alternative counts were not very clear and distinct in themselves, and were not capable of permitting the appellant to prepare his case. Secondly, it was wrong to form the view that there was nothing wrong in law in laying a conspiracy charge as an alternative to that of stealing. Thirdly, the learned Judge ought to have held that the charge sheet was bad in law in that it was ambiguous and prejudicial to the proper defence of the appellant. The appellant had the right to know the offence with which he was charged. Lastly, the learned Judge had failed to appreciate the fundamental principles of the criminal law and practice concerning the joinder of charges.

At the hearing of the appeal a more careful case was presented. It was acknowledged, first of all, that the decision of this Court's predecessor in *Musinga v Republic* [1951] 18 EACA 211 was one which sets the complications of this problem in realistic perspective. At 216 the East African Court of Appeal remarked:

> "Counsel for the appellants have referred us to expressions of opinion by this court and by courts in England, deprecating joinder of a charge of conspiracy with charges of specific offences based on the same evidence. It is admitted that there is no illegality in such a joinder, but we agree that it ought not be done in cases where it is likely to prejudice the conduct of the defence. No objection was raised to the order of this charge at the trial and we do not think that it was improper in the circumstances of this case. Indeed, it would seem to have been the only course open to the Crown to bring home the guilt of some persons concerned in this series of illegal transaction."

We can therefore agree with the Courts below that it is not illegal *per se* to join an alternative charge of conspiracy; indeed it is not necessarily illegal to frame a substantive charge of conspiracy together with substantive charges for specific offences, as *Musinga*'s case above shows, and more especially *R v Cooper and Compton* [1947] 2 All ER 701. The problem is deeper than simply changing substantive counts of conspiracy to alternative counts. Dealing with counts of conspiracy raises problems which require discretion and complete understanding of the case in hand. It seems to us that the principles summarised in Archbold *Criminal Pleading Evidence and Practice* (40 ed) at paragraph 4073 as to the desirability of including a count of conspiracy in an indictment or charge offers a useful approach. But the question cannot be determined by the application of any rigid rules. Each case must be considered according to its facts. The following points should be considered:

1. As a general rule where there is an effective and sufficient charge of a substantive offence, the addition of a charge of conspiracy is undesirable. It is not desirable to include a charge of conspiracy which adds nothing to an effective charge of a substantive offence. The conspiracy indeed may merge with the offence.
2. To this general rule there are exceptions, as for instance:
   (*a*) where it is in the interest of justice to present an overall picture, which a series of relatively small substantive offences cannot do, sometimes a charge of conspiracy may be the simpler way of presenting the case;
   (*b*) where there is clear evidence of conspiracy but little evidence that the conspirators committed any of the overt acts or, where some of the conspirators, but not all, committed a few, but not all, of the overt acts, a count for conspiracy is justified;

(*c*) where charges of substantive offences do not adequately represent the overall criminality disclosed by the evidence, it may be right and proper to include a charge of conspiracy.

3. But a count for conspiracy should not be included if the result will be unfair to the defence, and this has always to be weighed against other considerations.

4. It may be necessary to try a count for conspiracy separately from substantive counts which are only examples of carrying out the conspiracy.

5. Where the evidence discloses more than one conspiracy, it is undesirable to charge all the conspiracies in one count, but may not be bad in law as Musinga's case shows.

6. Other factors concern the number and types of conspirators, for instance, the possibility of two being husband and wife, or of two conspirators the possibility that one may be acquitted, my need to be safeguarded as Mulama v Republic [1976] KLR 24 indicates.

The question which one must then ask is why or in what circumstances it is undesirable to join a count of conspiracy with counts for substantive offences? The main ground is unfairness to the accused, which is a general consideration. That may arise because the accused may not know with what he is charged precisely, or it may be embarrassing to be obliged to defend in the alternative. In this case, were the thefts or attempted theft completed, or was it merely a conspiracy without carrying out any overt acts?

Secondly, it is desirable that the Court admits only evidence which is admissible in law, and what is admissible in a substantive offence and in a conspiracy may cause confusion. In *Musinga*'s case the Court explained at 216:

> "A person who joins a conspiracy is responsible, in law for all acts of his fellow-conspirators, done in furtherance of the conspiracy, whether done before, during or after his participation. In our view therefore, as continuing unlawful possession of the welfram, even if it originated with the second appellant, attached itself in law to the other conspirators."

In *R v Luberg* (19 Cr App Rep 136) Sankey J highlighted the point in this way:

> "But we do desire to say one word about the whole indictment, it will be observed that it starts with the general count for conspiracy I am far from saying that is wrong . . . but it does, in our judgment place the defendants in a case like this in some difficulty. The reason is that it renders admissible evidence of what one prisoner says in the absence of the other because if they are all conspirators what one of them says in furtherance of the conspiracy could be admissible evidence, even though it was said in the absence of the other conspirators."

It is necessary to be quite sure that no evidence is given which is inadmissible and great care is required in approaching the evidence to keep all the issues perfectly clear at the trial, and in judging the case afterwards

The third matter used to concern sentence see *Verrier v DPP* [1966] 3 All ER 568 to which we were referred). But that is catered for in Kenya by the skilful drafting of section 393 of the Penal Code.

Having set out the guidelines, we must then ask in what manner these conflicting interests are to be resolved? In England a practice direction was set out in [1967] 2 All ER 540. It was:

> "1. In any case where an indictment contains substantive counts and a related conspiracy count, the Judge should require the prosecution to justify the joinder, or failing justification, to elect whether to proceed on the substantive or on the conspiracy counts.

2. A joinder is justified if the Judge considers that the interests of justice demand it."

We may add that election or severance follows from the Court's inherent powers to see that its process is not abused, in the sense that the accused is guarded against oppression or prejudice. It is for this purpose that the rule is that the objection must be taken at the earliest opportunity; and here we congratulate counsel for trying to safeguard their clients at the right time, a chance missed in *Musinga*'s case, whether or not their clients are ultimately proved right.

Now these guidelines of 1977 are not unknown in East Africa. Mrs Awori brought the decision of the Court of Appeal in *Uganda v Milenje* [1970] EA 269 to the attention of the learned Judge. The Magistrate in that case had called upon the prosecution to justify or elect. That is the order that should have been made in this case.

Accordingly, we allow the appeal, set aside the rulings in both courts below, and remit the record to the principal Magistrate to take up the objection and cause the prosecution to justify his charge sheet or elect which offences he will rely upon. It was suggested that should take place in this Court. Provincial State Counsel was not prepared with the facts; so we are unable to carry out the exercise. The principal Magistrate will, we are sure, carry out his task without difficulty.

For the appellant:
Sheth

For the Republic:
Information not available

Kitavi v Coastal Bottlers Ltd
[1986–1989] 1 EA 292 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	10 September 1985
Case Number:	69/84
Before:	Kneller, Hancox and Nyarangi JJA
Sourced by:	LawAfrica

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[1] Master and servant – Failure to take precautions against injury to one-eyed employee – Quantum of damages – Proportion of damages for loss of remaining eye compared with loss of one eye – Whether English principles applicable.

Editor's Summary

The appellant who was aged 24, was at the material time employed by the respondent company, and engaged in opening cardboard cartons with a metal file in the course of his employment. He had lost his left eye at the age of five years, and on 4 March 1981, while prising open one of the cartons, a staple from it flew up into the appellant's right eye. Despite prolonged treatment and several operations he became totally blind in that eye also, except for minimal perception of hand movements and of light and darkness. Liability was admitted at the trial and the Judge awarded the appellant

KShs 13 150 as special damages, KShs 63 000 for loss of future earnings and KShs 250 000 for pain, suffering

and loss of the amenities of life. He appealed against the award of KShs 250 000 contending that it was manifestly too low and that the catastrophic nature of total blindness required the Court to assess the damages at four to five times that which would have been awarded for the loss of only one eye.

Held – There existed no clear pattern of awards in East Africa for the fortunately rare occurrence of total blindness in injury cases.

That while only in Kenya decisions as regards quantum should ordinarily be relied on, it was permissible to pay regard to the principles to be deduced from foreign, and especially English, authorities on the assessment of damages for the loss of both, as compared with the loss of only one, of the victim's eyes.

The loss of a second eye would fall into the category of injuries of the utmost gravity and was more serious even than the loss of both legs.

The Judge's award was so inordinately low as to warrant interference, and the sum for pain, suffering and loss of amenities would be increased to KShs 475 000.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Amin v Posts and Telecommunications [1971] EA 203

Butt v Khan (1982–1988) 1 KAR 1

Juma v Kenya Glass Works Ltd [1980] LLR 1271 (CAK)

Kemfro Africa v Lubia (1982–1988) 1 KAR 727

Kimothia v Bhamra Tyre Retreaders [1971] EA 408

Kitwai v Singh High Court civil case number 1 of 1980

Lubia v Kemfro Africa Ltd and Kanini High Court civil case number 2382 of 1979

Mariga v Musila (1982–1988) 1 KAR 507

Marube v Nyamuro (1982–1988) 1 KAR 108

Njara v Njenga High Court civil case number 495 of 1976

Oratach v Otieno High Court civil case number 109 of 1983

Singh and another v Singh and Handa (1955) 22 EACA 120

Southern Engineering Co Ltd v Mutia (1982–1988) 1 KAR 878

United Kingdom

Chan Wai Tong v Li Ping Sum [1985] 1 WLR 396; [1985] AC 446

Paris v Stepney Borough Council (2) [1951] 1 All ER 42

Singh v Toong Fong Omnibus Co Ltd [1964] 3 All ER 925

Wright v British Railways Board [1983] 2 AC 773

Judgment

Kneller JA: The only question raised in this appeal was whether the general damages for pain, suffering and loss of amenities awarded to Robert Msioki Kitavi, the appellant, should be increased.

The appellant sued his employer, Coastal Bottlers Limited, the respondent, for damages for his injuries incurred in an accident at their premises which he claimed were the consequence of its negligence and or breach of contract.

Mr Justice Bhandari gave judgment and made these awards in the High Court at Mombasa on 30 April 1984:

	KShs
Net special damages	13 150
Loss of future earnings	63 000
General damages	250 000
Total	326 150

The appellant has come to this Court because (in the words of his memorandum of appeal of 5 June 1984):

> "1. The learned Judge erred in awarding KShs 250 000 by way of general damages for pain and suffering and loss of the amenities of life for the injuries he sustained.
>
> 2. The learned Judge's award of KShs 250 000 for general damages is so inordinately low that it must be a wholly erroneous estimate of the loss and damage sustained by him.
>
> 3. The learned Judge erred in relying on or giving undue regard to the statement by *Munkman* that:
>
> "the conventional figure for total blindness is about £9 000, that is thrice the loss of one eye."
>
> 4. The learned Judge erred in assessing general damages failed to appreciate or to consider the fact that although the loss of one eye by itself would not be regarded as so serious an injury as the loss of one hand or one leg or the loss of hearing in one ear, the loss of sight in both eyes would be a lot more serious than the loss of two legs or two hands or the total loss of hearing, and he should have awarded in the light of awards for such injuries."

So Mr *Gautama*, with Mr Pandya for the appellant, asks this Court to set aside the award of KShs 250 000 for pain, suffering and loss of amenities and reassess it at something like KShs 750 000 to KShs 600 000. The respondent has not cross-appealed but, instead, instructed Mr *Inamdar* to submit, at first, that, all in all, KShs 250 000 was an appropriate award, but, later, to offer KShs 360 000 to KShs 400 000 which the appellant's advocates refused.

The appellant was employed by the respondent as a casual labourer at its bottling plant in Liwatoni, Mombasa. He loaded bottles onto a machine and later he mixed sugar and water in a tank, heated it, added chemicals and filtered it until it became a syrup. He did all this with one blind and one seeing eye for KShs 17,50 a day.

On 4 March 1981 when he was levering out staples with a metal file from a carton of concentrated syrup one sprang out and perforated his right eye which was his remaining good eye.

He had several operations on it. The first and the second were in 1981, the same year as the accident, and at the Coast General Hospital on 6 March and at Kenyatta National Hospital in October respectively. The third was in 1982 at Machakos Hospital on 6 April. He was discharged on 18 April that year, and despite all the medical care and attention for 13 days in hospitals, he was and is, virtually sightless. He can just discern the shadow of a moving hand from eight feet away.

That is not all. His right eye cannot tolerate sunshine, and every two or three days it throbs with pain.

The Machakos Training Centre for the Blind has been or is teaching him braille and simple carpentry and joinery. He intends to return to his home in Bomani Location, Kitui, where, with his new skills, he will try to find employment but he thinks his prospects are dim.

Gone are the recreations he enjoyed; the cinema, reading and watching football matches. Someone must do his shopping, fetch and carry for him and even lead him to and from the outside lavatory. He is now about 28 years old and of Standard VII education.

Liability was admitted when the appellant's claims against the respondent came to trial at the end of June 1982. The only issue was the quantum of damages, special and general, the respondent should pay the appellant.

The learned Judge recorded evidence from the appellant and his eye specialist Dr Ved, the respondent's accountant, Andabwa and Aggarwal, another accountant, who has been analysing data for the local cost of living index. He then wrote his judgment in which he reviewed the facts in full.

There has been no complaint about his awards for special damages and future earnings. He referred to the *Juma v Kenya Glassworks*, Ugandan and the English awards brought to his attention. He took as a guide Madan JA's approach in *Juma*'s appeal to the foreign awards and the general principles for assessing awards for general damages for personal injuries. The Ugandan ones from the *Quantum of Damages* by Michael Wilkinson 1973 (3ed), he characterised as being "very old, the oldest ones being of [the] early sixties and the latest ones of [the] early seventies" but went on to note they were nearly the same as they were in England at the same time for the loss of one eye.

He adopted one principle from an English authority which was that the usual award for total blindness should be the same whether the victim lost his sight in both eyes or in the only good eye (*Paris v Stepney Borough Council* (2) [1951] 1 All ER 42). Paris, a garage hand aged 30, who was already a one-eyed man, was blinded in the other and the English Court of Appeal increased his general damages from £5 000 to £9 000 on 18 June 1951.

He kept in view the particular circumstances of the appellant, especially the three operations, and the incidence of inflation, before he settled on an award of KShs 250 000.

Here, in this Court, it was agreed all round that there is disfigurement, discomfort, a considerable loss of amenities and much mental anguish for the appellant but the respondent's advocate doubted that the appellant suffers much physical distress after the operations and the appellant's advocate harped on the throbbing pain which the appellant has to endure about thrice a week.

There are no decisions on awards for the loss of both eyes or the loss of the only good eye in this part of Africa that my researches have discovered. So, fortunately, cases of total blindness must be very rare. It means, however, that no clear pattern for such awards in East Africa has emerged.

Mr *Gautama* professed to be able to see one in England and that it was about four to five times the sum awarded for the loss of one eye which he suggested might be applied here in Kenya. Alternatively, he submitted, since the loss of sight in both eyes, or the sight in the one remaining eye, led to a much greater loss of amenities than the loss of both upper or lower limbs, the awards for the former should be nearly double those for the latter.

Mr *Inamdar* urged the Court to avoid the use of any ratio and concentrate on keeping awards for the loss of all amenities at a sensible level, bearing in mind the local figures for inflation, and testing each award by relating it to the appellant's gross annual earnings and or by what the annual interest on it would be if it were invested in say, a housing development bond, which is tax free up to a maximum of KShs 500 000 at 12% per annum a year?

Local awards for the loss of sight in one eye include:

(*a*) KShs 55 000 for a 22-year-old mechanic who lost his right eye in an accident and for whom there was a slight risk of sympathetic disease in the left eye (Amin v Posts and Telecommunications [1971] EA 203 (U) Youds J).

(*b*) KShs 50 000 for a turnboy paid KShs 300 a month for the loss of his left eye (Nyara v Njenga and others High Court civil case number 495 of 1976, Simpson J).

(*c*) KShs 50 000 for a 42-year-old casual worker earning KShs 14 a day in a glass factory who lost his sight in his left eye with a slight risk of opthalmia sympathetica in the other eye (Juma v Kenya Glass Works Ltd High Court civil case number 598 of 1977, Kneller J). Increased by a majority of the Court of Appeal to KShs 70 000 (Juma v Kenya Glass Works Ltd civil appeal number 1 of 1980).

(*d*) KShs 150 000 for a bright pretty girl of 8 who lost her right eye in an accident (Lubia v Kemfro Africa Ltd and Kanini Nairobi High Court civil case number 2382 of 1979, 29 March 1982 Cockar J. Upheld by Court of Appeal in Kemfro Africa v Lubia (1982–1988) 1 KAR 727).

(*e*) KShs 30 000 for a schoolboy of 14 who lost his sight in the left eye when he was struck by his schoolmaster (Marube v Nyamuro (1982–1988) 1 KAR 108).

And those for loss of two limbs include:

(*a*) KShs 400 000 for a 28-year-old turnboy who had to have both legs amputated below the knee (*Kitwai v Singh and others* High Court civil case number 942 of 1978, Mombasa, Kneller J).

(*b*) KShs 600 000 for a 37-year-old production superintendent (paid KShs 7 778 a month) for impotence near a total paralysis in left arm and leg, and still right knee (Musila v Mariga High Court civil case number 376 of 1979, Mead J, 19 October 1981. Upheld at Nakuru by a majority of the Court of Appeal on 18 May 1984).

(*c*) KShs 1 000 000 for a boy aged 3 whose legs were amputated above the knees (Oratach v Otieno and another High Court civil case number 109 of 1983, Masime J).

Now it seems to me that awards in the 1970s, anywhere, for pain, suffering or loss of amenities are of insignificant help without taking into account the contemporary value of money, for it is vital to keep abreast of current awards which increase to reflect past inflation. Future inflation should be discounted for it is assumed that the damages awarded and paid will be invested at once so as to provide about 4% income a year and or capital appreciation.

The loss of an eye, or the vision in it, does not usually affect earning capacity in most occupations that do not require excellent vision though for those with no work it closes many opportunities for finding one. It makes the victim liable

to total blindness if the remaining eye should be injured. Thus the most that can be said about local awards for the loss of one eye is that the loss of two or the loss of the remaining one, or the vision in it, should be substantially greater.

I would eschew rations, which smack of a rigid mathematical approach, though it is plainly right for the Court of Appeal to try to provide guidelines for the standard range of damages for particular injuries, just as in England the House of Lords has suggested its Court of Appeal should (*Wright v British Railways Board* [1983] 2 AC 773). For fairness between one plaintiff and another, it has been said, requires some degree of uniformity (*Singh v Toong Fong Omnibus Co Ltd* [1964] 3 All ER 925 (PC)).

It is now settled law that what the appellant was entitled to was fair or reasonable compensation assessed with moderation and in conformity with the general method of approach local courts have taken. Guidelines and brackets for various injuries are useful aids to some hope of consistency but awards will very much depend on the facts of each case and any attempt to standardise or rigidly classify them will be in vain and wrong.

And it is right that when paying due regard to the range of awards in comparable cases trial Judges should confine themselves to local ones or those neighbouring countries if the social and economic conditions are roughly similar (*Kimothai v Bhamra Tyre Retreaders and another* [1971] EA 408 (CAK) Law JA).

It is, however, permissible, and useful, to study, and if need be, apply, the factors which must be taken into account in assessing such damages which exercise the English courts for in general the law here is the same. The same is correct for the approach of this appellate court when asked to raise or lower awards, and for the same reason. See the advice of the Privy Council in *Singh (an infant) v Toong Fong Omnibus Co Ltd* [1964] 3 All ER 925 and *Chan Wai Tong and another v Li Ping Sum* [1895] 2 WLR 396.

The Court of Appeal of Kenya, then, should, as its fore-runners did, only disturb an award of damages when the trial Judge has taken into account a factor he ought not to have taken into account or failed to take into account something he ought to have taken into account or the award is so high or so low that it amounts to an erroneous estimate (*Singh and another v Singh and Handa* (1955) 22 EACA 125 (CAK) at 129; *Butt v Khan* (1982–1988) 1 KAR 1).

Returning now to the award in this appeal, it is significant that the learned Judge, to some extent, relied, first, on the English award of £9 000 general damages for the garage hand who was blinded through the loss of his remaining good eye (*Paris v Stephey Borough Council* (*ibid*)), and, secondly, insufficient recent local awards. The Paris award was a foreign one and about 33 years out of date. The local ones should have been cited to him by the advocates for the parties in trial. Thirdly, and finally, KShs 250 000 in 1984 for the injuries the appellant suffered was, in my respectful view, so inordinately low an award for general damages that it was a wholly erroneous estimate and it cries out for an increase. He should have been awarded KShs 475 000 under this heading.

I propose, therefore, that this appeal be allowed with costs and that the award of Mr Justice Bhandari of KShs 250 000 for the appellant's pain and suffering and loss of amenities be increased to KShs 475 000.

Hancox JA and Nyarangi JA agree so the order of the Court is that the appeal is allowed with costs and the award of KShs 250 000 as general damages for pain, suffering and loss of amenities made by the learned Judge is set aside and one of KShs 475 000 substituted.

Hancox JA: The injury to the appellant's only good eye in this case resulted in the catastrophe of his being, to all intents and purposes, totally blind at the age of only 24. True he has some perception of hand movements, and of light and dark but it is minimal.

It may be, as Mr *Inamdar*, for the respondent, submitted, on the basis of *Munkman's Personal Injuries for Damages and Death* (6 ed) that total blindness is regard as less severe than the paraplegic or quadriplegic cases, but it is, nevertheless, in my judgment, an injury of the utmost severity.

I consider, without doing any violence to the principle this Court has enunciated in *Southern Engineering Co Ltd v Mutia* (1982–1988) 1 KAR 878, with regard to reliance on English authorities, that it is proper for us to pay regard to the fact that those authorities show that the loss of both eyes, or of the second eye where the sight of one is already lost, is regarded as four to five times more serious as the loss of only one eye. I would regard it to five times than even the loss of both legs for which KShs 400 000 was awarded by Kneller J (as he then was) in *Kitwai v Singh and others* High Court (Mombasa) civil case number 942 of 1978, in September 1981. In most of those cases artificial limbs can be fitted and a degree of mobility and lack of dependence on others achieved. This is almost impossible in the case of a blind person. As Mr *Gautama*, for the appellant, submitted, it involves the loss of virtually all the joys and pleasures of life.

Bearing in mind that, unlike some of the blindness cases to which we were referred, the respondents did not cause the loss of both his eyes, and are to that extent unfortunate in being saddled with the enormity of the appellant's loss, I nevertheless agree with the judgment of Kneller JA, which I have had the advantage of reading in draft, that the KShs 250 000 awarded by the learned Judge in this case for total blindness was an entirely inadequate and erroneous estimate. I agree that KShs 475 000 is the right figure to be substituted for it, remembering that no money award can ever compensate the appellant for his tragic disability. I would therefore, allow the appeal to the extent proposed by Kneller JA and I agree with the order he proposes as regards costs.

Nyarangi JA: Total blindness may not only have a devastating effect on earning capacity, but may also place in perpetual peril the physical well-being of the blinded person. A feature writer in the *Sunday Nation* 28 July 1985 said the following about eyes, "Eyes have often been called the windows of the mind. They have also been described as the mirror of heart. The vital organ has more value than just sight". The injury as a result of which the respondent, then one-eyed, was blinded through the loss of the other eye was catastrophic, surpassed only by the rare paralysis cases.

Decisions of English courts, to which it is necessary to refer because this is the first case ever on total blindness to be argued before this Court and therefore there is no general run of local assessments made over the years in comparable cases, show that total blindness, either through loss of the other eye or loss of both eyes is treated as at least four times the loss of one eye. In *Kitwai v Singh and others* High Court civil case number 942 of 1978 Mombasa, Kneller J (as he then was) awarded the plaintiff KShs 400 000 for severe injuries, loss and damage, shock, pain, discomfort, loss of amenities, including the *loss of both legs*. There is an inter-relationship, on a common-sense basis, between the loss of both legs and the loss of both eyes. It is necessary to guard against a sentimental approach. Yet even on a cool and dispassionate approach, the loss of both eyes

is far worse than the loss of both legs. In this case the award of KShs 250 000 which is less that KShs 400 000 for loss of both legs etc is quite clearly an erroneous one warranting interference. Bearing in mind the age of the appellant, his expertise, and his income at the material time, moderation in assessment of damages and the fortunate rare incidence of this type of injury, I would respectfully agree with Kneller JA, whose judgment I had had the advantage of reading in draft, that a sum of KShs 475 000 paid in a lump sum, and sensibly invested to earn interest, is about adequate as an award. I agree with the order proposed by Kneller JA on costs.

For the appellant:
Satish Gautama and *KM Pandya*

For the respondent:
IT Inamdar

Kiyato v Republic
[1986–1989] 1 EA 299 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	7 May 1986
Case Number:	100/85
Before:	Kneller, Hancox and Nyarangi JJA
Sourced by:	LawAfrica

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[1] Criminal procedure – Conviction of accused on capital charge – No record of language into which proceedings translated – Appellant alleging Somali language used which he did not understand – Section 77(2)(f) – Constitution of Kenya – Section 198(1) – Criminal Procedure Code.

Editor's Summary

The appellant was convicted as a member of a gang of three persons who raided a dwelling house in Nanyuki and of robbing the wife of the occupant. He was sentenced to death under section 296(2) of the Penal Code. When his trial began before the Magistrate no record was made as to the interpretation and the appellant subsequently claimed in his appeals to the High Court and to the Court of Appeal that though he was a Boran the interpretation of the proceedings had been conducted in Somali. Both his statements to the police had been made in Swahili. There was indirect evidence supporting the appellant's claim that he had asked for a Boran interpreter at his trial. The first appeal was dismissed. On second appeal:

Held – It is a fundamental right in Kenya whatever the position is elsewhere, that an accused is entitled to the assistance of an interpreter through whom the proceedings shall be interpreted to him in a language which he understands.

In the instant case neither the name of the interpreter nor the nature of the interpretation had been recorded and the inference was that the appellant's claim was correct.

There were indications that the appellant may have followed the gist of the proceedings but did not fully understand them. Accordingly, the case would be remitted to a competent court for a re-hearing as there had been a breach of a fundamental and constitutional requirement.

Appeal allowed.

No cases referred to in judgment

Judgment

Nyarangi JA: On the night of 7 August 1983, a gang of three persons raided the dwelling house of Mr Pedro Nihages de Mello in Nanyuki, attacked his wife and daughter who were sleeping there and robbed them of a number of items, including watches, a radio, clothing and a pair of shoes, and, most importantly, cash to the value of KShs 200 600. The appellant was arrested in Isiolo on 8 November 1983, three months after the robbery (not the very next day as the High Court erroneously stated on the first appeal). The evidence at his trial, held before the Senior Resident Magistrate at Meru in March 1984, consisted mainly of visual identification evidence and possession of four items identified as having been stolen during the course of the robbery.

The appellant was convicted of the capital offence of robbery contrary to section 296(2) of the Penal Code and duly sentenced to death as that subsection requires. His first appeal to the High Court was dismissed and, legally represented for the first time, he has preferred a second appeal to this Court. Both before the High Court and in the original and supplementary petition of appeal to this Court the appellant has consistently maintained that he had asked for a Boran interpreter at his trial, but the interpreter used was a Somali. We understand that there is a considerable difference in these two languages, though they occasionally overlap. In the High Court and in this Court he was afforded the services of a Boran court interpreter.

In the event this was the only ground seriously argued by Mr *Adala*, who now represents the appellant and settled the supplementary memorandum of appeal filed on 29 April 1986, the day before the hearing. Grounds 2 and 3 state:

> "2. The learned trial Judge erred both in law and fact in failing to appreciate that the proceedings in the lower (Magistrate's) Court were conducted in a language which the appellant was not familiar or proficient in or at all, the – appellant being a Borana and proficient in the Borana language and the proceedings being conducted in the Somali language.
>
> 3. As a result of this the appellant did not follow the proceedings of the lower court at all and this occasioned a serious miscarriage of justice."

It is a fundamental right in Kenya, whatever the position may be in other countries, that a person accused before the Courts of an offence is entitled, without payment, to the services of an interpreter who can translate the evidence for him, and through whom he can put such questions to the witnesses as he wishes, and make his statutory statement, or give his evidence, as may be. This is clear from section 77(2)(*f*) of the Constitution which states:

> "77 (2) Every person who is charged with a criminal offence . . .
>
> (*f*) shall be permitted to have without payment the assistance of an interpreter if he cannot understand the language used at the trial of the charge."

Section 198(1) of the Criminal Procedure Code is even more precise and says:

> "198 (1) Whenever any evidence is given in a language not understood by the accused, and he is present in person, it shall be interpreted to him in open court in a language which he understands."

The words “in a language which he understands” are of crucial importance.

The practice of recordings, if not the name of the interpreter, at least the nature of the interpretation, has been standard practice in these courts for many years. For example, that which is described as the “plea form”, Form Criminal 133, contains under all the other details of the case and of the accused, a space against the word “Interpretation”.

There was no compliance with either of these two statutory provisions or with the standard practice in the instant case. The Magistrate made no note of the language into which the evidence of the witnesses, many of whom spoke in English and Swahili, was being translated. The fact that the appellant did make a request for a Boran interpreter is borne out by the passage in the evidence of IP Kimanzi, who recorded the appellant’s inquiry statement, exhibit 8, and who said:

> “I am surprised to hear him ask for a Boran interpreter today. He was speaking in Kiswahili that day.”

Indeed both that statement and the appellant’s charge and caution statement, made on 21 November 1983, are recorded in Swahili.

There is a reference to the foregoing in the Magistrate’s judgment when he said that it is a legal requirement that an accused person should be accommodated in the language he prefers. Nevertheless, it seems that the Magistrate did not observe this legal requirement, and Mr *Adala* referred us to several passages in the record, into which we do not propose to go into detail at this stage, which, he submitted, demonstrated that the appellant did not fully understand the proceedings. In particular he pointed to the brevity of the appellant’s unsworn statement as indicating that while he may have understood the gist, or drift, of that which was going on, he was not able to make his defence to the charge in as full a manner as he would have wished.

Mr *Gathaara*, on behalf of the Republic, submitted that the pattern of the appellant’s questions to Miss de Mello, PW2, which was quite long, showed that he knew very well what was going on and that it was an intelligent and searching cross-examination. He did, however, concede that, particularly as this is a capital case, he was not entirely happy that the translation was carried out in a language which the appellant may not have understood. If it was in Somali, there was, as said, a chance that, in view of the differences between the two languages, the appellant did not fully understand the proceedings sufficiently to make his defence thereto.

For these reasons, exercising our powers under section 361(2) of the Criminal Procedure Code, we allow ground 2 of the supplementary memorandum of appeal and make an order remitting the case to a Magistrate’s Court of competent jurisdiction to rehear and determine the case according to law, with particular reference to the legal requirements as regards interpretation.

Kneller and Hancox JJA concurred with Nyarangi JA.

For the appellant:
OMT Adala

For the Republic:
ZN Gathaara

Lazaro v Mgomera
[1986–1989] 1 EA 302 (CAT)

Division: Court of Appeal of Tanzania at Dar-Es-Salaam

Date of judgment:	4 June 1986
Case Number:	2/86
Before:	Mustafa, Makame and Omar JJA
Sourced by:	LawAfrica

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[1] Interpretation of statutes – Applicability of the Police Ordinances.

[2] Tort – Vicarious liability – Meaning of vicarious liability – Applicability of vicarious liability to torts committed by government employees.

Editor's Summary

The appellant was the Regional Police Commander for Mbeya area while the respondent was a Police Woman Constable at Mbeya.

The respondent sued the appellant for defamation for allegedly calling her a prostitute during a police parade. She won but was only awarded TShs 20 as damages and she appealed to the High Court where the sum was increased to TShs 1 000.

The Police Constable thereafter appealed arguing that since the tort was uttered while the appellant was in the course of his official duties, he could only be sued in his official capacity and consent to sue would have to be obtained from the Government first as per the provisions of section 3(4) of the Government Proceedings Act number 16 of 1967.

Held – Section 3(4) of the Act merely renders the Government civilly liable vicariously for acts done by its servants in the course of their official duties. However, in tort the tortfeasor is always primarily liable.

An employer is vicariously liable if his servant commits a tort in the course and within the scope of his employment. This does not absolve the liability of the servant but only means that the employer is also liable as the tort was committed when the servant was supposed to be acting in place of or for the employer, whose act it becomes.

The Police General and Standing Orders have no legislative effect and are only meant for departmental and administrative purposes (*White and others v Kuzyach* [1951] AC 585; *Dawkins v Antrobus* [1881] 17 Ch D 615 distinguished).

Section 96 of the Police Force Ordinance (Chapter 322) allows the appellant to proceed to court without following the complaint procedure set out in section 61(1). Further, section 61(1) is not couched in mandatory terms.

The General and Standing Orders regulate the relationship between the Government and the police officers. If the Government were sued in court by a police officer without the officer going through the procedure laid down by the Orders, it is possible for the Government to argue that the officer must be held to his contract. But a police officer has no contract with another police officer; both being employees. A fellow police officer therefore cannot rely on any contract of service.

There is no privity of contract between the respondent and the appellant.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Dawkins v Antrobus [1881] 17 Ch D 615 – **D**

White and others v Kuzych [1951] AC 585 – **D**

Judgment

Mustafa JA: The appellant Ismail Lazaro was the Regional Police Commander for Mbeya at the material time, holding the rank of Assistant Commissioner of Police. The respondent Josephine was a Police Woman Constable stationed at Mbeya.

In the course of an inspection by the appellant of a police parade on or about 7 April 1981 at Mbeya, in which the respondent was a participant, it was alleged by the respondent that the appellant had slandered her by calling her a prostitute. The respondent had alleged a background of sexual harassment by the appellant, her superior officer. She sued for damages for defamation in the Resident Magistrate's Court, Mbeya, and obtained judgment in her favour. However, she was awarded only TShs 20 for damages for defamation. On an appeal and a cross-appeal to the High Court, the Judge (Mroso J), confirmed the judgment of the Resident Magistrate's Court but increased the damages awarded to TShs 10 000. From that judgment the appellant is appealing to this Court.

Mr *Mnzava* for the appellant has argued as follows. He submitted that the appellant has an official and private capacity, and that, if I understood him correctly, he was two different persons. If the appellant had committed a tort while he was carrying out his official duties in the course of his employment, as he did in the inspection parade, he could be sued only in his official capacity, that is as the Regional Police Commander, Mbeya, not in his name of Ismail Lazaro. In this case, the respondent had applied to the Minister of Justice for consent to sue the Government, but consent was refused. The respondent was told to proceed against the appellant himself as the Government dissociated itself from the appellant's act. Mr *Mnzava* has submitted that once the Government had refused consent for itself to be sued, as it did here, the victim of a tort can have no remedy. The Government cannot be sued without its consent, and the appellant could not be sued in his private capacity as he was at the material time acting in his official capacity. Mr *Mnzava* referred to section 3(4) of the Government Proceedings Act number 16 of 1967 in support of his contention.

With respect, I am astounded by this contention. Section 3(4) of Act 16 of 1967 merely renders the Government civilly liable vicariously for acts done by its servants in the course of their official duties. In matters of tort, a tortfeasor, the person who commits a tort, is always primarily liable. An employer is vicariously liable if his servant commits a tort in the course and within the scope of his employment. That does not absolve the liability of the servant for the tort committed. It only means that the employer is also liable as the tort was committed when the servant was supposed to be acting in place of or for the

employer, whose act it becomes. This is elementary and needs no further elucidation. The respondent was quite justified in suing the appellant as she had done. I think perhaps only the President of the Republic or Judges in the performance of their official duties are immune from court process; those provisions are specifically contained in the Constitution of the Republic.

The other legal ground of appeal relied on by Mr *Mnzava* was that the respondent could not sue as she had no *locus standi*. Mr *Mnzava* referred to various police service regulations and standing and general orders and submitted that in terms of those regulations and orders and the Police Ordinance, the respondent had to follow the complaint procedure laid down in those regulations and exhaust those remedies before she could sue in a court of law. He submitted in effect that the Police is a disciplined force with its own rules and regulations for the settlement of disputes, between its own members, and those rules and regulations have to be obeyed. The respondent did not seek recourse in terms of the rules and regulations, but filed a case in a court of law forthwith.

Reference was made to regulation 21(1) of Police Service Regulations GN 178/1969 which stipulates that a person on his appointment to an office in the Police Force shall be subject to the provisions of the general orders as determined by the Principal Secretary.

General Order number 109 section 21 provides that no police officer shall take steps to institute legal proceedings in his own personal interest arising out of his public duties without the consent of the Government.

Standing Order section F 31 provides that no action for defamation could be taken without permission of the Principal Secretary.

In terms of regulation 34(1) of the Police Service Regulations GN 178 of 1969 the respondent had subscribed to a Police oath of allegiance subjecting herself to all ordinances and regulations relating to the Police Force.

It is common ground that general and standing orders have no legislative effect and are meant for departmental and administrative purposes.

Mr *Mnzava* submitted that the respondent had breached her contract of service by not obtaining the Principal Secretary's consent to institute legal proceedings in her own personal interest. In support of his breach of contract argument he referred to *White and others v Kuzych* [1951] AC 585 and *Dawkins v Antrobus* [1881] 17 Ch D 615. Those cases respectively were concerned with appeal procedure laid down in the by-laws of a trade union and the rules of a private club. However, such by-laws and rules in effect form the constitutions of the trade union and the private club, unlike the general and standing orders which are purely administrative and have no legal force.

Mr *Mnzava* also referred to section 61(1) of the Police Force Ordinance (Chapter 322) which laid down the mode of complaint by a police official who thinks that he has been wronged.

I will now deal with Mr *Mnzava*'s submission that unless the procedure for complaints provided for in the Police Force Ordinance (Chapter 322) and the general and standing orders have been exhausted the respondent was barred from suing the appellant in a court of law and that the respondent was bound by her contract of service in not suing in a court of law without permission from the Principal Secretary.

I am not convinced that section 61(1) of Chapter 322 provides the only procedure to be followed by the respondent as a complainant. I think section 96 of Chapter 322 allows the appellant to proceed to a court of law without having to follow the complainant procedure laid down in section 61(1). The operative words in section 61(1) read: ". . . who thinks himself wronged . . . he may complain thereof . . ."

It is not a mandatory provision; a complainant has a choice. I also do think that section 96 is confined exclusively to criminal matters, as submitted by Mr *Mnzava*.

The general and standing orders regulate the relationship between the Government as employer and a Police Officer as employee. The contract of service, if any, would be between the Government and its employees, the police officers. If the Government were sued in a court of law by a police officer without the officer going through the procedure laid down in the orders, it is perhaps possible for the Government to argue that the police officer must be held to his contract. But a police officer has no contract with another police officer; both being employees. A fellow police officer therefore cannot rely on any contract of service; there is no privity of contract between the respondent and the appellant.

Even, if, for the purpose of this appeal, I assume, without deciding, that Mr *Mnzava*'s contention is valid, such an argument cannot help the appellant. The contract of service was between the Government and the respondent.

In the instant case, as remarked earlier, the respondent had obtained consent from the Government to sue the appellant, which was not strictly necessary. The appellant cannot hide behind the Government mantle.

In my view the Judge had come to the right conclusion in upholding the finding of the trial court. The respondent had *locus standi* and was not debarred from suing the appellant in a court of law as she had done. The submission that the proceedings were null and void is without any merit.

I would dismiss the appeal with costs. As the other members of the Court agree, it is so ordered.

Makame and Omar JJA concurred with Mustafa.

For the appellant:
Mnzava

For the respondent:
Information not available

"Lilian S" v Caltex Oil (K) Ltd
[1986–1989] 1 EA 305 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	17 December 1989
Case Number:	50/89
Before:	Nyarangi, Masime and Kwach JJA
Sourced by:	LawAfrica

[1] Admiralty law – Claim under section 20(2)(m) of the 1981 Act – Affidavit must show in compliance with section 20(4) of the 1981 Act and Rules of Supreme Court Order 75, rule 5(4) and (9) that the defendants were liable in personam *and that they*

were the owners or charterers or persons in possession of the ship at the time when the cause of action arose and also the beneficial owners or charters by demise of all the shares in the ship at the time when the action is brought.

[2] Admiralty law – Claim under section 20(2)(m) of the 1981 Act must show a sufficiently direct connection between the agreement relied upon and the operation and maintenance of the ship.

[3] Admiralty law – Jurisdiction of High Court under sections 20 and 21 of the Supreme Court Act of 1981 of England – Questions of jurisdiction, once raised, must be decided at once on whatever evidence is placed before the Court.

[4] Admiralty law – Practice – Affidavit to lead warrant of arrest, being an affidavit in support of an ex parte *application must contain a full and frank disclosure of all material facts.*

Editor's Summary

On 5 December 1988, Caltex issued a writ *in rem* against the owners of the motor vessel "Lilian S" claiming a sum of KShs 6 110 434-55 alleged to be due from the said owners in respect of a quantity of gas oil, fuel and bunkers (the fuel) supplied to the said vessels. On the same day Caltex obtained an *ex parte* order from Githinji J for the issue of a warrant of arrest against the said vessel as a result of which the vessel was arrested.

The warrant of arrest was issued on the strength of an affidavit sworn by Kariuki, an employee of Caltex, who deponed to the fact that during 1988 Caltex had supplied to the said vessel fuel of the value of KShs 6 110 434,55 and that the amount had not been paid in spite of demand. In support of this statement, Kariuki exhibited to his affidavit a copy of the Bunkers Delivery Report (BDR) signed by the master of the vessel signifying delivery which named a company, SOSCO, as the local agents of the owners of the vessel. Kariuki also exhibited a copy of Caltex's invoice directed at SOSCO, receipt of which was acknowledged by SOSCO in its own right as a customer of Caltex.

The owners of the vessel, Sea Guardian Company SA (the owners) thereupon applied for an order that the writ of summons and all subsequent proceedings be set aside and the ship be released from arrest. The application was based on a number of grounds questioning the jurisdiction of the Court to entertain Caltex's claim and to arrest the vessel. Chief among these grounds were:

1. Caltex's claim was not a claim "in respect of goods or materials supplied to a ship for her operation or maintenance" to satisfy the requirements of section 20(2)(*m*) of the Supreme Court Act of 1981 of England (the 1981 Act) as applied to Kenya.
2. The owners were not, in the circumstances of this case, persons who would be liable to Caltex in an action *in personam* as required by section 21(4) of the 1981 Act as they had not entered into any contract with Caltex for the purchase or delivery of the fuel in question.
3. The person who would in the circumstances of this case be liable to Caltex in an action *in personam* was SOSCO who were not the owners of the vessel either at the time when the cause of action arose or at the time when the writ was issued as required by section 21(4) of the 1981 Act.

The application was supported by the affidavit of Saliarelis, the Secretary of the owners, and of Tsakiris a director of SOSCO. Saliarelis deponed in his affidavit that the owners were at all material times the legal and beneficial owners of the vessel "Lilian S". He further deponed that the fuel was ordered by SOSCO under an arrangement with the master of the vessel as a result of which the vessel was used as a base for storage of the fuel pending its sale by SOSCO to other vessels. These facts were supported by Tsakiris who annexed to his affidavit copies of two telexes exchanged between Caltex and SOSCO which showed that the contract of sale was made between Caltex and SOSCO.

The application came up for hearing before Bosire J who held that Caltex's claim fell within the ambit of sections 20(2)(*m*) and 21(4) of the 1981 Act. In his view, the nature of the goods sold was such that it could be inferred that they were probably intended for the "operation of the ship". He also held that whether SOSCO were Sea Guardian Company's local agents as claimed by Caltex was a matter which could and should be settled at the trial in *viva voce* evidence. He found that Caltex's claim was not obviously frivolous or vexatious, that it disclosed a measurable cause of action and should not therefore be summarily dismissed. He accordingly dismissed the owners' application.

The owners appealed.

Held – The question raised before the Judge in the Court below was a question of jurisdiction which, once raised either by a party or by the Court of its own motion, must be decided forthwith on the evidence placed before the Court. It is immaterial whether the evidence is scanty or limited. Jurisdiction is everything. Without it a court has no power to take one more step in the proceedings.

In order to maintain an action under section 20(2)(*m*) of the 1981 Act, it was necessary to demonstrate a sufficiently direct connection between the argument relied upon and the operation or maintenance of the ship. Kariuki's affidavit in support of Caltex's claim was silent as to the purpose for which the fuel was supplied. The affidavits of Saliarelis and Tsakiris showed that the fuel was supplied for a purpose other than the operation or maintenance of the vessel. It was therefore clear that Caltex's claim did not fall within the ambit of section 20(2)(*m*) of the 1981 Act. The High Court accordingly had no admiralty jurisdiction to entertain Caltex's claim or to arrest the vessel in an action *in rem*.

The evidence before the Court in the nature of the two telexes also showed that Caltex sold the fuel to SOSCO and not the owners. Kariuki's affidavit to lead warrant of arrest made no reference to the two telexes and his second affidavit in reply to Saliarelis and Tsakiris's affidavits did not contain even a passing reference to those telexes. The owners' evidence was therefore unchallenged. That being the case, the only person who could be liable to Caltex in an action *in personam* was SOSCO who was not the owner of the vessel at the time the cause of action arose nor was it the beneficial owner of all the shares in the vessel at the time the writ *in rem* was issued. In the result, this was another reason why the High Court had no admiralty jurisdiction to entertain Caltex's claim or to arrest the vessel.

Kariuki's affidavit to lead warrant of arrest was incurably defective in that it did not satisfy the mandatory requirements of RSC Order 75, rules 5(4) and (9) of England as applied to Kenya. This rule required that the affidavit must name the person who would be liable on the claim in an action *in personam* and also

show that the person was the owner or charterer or person in possession of the ship at the time when the cause of action arose and that he was also the beneficial owner of all the shares in the ship or its charterer by demise when the action is brought. The High Court had no power to arrest the vessel.

The absence of any reference to the two telexes in Kariuki's affidavit also showed that Caltex had failed in its duty to make a full and frank disclosure of facts which were material to the determination of the issues raised before the Court. The warrant of arrest was issued on the *ex parte* application of Caltex and it was well settled that unless there was, in *ex parte* proceedings, a full and frank disclosure of all material facts which were known or ought to have been known to the applicant, it was open to the Court to discharge any order made on such proceedings. This rule applied to admiralty actions in Kenya and the Court below ought to have allowed the owners' application to set aside the writ and the warrant of arrest on this ground.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

United Kingdom

Abidin Daver, The [1984] 1 Lloyds' LR 339

Brink's Mat Ltd v Elcombe and others [1988] 3 All ER 188

Gatoil International Inc v Arkwright-Boston Manufacturers Mutual Insurance Co and others [1985] AC 255

I Congresso del Partido [1978] 1 QB 500; [1981] 2 All ER 1064 (HL)

Lloyds Bowmaker Ltd v Britannia Arrow Holdings plc (larens, third party) [1988] 3 All ER 178

R v Kensington Income Tax Commissioners ex parte Princess Edmond de Polignac [1971] 1 KB 486

Schwarz and Co v St Eleftherio [1957] 1 Lloyds' LR 283

The Andria (Vasco) [1984] 1 QB 447

The Evpo Agnic [1988] 1 WLR 1090

The Gulf Venture [1984] 2 Lloyds' LR 455

The Moscanthy [1971] 1 Lloyds LR 37

The River Rima [1987] 3 All ER 1 (CA)*;* [1988] 2 Lloyds' Rep 193 (HL)

Judgment

Nyarangi JA: The point raised by this appeal turns entirely on the correct interpretation of section 20(2)(*m*) of the Supreme Court Act of 1981 of England (the 1981 Act) on the relevant facts of this matter. Two questions arise; first, whether the plaintiff's action is within section 20(2)(*m*) of the Act; second, whether the action can be enforced by an action *in rem* in terms of section 21(4) of the 1981 Act.

The appeal raises questions as to the proper manner of invoking the admiralty jurisdiction of the High Court. The admiralty jurisdiction of the High

Court is equal to that possessed by the High Court in England. The High Court applies the same law and procedure as applies in England. It might make it clearer if I refer to section 4 of the Judicature Act (Chapter 8) which provides as follows:

"4 (1) The High Court shall be a court of admiralty, and shall exercise admiralty jurisdiction in all matters arising on the high seas, or in territorial waters, or upon any lake or other navigable inland waters in Kenya.

(2) The admiralty jurisdiction of the High Court shall be exercisable:

(*a*) over and in respect of the same persons, things and matters, and

(*b*) in the same manner and to the same extent, and

(*c*) in accordance with the same procedure, as in the High Court in England, and shall be exercised in conformity with international laws and the comity of nations.

(3) In the exercise of its admiralty jurisdiction, the High Court may exercise all the powers which it possesses for the purpose of its other civil jurisdiction.

(4) An appeal shall lie from any judgment, order or decision of the High Court in exercise of its admiralty jurisdiction within the same time and in the same manner as an appeal from a decree of the High Court under Part VII of the Civil Procedure Act."

The admiralty jurisdiction of the High Court is set out in section 20 of the 1981 Act.

Section 20 of the 1981 Act so far as material for present purpose provides:

"20 (1) The admiralty jurisdiction of the High Court shall be as follows, that is to say:

(*a*) jurisdiction to hear and determine any of the questions and claims mentioned in subsection (2);

(*b*) jurisdiction in relation to any of the proceedings mentioned in subsection (3);

(*c*) any other admiralty jurisdiction which it had immediately before the commencement of this Act; and

(*d*) any jurisdiction connected with ships or aircraft which is vested in the High Court apart from this section and is for the time being by rules of court made or coming into force after the commencement of this Act assigned to the Queen's Bench Division and directed by the rules to be exercised by the Admiralty Court;

(2) The question and claims referred to in subsection (1)(*a*) are:

(*a*) any claim to the possession or ownership of a ship or to the ownership of any share therein;

(*b*) any question arising between the co-owners of a ship or as to possession, employment or earnings of that ship;

(*c*) any claim in respect of a mortgage of or charge on a ship or any share therein;

(*d*) any claim for damage received by a ship;

(*e*) any claim for damage done by a ship;

(*f*) any claim for loss of life or personal injury sustained in consequence of any defect in a ship or in her apparel or equipment, or in consequence of the wrongful act, neglect or default of:

(i) the owners, charterers or persons in possession or control of a ship; or

(ii) the master or crew of a ship, or any other person for whose wrongful acts, neglects or defaults the owners, charterers or persons in possession or control of a ship are responsible;

being an act, neglect or default in the navigation or management of the ship, in the loading, carriage or discharge of goods on, in or from the ship, or in the embarkation, carriage or disembarkation of persons on, in or from the ship;

(*g*) any claim for loss of or damage to goods carried in a ship;

(*h*) any claim arising out of any agreement relating to the carriage of goods in a ship or to the use or hire of a ship;

(*j*) any claim in the nature of salvage (including any claim arising by virtue of the application, by or under section 51 of the Civil Aviation Act of 1949, of the law relating to salvage to aircraft and their apparel and cargo);

(*k*) any claim in the nature of towage in respect of a ship or an aircraft;

(*l*) any claim in the nature of pilotage in respect of a ship or an aircraft;

(*m*) any claim in respect of goods or materials supplied to a ship for her operation or maintenance;

(*n*) any claim in respect of the construction, repair or equipment of a ship or in respect of dock charges or dues;

(*o*) any claim by a master or member of the crew of a ship for wages (including any sum allotted out of wages or adjudged by a superintendent to be due by way of wages);

(*p*) any claim by a master, shipper, charterer or agent in respect of disbursements made on account of a ship;

(*q*) any claim arising out of an act which is or is claimed to be a general average act;

(*r*) any claim arising out of a bottomry;

(*s*) any claim for the forfeiture or condemnation of a ship or of goods which are being or have been carried, or have been attempted to be carried, in a ship, or for the restoration of a ship or any such goods after seizure, or for droits of Admiralty."

It is thus to be noted that where a claim is based on section 20(1)(*a*), the claim must come within section 20(2)(*a*) to (*s*) otherwise the High Court would not have admiralty jurisdiction.

The next question is the mode of exercise of admiralty jurisdiction.

Section 21 which illustrates the mode of that jurisdiction is in these terms:

"21 (1) Subject to section 22, an action *in personam* may be brought in the High Court in all cases within admiralty jurisdiction of that court.

(2) In the case of any such claim as is mentioned in section 20(2)(*a*), (*c*) or (*s*) or any such question as is mentioned in section 20(2)(*b*), an action in rem may be brought in the High Court against the ship, or property in connection with which the claim or question arises.

(3) In any case in which there is a maritime lien or other charge on any ship, aircraft or other property for the amount claimed, an action in rem may be brought in the High Court against that ship, aircraft or property.

(4) In the case of any such claim as is mentioned in section 20(*a*) to (*r*), where:

(*a*) the claim arises in connection with a ship; and

(*b*) the person who would be liable on the claim in an action *in personam* ('the relevant person') was, when the cause of action arose, the owner

or charterer of, or in possession or in control, of the ship, an action *in rem* may (whether or not the claim gives rise to a maritime lien on that ship) be brought in the High Court against:

(i) that ship, if at the time when the action is brought the relevant person is either the beneficial owner of that ship as respects all the shares in it or the charterer of it under a charter by demise; or

(ii) any other ship which, at the time when the action is brought, the relevant person is the beneficial owner as respects all the shares in it.

(5) In the case of a claim in the nature of towage or pilotage in respect of an aircraft, an action in rem may be brought in the High Court against that aircraft if, at the time when the action is brought, it is beneficially owned by the person who would be liable on the claim in an action in personam.

(6) Where, in the exercise of its admiralty jurisdiction, the High Court orders any ship, aircraft or other property to be sold, the Court shall have jurisdiction to hear and determine any question arising as to the title to the proceeds of sale.

(7) In determining for the purposes of subsections (4) and (5) whether a person would be liable on a claim in an action in personam it shall be assumed that he has his habitual residence or a place of business within England or Wales.

(8) Where, as regards any such claim as is mentioned in section 20(2)(*e*) to (*r*), a ship has been served with a writ or arrested in an action in rem brought to enforce that claim, no other ship may be served with a writ or arrested in that or any other action in rem brought to enforce that claim; but this subsection does not prevent the issue, in respect of any one such claim, of a writ naming more than one ship or of two or more writs each naming a different ship."

Paragraphs (2), (3), (4) and (5) give instances in which an action *in rem* may be brought.

The next matter which I should here mention is that Order 75 (the Order) of the Supreme Court Practice of 1988 of England has provided for admiralty proceedings. Paragraph 75/1/3 of the Order is to the effect that an admiralty action *in rem*, is in effect an action against a *res*, usually a ship, but may in some cases be cargo or freight or aircraft. An action *in personam* is like a normal action filed against a person. *In personam*, the procedure is the one of invoking the High Court jurisdiction (see the *Shipmakers Manual* Volume 1 at 90 paragraph 3). Paragraph 4 at 92–94 gives a distinction between an action *in rem* and *in personam*.

The object of an action *in rem* is therefore to procure the arrest of a *res*, almost always a ship.

The procedure for arrest is contained in rule 5 of Order 75.

Order 75 rule 5 states:

"5 (1) In an action *in rem* the plaintiff or defendant, as the case may be, may after the issue of the writ in the action subject to the provisions of this rule issue a warrant in Form number 3 in Appendix B for the arrest of the property against which the action or any counterclaim in the action is brought.

(2) Where an action in rem is proceeding in a district registry, a warrant of arrest in the action may be issued out of that registry but, except as aforesaid, a warrant of arrest shall not be issued out of a district registry.

(3) Before a warrant to arrest any property is issued the party intending to issue it must procure a search to be made in the caveat book for the purpose of

ascertaining whether there is a caveat against arrest in force with respect to that property and, if the warrant is to issue out of a district registry, the Registrar of that registry shall procure search to be made in the said book for that purpose.

(4) A warrant of arrest shall not be issued until the party intending to issue the same has filed an affidavit made by him or his agent containing the particulars required by paragraph (9); however, the Court may, if it thinks fit, give leave to issue the warrant notwithstanding that the affidavit does not contain all those particulars.

(5) Except with the leave of the Court or where notice has been given under paragraph (7) a warrant of arrest shall not be issued in an action in rem against a foreign ship belonging to a port of a state having a consulate in London, being an action for possession of the ship or for wages, until notice that the action has been begun has been sent to the consulate.

(6) A warrant of arrest may not be issued as of right in the case of property whose beneficial ownership has, since the issue of a writ, changed as a result of a sale or disposal or any court exercising admiralty jurisdiction.

(7) Where, by any convention or treaty, the United Kingdom has undertaken to minimise the possibility of arrest of ships of another state, no warrant of arrest shall be issued against a ship owned by that State until notice in Form number 3 in Appendix B has been served on a consular office of that State in London or the port at which it is intended to cause the ship to be arrested.

(8) Issue of a warrant of arrest takes place upon it being sealed by an officer of the registry or district registry.

(9) An affidavit required by paragraph (4) must state:

(*a*) in every case:

(i) the nature of the claim or counterclaim and that it has not been satisfied and, if it arises in connection with a ship, the name of that ship; and

(ii) the nature of the property to be arrested and, if the property is a ship, the name of the ship and her port of registry; and

(*b*) in the case of a claim against a ship by virtue of section 21(4) of the Supreme Court Act of 1981:

(i) the name of the person who would be liable on the claim in an action in personam (‘the relevant person’); and

(ii) that the relevant person was when the cause of action arose the owner or charterer of, or in possession or in control of, the ship in connection with which the claim arose; and

(iii) that at the time of the issue of the writ the relevant person was either the beneficial owner of all the shares in the ship in respect of which the warrant is required or (where appropriate) the charterer of it under a charter by demise; and

(*c*) in the case of a claim for possession of a ship or for the wages, the nationality of the ship in respect of which the warrant is required and that the notice (if any) required by paragraph (5) has been sent; and

(*d*) in the case of a claim where notice is required to be served on a consular officer under paragraph (7), that such notice has been served;

(*e*) in the case of a claim in respect of liability incurred under section 1 of the Merchant Shipping (Oil Pollution) Act of 1971, the facts relied on as establishing that the Court is not prevented from entertaining the action by reason of section 13(2) of that Act.

(10) The following documents shall, where appropriate, be exhibited to an affidavit required by paragraph (4):

(*a*) a copy of any notice sent to a consulate under paragraph (5);

(*b*) a copy of any notice served on a consular officer under paragraph (7).”

Paragraphs (5), (6), (7) are not applicable. It is to be observed that the affidavit referred to in paragraph (4) must state *inter alia* in every case the nature of the claim, the name of the ship, the name of the person who would be liable on the claim in an action *in personam*, that the relevant person was when the cause of action arose the owner or charterer of or in possession or in control of, the ship in connection with which the claim arose and that at the time of the issue of the writ the relevant person was either the beneficial owner of all the shares in the ship in respect of which the warrant is required.

I should now make a further reference to section 20 of the Act. I ask the question if the plaintiff’s action is within subsection (2) of section 20. If the action is, is the claim enforceable by an action *in rem* in terms of section 21(4) of the Act?

In the endorsement of claim is a claim for price of goods supplied by the plaintiffs to the defendant. So on the face of it, section 20(2)(*m*) applies. There can be no dispute that there were goods supplied to the motor vessel “Lilian S”. The affidavit by Kariuki for the immediate arrest of the motor tanker is proof of the supply of goods by the plaintiffs.

The second point on section 20(2)(*m*) is if the goods supplied to the ship were for her operation or maintenance. This much is clear, that if the goods were not for the ship’s operation or maintenance, section 21(4) of the 1981 Act would not apply and hence the High Court would not have admiralty jurisdiction in the matter. So if this particular section applies, one result; if it does not, another.

I have necessarily been much preoccupied with the particular jurisdiction, the nature of an action *in rem* as well as an action *in personam* and the mode of the exercise of admiralty jurisdiction.

I turn to the proceedings before the High Court. Pausing there for a moment, I gratefully adopt Justice Bosire’s statement of the background facts in his ruling the subject matter of this appeal. It is not necessary for me to say very much about the facts at this stage.

It is plain as can be from the ruling that the trial Judge held there was connection between supply and maintenance or operation by inference. Also, that the plaintiffs had shown that the goods supplied were suitable for use and so could be used on the vessel. The Judge held the view that in the circumstances setting aside the writ or the arrest would be a harsh measure.

The argument of the appellant which was urged, and urged most strongly, is that the Judge did not appreciate that he was being urged to decide a question of jurisdiction on the basis of the evidence before him. The second issue is whether the owners of the vessel “Lilian S” on their own showing were persons who would be liable in an action *in personam*.

In addition to these contentions, Mr *Inamdar* for the appellants staked his case on decided cases. We had *The River Rima* [1987] 3 All ER 1 (CA) cited to us. The facts in *Rima* are different but the jurisdictional question resembles the first question, that is, if this case falls within section 20(2) of the 1981 Act. It was

held that in order to maintain an action under section 20(2)(*m*) of the 1981 Act, it is necessary to demonstrate a sufficiently direct connection between the agreement relied on and the operation of the ship. The issue in *Rima* was not whether the claims were not well founded but whether they could be maintained in an action *in rem*. That precisely is the issue here. Dealing with a similar issued in *I Congresso del Partido* [1978] 1 QB 500, Golf J observed *inter alia* at 535 as follows:

> "In my judgment, Mr Alexander's submission that I should order that the question of Mambisa's title should be tried as an issue in the actions is one to which I cannot accede. The question raised by . . . The motion is one of jurisdiction. Jurisdiction in Admiralty actions is statutory, and is defined by the Administration of Justice Act of 1956. Section 3 of the Act lays down the circumstances in which an action *in rem* may be brought; if the case is not within the section then the Court has no jurisdiction in respect of an action *in rem* and the writ and all subsequent proceedings should be set aside . . ."

The issue of jurisdiction was decided "on the evidence" before Golf J.

In the same context, we were referred to the decision of the House of Lords in *Gatoil International Inc v Arkwright-Boston Manufacturers Mutual Insurance Co and others* [1985] AC 255. In that case, the respondent insurers raised an action against the appellants claiming payment of premiums on a policy of insurance which it was stated was effected with them by the appellants over a cargo of oil shipped from Iran to various destinations. In order to found jurisdiction over the appellants and also in order to obtain security for their claim, the respondents arrested the ship. Neither that ship nor any other ship owned by the appellants had been concerned with the carriage of the oil cargo which was the subject of the insurance policy. In the course of his speech Lord Keith at 265–266 set out the requisite procedural steps and then had this to say at 270H:

> "It is necessary to attribute due significance to the circumstances that the words of the relevant paragraphs speak of an agreement . . . It would, on the other hand, be unreasonable to infer from the expressions . . . that it is intended to be sufficient that the agreement in issue should be in some way connected, however remotely, with the carriage of goods in a ship . . ."

At 271A–B, Lord Keith said:

> "There must, in my opinion, be some reasonable direct connection with such activities. An agreement for the cancellation of a contract for the carriage of goods in a ship or for the use or hire of a ship would, I think, show a sufficiently direct connection . . ."

In *The Evpo Agnic* [1988] 1 WLR 1090, the view of their Lordships as expressed by Lord Donaldson of Lynington MR at 1095H appears in the following passage:

> "The first issue to be confronted and decided is therefore who is 'the relevant person' for the purpose of section 21(4)(*b*)."

As I have already indicated, the appellants' case is that it is a question of jurisdiction as to whether the defendant would on the facts of this case be liable to the plaintiff in action *in personam*. Mr *Inamdar* cited a passage at 526B–C in *I Congresso del Partido* where in the course of his judgment Golf J said:

> "Invocation of the admiralty jurisdiction by an action *in rem* presupposes the existence of a claim *in personam* against the person who at the time when the action is brought is the owner of the ship."

We were invited to examine the entire evidence as the House of Lords did in *I Congresso del Partido* [1981] 2 All ER 1064 (HL) and also as was done by the English Court of Appeal in *The Evpo Agnic* [1988] 1 WLR 1090 and to have proper regard to the requirements laid down by Order 75, rule 5. It was submitted that the affidavit in support of the arrest of the motor tanker does not satisfy Order 75, rule 5 subrules (4) and (9). That the plaintiff failed to disclose information to prove that the defendants were persons who could be liable *in personam*, that the two telexes exhibited show that Southern Oil Supply Company (SOSCO) would be liable *in personam*, and the plaintiff has failed to bring the case within section 21(4) of the 1981 Act.

For the respondents it was urged that an appellate court should be slow to interfere with the exercise of discretion in an interlocutory order in first instance. It was submitted it could not be said that the Judge's exercise of discretion is plainly wrong. Mr *Satchu* said in two affidavits sworn on behalf of the defendant, both the deponents referred to arrangements by the owners of the vessel with SOSCO. The conditions and terms were not, however, stated. Counsel for the respondents submitted that if the appellants had wanted the Judge to exercise his discretion in their favour the appellants should have set out in full the facts of the terms and conditions of the agreement as was done in *The River Rima*. It was, however, said that there are vital differences between the instant case and *The River Rima*. We were told that there is no doubt as to who received the goods in question – the goods were received by the vessel in its own right, not as agents or operators on behalf of SOSCO. On that basis, it was argued, one should distinguish between this case and *Gatoil International Inc v Arkwright-Boston Manufacturers Mutual Insurance Co and others* (*supra*): insofar as the respondents have actually supplied the vessel with the goods for the claim. In the appellants' complaint of failure to make full and frank disclosure, Mr *Satchu* replied that the Judge could exercise discretion on his own and order that a warrant of arrest to issue. In any case, it was argued, the failure to disclose must materially affect the decision in issue and even when such failure has been shown, the Court can in its discretion continue the order previously made. Reliance was placed on the judgment in *Brink's Mat Ltd v Elcombe and others* [1988] 3 All ER 188 where at 194a–b, there is an observation that:

> ". . . there must be a discretion in the Courts to continue the injunctions, or to grant a fresh injunction in its place, notwithstanding that there may have been nondisclosure when the original *ex parte* injunction was obtained . . ." (per Balcombe LJ).

In that passage, Mr *Satchu* argued that if the warrant of arrest is lifted, the vessel might sail away and, if at the end of the day the respondents are successful, they will have lost an asset from which they could recoup the fruits of any judgment. Mr *Satchu* based this on passages in the judgments in *Abidin Daver, The* [1984] 1 Lloyds LR 339; *Schwarz and Co v St Eleftherio* [1957] 1 Lloyds LR 283; *The Moscanthy* [1971] 1 Lloyds LR 37 and *The Gulf Venture* [1984] 2 Lloyds LR 455 and urged that in the four cases Judges of admiralty jurisdiction have refused to set aside a warrant of arrest unless it is shown that a continuation of the warrant of arrest is vexatious or frivolous and the defendant must show that the plaintiff's case is hopeless on the evidence. In *The Evpo Agnic*, the position was so clear as to deserve immediate discharge of the vessel. In the *Moscanthy*, like here, it was not.

With that I return to the issue of jurisdiction and to the words of section 20(2)(*m*) of the 1981 Act. I think that it is reasonably plain that a question of

jurisdiction ought to be raised at the earliest opportunity and the Court seized of the matter is then obliged to decide the issue right away on the material before it. Jurisdiction is everything. Without it, a court has no power to take one more step. Where a court has no jurisdiction, there would be no basis for a continuation of proceedings pending other evidence. A court of law downs tools in respect of the matter before it the moment it holds the opinion that it is without jurisdiction. Before I part with this aspect of the appeal, I refer to the following passage which will show that what I have already said is consistent with authority:

> "By jurisdiction is meant the authority which a court has to decide matters that are litigated before it or to take cognisance of the matters presented in a formal way for its decision. The limits of this authority are imposed by the statute, charter, or commission under which the Court is constituted, and may be extended or restricted by the like means. If no restriction or limit is imposed the jurisdiction is said to be unlimited. A limitation may be either as to the kind and nature of the actions and matters of which the particular court has cognisance, or as to the area over which the jurisdiction shall extend, or it may partake of both these characteristics. If the jurisdiction of an inferior court or tribunal (including an arbitrator) depends on the existence of a particular state of facts, the Court or tribunal must inquire into the existence of the facts in order to decide whether it has jurisdiction; but, except where the Court or tribunal has been given power to determine conclusively whether the facts exist. Where a court takes it upon itself to exercise a jurisdiction which it does not possess, its decision amounts to nothing. Jurisdiction must be acquired before judgment is given." See *Words and Phrases Legally Defined*, Volume 3:1-M at 113.

It is for that reason that a question of jurisdiction once raised by a party or by a court on its own motion must be decided forthwith on the evidence before the Court. It is immaterial whether the evidence is scanty or limited. Scanty or limited facts constitute the evidence before the Court. A party who fails to question the jurisdiction of a court *may* not be heard to raise the issue after the matter is heard and determined.

I can see no grounds why a question of jurisdiction could not be raised during the proceedings. As soon as that is done, the Court should hear and dispose of that issue without further ado.

In *I Congresso del Partido*; *The River Rima*; *Gatoil International Inc v Arkwright-Boston HM Insurance Co and others* and *The Evpo Agnic* (*supra*) the respective courts analysed the evidence before the Court and upon that evidence the question of jurisdiction was immediately decided. Were the goods supplied to the vessel for her operation or maintenance?

To find the answer to this question one must turn first to the affidavit of Mr Kariuki in support of the immediate arrest of the motor tanker "Lilian S". The deponent is silent as to the purpose for which the gas oil and fuel were supplied. Next I turn to the affidavit of Saliarelis, the Secretary of Sea Guardian Company SA, the legal and beneficial owner of the motor vessel "Lilian S". The secretary states that the master of the vessel did not place any order with the plaintiffs for the supply of any fuel or gas oil to the vessel. The crunch turns on paragraph 7 of the affidavit wherein it is stated that the material fuel was ordered by and was the property of SOSCO and:

> ". . . was only delivered to the vessel in consequence of separate arrangements made between the Master and Southern Oil Supply Company Limited as a result of which the vessel was used as a base for the storage of the said fuel and oil pending its sale by SOSCO to other vessels."

That evidence is to the effect that the fuel was supplied for a purpose other than operation or maintenance. That view is supported by the account of Tsakiris, a director of SOSCO who in paragraph 5 of his affidavit states:

> "That pursuant to arrangements made with the owners of the motor vessel 'Lilian S' SOSCO Limited used the motor vessel . . . as a base for storing the . . . fuel oil pending the sale and supply of the same to other vessels in the port of Mombasa."

In the light of that evidence, I conclude that the motor vessel "Lilian S" was utilised as a base for storing the fuel oil before it was sold to other vessels. There was therefore no reasonably direct connection between the storage of the fuel oil and the operation or maintenance of the vessel "Lilian S". I do not find in this case any evidence adduced by the plaintiff to show that the supply of the goods was for operation or maintenance of the vessel "Lilian S"' or indeed a particular ship.

I therefore take the view that section 20(2)(*m*) of the 1981 Act was not satisfied and so the claim does not fall under section 21(4), the High Court did not have admiralty jurisdiction and so Caltex Oil (Kenya) Limited is not entitled to invoke the local jurisdiction *in rem* against the vessel and to arrest her.

With all respect to the Judge, I do not feel that his ruling has any bearing on the issue of jurisdiction which is the matter he should have identified, wrestled with and determined on the evidence before him. On proper analysis the Judge was bound to conclude that he had no jurisdiction to hear the notice of motion.

I pause here only to say in deference to Mr *Satchu*'s arguments that his submissions and the decisions which he cited did not touch on the real issue of jurisdiction. That leaves the last point, whether or not the person who would be liable on the claim in an action *in personam* at the time when the action arose is SOSCO or Sea Guardian Company SA.

The issue is yet again one of jurisdiction to be properly and immediately decided on the evidence before the Court. That is so "because actions *in rem* and actions *in personam* cannot be conveniently segregated into separate compartments" (*I Congresso del Partido* [1978] 1 QB 500 at 526A–B).

It is clear that the fuel was supplied to the vessel "in consequence of separate agreements made between the master and SOSCO . . ."

There was a contract whereby the plaintiffs agreed to supply and SOSCO agreed to buy 550 metric tonnes of fuel oil and pursuant to that contract, the plaintiffs delivered 5 478-55 metric tonnes of fuel oil to the vessel "Lilian S" as requested by SOSCO. Pursuant to the arrangements SOSCO used the motor vessel as a base for storing the fuel pending the sale and supply of the fuel oil to other vessels.

There are two telexes which were exhibited and whose contents show beyond any grain of doubt that SOSCO purchased the fuel oil and would be liable in action *in personam*.

Page 11 of the record of appeal shows Caltex Oil (Kenya) Limited's invoice indicating a sale on 20 September 1988 of an amount of 5 478-55 metric tonnes to SOSCO. SOSCO is shown to have received the fuel oil.

The statement of account for the month of October 1988 is from Caltex Oil (Kenya) Limited to SOSCO. The owners of the vessel "Lilian S" are not mentioned on the statement of account.

I must confess my inability to find any substance in the respondent's case on this score. The point is unanswerable. It is SOSCO who would be liable to the plaintiffs in an action *in personam*.

All the grounds of appeal have been covered.

The further matter arising on this appeal is in respect of a submission by Mr *Inamdar* that the respondent as applicant in the High Court did not make a full and frank disclosure. The appellants claimed that it was left to it to furnish the information as to who could be liable on the claim in an action *in personam*.

I was not impressed with the rival contention by Mr *Satchu*. The plaintiff's affidavit in support of the arrest of the motor vessel does not satisfy Order 75, rule 5, paragraph (9). True, notwithstanding that the affidavit referred to in paragraph (4) does not contain all the particulars required by paragraph (9), the Court has the discretion to issue the warrant. However, paragraph (9) is no warrant for a deliberate failure to disclose fully and frankly all the facts in possession of the party who is applying for the issue of warrant of arrest. The necessity for full and frank disclosure is even greater in an *ex parte* application.

In *The Andria (Vasco)* [1984] 1 QB 447 at 491G–H, Robert Golf LJ (as he then was) in the course of reading the judgment of the Court observed as follows:

> "It is axiomatic that in *ex parte* proceedings there should be full and frank disclosure to the Court of facts known to the applicant, and that failure to make such disclosure may result in the discharge of any order made upon the *ex parte* application, even though the facts were such that, with full disclosure, an order would have been justified."

In my judgment here there was not full disclosure by the applicant of the material facts to the High Court. Were the result of the appeal different, I would have been minded to penalise the respondent by ordering payment of extra costs.

I have endeavoured to give reasons for the order of this Court which was made on 24 July 1989.

I would allow the appeal with costs here and below to the appellants and reiterate the terms of the Court's order mentioned above. As Masime and Kwach JJA also agree, it is so ordered.

Kwach JA: At the conclusion of arguments in this appeal, we allowed the appeal and made an order for the immediate release of the motor vessel "Lilian S". I now give my reasons for judgment.

On 5 December 1988, Caltex Oil (K) Limited, the respondent in this appeal (hereinafter referred to as "Caltex") issued a writ *in rem* against the motor vessel "Lilian S" endorsed with a claim for KShs 6 110 434,55, alleged to be due and owing from the owners of the motor vessel "Lilian S" (hereinafter called "the appellants") to Caltex in respect of a quantity of gas oil, fuel and bunkers supplied by Caltex to the appellants. The writ was accompanied by a statement of claim and an affidavit to lead a warrant for the arrest of the motor vessel "Lilian S" (hereinafter called the ship). This affidavit dated 5 December 1988, was sworn by Mr John Robert Kariuki, an employee of Caltex.

Briefly, Caltex's claim as pleaded in the statement of claim is that it is owed some KShs 6 110 434,55, by the appellants in respect of a quantity of gas oil, fuel and bunkers (goods) supplied to the ship by Caltex during the year 1988.

According to the affidavit of Mr Kariuki, this amount was due and payable immediately upon supply of the goods to the ship but had not been paid in spite of demand being made. According to Mr Kariuki, delivery had been acknowledged and duly signified on the Bunkers Delivery Report (BDR). In the BDR a company called Southern Oil Supply Company Limited (SOSCO) is named as the local agents of the owners of the ship. Also annexed to the affidavit is a copy of an invoice directed to SOSCO, receipt of which was duly acknowledged by SOSCO in its own right as a customer. On the basis of these facts, the ship which was then berthed at the Port of Mombasa was, on the *ex parte* application of Caltex, ordered to be arrested and was indeed arrested. The order for the arrest of the ship was made by Githinji J on 5 December 1988, after a brief hearing in chambers.

The appellants being aggrieved by the order of Githinji J took out a notice of motion under Rules of the Supreme Court Order 75 and section 4 of the Judicature Act (Chapter 8) seeking an order that the writ of summons and all subsequent proceedings be set aside and the ship be released from arrest on the grounds that:

> "(*a*) The owners of the motor vessel 'Lilian S' namely Sea Guardian Company SA of Panama are not, and have never been, persons who would, in the circumstances of this case be liable to the plaintiffs in an action *in personam*.
>
> (*b*) The person who would, in the circumstances of this case, be liable in an action *in personam* to the plaintiffs in Southern Oil Supply Company Limited who were not the owners of the said motor vessel either at the time when the cause of action arose or at the time the writ in this action was issued."

The application was supported by two affidavits sworn by Mr Epaminondas Saliarelis and Mr Theodore George Tsakiris. Mr Saliarelis is a Greek who lives in Piraeus and is the secretary of the Sea Guardian Company SA, the legal and beneficial owners of the ship. I will come back to this affidavit later in this judgment. Mr George Tsakiris lives in Mombasa and is a director of SOSCO and claimed to be conversant with the facts of the case. More about this affidavit later.

The affidavit in reply to these two and in opposition to the application was sworn again by Mr Johnson Robert Kariuki who also expressed himself to be fully aware of the matters concerning the case.

The application got under way before Mr Justice Bosire on 14 February 1989 and on 28 February 1989 he delivered his ruling dismissing the appellants' application with costs in cause. It is against that decision that the appellants have now appealed.

In rejecting the submissions made on behalf of the appellants on the issue whether the goods were supplied for the maintenance or operation of the ship, the learned Judge said:

> "In the instant matter the plaintiff averred that the gas oil, fuel and bunkers were supplied to the vessel in question at the request of SOSCO. They tendered affidavit evidence to show SOSCO were local agents of the defendants. This last aspect was denied. Whether or not SOSCO were local agents of the defendants will be settled upon receipt of *viva voce* evidence. The oil and fuel supplied to the ship was suitable for use in motor vessels. Tsakiris deposed that the oil was intended for sale to and for use by motor vessels at the Port of Mombasa. In effect it could be used for the operation of the 'Lilian S'. Whether it was intended for use on the 'Lilian S' or for resale is a matter of evidence. From the facts averred an inference could be drawn that the gas oil and fuel was probably for use on the 'Lilian S'. It is not a remote inference."

Right at the end of his ruling, dealing with the crucial issue of jurisdiction, the learned Judge had this to say:

> "In the light of the foregoing I am satisfied that the facts alleged in the writ and affidavit for the request of a warrant of arrest sufficiently satisfy the requirements of sections 20(2)(*m*) and 21(4) of the Supreme Court Act of 1981, with the result that this court has the jurisdiction to entertain this claim *in rem*."

In their memorandum of appeal, the appellants have listed 9 grounds of appeal against which they seek to impeach the decision of the learned Judge, namely:

"1. The learned Judge erred in holding that the Court has jurisdiction to entertain the claim *in rem* made by Caltex Oil (K) Limited against the vessel 'Lilian S'.

2. The learned Judge erred in holding that the facts alleged in the writ and in the affidavit for the request of a warrant of arrest were sufficient to satisfy the requirements of section 20(2)(*m*) and 21(4) of the Supreme Court Act of 1981 of England as applied to Kenya.

3. The learned Judge erred in law in failing to appreciate that the question whether the plaintiffs claim fell within the ambit of section 20(2)(*m*) of the said Act was a question of jurisdiction which he was obliged to decide at once on the affidavit evidence then before the Court.

4. The learned Judge erred in law in failing to hold that the question whether, under section 21(4) of the said Act, the person 'who would be liable on the claim in an action *in personam*' at the time when the cause of action arose was Southern Oil Supply Co Limited (SOSCO) or Sea Guardian Company SA (the defendants herein) was likewise a question of jurisdiction requiring immediate decision on the affidavit evidence then before the Court.

5. In considering the question whether the plaintiff had satisfied the requirement of section 21(4) of the said Act, the learned Judge erred in law:

   (*a*) in failing to pay any regard to the contents of the two telexes attached to the affidavit of Theodore George Tsakiris and in failing to appreciate that the plaintiff should have disclosed the said two telexes in the affidavit filed in support of its request for the issue of a warrant of arrest but had failed to do so;

   (*b*) in failing to pay any or any proper regard to the terms of the invoice dated 20 September 1988, annexed to the affidavit of Johnson Robert Kariuki sworn on 5 December 1988 and filed in support of the plaintiff's request for the issue of a warrant of arrest.

   (*c*) in paying undue regard to the contents of BDR dated 19 September 1988, annexed to the said affidavit of Johnson Robert Kariuki filed in support of the plaintiff's request for the issue of a warrant of arrest.

6. The learned Judge erred in law in holding that 'this court has jurisdiction to entertain this claim *in rem*' on the basis of assumptions or inferences in favour of the plaintiff when such assumptions or inferences were not only not Canvassed before him on the hearing of the application but were also contrary to the affidavit evidence placed before him by both the parties.

7. The learned Judge erred in law and/or in principle in deciding the questions of jurisdiction on the wrong basis, namely that a claim which was not frivolous or vexatious and which disclosed a reasonable cause of action, should be allowed to proceed.

8. The learned Judge ought to have decided the questions of jurisdiction regardless of the merits or demerits of the underlying claim.

9. The learned Judge erred in law in failing to set aside the writ and the warrant of arrest on the ground that the writ and the affidavit to lead the arrest were manifestly defective."

As I understand these grounds of appeal, the appellant's contention and the main issue in this appeal is that the special procedure in the admiralty jurisdiction required that Caltex should have satisfied the Court *in limine* (on the threshold) on the issue of jurisdiction. The admiralty jurisdiction of the High Court of Kenya is conferred by section 4 of the Judicature Act, the material parts of which provide as follows:

> "4 (1) The High Court shall be a Court of admiralty, and shall exercise admiralty jurisdiction in all matters arising on the high seas, or in territorial waters, or upon any lake or other navigable inland waters in Kenya.
>
> (2) The admiralty jurisdiction of the High Court shall be exercisable:
>
> (*a*) over and in respect of the same persons, things and matters, and
>
> (*b*) in the same manner and to the same extent, and
>
> (*c*) in accordance with the same procedure, as in the High Court in England, and shall be exercised in conformity with international laws and the comity of nations."

It is plain from the foregoing that in the exercise of its admiralty jurisdiction, the High Court has to apply the law of England. In order to discover what that law is one has to look at the Supreme Court Act of 1981, and more specifically sections 20 and 21 of the said Act. The relevant provisions state:

> "20 (1) The admiralty jurisdiction of the High Court shall be as follows, that is to say:
>
> (*a*) jurisdiction to hear and determine any of the questions and claims mentioned in subsection (2) . . .
>
> (2) The questions and claims referred to in subsection (1)(*a*) are:
>
> (*a*) . . .
>
> (*m*) any claim in respect of goods or materials supplied to a ship for her operation or maintenance."

The mode of exercising the admiralty jurisdiction is covered by section 21 of the Act, the relevant parts of which provide:

> "21 (1) Subject to section 22, an action *in personam* may be brought in the High Court in all cases within the admiralty jurisdiction of that court.
>
> (2) . . .
>
> (3) . . .
>
> (4) In the case of any such claim as is mentioned in section 20(2)(*e*) to (*r*):
>
> (*a*) the claim arises in connection with a ship; and
>
> (*b*) The person who would be liable on the claim in an action in personam ("the relevant person") was, when the cause of action arose, the owner or charterer of, or in possession or in control of, the ship, an action in rem may (whether or not the claim gives rise to a maritime lien on that ship) be brought in the High Court against:
>
> (*i*) that ship, if at the time when the action is brought the relevant person is either the beneficial owner of that ship as respects all the shares in it or the charterer of it under a charter by demise . . ."

Admiralty actions therefore may be either *in rem* or *in personam*. An admiralty action *in rem* is in effect an action against a *res*. A *res* is usually a ship but may in some cases be cargo freight or an aircraft. In such an action the plaintiff may cause the res to be arrested if it is within jurisdiction.

The learned Judge held on the evidence before him that the claim by Caltex fell within the ambit of sections 20(2)(*m*) and 21(4) of the Supreme Court Act

of 1981. Starting first with section 20(2)(*m*), the question to be decided is whether the goods in relation to which the claim was made by Caltex were supplied to the ship for her operation or maintenance. The Judge thought that the nature of the goods was such that it was probably intended for the operation of the ship. The quantity involved was in excess of 6 000 metric tons. Such a large quantity of fuel may or may not have been supplied to the ship for its operation. It is quite probable that it was supplied for some other purpose. Mr Epaminondas Saliarelis deponed in paragraph 7 of his affidavit that he was informed by the master of the ship that the said fuel was ordered by and was only delivered to the ship under an arrangement between the master and SOSCO as a result of which the ship was used as a base for the storage of the said fuel and oil pending its sale by SOSCO and a company called SOSCO Fishing Industries Ltd to other vessels. He was categorical in his assertion that his company, Sea Guardian Company SA, the legal and beneficial owner of the ship, had not placed any order with Caltex for the supply of the fuel oil in question. This is supported by Mr Theodore George Tsakiris, a director of SOSCO, who confirmed in his affidavit that the order for supply of fuel oil was placed by SOSCO and that the ship was used only as a base for storing the fuel pending the sale and supply of the same to other vessels in the port of Mombasa.

Even assuming without deciding that the goods fell within the scope of subparagraph (*m*), were the mandatory requirements of section 21(4) satisfied? It goes without saying that the claim arose in connection with a ship. What has to be determined is whether the appellants are the persons who would be liable on the claim in an action *in personam*. When the cause of action arose the appellants were certainly the owners of the ship and if they were liable *in personam* on the evidence then an action *in rem* could have been brought against them. But the decisive question is whether on the evidence the appellants were liable to Caltex *in personam*. Put slightly differently the appellants would not be liable in an action *in rem* unless they would also be liable in an action *in personam*. This linkage is important as it constitutes the basis upon which the Court's jurisdiction is to be exercised.

It was Mr *Inamdar*'s submission that on the material before the Judge there was no evidence that the appellants could be held liable in an action *in personam*. The contract for the sale and delivery of the goods was made by an exchange of two telexes which I consider to be important and which I will read in full. The first telex is dated 15 September 1988, and is addressed to SOSCO marked for the attention of Mr Saliarelis and reads:

> "*Fuel Oil Supply Ex-Kot*
>
> We confirm sale of 5 500MT of FO 180 CST subject to following terms:
>
> AA Price USD converted to Kenya shillings at the selling rate of the US Dollar quoted by major commercial banks on the date of invoice.
>
> BB Credit terms strictly thirty days from date of invoice subject to settlement of total amount in respect of 500MT fuel oil lifted in late August 1988 ex-Kot
>
> CC Payment of connection/disconnection charges, KPA overtime and Fire Brigade stand by charges.
>
> Please confirm acceptance of above terms in order that we may make arrangements to supply.
>
> Caltex Nairobi."

SOSCO's replying telex, also dated 15 September 1988, addressed to Caltex (Nairobi) and copied to Caltex (Mombasa) states:

> "*Fuel Oil Ex Kot*
>
> Thanks for your telex 852 of today. We hereby confirm acceptance the purchase of 5000MT FO 180 CST ex-Kot with usual terms. PLS be advised that we nominate M/T 'Lilian S' to lift the parcel.
>
> Best regards
>
> TG Tsakiris."

It is plain beyond a peradventure looking at these two telexes, that the contract of sale was made between Caltex and SOSCO. It is to be noted that no reference is made to these important telexes in the affidavit to lead a warrant for the arrest of the ship sworn by Mr Johnson Robert Kariuki on behalf of Caltex on 5 December 1988. On 2 February 1989, Mr Kariuki swore a second affidavit in reply to the affidavits of Mr Saliarelis and Mr Tsakiris in which he did not make even a passing reference to those telexes. He attached copies of a delivery note and an invoice. In the result, the averment contained in Mr Tsakiris's affidavit that the contract for sale of the fuel oil was made between SOSCO and Caltex remained unchallenged and must be accepted as true. The BDR dated 19 September 1988, signed by the captain of the ship is no more than an acknowledgement by the captain that the fuel oil was delivered to the ship in accordance with arrangements agreed upon between Caltex and SOSCO in the telexes exchanged between them. The delivery was made to the ship as the vessel nominated for delivery under contract of sale. It was not delivered to the ship either because it was required for its operation or because it had been bought by or sold to the owners of the ship.

On this evidence, I have no difficulty in finding as a fact that the sale was made to SOSCO and only SOSCO, and no other party, could be liable in an action *in personam* for the value of the goods sold and delivered by Caltex. It is clear therefore that Caltex failed to bring its claim within the mandatory provisions of section 21(4)(*b*) and was consequently not entitled to bring an action *in rem* against the ship. In my view, therefore, the learned Judge was plainly wrong when he found that those provisions had been satisfied.

In the case of *The River Rima* [1987] 3 All ER l (CA), the plaintiffs entered into an agreement with the defendant shipping line to lease to them containers for use on their cargo-carrying vessels. Under the terms of the agreement the containers were delivered directly to shippers at specified depots to be filled and were used interchangeably on a number of vessels which were either owned or chartered by the defendants. Subsequently, the plaintiffs issued a writ *in rem* claiming, *inter alia*, damages for breach of the agreement and one of the defendants' ships was arrested. Under section 20(2)(*m*) of the Supreme Court Act of 1981, the Admiralty Court had jurisdiction regarding "any claim in respect of goods supplied to a ship for her operation" and by section 21(4) an action *in rem* could be brought against any other ship in the same entire beneficial ownership or chartered to the same person under a charter by demise, so long as that person would have been liable on the claim if the action had been brought *in personam*. The defendants applied for the writ to be struck out and the ship released from arrest, on the ground that the plaintiffs' claim did not lie within the jurisdiction of the Admiralty Court. The Judge dismissed the application, holding that the containers were goods supplied to a ship for her operation and that accordingly the plaintiffs' claim fell within section 20(2)(*m*) of the 1981 Act. The defendants appealed to the Court of Appeal.

It was held that in order to maintain an action under section 20(2)(*m*) of the 1981 Act, it was necessary to demonstrate a sufficiently direct connection between the agreement relied on and the operation of the ship. Since the true purpose of the leasing agreement was to enable the defendants to meet the convenience of shippers in providing packaging for all their cargoes, the containers had not been shown to be sufficiently closely connected within the operation of the defendants' ships, or with any ships, so as to bring the plaintiffs' claim within section 20(2)(*m*). Furthermore, it had not been established, for the purposes of section 21(4) of the 1981 Act, that when the cause of action arose the defendants were the beneficial owners or charterers of a ship or ships to which the plaintiffs' claim related, and accordingly there was insufficient evidence to justify the ship's arrest under section 21(4). It followed that the plaintiffs' claim did not come within the jurisdiction of the Admiralty Court. The appeal was allowed, the writ set aside and the ship released from arrest.

In the course of his judgment, with which both Nourse and Woolf LJJ agreed, Sir John Donaldson MR, in relation to the meaning of section 20(2)(*m*) of the 1981 Act said at 4d:

> "There is no doubt that the Judge was much influenced by the decision of the District Court of Rotterdam in *The River Jimini* to which he referred and by the desirability of there being a common international approach to the admiralty jurisdiction of Courts. In this he was clearly right. The International Convention relating to the arrest of sea-going ships which has been ratified by Great Britain, was intended to have just this effect and the relevant sections of the Supreme Court Act of 1981 and their predecessors in the Administration of justice Act of 1959 were intended to give effect to the convention. *Nevertheless, it is not yet the case that there is any established body of law as to the meaning of art 1(1)(*k*) of the Brussels Convention, which is the equivalent of paragraph* (*m*)" (emphasise mine).

The plaintiffs appealed to the House of Lords and their appeal was dismissed (see *The River Rima* [1988] 2 Lloyds' Rep 193).

Since I have arrived at the conclusion that Caltex failed to bring its claim within the ambit of section 21(4) of the 1981 Act, it follows that the Court acted without jurisdiction in issuing a warrant for the arrest of the ship and the subsequent application by the appellants to set aside the writ of summons and all subsequent proceedings and for the release of the ship from arrest ought to have been allowed. It follows that grounds 1, 2, 3, 4, 5, 6, 7 and 8 of the appeal relating to the issue of jurisdiction succeed and are allowed.

The conclusion I have arrived at on the issue of jurisdiction is sufficient to dispose of this appeal but as counsel addressed this Court at some length on the sufficiency or otherwise of the affidavit to lead the arrest, I think I ought to deal with ground 9 of the appeal as well.

The conditions prerequisite to the issue of a warrant for the arrest of a ship are set out under the Rules of the Supreme Court Order 75, rule 5 and paragraphs (4) and (9) which are relevant stipulate that:

> "5 (4) A warrant of arrest shall not be issued until the party intending to issue the same has filed an affidavit made by him or his agent containing the particulars required by paragraph (9); however, the Court may, if it thinks fit, give leave to issue the warrant notwithstanding that the affidavit does not contain all those particulars.

(9) An affidavit required by paragraph 4 *must* state:

(*a*) in every case:

(i) the nature of the claim or counterclaim and that it has not been satisfied and, if it arises in connection with a ship, the name of the ship; and

(ii) the nature of the property to be arrested and, if the property is a ship, the name of the ship and her port of registry; and

(*b*) in the case of a claim against a ship by virtue of section 21(4) of the Supreme Court Act of 1981:

(i) the name of the person who would be liable on the claim in an action in personam ('the relevant person'); and

(ii) that the relevant person was when the cause of action arose the owner or charterer of, or in possession or in control of, the ship in connection with which the claim arose; and

(iii) that in the time of the issue of the writ the relevant person was either the beneficial owner of all the shares in the ship in respect of which the warrant is required or (where appropriate) the charterer of it under a charter by demise; and

(*c*) . . . (not relevant)

(*d*) . . . (not relevant)

(*e*) . . . (not relevant)"

It was Mr *Inamdar*'s submission before us that the affidavit of Mr Johnson Robert Kariuki sworn on 5 December 1988, was manifestly defective for lack of compliance with the mandatory provisions of the Rules of the Supreme Court Order 75, rule 5(4) and (9). In that affidavit, Mr Kariuki deponed as follows:

"1. I am employed by the plaintiff company herein and I am duly authorised to swear this affidavit. The contents of this my affidavit are within my own knowledge.

2. In the month of September the plaintiff company supplied to the said motor tanker 'Lilian S' a quantity of gas oil, fuel and bunkers to the value of KShs 6 110 434-55. The amount of KShs 6 110 434,55 was due and payable immediately upon supply of gas oil, fuel and bunkers to the vessel but was not paid and we have been demanding payment of the same from the owner's agents at Mombasa. I annex hereto a delivery note signed on behalf of the defendants, acknowledging the amount of KShs 6 110 434,55 as owing and the delivery of the gas oil, fuel and bunkers as having been made.

3. The aid and processes of this Honourable Court are requested to enforce payment of this amount and I make this application for the immediate arrest of the motor tanker 'Lilian S'.

4. What is stated hereinabove is true and correct to the best of my own knowledge and belief."

As can be seen from the contents of this affidavit, it complied only with paragraph (9)(*a*) of rule 5 but did not include the particulars required to be given under paragraph (9)(*b*) of rule 5, in the case of a claim against a ship by virtue of section 21(4) of the Supreme Court Act of 1981. The affidavit did not identify the appellants as the person who would be liable on the claim in an action *in personam* nor did it state that the appellants were either the owners or charterers or in possession or control of the ship when the cause of action arose. There was no averment that at the time of the issue of the writ the appellants were the beneficial owners of all the shares in the ship either.

As this affidavit did not comply with the mandatory provisions of Rules of the Supreme Court Order 75, rule 5 paragraph (9) no reliance should have been placed on it unless the Court gave leave as required by the rule to dispense with those particulars. No leave having been obtained the affidavit should have been rejected outright. In this respect, the affidavit to lead a warrant of arrest was incurably defective.

Mr *Inamdar* also challenged the validity of this affidavit on another ground, namely that it failed to disclose, and in fact concealed, material facts as a result of which the Court was misled into making an *ex parte* order gravely prejudicial to the appellants. He submits that if these material facts had been disclosed, the Court would not have made the order for the arrest of the ship. As I understood him Mr *Inamdar*'s contention is that Caltex was guilty of lack of candour. The material facts which Mr *Inamdar* contends were concealed are contained in the two telexes to which I have already referred. The main plank of his argument is that if Caltex had disclosed either the existence or contents of these telexes it would have been readily apparent to the Judge who gave the order for the arrest of the ship that the agreement for the sale of the goods in question was concluded not between Caltex and the appellants, as Caltex had led the Court to believe, but between Caltex and SOSCO. On this basis the Judge would have seen straightaway that the appellants could not have been held liable for the claim in an action *in personam* and in consequence would have declined to make the order sought.

This duty of candour has been dealt with in a number of decided cases. In *The Andria (Vasco)* [1984] 1 QB 477, the plaintiffs, the owners of cargo carried on board the defendant's ship, wished to pursue a claim against the defendants for damage to that cargo. After the plaintiffs had commenced an action *in rem* in the Admiralty Court, the parties made an *ad hoc* agreement to arbitrate and the plaintiffs actively pursued their claim in the arbitration. The defendant subsequently sold the ship. The defendants refused to provide security for the plaintiffs' claim, and the plaintiffs applied to the Admiralty Court for an order to arrest the ship. The application made no mention of the *ad hoc* agreement to arbitrate or of the fact that the plaintiffs were actively pursuing their claim in the arbitration. The Court issued the necessary warrant and the ship was arrested. The ship was released against an undertaking and the defendants applied to the Court for a declaration that the Court's jurisdiction to arrest the ship could not be invoked where its sole purpose was to provide security for arbitration proceedings, and an order discharging the undertaking. The Court made the declaration and offer sought by the defendants.

On appeal by the plaintiffs, it was held, dismissing the appeal, *inter alia*, that the power to arrest a ship, conferred on the Admiralty County by Rules of the Supreme Court Order 75, rule 5 was discretionary; that in exercising that power the Court might take into account the manner in which and the purpose for which the plaintiff had invoked the Court's jurisdiction; that since the purpose of the power of arrest under Rules of the Supreme Court Order 75, rule 5 was to provide security for the action *in rem* and not for any other proceedings and since it appeared that the plaintiffs when invoking that power had failed to disclose to the Court the fact that their claim was being pursued by arbitration, it followed that the invocation of the power of arrest had been an abuse of the process of the Court and that, therefore, the undertaking should

be discharged. The Court of Appeal in its judgment which was read by Robert Goff LF said at 491G:

> "It is axiomatic that in *ex parte* proceedings there should be full and frank disclosure to the Court of facts known to the applicant, and that failure to make such disclosure may result in the discharge of any order made upon the *ex parte* application even if though the facts were such that, with full disclose, an order would have been justified: See *R v Kensington Income Tax Commissioner* ex parte *Princess Edmond de Polignac* [1971] 1 KB 486. Examples of this principle are to be found in the case of *ex parte* injunctions, *ex parte* orders made for service of proceedings out of the jurisdiction under Order 11 of the Rules of the Supreme Court. In our judgment, exactly the same applies in the case of an *ex parte* application for the arrest of a ship where, as here, there has not been full disclosure of the material facts to the Court."

The same principle was dealt with in the case of *Brink's Mat Ltd v Eldombe* [1988] 3 All ER 188. It is not necessary to set out the relevant facts here but I would like to refer to an important passage in the judgment of Ralph Gibson LJ at 192*f* where he said:

> "In considering whether there has been relevant non-disclosure and what consequence the Court should attach to any failure to comply with the duty to make full and frank disclosure, the principles relevant to the issues in these appeals appear to me to include the following:
>
> (i) The duty of the applicant is to make a full and fair disclosure of the material facts;
>
> (ii) The material facts are those which it is material for the Judge to know in dealing with the application as made; materiality is to be decided by the Court and not by the assessment of the applicant or his legal advisers;
>
> (iii) The applicant must make proper inquiries before making the application. The duty of disclosure therefore applies not only to any additional facts which he would have known if he had made such inquiries;
>
> (iv) The extent of the inquiries which will be held to be proper, and therefore necessary, must depend on all the circumstances of the case including:
>
> (*a*) the nature of the case which the applicant is making when he makes the application;
>
> (*b*) the order for which application is made and the probable effect of the order on the defendant, and
>
> (*c*) the degree of legitimate urgency and the time available for the making of inquiries;
>
> (v) If material non-disclosure is established the Court will be astute to ensure that a plaintiff who obtains an *ex parte* injunction without full disclosure is deprived of any advantage he may have derived by that breach of duty;
>
> (vi) Whether the fact not disclosed is of sufficient materiality to justify or require immediate discharge of the order without examination of the merits depends on the importance of the fact to issues which were to be decided by the Judge on the application. The answer to the question whether the non-disclosure was innocent, in the sense that the fact was not known to the applicant or that its relevance was not perceived, is an important consideration but not decisive by reason of the duty on the applicant to make all proper inquiries and to give careful consideration to the case being presented;
>
> (vii) Finally, it is not for every omission that the injunction will be automatically discharged. A *locus poenitentiae* (chance of repentance) may sometimes be afforded. The Court has discretion, notwithstanding proof of material non-disclosure which justifies or requires the immediate discharge of the *ex parte* order, nevertheless to continue the order, or to make a new order on terms.

> '. . . when the whole of the facts, including that of the original non-disclosure, are before it, (the Court) may well grant such a second injunction if the original non-disclosure was innocent and if an injunction could properly be granted even had the facts been disclosed.' " See Lloyds Bowmaker Ltd v Britannia Arrow Holdings plc (larens, third party) [1988] 3 All ER 178 at 183 per Glidewell LJ.

And Balcombe LJ had this to say on the same point in the same case at 193*h*:

> "The Courts today are frequently asked to grant *ex parte* injunctions, either because the matter is too urgent to await a hearing on notice or because the very fact of giving notice may precipitate the action which the application is designed to prevent. On any *ex parte* application, the fact that the Court is asked to grant relief without the person against whom the relief is sought having the opportunity to be heard makes it imperative that the applicant should make full and frank disclosure of all facts known to him or which should have been known to him had he made all such inquiries as were reasonable and proper in the circumstances.
>
> The rule that an *ex parte* injunction will be discharged if it was obtained without full disclosure has a two fold purpose. It will deprive the wrongdoer of an advantage improperly obtained: See *Reg v Kensington Income Tax Comrs ex parte Princess Edmond de Polignac* [1971] KB 486 at 509. But it also serves as a deterrent to ensure that persons who make *ex parte* applications realise that they have this duty of disclosure and of the consequences (which may include a liability in costs) if they fail in that duty. Nevertheless, this judge-made rule cannot be allowed itself to become an instrument of injustice. It is for this reason that there must be a discretion in the Court to continue the injunction, or to grant a fresh injunction in its place, notwithstanding that there may have been non-disclosure when the original *ex parte* injunction was obtained."

All these cases make reference to the principle as stated in the well-known case of *R v Kensington Income Tax Commissioner ex parte Princess Edmond De Polignac* (*supra*), and so for the sake of completeness, I think I ought to read two passages from the judgments delivered in the Court of Appeal in that case. The first is to be found in the judgment of Warrington LJ at 509, where he said:

> "It is perfectly well settled that a person who makes an *ex parte* application to the Court – that is to say in the absence of the person who will be affected by that which the Court is asked to do – is under an obligation to the Court to make the fullest possible disclosure of all material facts within his knowledge, and if he does not make that fullest possible disclosure, then he cannot obtain any advantage from the proceedings, and he will be deprived of any advantage he may have already obtained by him. That is perfectly plain and requires no authority to justify it."

The other passage is from the judgment of Scrutton LJ at paragraphs 513-514 where he said:

> "Now that rule giving a day to the Commissioners to show cause was obtained upon an *ex parte* application; and it has been for many years the rule of the Court, and one which it is of the greatest importance to the Court to maintain, that when an applicant comes to the Court to obtain relief on an *ex parte* statement he should make a full and fair disclosure of all the material facts – facts, not law. He must not misstate the law. If he can help it – the Court is supposed to know the law. But it knows nothing about the facts, and the applicant must state fully and fairly the facts, and the penalty by which the Court enforces that obligation is that if it finds out that the facts have not been fully and fairly stated to it, the Court will set aside any action which it has taken on the faith of the imperfect statement."

This rule applies with equal force in Kenya and looking at the substance of the two telexes, I entertain no doubt at all that Caltex failed in its duty to make a full and frank disclosure of material facts and the application by the appellants to

set aside the writ and the warrant of arrest ought to have been allowed because quite clearly the original order made by Githinji J for the arrest of the ship was improperly obtained. Mr *Inamdar*'s complaint about the affidavit is well founded and I would uphold his submissions in his last ground of appeal as well.

It was for these reasons I was in favour of allowing the appeal, setting aside the writ and releasing the ship from arrest. I would give the appellants their costs of this appeal.

Masime JA: This appeal concerns the admiralty jurisdiction of the High Court and the occasions when it may be invoked. On the strength of a writ *in rem* taken out by Caltex Oil (K) Limited (the respondent to this appeal) the High Court in purported exercise of its admiralty jurisdiction issued a warrant for the arrest of the motor vessel "Lilian S" on 5 December 1988 and that vessel was duly arrested the following day.

The owners of the motor vessel "Lilian S" (the present appellants) then filed an unconditional appearance in the suit. And on 19 January 1989 they applied to the superior court by notice of motion under Order 75 of the Rules of the Supreme Court of England and section 4 of the Judicature Act (Chapter 8) of the Laws of Kenya for orders to set aside the writ *in rem* and all consequential proceedings including the warrant of arrest. The respondent objected to the appellants' challenge of the superior court's jurisdiction to entertain the claim since the appellants had filed an unconditional appearance but the trial Judge dismissed that objection. As the issue goes to jurisdiction it was again raised before us, *in limine*, and having heard counsel's arguments and submissions we upheld the learned trial Judge, dismissed the objection to the appellants' right to challenge the Court's jurisdiction and held that under Order 12, rule 8 of the Rules of the Supreme Court of England, which apply, such appearance was proper and did not amount to the appellant submitting to the Court's jurisdiction nor preclude it from challenging the Court's admiralty jurisdiction.

The superior court having heard full argument on the appellants' application held that the facts alleged in the writ, the request for the warrant of arrest and the affidavits filed in support thereof and the motion satisfied the statutory requirements for the inculcation and exercise of the Court's admiralty jurisdiction. The learned trial Judge put it as follows:

> "I quite agree with Mr *Inamdar* that a claimant in action *in rem* has to make averments in the writ of summons or statements of claim or affidavit in support of a request for a warrant of arrest against the res linking the supply to the *res* for this court to assume jurisdiction. The question which, however, immediately comes into mind is whether of necessity, the averments must be expressly made. To my mind it is not imperative that such averments be expressly made. Those are matters which may be inferred from other facts averred . . ."

The learned Judge then examined the affidavit evidence and continued:

> "From the facts averred an inference could be drawn that the gas oil and fuel was *probably* for use on the 'Lilian S'. It is not a remote inference . . . setting aside a writ is a harsh measure. To my mind it should only be resorted to in the clearest of cases where it can be shown that the claim is either frivolous, vexatious or is otherwise an abuse of the process of the Court. Also where from the averred facts no reasonable cause of action *in rem* is disclosed."

He therefore dismissed the appellants' application and ordered the costs thereof to abide the outcome of the trial of the suit. The appellant is aggrieved by that decision hence this appeal. After we heard the appeal the Court was of the unanimous view that the appeal should be allowed and we did so reserving our reasons. I now give my reasons for judgment.

It was submitted by the learned appellants' counsel that the reasoning of the learned Judge shows that he misapprehended the nature and effect of the application before him. The application was brought on the grounds that:

> "(*a*) the owners of the motor vessel 'Lilian S' . . . are not, and have never been, persons who would, in the circumstances of this case be liable to the plaintiffs in an action *in personam*;
>
> (*b*) the person who would in the circumstances of this case, be liable in an action *in personam* to the plaintiffs is Southern Oil Supply Co Limited, who were not the owners of the said motor vessel either at the time when the cause of action arose or at the time the writ in this action was issued."

Clearly the appellant was challenging the superior court's jurisdiction to entertain the respondent's claim *in rem*. And as this sole issue was decided against the appellant all the nine grounds of appeal deal with that issue. As the first four grounds of appeal deal with the construction of the statutory provisions as to jurisdiction I shall consider them first. The grounds of appeal are:

> "The learned (trial) Judge erred:
>
> 1. . . . in holding that the Court has jurisdiction to entertain the claim *in rem* made (by the respondent …) against the vessel 'Lilian S'.
> 2. . . . in holding that the facts alleged in the writ and in the affidavit for the request of a warrant of arrest were sufficient to satisfy the requirements of sections 20(2)(*m*) and 21 (4) of the Supreme Court Act as applied to Kenya.
> 3. . . . in failing to appreciate that the question whether (the respondents') claim fell within the ambit of section 20(2)(*m*) of the said Act was a question of jurisdiction which he was obliged to decide at once on the affidavit evidence before the Court.
> 4. . . . in failing to hold that the question whether, under section 21(4) of the said Act, the person 'who would be liable on the claim in an action *in personam*' at the time when the cause of action arose was Southern Oil Supply Co Limited (SOSCO) or Sea Guardian Company SA (the appellant herein) was likewise a question of jurisdiction requiring immediate decision on the affidavit evidence then before the Court . . ."

The statutory provisions which vest the High Court of Kenya with jurisdiction in admiralty matters and the relevant provisions of the Supreme Court Act of 1981 and the Rules of the Supreme Court Order 75 have been set out fully in the judgments of my brothers Nyarangi and Kwach JJA which I have had the advantage of reading in draft and with which I respectfully agree. Section 4 of the Judicature Act (Chapter 8) applies the law and procedure exercised by the High Court in England in its admiralty jurisdiction to Kenya. That law and procedure is contained in the Supreme Court Act of 1981 and the Rules of the Supreme Court (see 1988 Supreme Court Practice) Order 75. Section 20(1) of the Act gives the High Court jurisdiction over admiralty matters set out therein in four groups (*a*) to (*d*). Each of these groups is expounded on in the succeeding subsections. A claimant must get his claim into one of the categories set out in the section.

The respondent's claim in the present appeal purported to be founded upon section 20(1)(*a*) as particularised in section 20(2)(*m*), that is, it claimed that the High Court had jurisdiction to hear and determine its claims as it was, in the language of section 20(2)(*m*): "A . . . claim in respect of goods or materials supplied to a ship for her operation or maintenance."

If the claim so lay then the respondent was required to pursue it in accordance with the provisions set out in section 21(1) of the Act and Order 75 of the Rules of the Supreme Court.

In the instant appeal the appellant questioned the Court's jurisdiction at the first opportunity and in accordance with Order 12, rule 8 of the Rules of the Supreme Court. This Court has in an interlocutory ruling held that the appellant was entitled to so challenge the jurisdiction of the Court. That being so it was incumbent upon the superior court to dispose of that issue forthwith and before entertaining the claim further. A similar issue was raised in *The River Rima* [1987] 3 All ER 1 (CA) and [1988] 2 LG Rep 193 (HL), whether the plaintiff's claim fell within the jurisdiction of the Admiralty Court under section 20(2)(*m*) of the Act. It was held that it was necessary to demonstrate a sufficiently direct connection between the agreement relied on and the operation of the ship in order to maintain an action under the section. In that case the plaintiff's claim did not come within the admiralty jurisdiction and consequently the writ *in rem* and the warrant of arrest were set aside and the ship ordered to be released from arrest. And in *I Congresso del Partido* [1978] 1 QB 500 at 526B it was stated by Golf J (as he then was) that:

> "Invocation of the admiralty jurisdiction by an action *in rem* presupposes the existence of a claim *in personam* against the person, who, at the time when the action is brought is the owner, of the ship."

The learned Judge was there dealing with section 3(4) of the Administration of Justice Act of 1956, the substance of which is now comprised in section 21(4) of the Act as follows:

> "(4) In the case of any such claim as is mentioned in section 20(2)(*e*) to (*r*), where;
>
> (*a*) the claim arises in connection with a ship; and,
>
> (*b*) the person who would be liable on the claim in an action *in personam* ('the relevant person') was, when the cause of action arose, the owner or charterer of, or in possession or in control, of the ship, an action *in rem* may (whether or not the claim gives rise to a maritime lien on that ship) be brought in the High Court against:
>
> (i) that ship, if at the time when the action is brought the relevant person is either the beneficial owner of that ship as respects all the shares in it or the charterer of it under a charter by demise; or
>
> (ii) any other ship which, at the time when the action is brought, the 'relevant person' is the beneficial owner as respects all the shares in it."

It was contended by the appellant that it was not such a "relevant person" and consequently that the action *in rem* was brought against it in error as in the circumstances the admiralty jurisdiction could not properly be invoked.

I turn to examine the nature of the respondent's claim and the mode in which the admiralty jurisdiction of the Court was invoked in the light of my above statement of the law and principle. The endorsement of claim on the writ of summons was as follows:

> "The plaintiff's claim against the defendant is for KShs 6 110 434,55 due and owing by the defendant to the plaintiff in respect of a quantity of gas oil, fuel and bunkers supplied by the plaintiffs to the defendant."

The Bunker Delivery Report dated 19 September 1988 and the invoice number 67352 both annexed to the affidavit of Johnson Robert Kariuki dated 5 December 1988 and sworn in support of the claim, however, showed that

although the fuel was delivered to the motor vessel "Lilian S" it was for the account of Southern Oil Supply Company Limited. It was the appellants contention that this Southern Oil Supply Company Limited was the person who would, in the circumstances, be liable in an action *in personam* to the plaintiffs. And that company was not and had never been the owner of the "Lilian S" which was, rather, owned by the appellant, Sea Guardian Company SA of Panama – see the affidavit of Epaminondas Saliarelis, the secretary of the appellant. In that affidavit Mr Saliarelis depones that:

> "7. . . . the said fuel was ordered by and was the property of Southern Oil Supply Company Limited and was only delivered to the vessel in consequence of separate arrangements made between the master (of the 'Lilian S') and Southern Oil Supply Company Limited as a result of which the vessel was used as a base for the storage of the said fuel and oil pending its sale by Southern Oil Supply Company Limited and SOSCO Fishing Industries Limited to other vessels.
>
> 8. . . . I am not aware and despite diligent enquiries have not found that my company has placed an order with the (respondents) for supply of the fuel oil referred to . . ."

And Theodore George Tsakiris, a director of Southern Oil Supply Company Limited deponed that that company carries on business of supplying bunkers to ships in Mombasa and had entered into the contract in issue in this case and arranged with the appellant for the motor vessel "Lilian S" to be used as "a base for storing the said fuel oil pending the sale and supply of the same to other vessels in the port of Mombasa". The documents annexed to Mr Tsakiris's affidavit evidencing the contract and demands for payment show that the respondent looked to Southern Oil Supply Company Limited and not the appellant for payment for the said fuel. This evidence clearly showed that the respondent's claim could neither be founded on section 20(1)(*a*) and 20(2)(*m*) of the Supreme Court Act nor be the basis for the invocation of the Court's admiralty jurisdiction pursuant to section 21(4) of the Act. In *The Evpo Agnic* [1988] WLR 1090, it was held, *inter alia*, that where "the relevant person" for the purposes of section 21(4)(*h*) of the Act was the owner of the ship, on a true construction of the section "owner" meant "registered owner" and not merely someone with an equitable property in the ship. In the present appeal the owners of the motor vessel "Lilian S" were sued on a claim which on the face of it lay against the third party and said the respondent adduced no evidence that the appellant was "the relevant person". The claim, in my view, fails to qualify for the invocation of the admiralty jurisdiction. For that reason alone I would respectfully hold that he learned trial Judge misapprehended the issue urged before him and consequently came to a wrong conclusion. It is for this reason, *inter alia*, that I allowed the appeal.

But the appellant has urged other grounds in the appeal namely grounds 5, 6, 7, 8 and 9. These grounds are:

> "5. In considering the question whether the plaintiff had satisfied the requirements of section 21(4) of the said Act, the learned Judge erred in law:
>
> (*a*) in failing to pay any regard to the contents of the two telexes (marked TGT 1 and TGT 2 and attached to the affidavit of Theodore George Tsakiris filed on behalf of the defendant) and in failing to appreciate that the plaintiff should have disclosed the said two telexes in the affidavit filed in support of its request for the issue of a warrant of arrest but had failed to do so;

(*b*) in failing to pay any or any proper regard to the terms of the invoice dated 20 September 1988 annexed to the affidavit of Johnson Robert Kariuki sworn on 5 December 1988 and filed in support of the plaintiff's request for the issue of a warrant of arrest.

(*c*) in paying undue regard to the contents of the bunker delivery report dated 19 September 1988 annexed to the said affidavit of Johnson Robert Kariuki filed in support of the plaintiff's request for the issue of a warrant of arrest.

6. The learned Judge erred in law in holding that 'this court has the jurisdiction to entertain this claim *in rem*' on the basis of assumptions or inferences in favour of the plaintiff when such assumptions or inferences were not only not canvassed before him on the hearing of the application but were also contrary to the affidavit evidence placed before him by both parties.

7. The learned Judge erred in law and/or in principle in deciding the questions of jurisdiction on the wrong basis, namely that a claim which was not frivolous or vexatious and which disclosed a reasonable cause of action, should be allowed to proceed.

8. The learned Judge ought to have decided the questions of jurisdiction regardless of the merits or demerits of the underlying claims.

9. The learned Judge erred in law in failing to set aside the writ and the warrant of arrest on the ground that the writ and the affidavit to lead to the arrest were manifestly defective."

It is clear that the appellant here complains of the learned trial Judge's scrutiny, evaluation and appreciation of the pleadings and evidence placed before him and his process of reasoning which led to his erroneous decision in the matter. I have already analysed the evidence that was placed before the superior court and shown that it fell far short of satisfying the statutory requirements for the invocation of the admiralty jurisdiction of the Court. The appellant's complaints, however, go beyond that: it was contended that the respondent failed to meet the procedural standards set by Order 75, rule 5 of the Rules of the Supreme Court which I turn to consider.

Order 75, rule 5(4) and 5(9)(*a*) provide as follows so far as is relevant:

"5 (4) A warrant of arrest shall not be issued until the party intending to issue the same has filed an affidavit made by him or his agent containing the particulars required by paragraph (*g*); however, the Court may, if it thinks fit, give leave to issue the warrant notwithstanding that the affidavit does not contain all those particulars.

(9) An affidavit required by paragraph (4) must state:

(*a*) in every case:

(i) the nature of the claim or counterclaim and that it has not been satisfied and, if it arises in connection with a ship, the name of that ship; and

(ii) the nature of the property to be arrested and, if the property is a ship, the name of the ship and her port of registry; and

(*b*) in the case of a claim against a ship by virtue of section 21(4) of the Supreme Court Act of 1981:

(i) the name of the person who would be liable on the claim in an action *in personam* ('the relevant person'); and

(ii) that the relevant person was when the cause of action arose the owner or charterer of, or in possession or in control of, the ship in connection with which the claim arose; and

(iii) that at the time of the issue of the writ the relevant person was either the beneficial owner of all the shares in the ship in respect of which the warrant is required or (where appropriate) the charterer of it under a charter by demise."

The evidence placed before the Court in support of the claim as well as the motion has been analysed above and I have also, as I said before, had the advantage of reading in draft the comments and conclusions of my brothers Nyarangi and Kwach JJA on it with which I respectfully agree. That evidence so far as it was adduced by the respondent fell foul of the requirements of rule 5 of Order 75: it failed to establish that the appellant was "the relevant person". The upshot of that is that the High Court did not have admiralty jurisdiction and the respondent was not entitled to invoke that jurisdiction.

It is for these reasons that I concurred in the order of the Court whereby this appeal was allowed as well as the order for costs.

For the appellants:
IT Inamdar instructed by *Inamdar and Inamdar Adv*

For the respondents:
MAC Satchu instructed by *Atkinson Cleasby and Satchu Adv*

Magunga General Stores v Pepco Distributors Ltd
[1986–1989] 1 EA 334 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	18 June 1987
Case Number:	24/86
Before:	Platt, Gachuhi and Apaloo JJA
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[1] Summary judgment entered ex parte – Application to set aside and for stay of execution – Indication to the Judge that the defence may be amended – Refusal to set aside the judgment for lack of merit in the defence – Whether the Court exercised its discretion on right principles.

Editor's Summary

The plaintiff filed a plaint claiming the sum of KShs 81 170 against the defendant to which the defendant filed a defence generally denying the claim. On an application for summary judgment under Order XXXV of the Civil Procedure Rules the defendant failed to appear and *ex parte* judgment was entered against him. The defendant thereafter applied to set aside the judgment, stating that he had been delayed on his journey to court and arrived immediately after the judgment was given. He further alleged that he would raise triable issues at the trial and defend himself. His advocate indicated that the defence would be amended.

The Judge noted the reason for delay but found that no useful purpose would be served by setting

aside the judgment as the defence lacked merit, the defendant having merely denied the contents of the plaint.

The appellants appealed.

Held – The Court on an appeal will not interfere with the exercise of a discretion on an application for summary judgment unless the exercise was wrong in principle or the Judge acted perversely on the facts.

A mere denial is not a sufficient defence and a defendant has to show either by affidavit, oral evidence, or otherwise, that there is a good defence.

There was no fault of principle exhibited by the learned Judge nor was the exercise of his discretion perverse.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Mbogo v Shah [1968] EA 93

United Kingdom

Evans v Bartlam [1937] 2 All ER 646

Judgment

Platt, Gachuhi and Apaloo JJA: The appellant in this appeal was the original defendant. The latter had been sued by the plaintiff in respect of goods sold and delivered to the defendant at his request in Kisumu during the year 1983. The defendant filed a defence in the terms:

> "The defendant further denies the contents of paragraphs 3 and 4 of the plaint and will put the plaintiff to strict proof of their claim."

Some time later on 8 January 1985, the plaintiff moved the Court on notice for judgment to be entered for the plaintiff as prayed in the plaint. Mr Rajnikant Shah, representing the plaintiff firm, filed an affidavit on or about 8 January 1985 stating the reasons for summary judgment to be entered under Order XXXV of the Civil Procedure Code. He said that the sum of KShs 91 170 was due upon nine dishonoured cheques, drawn by the defendant, payable to the plaintiff upon Barclays Bank Limited and Kenya Commercial Bank Limited, Kisii Branch. Mr Shah gave the dates of each cheque, and the sums involved. The defendant had notice of dishonour. Section 57 of the Bills of Exchange Act, it was pointed out, allowed 12% interest. The copies of the cheques were attached. The plaintiff continued to point out that the goods had been sold and delivered to the defendant in response to which the defendant had issued the cheques in payment. Consequently, the defendant was truly indebted to the plaintiff in the sum of KShs 91 170.

In the supplementary record of appeal the nine cheques have been set out. They support the sum claimed exactly, which is not what the details of the cheques in the affidavit can show. The affidavit is inaccurate. Probably the cheques attached clarified the position. At any rate the position is now clear. There was no affidavit in opposition. Schofield J entered judgment on 25 June 1985 *ex parte* for the plaintiff in the sum of KShs 91 170 together with costs and

interest on the decretal amount at court rates from the date the suit was filed. That was substantially in accordance with the plaint, and not section 57 of the Bills of Exchange Act. But the interest will probably be the same.

The defendant took a chamber summons to apply for the *ex parte* judgment to be set aside, and for execution in the said case to be stayed.

Porter J heard that application. The defendant explained that he had travelled from Sotik to Kisumu, arrived at 9:15am and found *ex parte* judgment entered. There was no reason for the delay apart from this. Then the defendant merely alleged in a bald statement as follows: "I am prepared to defend myself as I have triable issues to raise at the hearing" and that was all. The plaintiff repeated his claim and asked that the defendant should deposit all the money in court. Porter J noted that Mr Bwokora, for the defendant at that stage, had explained that the defence was to be amended from its state as a mere general traverse. But there was still no defence put forward against the plaint. No useful purpose would be served by setting aside the judgment. The learned Judge noted the reason for the delay, but dwelt mainly on the lack of merit in the defence.

The appeal lies against Porter J's exercise of his discretion. The formal shape of the appeal as appears from the memorandum, is that the Judge was wrong to conclude that the defendant/appellant did not have a good defence. On the other hand, if there were no evidence on the face of the record, it was wrong to conclude that there could not be one, because counsel had indicated that he would amend the defence. Indeed, the appellant had been unable to answer the replying affidavit, which had been filed late.

In this Court, however, an argument concerning the nature of the claim was put forward. Mr *Mainye* supposed that Mr Rajni Shah's affidavit sworn in support of his motion was based on a different cause of action to that relied on in the plaint. In the affidavit the cause of action was based on dishonoured cheques, whilst in the plaint the cause of action was the breach of contract due to non-payment. It is of course true that there can be a different cause of action based on dishonoured cheques from that based on the breach of contract, but that analysis is not well illustrated by this case. It is plain that the cause of action in the plaint is based on breach of contract for non-payment but the affidavit of Mr Shah, which getting near a case based on dishonoured cheques in paragraph 2 thereof, comes back to breach of contract in paragraph 3. It is because the goods were sold and delivered at the defendant's/appellant's request, that the latter had issued the cheques for payment. It is clear that the cheques were used as evidence of the non-payment of the contract.

The learned Judge had, as he said, a discretion on whether or not to enter summary judgment under Order XXXV of the Civil Procedure Code. As laid down in *Mbogo v Shah* [1968] EA 93 the duty of this Court on an appeal against the exercise of that discretion is not to interfere unless the Judge has exercised his discretion wrongly in principle or perversely on the facts of the case. The principle under which the Judge principally acted was that taking into account the reason for the delay, he emphasised that there was no merit in the defence.

First of all, a mere denial is not a sufficient defence in this type of case. There must be some reason why the defendant does not owe the money. Either there was no contract or it was not carried out and failed. It could also be that payment had been made and could be proved. It is not sufficient therefore simply to deny liability without some reason given.

Secondly, it is for the defendant to put forward his defence, and when faced with a motion for summary judgment under Order XXXV the defendant must heed rule 2 of that order:

> "The defendant may show either by affidavit, or by oral evidence or otherwise that he should have leave to defend the suit."

For rule 6 provides that if it appears to the Court that any defendant has a good defence, then he may be allowed to defend, while if there is not a good defence, the plaintiff shall be entitled to judgment. In this case the defendant had put no defence upon the record by affidavit or otherwise. The *ex parte* judgment was regularly ordered by Schofield J as a consequence.

Thirdly, the decision to be taken by Porter J whether or not to set aside that regular judgment depended on a review of all the circumstances and the merits of the case. There was no particular reason why the defendant/appellant was late. He did not set off from Sotik in time, for there was no hindrance en route. Porter J looked carefully at the merits. He was told the defence would be amended. What good was that to him? How could he Judge the effect of the amendment when the proposed amendment was not put before him, let alone any reasons for the amendment?

In *Evans v Bartlam* [1937] 2 All ER 646 at 650 Lord Atkin stressed the importance of the consideration of the merits on the ultimate consideration in these memorable words:

> "The principle obviously is that unless and until the Court has pronounced a judgment upon the merits or by consent, it is to have the power to revoke the expression of its coercive power where that has been obtained only by a failure to follow any rules of procedure."

But, on the contrary, where there are no merits, the coercive power will stand unabridged.

There is no fault of principle exhibited by the learned Judge, nor was the exercise of his discretion perverse. Consequently there is no ground on which the Court can interfere with his discretion. The matter was plain during the hearing of the appeal and consequently we did not call upon Mr Rajni Shah to reply. The appeal will be dismissed with costs.

For the appellant:
S Mainye

For the respondent:
In person

Marco Tool and Explosives Ltd v Mamujee Brothers Ltd
[1986–1989] 1 EA 337 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	29 January 1988
Case Number:	107/86
Before:	Platt, Gachuhi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Civil procedure – Costs – Security for costs – Discretion of the Court – Circumstance(s) under which costs in the High Court and on appeal would both be ordered to be secured.

Editor's Summary

The applicant/plaintiff at trial obtained a judgment against the defendant (now respondent). The defendant/respondent preferred appeal against that High Court decision. In the meantime the applicant's attempt to execute the High Court decree against the respondent failed.

The applicant brought the application under rule 104 of the Court of Appeal Rules praying for an order that further security for the past costs of the High Court be given as well as the costs of the appeal because the respondent/appellant did not appear to have any property or assets from which the costs could be recovered.

Held – The Court has unfettered though judicial discretion to order or refuse security. Much will depend on the circumstances of each case though the final result must be reasonable and modest.

On the facts which are disputed, we are inclined to agree with Mr *Obhrai* (counsel for respondent) that not more than failure to pay the debt or costs have been proved. The onus on the applicant is to prove such inability or lack of good faith, in order to make an order for security reasonable.

Cases referred to in ruling

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Noormohamed v Patel [1962] EA 447

Kaura v Morgan [1961] EA 462

United Kingdom

Hall v Snowdon Hubbard and Co [1899] 1 QB 593

Ruling

Platt, Gachuhi JJA and Masime AJA: The applicant, who was the plaintiff at the trial, and finally succeeded in getting judgment against the defendant, now respondent, finds that the latter has taken an appeal for the High Court's decisions. The applicant has attempted to execute the High Court's decree, but has recovered nothing. The applicant then resorted to an old game whereby, if security for costs is ordered, and such security is not provided, then the appeal cannot proceed to hearing. But the application dated 4 September 1986 was dismissed by a single Judge of this Court. The applicant thus referred the matter to the full court, under rule 54 of the Court of Appeal Rules.

The application is brought under rule 104 of the Court of Appeal Rules. It prays for an order that further security for the past costs of the High Court be

given as well as the costs of the appeal, because the respondent/appellant did not appear to have any property or assets from which the costs could be recovered. That follows the terms of rule 104(3) which provides:

> "The Court may at any time if it thinks fit, direct that further security for costs be given, and may direct that security be given for the payment of past costs relating to the matter in question in the appeal."

The applicant relied on two decisions published in the 1961 volume of the East African Series. It appears that the careful approach of Sheridan J (as he then was) was rejected in favour of the English decision in *Hall v Snowdon Hubbard and Company* [1899] 1 QB 593 at 594, where it was remarked that:

> "The ordinary rule of this court is that, except in applications for new trials, when the respondent can show that the appellant, if unsuccessful, would be unable through poverty to pay the costs of the appeal, an order for security for costs is made."

The effect would be that until security was given the appeal would not be allowed to be heard. But we shall see that Sheridan J's judgment will bear fruit later. The decision was that the costs of the appeal and past costs were to be secured.

The next case, *Siri Ram Kaura v Morgan* [1961] EA 462, resulted in security being ordered. A distinction was made between mere non-payment of costs in the Court below and proof of the appellant's inability to pay. The order was severe. Security was to be proved within 14 days, during which time the hearing of the appeal was stayed, and in default of compliance, the appeal was to be dismissed.

The respondent relies on the difficult but thoughtful and humane judgment in *Noormohamed Abdulla v Patel* [1962] EA 447. The final conclusion was based on the dilatoriness of the first respondent in making the application, which he had not shown would not prejudice the appellant. The application was refused. But the reasoning affords a valuable insight into an emergent fresh approach. It was laid down that the rule for security for costs was a departure from the English law. Hence, some differences might arise consequent on the wider powers conferred by the rules on the Court of Appeal, although many English principles might remain relevant. The main difference was that in Kenya security for the costs of the appeal must always be deposited. While "past costs" included costs in the lower court, such costs would only be secured sparingly. Moreover, since costs of the appeal had been provided for, further security would only be ordered in exceptional circumstances. It was a difficult question in what circumstances the costs in the High Court and on appeal would both be ordered to be secured. It would be difficult to visualise a case when both sets of costs would be ordered to be secured in full. The automatic provision of costs (in the present rule 104(1)) gives rise to the inference that only a reasonable amount would be ordered. Sheridan J had warned that the circumstances must be exceptional. There has been no reported Court of Appeal decision since 1962 on this topic.

We may ask what it was that caused Sir Trevor Gould AVP such anxiety? It was that he and his brothers did not wish to depart from the decision in *Sir Ram Kaura* (*supra*), yet there was a greater principle at stake than merely putting a procedural bar to further proceedings. He said (at 453):

> "It is right that a litigant, however poor, should be permitted to bring his proceedings without hindrance and have his case decided."

As against that shining principle, the procedural difficulty followed:

> "But when it has been decided by the Court set up by law for the purpose, other considerations enter into the question whether he should be permitted unconditionally to carry the matter further."

We must agree that these questions do raise principles which are difficult to reconcile. But we would say that it should not be poverty alone which brings down the procedural bar upon the impoverished head. Indeed, in one case, it is recognised that if the poverty is due to the alleged wrongful act complained of, it cannot be relied on. Similarly, if costs have been incurred before the application is brought, that is a factor to be considered. Again some weight may be given to the obvious success of an appeal, if that is the case, even though the appellant is impecunious. On the other hand, any activity of an appellant which smacks of bad faith, in taking advantage of a respondent may well tip the scales in favour of ordering security. It may not ultimately be of advantage to continue the appeal.

As the cases show the Court has an unfettered though judicial discretion to order or refuse security. Much will depend upon the circumstances of each case, though the guidance from *Noormohamed*'s case is that the final result must be reasonable and modest. We would observe at once therefore that we would not be inclined to agree with Mr *Kasmani* that the full KShs 75 000 that he estimated would cover the total of both High Court and appellate court costs, should be secured.

On the facts which are disputed, we are inclined to agree with Mr *Obhrai* that not more than failure to pay the debt or costs has been proved. The onus is on the applicant to prove such inability or lack of good faith, that would make an order for security reasonable. Such allegations as that the company has no registered office clearly failed. The company may still have some business. But the suit business seems to have been of doubtful legality, involving both parties.

When all the circumstances are taken into account, we think that the learned single Judge of this Court could reasonably have concluded that it was inappropriate to give directions as to security. At any rate, we cannot say that he was wrong to rely only on the mandatory security in the costs of the appeal, relying as we do on the principle set out in *Noormohamed*'s case. Consequently the reference is dismissed with costs.

For the appellant:
Kasmani

For the respondent:
Obhrai

Mbuthia v Jimba Credit Finance Corporation and another
[1986–1989] 1 EA 340 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	12 July 1988
Case Number:	111/86
Before:	Platt, Apaloo JJA and Masime AJA
Sourced by:	LawAfrica

[1] Injunction – Interim injunction – Principles of grant.

[2] Mortgagees and chargees – Mortgagor's right of redemption – When extinguished – Whether it is lost on acceptance of a bid at an auction.

[3] Mortgagees and chargees – Power of sale – Exercise of – Duty of the mortgagor or chargee in the exercise of – Duty as relates to the value of the property.

[4] Mortgagees and chargees – Statutory power of sale – Exercise of – Whether the chargee should issue a fresh notice to the chargor any time a sale is suspended to accommodate him.

Editor's Summary

The appellant borrowed a sum of money from the first respondent, a financial institution. To secure the repayment of the loan the appellant leased his leasehold premises to the institution.

The appellant defaulted in making repayments and the corporation issued a statutory notice in accordance with section 74 of Registered Land Act (Chapter 300) with a view to realising their security. The appellant sought accommodation from the corporation by making certain promise of repayment which he failed to honour. The corporation then instructed a firm of auctioneers to sell the suit premises by public auction. The sale was, however, called off a number of times on renewed commitments by the appellant which were not honoured. The auction finally took place and was won by the second respondent. The appellant brought a suit to the High Court to set aside the auction sale with a simultaneous application restraining the corporation from interfering with the plaintiff's quiet possession of the suit premises and for the staus quo to be maintained.

The appeal is against the High Court's decision refusing the interim relief sought on grounds that there were a number of payments in discharge of principal and interest of which the first respondent failed to take account, although statutory notice of sale was issued in compliance with the law, the sale was postponed severally incurring a legal obligation on the respondent to issue fresh notices and, since this obligation was not met, the sale was improper. Since the full purchase price was not made within 30 days as per the terms of the auction, the sale was of no effect and the appellant was entitled to redeem his property by paying the balance of his loan and the statutory obligation on the first respondent to exercise his power in good faith was not honoured at the auction.

Held – It is clear that section 74 did not impose on the chargee the giving of more than one notice and there is no sound policy reasons why he should be obliged to give fresh notice to the chargor any time a sale was suspended to accommodate him. If such were a legal requirement, no chargee in their right mind would suspend a projected sale as a matter of favour or indulgences to a defaulting mortgagor.

The legal position at common law is stated in *Fisher and Lithwoods Law of Mortgages* (8 ed) at 308 as follows:

> "The bill suspended the remedy by auction for the mortgage debt and, *prima facie*, it suspended also the running of notice. Both revived when the bill was dishonoured, and the plaintiff was then remitted to the position in which he stood when the bill was given. I cannot infer an agreement that if the bill was not paid, the plaintiff should begin again and give a fresh notice which would be to place him into a worse position than he was in when he consented to give time."

Section 72(1) of the Registered Land Act gave the appellant the right to redeem at any time before the property was sold and "a lease or charge shall be deemed to have been sold when a bid has been accepted at the auction sale . . ." That being so, the appellant's right of redemption was extinguished.

A sale destroys the equity of redemption in the mortgaged property and constitutes the mortgagee's exercising the power of sale as a trustee of the surplus proceeds of sale, if any, for the persons interested according to priorities.

The Court will not grant to a mortgagor tempering the moneys due under the mortgage, an injunction restraining the mortgagee from completing by conveyance a contract to sell the mortgaged property in exercise of his power of sale unless it is proved that the mortgagee entered into the contract in bad faith.

The transaction which is the subject of the dispute was entered into in February 1982 and is therefore governed not only by the Registered Land Act itself, but also by the common law and equity under section 72(1) of that Act, the equity of redemption subsisted in the mortgagor until the leasehold premises was sold. It was then extinguished and the Act provides that "a chargee shall be deemed to have been sold when a bid has been accepted at the auction sale".

This means that the mortgagor's right of redemption is lost as soon as the mortgagee either sells the mortgaged property by public auction or enters into a binding contract in respect of it. On the acceptance of a bid at an auction, there is an immediate sale binding on the chargor. The chargee is then entitled to immediate possession of the charged property under subsection (2) of the Act.

The fact that a sale has been effected at a properly conducted auction, is strong *prima facie* evidence that no unfair advantage has been taken either by the vendor or purchaser.

A mortgagee is not a trustee of the mortgagor as regards the exercise of the power of sale. He has his own interest to consider as well as that of the mortgagor and, provided that he keeps within the terms of the power *bona fide* for the purpose of realising the security and takes reasonable prosecutions to secure not the best price but a proper price, the Court will not interfere nor will it inquire whether he was actuated by any further motive. A mortgagee is entitled to sell at a price just sufficient to cover the amount due to him provided the amount is fixed with regard to the value of the property.

The only obligation incumbent on a mortgagee selling under a power of sale in his mortgagees is that it should act in good faith. When selling under an express statutory power, he may generally conduct the sale in such manner as he may think most conducive to his own benefit, unless the deed contains any restrictions as to the mode of exercising the power provided he acts *bona fide* and observes reasonable precaution to obtain not the best price but a proper price.

A sale made at fraudulent undervalue will be set aside. But the Court will not set aside a sale merely on the grounds that it is disadvantageous unless the price is so low as to be in itself evidence of fraud. A sale by auction is a means of ascertaining what a thing is worth or, in other words, the fair market value.

The prices which the public are asked to pay (that is at an auction) are the highest prices which those who bid can be tempted to offer by the skill and tact of the auctioneers and under the excitement of open competition.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

East African Industries v Trufoods Ltd [1972] EA 420

Giella v Cassman Brown and Co Ltd [1973] EA 358

Industrial and Commercial Dev Corporation v Kariuki and Gatheca Resources Ltd [1977] KLR 52

Kenya Commercial Bank Ltd v Osebe [1982] LLR 66 (CAK)

United Kingdom

Adborough v Tyre [1840] 7 Ch D 460

Bloodstock Ltd v Emerton [1967] 3 All ER 321

Cuckmere Brick Co Ltd v Mutual Finance Ltd [1972] 2 All ER 633, [1971] Ch 939

Davey v Durant 26 LJ Ch 830

Frewen v Hayes [1912] 106 LT 516

Property and Bloodstock Ltd v Emerton [1967] 3 All ER 321

Reliance Permanent Building Society v Harwood Stamper [1944] 3 Ch 36

Standard Chartered Bank v Walker [1982] 3 All ER 9381

Waring v London and Manchester Assurance Co [1935] Ch 310

Judgment

Apaloo JA: The relevant facts of this case are not in dispute. What we have listened to for three successive days between 9 March and 11 March 1988 inclusive, were serious rival arguments on, whether on those facts, the Judge below was right or wrong in declining to grant the appellant a temporary injunction. A number of legal submissions were made to the Judge below and, in refusing the interim relief sought, the Judge pronounced on those issues of law. The appellant says he was in error and invited us to put him right by granting the relief sought.

What then are those facts? In February 1982, the appellant borrowed the sum of KShs 210 000 from the first respondent which is a appellant which is a financial institution. To secure the repayment of the loan, he charged his leasehold premises known as land registration number Nairobi/Block 73/225 to the corporation. According to the appellant's own plaint, this loan was repayable by monthly instalments with interest at 19% and as at the date of the plaint, the appellant was indebted to the Corporation in the "sum of" about KShs 350 000.

It is clear the appellant defaulted in making repayments and the Corporation were minded of realising the security. Accordingly, on 15 June 1985, it gave notice to the appellant requesting him to pay the sum due within three months or, in default, the Corporation would exercise its power of sale. This notice was professedly given in compliance with section 74 of the Registered Land Act. The Corporation also said in that notice, quite unnecessarily, that their legal right would not be affected by

any “indulgence” it may extend to him. Perhaps, as a matter of language, it would have been more accurate to say, “accommodation” but nothing of consequence turned upon the word used.

According to the strict terms of the notice, the Corporation would have been within its rights if it sold the charged property on 15 September 1984. But it did not do so. It appears that on the receipt of the statutory notice, the appellant sought accommodation from the Corporation and made certain promise of repayment which he failed to honour. So the Corporation, through its advocates, instructed Veteran Auctioneers Limited to sell the suit premises by public auction. The firm accordingly advertised the projected sale in the *Kenya Times Newspapers* on three consecutive days, namely 21, 22 and 23 January 1985. The auction was to take place on 23 January 1985. But the Corporation, by a letter dated 21 January 1985, called off the sale.

Whatever promises the appellant made to the Corporation to persuade it to suspend 23 January 1985 projected auction could not have been honoured. So on 28 May 1985, the Corporation by letter dated 28 May 1985, instructed the self-same auctioneers to re-advertise the sale. It said the appellant "defaulted in the repayment of the loan account contrary to his pledges". But before action could be taken on this, the appellant again made certain promises and representations to the Corporation. On this account, the latter, by letter dated 3 June 1985, through its advocates, countermanded the instruction to sell. The available evidence shows that the appellant again failed to deliver on his promises. So on 13 December 1985, the Corporation again instructed its advocate by letter to re-advertise the suit premises for sale. It advised that this time, the sale be entrusted to Messrs CB Mistri – Licensed Auctioneers. This instruction was passed on to the Auctioneers and the latter duly re-advertised the auction and scheduled the sale for 13 February 1986. In January, the appellant through his advocates, made another attempt at suspending the sale by offers which did not prove acceptable to the Corporation.

According to the affidavit evidence of the second respondent, the auction took place on 13 February 1986, as advertised. "It was carried out openly and properly and members of the public were allowed to make bids for the property." The second respondent made the highest bid of KShs 200 000 and the property was knocked down to him for that sum. He was required to pay a deposit of KShs 50 000 being 25% of the purchase price. He did so and the auctioneers, as agents of the Corporation, entered into a contract of sale with him. Of certain relevance to notice for present purposes, is clause 4 which obliged him to pay the balance of the purchase price to the Corporation's advocates within "39 days of the sale date" and time was said to be of the essence of the contract.

The second respondent sought assistance from the Housing Finance Company to meet payment of the balance of the purchase price of KShs 150 000. The finance company agreed to lend him the said sum repayable over a period of 10 years on the security of the suit premises. The agreement to that effect was signed between the finance company and the respondent on 24 March 1986. On that very day, the finance company instructed its advocates Messrs Ransley and Awori to prepare a charge on that property with themselves as charged and the second respondent as chargor. Under the "contract of sale" between the auctioneers as agents of the Jimba Credit Corporation, and the second respondent, the payment of the balance of KShs 150 000 was to have been made, by the latest, on 13 March 1986.

The available evidence shows that the finance company treated the second respondent's request for the loan with urgency. This is shown by the fact that on the very day that they signed the loan agreement, they gave instruction for the charge of the suit premises to be made in favour of themselves. So, it is a fair inference that the loan of KShs 150 000 would have been made available to the second respondent within a few days after 24 March 1986. But that would have made the payment of the balance of the purchase price due to Jimba Credit Company from first respondent late by probably a few days. This fact was known to the Jimba Credit Corporation because the instruction by the finance company's advocates to their advocates to prepare the charge, was copied to the Corporation's advocates namely, Messrs Kembi and Muhia. The inference is that the first respondent company was willing to accommodate the purchaser for a few days. Certainly, it took no steps to enforce its right under clause 6 of the sale contract by forfeiting the second respondent's deposit nor did it initiate any steps to resell the mortgaged premises. It would hardly have made business sense for it to have done that. But the very next day after the loan contract was signed between the finance company and the second respondent, the appellant brought this suit to set aside the auction sale with a simultaneous application for interim injunction restraining the Jimba Credit Corporation from "interfering with the plaintiffs' quiet possession" of the suit premises and for "the staus quo to be maintained." It seems plain that, but for this suit, the finance company would have put the second respondent in funds to meet the payment of the balance of the purchase price. The evidence and the surrounding circumstances point to nothing else. This fact is worth bearing in mind because it was one of the appellant's pressed contentions, that as the second respondent failed to meet the payment of the balance of the purchase price on the contractual date, the sale fell through and he was, in law, entitled to redeem his mortgage with Jimba Credit Corporation.

The appellant alleged in his plaint that the suit premises were only sold for KShs 200 000 when "it is worth over KShs 400 000". The first respondent countered that by placing before the Court three valuations made of the premises in 1981, 1985 and 1986 respectively. In 1981, the appellant produced to the first respondent, a valuation of property for KShs 200 000. In January 1985, the property was valued at KShs 225 000 and when the motion was pending before the Court below, at the Judge's suggestion, the first respondent put before the Court a valuation of KShs 260 000. This was dated 15 April 1986. The appellant, for his part, produced to the Court a valuation by another firm for the sum of KShs 375 000. This was dated 17 April 1986. Apart from the valuations made by the professional valuers, the second respondent also deponed that he has been living in Nairobi for 12 years and from his reading newspapers was "fairly conversant with the prices of property obtaining in various assets in the city". He could not accept that a house in Buru Buru Phase 1, could fetch as much as KShs 400 000. So he swore that "the general expected value is about KShs 200 000–240 000".

Having considered all these disparate valuations, the learned Judge felt that as the sale was by auction, the price was not unduly low "or in any way surprising".

These, in a nutshell, are the relevant facts placed before the Judge on the basis of which he had to be satisfied that the appellant presented a *prima facie* case, to use the hallowed words "with a probability of success". In the context

of this case, the Judge had to feel satisfied that the appellant would, in all probability, succeed in showing at the trial that the auction sale of 13 February 1986 was invalid and ought, on that account, to be "nullified", to quote the prayer in the plaint. The Judge obviously took a poor view of the appellant's case. He felt it was wholly unmeritorious. And, in refusing to grant the interim relief, held that the appellant did not have a possibility, let alone a probability, of success. Conformably with this holding, he dismissed the application to provoke this appeal.

The appellant brought a home-made appeal which he argued in depth and in great earnestness. Before looking at the complaints made against the ruling, it is necessary to notice one factual matter which became the subject of conflicting legal submissions by both sides. When the appellant filed his notice of appeal to this Court, he applied to stay further proceedings in the High Court until the hearing and determination of the appeal. He was apprehensive that both the first and second respondents would evict him from the suit premises. On 27 June 1986 this Court acceded to the application and granted a stay of proceedings on two conditions, namely, first, the appellant should give "the usual undertaking in damages to both respondents" and, second, "he must pay KShs 8 000 or more to his loan account with the Jimba Credit Corporation by noon on or before the twenty-first day of each month beginning on or before 21 July 1986. In default of either condition, the application stands dismissed with costs from today". It is common ground that the appellant met both conditions. So this Court's order for stay of further proceedings still stands.

It is now necessary to look at the grounds on which the ruling was contested. The appellant made complaint on both factual and legal grounds. The factual complaint can easily be disposed of. The appellant said he made a number of payments in discharge of principal and interest which the first respondent failed to take account of and in particular a payment of KShs 57 000 which was not reflected in the account. Whether or not when the credit and debit is finally struck, that complaint can be found valid or not, does not matter a bit. The real contest in this case, is between the appellant and the second respondent – the purchaser. And with that contention, he is not concerned.

What seems clear, is that on the date the auction took place, he was indebted to the Jimba Credit Corporation and was unable to pay this debt notwithstanding that a notice under section 74 of the Registered Land Act was served on him. At any rate in his plaint, which was drawn up by his advocates, no doubt, on his instructions, it was averred that:

> "The plaintiff has been repaying but due to the high interest rate the amount standing is about KShs 350 000."

When this Court in course of argument ascertained from the Corporation's advocate how the appellant's account stood at present, he said their books reflected a present indebtedness of approximately KShs 350 000 against the appellant. And this in spite of the KShs 8 000 per month he has paid in reduction of his indebtedness since this Court's interim order was made on 27 June 1986.

At all events, a perusal of all the evidence presented to the Court below shows that the appellant owed the Corporation at the date of the auction a large amount of money which he was unable to pay. His pleas for accommodation and the various "indulgence" granted him point to nothing else. In my opinion, even if upon taking full accounts, it is shown that the appellant owed less

than the KShs 350 000 he admitted owing at the time of the auction, this, as a matter of law, can have no impact on the validity of the sale to a *bona fide* purchaser.

However, the more serious points the appellant made are points of law and are worthy of serious consideration, first, the appellant says, although statutory notice was given him in compliance with section 74 of the Act, since however the sale was postponed on a number of occasions, the first respondent incurred a legal obligation to give him fresh notices and as this obligation was not met, the sale was improper and should be set aside. Second, the appellant contends that the auction sale of 13 February was made on the strict condition that the purchaser should pay the full purchase price within 30 days. He says, as full payment was not made on that date, the sale was of no effect and that he was entitled to redeem his property by paying the balance of his loan to the Jimba Credit Corporation. Indeed, he says, he has been making this payment of KShs 8 000 per month to achieve this purpose. Third, the appellant contended that the first respondent incurred a statutory obligation to exercise his power of sale in good faith but that the purported sale was made at a gross undervalue and that this was indicative of bad faith and this vitiated the sale. All these points of law were urged before the Court below whose decision on each and every one of them was adverse to the appellant.

The appellant's not frivolous legal contentions must now be examined *seriatim*. On the first legal question, one must look briefly at section 74(1) which mandates the statutory notice. It is not necessary to read that section in full. It merely states, insofar as material, that if the mortgagor defaults in the periodical payment of principal or interest for a period of one month, the chargee may give him notice to make payment and if the mortgagor fails to comply with this notice within three months from the date of service, the chargee may sell the charged property. It is common ground that such notice was given to the appellant on or shortly after 15 June 1984. It is also not in dispute that the appellant made default in repayment of principal or interest for over three months. That was why the first respondent as chargee, instructed Veteran Auctioneers to sell by auction the charged premises on 23 January 1985. And it is also not disputed that the sale was suspended at the first appellant's behest because he made promises or repayment, which he was unable to honour.

It is plain that section 74 did not impose on the chargee the giving of more than one notice and there is no sound policy reason why he should be obliged to give fresh notice to the charger any time a sale was suspended to accommodate him. If such were a legal requirement, no chargee in his right mind would suspend a projected sale as a matter of favour or indulgence to a defaulting mortgagor.

But insofar as the requirement of a second notice is supposed to be based on common-law principles, this is less than correct. The legal position at common law is stated at 308 of *Fisher and Lightwoods Law of Mortgages* (8 ed) as follows:

> "The bill suspended the remedy by auction for the mortgage debt and *prima facie*, it suspended also the running of notice. Both revived when the bill was dishonoured, and the plaintiff was then remitted to the position in which he stood when the bill was given. I cannot infer an agreement that if the bill was not paid, the plaintiff should begin again and give a fresh notice which would be to place into a worse position than he was in when he consented to give time."

Every word of that passage applies to this case and, seems to me, if I may say so, to make business sense. That was also the conclusion which the Judge below reached on this part of the argument. He was right and the appellant's contention was, I think, unsound and ought to be rejected.

The appellant next says, as the condition for payment of the price imposed on the second respondent was not met, namely, full payment within 30 days, the auction was invalidated and he, as chargor, was entitled to redeem the suit premises. As said, the Housing Finance Company contracted with the second respondent to advance him a loan of KShs 150 000 to meet the payment of the balance of the purchase price in full. The second respondent was due to receive this payment in a few days and the evidence shows that the Jimba Credit Corporation were minded to accommodate him for a short time as indeed it accommodated the appellant for the best part of two years. But the receipt by the second respondent of this loan was frustrated by the appellant's suit. That being so, it sounds ill from the mouth of the appellant to say that as the second respondent, made default in performing a contract with the first respondent to which he was not party, he was entitled to derive benefit from it.

At all events, the first respondent was entitled under section 77(1) of (Chapter 300) to permit the purchaser to pay the purchase money by instalments. In the old case of *Davey v Durant* 26 LJ Ch 830 it was held that the property may be sold upon terms that part, or even the whole of the purchase money shall remain on mortgage where the mortgagee takes the risk and charges himself in account with the mortgagor with the whole of the purchase money.

But in my opinion, as a legal argument, the appellant's position is untenable. Section 72(1) of the Registered Land Act, gave the appellant the right to redeem at any time before the property was sold and "a lease or charge shall be deemed to have sold when a bid has been accepted at an auction sale". It is an undisputed fact that the second respondent's bid was accepted at the auction sale of 13 February 1986. That is why a deposit of KShs 50 000 was accepted from him and the auctioneers, as agents of the chargees, entered into what they described as a contract of sale with him. That being so, the appellant's right of redemption was extinguished. That was Mr *Khombi*'s earlier position but he thought on reflection, that the right of redemption survived the sale. That, in my opinion, cannot be right.

The correct legal position is stated at 314 of *Fisher and Lightwood's Law of Mortgage* in these words:

> "A sale destroys the equity of redemption in the mortgaged property, and constitutes the mortgagee exercising the power of a sale a trustee of the surplus proceeds of sale, if any, for the persons interested according to priorities."

The fact that some time would elapse before the conveyancing formalities were completed and the vesting of legal title in the purchaser, in no way affected the position.

A submission akin to the one made to us by the appellant was roundly rejected by Crossman J in *Waring v London and Manchester Assurance Co* [1935] Ch 310 at 317. The observation made by the learned Judge and his reasoning are so peculiarly apposite to this case, that I take the liberty of quoting them *in extenso*. The learned Judge said:

> "Counsel for the plaintiff submitted that notwithstanding that the company exercised its power of sale by entering into the contract, the plaintiff's equity of redemption has

> not been extinguished, as there has been no completion by conveyance and that, pending completion, the plaintiff is entitled to redeem, that is, to have the property reconveyed to him on payment of principal interest and costs . . . In my judgment, section 101 of the Law of Property Act which gives a mortgagee power to sell the mortgaged property is perfectly clear and means that the mortgagee has power to sell out and out by private contract or auction and subsequently to complete by conveyance; and power to sell, is, I think, the power by selling to bind the mortgagor."

The Judge continued as, follows:

> "If that were not so, the extraordinary result would follow that every purchaser, from a mortgagee would, in effect, be getting a conditional contract liable at any time to be set aside by the mortgagor coming and paying the principal, interest and costs. Such a result would make it impossible for a mortgagee in the ordinary course of events, to sell unless he was in a position to promise that completion should take place immediately or on the day after the contract, and there would have to be a rush for completion in order to defeat a possible claim by the mortgagor . . . It seems to me impossible seriously to suggest that the mortgagor's equity of redemption remains in force pending completion of sale by conveyance."

The decision of Crossman J was made in 1934. It was followed by Ungoed Thomas J in the comparatively recent case of *Property and Bloodstock Ltd v Emerton* [1967] 3 All ER 321. Its correctness was impugned in the Court of Appeal. That Court unanimously held that that decision was correct. Dankwerts LJ, who read the first judgment of the Court, *inter alia*, said:

> "In my opinion, Crossman J's decision in *Lord Waring*'s case was plainly correct and cannot be successfully assailed. The two other Lord Justices agreed and Sellers LJ expressed his concurrence in these words:
>
> > 'The law as I see it, is correctly stated in the headnote to *Lord Waring v London and Manchester Assurance Company* which he quoted as follows:
> >
> > > 'The Court will not grant to a mortgagor tendering the moneys due under the mortgage an injunction restraining the mortgagee from completing by conveyance a contract to sell the mortgaged property in exercise of his power of sale, unless it is proved that the mortgagee entered into the contract in bad faith.'"

In the course of his judgment, Dankwerts LJ disposed of one of the contentions raised before us by the mortgagor, namely, as the purchaser failed to make payment of the purchase price on the contractual date, the contract fell through and he was entitled to redeem. Dankwerts LJ said:

> "As I have already observed, both vendor and purchaser are in agreement. They look forward to that happy moment, when freed from unhappy interference of the borrower at the eleventh hour of their contract which they both regard as still in force, will proceed to completion and the purchaser will get the property sold to him and the mortgagee will get the purchase price. It is immaterial to consider whether the mortgagee would be equally well-off by accepting redemption money. Certainly, the purchaser would not be so well off and he has a binding contract."

This case is an *a fortiori*. In this appeal, the purchaser has got not a contract of sale but an actual sale had taken place which was to be perfected by registration. And the mortgagee not only kept the sale alive, but was prepared to grant and did grant the purchaser time to pay the balance of the purchase price and thereafter obtain a "transfer" in a form prescribed by the Act. And this process was halted by the mortgagor who, although not tendering the redemption money, was seeking what he called "nullification of the alleged sale". To my mind, such a claim was doomed to failure.

My attention was drawn to a decision of the predecessor of this Court in *Industrial and Commercial Development Corporation v Kariuki and Gatheca* [1977] KLR 52 (which I shall refer to as the *Kariuki* case). The headnote reads:

> "The mere contract of sale between a mortgagee exercising his power of sale under section 69(1) of the Transfer of Property Act and a purchaser does not extinguish the mortgagor's equity of redemption."

The headnote then stated *Lord Waring v London and Manchester Assurance Company Ltd* explained. Mustafa JA who delivered the leading judgment of the Court distinguished the *Waring* case in these words:

> "In England a contract of sale immediately invests the purchaser with an equitable interest in the immovable property and the beneficial ownership passes to him, only the legal estate remains with the vendor which passes on the execution of the conveyance. The Transfer of Property Act contains sections 54 and 60 and there are no equivalent provisions in the English Law of Property Act of 1925. Section 54 provides, *inter alia* (1) that a sale is a Transfer of ownership in exchange for a price paid, and in the case of immovable property of the value of RS 100 upwards (say KShs 100) can only be made by a registered instrument; (2) a contract of sale of immovable property does not by itself create any interest or charge on such property. Section 60 provides that the equity of redemption of a mortgagor continues until it has been extinguished by act of the parties or by order of a court."

The preferred basis for the exclusion of the English common law and Equity, was that the proper law to apply was the Indian Transfer of Property Act of 1882 which also excluded the English Law of Property Act of 1925. And that was the law that applied to the transaction in Kenya, the relevant period. At the date of the Kariuki decision in March 1977, the Registered Land Act was in force, it having come into force on 16 September 1963. It is therefore reasonable to assume that the land which was the *res litigosa* in that case, was registered under the Transfer of Property Act of 1882 of India.

The land in dispute called Buru Buru Estate Phase 1, appears to have been registered under the Registered Land Act. So by what law should dealings with it be governed? Section 163 of Registered Land Act points to the provisions of the Act itself and the English common law and Equity. It says:

> "Subject to this Act, and except as may be provided by any written law for the time being in force, the common law of England as modified by the doctrines of equity, shall extend and apply to Kenya in relation to land, leases and charges registered under this Act and interests therein . . ."

The last section of the Registered Land Act, namely, section 164 forbids any further application of the Indian Transfer of Property Act of 1882 in the following words:

> "Upon the first registration of any land under this Act, the Transfer of Property Act of 1882, of India, shall cease to apply to that land, except in relation to any dealing entered into before the date of registration."

The transaction which is the subject of the dispute, was entered into in February 1982 and is therefore governed not only by the Registered Land Act itself, but also by the English common law and equity. Under section 72(1) of that Act, the equity of redemption subsisted in the mortgagor until the leasehold premises was sold. It was then extinguished. And the Act provides that: "A charge shall be deemed to have been sold when a bid has been accepted at the auction sale."

It is common ground that an auction was held on the charged premises in February 1986 and the second appellant's bid was accepted at that auction. Indeed, the appellant accepts this because his plea to the Court below was to "nullify the auction sale".

I think therefore that *Kariuki*'s case is plainly distinguishable from the instant one. It certainly does not oblige us to hold today. That the equity of redemption subsists in the mortgagor until registration of the purchaser's title, anymore than it is valid to hold that under the English Law of Property Act of 1925, the equity of redemption subsists in the mortgagor after an unconditional contract of sale until completion.

So complete did the Registered Land Act (Chapter 300) seek to break with the Indian Transfer of Property Act, that it forbids any continuation of practice and procedure under it. Thus section 4 of the Registered Land Act enacts that:

> "Except as otherwise provided in this Act, no other written law and no practice or procedure relating to land shall apply to land registered under this Act, so far as it is inconsistent with this Act."

There can be little doubt that the "written law" contemplated by this section, is the Indian Transfer of Property Act. It cannot have been the English Law of Property Act of 1925 which, so far as I know, has never been applicable to this country.

Since preparing this judgment, my attention has been drawn to the Statute Law (Miscellaneous) Act of 1985 (number 19 of 1985) which amends section 60 of the Indian Transfer of Property Act of 1882, by adding to the words "a court" in the second paragraph of the proviso to the section the following:

> "and is exercised before the mortgagee, has under the provisions of this Act, either by public auction or private contract entered into a binding contract for the sale of the mortgaged property."

This means that the mortgagor's right of redemption is lost as soon as the mortgagee either sells the mortgaged property by public auction or enters into a binding contract in respect of it. The effect of this amendment is to overrule the decision in *Kariuki*'s case in respect of land registered under the Indian Act and to equate the law with English Law as expounded in *Waring* and the *Bloodstock* cases.

Some doubt was expressed in argument whether subsection one of section 77 of the Act, which confers a power on the chargee to sell the property with an apparent immediate divesting of the charger's title, is not in conflict with subsection (4) of the same section which transfers the charger's interest to the purchaser only after registration. For my part, I see no such conflict. As I see it, on the acceptance of a bid at an auction, there is an immediate sale binding on the chargor. The chargee is then entitled to immediate possession of the charged property under subsection (2) of the Act.

The bare title only remains in the chargor and subject to the execution by the chargee of a transfer in the form prescribed by subsection (3) and its registration under subsection (4), the purchaser's title is complete. Our Registered Land Act (Chapter 300) is modelled on the English Land Registration Act of 1925. The marginal notes to section 23 deals with "Registration of dispositions of leaseholds". And subsection (1) of section 22 enacts that:

> "A transfer of the registered estate in the land shall be completed by the Registrar entering on the register the transferee as proprietor of the estate transferred; but until

> such entry is made, the transferor shall be deemed to remain the proprietor of the registered estate. It is the same result that is achieved by the various subsections of section 74 of our Act."

With particular reference to charged land, the English Registration Act by section 33(1) enacts that:

> "(1) The proprietor of any registered charge may, in a prescribed manner, transfer the charge to another person as proprietor.
>
> (2) The transfer shall be completed by the Registrar entering on the register the transferee as the proprietor of the charge transferred but the transferor shall be deemed to remain the proprietor of the charge until the name of the transferee is entered on the register in respect thereof.
>
> (3) A registered transferee for valuable consideration shall not be affected by any irregularity or invalidity in the original charge itself of which the transferee did not have notice when it was transferred to him."

The philosophy underlying these provisions is reflected in various subsections of section 74 of our Registered Land Act and the immunity from affectation by any irregularity granted by subsection (3) of the English Act has its parallel in subsection (3) of our Act, which, *inter alia*, provides that:

> ". . . the Registrar may accept (ie the transfer) as sufficient evidence that the power has been duly exercised and any person suffering damage by an irregular exercise of the power shall have his remedy in damages only against the person exercising the power."

Thus, the question of setting aside the sale against a *bona fide* purchaser for value, as the appellant sought in his plaint, does not arise. That disposes of the appellant's second complaint.

That leaves me with the appellant's third and last complaint. The appellant says that section 77 imposes an obligation on the chargee to act in good faith and to take account of his interests when exercising his statutory power of sale. But he said in breach of the requirement of that section, the Jimba Credit Corporation acted in bad faith and "or fraud and made the sale at gross undervalue". That, in the contention of the appellant, vitiated the sale and justified its setting aside. He says that the Judge below was in error in declining to set it aside or to regard it as a serious point is establishing a *prima facie* case with the probability of success of his suit.

In my opinion, on the evidence placed before the Judge, there is no basis for any ascription of bad faith to the Corporation. When the appellant made default with his repayments, it gave him not only the statutory notice, but accommodated him by suspending the sale on two occasions and was disposed to put it off for a third time, if the appellant had met its condition for so doing. It then proceeded to advertise the sale and eventually procured its sale by the method laid down by law, namely, auction. And the evidence is that the auction was open and was regularly held. "The fact that a sale has been effected at a properly conducted auction, is strong *prima facie* evidence . . . that no unfair advantage has been taken either by the vendor or purchaser" (see *Herbert Hart on the Law of Auctions* (3 ed) at 1). Indeed, in order to obtain a fair price, the Corporation went to the trouble and expense of obtaining valuations from no fewer than three qualified valuers.

So the appellant's allegations of fraud and undervalue are based solely on the fact that the auction sale did not fetch the KShs 375 000 which was the subjective estimate of his own chosen valuers. Unlike the case of *Kenya Commercial Bank Ltd v Osebe* [1982] LLR 66 (CAK), there is no showing that anybody has offered more than the second respondent since the auction.

That being so, the question that must be addressed is, what duty is cast on a mortgagor or chargee in the exercise of his power of sale insofar as it relates to the value of the property? In *Reliance Permanent Building Society v Harwood Stamper* [1944] 3 Ch 362 at 364 Vaisy J quoting from *Halsbury's Laws of England* (2ed) Volume 23 at 435 said:

> "A mortgagee is not a trustee of the mortgagor as regards the exercise of the power of sale. He has his own interest to consider as well as that of the mortgagor, and provided that he keeps within the terms of the power *bona fide* for the purpose of realizing the security and takes reasonable precautions to secure not the best price but a proper price, the Court will not interfere nor will it inquire whether he was actuated by any further motive. A mortgagee is entitled to sell at a price just sufficient to cover the amount due to him, provided the amount is fixed with regard to the value of the property."

The learned Judge next quotes *Coote on Mortgages* Volume 2 (9ed) at 927 as follows:

> "The only obligation incumbent on a mortgagee selling under a power of sale in his mortgage, is that he should act in good faith. Whether selling under an express statutory power, he may generally conduct the sale in such manner as he may think most conducive to his own benefit, unless the deed contains any restrictions as to the mode of exercising the power, provided he acts *bona fide* and observes reasonable precautions to obtain, not the best price, but a proper price."

The Judge then gave expression to his own view in these words:

> "That seems to me to state the position of the mortgagee with accuracy. The mortgagee of course, sells primarily for his own benefit. The object of the sale is to realize the security and recover the money he has lent. He is entitled to think of himself first. He must not ignore the mortgagor but the whole purpose of the sale, is to get his money back . . ."

So the duty cast on a chargee by section 77(1) that in the exercise of his power of sale, he shall act in good faith and have regard to the interests of the chargor is no more than a codification of the equitable principles articulated in *Halsbury's* and *Coote's on Mortgages* and assented to by equity Judges.

In *Fisher and Lightwood on Mortgages* it was, said:

> "A sale made at fraudulent undervalue will be set aside. But the Court will not set aside a sale merely on the ground that it is disadvantageous, unless the price is so low as to be in itself evidence of fraud."

In this case, the sale was conducted by public auction as mandated by the statute after a series of newspaper advertisements. It was a forced sale and there is no evidence that any willing purchaser offered more than the KShs 200 000 realised. There is, accordingly, no just basis for holding that the price was so low as to be, *per se*, evidence of fraud. It follows that the appellant's verbal complaint (it was not pleaded) that the sale was tainted with fraud or was conducted at gross undervalue is not well founded. The learned trial Judge found against that complaint. I respectfully agree with him. It follows that all the legal or seemingly legal complaints raised against the validity of the sale by the appellant must be rejected.

Notwithstanding a prolonged period of doubt and hesitation, I am pleased to find that we are all unanimous on the various matters of law debated before us and in particular, we are, I think agreed, that the appellant's equity of redemption was extinguished by the auction sale of 13 February 1986. On the material placed before him, the learned Judge held that:

> "The sale was properly conducted and advertised. There is no evidence of bad faith or fraud or that the power of sale was exercised irregularly."

That holding was not questioned before us. On the basis of that holding, the Court concluded that the appellant has not shown a *prima facie* case with a probability of success that the appellant will succeed in his claim for an order for "nullification of the sale of 13 February 1986". Conformably with that holding, the Judge declined to exercise his discretion in granting an interim injunction. On those facts and in view of the legal position, I would have thought the decision to deny interim injunction, was right and was a perfectly proper exercise of judicial discretion.

The majority of this Court think differently and would disturb the Judge's exercise of discretion and grant an interim injunction, for the reason, as I understand it, "to enable the appellant to defend himself in order to see that the sale is at a true market value". Surely, the true market value of property is not determined by either the subjective viewpoint of a mortgagor or his chosen valuers. It is difficult to think of a better and more reliable method of determining the true and fair market value of property than by a sale at a public auction. At least, that is the view of Lord Cottenham LC. In *Adborough v Tyre* [1840] 7 Ch D 460, the learned Lord Chancellor put it in these words:

> "A sale by auction, is a means of ascertaining what a thing is worth; or in other words, the fair market value."

Also in the Privy Council case of *Frewen v Hayes* [1912] 106 LT 516 at 518, Lord Macnaghten said this of an auction.

> "The prices which the public are asked to pay (ie at an auction) are the highest prices which those who bid can be tempted to offer by the skill and tact of the auctioneer and under the excitement of open competition."

That method of sale was the only one ordained by section 77 of the Registered Land Act for a chargee who seeks to realise his security. And when the sale was conducted by that method the sale fetched KShs 200 000. What possible reason can be advanced for suggesting that a fair market price was not realised by that sale? And on what basis can it be said *viva voce* evidence of valuers as to what the sale might fetch, is preferable to the highest bid that was actually made at an auction?

We have expended a great deal of time and energy in discussing the consequence of fraud and in the process have lost sight of the real complaint the appellant made on this part of the case. I take them from paragraphs 8, 9 and 10 of the plaint as follows:

> "8. That the said property is worth KShs 400 000.
>
> 9. That in spite of the fact that the said property is over 400 000 the first defendant sold the same at KShs 200 000 to the second defendant.
>
> 10. That the said sale is unfair and especially taking into account the first defendant would claim the balance from the plaintiff."

There is not one word of fraud. I cannot accept that the appellant's self-serving, averment "that the property is worth over KShs 400 000" is the same thing as

saying its market value was KShs 400 000. The truth of the matter is, the price which it fetched at the auction, namely KShs 200 000, was the market value. It is inaccurate to say that the first respondent sold the property to the second respondent. This was not a sale by private treaty. What the first respondent did, was to sell the property, as the law required, by auction. And it went to the second respondent because he happened to be the highest bidder. The unfairness alleged in paragraph 10, was not directed at the conduct of the auction or any impropriety committed by the purchaser. It was directed at the first respondent as mortgagee for exercising his power of sale and disposing of the mortgaged property, when the appellant claimed he was still paying the mortgaged debt. Is it conceivable that a Court of Equity, whose jurisdiction we are supposed to be exercising would "nullify a sale" against a *bona fide* purchaser for value on this basis? I cannot think so. If that be right can it be said the appellant has shown a *prima facie* case with a probability of success? I would have thought the answer was obvious.

The learned trial Judge is criticised because of the allegedly emphatic nature of his findings and he was supposed to have misdirected himself in his approach to the issues before him as to justify the interference by this Court of the exercise of his discretion. It is also said he made findings of fact on disputed affidavits. I respectfully disagree.

As I said repeatedly, to be able to grant the interim relief of injunction the Judge must be satisfied that the appellant presented a *prima facie* case with a probability of success. In the context of this case, this means that the appellant must show that the price the property realised at the auction "is so low as to be itself evidence of fraud".

The evidence before the Court was that the property was solid for KShs 200 000 at the auction. Also before the Court, were three valuations of the property for KShs 200 000, KShs 225 000 and KShs 260 000 made by professional valuers. Faced with the evidence of the price obtained at the auction and these three disparate valuations, the learned Judge observed that:

> "Given the prevailing financial climate and the conditions at a public auction, it cannot be said KShs 200 000 was inconsiderably low or in anyway surprising."

In my humble view, that was a perfectly legitimate observation and does not justify a charge that he made emphatic findings of fact or decided issues of fact on conflicting affidavit.

One fact that must not be lost sight of, is that notwithstanding the parties the appellant jointly sued as defendants, the real issue of "nullification" is being fought between the appellant as mortgagor and second respondent as a purchaser. If the sale is held invalid, the first respondent as mortgagee, is not in the least affected. He is entitled to readvertise the sale and conduct yet another sale to realise the money it has lent. The only loser is the purchaser. My limited and imperfect knowledge of equitable principles teach me that they are designed, in a large measure, to protect a *bona fide* purchaser for value, And in my opinion, the second respondent answered that description. Yet, an injunction denied by the Court below, in my view, perfectly properly, was imposed by this Court in June 1986 and its effect was to prevent the transfer of the property to the purchaser. That injunction resulted in keeping a mortgagor whose equity of redemption has been extinguished, in beneficial enjoyment of the property for two solid years. Now that the law on which the mortgagor took this and has

been found to provide him no assistance, it is said the injunction must be re-imposed to keep the purchaser out of enjoyment for probably another two years so that a defaulting mortgagor may be able "to defend himself in order to see that the sale is at a true market value".

Although I may be entirely wrong on this, I cannot believe that a Court of Equity would treat its darling as a *bona fide* purchaser for value is sometimes called in that manner. The equitable and beneficent remedy of injunction is said to be a double-edged award. It is often used to aid rights and to prevent wrongs.

It may also be used, albeit unwittingly, as a vehicle of oppression. A re-imposition of injunction, at this stage and on the known facts of this case, would be to use this equitable remedy in the latter manner.

I am for my part, entirely convinced that Schofield J was right to decline the remedy of interim injunction and whatever justification this Court may have for imposing it in June 1986, none, in my opinion, now exists.

I would dismiss this appeal and set aside the order of "stay of proceedings" granted by this Court in June 1986 with costs to both respondents.

Platt JA: The appellant Mr Mbuthia appeared for himself and raised a number of grounds of appeal against the order of Schofield J who refused a temporary injunction pending the hearing of the suit. Mr *Kembi* who appeared for the respondents answered the appellant's complaints in such a way that wide and interesting considerations arose. Apaloo JA has set out a good deal of the way decisions have been made concerning this branch of the law. But it is right at the beginning of this discussion to ascertain precisely what suit the appellant has brought.

The plaint of the plaintiff Mbuthia reveals that in the month of February 1986 the plaintiff borrowed KShs 210 000 to develop his house Nairobi/Block 73/225, the interest of the loan being the high sum of 19%. The loan was to be paid by monthly instalments. But although the plaintiff had been repaying this debt, due to the high interest rate, the amount outstanding on 25 March 1986 when the plaint was filled, was about KShs 350 000. Of this sum, the plaintiff contended that the Jimba Credit Finance Corporation Ltd, the first defendant, had not credited all the money outstanding. The position was that KShs 350 000 was too high. The property was worth KShs 400 000. Yet, in spite of the fact of the value of the property it was sold to the second defendant at KShs 200 000. Paragraph 10 of the plaint states as follows:

> "That the said sale is unfair especially taking into account the first defendant would claim the balance from the plaintiff."

As a result, the plaintiff claimed nullification of the alleged sale held on 13 February 1986 and, secondly, an order restricting the first defendant from transferring the suit premises to the second defendant.

It would seem therefore that the issue for trial will be whether the suit was sold for such an undervalue, as would entitle the Court to set the sale aside and hence prevent the transfer and registration of the land in the name of the second defendant. That would depend on the terms of section 77 of the Registered Land Act (Chapter 300), which provides that the mortgagee is bound to act in good faith, and have regard to the interests of the mortgagor. What is meant by having "regard to the interests of the mortgagor"? There is similar

legislation in England (see section 101 of the Law of Property Act of 1925). In *Halsbury's Laws of England* (4 ed) Volume 32 paragraph 276 it is stated:

> "If the mortgagor seeks relief promptly, a sale will be set aside if there is fraud, or if the price is so low as to be in itself evidence of fraud, but not on the grounds of undervalue alone, and still less if the mortgagor has in some degree sanctioned the proceedings leading up to the sale."

The issue arising from the plaint therefore, is whether the sale was unfair in the context of it being a fraud, at least impliedly so, from the allegedly low price itself.

There have recently been a number of cases in England refining the relation between a mortgagee and mortgagor. In *Standard Chartered Bank v Walker* [1982] 3 All ER 938 Lord Denning MR explained his views as follows:

> "So far as mortgagees are concerned the law is set out in *Cuckmere Brick Co Ltd v Mutual Finance Ltd* [1972] 2 All ER 633; [1971] Ch 939. If a mortgagee enters into possession and realises a mortgaged property it is his duty to use reasonable care to obtain the best possible price which the circumstances of the case permit. He owes this duty not only to himself (to clear off as much of the debt as he can) but also to the mortgagor so as to reduce the balance owing as much as possible . . . There are several *dicta* to the effect that the mortgagee can choose in his own time for the sale, but I do not think this means that he can sell at the worst possible time. It is at least arguable that, in choosing the time, he must exercise a reasonable degree of care."

In the *Cuckmere* case, the headnote of the Court of Appeal's decision reads as follows:

> "A mortgagee was not a trustee of the power of sale for the mortgagor, and, where there was a conflict of interests, he was entitled to give preference to his own over those of the mortgagor, in particular in deciding on the timing of the sale; in exercising the power of sale, however, the mortgagee was not merely under a duty to act in good faith, that is honestly and without reckless disregard for the mortgagor's interest, but also to take reasonable care to obtain whatever was the true market value of the mortgaged property at the moment he chose to sell it."

The present state of the English law therefore, has placed a higher duty on the mortgagee than had been placed by a first instance Court in *Reliance Permanent Building Society v Harwood Stamper* [1944] 3 Ch 362. It would seem that this court has approved the *Cuckmere* case in *Kenya Commercial Bank Ltd v Osebe* [1982] LLR 66 (CAK), although it might be objected that the passage in particular was *obiter dicta*. At any rate, the test would appear to be that set out in the *Cuckmere* case as explained in the *Standard Chartered Bank* case.

In those circumstances, the question for the trial court would be whether the plaintiff could show that the defendant had exercised his powers in a fraudulent way. He could rely on the price alone if he thought that at a little over half the true value, it was evidence in itself of fraud. It would be a matter of evidence whether the sale price of KShs 200 000 was in fact a little over half of the true value of KShs 375 000 as recently valued by the valuer relied on by the plaintiff. The price fetched was not very different from the valuations of the valuers relied by the defendant. There was a dispute of fact to be resolved.

In the course of hearing this appeal, various other aspects of the case came up for consideration. There was the question whether the defendant had given notice. That depends on whether the Bank in giving indulgences to the plaintiff had, in law, entered into a new agreement, despite a statement in the first notice that such indulgences would not operate in that way. This is not a

matter which is raised in the plaint, but it may have been intended to reflect the unfairness of the sale. An unrepresented litigant should, of course, be given some latitude in expressing himself, especially in high technical departments of the law such as the law of mortgages. It is also a matter for the trial court to decide whether the lack of a fresh notice has any hearing on the propriety of the sale.

Next, there was the consideration of the scope of the equity of redemption. It is now clear that the English notions apply that the equity is lost on the completion of a valid contract of sale. It is not allowed to continue until conveyance nor until registration. In comparison with the old law associated with the Indian Transfer of Property Act, the equity of redemption was not lost until registration (see *Industrial and Commercial Development Corporation v Kariuki and Gatheca Resources Ltd* [1977] KLR 52). This balance between mortgagee and mortgagor had served in this country from the First World War and had continued until after the Second World War when it was challenged in l963. In the Registered Land Act (Chapter 300) the Indian Transfer of Property Act ceased to apply to any land upon first registration of such land under Chapter 300. In lieu thereof the principles of the common law and equity were applied – see sections 163 and 164 of (Chapter 300). Then in 1985 the Transfer of Property Act was amended so that in section 60 the equity of redemption was extinguished by act of the parties or by order of the Court except that it would cease at the time of a valid contract of sale. The property in question in this case is land registered under the Registered Land Act. It follows that the equity of redemption was lost on the fall of the hammer at the auction sale, unless the mortgagee wished to set aside the sale for non-payment of the price. It had been a condition of the contract that time was of the essence; yet the purchaser, the second defendant, was late in paying. The purchaser had, in fact, to start to raise finance after he had bought the land and paid the deposit. The purchaser did raise the finance; but before he paid, this Court had imposed an injunction. The purchaser was therefore unable to complete, although the mortgagee was prepared to accept payment late. According to the views expressed in *Bloodstock Ltd v Emerton* [1967] 3 All ER 321, even if time is of the essence for completion of the contract which includes payment of the price, late payment would not matter where the vendor and purchaser do not insist on strict compliance with the time fixed for completion. It is still the case that the equity of redemption is extinguished when a binding contract of sale has been entered into before completion, despite the necessity for consent of other parties or authorities. Yet the essence of the equity of redemption is to give a mortgagor a reasonable chance to redeem and thus save his land. At times, equity treated the borrower with tenderness (see at 329 in the case above). That was overtaken by the statutory remedy of sale. At present in Kenya, in relation to the sale of property by Court execution, there are administrative provisions for saving the debtor from losing his land. It would not be surprising if in the next phase in adjusting the balance between a mortgagor and a mortgagee, some greater consideration is permitted in favour of the mortgagor in order to save his home, than is provided by current English law. It is a matter for cool deliberation to decide in the public interest at which point the equity of redemption should be lost. As more family land is mortgaged, the problem will become more acute. The banks after all earn their profits from the interest paid by borrowers. (They do not appear to have experienced great difficulty under the Transfer of Property Act.) Disadvantageous court sales must eventually prejudice the banks; while more generous terms to the borrower must enhance their position.

To answer the appellant's submissions, it must be said that the equity of redemption is extinguished when the contract is validly concluded, while the conditions of the contract may be adjusted between the mortgagee and purchaser as they agree, leaving the mortgagor no ground upon which to intervene.

Fortunately, however, that is not the end of the story. Section 77(4) of the Registered Land Act provides that the title of the mortgagor does not pass until registration. Bare title though it may be, it aids the mortgagor in his quest for a sale at a true market value. Once he has lost his title, it may be more difficult to set aside the sale. He must act promptly. The appellant has done so in this case before innocent purchasers for value have been involved, and this Court has preserved the staus quo. The sale cannot be registered without leave.

The questions now are whether the High Court exercised its discretion properly in refusing to grant a temporary injunction before trial, and, secondly, whether this Court on this interlocutory appeal should interfere.

It would appear that the learned Judge considered that the test to be employed was whether the plaintiff had made out a *prima facie* case with a probability of success. He concluded his reasoning by saying:

> "In the circumstances I do not consider that the plaintiff has a possibility of success in main suit, let alone a probability of success. Nor do I consider there is any merit in application for temporary injunction."

In saying so, the learned Judge no doubt had the principles laid down in *Giella v Casman Brown* [1973] EA 358 in mind. These principles followed on from *East African Industries v Trufoods Ltd* [1972] EA 420 where the more correct statement is to be found, namely that the applicant for an injunction should show a *prima facie* case with a probability of success but, in case of doubt, the balance of convenience must be sought. It would have been interesting to know whether the learned Judge had excluded the proviso in case of doubt. I presume he had done so, because of the emphatic nature of his findings on the question of the auction price:

> "The plaintiff avers in his plaint that the property was worth over KShs 400 000. However, the first defendants have submitted three such reports, all from different valuers showing the value in 1981 as KShs 200 000, in 1985 as KShs 225 000 and in April 1986 as KShs 260 000. Given the prevailing financial climate and the conditions at a public auction it cannot be said that a sale for KShs 200 000 was inconsiderably low or in any way surprising. The sale was properly conducted and advertised. There is no evidence of bad faith or fraud, on the part of the defendants or that the power of sale was not exercised regularly."

The correct approach in dealing with an application for an injunction is not to decide issues of fact, but rather to weigh up the relevant strength of each side's propositions. There is no doubt in my mind that the learned Judge went far beyond his proper duties and has made final findings of fact on disputed affidavits. Supposing that the valuation of the plaintiff's valuer were to be accepted as showing the true market value of the land in question, after evidence *viva voce* under cross-examination, how then could the Judge find that the sale at a price of KShs 200 000 was not inconsiderably low? At roughly half the price, how could that be maintained as such an obvious situation, that the plaintiff's chances of success were found to have less than a possibility of success?

There are other indications of the learned Judge's approach concerning other facts. It is possible to argue that the power of sale was not exercised regularly.

But the clearest indication was the comment of the Judge that he needed valuations, because his decision might determine the trial. In fact the valuations confirmed the area of dispute, and necessitated a hearing of the evidence.

The Judge having misdirected himself in his approach to the issues before him, this Court is entitled to reconsider the exercise of the discretion in this matter. It is a case where the disputed facts allow a doubt as to which party will be proved right at the trial. It is a question of seeking the balance of convenience. The subject matter of the suit is land, in fact the appellant's home at Buru Buru. In disputes concerning land it is usual to grant an injunction. It would be right to grant an injunction on terms, in this case.

The second defendant complains that he has been kept out of his property for a long time. He is not involved, he says, in the difficulties between the mortgagor and mortgagee as to whether proper notice was given or as to what sum is actually owing. He relies on the statute which provides that he does not need to inquire into these matters, and that irregularities in the sale, sound only in damages. He is right. But the mortgagor is entitled to defend himself in order to see that the sale is at a true market value. Auction purchasers are of course looking for a bargain. Mortgagees are still able to sue for the shortfall. Lord Denning has taken all this into account in the *Standard Chartered* case above, where the Bank organised a wholly unsatisfactory sale. The facts in *Osebe*'s case illustrate the great need for caution; indeed they illustrate the unacceptable face of capitalism. Had the learned Judge simply attended to his duty in the application before him, he would have saved the parties a great deal of time and expense. Ideas of finalising disputes at the interlocutory stage should never come to mind, unless the parties, by agreement, have asked the Court to treat the application as the hearing of the suit. That is not often the case when the facts are disputed.

I would allow the appeal, set aside the orders of the High Court, and substitute therefor an order granting the injunction as prayed, on the conditions that this Court ordered in its order dated 27 June 1986. That is to say that the written undertaking in damages will be filed by Thursday noon of next week and monthly instalments of KShs 8 000 or more will continue to be paid as from 21 July 1988. In the event of non-compliance with either condition this injunction will be discharged, unless otherwise ordered. I would order that the costs of the appeal be the appellant's costs. It is hoped that the High Court can arrange an early hearing of this suit.

Masime AJA: The facts of this appeal, which are not in dispute, are clearly set out in the judgment of Apaloo JA which I have had the advantage of reading in draft. This case illustrates vividly, but sadly, if any illustration were needed, of the need for parties who obtain interlocutory stay or injunctions to take steps to prosecute their suits to completion as expeditiously as possible. As a result of the delay that has occurred since the stay herein was granted the appellant has paid out a sum of KShs 160 000 which, on the result of this appeal has gone down the drain. The other sad aspect of the appeal is that it brings out the suicidal consequences that can befall our people when they borrow money at rates of interest that are so exorbitant that they end up being unable to repay the loans. Be that as it may this appeal raises serious and important legal issues as regards the exercise of a chargee's statutory power of sale.

The appellant who had charged his property known as Nairobi Block 73/225 sued the first respondent (the chargee) seeking a nullification of a public auction sale of his said property and an order to restrain it from transferring the property to the auction purchaser, the second respondent. The appellant sought these orders on the ground that the property was sold at a grossly unfair undervaluation and consequently that the first respondent was in breach of the requirements of section 77(1) of the Registered Land Act (Chapter 300). Simultaneously with the filing of the plaint the appellant filed an application under Order XXXIX, rules 1, 2 and 3 of the Civil Procedure Rules and section 3A of the Civil Procedure Act for an injunction to restrain the respondents from interfering with the appellant's quiet possession of the premises. That injunction was granted *ex parte* but refused following the *inter partes* hearing. The learned Judge found on the affidavit evidence before him that the appellant had not shown that the power of sale was exercised irregularly nor that the first respondent did not act in good faith having regard to the plaintiff's interests. He held therefore that the sale was advertised and properly conducted. In any case, he held, that in view of section 77(3) even if the power had been irregularly exercised the appellant's only remedy is in damages.

The appellant's complaint however is that the learned Judge was not entitled on an interlocutory matter to come to these findings. He should have given the appellant a full opportunity at a hearing to show that the sale was bad for fraud. He argued that if he did that then he could exercise his equity of redemption. In his regard I respectfully agree with Platt and Apaloo JJA that the effect of the long line of English authorities and decisions of this Court in respect of mortgage under the Indian Transfer of Property Act is that the equity of redemption is extinguished the moment a valid contract is concluded in exercise of the statutory power of sale. However, section 163 of the Registered Land Act provides:

> "Subject to this Act and except as may be provided by any written law for the time being in force, the common law of England as modified by the doctrines of Equity, shall extend and apply to Kenya in relation to land leases and charges registered under this Act and interests therein but without prejudice to the rights liabilities and remedies of the parties under any instruments subsisting immediately before the application."

In view of this provision it is my view that the legislature must have meant to delay the extinction of the equity of redemption by the provision in section 77(4) of the Registered Land Act. If that is so then the appellant is entitled to an opportunity to be heard fully on his objection to the sale based on fraud rather than to be shut out by an interlocutory decision. For this reason I would agree with Platt JA that this appeal should be allowed with costs to the appellant. I would agree with the orders proposed by Platt JA as to terms of granting interim injunction pending the hearing of the matter in the High Court.

For the appellant:
In person

For the respondent:
Kembi

Mediterranean Shipping Co SA v Wheat Board of Kenya
[1986–1989] 1 EA 362 (CAK)

Division: Court of Appeal of Kenya at Mombasa

Date of judgment: January 1988

Case Number: 49/86

Before: Platt, Gachuhi JJA and Masime AJA

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[1] Shipping – Demurrage – Bill of lading providing for consignee to take delivery "as fast as the vessel can deliver" – Nature of consignee's duty – Whether consignee in breach of such duty if circumstances beyond his control.

Editor's Summary

The motor-vessel "Pantera" arrived at Kilindini Mombasa on 9 January 1978 carrying a consignment of wheat but did not berth until 17 January 1978 when it commenced discharging the cargo. Under the bill of lading, the appellant consignee was required "to take delivery . . . and continue to receive the goods as fast as the vessel can deliver . . ."

The appellant, the owner of the vessel, filed an action against the respondent claiming demurrage for three days, alleging that, had the respondent made proper arrangements to provide railway wagons to receive the cargo, the vessel would have berthed and commenced discharge on 14 January instead of 17 January. The respondent denied that there was any delay in berthing but that if there was such delay it was occasioned by a scarcity of railway wagons in respect of which it had made all necessary arrangements, but over the availability of which it had no control.

The evidence led at the trial showed that the berthing of vessels in Kilindini was planned at daily (except for Sundays) meetings of a berthing committee comprising of representatives of Kenya Ports Authority (KPA), Kenya Cargo Handling Services Limited (KCHS), Kenya Railways (KR) and shipowners' agents, but not the consignee's representatives. It was also proved that the custom of the Port required discharge of the wheat directly on to railway wagons or motor lorries alongside a berth and that in the berthing of vessels priority was normally accorded on a first-come basis. The Judge also found that the respondent had made prior arrangements with KR to provide all necessary wagons for the discharge of the Pantera. The vessel was first scheduled to berth on 14 January but KPA allocated the berth to another vessel which had arrived earlier than the Pantera. At the berthing committee's meeting on 14 January (on Saturday) representatives of KCHS and KR informed KPA that no wagons were available that day. KPA thereupon decided to review the situation relating to the Pantera on Monday, 16 January. In the meantime, as a result of representations made by the vessel's agents, the respondent made arrangements for lorries to be provided and offered them at the committee's meeting on 16 January, but it was found that no berth was available until 17 January. The Pantera berthed on 17 January and commenced discharging immediately onto lorries provided by the respondent.

In his final submissions in the High Court, counsel for the appellant conceded that on the evidence he could not claim demurrage in respect of 14 and 15 January 1978, but contended that demurrage was payable for 16 January by reason of the fact that the failure of the vessel to berth on that day was due to the respondent's omission to arrange for the provision of wagons.

Aragon J dismissed the appellant's claim, finding that the respondent had carried out its duty under the bill of lading and was not responsible for any delay. On appeal, the appellant argued that the respondent should have been held liable by reason of its failure to ascertain what caused the delay in berthing and on account of its omission physically to provide the necessary wagons at the berth.

Held – Under the clause requiring a consignee "to take delivery . . . and receive the goods as fast as the vessel can deliver" the consignee's duty is to take delivery within a reasonable time.

What is a reasonable time depends upon a consideration of all the circumstances existing from the time of the vessel's arrival to the completion of its unloading. These include the natural conditions of the port, the custom of the port, the actual state of affairs existing at the port and the conduct of the consignee.

Since the custom of the Port of Kilindini required the discharge of wheat directly on to wagons or lorries, the respondent's duty arose only after the vessel had berthed and on the evidence the respondent had discharged this duty by providing lorries on 17 January.

On the facts, the respondent had, prior to the vessel's arrival, made all arrangements necessary for the supply of wagons for the discharge of the vessel when it berthed. But so far as the vessel's failure to berth on 14 January was concerned, either the lack of wagons played no part in it or, if it did, the respondent had no control over KPA's decision to allocate the berth to the other vessel which had arrived earlier. Nor did the respondent have any say in KPA's decision not to berth the Pantera on 16 January, since that decision was based not on the lack of transport – the respondent having offered lorries – but on the unavailability of the berth until 17 January.

The appellant had therefore failed to prove any delay on the part of the respondent before 17 January 1978.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

United Kingdom

Good and Co v Isaacs [1892] 2 QB 555

Hick v Raymond and Reid [1893] AC 22

Hulthen v Steward and Co [1903] AC 389

Tharsis Sulphur and Copper Co Ltd v Morel Bros and Co [1891] 2 QB 647

The Arne [1904] P 154

The Lyle Shipping Co Ltd v Corp of Cardiff [1900] 2 QB 638

Judgment

Platt JA: The appellant appeals against the judgment of the High Court whereby the appellant, as plaintiff in the suit, was held to have failed to establish the claim against the defendant now respondent. It will be convenient to refer to the parties as they are in this appeal, since the appellant is still seeking to establish his claim. The appellant is a shipowner, in whose ship the MV Pantera, a consignment of gift wheat was sent to the Government of Kenya, to be received by the Kenya Wheat Board represented by the Kenya Farmers Association in Mombasa. The appellant claimed demurrage, ultimately for one day 16 January 1978, during which it is said that the respondent failed to arrange to receive the wheat. The respondent, in their amended defence, protested that there was no delay at all, but that assuming without admitting that there was a delay, that would have been caused by the scarcity of railway wagons over the availability of which the respondent had no control. The respondent had made all necessary arrangements. Nevertheless when the non-availability of the railway wagons was brought to its notice, it took immediate and effective steps to provide road transport to take delivery of the wheat. The learned Judge thought that the respondent had proved to be right and dismissed the appellant's claim.

Mr Satish *Gautama* presenting the appellant's appeal commenced with the remark that he accepted the primary findings of fact by the trial Judge, but did not accept the inferences and conclusions drawn by him. Having compared the narrative of events set out in the judgment with the evidence recorded, it is a just remark with regard to the facts. Those primary facts may be described shortly.

On 9 January 1978, the Pantera arrived at the pilot station of the port of Mombasa at either 10:00 or 11:00pm. The following day she was piloted into port and anchored at "C" Anchorage, in the mainstream, awaiting a berth. From 11 to 13 January 1978 various attempts to allocate a berth were made; and the ship may have moved to "B" Anchorage. But the events of 14 January were critical. The Pantera was not allotted berth 9 after the "Hellenic Wave", that was given to the "Boston Maru". The Pantera was given berth 9 after the Boston Maru for the latter part of 17 January. The Pantera was berthed at Berth 9 and started discharging cargo in at least the third shift. The appellant's agent Oceanfreight Limited was represented in Court by Mr Msafari (PW1). The latter stared clearly that when the discharge of wheat began on 17 January 1978 lorries were ready to receive it, and the claim only related to the delay before berthing of Pantera on 16 January 1978.

That is an unusual type of claim. It is more understandable that demurrage would arise after the ship had berthed, unless there was another place specified, and then the receiver delayed in receiving the cargo. But it is no doubt this feature which has caused the differences of opinion in this case. Mr *Inamdar* for the respondent was particular in this final address, to lay the foundation of his defence on the concept that it was the duty of defendant in law ". . . to arrange for receipt of cargo when vessel was ready to discharge". The vessel was ready to discharge on 17 January and by that date admittedly the respondent was not at fault. If there was prior fault, that was beyond the control of the respondent.

It is accepted that clause 5 set out in the contract of carriage, incorporated in the bill of lading is in a form which has been authoritatively construed as

meaning that no fixed time has been fixed within which the discharge is to take place. The claim is as follows:

> "5. Loading, Discharging and Delivery of the Cargo
>
> The merchant or his assignee shall take delivery of the goods and continue to receive the goods as fast as the vessel can deliver . . ."

The clause then goes on to deal with hours of work, which is not in point in this case.

In the case of such a clause, the consignee's obligation is to take delivery of his cargo within a reasonable time. Reasonable time itself is to be judged on a consideration of all the circumstances which actually exist, from the arrival of the ship to the completion of the unloading. The consignee fulfils his obligation, however protracted the delay may be so long as such delay is attributable to causes beyond his control, and he has acted neither negligently nor unreasonably. The factors to be considered in the ascertainment of reasonable time are the natural conditions of the port, the custom of the port, the actual state of affairs existing at the port, and the condition of the consignee (see *Halsbury's Laws of England* (4 ed) Volume 43 at paragraphs 670 *et seq*; *Hick v Raymond and Reid* [1893] AC 22; *The Lyle Shipping Co Ltd v Corporation of Cardiff* [1900] 2 QB 638; *Hulthen v Steward and Co Ltd* [1903] AC 389).

The first of these aspects to be considered is the customs of the Port of Mombasa since any stipulation as to unloading is always construed as made with reference to the custom of the port of discharge. The first is that if cereals such as wheat are to be offloaded at Mombasa, it will be by direct delivery in railway wagons or lorries. Hence, prior to the arrival of the ship the respondent had made firm arrangements with the Kenya Railways to provide sufficient rolling stock in the port to keep up with the dispatch programme for the wheat. That position was confirmed again on 11 January 1978 after the Pantera had entered the harbour and was lying at "C" Anchorage. It is clear that by the custom of the port the ship would have to come alongside a berth for the discharge to take place into a railway wagon or lorry. Consequently it was the berthing of the vessel which attracted most attention in this case.

Once it is accepted that by custom the ship had to be berthed as permitted by the Port Authority, then *Good and Co v Isaccs* [1892] 2 QB 555, which was received by the High Court is of importance. In that case, the clause was that the ship was "to be discharged at usual fruit berth as fast as steamer can deliver, as customary and when ordered by the Charters". There was there a specific contract concerning the berth to be used, which is not the case in the present appeal. But if the Port of Mombasa had by custom stipulated that cereals must be offloaded at berth, direct into wagons or lorries, the arrival at the berth was vital. Then following *Good and Co v Isaccs* where it was held, following *Tharsis Sulphur and Copper Co Ltd v Morel Bros* [1891] 2 QB 647, that the obligation upon the charterers to unload did not commence until the ship was berthed, that meant berthed with the assent of the harbour authorities. Moreover, it was held that "as fast as steamer can deliver" as customary, meant that discharge and delivery must be as fast as the custom of the port would allow. In applying this decision to the facts of this case, it would seem that one must observe how the ship came to berth, after which the duty of the consignee to unload would commence.

The second customary aspect to be noticed is the procedure of allotting berths to a ship.

There was evidence from the appellant's agent that the latter sent the manifest to Kenya Ports Authority and the Kenya Cargo Handling Services for them to select the quay. The consignee arranges with the Kenya Ports Authorities the mode of taking delivery and that was to be direct into railway wagons. It is not disputed that the Kenya Ports Authority is a parastatal organisation set up by an Act of Parliament and that stevedoring is carried out by Kenya Cargo Handling Services, an organisation connected with the Authority. Everyday, except on Sundays, a berthing plan is produced, which is made in the operations room of Kenya Cargo Handling Services, and the circumstances of each ship are considered. The normal rule to be observed is that the ship which arrives first takes priority in being allocated a berth. But the plan made each day is not the final position as to what may happen. Ships may take more or less time to complete loading and discharging. The Kenya Ports Authority reserves to itself overall discretion of deciding which ship will occupy which berth. Present at the making of this plan are the representatives of Kenya Cargo Handling Services, the Kenya Railways, the ship's agents who advise the Kenya Ports Authority on the situation regarding any ship. The consignee's agents are not present. But if the consignee has arranged for wagons, then the Kenya Railways will make them available. At the fact of the berthing plans are boxes in which the number of the railway wagons are inserted. It is usual for the "placed" wagons to be less than required, at any rate as seen from exhibits 12 to 22 berthing plans for 9 January to 26 January 1978.

All this is how Mr Msafari, the appellant's agent, described the situation. Mr Abwoga of the Railways (DW1) stated that his representative at the Berthing Plan Committee was Mr Mukabi.

The Kenya Ports Authority and the Kenya Cargo Handling Services requisition the wagons, and tell the Railways the number and the place where they are required. Thus while the Kenya Railways make the wagons available it is the Kenya Cargo Handling Services who determine the actual number to use for any one day and the shortage. Mr Abwoga had instructed Mr Mukabi to place wagons for direct discharge from the Pantera in accordance with the Kenya Cargo Handling Services' requirements.

All this evidence was accepted, and the effect is that the consignee having the best arrangements he could with the Kenya Railways, must leave the matter to the organisations which decided on the berthing plan, and whilst he may make inquiries, as Mr *Gautama* insisted, he cannot influence the final berthing decisions. That is the prerogative of the Kenya Ports Authority. It was indeed conceded by Mr Macharia Muhuni, the appellant's advocate at the trial, in his closing speech, that it was the duty of the respondent to arrange for provision of means of discharge and not actually to provide the means. This is the line Mr *Inamdar* has adopted on this appeal that the respondent had to procure the means but not actually to see that the transport was alongside.

If then, the respondent's main responsibility arose after the Pantera had berthed, and the respondent had admittedly procured the means to take delivery of the wheat direct into wagons (see *Lyle Shipping Co v Corporation and Cardiff*, above), how did it come about that lorries were used on 17 January 1978?

Mr Msafari had been nervous from the beginning that in practice the wagons would not be available. He drew that inference from the berthing plans. Mr Abwoga's evidence is that the supply to Kenya Cargo Handling Services was always sufficient and exceeded actual demand. For some reason the statistics of the Railways and those on the berthing plans differ. All that can be said is that for some unknown reason the representatives of both the Kenya Cargo Handling Services and the Kenya Railways advised the Ports Authorities that the wagons were not available. They did so on 14 January 1978, when the Pantera had lost its berth because the Wheat Board had failed to provide transport. He held the Wheat Board fully responsible for demurrage and demanded a deposit of US$ 10 000 failing which his principals would seize the cargo. He strongly recommended a switch to road haulage. The Wheat Board acted at once, and by the time of the Berthing Plan Committee meeting on 16 January 1978, Mr Msafari was able to report that lorries would be available. On 17 January 1978 that was the position.

Nevertheless, Mr Msafari persisted in his claim for demurrage, and the source of the claims seems to be the Berthing Plan Committee meeting of 14 January 1978. Mr Msafari's evidence of what occurred is not quite the same as that of Mr Bwango, a senior operations officer employed by the Kenya Ports Authority. As the Authority has the final decision in berthing ships, and as Mr Bwango was called by the appellant (PW2) it is his evidence that must be of great importance.

M Bwango explained the way that the Pantera had been scheduled at berth 11 on 13 January 1978, and berth 7 on 15 January and at berth 9 on 14 January 1978. (One sees how the consignee could not keep track of the wagons arriving in time each day at all these berths, and why it must be the authorities who arrange this.) He says he attended the meeting on 14 January 1978:

> "At that meeting agent for Boston Maru who had arrived before Pantera and was waiting for berth to load informed that cargo was ready for loading. Hence as Boston Maru was ready and had arrived before Pantera she took priority over Pantera. That is why Pantera did not berth on 14 January 1978 and why Pantera's berth was allocated to Boston Maru. After allocating Boston Maru to Pantera's former berth, meeting then began to plan for Pantera. It was then established what transport facilities were required for taking Pantera's cargo. KPA rule is that all grain must be discharged directly in either rail or road transport, and it is not stored in shed. Hence Pantera's cargo of wheat had been arranged for direct delivery in wagons by consignees. At the meeting on 14 January 1978 representatives of Railways and Kenya Cargo Handling Services stated that there were no wagons to be placed available for Pantera at number 9 and hence Pantera could not be shifted to another berth the same day. It was hence decided to leave Pantera at the anchorage and review situation at meeting on 16 January 1978. If wagons had been available on 14 January 1978 there would still have been a berth available on 14 January 1978, and 15 January 1978. A berth would have been available on 16 January 1978, ie number 4 but railway representative indicated at meeting that wagons could not have been available for first shift on 16 January 1978. At meeting on 16 January 1978 plaintiff's agent stated road transport would be made available if no wagons could be placed alongside but no berth was available on 16 January 1978 second or third shift or first shift on 17 January 1978."

In fact, Mr Msafari thought that a quay had become available on 15 January 1978 – ie number 8, and that is why he complained of the day's idleness up to 17 January 1978 (see his letter exhibit 1).

He also supported this by alleging that the Hellenic Wave which had been working at berth 9 on 13 January 1978 did not finish on 14 January 1978. The authority allowed the Boston Maru to Berth on 15 January 1978 at berth 9. The Boston Maru remained there until the afternoon of 17 January 1978 and then the Pantera took over. It then worked for nine days at that berth.

The Kenya Ports Authority, on 20 January 1978, answered Mr Msafari's complaint that the delay was due to lack of wagons.

That letter (exhibit 2) was signed by Mr Bwango. His later account was that that was not so. If Mr Bwango's evidence is accepted, the lack of railway wagons was not the real element in the decision to prefer the Boston Maru. That ship was only loading over a few days, the cargo was ready and she had arrived at Mombasa first. The authority's decision to prefer her was quite reasonable. That preference was to last until the meeting on 16 January 1978. That meant that she would be allowed a berth after that time. By the time the meeting was held, there were no berths until 17 January 1978.

The conclusion on the facts must be that either the lack of transport had played no part on 14 January 1978 or, if it had, in that case the respondent had no control over the decision to prefer the Boston Maru. The Ports Authority had not decided to berth Pantera on 16 January 1978, which it did not do because of lack of transport. Lorries were offered on 16 January. The Authority had decided to review the situation on 16 January and then decided on that day to berth the Pantera on 17 January. There is no case of a day lost on 16 January at all.

The Ports Authority had not made a decision which the consignee could not utilise.

In these circumstances, the learned Judge *prima facie* came to a reasonable conclusion. But Mr *Gautama* argues that he did not. It would appear from the memorandum of appeal overall, that the appellant contends that the learned Judge approached the problem in the wrong way. Whilst the learned Judge considered the custom and practices at the Port of Mombasa, it seems that Mr *Gautama* wishes to stress the conduct of the consignees. As will be seen from the resume of the law in *Halsbury's Laws of England* referred to above, the conduct of the consignee is indeed one of the factors to be taken into account in ascertaining what is a reasonable time (paragraphs 671 and 675). Mr *Gautama* appeared to stress that it was the duty of the consignee to use reasonable diligence in receiving the cargo. To him, seemingly, reasonable diligence meant that when the shortage of wagons became apparent the consignee should have taken steps to prevent that becoming a factor in delaying the assignment of a berth. The respondent should have asked the authorities what was delaying the allotment of the berth; if necessary the respondent's agent should have got the wagons pushed to the berth. The agent could not just simply do nothing. It was for the respondent to show that they had acted diligently, relying on *The Arne*. The learned Judge was therefore wrong in holding that the respondent had no control over the circumstances which caused delay in receiving the cargo. The Judge had not specified what the circumstances were. The respondent's arrangements were not sufficient to relieve the respondent of liability. The Judge was wrong to hold that the respondent did not have any duty to see to it that the wagons were actually placed alongside. The Judge was wrong not to accept the insufficiency of wagons as the explanation why the wheat was not received on 16 January and, indeed, should not have allowed evidence that there was no scarcity when such scarcity had been pleaded.

The ultimate question, then, is, which side failed to approach the problem correctly, or failed to establish its case?

It will be convenient to deal first with *The Arne*. In that case there were two wagons to carry pig iron (and old nails on the first voyage as well) it being stipulated in the two bills of lading, as follows:

> ". . . the goods to be taken from the ship by the consignees (at their expense) immediately after arrival and as fast as steamer can deliver, or the same will be transhipped into lighters, or landed, or warehoused at the expense and risk of the properties of such goods."

It was admitted that on the first voyage, delivery commenced at 9:00am on Tuesday 14 April, but was not completed until 12:30pm on Saturday 18 April, the reasonable time having been up to Thursday 16 April. Two days' delay were claimed. On the second voyage in a similar calculation one day ten hours were claimed as a delay. These delays were claimed as due to the defendant's not taking proper steps to see that sufficient railway wagons were provided. The defendants only answered the claim on the basis that a reasonable rate of discharge would be from 250 to 300 tons a day and not 500 tons as claimed by the plaintiff. The President of the Court had these observations to make at 161:

> "I do not agree that the question of average quantity was material here, though in taking into consideration what the steamer could do, you have to consider the actual state of things – the appliances of the port, and the mode of delivery; still, that does not relieve the defendants from their liability to show that they have done all they could, and that it was not their fault. A *prima facie* case is made against them, and there is no answer either set up, or which to my mind can be set up, to meet the case of the plaintiff. In these circumstances I am prepared to give judgment for the plaintiff."

That case is instructive in its way, but not quite relevant. It is not possible to press the pleadings and facts in this case, into the mould of *The Arne*, because a defence is pleaded that the respondent had done all it could and that it was not at fault. But the value of the decision is that the plaintiffs there had made out a *prima facie* case. That is clear because two extra days and one day and 10 hours extra were taken in discharging the ship. In the present case there was no delay in discharging the Pantera after she reached berth 9. The appellant took upon itself to show that there was one day's delay on 16 January, because the Port Authority had not been able to allocate berth 4 which was free on that day.

There are two answers. The first is that there was no delay at all, because the actions of the Ports Authority are matters which form part of the customs at the Port and are not the responsibility of the respondent. Therefore the respondent's duty arose only after berthing. The second is, that even if the respondent's duty arose as soon as the Pantera was being considered for berthing, the respondent had no control over the decision of the Ports Authority. Having been apprised by Mr Msafari of what was being said, and had changed to lorries, the respondent had done all it could, first in procuring the wagons long before they were needed, and secondly in providing lorries as the appellant's agent recommended. It is arguable that the appellant did not set up a *prima facie* case at all; but if it did, it was answered. Hence the Arne is not in point.

Looking at this dispute from the point of view of the *Lyle Shipping Co Ltd* case, one finds that as the facts were as found by the trial Judge in effect saying that the consignee were not guilty of negligence, AL Smith LJ poses the question for himself:

> "Have the plaintiffs proved that the defendants have broken their contract with the plaintiffs that the cargo should be discharged with all despatch as customary?"

Then the learned Lord Justice quoted Lord Herschell in *Hick v Raymond* (above):

> "The question is, has the appellant (the shipowner) proved that this reasonable time has been exceeded? This depends upon what circumstances may be taken into consideration in determining whether more than a reasonable time was occupied?"

It is the plaintiff in a case such as this, who must carry the burden to show that more than a reasonable time was taken. It is then for the defendant to answer that he acted with all diligence and was not at fault. The appellant in this case gives the impression that he showed that more than reasonable time was taken, and that the onus had passed to the respondent.

For my part I do not think that that was true. The appellant has never made a steady claim as to when this delay took place. Did it start on 15 January, the scheduled berthing for that day; or on 14 January (another scheduled berthing); although in the end the claim was only for 16 January, a day when the Pantera was not given a berthing? So far from Mr Macharia Muhuni permitting himself to open his final address with the question "what defence is the defendant relying on?" He should have asked himself "now what delay am I relying on, and "why?" Having radically altered his case, it was that altered case which he had to explain that had been proved to a *prima facie* extent, before the burden of proof passed to the respondent.

The events of 14 January 1978 and the deliberations of the berthing committee cannot finally cast any reflection upon the respondents. At the risk of repetition it need only be said that the respondent had made all arrangements necessary by letter as well as telephone, for the supply of wagons as Mr Abwoga showed, and as Mr Msafari had ascertained had been agreed, from 6 January right up to 11 January 1978. The berthing committee is a committee at which the respondent's agent cannot attend; only the appellant's agent can attend. The discretion to allocate a berth resides entirely in the Ports Authority. The discretion to call for an allocation of wagons is that of Kenya Cargo Handling Services. Neither the Kenya Railways nor the respondent can force wagons on the Kenya Cargo Handling Services, and so the Kenya Ports Authority. It would certainly not be proper for the respondent to send a team of men to push wagons to berths the respondent imagines may be the berths allocated to it. While the choice of wagons was reasonable, it would appeal that more control may be had over lorries. But there may be a difference in transport costs. It was the Ports Authority's decision to prefer the Boston Maru to the Pantera for several normal reasons, quite apart from the alleged scarcity of wagons. It was the Ports Authority's decision to consider the Pantera's position again on 16 January. By the time the berthing committee sat, there were no available berths, and the possibility of allocating berth 4 to the respondent did not arise, because the committee does not sit on Sundays. No allocation could be made before the mid-morning of 16 January. The 17 January was the earliest date. The respondent could not in any way have prevailed upon the committee to allocate berth 9 to the Pantera instead of the Boston Maru, or to receive an allocation before 17 January 1978. But the respondent had done everything in its power to procure the wagons.

A word of praise is due to Mr Msafari who prevented the drift from getting worse. His prompt action on 15 January saved the situation. As far as is known, he did not know that a negative attitude would be taken by the representatives of the Kenya Cargo Handling Services or the Kenya Railways, Mombasa, before 14 January 1978; neither did the respondent. There is no case for suspecting this attitude. Mr Abwoga's evidence is reliable.

On this evidence the appellant had failed to prove any delay before 17 January 1978. That vindicated the first defence set out in paragraph 3 of the amended defence. On the other hand, it was circumspect to allow for mishaps and put forward an alternative defence in paragraph 4 based on the possible scarcity of wagons. When the main defence and the alternative defence are considered carefully, it will be understood why evidence was called from Mr Abwoga as to the availability of wagons. It was to support the effective procuring of wagons on the one hand, and to show that the respondent had no control over Mukabi's stand for the Kenya Railways or that of the representative of the Kenya Cargo Handling Services, on 14 January 1978 in the berthing committee, and indeed the respondent could not have suspected such a stand by any circumstances of which he could be aware.

The learned Judge came to the right conclusion, his view of the circumstances of this case was on the whole sound, and I would dismiss this appeal with costs. As Gachuhi and Masime JJA agree it is so ordered.

Gachuhi JA: I have read the judgment of Platt JA in draft form and I agree with it. However, I have this to add.

The real issue in this appeal is whether the appellant had proved its claim in the High Court. Did the plaintiff discharge this burden? If the plaintiff had proved its claim and if the only defence available to the defendant was a blame on a third party, such defence would not have prevented the plaintiff from recovering damages.

The discharge of the cargo from the ship is the joint act of the shipowner and the consignee. The shipowner's duty is to get the cargo out of the holds and to deliver it to the consignee whereas it is the consignee's duty to take the delivery to it. The extent of their respective obligations in any particular case is regulated by the custom, if any, of the port of discharge (*Halsbury's Laws of England* (4 ed) Volume 43 paragraph 660).

The bill of lading provides:

> "Discharge and delivery of the cargo shall be arranged by the carrier's agent unless otherwise agreed . . . The merchant or his assign shall take delivery of the goods and continue to receive the goods as fast as the vessel can deliver, and . . ."

In order for the ship to be able to deliver, it has to be berthed. The custom of the port is that the commodity to be discharged (wheat) was to be discharged on the railway wagons or on lorries. These wagons or lorries have to be on the quay where the ship is berthed. If the ship is not berthed it is not ready to discharge. If the wagons or lorries are not on the quay and the ship is there, then the consignee is not ready to receive. Hence, the operation is a joint effort of the shipowner and the consignee.

According to the evidence, there is a meeting of a committee held daily comprising of the Ports Authority, Kenya Cargo Handling Services Limited, Kenya Railways and the representatives of the shipowners. The meeting allocates berths to the ships. At that meeting, the consignees are not represented, but the Kenya Cargo Handling Services Limited could be representing them. But what happened in this case, is that the representative of the shipowner, in order to save the situation of any possible delay, acted as agent of the consignee in informing them that there were no rail wagons ready to receive the goods. At that time, the ship Pantera had not berthed. When it berthed on 17 January 1978, lorries were ready to receive the goods.

Pantera was to be allocated berth number 9. But another ship Boston Maru which had docked earlier had been allocated that berth for loading. No evidence to show that railway wagons could have been there when Boston Maru was loading. Under the custom of the port, the ship had to be allocated a berth to be able to discharge. If no berth was allocated, the ship has to remain anchored somewhere in the port. The claim of shortage of wagons does not really answer or improve the plaintiff's claim in my view since the ship had not been allocated a berth. The evidence of the Railway representative is that there were wagons placed at the disposal of Kenya Cargo Handling Services in the port.

In *Halsbury's Laws of England* (4 ed) Volume 43 paragraph 653 dealing with arrival at berth necessary provides:

> ". . . If therefore, without any default on the part of the consignee, the ship is unable to reach her berth at once, as where the berth is already occupied or where the tides are too low to permit her to proceed for the present, the risk of delay falls on the shipowner and not on the consignee . . . Unless, therefore, the contract expressly requires him to name a vacant berth, the berth named, if otherwise in order, need not be vacant when the ship arrives in the port, and the shipowner is bound, if necessary, to wait for a reasonable time until the berth is free. In this case also the ship has not reached her destination until she has actually reached her berth, the risk of delay in the meanwhile falling on the shipowner . . ."

The contract does not name a specific berth and the shipowner cannot go to any berth unless it is allocated by the Ports Authority which is the custom and the Ports Authority is the Authority in the port. I do not see how a claim can arise if the ship has not been allocated a berth and the ship is at the berth ready to discharge but the consignee is not ready to receive. In my view the plaintiff did not prove its case for damages of one day, 17 January 1978. The learned trial Judge was right in his findings. I would also dismiss this appeal with costs.

Masime AJA: This appeal arises from the judgment of the High Court at Mombasa (Aragon J) whereby he dismissed a claim by a shipper against a consignee for demurrage for alleged failure to take delivery of cargo as fast as the ship could discharge. There is no quarrel by the appellant with the directions by the learned Judge as to the law application nor the findings of fact on the evidence adduced by both sides at the trial. Rather the appellant complains that the learned Judge erred in his application of the law to the findings of fact and thereby erred in not finding that the consignee was liable to pay demurrage for one day.

The learned Judge found as a fact that long before the ship arrived the defendant had arranged for railway wagons to be available and that indeed an excess of wagons were available at the port by the time the ship was ready to discharge. As per the customs at the port the duty of putting the wagons alongside the ship to facilitate discharge was upon the Kenya Ports Authority and the defendant could in no way take over the duty. When the attention of the defendant was drawn to the failure of that authority to so deploy the wagons as to enable discharge immediate alternative arrangements for discharge into lorries and direct delivery were made. The plaintiff's complaint seems to be that rather than taking that step the defendant should have undertaken investigation of the reasons why the Kenya Ports Authority failed to place the wagons alongside the ship to start discharge on 16 January 1978.

I would for my part respectfully agree with the learned trial Judge that the plaintiff has failed to show that the defendant was in any way responsible for a

delay in taking delivery in its cargo as fast as the MW Pantera could discharge it and concur with him that the plaintiff's suit ought to be dismissed with costs in favour of the defendant.

Accordingly I agree with my Lords Platt and Gachuhi JJA in regards to the orders they propose.

For the appellant:
Satish Gautama and *JM Muhuni*

For the respondent:
IT Inamdar

Municipal Council of Kisumu v Madowo
[1986–1989] 1 EA 373 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	28 November 1988
Case Number:	140/86
Before:	Gachuhi, Masime JJA and Kwach AJA
Sourced by:	LawAfrica

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[1] Judicial review – Mandamus – An order of – Whether an order of mandamus can be sought to determine rights.

[2] Judicial review – Orders of – Procedure for making such applications.

Editor's Summary

This was an appeal against the decision of the High Court in favour of the respondent against the appellant for an unascertained sum.

The judgment and decree were based on a notice of motion taken out by the respondent under Order LIII of the Civil Procedure Rules. The respondent was an employee of the appellant and was dismissed following a resolution. The procedure adopted to enforce his claim was the one challenged on appeal.

Held – The respondent's claim of his entitlement would properly be under the contract of employment which had not been accepted by the Council (appellant). The amount claimed had not been ascertained. As such an order of *mandamus* directing the Council to pay the claim was inappropriate.

Prerogative orders are issued in the name of the Republic and applications for such orders must be correctly instituted.

The respondent's claim being a claim for terminal benefits under a contract of service was an ordinary contractual claim which should have been brought by plaint.

An order of *mandamus* should not be sought to determine rights but ought to be used for enforcement of existing rights.

Cases referred to in judgment

East Africa

Farmers Bus Service and others v Transport Licensing Appeal Tribunal [1959] EA 779

Kadama and another v Municipality of Kisumu civil appeal number 109 of 1984 (UR)

Kadamas v Municipality of Kisumu civil appeal number 110 of 1984

Republic v Municipal Council of Kisumu ex parte John dickens Nyawira Madowo

United Kingdom

R v East Berkshire Health Authority ex parte Walsh [1984] 3 WLR 818

Judgment

Gachuhi JA: The facts of this appeal are in the judgment of Kwach AJA. Briefly they are that the respondent had been an employee of the appellant in various capacities until 6 December 1985 when he was dismissed. At the time of his dismissal, he was the treasurer. After his dismissal, he claimed terminal benefits. He made several demands but his demands were not met. He claimed that he was manhandled and pushed out of the office after which time he consulted an advocate who advised him to take legal action. The procedure adopted to enforce his claim is the one now challenged in this appeal.

The respondent elected to move the Court under Order LIII of the Civil Procedure Rules whereby he applied *ex parte* for leave to apply for the order of *mandamus* directed to the appellant that he be paid forthwith his terminal benefits by the appellant. In his affidavit in support of an *ex parte* application he set out his claim under the following heads:

Pay in lieu of 213 days' leave	KShs 79 986,60
Pay in lieu of 6 months' notice	KShs 47 130,00
Overtime pay	KShs 106 000,00
Total	KShs 233 116,60

He also demanded a letter from the appellant in order to be paid certain sums of money by the Local Government Superannuation Fund. Annexed to the affidavit are documents relied by the respondent in his motion which are the worked out payment vouchers on the letter head of the appellant, handwritten papers bearing the enumerated claim, letter of dismissal and the agreement between the Association of Local Government Employer, Kenya Local Government Workers' Union and National Joint Negotiating Council Committee number 2.

The *ex parte* order was granted.

The appellant in its replying affidavit stated in general terms that it had agreed to pay the respondent his terminal benefits but, due to Council's financial position, it could only pay the respondent in part and the balance to be paid later after the verification of his claim. At the time the matter was placed in Court on 23 January 1986, the terminal benefits had not been processed. The hearing of the motion proceeded before Butler-Sloss J on the strength of the affidavit and submission made by counsel for the applicant and for the respondent. No format evidence was led by the applicant to prove his claim. Judgment was delivered on 9 July 1986 in which the appellant was ordered to pay the applicant/respondent KShs 77 370,90 as entitlement in respect of overtime pay, KShs 58 486,65 as entitlement in respect of accumulated leave and KShs 21 041,40 in respect of pay in lieu of notice. Each side was to bear its own costs.

The trial Judge was misled by submissions made by Mr *Omondi* who relied on *Kadamas and another v Municipality of Kisumu* civil appeal number 109 of 1984 (UR). The trial Judge does not appear to have read that case and if he did read it, it does not appear that he applied it correctly. It appears that he accepted the submissions as submitted before him because the present case is distinguishable from *Peter Okech Kadama and another*. In *Kadama*'s case there had been a decision made through the ministerial process reversing the Council's decision. The Council was in a process of reopening the matter to take the same action as previously taken without affording a hearing to the complainants. The meeting to discuss the matter had been convened. If the meeting had taken place, the Council had the intention to set aside the decision earlier made by the ministerial process. The order of *mandamus* was properly made. A prohibition order prohibiting the Council from holding the meeting was properly made by this Court.

In the present case, there had been no previous decision made. The respondent's claim of his entitlement would properly be under the contract of employment which had not been accepted by the Council. The amount claimed had not been ascertained. As such an order of *mandamus* directing the Council to pay the claim was inappropriate. The respondent followed a wrong procedure in that respect. The proper procedure would have been for the respondent to file a proper suit by way of plaint where the appellant could have filed its defence. Plaintiff had to prove his claim according to law. Only then if he was successful he would obtain judgment in his favour after which an order for the Council to pay could have been made, but could not have necessarily been by prerogative order.

Mr *Wasuna* urged his appeal by pointing out that the Judge made an error in not reading the Court of Appeal judgment in *Kadamas* and accepted the misleading submission made by the advocate for the respondent. The respondent obtained judgment on the wrong procedure which judgment should be set aside. The respondent who had already been paid substantial amount of his claim appeared in person in support of the judgment delivered in his favour.

Looking at the facts of the case and the law in the matter I tend to accept the submission made by Mr *Wasuna*.

I would allow this appeal and set aside the judgment of the High Court and substitute therefor with the order of dismissal of the notice with costs.

As Masime JA also agree, the appeal is allowed with costs. The appellant will also bear the costs in the proceedings in the High Court.

Kwach AJA: This is an appeal by Kisumu Municipal Council (hereinafter called "the appellant") against the decision of Mr Justice Butler-Sloss given at Kisumu on 8 July 1986 in which he gave judgment in favour of John Dickens Madowo (hereinafter called "the respondent") against the appellant for a total of KShs 156 898,95 made up as follows:

Overtime pay	KShs 77 370,90
Accumulated leave	KShs 58 486,65
Payment in lieu of Notice	KShs 21 041,40
Total	KShs 156 898,95

The judgment and decree were based on a Notice of Motion taken out by the respondent under Order LIII of the Civil Procedure Rules in circumstances

which I will recount shortly. The respondent was an employee of the appellant and, after serving in various capacities, he was eventually appointed the Town Treasurer in September 1983. On 6 December 1985, the appellant passed a resolution for the dismissal of the respondent and on 16 December 1985 sent him a letter which is important and which I will read in full:

> "Dear Sir
>
> *Termination of Appointment*
>
> Please refer to this office's letter number PF/TC/TT/EST (54) dated 8 March 1984 wherein the Council's resolution to suspend you pending the Minister's approval to terminate your services in accordance with Section 127 of the Local Government Act (Chapter 265) was conveyed. I now wish to inform you that the Minister for Local Government, having studied the Council's resolution to terminate your services, and in addition having received and approved the Statutory Inspection Report and the recommendations contained therein, has conveyed his approval under directives issued under Section 243 of the Local Government Act (Chapter 265) to the Council for implementation.
>
> The Council at its meeting held on 6 December 1985 discussed and resolved that your services be terminated with benefits for gross inefficiency, mismanagement, misconduct and misuse of office, with effect from the date of the Council meeting that is 6 December 1985. By copy of this letter the acting Town Treasurer is requested to process your dues minus any moneys that you owe the Council.
>
> Yours faithfully
>
> SK KARIUKI
>
> Acting Town Clerk"

It would appear that on receipt of this letter the respondent demanded to be paid his terminal benefits and whatever was due to him under the Local Government Superannuation Fund. It would seem that no agreement was reached between the respondent and the appellant as to what his exact entitlement was and, more specifically, his claims for accumulated leave and overtime. On 16 January 1986, the respondent submitted a claim for KShs 233 116,60 in respect of accumulated leave, salary in lieu of notice and overtime pay. The appellant, quite properly, disputed the correctness of the figures submitted by the respondent arguing that the respondent was not entitled to accumulate more than 90 days' leave and that the claim for overtime had not been authenticated as required by the regulations in force at the time and applicable to the respondent. In these circumstances, the appellant declined to pay the amount demanded by the respondent.

Having reached an impasse, what the respondent did next was to go to law. The letter of dismissal, to which I have already referred, was quite specific on the respondent's entitlement to terminal benefits and obviously these would be subject to appropriate verification before payment could be made to the respondent. The respondent thought and he said so in his statement, that the appellant's refusal to pay the amount demanded by him was spiteful and malicious and not as a result of any genuine disagreement between the parties as to the amount actually due and payable by the appellant to the respondent. It is pertinent to point out at this stage that throughout these proceedings the respondent has not challenged or in any way questioned the legality of his dismissal by the appellant. The dispute has been limited strictly to the respondent's claim for terminal benefits following his dismissal by the appellant. The respondent instructed the firm of CN Omondi and Co Advocates, who took out a chamber

summons under Order LIII, rule 2 of the Civil Procedure Rules on 23 January 1986 for leave to apply for an order of *mandamus* that the respondent be forthwith paid his terminal benefits by the appellant. The application for leave came before Butler-Sloss J on 27 January 1986 who granted leave for an application to be made for an order of *mandamus* against the appellant to pay the respondent the terminal benefits due to him.

Having obtained leave to apply, the respondent's advocates took out a notice of motion seeking the following orders:

> "(1) That the order of *mandamus* issue from this court to the respondent that the applicant be forthwith paid his terminal benefits.
>
> (2) That the costs of this application be provided for."

The appellant filed a reply affidavit and a statement in reply through Samuel Kinyanjui Kariuki who was the acting Town Clerk. In his statement Mr Kariuki explained the circumstances leading to the dismissal of the respondent and then continued:

> "(5) That on 30 November 1985 the applicant demanded payment of his terminal benefits verbally and I called a meeting in my office and discussed the issues with the applicants and the acting Town Treasurer, James Doughlas Otian'ga. It was agreed that considering the Council's financial position the applicant be given part payment of KShs 107 838,75 the balance to be paid later on *after verification* (emphasis mine).
>
> (6) That the applicant was to be given a letter in due course to forward to the Ministry of Local Government to enable him to receive his Superannuation Fund from the said Ministry but not on the 16 January 1986 as stated in paragraph 4 of the applicant's statement.
>
> (7) That the payment of the applicant's terminal benefits has not been processed fully by the respondent Council as the Council was in the process of verifying the various headings of the claim such as overtime, days of leave.
>
> (8) That the total payment of KShs 233 116,60 demanded by the applicant in paragraph 5 of the statement is inaccurate, excessive, and contrary to his terms and conditions of service. The claims have not been verified as genuine nor is there a council resolution approving the same.
>
> (9) That the Council rejects the applicant's claim of KShs 79 986,60 pay in lieu of 213 days' leave which is in excess of the limit of 90 days allowed and KShs 47 130 *in lieu* of 6 months' notice. The applicant is entitled to 3 months' notice and not 6 as stated in paragraph 5 of the statement. The Council further rejects the applicant's claim of overtime amounting to KShs 106 000 dating as far back as 1977 and puts the applicant to strict proof of the authenticity of the claim for overtime."

As can be seen from statements submitted by both sides, there was a serious dispute on the facts which formed the central part of the respondent's claim. The Council did not dispute its obligation to pay the respondent his terminal benefits but it contended, quite properly in my judgment, that these claims had to be verified before payment. That is not an unreasonable attitude to adopt in a claim of this nature. Anyhow, the motion in due course came before the learned Judge who, after hearing submissions from counsel for each party, and without calling or hearing *viva voce* evidence on these hotly disputed facts, did on 9 July 1986, grant the orders sought, giving rise to this appeal. I have found it necessary to state the facts in some detail in order to indicate the serious conflict which existed when the matter came to trial.

The appellant filed a memorandum of appeal containing 12 grounds all together but for the purposes of my judgment I will refer only to grounds 2, 6, 7, 10 and 11 which are in the following terms.

> "(2) That the learned Judge failed to consider that the applicant could not file the notice of motion in his own name.
>
> (6) The learned Judge failed to pay any or any proper attention to the affidavit of Mr Kariuki, the acting Town Clerk.
>
> (7) The learned Judge erred in law in entering judgment for the respondent in the sum of KShs 77 370,90 in respect of overtime.
>
> (10) That the learned Judge erred in awarding KShs 62 262 to the respondent in respect of accumulated leave.
>
> (11) That the learned Judge erred in issuing *mandamus* against the appellant and ordering it to pay KShs 77 370,90."

On the appeal the appellant was represented by Mr FE *Wasuna* who argued all the grounds of appeal together. I will summarise his submissions without, I hope, reducing their flavour. Although Mr *Wasuna* did not argue ground 2 of the appeal, I find it absolutely necessary to reiterate the importance of following the correct procedure in bringing before the Court applications for orders of *mandamus*, prohibition and *certiorari* under Order LIII of the Civil Procedure Rules. Prerogative orders are issued in the name of the Republic and applications for such orders must be correctly intituled. In this case leave to apply having been granted, the notice of motion should have been intitled: "*Republic v Municipal Council of Kisumu* ex parte *John Dickens Nyawira Madowo*".

This is the form which was approved by the Court of Appeal in the case of *Farmers Bus Service and others v Transport Licensing Appeal Tribunal* [1959] EA 779 and as far I know has been used since.

In the course of his judgment the learned Judge referred to the case of *Kadamas and another v Municipality of Kisumu* civil appeal number 109 of 1984 and said:

> "Mr *Omondi* relied on the case of *Kadamas v Municipality of Kisumu* (civil appeal 110 of 1984 (*sic*) in which the Court of Appeal had held that everything a Municipality did was done as part of its public duty. Even paying salary to an employee, or terminal benefits to a former employee, would be the public duty of the Municipality and, as a public duty it would be enforceable by *mandamus*."

First, it should be pointed out that *Kadamas*'s case was civil appeal number 109 of 1984 and not number 110 of 1984 as cited by the learned Judge. Secondly, apart from this brief reference to the case, there is no other indication that the learned Judge himself read the case to discover for himself what the decision of the Court was or to satisfy himself that what Mr *Omondi* claimed to have been decided in that case was actually correct. I have grounds for suspecting that the learned Judge accepted counsel's submission at face value with, if I may say so, disastrous consequences. Having read the case myself, I share Mr *Wasuna*'s belief that the learned Judge may not have read the case although he made it the anchor of his judgment in this case.

In *Kadamas*'s case the applicants were the employees of the Municipality of Kisumu (the Council), the appellant in this case. They were dismissed by the Council and they reported a dispute to the Minister for Labour under the relevant provisions of the Trade Disputes Act of 1979). The Minister put into motion the conciliation procedure under section 6 of the Act on the basis

of which a recommendation was made for the reinstatement of the applicants by the Council. The Council accepted the Minister's decision and the appellants were duly reinstated. A little while later the Council embarked on a course of action calculated to revive the earlier dismissal which would in effect breach the settlement worked out by the negotiator appointed by the Minister for Labour. The applicants were employees of a class who could only be dismissed for cause and they had a right to know what there was against them. In these circumstances they applied for an order of prohibition against the Council to stop it from considering their dismissal without their being heard (*audi alteram partem*). Their application was rejected by the High Court and on appeal to the Court of Appeal it was held that, as a general rule, prohibition lies against a local authority to correct an excuse or absence of jurisdiction or to prevent a breach of the rules of natural justice whereas courts will in the exercise of their discretion refuse an order of *mandamus* when there is an alternative remedy. In the course of his judgment, Hancox JA referred to some passages in the case of *R v East Berkshire Health Authority ex parte Walsh* [1984] 3 WLR 818 and continued:

> "It follows from this passage, I think, that it was incumbent on the Council to satisfy the Judge *in limine* that the order of prohibition did not lie and that the question of whether the rights were of a public or private law nature were not the only criteria in this respect . . . Whether the dismissal of the appellants in this case was rightly reversed was of course challenged by the Finance Staff and General Purposes Committee. But were they entitled to challenge it and moreover to challenge it in the way that they did, namely by the lesser body reversing the greater? Furthermore that recommendation was bound to lead to justifiable fears (once they came to know about it) on the part of the appellants that no matter what they did or said, or what representations they made henceforth this would be to no avail. In other words they would be denied a further hearing on that which as far as they were concerned until 28 December 1983 had already been settled in their favour. These fears were stressed by Mr *Omondi* during the course of his submissions, and in my view he was right to do so.
>
> What greater infringement of a person's rights could there be than that which occurred here? The appellants, some thought wrongly, had had their dismissals set aside. A body within the Council, but subordinate to it, then purported to reaffirm their dismissals. That, to my mind, is a glaring infringement of a citizen's ordinary right to fair treatment. Whatever nature of the earlier rights which were affected by the termination of the applicants' services on the 3 June 1981, it seems to me that the rights which they had acquired by December 1983, namely to be reinstated on the terms that had been agreed must be capable of enforcement, in the sense of restraining the Council from acting on the resolution. No other course would, in my judgment, meet the justice of the case."

In his judgment in the same case Nyarangi JA said:

> "The foregoing notwithstanding, the decisive question is whether the Judge was right in deciding that prohibition does not here lie because only individual rights of appellants were affected rather than rights of a body of persons.
>
> Prohibition lies not only for excess of or absence of jurisdiction, but also for departure from the rules of natural justice. The High Court in deciding whether or not to grant an order of prohibition would not be fettered by the availability of an alternative remedy.
>
> . . . and, whereas courts will as a general rule and in exercise of their discretion refuse an order of mandamus when there is an alternative specific remedy which is equally convenient and beneficial, prohibition lies even when there is an alternative remedy. . .

> It is clear that the whole weight of authority supports the view that the applicants could apply for an order of prohibition to issue, that prohibition lies, and the Council has a duty to ensure fair play all round. The Council could not reasonably contend that the applicants should have waited for the final decision of the Council before moving the High Court to issue an order of prohibition. Also, it is irrelevant to the application that there were other remedies available to the applicants."

And Platt JA said for good measure:

> "Prohibition lies to correct an excess or absence of jurisdiction. Prohibition also lies for a departure from the rules of natural justice. The Council could hardly be seen to be acting fairly as will be explained presently."

From these passages it will become immediately apparent that the Court of Appeal did not decide as the learned Judge assumed or thought, that everything a local authority does is done as part of its public duty and that even paying salaries and terminal benefits is part of this public duty breach of which is enforceable by an order of *mandamus*. If the learned Judge had taken the trouble to read the case, it must have become obvious to him that this was a simple claim for terminal benefits under a contract of service and the remedy of *mandamus* was wholly inappropriate.

In this case the respondent was not challenging his dismissal; he was only seeking the recovery of his terminal benefits which was the subject of a sharp disagreement and required verification before payment could be made. There was no Council resolution authorising the respondent to accumulate leave beyond 90 days. There was evidence before him that the respondent as a chief officer of the appellant Council had on previous occasions placed such request before the Council on behalf of the officers in his own Department. The claim for overtime payment had not been properly approved by the head of Department, such requirement being obviously necessary to prevent abuse by officers making such claims. The respondent's claim being a claim for terminal benefits under a contract of service was an ordinary contractual claim which should have been brought by plaint. I do not see that there was any urgency in the matter of justifying an application for an order of *mandamus* even assuming for purposes of argument that such a remedy was available to him. I agree with Mr *Wasuna* that an order of *mandamus* should not be sought to determine rights but ought to be used for the enforcement of existing rights. If the learned Judge had taken time to consider the statement of Mr Samuel Kinyanjui Kariuki, the Acting Town Clerk, he would have seen that the appellant had taken a position directly at variance with the contentions made by the respondent in his statement filed in support of his application. In his statement, parts of which I have reproduced elsewhere in this judgment, Mr Kariuki stated, and this was not contradicted or challenged, that it was agreed with the respondent that a sum of KShs 107 838,75 would be paid to him in part payment and that the balance would be paid to him after verification; that the respondent was to be given a letter by the appellant addressed to the Ministry of Local Government which would enable him to receive his Superannuation Fund; that the respondent's terminal benefits had not been processed fully and the appellant was in the process of verifying the various claims made by the respondent; that the demand by the respondent to be paid a total of KShs 233 116,60 was excessive and contrary to the respondent's terms and conditions of service, that the respondent had not been authorised to accumulate leave in excess of 90 days; that under the terms and conditions of his engagement the respondent was

entitled only to three months' notice; and the appellant also rejected the respondent's claim for overtime. All these were important matters going to the root of the respondent's claim which the learned Judge should have gone into very carefully in order to determine in each case where the truth lay. They were not the kind of matters which could have been dealt with conveniently by conflicting evidence contained in the respective statements filed by the parties.

The respondent appeared in person and argued his own appeal. Although he is not a lawyer, he is obviously a well-educated man and he argued his case most ably. He contended that the decision of the High Court was correct and urged us to dismiss the appeal with costs.

For the reasons which I have stated, I have come to the conclusion that the learned Judge fell into error in allowing the matter to be processed by way of notice of motion under Order LIII and in consequence the appeal should be allowed and the judgment and order of the High Court set aside and the order dismissing the notice of motion with costs be substituted therefor. I would also give the appellant the costs of this appeal.

Masime JA: I have had the advantage of reading in draft the judgment of Kwach AJA which set out in detail the facts of the dispute between the parties in the High Court, the decision on which has given rise to this appeal. I have also perused the draft judgment of Gachuhi JA. I agree entirely with my learned brothers that this appeal should be allowed with costs.

I wish to add that it seems to me that the learned trial Judge recognised that the respondent's case was squarely based on contract: he correctly identified the respondent's heads of claim as:

(*a*) arrears of salary;

(*b*) entitlement to and amount of overtime;

(*c*) entitlement to and payment of accumulated leave;

(*d*) entitlement to and payment of salary in lieu of notice; and

(*e*) letter from the respondent to enable the appellant to claim his dues from the Local Government Superannuation Fund.

It was argued by the learned counsel for the respondent, however, that these claim, were already translated to rights so that it was a question of their enforcement. This argument, though erroneous, seems to have been accepted by the learned Judge on the basis of the equally erroneous submission by the respondent's counsel that this Court in civil appeal number 110 of 1984, *Okech and another v Municipality of Kisumu*, held that by performing its functions a municipality always does a public duty and these that can only sounding contract.

The claims made by the respondent in the instant case arose purely out of the contractual relationship between him and the appellant as employee and employer. Any litigation for securing or enforcing of such claims must therefore be procedurally correct.

In the circumstances the procedure of applying by way of the prerogative writ of *mandamus* to enforce his claim was not only cumbersome and inappropriate as the learned Judge recognised, but was entirely wrong. The respondent ought to have merely filed a plaint which would have enabled the Court to determine by evidence the issues of liability and proof of the amounts that the

respondent was entitled to under the separate heads of claim. It is for the above reason that I wholly concur in the judgment of my learned brothers and the order proposing to dismiss the appeal with costs.

For the appellant:
Wasuna

For the respondent:
Omondi

Mwangi v Republic
[1986–1989] 1 EA 382 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	20 January 1988
Case Number:	60/86
Before:	Nyarangi, Gachuhi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Criminal law – Handling stolen property – Whether running away when challenged is evidence of guilt – Whether accused rebutted presumption that coat unlawfully obtained – Sworn evidence as against unsworn evidence – Burden of proof beyond reasonable doubt – Section 322(2) – Penal Code (Chapter 63).

Editor's Summary

The appellant was convicted of the offence of handling stolen property contrary to section 322(2) of the Penal Code. He was sentenced to the then statutory minimum of seven years' imprisonment.

A robbery had occurred at Olkeri near Ngong on 6 September 1984 and cash, a motor vehicle and items of clothing, including two coats, stolen. Subsequently the appellant was seen wearing a coat which was noticed by a prosecution witness who knew it to belong to the complainant whom he alerted. The complainant challenged the appellant who ran away but was arrested by the complainant with the help of the public.

In his sworn evidence the appellant claimed that the coat had been given to him by the second accused. In his unsworn statement the second accused denied giving the appellant the coat.

The trial Magistrate found that the appellant, when challenged, first had alleged that he had been lent the coat by the second accused and later said he had exchanged it with him. He held that this, coupled with his conduct of running away raised a rebuttable presumption that he unlawfully obtained the coat. The first appeal to the High Court was dismissed. On second appeal:

Held – The appellant's decision to run away when challenged was not of itself evidence of guilt.

The Magistrate did not find that the appellant had rebutted the presumption that he unlawfully

obtained the coat and in the final analysis it was the appellant's sworn evidence against the unsworn statement of the second accused. The prosecution's case was therefore not proved beyond all reasonable doubt.

Appeal allowed.

No cases referred to in judgment

Judgment

Nyarangi, Gachuhi JJA and Masime AJA: The appellant was convicted of the offence of handling stolen property contrary to section 322(2) of the Penal Code and was sentenced to the minimum seven years' imprisonment. His appeal to the High Court was dismissed and he now appeals to this Court. In his petition of appeal he claims (*a*) that a second accused admitted in a cautionary statement (which was never produced into evidence) that he had given him the coat which is why that accused was charged; (*b*) that the trial court did not consider the appellant's sworn defence adequately.

The prosecution case was that a robbery had occurred at Olkeri near Ngong on 6 September 1984 and cash, items of clothing and a motor vehicle all valued at KShs 196 180 stolen. The appellant was on 17 October 1984 found wearing a coat and was noticed by PW5 who knew it to belong to PW1 and the complainant whom he alerted. PW1 challenged the appellant who began to run away and was arrested by PW1 with the assistance of the public.

In his sworn defence in court the appellant claimed that the coat had been given to him to shelter himself from rain the previous day when the appellant had gone to borrow an umbrella; he had gone to work with the coat the following day with a view to return it to the second accused. While he was at work in the city centre he was sent to buy spares and that is when PW1 challenged him about the coat. When arrested and taken to Ngong Police Station he volunteered to and pointed out the second accused as the owner of the coat and the second accused was arrested and charged. Another coat identified by PW1 as his was found in the house in Eastleigh neighbouring the second accused's house but despite search nothing was found in the appellant's house at Huruma Estate.

The second accused did not challenge any of the appellant's sworn evidence but in his own unsworn statement he denied giving the appellant the coat.

In his judgment the learned trial Magistrate held that because the appellant when challenged first alleged that he had been lent the coat by the second accused and later said he had exchanged it with the second accused and his conduct of running away when so challenged raised a rebuttable presumption that he unlawfully obtained the coat. The appellant's decision to run away is not of itself evidence of guilt. It is common knowledge that even innocent people will run away to safety when they are challenged in connection with theft. He did not find that the appellant rebutted that presumption either by his cross-examination of PW1 or his statement of the route he followed to get home by which he alleged he had reached the second accused's house. The appellant was of course not represented by counsel and not all people always take the shortest route home. We respectfully consider that in the final analysis it was the appellant's sworn word against the unsworn statement of the second accused and that the prosecution case was therefore not proved beyond all reasonable doubt. We resolve the doubt in favour of the appellant and consider that the conviction is unsafe. We quash the conviction, set aside the sentence and order that the appellant shall be set at liberty forthwith unless he is otherwise lawfully held.

For the appellant:
In person

For the respondent:
JA Metho

Mwaura v Republic
[1986–1989] 1 EA 384 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	6 November 1987
Case Number:	205/85
Before:	Nyarangi, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Alibi – Appellant seen at the scene, chased and caught – Whether his alibi defence displaced by the prosecution.

[2] Criminal law – Robbery with violence – Evidence – Identification – Appellant chased and caught at night as he tried to escape from the scene – Area illuminated by electric light – Appellant kept in the beam of the headlights of the chasing police car – Seen dropping an object – Whether circumstances favourable to positive identification.

[3] Guilty plea to a lesser charge by co-accused – Convicted and sentenced to a term of imprisonment – Recommendation by the Court that the case be referred to His Excellency the President under section 332(1) of the Criminal Procedure Code for clemency in favour of the appellant.

Editor's Summary

Peter Muthiga Mwaura, the appellant, was convicted by the Senior Resident Magistrate, Nairobi, on three counts of robbery with violence contrary to section 296(2) of the Penal Code and two counts of attempted robbery contrary to section 297(2) of the Penal Code and sentenced to death. His appeal to the High Court against both conviction and sentence was dismissed whereupon he filed a second appeal to the Court of Appeal.

The evidence as found by the trial and first appellate courts was that the appellant was a member of a gang of four robbers who attacked and robbed the complainant and his wife at about 8:00pm on 13 March 1984, after they had closed their fish and chips business along Moi Avenue, Nairobi. The area was brightly illuminated by electric light. The appellant was chased as he fled from the scene down a lane and caught by policemen on patrol and a civilian witness. In the course of the chase he was seen to drop an object. After his apprehension, the police returned with him to the point where he had dropped the object which turned out to be a pistol. The appellant's co-accused who had also been caught pleaded guilty to simple robbery and was sentenced to a term of imprisonment.

In his appeal to the Court of Appeal, it was contended on behalf of the appellant that he had not been positively identified as one of the robbers and further that his defence of alibi had not been displaced by the prosecution.

Held – As the appellant was pursued and caught in a well-lit area and remained in full view of his pursuers and did not at any time elude their vigilance, the circumstances of his identification were favourable and free from the possibility of error.

With regard to the defence of alibi, this was not available to the appellant, and had in fact been displaced by the prosecution, as the appellant had been seen at the scene, pursued as he fled and caught.

The appellant's co-accused having pleaded guilty to and convicted for a lesser charge and sentenced to a term of imprisonment, a request would be addressed to His Excellency the President to exercise clemency in favour of the appellant under section 332(1) of the Criminal Procedure Code.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Wangombe v Republic [1980] KLR 149

Judgment

Nyarangi, Platt, Gachuhi and Apaloo JJA: This second appeal is from a judgment of the High Court (Owuor and (Mrs) Schofield JJ) given on 10 September 1985 whereby the High Court dismissed the appeal of the appellant against convictions on three counts of robbery with violence contrary to section 296(2) of the Penal Code and two counts of attempted robbery contrary to section 297(2) of the Penal Code.

The material facts which are necessary in order to enable the points of law raised to be examined and determined are these. On 13 March 1984 at about 8:00pm the complainant and his wife were attacked by a gang of four men. The couple had closed their fish and chips shop on Moi Avenue, Nairobi. They were entering their car registration mark KRU 054 when one of the gang fired a shot using a pistol. One of the gangsters ordered the couple to sit while two others moved close to the complainant's wife and took her shopping bag. Yet another in the gang demanded the car keys and the complainant gave the keys to him. The man then opened the car and tried to start the car. The car could not start, whereupon the complainant was commanded to start his car. While he started his car, the complainant noticed the gang confront the driver of a Volkswagen and shoot its windscreen as the driver and his wife waited for the green traffic lights, at the roundabout close to the junction of Moi and Haile Sellasie Avenues and quite close to the fish and chips shop. A pistol was pointed at the driver. A bullet followed, causing the driver to become unconscious. Someone blew a whistle and night guards from the American Embassy buildings which are opposite the fish and chips shop joined and blew their whistles. All that caused the gangsters to flee. Two of them ran towards the nearby Kahawa House while the other two followed a lane leading to Tom Mboya Street. Before the gangsters fled, they took the wristwatch of the complainant and that of his wife.

As the complainant and his wife walked from their shop towards their car, his wife was suddenly hit with a sharp object on her left buttock. When she turned to look, she saw four men, two of whom were near her husband and the other two close to her watchmen. After the gangsters left, she felt pain, realised she

had been shot because the shorter of the two men near her had a pistol and she was rushed to the Aga Khan Hospital where a bullet was removed. The bullet head was handed to Senior Superintendent Shaw.

While he was on duty between Tom Mboya and Moi Avenues as a night guard on 13 March 1984, Kiplangat (PW10) heard gun shots at about 8:00pm from a shop behind where he was. He went to check and saw three men running towards him. On seeing him, the men changed direction. They were about 50 paces ahead of the witness. Policemen in a 99 car were chasing the men. PW10 followed one of the three. He noticed him drop something. The man was 15 paces away. PW10 decided to chase and hold the man before turning to the object which the man had dropped. PW10 arrested the man near Information House and he escorted him to where the 99 car was. The witness reported to the policemen that he had seen the man drop something. The policeman and PW10 proceeded to the spot, searched and PW10 found a pistol. We pause to observe that the man who was chased and held by PW10 and the policemen in a 99 car was the appellant. He was convicted on the facts summarised above and in this second appeal, which raises only issues of law, his grounds of appeal are as follows:

> "1. The learned Judges erred in law in making the finding that the appellant had been properly identified.
>
> 2. The learned Judges erred in law by totally disregarding the alibi defence put forward by the appellant.
>
> 3. The learned Judges erred in law in upholding the lower court's finding that the pistol marked (MFI 1) had been dropped by the appellant without fully and properly setting out the evidence in support thereof and considering the same fully as circumstances warranted.
>
> 4. The learned Judges erred in law in upholding the lower court's finding that Richard Kiplangat's evidence (PW10) that he saw the appellant drop a pistol (kindly see page 80 of the judgment) was credible without requiring such evidence to be sufficiently corroborated as is required by law.
>
> 5. The learned Judges erred in law in making the finding that the appellant was properly identified in a police identification parade notwithstanding the fact that the said identification parade was prejudicial to the accused wrongful and unlawful.
>
> 6. The learned Judges erred in law in upholding the lower court's finding that the prosecution evidence was wholly admissible whereas the same was riddled with grave discrepancies and contradictions and therefore legally inadmissible.
>
> 7. The learned Judges erred in law upholding the appellant's conviction and sentence whereas the same was not proved beyond reasonable doubt in the Lower Magistrate's Court as is required by law.
>
> 8. The learned Judges erred in law in making the finding that the prosecutions failure to join counts II and III namely the robbery of Mr Parekh's watch and the attempted robbery of his motor vehicle did not occasion any prejudice to the appellant."

It is complained by Mr *Gatuguta*, learned counsel for the appellant, that the identification parade was of no evidential value, it being easy for the appellant to be identified as he was the only one with a visible injury on the head. The more substantial issue which is made on behalf of the appellant is that identification at the scene is not positive because the incident lasted no more than three minutes, it was night-time, there was no description by the witnesses of the amount of light outside the fish and chips shop and that the complainant and his wife lay when they heard a shot and so could not tell who fired the shot. Grounds 1 and 5 were thereby covered.

Grounds 3 and 4 which on examination overlap were also argued together. Mr *Gatuguta* lamented that, neither PW4 nor PW10, both of whom claimed to have seen the appellant drop something while he was running away from the scene, picked up the object immediately. Counsel said that if indeed the appellant was carrying a pistol he would have attempted to fire so as to frighten those who were pursuing him. Further, the two policemen who were in the 99 car and who got very close to the appellant did not see the appellant drop anything. The question was posed, why were no fingerprint impressions taken and what real evidence is there that the appellant had a pistol? It was suggested that the firearm could have been planted. Mr *Gatuguta* pointed out that nothing was said about the wristwatches and the handbag. None of the witnesses who gave chase said the appellant dropped or threw away any of those items. And yet there was prosecution evidence that two of the gangsters took wristwatches and a white handbag. Mr *Gatuguta* referred to the appellant's statement to the trial court and submitted that the prosecution had not even attempted to dislodge the defence of alibi put forward by the appellant.

On behalf of the respondent Republic, Mr *Muchiri*, learned State Counsel made a number of points on the various matters urged on behalf of the appellant. In the forefront of the reply was the contention that there was adequate light at the scene and during the chase for safe identification of the appellant. There was, argued learned State Counsel, clear nexus of evidence to show an unbroken chain from the time the complainant and his wife were stopped and assailed and to the pursuit of the appellant. All that evidence points to the appellant and is proof of the robbery and attempted robbery while armed with a pistol. This is not a case of honest but mistaken identity. The prosecution disproved the alibi.

The whole question in this case turns on whether the appellant was positively identified at the scene and if he was pursued from the scene to the spot where he was arrested. The main attack by Mr *Gatuguta* was directed as it had to be, towards showing that the lower courts misdirected themselves by omitting to consider if there was the light for clear and positive identification. Mr *Gatuguta* remarked in the course of his submission that, had the appellant been represented by an advocate at the trial and had the trial court visited the scene, matters might well be different for the appellant today. According to the appellant, "street lights were on and security lights from the buildings" during the attack.

PW4, the guard who persuaded the appellant and caught him, said this about the lights: "At Sana Limited there are security lights, streets lights and security lights from the shops."

PW10 also testified that it was possible for him to see the man he caught, "using electric lights".

PW12, one of the policemen in the material 99 car which followed the thugs stated "the head lights were flushing on them and there were street-lights".

Of the evidence, the trial court held that:

> "The evidence of identification is quite clear and circumstances favouring identification were good. He pursued while head-lights of the police car were on, clearly illuminating . . ."

And the High Court had this to say:

> "The police officers did not lose sight of the arrested man and they followed him with their car head lights on him, from Etyang's car to where he was arrested . . . There is thus an unbroken chain from the complainant's car and from there to the arrest . . ."

We have gone into this at some length because of the very crucial issue of identification in this case. The trial and the first appellate courts considered the evidence on identification and were alive to the matter of the quality of the light by which the appellant was seen. Their conclusion squares well with the following passage in the case of *Wang'ombe v Republic* [1980] KLR 149 at 151I.

> "In this case guilt turned upon visual identification by one or more witnesses . . . a reference to the circumstances usually requires the Judge to deal with such important matters as the length of time the witnesses had for seeing who was doing what is alleged, the position from the accused and quality of the light."

Respectfully adopting those words, we proceed to conclude that there was no misdirection on the issue of identification.

With that out of the way, we turn to the issue of an alibi raised at the trial as a defence by the appellant. We dispose of the issue by simply saying that having been seen at the scene, pursued therefrom and caught, the appellant's defence of alibi is not available to him.

One other matter, that there was no evidence that the appellant had a pistol, was raised. Two prosecution witnesses, PW4 and PW10, said they saw the appellant drop something as they pursued him.

PW10 ran after the appellant "in lanes". The policemen were following in a car. It was therefore possible for PW10 to see what the appellant did before the policemen could. PW4 did not lose sight of the appellant and the thing was dropped about 20 metres from where he was arrested. The lower courts were entitled to believe the two witnesses and accept their testimony. That being the state of the evidence, it would have been pointless to take finger-print impressions of the pistol.

A further point is taken as to count 5. The argument advanced is that Shikuku (PW4) did not say he was robbed of a wristwatch and a coat and therefore that there is no evidence to support the charge. With respect, that submission is well founded. There is not in the evidence of PW4 mention of a wristwatch or coat. PW4 did not testify that the appellant robbed him of a wristwatch and a coat. The conviction on count 5 is quashed. We have asked ourselves whether we feel that the convictions are safe. We find no grounds, notwithstanding Mr *Gatuguta*'s submissions which were a model for brevity and cogency, for saying that the convictions on the four counts are unsafe.

The appeals against convictions are accordingly dismissed.

A matter which arose in the trial court and which requires some comment by this Court relates to the plea of guilty to lesser charges of the co-accused and the subsequent sentence of imprisonment of the convicted co-accused to five years' imprisonment, plus corporal punishment and compulsory police supervision for a period of five years.

The trial court thought the state accepted the plea of guilty out of magnanimity. The learned trial Magistrate added: "Otherwise from the statement of facts this was in actual fact a case of robbery with violence."

The High Court was critical of the decision of the trial court to accept a plea of guilty.

For our part we are concerned with the two verdicts which appear inconsistent with one another.

We respectfully request the presiding Judge (Owour (Mrs) J) to make an observation to the President under section 332(1) of the Criminal Procedure Code to the effect that the co-accused who pleaded guilty, albeit to lesser charges, received five years' imprisonment plus four strokes corporal punishment whereas the appellant was sentenced to death and that mercy should be extended to the appellant.

The Deputy Registrar of this Court shall draw the attention of Owour (Mrs) J to this judgment.

For the appellant:
JK Gatuguta

For the Republic:
M Muchiri, State Counsel

Mwithalii v M'Itobi
[1986–1989] 1 EA 389 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	19 May 1988
Case Number:	40/86
Before:	Platt, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Evidence – Whether opinion of handwriting expert in criminal proceedings is admissible in subsequent civil proceedings – Whether factual conditions of section complied with – Sections 34 and 84 – Evidence Act (Chapter 80).

Editor's Summary

The appellant was charged with the crime of threatening a breach of the peace by writing and distributing defamatory letters, which he denied. A document examiner gave oral evidence and expressed an opinion on the handwriting with the result that the appellant was convicted of the offence charged. He appealed and his conviction was quashed on a ground which had nothing to do with the authorship of the document. The complainant, respondent, instituted civil proceedings for defamation which hinged on the issue of who wrote the documents complained of. The respondent relied on the document examiner's evidence in the criminal proceedings, and the Judge held for the respondent on that basis, finding the appellant liable in damages, which he assessed at KShs 30 000.

The appellant contended that the document examiner's evidence was hearsay and inadmissible and therefore that there was no legal basis for the finding of liability.

Held – As the evidence of the document examiner was given in judicial proceedings between the

same parties, that evidence could be admitted under the liberal regime of section 34 of the Evidence Act (Chapter 80).

However, no facts were given in evidence on which it could be held that the factual conditions laid down by section 34 of the Evidence Act were met.

The evidence of the document examiner was hearsay and inadmissible to prove the authorship of the offensive documents and section 80 of the Act did not avail the respondent.

To allow the appeal *simpliciter* would be wrong when there might well be a serious libel of the respondent. The ends of justice would be met by the case being heard *de novo*.

Appeal allowed. Case remitted to the High Court.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Khemaney v Lachabai Murlidhar [1960] EA 1

Shas Bharmal v Kumari [1961] EA 679

Judgment

Platt, Gachuhi and Apaloo JJA: On 21 May 1987, we set aside the judgment in this case and remitted the record to the High Court for rehearing by a different Judge. We indicated that we would give our reasons later. This we now do.

The parties to this case live at Njia location in Meru District. The respondent was a businessman of some standing in the area and the appellant was a teacher. Both seem to have backed rival candidates in a local council election. The appellant's brother, popularly referred to as Stanley, was successful. The respondent's candidate lost and it seems the relationship between the parties was less than cordial.

On 16 December 1979, the respondent was invited as a guest of honour at a fundraising ceremony by the local Catholic Church. In the morning of that day, documents which made unflattering references to a person named as J Bariu Ngoroko were found posted along a number of public places at Njia. These posters were handwritten and there is little doubt that the person who wrote these posters published or caused them to be published.

The respondent's son and a number of local residents read the posters and thought they not only referred to the respondent, but were defamatory of him. The latter's reaction on learning of the posters was to make a complaint to the police who concluded that the writer of the posters had committed a criminal offence.

Although nobody saw the appellant write or publish these documents he became the immediate object of suspicion. When questioned by the police, the appellant denied the authorship of the posters and indeed disclaimed any knowledge of those documents. In order to determine the author of these documents, the police in the course of their investigation gave the appellant and two other persons a dictation and obtained their handwritings. They also collected a number of exercise books in the undisputed handwriting of the appellant. All these were forwarded to a document examiner.

The evidence suggests that the handwriting expert must have expressed a view incriminating the appellant. So, on the strength of his report, the appellant alone was charged with the offence of "threatening a breach of the peace by writing and distributing defamatory letters".

In view of the appellant's stated position, the charge could not be brought home to him unless it was established that he in truth wrote those documents and inferentially published them. So when put on his trial, the prosecution called as a witness the document examiner, a man by the name of HW Wamalwa. He gave oral evidence before the Court and expressed his opinion on a number of handwritings he examined. In the result, the appellant was on 17 May 1980 convicted of the offence charged. This conviction was, on 25 March 1981, quashed by the High Court on appeal on a ground which had nothing to do with the authorship of the document. That court held that the facts proved did not support the charge.

But such was the depth of feeling that, before the High Court verdict was known, the respondent brought a plaint against the appellant in which he sought damages for defamation. The basis of the action was that the appellant "wrote and published various documents to the members of the public" which the respondent claimed libelled him. The appellant for his part, "denies publishing any document or documents making any allegation of the plaintiff or at all whether defamatory or otherwise".

The appellant denied that those documents were defamatory. He also raised a number of pleading points in his statement of defence. But the main issue joined on the pleadings, and on which the success or failure of the suit hinged, was who wrote and published the documents?

There can be little doubt that the onus of establishing this lay squarely on the respondent. At the trial before the High Court, the document examiner did not give evidence and no other oral evidence was led on the issue. The evidence of the proceedings in the criminal case was produced before the Court. Apparently from a perusal of them the learned trial Judge held that:

> "The posters were produced in a criminal case in which the defendant was the accused. The document examiner who examined and compared the defendant's handwriting and the posters was of the opinion that it was the defendant who wrote the posters. I am satisfied that these were the same posters, which were examined and compared by the document examiner . . ."

The Judge then concluded on this issue that: "I am satisfied that it was the defendant who published these posters, which are the subject of this suit."

The Court considered that these posters referred to the respondent and that they were defamatory of him. He accordingly held the appellant liable in damages to the respondent and assessed this at KShs 30 000 with costs and interest.

The appellant contested that judgment before this Court on no fewer than ten grounds of appeal. Argument was addressed to us on almost all these grounds, some of which challenged the holding that the posters were defamatory or that they referred to the respondent. It was also contended that the damages awarded were excessive. In view of the order we made, these matters will again be debated in the High Court and on that account, we refrain from making any pronouncement on the validity or otherwise of those contentions.

But the one ground which we thought was substantial, and which decided us to make the order of rehearing, was the first ground which, in substance,

complained that the Judge was in error when he held that the documents in question "were written and published by the defendant". It was contended that the documents examiner's evidence as to the opinion he formed of the disputed posters was inadmissible in evidence and that as that was the basis of the Judge's holding that it was the appellant who wrote and published the documents, that holding was erroneous.

Although counsel for the appellant did not so put it, the opinion evidence of the document examiner who was not called as a witness before the Court as to the author of the disputed documents was hearsay, and was inadmissible in evidence on that ground. That being so, there was no legal evidence before the Court on which it could properly hold that the appellant "wrote and published" the allegedly defamatory documents.

As the evidence of the document examiner was given in judicial proceedings between the same parties, that evidence could be admitted under the liberal regime of section 34 of the Evidence Act (Chapter 80) if the conditions laid down by that section were fulfilled. No facts were given in evidence on which it can be held that the factual conditions laid down by that section were met. It did not even appear that the learned Judge was aware that the former testimony of the document examiner was inadmissible in proof of the authorship of the offensive documents.

Counsel for the respondent sought to get round the exclusionary hearsay rule by relying on section 84 of the Evidence Act. It is not necessary to read that section in full. It should suffice to say that that part of the Act merely mandated the making of certain presumptions. In the context of this case, as the proceedings of the Magistrate's Court were produced in evidence and were duly signed by the Magistrate, the Court is obliged to presume that (1) the proceedings were genuine; and (2) that the evidence of the document examiner was duly taken. That section did not, unlike section 34, seek to modify the hearsay rule. We thought, therefore, that section 84 of the Evidence Act in no way assisted the respondent.

In our opinion, proof by legally admissible evidence that the offending documents were written and published by the appellant was essential to the success of the action. As this was not forthcoming, we thought the judgment condemning him to pay damages could not stand. It may well be that the appellant in truth wrote and published the documents in question and that the legal proof of this would have been offered, had not the Court and counsel for the respondent slipped on the nature and quality of the evidence required.

In the circumstances, we felt allowance of the appeal *simpliciter* may be construed as an endorsement by this Court of what may well be a serious libel of the respondent. That, in our judgment, would be wrong. We therefore felt, that subject to the respondent paying the costs thrown away, the ends of justice would be met if the case is heard afresh (*Khemaney v Lachaba Murlidhar* [1960] EA l; *Shah Bharmal v Kumari* [1961] EA 679).

We accordingly so order.

For the appellant:
MM Kionga

For the respondent:
B Njiru

Nairobi Home Economics Training Centre v African Heritage Ltd

[1986–1989] 1 EA 393 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	28 March 1988
Case Number:	125/85
Before:	Platt AJA
Sourced by:	LawAfrica

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[1] Civil procedure – Court of Appeal Rules 3 and 4 – Extension of time – Ruling – Running of time for certificate of delay — Rule 81 – Court of Appeal Rules – Certificate of delay – Error on face – Whether challengeable – Rule 4 – Court of Appeal Rules – Exercise of court's discretion – Whether liberal or rigid.

Editor's Summary

This was an application for an extension of time to file an appeal and considered rules 3, 4, 74 and 81 of the Court of Appeal Rules of 1972 as amended.

The computation of the running of time for the purpose of a certificate of delay was considered in light of an intervening Christmas break and in light of circumstances sworn to by affidavit where proceedings and judgment were on different occasions sent to the applicant's advocates incomplete. The certificate of delay was furthermore incorrect on the face of it and the possibility of either side challenging the certificate was put forward. The exercise of the Court's discretion under rule 4 whether to apply rigid control or liberal exercise was considered.

Held – Explanation by applicant's advocates for the delay in lodging the record of appeal was accepted.

Certificate of delay was correctly issued and should not be sent back to the Registrar for clarification.

Record of appeal is lodged within time in any event.

Application allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Patel v EA Cargo Handling Services Ltd [1974] EA 75

United Kingdom

Gatti v Shoosmith [1939] 3 All ER 916

Palata Investments Ltd v Burt Sinfield [1985] 1 WLR 942

Ruling

Platt AJA: By motion on notice, the applicant, Nairobi Home Economics Training Centre, seeks an extension of time for the filing of an appeal. The respondent, African Heritage Limited, opposes the motion. Mrs *Khaminwa* represented the applicant and Mr *Fraser* represented the respondent.

The formal facts are such that, if they are reliable, Mr *Fraser* conceded that he would not oppose the motion. But he challenges the certificate of delay and that raises the interesting issue in the application.

Mr Gathuku explained in his affidavit supporting the motion, dated 9 December 1985, that on 14 June 1984 the High Court gave its ruling on an application for summary judgment, in which judgment was given for the then plaintiff African Heritage Limited, as prayed in the plaint. On 14 June 1984, Mr Gathuku filed his notice of appeal in compliance with rule 74 of the Court of Appeal Rules. Either on that day or 21 June 1984 Mr Gathuku applied for copies of the proceedings and ruling for the purposes of the appeal. It is not disputed that both the notice of appeal and the request for copies of proceedings and ruling were served on the advocates of the respondent in time, in compliance with the Rules. On this basis, the record of appeal should have been lodged within 60 days of 14 June 1984. It was not lodged until 14 February 1986.

That came about because the Registrar gave his certificate that there had been delay in preparing and delivering the certified copy of ruling and uncertified copy of proceedings from 14 June 1984 to 5 December 1985. That would mean that the 60-day period began to run from 5 December 1985 until 4 February 1986. But then rule 3 of the Court of Appeal Rules allows the period from 21 December to 6 January to be deducted for the Christmas vacation. Therefore if the record was lodged on 14 February 1986 it would be lodged within time, because the period of delay could be excluded under rules 81 and 3 of the Court of Appeal Rules. If these were the only matters at stake, then Mr *Fraser* says he would complain that the application was quite unnecessary. Mrs *Khaminwa* should just have lodged her appeal, supported by the certificate of delay.

But this is not all that is at stake. Somehow Mr Okwach, representing the respondent earlier on in these proceedings, obtained all the proceedings he needed on 10 September 1985. He personally checked the papers and found that they were complete with the proceedings and ruling. Everything that was required for filing a record of appeal was there. Mr Okwach did not, it appears, see what papers Mrs *Khaminwa* received. But on the basis of what Mr Okwach had received, Mr *Fraser* made the point that on reading rule 81 carefully, it will be seen that the time to be excluded is the time it took the Court to prepare the papers, not the time it took *Khaminwa* and *Khaminwa* to pick them up. That of course is correct, if it took *Khaminwa* and *Khaminwa* from 9 September 1985 to 5 December 1985 to take delivery of the papers. As I shall relate presently Mrs *Khaminwa* put forward an answer to this challenge on the certificate.

Mr *Fraser* then developed several arguments. Looking at the certificate it was in error on its face. The record of appeal showed that there had been delivered to *Khaminwa* and *Khaminwa* an uncertified copy of the ruling and a certified copy of the proceedings, not as the certificate said a certified copy of the ruling

and uncertified copy of proceedings. That illustrated that something had gone wrong in preparing the certificate. In such cases, taking into account also Mr Okwach's experience, there ought to be a method of challenging the Registrar's certificate incorporated into the Rules. There was no such method laid down in rule 81 and that was unfair. On this aspect of rule 81, I would have no objection, if rule 81 was amended in this way, but that is not my province at present. Moreover, it seems to me that this Court always has its inherent powers and could correct mistakes under the slip rule, or could send the certificate back for clarification. What this Court cannot do, is simply to ignore the certificate. This Court is bound to accept the certificate as *prima facie* correct, subject to amendment by the Registrar and small corrections of obvious slips.

It was debated whether in this case the certificate should be sent back to the Registrar with liberty to the parties to appear and represent their point of view. Mrs *Khaminwa* had no objection in principle to the certificate being sent back, but her case was that this would not provide the parties with any material benefit. She relied on Mr Gathuku's explanation of the steps that had taken place in her firm. If they were accepted, and they were not directly challenged by first-hand knowledge by Mr Okwach, there would be no way to challenge the certificate. Mr *Fraser* it seemed, wanted the Registrar's agreement that what Mr Gathuku said had occurred, had in fact taken place.

Mr Gathuku deponed that on 17 April 1985, he had received a notification that the proceedings applied for were ready. The notification was dated 10 April 1985. The fees was paid on 17 April and the proceedings were received by him. The copy of the record was incomplete and accordingly he wrote to the Deputy Registrar on 28 May 1985 pointing out that the record was incomplete. The letter attached to the affidavit shows that the proceedings crucial to the decision on 14 June 1984 had been omitted. There is no reason to disbelieve Mr Gathuku on this point. Mr Okwach noted that he had seen correspondence between the Registrar and *Khaminwa* and *Khaminwa*, which further supports Mr Gathuku. Then on 8 November 1985 Mrs Mabel Keya, a clerk, received a further notification from the Court dated 9 September 1985. The 8 November 1985 was the same date that the advocates for the respondent filed an application to discharge the orders staying execution, on the ground that the application had delayed the prosecution of the appeal. The fees were however paid and Mrs Mabel Keya, went to the registry to collect the proceedings. But on 28 November 1985 only the ruling was received and not the arguments of counsel. On 4 December 1985 Mr Gathuku personally went to the registry to have the complete record of the proceedings certified, and at 4:30pm on that day the full proceedings were delivered. On that basis the certificate of delay would be correct.

Mrs Mabel Keya's affidavit of 25 November 1985 as far as it goes supports Mr Gathuku's contention that notice was received on 8 November 1985.

Some further support may be seen from the nature of the notices of 9 September 1985. One has the fee of KShs 30 and the other the fee of KShs 54. One was later altered before delivery.

Having read all the affidavits of Mr Okwach it does not appear to me that there is any real challenge on the facts. It seems that *Khaminwa* and *Khaminwa* had explained in other proceedings during the period of delay what had occurred. The difficulties of April were mentioned and also the receipt of the notification in November 1985.

In all the circumstances, I do not see any ground upon which the statements of fact by Mr Gathuku should be or could be challenged. In that case, there is no reason why the Registrar should not have correctly certified the period of delay, even if the type of document is wrongly described. It follows that this is not a case where this Court should send back the certificate for clarification, as the *prima facie* correctness of the certificate is supported by Mr Gathuku's affidavit, and the general situation. If that is so then the application must succeed.

In answer to Mr *Fraser*'s attack on the mode of exercising the discretion provided by rule 4 of the Rules, it is my opinion that applications under Order 9A or 9B of the Civil Procedure Rules to set aside an *ex parte* judgment, do not form as close a precedent for the exercise of the discretion to extend time as *Gatti v Shoosmith* [1939] 3 All ER 916 and the cases which follow. The first consideration in the reason for the delay, and if the delay is short and the explanation is acceptable, a party ought not to lose his constitutional right of appeal. The merits of the appeal are only crucial in special cases, since generally there is a reasonable question to be decided on an appeal. The provisions to appeal have been made statutorily. Consequently, I do not think that *Patel v EA Cargo Handling Services Ltd* [1974] EA 75 is of any help. The necessary control rests on the discretion of this Court, as *Gatti v Shoosmith* indicates. But Mr *Fraser* will be interested in the debate in *Palata Investments Ltd v Burt and Sir field Ltd* [1985] 1 WLR 942; Times 28 May 1985, where the continual struggle between rigid control and a more liberal exercise of discretion was once again fought out; of course, always in terms of serving the public interest.

The application is allowed, the record of appeal lodged on 14 February 1986 shall be deemed to be lodged within time. The supplementary record may be lodged as soon as possible, and the appeal shall proceed for hearing.

The costs of this application may perhaps need submissions from both sides, because of Mr *Fraser*'s point that there is no need for an application to extend time if a certificate of delay has been obtained. I should therefore leave that decision open, while informing the parties of their right to refer this decision to the Full Bench.

For the applicant:
Khaminwa

For the respondent:
K Fraser

Nandwa v Kenya Kazi Ltd
[1986–1989] 1 EA 396 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	10 March 1988
Case Number:	91/87
Before:	Platt, Gachuhi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Master and servant – Duty of employer to provide safe system of working – Vehicle driven by

employee involved in accident due to mechanical failure.

[2] Negligence – Motor accident resulting from mechanical failure – Whether onus on owner to show he had taken reasonable care to maintain vehicle in good working order and condition.

Editor's Summary

The plaintiff (appellant) was injured in a motor accident whilst driving his employer's vehicle in the course of his employment. He claimed that the accident occurred because of the vehicle's faulty steering and brakes and that his employer (the defendant/respondent) had failed to maintain the vehicle in good working order and condition and to take proper precautions for his safety.

In his evidence the plaintiff stated that he was required to drive the vehicle during the afternoon of the day of the accident, that about ten minutes before the accident he remarked to his front seat passenger that there was trouble with the steering and that when he was about to overtake a vehicle at a moderate speed, the steering jammed, the brakes failed and he lost control of the vehicle.

The defendant called the front seat passenger and its office administrator as witnesses. The former testified that the plaintiff had, before the accident, complained about the faulty steering and that he was driving the vehicle at a moderate speed at the time of the accident. The latter stated that the defendant's practice was to carry out an examination of all its vehicles every morning and to make a report on any defects found, that the vehicle in question had been driven that morning by another employee and that he (the office administrator) had received no complaints about the vehicle's condition from that employee. This other employee however was not called as a witness and there was evidence on the record that no mechanical examination of the vehicle was carried out after the accident.

The trial Judge dismissed the plaintiff's claim on the basis that the plaintiff was responsible for the accident as he had failed to report the defects to the defendant and, in any event, was not obliged to drive the vehicle if he knew that it was defective.

The plaintiff appealed.

Held – The trial Judge had misdirected himself in holding that the plaintiff knew of the defects as he had only driven that vehicle during the afternoon after it had previously been driven by another employee.

The plaintiff only became aware of the defects whilst driving the vehicle and his evidence that he then complained of the faulty steering was corroborated by one of the defendant's witnesses.

In the circumstances of this case, the plaintiff acted reasonably in continuing to drive the vehicle after becoming aware of the faulty steering.

The defence as a whole established a case of mechanical failure requiring the defendant to establish that it had taken all reasonable care to keep its vehicle in good order and condition and to provide a safe system of working.

The defendant had failed to discharge that burden.

Per Gachuhi J – Res ipsa loquitur, being a rule of evidence, does not need to be pleaded.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

United Kingdom

Barkway v South Wales Transport Co Ltd [1950] 1 All ER 392

Henderson v Jenkins and Sons [1970] AC 282

Hutchins v Maunder [1920] 37 TLR 72

Judgment

Gachuhi JA: The plaintiff filed a suit against his employer claiming that the employer was negligent in failing to mechanically maintain the vehicle before allowing the plaintiff to drive it on his normal duties. By the agreement of the parties, the learned Judge was required to determine the liability, the quantum having been agreed. After the trial, the learned Judge dismissed the plaintiff's claim, hence this appeal.

At the material time, the plaintiff was employed as a driver. He took the vehicle in the evening. While on the way to where he was going, a vehicle overtook them. He had another employee in the front passenger seat. The plaintiff told his companion that the motor vehicle's steering was not good. Ten minutes or so later, the driver was preparing to overtake the same vehicle which had overtaken them. He swerved to the right but the steering became loose and the brakes failed. The vehicle landed in the ditch on the right even before reaching the vehicle ahead of him. The plaintiff was taken to hospital leaving the vehicle in the ditch. He was hospitalised for a month.

The plaintiff gave evidence that the accident occurred a few minutes after realising the steering was not proper. He was driving at the moderate speed of 40–50 kph. There was no motor vehicle coming from the opposite direction when he was preparing to overtake and when the accident occurred. While in hospital, he was informed by his workmates that the employer tried to repair the vehicle before taking it for inspection by the police but it was all in vain. This is a hearsay statement, but the learned Judge relied on it as it appears, later.

The defence had two witnesses, the companion in the vehicle and an administrator. The driver's companion admitted that before the accident the plaintiff complained that the steering was bad. This was about ten minutes before the accident. He also admitted that at the time of the accident the speed was moderate. The vehicle ahead did not stop after the accident. Though he left the vehicle at the scene of the accident, he found it at their premises in the morning. As far as he was aware, the vehicle was never taken for inspection by the police.

There is evidence on record that vehicles are inspected in the morning or at any other time when need arose. There is also evidence that the vehicle was being driven in the morning by an unknown driver before the plaintiff took it in the evening of that day. If there was anything wrong before the plaintiff took it over, it was only the other driver who could have reported it. The driver never gave evidence but amazingly the defendant does not know who that driver was.

The administrator gave evidence that the accident was not reported to the police and the vehicle was not inspected. The vehicle was grounded seven months later for lack of spares.

The learned trial Judge placed a heavy burden on the plaintiff to prove negligence. Some of the information were in the hands of the defendant and the plaintiff could not get them. The learned Judge relied on the inspection which the plaintiff had stated as having been informed by his co-workers. As I said before, this was hearsay evidence. The administrator Geoffrey Mbuni Rua DW2 said that the accident was not reported to the police and the vehicle was not inspected. If there was no inspection, I wonder how the plaintiff could have invented one. The defendant was requested to produce the vehicle maintenance book but instead they produced the movement book. It is true that drivers were expected to report any defects, but in this case the plaintiff noticed the defects ten minutes or so before the accident. What could he have done in the circumstances? Was he expected to stop the car and go to the workshop to report? The prudent driver would, if the journey was long, break and take the vehicle back to the garage. If the journey is short, he would be expected to complete it and then take the vehicle to the garage. In this case, the plaintiff did what a normal person would have done, by letting his companion know of the state of the vehicle and then drove it at a moderate speed. The defence witnesses in a way corroborated the plaintiff's evidence to the extent that no negligence attached to the plaintiff in any way.

Mr *Oyatsi* relied on the finding of the trial Judge. Those finding were already displaced by the evidence of the defence witnesses. These witnesses having supported the plaintiff, the negligence has to be found in the defendant for allowing the driver to drive a defective motor vehicle on a public road. In *Hutchins v Maunder* [1920] 37 TLR 72 it was held:

> "A motor vehicle which has its steering gear, by reason of wear, in imperfect condition that the driver is liable to lose control of the steering, is a thing which on a highway is necessarily dangerous to persons using the highway, and cause it to be driven on a highway amounts to negligence even in the absence of knowledge of the defect."

Mr *Oyatsi* complained that the plaintiff did not plead *res ipsa loquitur*. Evidence is not to be pleaded. As was held in *Barkway v South Wales Transport Co Ltd* [1950] 1 All ER 392 at 393B:

> "The application of the doctrine of *res ipsa loquitur*, which was no more than a rule of evidence affecting onus of proof of which the essence was that an event which, in the ordinary course of things, was more likely than not to have been caused by negligence was by itself evidence of negligence, depended on the absence of explanation of an accident, but, although it was the duty of the appellants to give an adequate explanation, if the facts were sufficiently known the question reached to be one where the facts spoke for themselves, and the solution must be found by determining whether or not on the established facts negligence was to be inferred."

In any case, the owner of the motor vehicle will be found negligent where the defective vehicle is found on the road. The defendant will have to displace the allegations and all the facts proved. In *Henderson v Henry E Jenkins and Sons* [1970] AC 232 at 301D Lord Pearson stated:

> "In an action for negligence the plaintiff must allege, and has the burden of proving, that the accident was caused by negligence on the part of the defendants. That is the issue throughout the trial, and in giving judgment at the end of the trial the Judge has

> to decide whether he is satisfied on a balance of probabilities that the accident was caused by negligence on the part of the defendants, and if he is not satisfied the plaintiff's action fails. The formal burden of proof does not shift. But if in the course of the trial there is proved a set of facts which raises a *prima facie* inference that the accident was caused by negligence on the part of the defendants, the issue will be decided in the plaintiff's favour unless the defendants by their evidence provide some answer which is adequate to displace the *prima facie* inference. In this situation there is said to be an evidential burden of proof resting on the defendants . . ."

And at 301H Lord Pearson made a finding that:

> "From these facts it seems to me clear, as a *prima facie* inference, that the accident must have been due to default of the defendants in respect of inspection or maintenance or both. Unless they had a satisfactory answer, sufficient to displace the inference, they should have been held liable."

Though there are contradictions in the evidence of the plaintiff, there is no contradiction of what happened on the material day. The plaintiff did not have control of the vehicle for the whole day. He took it for the evening shift. The previous driver who had the car since the morning is unknown and as such did not give evidence. The evidence of the plaintiff has been corroborated by the two defence witnesses. The defendant has not displaced the proved facts and so the defendant should be held responsible in negligence.

Mr *Oyatsi* had in his defence and in submission that the appellant was negligent in overtaking the other vehicle. I cannot see any negligence in overtaking another vehicle. It cannot be said that there should be no overtaking so long as it is safe to do so. In the present case there were no vehicles from the opposite direction. What sort of negligence could there be in overtaking? There is no evidence to support contributory negligence either. I would allow this appeal and set aside the judgment of the High Court in dismissing the plaintiff's claim. I would substitute therefor judgment for the plaintiff that the defendant is entirely held negligent for allowing a defective motor vehicle to be used on the road that ended in an accident whereby the plaintiff was injured. I would award to the appellant the costs in this appeal and the costs in the High Court. The taxed cost to have interest from the date of taxation to the day of payment in full at court rates.

We have been informed that damages have been agreed. This will carry interest from the date of judgment to the date of payment in full at court rates.

Platt JA: I agree with the conclusion reached by Gachuhi JA.

The salient facts are that on the day in question, 4 April 1985, the plaintiff (who now appeals to this Court) was involved in a motor vehicle accident, when he was driving his employer's vehicle in the course of his employment. The accident occurred at 5:00pm. Whether or not the plaintiff had driven that vehicle before, a matter which was disputed, the vital question concerned the condition of the vehicle on the afternoon of 4 April 1985, when the plaintiff drove it. It had been used that morning on duty by some other driver. It is not known who that was, and consequently it is not known in what condition the vehicle was when the plaintiff started to drive it. It was the plaintiff's case that when he started to drive the vehicle, he found the gears assembled in a strange way, and the steering and brakes defective. About ten minutes before the accident he remarked to his companion that there was trouble with the steering. Elias Oluoch (DW1) described the plaintiff as driving at a moderate speed, having complained that the steering was not good. That was corroborative

evidence that the plaintiff found the steering faulty. The case pleaded was that the defendant's employer had failed to maintain the said motor vehicle in good working order or condition. The plaintiff also claimed that the defendant permitted the plaintiff to drive a defective motor vehicle. As "permitting" involves an element of knowledge, that may not have been made out. The defendant had "used" the vehicle certainly. If the defendant had failed to maintain the said motor vehicle, in that sense the defendant had failed to take precautions for the safety of the plaintiff and had exposed him to risk.

On the evidence a *prima facie* case of mechanical failure had been set up, because that is what the plaintiff said was the situation before the accident occurred. He was in hospital after the accident. He was not in a position to get the vehicle examined. Indeed there was no examination. He relied on his experience at the accident, and that was the best evidence he could provide.

It was not evidence of the strongest nature as the learned Judge pointed out. But it was supported by a defence witness, as to what the plaintiff said. Another defence witness denied there had been any mechanical failure. But there had been no examination of the vehicle before or after the accident. This witness said that every vehicle was examined every morning, and no report had been received of any defects. That was all very well, but the plaintiff had not driven the vehicle that morning. The other driver had not apparently reported any problem. Whether that driver was at fault will never be known because he was not called as a witness. Indeed it may be that the defendant was let down by that other driver.

The result was that the plaintiff made out a case of mechanical failure which was not met by the defence. It was the duty of the defendant company to keep its vehicle in good mechanical repair under the Road Traffic Act. It was also under a duty of care to the plaintiff to provide a safe system of working and not to expose him to risk. The defendant may have had a system of inspection of vehicles, but it did not cover the eventuality in this case. Consequently, the defendant was liable to the plaintiff. The latter was not driving in any sense negligently. The manoeuvre he undertook of overtaking a vehicle without on-coming traffic was a normal procedure. It is difficult to tell whether the plaintiff should have abandoned the vehicle. It appears that the plaintiff thought that he could manage it. But then he found he could not. It seems that the plaintiff acted reasonably. This case is governed as Gachuhi JA has pointed out by *Hutchins v Maunder* [1920] 37 TLR 72 and *Henderson v Henry E Jenkins and Sons* [1970] AC 282.

A final word about the doctrine of *res ipsa loquitur*. It was not applicable to this case. The plaintiff contended that the vehicle was not in good mechanical repair. There was direct evidence as to the cause of the accident. Consequently, there was no circumstance which could not be fully explained, yet the facts provided spoke for themselves as a *prima facie* matter of negligence. Had the defendant sued the plaintiff, the defendant could have operated the doctrine, because the vehicle should not have entered the ditch.

I agree with the orders proposed by Gachuhi JA and as Masime AJA also agrees, it is so ordered.

Masime AJA: The appellant in this appeal was employed as a driver by the respondent, a security company. On 4 April 1985 at about 5:15pm the appellant reported for his work of delivering guard dogs to various places where the

respondent had guard duties. The appellant drove the respondent's Colt motor vehicle registration number KQU 170 from Mombasa Island to the North Coast somewhere in the Bamburi area. The appellant who was accompanied by another employee (DW1 Elias Oluoch) of the respondent noticed that the steering wheel of the vehicle was defective and so told his colleague (DW1). About ten metres farther along Kiembeni road, while the appellant drove the vehicle at the moderate speed of 40-50 kph and when circumstances and condition of the road reasonably permitted it, the appellant was in the process of overtaking another vehicle when the steering jammed and he lost control, the brakes failed and the vehicle went into a ditch. As a result the appellant was trapped in the vehicle and broke his arm.

By his plaint filed in court on 3 February 1986 the appellant alleged that this accident was caused by the negligence of the respondent in that it failed to take all reasonable precautions to ensure that the appellant had safe conditions of work by permitting him to drive a defective motor vehicle.

The particulars of negligence contained in the plaint were denied by the written statement of defence and the suit went to trial on the issue of liability as the learned counsel agreed on quantum of damages.

The appellant alone gave evidence in support of his case while two witnesses testified for the respondent. The appellant's evidence was that he reported for work at 5:00pm and took over a vehicle that had earlier been used by another driver. He found the gears were interfered with; a few minutes before the accident he complained about the steering to DW1; police came to the scene and a passing motorist took him to hospital. The motor vehicle was not, thereafter, brought to a serviceable condition and six months later in October 1985 was put out of use altogether.

On the evidence before the Court the learned trial Judge dismissed the appellant's case with costs. The learned Judge found that the appellant was responsible for the accident as he had failed to report the defects on the vehicle to the respondent and since the plaintiff was not obliged to drive the car if he knew it to be defective. In this last finding the Judge relied on sections 55 and 58 of the Traffic Act. The Court also found against the appellant because of his failure to produce evidence of the defects by a police inspection report. It is against these findings and the decision that this appeal is brought.

With the greatest respect the learned Judge misdirected himself on the evidence before him and hence made erroneous findings. The appellant's pleadings and evidence established negligence and it was hence upon the defendant to displace that negligence. There was no basis for the finding that the appellant knew of the defects as he only took charge of the vehicle at 5:00pm after it had previously been driven by another driver, who was not called as a witness. See the authorities set out in the judgment of my Lord, Gachuhi JA. In the result I agree with my Lords (Platt and Gachuhi) that this appeal should be allowed and that the order of the learned trial Judge dismissing the appellant's plaint with costs should be set aside and substituted with an order giving judgment to the appellant as prayed in the plaint with an order for costs both in this Court and the Court below.

For the appellant:
JV Juma

For the respondent:
D Oyatsi

National Bank of Commerce v Parma Shoe Company

[1986–1989] 1 EA 403 (CAT)

Division:	Court of Appeal of Tanzania at Mwanza
Date of judgment:	29 November 1985
Case Number:	11/88
Before:	Makame, Kisanga and Omar JJA
Sourced by:	LawAfrica

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[1] Banking law – Duties of a collecting bank – Whether cheque getting lost in the post amounts to negligence by the collecting bank – Effect of crediting the customer's account before the cheque is cleared.

Editor's Summary

The respondent sent a cheque of TShs 34 500 to its bank account and the bank credited the account with the full amount. However, after some 461 days the bank notified the respondent that the cheque was lost while in transit in the post office and requested it to ask the drawer to issue another cheque.

However, the respondent could not trace the drawer and the appellant bank proceeded to debit its account.

The respondent subsequently sued and the Court found the bank guilty of negligence in failing to notify the respondent promptly of the loss of the cheque.

The bank thereafter appealed.

Held – The bank did not establish that the cheque was lost through the post office as it had alleged and, in the absence of any other explanation, the bank was rightly found to have lost the cheque through negligence.

Where a customer deposits a country cheque with a collecting bank and the cheque gets lost, the bank owes a duty of care to the customer to inform him promptly of such loss so that the customer may take appropriate steps that might be open to him to avert any or further consequences resulting from such loss. That duty exists whether the cheque was lost by the bank itself or by a third party having possession thereof on behalf of the bank (*Anns v Morton London Borough Council* [1978] AC 728; *Agbonmagbe Bank Ltd v CFAO* [1966] 1 ALB Comm 238 applied).

The imposition of such a duty will not throw the banking system into disorder or prove socially hazardous but will serve to affirm and enhance confidence of the public in the banking system in as much as it seeks to ensure a greater degree of security for the customer's money.

The period of 461 days was an inordinate delay in reporting the loss of the cheque.

By allowing the respondent to draw against the uncleared cheque, the appellant had given value for the cheque thereby entitling it to have a lien on the cheque and making it therefore the holder for value of the cheque. The respondent, not being the holder of the cheque at the material time, could not be rightly asked to take any steps.

In any event, the bank cannot validly complain that the respondent failed or neglected to require the drawer to issue a fresh cheque when it is not established that the drawer himself was available.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Nigeria

Agbonmagbe Bank Ltd v CFAO Supreme Court of Nigeria [1966] 1 ALB Commission 238 – AP

United Kingdom

AL Underwood Ltd v Bank of Liverpool and Martins [1924] 1 KB

Alan Milner and Susan Abrahams – Modern African Banking cases 1973

Anns v Morton London Borough Council [1978] AC 728

Judgment

Makame, Kisanga and Omar JJA: This appeal arises from the decision of the High Court (Mwalusanya J) allowing a claim for damages by the respondent company against the appellant bank for the loss of a cheque drawn in favour of the company. The High Court awarded TShs 34 500 being the amount stated on the lost cheque, and a further TShs 50 000 being compensation for the depreciation in value of the former sum due to devaluation of the Tanzania Shilling.

The facts of the case were most scanty, but as far as could be ascertained from the record they may be stated as follows: The Kashozi branch of the appellant bank at Bukoba accepted a country cheque for TShs 34 500 deposited by the respondent company and credited the respondent's account with the amount of the cheque. The bank claimed that in the meantime it sent the cheque to its branch upcountry at Ngara, in the same region of Kagera, to be debited against the drawer who maintained an account there. After some 461 days the bank notified the respondent that the cheque was lost while in transit with the post office, and required the respondent to ask the drawer to issue a fresh cheque of an equal amount. The respondent on the other hand claimed that upon making enquiries, it could not trace the drawer, adding that in any case it was not obliged to look for the drawer but rather it was the obligation of the bank to do so. Thereupon the bank proceeded to debit the respondent's account with the amount of the cheque, and hence the filing of the suit by the respondent. The High Court found that the bank had been guilty of negligence in failing to notify the respondent promptly of the loss of the cheque.

In this appeal the bank is represented by Mr JL *Rutabingwa* while the respondent is represented by Mr JS *Rweyemamu*. The same advocate had represented the respective parties at the trial in the High Court. In arguing the appeal,

Mr *Rutabingwa* criticised the trial Judge for finding negligence on the part of the bank. He contended that on the evidence the cheque was lost not by the bank but by the post office while in transit from Bukoba to Ngara, and that in law the bank owed no duty of care to the respondent to promptly report to it the loss of the cheque. On the first limb of counsel's submission, it seems plain in the circumstances of this case that the onus is on the bank to brave that the cheque was lost not through its own negligence but the post office. But the only evidence adduced on that point was that of DW1, the Kashozi branch manager, to the effect that the cheque was sent to Ngara by registered post number 936 and that it was lost while in transit. Quite clearly such a bare assertion was not at all sufficient to prove loss by the post office. No certificate of posting from the post office was produced to support the assertion that the cheque was sent to Ngara by registered mail number 936, nor did anyone from the post office at Bukoba come to confirm the posting of the alleged register. On the other hand, it could well be that the alleged register containing the cheque was, in fact, posted as alleged and reached Ngara, but no one was called from the Ngara branch to say that the cheque was not duly received there. In the circumstances, therefore, it has not been established that the cheque was lost by the post office, and in the absence of any other explanation, the bank was rightly found to have lost the cheque through negligence.

Submitting on the second limb on the issue of negligence, learned counsel contended that a collecting banker's liability in negligence is limited to two situations only, namely:

> "(1) At the time of opening a customer's account when the bank has to exercise care in order to be satisfied as to the character of the customer, and
>
> (2) At the time of paying the proceeds of the cheque when the bank must ensure that it does not pay the same to strangers."

He strongly maintained that the liability in negligence of a collecting bankers which is what his client was, has not been extended beyond these limits. The trial Judge addressing himself at great length to this aspect of the case, had held that the bank owed a duty of care to the respondent to promptly report to it the loss of the cheque, and that the bank was in breach of that duty. In coming to that conclusion, the learned Judge reviewed a number of decisions from various jurisdictions of the Commonwealth. He cited, among others, the decision of the House of Lords in *Anns v Morton London Borough Council* [1978] AC 728, restating the test to be applied when deciding whether or not a duty of care arises in a particular situation, and the judgment of *Agbonmagbe Bank Ltd v CFAO* Supreme Court of Nigeria [1966] 1 ALB Commission 238; *Alan Milner and Susan Abrahams* Modern African Banking cases 1973 Ed at 190 in which it was held that the bank owed its customer a duty of promptly sending him notice of dishonouring of cheques drawn in his favour. The learned Judge also stated that he saw no policy considerations which required that the scope of the duty so imposed on the collecting bank ought to be limited or qualified. For, in his view, such a duty will not throw the banking system into disorder or prove socially hazardous. We think that the learned Judge properly directed himself in the matter. We cannot agree with Mr *Rutabingwa* that the collecting banker's liability in negligence is limited only to the two situations as set out in his submission. We are firmly of the view that where, as in this case, a customer deposits a country cheque with a collecting bank and the cheque gets lost, the bank owes a duty of care to the customer to inform him promptly of such loss

so that the customer may take the appropriate steps that might be open to him to avert any or further consequences resulting from such loss. That duty we think, exists whether the cheque was lost by the bank itself or by a third party having possession thereof on behalf of the bank. Like the trial Judge, we are also of the view that the imposition of such a duty of care will not throw the banking system into disorder or prove socially hazardous. On the contrary we think that the imposition of that duty will serve to re-affirm and enhance the confidence of the public in the banking system in as much as it seeks to ensure a greater degree of security for the customer's money at the bank.

Mr *Rutabingwa* further contended that even if the bank had a duty to promptly notify the respondent of the loss of the cheque, the bank was not in breach of that duty. It will be recalled that the bank notified the loss after 461 days of the issue of the cheque. Counsel claimed that the loss of the cheque was detected only after what he described as the routing slip had travelled all this way from the Bukoba branch to the Central Clearing House in Dar-es-Salaam, to the Ngara branch, back to the Central Clearing House in Dar-es-Salaam and then back to the Bukoba branch. He stated that this long journey took a long time. However, there was not a shred of evidence adduced of any communication problems with Ngara existing at the time. Nor was evidence given of any routing slip showing when it was dispatched from the collecting bank at Bukoba and when it was received back there. In those circumstances the period of 461 days was clearly an inordinate delay in reporting the loss of the cheque, and the trial Judge was perfectly justified to hold the bank liable in negligence.

In another dimension counsel for the appellant bank took the view that the respondent company was itself to blame in the matter of having neglected to require the drawer of the cheque to issue a fresh cheque in place of the lost one as provided for under section 69 of the Bills of Exchange Ordinance (Chapter 215). That section provides:

> "69 Where a bill has been lost before it is overdue, the person who was the holder of it may apply to the drawer to give him another bill of the same tenor, giving security to the drawer if required to indemnify him against persons whatever in case the bill alleged to have been lost shall be found again.
>
> If the drawer on request as aforesaid refuses to give such duplicate bill he may be compelled to do so."

Learned counsel contended that at the time the cheque was lost the respondent was the holder of the cheque and that the cheque itself was not overdue. As such, therefore, the respondent was in a position to take the necessary step in terms of the section to put the situation right. Mr *Rweyemamu* for the respondent, however, submitted that at the time the cheque was lost the bank, not the respondent, was the holder of the cheque, and that the cheque itself was long overdue, in which case his client could not validly be expected or be called upon to take any steps in terms of the section in order to rectify the matter.

The trial Judge in his judgment had dealt with the question who the holder of the cheque was, and he came to the conclusion that it was the bank. In the course of dealing with that issue he considered, first, the provisions of section 27(2) of the Bills of Exchange Ordinance (Chapter 215) which provides that:

> "(2) Where value has at any time been given for a bill the holder is deemed to be a holder for value as regards the acceptor and all parties to the bill who became parties prior to such time."

Applying that provision to the facts before him, the learned Judge found that the bank had given value for the cheque first by crediting the respondent's account with the amount of the cheque and second by impliedly agreeing that the respondent could draw against the cheque before the proceeds thereof were received. Mr *Rutabingwa* submitted that mere crediting of the respondent's account with the amount of the cheque did not amount to giving value for the cheque. In this respect he referred, *inter alia*, to the English case of *AL Underwood Ltd v Bank of Liverpool and Martins* [1924] 1 KB at 805 where it was held that:

> "The mere fact that the bank in their books enter the value of the cheques on the credit side of the account on the day on which they receive the cheques for collection does not without more constitute the bank a holder for value. To constitute value there must be in such a case a contract between banker and customer, express or implied, that the bank will before receipt of the proceeds honour cheques of the customer drawn against the cheques. Such contract can be established by course of business and may be established by entry in the customer's passbook, communicated to the customer and acted upon by him."

But the point is that in the instant case the trial Judge found that the bank did more than just crediting the respondent's account and the question is whether that finding was justified.

It was common ground that the bank had discretion whether or not to credit the respondent's account with the amount of the uncleared cheque. Then there was the evidence of the branch manager of the appellant bank (DW1) to the effect that for a good customer the bank credits the account straightaway on depositing the cheque, but for a bad customer it does not. In this particular case, the witness said the respondent was a good customer with no problems and so the bank credited its account straightaway with the amount of the cheque. Indeed, the witness added, the bank had recently given the respondent a loan to develop its business. Such evidence clearly suggests that the bank considered the respondent to be a reliable and creditworthy customer to whom credit facility could be extended without difficulty. Again it was undisputed that after crediting the respondent's account, the bank kept silent for a whole year while the respondent continued to operate its account. For all that period there was no evidence of any restriction or limitation imposed by the bank on the respondent to make withdrawals against its account to the extent of the uncleared cheque. By keeping silent for so long the bank clearly led the respondent to believe that all was well and that it could proceed to draw on its account to the extent of the cheque. The view that the bank had given credit to the respondent as aforesaid appears to be confirmed by a letter (exhibit B) which the bank wrote to the respondent in the course of this matter. The relevant part of that letter reads:

> "Cheque number G 027808 of TShs 34 500 deposited into your account on 18 June 1982
>
> On 18 June 1982 you deposited cheque number 027808 of TShs 34 500. The cheque was drawn by one of your clients from Ngara. It has come to our attention that the cheque got lost on transit. We cannot recover our money from the drawer of the cheque because it is not debited to his account with our Ngara branch. We are intending to debit your account with TShs 34 500 on the 1 October 1983. You are required to obtain a fresh cheque from the drawer and ask him to place stop-payment order with his bankers in Ngara for the lost cheque."

It would seem to us that the expression "we cannot recover our money from the drawer" is a clear admission that the bank had parted with its money in

favour of the respondent, and it was now facing a difficulty in recovering the same. For, it is not possible to talk of recovering something when that thing was not lost or was not parted with in the first instance.

As stated earlier the trial Judge in effect found that the bank had impliedly allowed the respondent to draw against the uncleared cheque in anticipation of the proceeds thereof being received. To that extent the bank had given value for the cheque, thereby entitling it to have a lien on the cheque. Then he went further and considered the provisions of section 27(3) of Chapter 215 which says that:

> "(3) Where the holder of a bill has a lien on it arising either from contractor by implication of law, he is deemed to be a holder for value to the extent of the sum for which he has a lien."

He found that since the bank had a lien on the cheque to the full amount thereof, the bank was accordingly deemed to be the holder for value of the cheque. We think that his reasoning and conclusions were sound. It therefore follows that Mr *Rutabingwa*'s submission that the respondent was to blame for failing or neglecting to require the drawer to issue a fresh cheque in terms of section 69 of Chapter 215 must fail because the respondent was not the holder of the cheque at the material time, and so it could not rightly be asked to take the steps as contemplated by that section.

Mr *Rweyemamu*'s second limb of this submission was that, even assuming that the respondent was the holder of the cheque at the material time, the respondent was not in a position to do anything in terms of section 69 to ensure the issuing of a fresh cheque because the drawer of the cheque could no longer be traced, and the cheque itself was long overdue. We find some merit in this submission. PW1 in his evidence stated that he tried by letter to contact the drawer of the cheque but was told that he was out of the country to Arabia. That evidence stood unchallenged. The defence never adduced any evidence to show that the drawer of the cheque never left the country or that he left but returned afterwards. In the circumstances the bank cannot validly complain that the respondent failed or neglected to require the drawer to issue a fresh cheque when it is not established that the drawer himself was available.

On the submission that the cheque was overdue, Mr *Rweyemamu* relied on the provisions of section 40(1) and (3) and section 45 of Chapter 215. Section 40(1) and (3) provides that:

> "40 (1) Subject to the provisions of this Ordinance, when a bill payable after sight is negotiated, the holder must either present it for acceptance or negotiate it within a reasonable time.
>
> (2) . . .
>
> (3) In determining what is a reasonable time within the meaning of this section, regard shall be had to the nature of the bill, the usage of trade with respect to similar bills, and the facts of the particular case."

And the relevant part of section 45 says:

> "45 Subject to the provisions of this Ordinance a bill must be duly presented for payment if it be not so presented the drawer and indorser shall be discharged."

Mr *Rweyemamu* submitted that according to these provisions the cheque in the present case ought to have been presented for payment within a reasonable time. This, however, was not done and consequently the drawer was thereby discharged. So that even if the respondent was the holder of the cheque at the

material time, that would be of no avail in as much as the cheque was stale then. The difficulty we are facing here is that no evidence whatever was adduced as to what is a reasonable time for presenting the cheque for payment according to the banking practice in Tanzania. Mr *Rweyemamu* was of the view that a cheque becomes stale after six months from the date of its issue. Mr *Rutabingwa*, on the other hand, asserted that once a cheque is duly stamped by the collecting bank, it can never become overdue or stale. We do not feel justified to decide this issue purely on the basis of the statements made from the Bar. We are rather inclined to defer our decision in the matter to a future date when a suitable case comes up in which the necessary evidence shall have been adduced. It should be noted, however, that our decision on this point was not essential for the determination of this appeal. It is clear from the preceding pages of this judgment that the appeal is disposable on other grounds.

We are therefore unable to uphold Mr *Rutabingwa*'s submission that the respondent was to blame for failing or neglecting to take steps under section 69 to require the drawer of the cheque to issue a new cheque. Like the trial Judge we find that the bank, and not the respondent, was the holder of the cheque at the time the cheque was reported lost. As such the respondent could not, in terms of section 69, require the drawer of the cheque to issue a fresh cheque. We also agree that Mr *Rweyemamu*'s submission that the taking of steps by the respondent under section 69, as submitted by the counsel for the appellant bank, appears to have been rendered impracticable by the fact that the drawer of the cheque could no longer be traced as he was said to be away in Arabia. The learned Judge, therefore, was justified and finding against the appellant bank on the basis of negligence, and we can see no reason to interfere.

Mr *Rutabingwa* also complained about the part of the award relating to TShs 50 000 and said that there was no ground on which it was based. In awarding that sum the trial Judge took into account the element of depreciation of money due to the devaluation of our shilling. The respondent had been deprived of the use of his money for a period of four years from 1983. At the end of that period his money would fetch less goods because of its diminished purchasing power. The learned Judge, therefore, made the award in order to compensate the respondent such that as far as possible it could be in a position to buy the same amount of goods as it would have bought had it not been deprived of its money. We think that the learned Judge made the award on a correct principle. He was entitled to take into account the changes in the purchasing power of money due to depreciation and devaluation of the shilling. That was a practical aspect of life which we think it would have been unrealistic to ignore. Although he did not set out any mathematical formula in which he computed the award, we think that the sum of TShs 50 000 was not excessive so as to warrant interference.

After careful consideration of the issues involved in this appeal and the engaging arguments by counsel for both sides, we are satisfied that the learned Judge properly directed himself on the issues before him and came to the right conclusions. Admittedly the facts as adduced at the trial were most scanty. In the whole case only two witnesses gave evidence, one for the plaintiff and one for the defendant. Their evidence was very brief, hardly a page each. That was not fair for a case involving issues of this magnitude. However, the trial Judge did his very best in the circumstances and, on the evidence before him, his decision cannot be faulted. In the result the appeal fails and it is dismissed with costs.

For the appellant:
Rutabingwa

For the respondent:
Rweyemamu

Nitin Coffee Estates Ltd and others v United Engineering Works Ltd and another
[1986–1989] 1 EA 410 (CAT)

Division:	Court of Appeal of Tanzania at Arusha
Date of judgment:	11 November 1988
Case Number:	15/88
Before:	Mustafa, Makame and Kisanga JJA
Sourced by:	LawAfrica

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[1] Contract – Sale of land – Effect of an unwritten contract for the sale of land – Effect of English doctrine of part performance on an oral agreement for sale of land.

[2] Contract – Uncertainty of price – Effect to validity of contract.

Editor's Summary

The respondents sued the appellants claiming that the fourth and fifth appellants, acting on their own behalf and those of other shareholders and directors of the first and second appellant companies, had concluded oral negotiations to sell all the shareholding in the first and second appellant companies, all the immovable and movable assets, including a farm at Oldeani. The appellants, however, argued that the agreement to sell the farms was unenforceable for lack of writing and the requisite consent and also denied that the fourth and fifth appellants had agreed to sell the shareholding and assets for TShs 10 million or at all.

The trial Judge held that since there was part performance in the sale of the land in that the respondents had been put in possession of the farms, regulation 3(1) of the Land Regulations 1948 (Chapter 113 Supplement 64) would not be applicable and thus the oral agreement was enforceable. The Judge further held that the fourth and fifth appellants had an agreement to sell their shares and ordered specific performance in respect of the sale of the shares to the respondents. However, he also held that they did not have authority to sell shares on behalf of the third appellant and refused specific performance of the sale of the two farms but awarded damages.

Hence the appeal.

Held – An oral agreement of the type sued on to sell land held under a right of occupancy is inoperative and of no effect (*Patterson and another v Kanji* (1956) 23 EACA 106; *Patel v Lawrenson* [1957] EA 9; *Kassam v Kassam* [1960] EA 1042; *Patel v Marealle and another* Court of Appeal civil appeal number 5 of 1984 (UR) followed; *Mushunga v Theonestina Rwekanika* [1974] LRT 30

disapproved).

The English doctrine of part performance cannot help as in Tanzania the regulation in question required both writing and consent.

A right of occupancy is in the nature of a lease and the holder of a right of occupancy is in the same position of a lessee *vis-à-vis* the superior landlord. A right of occupancy is for a term and is held under certain conditions. One of them is that no disposition of the said right can be made without the consent of the superior landlord.

The oral agreement concerning the sale of the two farms was inoperative and of no effect in terms of regulation 3(1) of the Land Regulations of 1948.

As there was no agreed price and no means of ascertaining such a price the agreement for sale of shares was therefore void for uncertainty in terms of section 29 of the Law of Contract Ordinance (Chapter 433).

While there was no valid contract, the respondents had been led to believe that there was a binding contract and they subsequently took over the farms and worked them for three years and reversed their loss-making trend. The respondents must therefore be compensated with the sum of TShs 10 million for the work and labour put into the farms to the advantage of the appellants.

Appeal partly succeeds.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Denning v Edwardes and another [1960] EA 755 (PC)

Kassam v Kassam [1960] EA 1042 – **F**

Mushunga v Theonestina Rwekanika [1974] LRT 30 – **DA**

Patel v Lawrenson [1957] EA 9 – **F**

Patel v Marealle and another Court of Appeal civil appeal number 5 of 1984 (UR) – **F**

Patterson and another v Kanji (1956) 23 EACA 106 – **F**

Judgment

Mustafa JA: In the High Court at Arusha, the United Engineering works Limited and Jagdev Singh Manik as first and second plaintiffs respectively, sued the Nitin Coffee Estates Limited, Rafiki Estates Limited, Nanji Devchand Patel, Sudhir Nanji Ondhia and Vineshwar Nanji Ondhia as first, second, third, fourth and fifth defendants respectively. The plaintiffs had alleged that the fourth defendant, Sudhir Ondhia, and the fifth defendant, Vineshwar Ondhia, acting on behalf of themselves and of all other shareholders and directors of first and second defendant companies, had orally concluded negotiations to sell to the plaintiff all the shareholding in the first and second defendant companies, and all the movable and immovable assets, including the farm at Oldeani held by the first defendant company on a right of occupancy and the farm at Oldeani held by the second defendant company on a right of occupancy.

The first plaintiff is a limited liability company and the second plaintiff is a managing director and principal shareholder of the first plaintiff company.

The first and second defendants are limited liability companies and the third, fourth and fifth defendants are shareholders and directors of the first and second

defendant companies. It appears that both the plaintiff company and the defendant companies are owned and controlled by the family members of the second plaintiff and family members of the third, fourth and fifth defendants respectively.

It was alleged by the plaintiffs (hereinafter called the respondents) that the global purchase price for the two defendant companies, lock stock and barrel, and of the total shareholding in those two defendant companies was TShs 10 million.

The defendants (hereinafter called the appellants) denied that the fourth and fifth appellants had concluded negotiations for the sale of the total shareholding and all movable and immovable assets of the first and second appellant companies for the global sum of TShs 10 million or at all. And insofar as the alleged sale of the farms of the first and second appellant companies was concerned they submitted that the agreement was in any event unenforceable for lack of writing and the requisite consent.

The cases came up for trial before Mwakibete J. The respondent's case briefly was as follows. The respondent Manik alleged that in 1983 there was what was known as the "crack down" in Tanzania and many businessmen were in a state of panic and were selling their properties at give-away prices. Manik understood that the farms of the appellant companies were for sale and he saw the fourth and fifth appellants who confirmed that it was true. fourth and fifth appellants told Manik that the total price was TShs 10 million. It was also agreed that Manik was to pay TShs 2.4 million and the balance of the purchase price was to be paid from the proceeds of the crops grown on the two farms. After the total purchase price had been paid all shares held in the first and second appellant companies as well as all the assets of the two appellant companies were to be transferred to the two respondents in proportions as would be decided by Manik. Only some holy pictures and brass vessels used by the third, fourth and fifth appellants would not be transferred.

As a result of the agreement Manik made payment of TShs 2 075 000 to the appellants and was put in possession of the farms and all the properties therein. That was in October/November 1983. Manik was proclaimed to the staff and others as the new owner. Manik was also given 50 shares in the Nitin Coffee Estates Limited. Manik worked the farms and used his own money in maintaining and developing them, and from the proceeds of the crops and coffee paid off the balance of the purchase price to the appellants towards the end of 1985.

Manik approached the appellants in early 1986 for the transfer of the shareholding, directorships and the farms to him and his company, but the appellants repudiated the agreement to sell.

The respondents in March 1986 filed action against the appellants for specific performance, that is, for the appellants to transfer all their shares in the two limited companies and for the two limited companies to transfer all their assets including the two farms to the respondents and a refund of TShs 10.6 million being the alleged excess payment in respect of the agreed purchase price and for damages for breach of contract.

The appellants in Court denied that the fourth appellant and the fifth appellant had concluded any agreement of sale as alleged by Manik. They admitted receipt of TShs 2 million and 75 thousand from the respondents but alleged that it

was in part payment of the 50 shares in Nitin Coffee Estate sold by one Anupkumar Ondhia. The appellants alleged that the price for those 50 shares was TShs 2.5 million. They claimed that Manik was given possession of the two farms of the first and second appellant companies as a director, and not as owner thereof. Manik was managing and running the farms and he was paid a director's fee, as most of the shareholders and directors of the two companies were then living outside Tanzania.

Both the fourth and fifth appellants in their statement of defence denied selling their shares to the respondents. Appellant 4 testified in court to that effect, but appellant 5 did not testify. The appellants claimed that only 50 shares of one Anupkumar Ondhia in Nitin Coffee Estate were sold to the respondents.

In any event the appellants contended that an alleged sale of the farms was unenforceable and of no effect as the agreement was not in writing and was without the requisite consent.

The appellants in a counterclaim asked the respondents to give an account of their stewardship of the farms with full accounts.

A number of witnesses were called on both sides in what appears to have been a rather protracted trial.

The trial Judge reviewed and analysed the evidence adduced with care and concluded that the sum of TShs 2 075 000 paid by Manik was in part payment of the purchase price of the sale of the appellant's farms and "possibly some of the shares". He also held that the putting of Manik into occupation of the farm was in part performance of the agreement to sell. He held that there was an irresistible conclusion that there was an oral agreement to sell the two farms of the first and second appellant companies as alleged by Manik, although it was uncertain what prices for them were. He held that because there was part performance of the agreement to sell the two farms regulation 3(1) of the Land Regulations of 1948 (Chapter 113 Supplement 64) would not be applicable and he concluded that the oral agreement to sell the farms "in the circumstances of this case" was enforceable.

As regards the 50 shares in Nitin Coffee Estates Limited sold by Anupkumar Ondhia, he considered the conflicting evidence adduced as to the price of the said shares. He concluded that the 50 shares were sold for TShs 125 000 and not TShs 2.5 million as contended by the appellants.

As regards the sale of shares by the fifth appellant, the Judge held that, since the fifth appellant did not testify although he was in court throughout the trial, he believed Manik that the fifth appellant had agreed to sell his shares to the respondents, that is, 50 shares in Nitin Coffee Estates Limited. The Judge stated, "on the evidence plaintiff paid for the shares".

In regard to the sale of the shares by the fourth appellant, the Judge stated that he preferred the evidence of Manik to that of appellant 4, and believed Manik that fourth appellant had agreed to sell his shares. And the Judge also added "having paid the purchase price in relation thereto".

With regard to the shares of appellant 3, the Judge found that the fourth and fifth appellants had no authority to sell the shares of appellant 3, and such an agreement, even if made, was not enforceable against appellant 3.

And so far as the shareholders absent from Tanzania were concerned, the Judge was unable to discover that fourth and fifth appellants had any authority

to sell their shares. The Judge was unable to find any clear and unambiguous evidence to indicate that these absent shareholders had authorised or consented to the sale of their shares by fourth and fifth appellants. He held the agreement concerning these sales were not enforceable.

The Judge considered the prayers for specific performance. He was of the opinion that since the sale of the majority of the shares in the first and second appellant companies was enforceable, it would be "absurd granting the prayer of specific performance in relation to movable and immovable assets of Nitin Coffee Estates Limited and Rafiki Estates Limited".

He ordered specific performance in respect of the sale of the shares by fourth and fifth appellants to the respondents.

He refused specific performance of the sale of the two farms and awarded damages "diverting the appellants of what they have unjustly benefited".

He ordered that the appellants jointly and severally refund the respondents as under:

"(1) The purchase price under the agreement TShs 10 million;

(2) The sum of TShs 10 608 620 paid in excess of purchase price;

(3) An agreed sum of TShs 5 million incurred by respondents in running the two farms from October 1983 to date of filing suit, that is, 5 March 1986. A further sum in respect of such expenses be computed and taxed from date of filing suit to date of vacant possession;

(4) The crops from Nitin Coffee Estates and Rafiki Estate which are in stores awaiting delivery to TCGA to be sold, and the coffee or any other crops to be picked this season from the two farms, belong to the respondents;

(5) General damages at TShs 5 million."

He also ordered the respondents (in error appellants stated) to give possession a month after payment, within a month of this judgment, of the decretal sum in full. He awarded costs of the suit to the respondents. The judge dismissed the appellants' counterclaim and awarded costs of the counterclaim to the respondents.

The appellants have also appealed from that judgment. The respondents have also appealed the judgment. I will treat the respondent's appeal as a cross-appeal.

The appellants' appeal is on the following main grounds:

"(1) The oral agreement to sell the land is unenforceable because of regulation 3(1) of Land Regulations of 1948. The agreement is also illegal because it transgressed the Companies Ordinance Chapter 212 and was without the approval of the Bank of Tanzania.

(2) The Judge erred in holding that appellant four and appellant five had agreed to sell their shares and in any event such an agreement was void for uncertainty.

(3) The Judge erred in holding that the price for fifty shares sold by Anupkumar Ondhia was TShs 125 000 and not TShs 2.5 million.

(4) The Judge erred in ordering the refund of the purchase price and excess amount paid and in awarding TShs 5 million as general damages.

(5) The Judge erred in refusing to order the respondents to give full account to the appellants since the respondents' occupation of the farms."

The respondent's cross-appeal is on the following grounds:

"(1) The Judge erred in holding that the fourth appellant and fifth appellant did not have authority to sell the shares of the absent shareholders, and in failing to order specific performance of the sale of the two farms. Alternatively,

(2) The Judge erred in awarding grossly inadequate damages."

I have perused the evidence on record and have carefully considered the submissions of learned counsel before this Court. I am of the opinion that the trial Judges was right in his findings of fact. I am of the view that the fourth appellant and the fifth appellant did, in view of the "crack down" and the state of fear which it generated, want to sell the total shareholding in and all the assets of the first and second appellant companies to Manik. I believe that there was an oral agreement between Manik and the fourth and fifth appellants on the terms as alleged by Manik in his evidence. Manik was put in occupation of the farms as the buyer, not as a director or manager. On the basis of such facts, I will now deal with the legal consequences flowing therefrom.

I have said that the trial Judge was correct in his findings of fact. Unfortunately, I cannot say the same about his conclusions in law. I begin with the applicability of Land Regulations of 1948 to the oral agreement concerning the sale of the two farms.

I will set out the relevant Land Regulations:

> "Land Regulations of 1948 (Chapter 113 – Supplement 64)
>
> 3 (1) A disposition of a right of occupancy shall not be operative unless it is in writing and until it is approved by the President (later to be Director Land Development Services).
>
> (2) NA.
>
> (3) In this regulation 'disposition' means:
>
> (*a*) A conveyance or assignment other than by way of mortgage . . .
>
> (*b*) NA.
>
> (*c*) A deed or agreement or declaration of trust binding any party to make such disposition as aforesaid, including a deed or agreement entitling a party thereto to require any such disposition to be made.
>
> (*d*) NA."

In my view an oral agreement of the type sued on to sell land held under a right of occupancy is inoperative and of no effect. There is a long line of authority to that effect. In *Patterson and another v Kanji* (1956) 23 EACA 106 at 111 the Court of Appeal of East Africa dealing with a similar regulation stated that one cannot seek "to enforce at law which he can only establish by relying on a transaction declared by law to be inoperative". That decision was followed in *Patel v Lawrenson* [1957] EA 9; *Kassam v Kassam* [1960] EA 1042 and in *Patel v Marealle and another* Court of Appeal civil appeal number 5 of 1984 (UR).

It seems that the trial Judge was persuaded that since the agreement was part performed the need for writing could be dispensed with. But there was still the need for the requisite consent. In England at one stage, in order to prevent fraud, certain transactions had to be evidenced by writing, otherwise they were of no effect. As a result a number of injustices occurred. To mitigate the harshness of that rule, part performance of an agreement was later held to be sufficient evidence of the transaction, if no writing existed. And that was later incorporated in the statute of frauds in England. The doctrine of part performance cannot help, as in Tanzania the regulation in question required both writing and consent.

Mr *Marando* for the respondents submitted that there is some confusion on this matter in the High Court. He referred to a High Court decision *Sylveni*

Mushunga v Theonestina Rwekanika [1974] LRT 30, Mfalila J in that case purported to distinguish it from *Patterson and another v Kanji* (1956) 23 EACA 106 at 111 (*supra*). Mfalila J stated:

> "I think that regulation 3 of the Land Regulations of 1948 may be abused by unscrupulous sellers. I think that regulation 3 is applicable only to situation where the President's consent has been sought and refused . . . A Contract of Sale is not contemplated by regulation 3. This regulation refers to dispositions which are defined. . . to mean conveyances of assignments. A contract of sale is neither of these."

Obviously, Mfalila J had overlooked regulation 3(3)(*c*) where such a contract is a "disposition". With respect, that decision of Mfalila J was wrong.

Out of courtesy to Mfalila J and other Judges of his way of thinking perhaps some subsidiary observations may be in order. A right of occupancy is something in the nature of a lease and a holder of a right of occupancy occupies the position of a sort of lessee *vis-à-vis* the superior landlord. A right of occupancy is for a term, and is held under certain conditions. One of the conditions is that no disposition of the said right can be made without the consent of the superior landlord. There is now no freehold tenure in Tanzania. All land is vested in the Republic. So land held under a right of occupancy is not a freely disposable or marketable commodity like a motorcar. Its disposal is subject to the consent of the superior and paramount landlord as provided for in the relevant Land Regulations.

Mr *Marando* also called our attention to *Denning v Edwardes and another* [1960] EA 755 PC, a case originating from Kenya. That case was *inter alia* concerned with section 88(3) of the Crown Lands Ordinance of Kenya. In terms of that section an instrument which:

> "Purports to effect any of the transaction referred to in 'section (2), that is to say to sell, lease, sublease, assign, mortgage or otherwise . . .', will be void without the Governor's consent."

However, no consent was required to an agreement for the above transaction as an agreement did not "affect a transaction". However, according to regulation 3 of the Land Regulations of 1948 in Tanzania, an agreement of sale is a "disposition" which requires consent.

I am satisfied that the oral agreement concerning the sale of the two farms is inoperative and of no effect in terms of regulation 3(1) of Land Regulations of 1948.

I will now deal with the sale of shares. I believe that there was an oral agreement by the fourth appellant and fifth appellant to sell their shares to the respondents. But it is clear that no price was fixed or agreed. The trial Judge stated that the sum of TShs 2 075 000, the initial payment made by Manik, was part payment of the purchase price for the two farms and "possibly some of the shares". I would think that price was one of the fundamental matters in a sale of individual shares as the ones under consideration. As there was no agreed price and no means of ascertaining such a price there was no agreement, due to uncertainty. I think that the agreement by fourth appellant and fifth appellant to sell their shares was void for uncertainty in terms of section 29 of the Law of Contract Ordinance (Chapter 433).

I agree with the finding of the trial Judge that the 50 shares in Nitin Coffee Estates held by Anupkumar Ondhia were sold to the respondents for TShs 125 000. Professor *Fimbo* for the appellants submitted that exhibit D4 and

exhibit P7 – which related to the price of the said shares – could not be looked at as they were for internal shareholders only. That submission is totally without merit. On the evidence I agree with the trial Judge that the 50 shares of Anupkumar were sold to the respondents for TShs 125 000. Professor *Fimbo* submitted that the sale of the 50 shares to the respondents was illegal as it was made without the permission of the Treasury, in contravention of section 9 of the Exchange Control Ordinance (Chapter 294 Supplementary 65). However, there was no evidence that Anupkumar Ondhia was not a resident of Tanzania. No illegality can attach to such a sale in the circumstances.

Professor *Fimbo* also referred to section 46 of the Companies Ordinance (Chapter 212), which is in *pari materia* with section 54 of the United Kingdom Companies Act of 1948. He quoted several English authorities. Professor *Fimbo* was concerned with the provision in the agreement of sale that the payment of the balance of the purchase price was to be obtained from the produce of the two farms of the appellants. The facts in this case differ from the facts in the authorities quoted and in any event no clear indication emerged from Professor *Fimbo*'s laborious efforts on the point.

At this stage it will be convenient to deal with the cross-appeal concerning the state of shares of the absent shareholders by appellant 4 and appellant 5. The Judge found that there was no evidence that appellant 4 and appellant 5 had authority to sell such shares, nor was there evidence that the absent shareholders had authorised or consented to such sale. That finding was justified on the evidence adduced. That ground of cross-appeal is dismissed. So is the ground of cross-appeal about specific performance of the sale of the two farms; detailed reasons have already been given.

The appellants complained about the order of the Judge for them to refund the purchase price of TShs 10 million shillings and a further sum of TShs 10 608 629 being payment in excess of the purchase price. In view of the finding that the sale was inoperative and of no effect no purchase price in fact was paid. The two sums were obtained from the produce of the two sums were obtained from the produce of the two farms of the appellant companies. This order of the Judge cannot stand.

The appellants complained about the order of the Judge that the crops of Nitin Coffee Estate and Rafiki Estate which are in stores awaiting delivery to TCGA and coffee and other crops to be picked "this season" from the two farms are the property of the respondents. Similarly this order of the Judge cannot stand; all these crops belonged to the appellant companies.

The appellants complained about the award of TShs 5 million shillings as general damages to the respondents. The respondents on the other hand counterclaimed that, if damages for breach were to be awarded, the sum is too low. The Judge had held that the agreement of sale was valid and enforceable, but instead of ordering specific performance, he awarded damages, in the exercise of his discretion, and for the reasons he gave. The appellant's argument apparently was that since the agreement of sale was unenforceable and void, no breach had occurred, hence damages should have been awarded for breach of contract. Superficially that argument is attractive. However, on the facts of this case Manik was led to believe that he had entered into a binding contract. At the invitation of, and on the strength of appellants' representations, Manik took over the farms and worked there for about three years. For two years before

Manik took over, the farms were losing money. Manik by his work and diligence reversed the loss-making trend and turned the farms into a profit-making venture. He not only maintained the farms but improved them. The appellant shareholders and directors were mostly away and could not work on the farms and in the state of fear and panic in 1983, they were in the process, probably, of neglecting them. The price agreed. TShs 10 million was a ridiculously low sum, and that was clear evidence of a sale under distress or duress. In about three years Manik managed to generate a sum of over TShs 20 million from the produce of the farms. The Judge had awarded damages on the basis of unjust enrichment – divesting the appellants of such enrichment. The farm prosperity was brought about solely by the work and labour of Manik. Manik believed the representations made to him by the appellants and on the basis of that belief worked and improved the condition of the farms. Manik must be paid for his work and labour and for his contribution to the improved state of the farms.

I believe that the sum of TShs 5 million awarded by the Judge was insufficient. I would award the respondents the sum of TShs 10 million as compensation for the work and labour put into the farms, to the advantage of the appellants.

The cross-appeal has succeeded on this item of damages. The appellants have asked for an order that the respondents should render a full account of their stewardship of the farms during the period they have been in occupation. I do not think such an order is called for at this stage. When the respondents will hand over possession of the farms to the appellants, an account will have to be taken as to how much the respondents had on the farms from the date of the filing of this suit in the High Court to the date of possession. In that process, I should think all the accounts can be dealt with.

In the result I would allow the appeal to this extent. I would hold:

> "(1) That the oral agreement of sale was inoperative and of no effect in terms of regulation 3(1) of the Land Regulations of 1948;
>
> (2) That the sale of shares by fourth appellant and fifth appellant to the respondents was void for uncertainty and is to be set aside.
>
> (3) The order for return of TShs 10 million purchase price and TShs 10 608 620 excess of the purchase price to be set aside. Similarly the order concerning the crops of the two farms awaiting delivery to TCGA and coffee and other crops to be picked 'this season' to be set aside."

I would dismiss the other grounds of appeal.

As regards the cross-appeal, I would increase the item of damages from TShs 5 million to TShs 10 million. I would dismiss the other grounds of cross-appeal.

On payment of TShs 125 000 by the respondents to Anupkumar Ondhia or his nominee, 50 shares of the said Anupkumar Ondhia in Nitin Coffee Estates are to be transferred to Manik or his nominee.

The appellants are to pay TShs 5 million being expenses incurred by Manik until the date of the filing of this suit in the High Court and the sum of TShs 10 million as damages to the respondents. The appellants are also to refund the respondents the initial payment of TShs 2 075 000 made by Manik for the purchase.

The respondents are to vacate the two farms at Oldeani and hand over possession of them to the appellants or their nominee's 30 days from the date of this judgment.

On or before such handing over an account has to be taken of the expenses incurred by the respondents on the said farms from the date of filing the suit in the High Court to date of possession. Such sum as found due is to be paid by the appellants to the respondents.

As to costs, I would award half the costs of the appeal to the appellants. For the avoidance of doubt such costs are to be taxed on the basis of one counsel only.

I would make no order for costs of the cross-appeal.

I would not disturb the order for costs made in the High Court.

As the other members of the Court agree, there will be judgment on the terms herein above stated.

Makame JA: I have had the advantage of reading in draft the judgment of Mustafa JA. Like my learned brother, I feel that Mwakibete J carefully handled the evidence before him and was correct in his findings of fact. I too believe, on the evidence, that the nature of the transaction between the second respondent on the one hand, and the fourth and the fifth appellants on the other, was as contended by the second appellant; the two appellants made Manik believe that he was buying everything as he told the trial court. Manik allowed himself to be misled, for the only thing he really bought, in law, was the 50 shares belonging to Anupkumar Ondhia who was outside the country but who incidentally, as Mustafa JA, remarked, was not proved to be a non-resident (as defined by law). Mustafa JA has lucidly stated the law on the various issues which had to be determined and it would be superfluous for me to add anything. I agree with all the holdings by Mustafa JA and the various orders he proposes.

I too would allow the appeal and cross-appeal to the extent indicated by Mustafa JA.

Kisanga JA concurred in the judgment of Mustafa JA.

For the appellants:
Prof Fimbo

For the respondents:
Marando

Njoroge v Republic
[1986–1989] 1 EA 419 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	20 April 1989
Case Number:	149/86
Before:	Platt, Apaloo JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Criminal law – Robbery – Evidence – Discrepancies – Duty of the first appellate court to make findings on issues of fact and of law – Effect of failure to perform this function.

[2] Evidence – Accused identified in the dock – No identification parade held by the police –

Probative value of dock identification.

Editor's Summary

Gabriel Kamau Njoroge, the appellant, was convicted of robbery contrary to section 296(1) of the Penal Code and sentenced to a term of imprisonment and corporal punishment followed by police supervision on release.

The evidence as found by the trial and the superior courts was that the appellant robbed the complainant, a doctor of medicine, one night as the complainant was preparing to leave Sigona Golf Club, at gun point. Apart from driving off with the complainant's car the appellant also took the complainant's revolver, a Smith and Wesson .38, serial number 218640.

More than a week later the appellant was involved in a second robbery at a bank in Limuru Township and, as he fled from the scene, hotly pursued by the police, he was seen to drop this same gun before he was overpowered and arrested. No identification parade was held to identify the appellant and both at his trial and on appeal to the High Court, he disputed his identification and contended that there was so much conflict on the evidence of the prosecution the benefit of which should have gone to him.

The High Court accepted that the evidence of identification may have been unsatisfactory but upheld the conviction on the ground that the appellant was proved to have been in recent possession of the complainant's revolver.

Held – It is the duty of the first appellate court to remember that parties are entitled to demand of the Court of first appeal a decision on both questions of fact and of law, and the Court is required to weigh conflicting evidence and draw its own inferences and conclusions, but bearing in mind always that it has neither seen nor heard the witnesses and make due allowance for this.

A dock identification is generally worthless and the Court should not place much reliance on it unless this has been preceded by a properly conducted identification parade. A witness should be asked to give the description of the accused and the police should then arrange a fair identification parade.

As the appellant was found in possession of the complainant's gun which had been recently stolen and for which possession the appellant gave no satisfactory account, there was sufficient evidence to sustain his conviction.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Gopa s/o Gidamebanya and others v R (1953) 20 EACA 318

Pandya v R [1957] EA 336

R v Mohammed bin Allui (1942) EACA 72

R v Shabani bin Donaldi (1940) 7 EACA 60

Roria v Republic [1967] EA 583

Ruwalla v R [1957] EA 570

United Kingdom

R v Turnbull [1976] 3 All ER 549

Judgment

Platt, Apaloo JJA and Masime AJA: The appellant was convicted of robbery contrary to section 296(1) of the Penal Code and sentenced to six-and-a-half years' imprisonment together with ten strokes of corporal punishment and he was ordered to be subject to police supervision after his release from jail as required by law.

There were two robberies involved in this case. The first occurred, according to the particulars of the charge, on 11 August 1985 at about 8:00pm at the Sigona Golf Club. Dr Macharia had been successful in a golf competition arranged for doctors. He was returning to his car in the car park followed by another doctor whom Macharia was to show a shorter route home. Doctor Macharia placed his prize of gold balls on the seat of his car, put his gun, a Smith and Wesson in the glove compartment of the car, and was about to close the door when somebody grabbed his hand and pointed a gun at this abdomen. Dr Macharia courageously struggled for the gun but another man hit him on the leg causing him to fall down. He was shot at, but was able to get up, and ran around the compound, when a second shot was fired at him. Unfortunately his keys and spectacles fell down, and while Dr Macharia reached the club house the robbers took away the car and all its contents. The car was later found abandoned, and when Dr Macharia saw it, the gun, a brown case of clothing, the radio cassette and the rear-view mirror were all missing. It is clear therefore that the robbers had used force in order to steal the car and its contents.

Dr Macharia identified the appellant as the man who first pointed a gun at him. This identification was a dock identification. No identification parade had been held.

The second robbery, which is not the subject of this case, occurred on 20 August 1985 at about 11:30am in Limuru township. Police Constable Wilson Mutahi (PW2) was on duty with Police Constable Mutuku; they were in police uniform, armed with rifles and were patrolling Limuru town. They received information that there had been a hold-up at Limuru Barclays Bank Limited. The constables rushed to the bank and as they were about to reach the door of the bank, they saw somebody escaping from the bank with a paper bag. Then another came out holding a pistol. This man fired two rounds of ammunition towards the constables who returned fire – 13 rounds of ammunition in all. The man escaping from the bank ran away towards Limuru township. He chased the fugitive and caught up with him at the railway line. He called upon the man to drop his pistol; the man complied and Constable Wilson arrested him. That man was alleged to be the appellant, and when the pistol was picked up the appellant was taken to Chief Inspector Kiketi to whom he was handed together with the pistol and one round of ammunition.

The gun was a Smith and Wesson revolver .38 Special serial number 218640. Dr Macharia had a certificate for it which confirms that this serial number was that of his gun. He had seen the gun in court and identified it as his. The appellant is quite right to point out that there was a discrepancy in the evidence

between Dr Macharia and Police Constable Chibeka (PW4) as to whether Dr Macharia brought the certificate to the police station, or whether Constable Chibeka found the firearm certificate in the stolen car on 12 August 1985, when the car was found abandoned. It is also true that neither Constable Mutuku nor Chief Inspector Kiketi gave evidence in support of Constable Wilson Mutahi's account of what happened. Furthermore, it is true that Constable Chibeka did not take the revolver and remaining bullet to the firearms examiner, Mr Lubanga (PW5). It is clear from Mr Lubanga's evidence that it was Corporal Musavya. It is therefore likely that Constable Chibeka had forgotten what occurred; he probably did not find the firearm certificate in the abandoned car, nor did he take the revolver and ammunition to Mr Lubanga.

The questions raised on this appeal are whether the contradictions were such that the findings of facts were rendered unreliable. It was held by the trial court that Dr Macharia reliably identified the appellant as the man who took hold of the doctor. This was supported by the fact that the appellant had the doctor's revolver in his possession despite the appellant's defence that he had been a bystander and falsely arrested.

The High Court on first appeal made short findings. It was said that the identity of the appellant was somewhat doubtful, but the conviction would be upheld on the doctrine of recent possession of the gun which was stolen from the complainant. The appellant's explanation about the gun was properly rejected by the trial court. Indeed, the evidence was overwhelming and the police officers' evidence was rightly accepted.

Naturally the appellant appealed to this Court against that judgment. As this Court has constantly explained, it is the duty of the first appellate court to remember that the parties to the Court are entitled, as well on the questions of fact as on questions of law, to demand a decision of the Court of first appeal, and that court cannot excuse itself from the task of weighing conflicting evidence and drawing its own inferences and conclusions though it should always bear in mind that it has neither seen nor heard the witnesses and to make due allowance in this respect (see *Pandya v R* [1957] EA 336; *Ruwalla v R* [1957] EA 570). If the High Court has not carried out its task, it becomes a matter of law on second appeal whether there was any evidence to support the conviction. Certainly misdirections and non-directions on material points are matters of law. On first appeal, the issues raised were that in general there was not enough evidence in view of the contradictions and lack of witnesses to support the prosecution, the appellant had brought to the attention of the Court that there was no description of the clothes worn by the appellant and no identification parade. On the issue of the appellant's possession of the gun he had attempted to dispute that.

As the learned Judge found that the evidence of his identification was doubtful, we would have left the matter there, had not counsel for the Republic remarked that the identification of the appellant by the doctor in court would have been sufficient. When we expressed surprise, counsel invited the Court to express its opinion. Dock identification is worthless (the Court should not rely on a dock identification) unless this has been preceded by a properly conducted identification parade. A witness should be asked to give description of the accused and the prosecution should then arrange a fair identification parade.

On many occasions this Court has held that such identification is almost worthless without an earlier identification parade (see *Owen Kimotho Kiarie v Republic* criminal appeal number 93 of 1983 relying on Rachhodas and Thakore *The Law of Evidence* (The Indian Evidence Act) (13 ed) at 151). The operation of this rule may be observed in *Gopa s/o Gidamebanya and others v R* (1953) 20 EACA 318 at 322 *et seq*. Dr Macharia was a single identifying witness, whose evidence had to be tested with the greatest care, as the trial court fortunately remembered (*Roria v Republic* [1967] EA 583). That cannot be done unless the identifying witness had made a report as to whether he could identify the accused and given a description. His ability to identify the accused is then to be tested on an identification parade (see *R v Mohammed bin Allui* (1942) EACA 72; *R v Shabani Bin Donaldi* (1940) 7 EACA 60 and *Owen Kimotho Kiarie* (*supra*)). If one is to test the evidence with the greatest care this was the way that the Court of Appeal in England in *R v Turnbull* [1976] 3 All ER 549 saw the examination. The Judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made. How long did the witness have the accused under observation? At what distance? In what light? Was the observation impeded in any way, eg by passing traffic or a press of people? Had the witness ever seen the accused before? How often? If only occasionally, had he any special reason for remembering the accused? How long elapsed between the original observation and the subsequent identification to the police? Was there any material discrepancy between the description of the accused given to the police by the witness when first seen by him and the accused's actual appearance? As a result of public disquiet in England that there were mistakes of identification, the Attorney-General agreed that the Director of Public Prosecution would not invite a witness as to identity who has not previously identified the accused at an identification parade, to make a dock identification unless the witness's attendance at a parade was unnecessary or impractical or there were exceptional circumstances (see Archbold *Criminal Pleading Evidence and Practice* (40ed) paragraph 1348 *et seq*). There is no evidence that there is any less disquiet in Kenya than in England, and as the authorities on this topic stretch back some 40 years, it is not asking too much that a witness is asked to give a description of the accused, and the prosecution to arrange for a fair identification parade.

Having these principles in mind, we would go a little further than the High Court and state that, as a matter of law, the dock identification in this case was almost worthless. Certainly no conviction could be based upon it alone.

Turning then to the second part of the case, the High Court based its conviction of the appellant on the doctrine of recent possession, which was not a matter spelt out by the trial court. It is not surprising, therefore, that the appellant has tackled this aspect on this appeal. What he says in effect is that it is a misdirection of the trial court to have dealt with the evidence on a new aspect of the case without examining the contradictory evidence, and simply saying the police are to be believed and the appellant is not. It may be that this cavalier type of treatment is the cause of many second appeals. The learned Judge should have considered:

(1) whether the appellant was the man actually arrested with the revolver;

(2) whether it was the stolen revolver;

(3) whether the appellant's defence raised any doubt on these matters; and

(4) whether the inference of theft at the time of the robbery charged was properly drawn;

(5) whether it might be a case of stolen property at the bank, or receive stolen property, if it were not a case of mistaken identity.

On the first point, it is a case of the evidence of Constable Wilson Mutahi against that of the appellant. In this Court, the test is whether there was any evidence, and not the sufficiency of it. There was evidence, even if Constable Mutuku could and should also have been called. It would also have been proper for an inquiry to be made whether the appellant had always remained in the view of Constable Wilson Mutahi and what clothing he had worn which Constable Mutuku might have corroborated. It would have been proper for Chief Inspector Kiketi to be called, and for a proper chain of evidence to be established showing through whose hands the revolver passed. We notice that the prosecution had intended to call Inspector Kiketi, but did not.

It was due to the lack of a chain of evidence, and supporting evidence that the appellant queried his arrest with the revolver alleged to be the complainant's property. If the lack of a chain of evidence meant that there was no evidence to support the finding of possession then this Court must interfere. But that is not the position. First, Dr Macharia identified the gun with the aid of his firearm certificate. The serial number proved the gun to be his. Second, Constable Wilson Mutahi noticed that very serial number. It was the same number that was seen by the firearms examiner. Thus despite the lack of a chain of evidence, in this case it can be said with certainty that the revolver found on the man arrested was Dr Macharia's gun. The High Court should have answered that point.

Then the evidence of the appellant's arrest had to be weighed with the defence. This the trial court did and the High Court concurred. There was no overwhelming evidence, but there was evidence. Accordingly this Court cannot interfere. The result is that the appellant was found in possession of the doctor's gun, and not that he was a mere bystander.

The inference to be drawn from the appellant's possession is a matter of law. The appellant suggested in cross-examination that he acquired the gun in the bank, no doubt in an effort to separate the two robberies. If he did not acquire the gun at the Sigona Golf Club, then he was not guilty of that particular robbery. But this defence was not put forward in his unsworn statement. The appellant contended himself with saying that he had not possessed the gun – somebody else had dropped something – suggesting the gun, but this is not explicitly stated. In that case, it was a question whether or not the appellant had the gun which he was ordered to drop. The conclusion must be that there was evidence to prove that the appellant had acquired the gun on 20 August 1985. There was no evidence to suggest that the appellant was merely a receiver. In the case of a revolver which would have to be carefully guarded and for which the appellant found a use, nine days is a sufficiently recent period. The appellant queried that point. But we agree with the High Court that the proper inference to draw was one of recent possession of the stolen revolver. The appellant also queried whether or not he had common intention. All the gang at Sigona Golf Club had the common intention to rob the doctor. It is fair to infer that the appellant was one of them and that he was guilty of robbery which includes the theft of the gun that had been left in the car which was taken with the other articles and while the car was abandoned the gun and other articles were stolen from it.

In the end, having considered what the appellant has put before the Court in his various memoranda of appeal and written address, in the light of the scope of the duty of this Court, we confirm that the appellant was rightly convicted.

We should end on a note of acknowledgement to the firearms examiner who produced photo-micrographs for the trial court to understand his examination. That has been lacking in many cases recently, and we hope this is a sign of a return to the proper standards in that respect. That was well done.

The appeal is dismissed in its entirety.

For the appellant:
In person

For the Republic:
Nicholas Harwood, Senior State Counsel

Nyambane v Republic
[1986–1989] 1 EA 425 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	19 February 1986
Case Number:	150/85
Before:	Hancox, Nyarangi JJA and Platt AJA
Sourced by:	LawAfrica

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[1] Criminal law – Obtaining by false pretences – Whether pretence shown as to an existing fact or a statement of future intention – Whether court has power to order disposal of a vehicle allegedly purchased with money obtained – Sections 311, 312 and 313 – Penal Code – Sections 178(1) and 389A – Criminal Procedure Code.

Editor's Summary

On 12 September 1984 the appellant offered to obtain for the complainant a Peugeot 504 car from a friend, which he said was going cheap at KShs 105 000. A man said to be owner of the vehicle was introduced to the complainant on the 14 September when they all travelled to Nairobi, where the complainant borrowed the KShs 105 000 from his bank. He hid this in the ceiling of his house in the appellant's presence. Both then returned to Nairobi, travelling back to Narok independently on 15 and 16 September respectively. On 16 September the appellant went to the complainant's house and asked for, and was given, the KShs 105 000 to go and complete the transfer with the car's owner. Both signed a short document, called an agreement, recording this fact.

The appellant then disappeared and was not seen again until 20 October in Nakuru when he was traced by means of a Peugeot 504, KWL 653, which was the type of car the complainant knew he then had. He was convicted of obtaining by false pretences and the first appeal was dismissed. On

second appeal the appellant contended that there was no evidence against him as to a statement made of an existing fact as required by section 312 of the Criminal Procedure Code, and, moreover, that the expert handwriting evidence as to his signature on the agreement should be discarded, as well as that of the two supporting eye witnesses to the events of 16 September. There was also a dispute as to the car KWL 653 which the Magistrate had ordered should be re-registered in the complainant's name, and which the first appellate Judge had ordered should revert to the appellant's son.

Held – (Following *R v Dent* [1955] 2 All ER 806). Though almost every representation of fact involves a promise of statement of intention as to the future, in this case the appellant clearly represented that he had the power and the means to obtain a car for the complainant at a reduced price, and though the events took place over several days, they all constituted one transaction.

Insufficient foundation had been laid for the reception of the handwriting expert's opinion. However, there existed ample other evidence to justify the concurrent findings of fact of both lower courts that the money was obtained, that the representation was made, and it was at the material time false to the appellant's knowledge.

There was no evidence that the car KWL 653 was one contemplated by the appellant at the time of the false pretence, or that it was purchased by the appellant with the KShs 105 000 or to whom it belonged. Neither the Magistrate nor the Judge had jurisdiction to make orders in respect of it. The rival claims to it should be the subject of civil, not criminal, proceedings (*Omboko v Republic*, *infra*, distinguished). (*Quaere*: Whether the evidence alternatively disclosed the offence of theft by agent in accordance with section 271 of the Penal Code.)

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Gitonga v Republic [1984] LLR 1793 (CAK)

Omboko v Republic (1982–1988) 1 KAR 422 – **D**

Salum v Republic [1964] EA 126

United Kingdom

R v Bates and Pugh [1848] 3 Cox's 201

R v Dent [1955] 2 All ER 806 – **F**

Judgment

Hancox, Nyarangi JJA and Platt AJA: The appellant was charged before the second class District Magistrate at Narok with obtaining KShs 105 000 from one Charles Mugesi by false pretences contrary to section 313 of the Penal Code. The false pretence alleged in the particulars of the charge was that the appellant "was in a position to buy him" (meaning the complainant) "a motor vehicle at a cheaper price at Nairobi."

It was this averment in the charge sheet which gave rise to the first ground in the memorandum of appeal to this Court and formed the main basis of the submissions of Mr *Otumba* on behalf of the appellant. He submitted that the transaction which took place between his client and the complainant and which spread over the several days from 12 to 16 September 1984, involved a mere promise, a statement of future intention, and therefore did not amount to a false

pretence as to an existing fact as defined in section 312 of the Penal Code. The Courts, Mr *Otumba* said in effect, should not be astute to ascribe to the criminal law matter which in reality only amounted to breaches of civil contracts or agreements, for which there existed adequate remedies by way of a suit.

There was a document in very simple terms which was called an agreement and produced in the appellant's trial marked "A", and which merely recorded that the complainant had given KShs 105 000 to the appellant "so that he can go and buy a motor vehicle from his friend". There was expert handwriting evidence from CI Bett that one of the signatures on the agreement, which he had compared with specimen signatures, the validity of which Mr *Otumba* also attacked, was that of appellant. This agreement arose from a conversation between the parties, who were friends of long standing, which took place on 12 September 1984, in the course of which, so the complainant testified, the appellant said that a friend of his was selling a Peugeot 504, which was going cheap at KShs 105 000, instead of KShs 170 000 for a new car. The appellant promised to bring the car's owner to him on 13 September and, when that did not materialise, agreed to do so the following day, when a man was produced who was said to be the owner. All three of them then travelled to Narok in the complainant's car to enable him to raise the KShs 105 000 at his bank.

The complainant's bank manager was amenable to this loan, the money was obtained, tied with string and hidden in the ceiling of the bedroom in the complainant's house. All this was done in the presence of, and indeed with the assistance of, the appellant. Thereafter they returned to Nairobi, agreed that the appellant should have the engine of the complainant's car tuned up and that the appellant should come with the car the complainant was intending to purchase, first at 8:00pm on 15 and then at 7:00am on 16 October. When the appellant did not turn up with either car on either of these occasions, the complainant began to entertain suspicions regarding the bone fides of the appellant and requested another friend, Peter Awoni (PW3) to drive him to Narok, leaving a message to that effect for the appellant.

The appellant duly arrived at Narok late on 15 September and on the 16th asked for, and was given KShs 105 000, plus his commission, whereupon the agreement to which we have referred to was signed by each. They drove back to Nairobi and that was the last the complainant saw of the appellant until 20 October, when he ran him to earth in the Turet Hotel at Nakuru. The complainant apparently had information as to the car which the appellant then had, a Peugeot 504, Number KWL 653, about which there has been much subsequent argument, involving several counsel, in this case. On his arrest the appellant offered to return the money to the complainant, but this was refused.

Mr *Otumba* submitted, when arguing his second group of appeal, that there was insufficient evidence for the trial Magistrate, and subsequently the High Court (Omolo AJ), to find that the KShs 105 000 had been paid over to the appellant. He said that no foundation had been laid for the reception of the handwriting evidence, as illustrated, for example, by Spry J (as he then was) in *Hassan Salum v Republic* [1964] EA 126 at 127 and 128, that neither Aloni nor the watchman corroborated or supported the complainant's evidence of this and that the learned Judge's finding in this respect was erroneous. Accordingly it boiled down to one person's word against another, for the appellant, in his unsworn defence, denied taking any money from the complainant, or signing any agreement.

We are inclined to agree with Mr *Otumba*'s comments regarding the handwriting evidence. As Spry J said, the features of similarity between the unknown and the questioned handwriting or signature should precede in evidence the opinion of the expert. However, we are unable to agree with him that there was no evidence supporting that of the complainant. Both Aloni and the watchman said they saw with their own eyes that a quantity of money, which was tied (though neither could say how much money) was removed from the ceiling by the complainant and handed over to the appellant, and that they both signed a document. Neither witness was successfully challenged in cross-examination and we think that both the Magistrate and the Judge were entitled, and indeed right, to find on the complainant's evidence, as so supported, that KShs 105 000 was paid to the appellant on 16 September 1984. We should be reluctant to disturb these concurrent findings of fact on a second appeal unless there were compelling reasons, which do not exist in this case, for us to do so.

There were, equally, concurrent findings of fact, which we are equally loath to disturb, that the money was paid over against a representation that the appellant had a friend who was selling a Peugeot 504 car cheaply at KShs 105 000. Mr *Etyang*, for the Republic, submitted that there was in fact "no friend and no car". Again there was ample evidence to support the concurrent findings of facts by both lower courts that the representation was false.

This brings us back to ground 1, namely the point as to whether the representation was one of an existing fact, or was merely a promise or statement of intention *de futuro*. True it is that almost every representation of fact involves a statement of intention, though the converse is not necessarily so. In *R v Dent* [1955] 2 All ER 806, a case decided on section 32 of the Larceny Act of 1916, which was before the law was altered in England to create the new offence of obtaining by deception by the Theft Act of 1968 (so that the statutory provision there being considered was similar to section 313 of the Penal Code) the Court of Criminal Appeal had this to say at 807:

> "Dishonesty is not *per se* a criminal offence: and the point that has been argued before us and which is the subject of the deputy chairman's certificate is that a statement of intention whether expressed or implied, is not a statement, which can amount to a false pretence for the purpose of the criminal law."

And at 808:

> "Every promise by a person as to his future conduct implies a statement of intention about it, though not every statement of intention amounts to a promise; but it would manifestly be absurd to hold that when such a statement of intention does not amount to a promise, the accused has committed no offence and that when it does not amount to a promise, he has. No distinction can be drawn for this purpose between 'I will do it' and 'I intend to do it'.
>
> There are two qualifications to be noted. The first is that a promise as to future conduct may be coupled with a false statement of existing fact, and that the words in the statutory definition are 'a promise . . . is not by itself a false pretence'."

Finally the Court said, (with reference to the older *R v Bates and Pugh* [1848] 3 Cox 201) at 809 of the report:

> "The words 'ready and willing to pay' indicate the second qualification. Readiness and willingness to pay may suggest a statement about a future conduct. It is clear from the authorities that the law does not seek to divide the future meticulously from the present. If a man says: 'if you give me the goods now, I will hand over £10,' while as a matter of chronology payment follows after delivery, as a matter of business it is all

> one transaction. It has so far not been necessary to determine just where the dividing line between present and future is to be drawn. The reason for this is, we think, that there can, in the nature of things, be few promises intended to be performed immediately which do not import some statement about the promisor's readiness to perform, that is, he has as an existing fact, the power and means to perform his promises."

That in our view fits the present situation. By telling the complainant that he had a friend who was selling a Peugeot 504 car very cheap and promising, in effect, to bring its owner and arrange the sale of it to the complainant, the appellant was representing that he had the power and the means to obtain the car for the complainant at the stated price, or, as it is stated in the particulars of the charge set out at the beginning of this judgment, that the appellant was in a position to buy (the complainant) a motor vehicle at a cheaper price in Nairobi. Though the events occurred over several days, they were clearly all one transaction (see *R v Dent* (*supra*)).

Further support for this view is to be found in the Court's decision of *Gitonga v Republic* [1984] LLR 1793 (CAK) which considered a false pretence that the appellant had a farm to sell, coupled with a statement that there would be collections of money for the intending shareholders. It may also be that the evidence alternatively established the offence of theft by agent, in that the money could be deemed under section 271 of the Penal Code to have been the property of the complainant, but the point was not argued before us.

However, as we have said, there was ample justification for the concurrent findings of fact, by both the lower courts, that the representation was made and that it was false. There was thus in our view a false pretence as to an existing fact which the appellant made to the complainant in order to obtain the KShs 105 000.

Being of this view, we entertain no doubt that the conviction was correct, both in fact and in law, and that the learned first Appellate Judge's decision dismissing the appeal against it was also correct. We accordingly dismiss this second appeal by the appellant against his conviction. As we explained to Mr *Otumba*, we have no jurisdiction to entertain ground 3 of the memorandum of appeal, which was against the sentence.

That unfortunately, is not an end of the matter because there remains the vexed question of the motor vehicle KWL 653, which was the subject of an application by the Republic before the Chief Justice on 17 February 1986, and was referred by him to Full Bench which was then about to continue the hearing of the main appeal. We gave leave to Mr *Etyang* to argue the issue before us, but as we indicated during the course of his submissions, there was no evidence that the vehicle, which was produced as an exhibit, was the one which was being contemplated by the appellant in September 1984, still less that the KShs 105 000 paid over by the complainant on the 16th of that month was used by the appellant to purchase it.

Accordingly this case is not the same as *Omboko v Republic* (1982–1988) 1 KAR 422 in which the property referred to in the charge had been stolen and the appellant prosecuted to conviction, so that the Court could order that the proved stolen property should revest in the owner under either section 178(1) of the Criminal Procedure Code or section 25(1) of the Sale of Goods Act (Chapter 31). Neither is the situation covered by section 311 of the Penal Code in which different offences are mentioned. Here the property mentioned in the

charge was the money and not the vehicle KWL 653. While we agree with Mr *Etyang* that the Judge's order regarding the vehicle was, for the reasons we have just stated, wrong in law, we also agree with Mr *Otumba* that the Magistrate had no jurisdiction to make the order substituting the complainant as the registered owner of the vehicle (as the log book shows) instead of George Ongera, in the first place.

Even if it were possible for us to ascertain to whom the vehicle KWL 653 belonged we would have no jurisdiction to make any order in respect of its destination. It is, in any event, not possible to ascertain this fact, because, although we adjourned the appeal as part heard on 25 September 1985 for the production of the documentary exhibits VIII to XV (or exhibits 8(i) to (vii)) these have not been forthcoming. We sympathise with Mr *Etyang* and the police, to whose custody the vehicle was committed by Omolo AJ's further order of 26 September 1985 for the invidious position in which they are placed, but the rival claims to it are matters which should be the subject of civil proceedings, and do not fall within the jurisdiction of this Court on a second criminal appeal, save only to state that the orders of both the learned Judge and of the district Magistrate with regard to the vehicle KWL 653 were made without jurisdiction and to order that they be set aside.

Appeal dismissed.

Orders accordingly.

For the appellant:
JA Otumba

For the Republic:
AGA Etyang, Principal State Counsel

Oguyo v Republic
[1986–1989] 1 EA 430 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	19 March 1987
Case Number:	43/84
Before:	Platt, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Criminal law – Stealing by servant contrary to section 281 of the Penal Code – Appellant charged with stealing ten earth rods from his employer – Charge stating that offence committed on a date other than the actual date – Whether curable under section 214(2) of the Criminal Procedure Code.

[2] Evidence – Contradictions and discrepancies in the prosecution evidence that the appellant stole the same number of earth rods on two different days – Duty of the first appellate court to evaluate the evidence and to resolve the conflict.

[3] Plea of guilty – Appellant pleaded guilty at his initial appearance before the district Magistrate – Plea withdrawn and not guilty plea entered before formal conviction entered – Whether any reference

should be made by the Court to this change at the subsequent proceedings.

Editor's Summary

The appellant was convicted of the offence of stealing by servant contrary to section 281 of the Penal Code and sent to prison for one year. By the time his second appeal came for hearing, he had already served his term. The evidence against him was that he stole ten earth rods from his employer on a given date. The charge stated that the offence was committed on a date other than the date which subsequently emerged in the evidence of the prosecution witnesses. On his first appearance, the appellant had pleaded guilty but he withdrew the plea before a formal conviction was entered. At his trial the Court made reference to this change. On his first appeal to the High Court which was dismissed, the appellant complained about the quality of the evidence of the prosecution witnesses. He filed a second appeal to the Court of Appeal.

Held – The variation between the date given in the charge and that which emerged in the evidence was covered by section 214(2) of the Criminal Procedure Code and it was not therefore necessary to alter or amend the charge.

The first appellant court is under a duty to resolve any discrepancies or conflicts in the evidence at the trial and to decide the issues raised as failure to discharge this duty makes it difficult for the Court of Appeal to decide which evidence the trial and first appellate courts would have accepted.

Where an accused person has first admitted the charge and then denied it, it is improper for the Court to refer to the earlier admission once the Court has accepted a plea of not guilty and proceeded to try the case. The change of plea does not absolve the prosecution from its duty to prove the charge beyond any reasonable doubt.

In view of the discrepancies in the prosecution evidence, which were not resolved by the trial and first appellate courts, there was no evidence upon which the appellant's conviction could be sustained.

Appeal allowed.

No cases referred to in judgment

Judgment

Platt JA: The appellant Jared Ondanda Oguyo has appealed a second time from his conviction by the District Magistrate at Machakos, of the offence of stealing by servant contrary to section 281 of the Penal Code, and the sentence imposed upon him of one year's imprisonment. The judgment was given on 3 March 1983. The appellant has served his sentence, but still seeks to clear his name of the conviction against him. It would appear to us that the appellant's long fight must end in success.

It was a very simple matter, but it became complicated later on, as we shall endeavour to explain.

The appellant was employed by the East African Power and Lighting Company (as it was then called), and in the course of his duties, he provided electrical installations at Mtito Andei, as the man in charge of a group of 13 people. One aspect of that work was to place earth rods in the ground. The company issued a number of these earth rods to the appellant, who kept them in a store and used them from time to time. The appellant was assisted by a deputy leader

called Kariuki Njengo (PW3) and another man called Josephat Njogu Mbutu (PW2). It was during the course of the work on 18 March 1982, that Njogu thought he saw earth rods belonging to the company in the possession of a local contractor called Kariuki Gachamba. Njogu checked the company's store with Kariuki, the deputy leader, and found ten earth rods missing. Kariuki himself said that the appellant had loaded contractor Kariuki Gachamba's vehicle on 19 March 1982 with earth rods. Njogu and Kariuki, the deputy leader, reported to the Engineer called Peter Muindi when the latter visited Mtito Andei on 2 April 1982. Later on, Philip Kathira (PW1) came down to investigate on 12 May 1982. When Kathira arrived at the scene, Njogu and Kariuki, the deputy leader, reported to Kathira that 11 of the company's earth rods had been taken from the company store and sold to an electrical contractor by the appellant. This was reported to the police at Kibwezi, and the allegations further investigated. As a result some earth rods, which appear to be nine full rods and two halves, making 11 pieces in all, were seized and produced in court.

The appellant at first admitted theft but then denied it. As a result of the change in the plea, the theft alleged had to be fully proved. He was assisted at his trial by an advocate. But the first admission weighed heavily against the appellant, although it is quite improper in principle, even to refer to the first admission in Court, once the Court has accepted a plea of not guilty, and has proceeded to try the case. That is because the trial proceeds upon the basis that the prosecution must prove the case beyond reasonable doubt against a man, assumed to be innocent until proved guilty. The first admission had therefore lost all probative force once the trial had commenced. Such admissions may often be simply a matter of fear, or of false hope in gaining a very light sentence. But the trial court did refer to this admission, and the High Court did not deal with this issue, although it was clearly raised in the first ground on the appeal to it. A good judgment on first appeal will deal with all the issues raised either at length or shortly according to the importance of the points raised, especially any point which bears upon the acceptance of evidence.

In this appeal we are hampered by a judgment from the High Court, which consists almost entirely in a repetition of all the evidence, often in verbatim form, and very little by way of evaluation of the evidence. The High Court accepted the findings of fact of the trial court, and reached the same conclusion on the question of the "amendment" of the charge, if that was to be implied from the proceedings. The High Court was right to note that a variation between the date given in the charge and that which emerged in the evidence, was catered for in section 214(2) of the Criminal Procedure Code; so that it was not absolutely necessary to alter or amend the charge. But of course it may be that a date becomes a vital issue to the defence of the accused, and to some extent this difficulty was illustrated by this case.

As set out above, the case concerns the theft of either 11 or ten earth rods from the company's store on either 18 or 19 March 1982. The prosecution may not have realised how the case would develop because of the evidence of the deputy, Kariuki. The evidence of Njogu leads to the suggestion that the earth rods he saw on contractor Kariuki's vehicle on 18 March 1982, were the ten rods which Peter Kamau saw in contractor Kariuki's store on the evening of that day, and were the ten rods used by Peter Kamau on 19 March 1982, and unearthed later in May during the investigations of Corporal Justus Nyasinga.

This was strengthened by the search of the store on same day or around this time, by deputy Kariuki and Njogu. They found ten rods missing. Thus, barring the accident that they may have been mistaken in their arithmetic, and the company inspector Philip Kathira is right that 11 rods were stolen, it seems that the prosecution had intended to prove a completed theft on 18 March 1982, of all the ten rods found in contractor Kariuki's store on that day, and their entire use the following day, 19 March 1982.

But deputy Kariuki improved on that situation after an adjournment of the trial. It was not 18 March but 19 March 1982 on which he observed the appellant take out earth rods from the store with his own hands and load them on to the vehicle of contractor Kariuki. When cross-examined he admitted that in his statement to the police, he had said that he had been informed on 18 March 1982, while he was on duty that ten earth rods were missing from the store. But that was wrong. Nobody had informed him that rods were missing, because he had seen it happening. The policeman who had recorded his statement had omitted to write that Kariuki had seen the appellant taking the earth rods. As the statement was not proved, the Court is bound by the admission and explanations of the witness regarding that statement. Even so, there is no possible way to reconcile an admission that he had received information on 18 March, that ten rods were missing, with his evidence that he saw the theft on 19 March 1982. He described himself as being some 200 yards from the store at noon when this happened. By checking the store later it was found that ten rods were missing.

If both deputy Kariuki and Njogu are right ten rods went astray on 18 March, and some more also on 19 March, supposed to be ten in number. It sounds as if 20 rods were involved from what was seen, except that only ten rods were counted as missing.

What did the Courts below make of these contradictions? They were indulgent to Messrs Kariuki and Njogu and believed them both in general, except that the trial court found that on the question of the date of the theft, it was not 10 May 1982 as alleged in the charge, but 18 March 1982. The trial court was impressed by the evidence of Peter Kamau that the latter had found ten rods in contractor Kariuki's store on 18 March 1982, and had been told to use them on 19 March 1982. The judgment continues:

> "Hence the three witnesses (ie Njogu, deputy Kariuki and Peter Kamau) are saying the truth about the date when the earth rods were removed from the company's store and delivered to one Gaciamba by the accused. Here the police officer who prepared the charge-sheet erred in writing the date shown the offence was committed. It ought to have read 18 March 1982. I so find. Now the three witnesses cannot be blamed for the act or omission of the police record." (*sic*)

It follows that deputy Kariuki's date of 19 March 1982 was not accepted, even though he was given the chance to change to 18 March when cross-examined on his police statement. It is Njogu and Peter Kamau's evidence which proved the theft on 18 March 1982. That had the result that deputy Kariuki's evidence of the actual theft on 19 March 1982 was disbelieved as to the date and in this case that must have affected his whole story. It cannot be that Njogu and Peter Kamau were right as to what they saw on 18 March 1982, with the ten rods found in contractor Kariuki's store on that date, and then ten rods again being stolen on 19 March 1982. But the lingering effect of deputy Kariuki's story will be seen in the Magistrate's finding that on 18 March 1982 the earth rods were

removed from the company's store and delivered to one Gachiamba by the accused. Neither Njogu nor Peter Kamau saw that. It follows that the Magistrate must have thought, without saying so, that deputy Kariuki had seen the appellant give contractor Kariuki the rods on 18 March. To come to that conclusion involved the contradiction deputy Kariuki's evidence being passed over, and that the complaint of a sale to contractor Kariuki was also passed over. Indeed the contradiction between Kariuki's evidence and his police statement was never referred to by the trial court. As to the sale, the Magistrate observed:

> "According to PW2 the accused sold and delivered the earth rods to one Kariuki Gachiamba a local contractor."

How did Njogu know this? Here the High Court stepped in and found that there was no evidence of sale. Despite that, both Njogu and deputy Kariuki were held to be truthful witnesses that the accused was seen to be carrying earth rods out of the store and putting them into Kariuki Gachiamba's vehicle. The High Court fell into the same trap as the trial court, in not distinguishing what was seen on 18 March, and what was seen on 19 March, apparently, by each of these two witnesses. Njogu did not see anything happen at the company store on any date. He was at contractor Kariuki's store.

The truth is, we think that the prosecution had a statement of deputy Kariuki that he had received information of missing rods on 18 March. It was Njogu that saw the alleged missing rods on contractor Kariuki's vehicle. It was never expected that Kariuki would say more than that. The prosecution had to accommodate his attempt to "see" the theft on the wrong date. The lower court had to choose between Kariuki's evidence and Njogu's evidence; they could not choose both. They actually did accept both, and that was a misdirection since their stories were incompatible. The petition of appeal to the High Court had specifically raised the problem of material contradictions and discrepancies in the prosecution case. The speech of defence counsel at the trial raised this problem. Both courts ignored these warnings.

The appellant now raises this same problem again. In ground 5 he refers to the manner in which the rods were found by Njogu and as deputy Kariuki explains what happened, they must have been found in an unknown place. That is to say, were the rods discovered in the sequence of events set in train by Njogu's evidence, or were the rods seen stolen by Kariuki on 19 March ever found? That raises the question whether ten rods were stolen on 18 March and another ten rods on 19 March. That line is continued in ground 6 where it is asserted that the two key witnesses did not know the date the rods in question were stolen. In ground 9 the appellant queried the acceptance of deputy Kariuki's evidence when it was clear he had merely been informed. These grounds are directed at the incompatibility of the evidence of Njogu and deputy Kariuki and their general unreliability.

The penalty for failing to decide the issues raised at the trial on first appeal is that it will often be very difficult for this Court to decide which evidence the Courts below would have relied upon. But supposing that deputy Kariuki's contradiction was found to be outrageous and it can hardly be less than that, and Njogu's evidence were relied upon, there are serious flaws in that case. first and foremost how would it be possible to prove that the appellant stole the rods? If they were the company's rods that Njogu saw, then contractor Kariuki

was in recent possession of what must have been stolen property. What he thought of the matter is not known, because he was not called. How would the appellant then be implicated? There would be no evidence otherwise to connect the appellant.

Secondly, assuming that Njogu saw the rods in the contractor's vehicle, were the rods that Peter Kamau saw in the store the same rods? Njogu did not count the rods. Assuming that that hurdle can be surmounted, were the rods used by Peter Kamau on 19 March recognised as company rods? Peter says Njogu saw them. Njogu is silent on that point. But the most important deficiency is that Peter Kamau did not point out the places where he had embedded the rods, to corporal Justus on 13 May 1982 when the latter was investigating. Peter had left this employment by then. It was "one person" found installing electricity "in some building". That person is not known and was not called to give evidence. The corporal's evidence was therefore hearsay evidence. As far as Peter Kamau is concerned, there is no link between the ten rods produced in court and the ten rods he used. Peter however recognised the rods in court. It is not clear how. The corporal produced ten rods. Peter had used nine rods without cutting them and the tenth he had cut in half. It is not easy to see how that tallied with the ten in court. Defence counsel complained that the ones in court had all been cut. Peter acknowledged that the "long earth rod" was not theirs; that had been a sample. Without other marks of identification (which Peter did not give), there was no evidence to support his identification. He did not see them dug up; they were not in the same shape; they had no marks that he specifically pointed out. Neither was there any proper identification from a witness from the factory manufacturing the rods that these particular ten rods unearthed for the corporal were company rods. Indeed there was no evidence what sort of rods contractor Kariuki normally used.

The third great difficult is that the deficiency at the store was not clearly proved. There are no records kept at the store as to what is received and what is used. The appellant is alleged to have kept a diary. It was not produced. There is no certainty what the stock was. That can be well illustrated by the difference between what Njogu thought was lost, ten rods based on 40 in the store, and 11 rods thought by Philip Kathira to have been lost based on 42 rods in store. Kathira and corporal Justus do not even agree how many were found in stock in May. Philip Kathira said it was 11, and the corporal said it was eight. Apart from this, the prosecution relied upon what the appellant said he had received and used as Philip understood the case. Again the corporal understood it differently. This is not evidence, but guesswork.

In fact, unless we are much mistaken, the whole case is guesswork, that the appellant "sold" these rods to the contractor. It should be noted that Peter Kamau said that the contractor worked for the company installing electricity in the same place as the appellant and his team. Why would he not work with the appellant?

The result is that it is quite uncertain that the appellant would have been convicted had the evidence been properly evaluated. Accordingly the appeal is allowed, and the appellant's conviction is quashed. He has served his sentence. Learned State Counsel on first appeal did not appear to support the conviction; we think that he was right.

For the appellant:
In person

For the Republic:
PK Murgor, State Counsel

Okello v Uganda National Examination Board

[1986–1989] 1 EA 436 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	23 December 1988
Case Number:	12/87
Before:	Wambuzi CJ, Lubogo AJSC and Odoki JSC
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[1] Civil procedure – Fraud – Particular – Whether dates of the particulars mandatory – Whether head title "particulars of fraud" mandatory – Order 6, rule 12 – Civil Procedure Rules.

[2] Land title – Impeachment of title – Grounds for impeachment – Section 56 – Registration of Titles Act.

Editor's Summary

The East African Examination Council was given a lease in 1973 for 99 years by the Land Commission on condition that the building should be completed within two years from the date of the lease failing which the lease would determine. There was a proviso that the secretary of the Land Commission within his discretion would renew the lease.

The East African Examination Council failed to comply with the building covenant within the stipulated time but the Land Commission extended time for another two years. Again, the East African Examination Council failed. Lastly, the time was extended to 1980. In the meantime, the East African Examination Council had ceased to exist in 1977 after the collapse of the East African Community in the same year. In 1983, the Uganda National Examination Board came into existence by the Act of Parliament. In the intervening period, [1980–1983] the appellant applied to the Land Commission for the same land. The application was granted and, eventually, the appellant got a Title Deed to the suit property. The respondent began to interfere with the workmen and at the same time claiming the suit property. The appellant filed an action in the High Court seeking documentation that he was the rightful and *bona fide* proprietor of the suit land and an injunction restraining the respondent from interfering, damages and costs. The High Court dismissed the suit on the ground that the appellant did not establish his title to her satisfaction. On appeal.

Held – The failure to give dates of the particular of fraud is not a fatal defect especially where no procedure was occasioned.

It is the rule of practice to specify the particular of fraud under a definite heading entitled "particulars of fraud" however that is only a requirement as to the form of pleading whose departure from will not necessarily vitiate the pleading (*Castlino v Rodrigues* [1972] EA 223 (followed).

Per Lubogo AJSC (*dissenting*) – Order 6, rule 2 of the Civil Procedure Rules is mandatory in that the particulars of fraud and dates regarding the alleged fraud should be given.

Per Lubogo AJSC (*dissenting*) – The particulars of fraud as it is in the case of negligence must be under a definite head entitled "particulars of fraud".

The question of striking out the written statement of defence when raised on a preliminary objection was a fundamental objection that would affect the question whether the case proceeded further since it was a matter of law and not a matter of fact.

The law is clear that a certificate of title is conclusive evidence of title. The certificate can only be impeached on limited grounds including fraud as set out in section 184 of the Act (*Olinda De Souza Figueiredo v Kassamali Nanji* [1962] EA 756 and *Waimiha Saw Milling Co Ltd v Waione Timber Co Ltd* [1926] AC 101 (followed)).

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Castelino v Rodrigues [1972] EA 223 – **F**

Misango v Musigire and others [966] EA 390

Olinda De Souza Figueiredo v Kassamali Nanji [1962] EA 756 – **F**

United Kingdom

Waimiha Saw Milling Co Ltd v Waione Timber Co Ltd [1926] AC 101 – **F**

Judgment

Lubogo AJSC: The appellant, Okello-Okello, filed an action in the High Court against the respondent Uganda National Examinations Board seeking:

> "(*a*) A declaration that the plaintiff is the rightful and *bona fide* proprietor/lessee of the property comprised in LHR Volume 1253 folio 9M 207 off Mabua Road, Kampala.
>
> (*b*) A permanent injuction to restrain the defendant, its servants and/or agents or anybody or entity claiming title or interest under the defendant from interfering with the plaintiff's quiet possession of the suit property.
>
> (*c*) General damages for inconveniencies, disturbances and embarrassment while quiet possession is denied to the plaintiff.
>
> (*d*) Costs of the suit."

The learned trial acting Judge Mpagi-Bahigeine, as she then was, dismissed the suit on the ground that the appellant did not establish his title to her satisfaction. Hence this appeal.

The brief facts of the case are that the East African Examination Council was given a lease in 1973 for 99 years by the land commission on condition that the building should be completed within two years from the date of the lease failing which the lease should determine, with a proviso that the secretary of the Land Commission within his discretion would renew the lease. The East African Examination Council failed to comply with the building covenant within the stipulated time; the Land Commission extended time for another two years,

again the East African Examination Council failed. Lastly it was extended to 1980. In the meantime, the East African Examination Council had ceased to exist in 1977 after the collapse of the East African Community in the same year.

In 1983 the Uganda National Examination Board came into existence by Act of Parliament. During the intervening period between 1980 and 1983 the appellant applied to the Land Commission for the land above mentioned. The application was granted and eventually got a Title Deed to the suit property on 1 July 1983. After fulfilling all the necessary procedures with the City Council regarding plans of the building and obtaining finance, he started to develop the suit property.

It was during that time that the respondent began to interfere with the workmen and at the same time claiming the suit property. The appellant then filed an action in the High Court seeking the remedies above mentioned. The appellant has seven grounds of appeal that:

> "(1) The learned trial Judge erred in law in refusing to strike out the pleadings in the written statement of defence which alleged fraud without stating the particulars thereof, and the learned trial Judge misdirected herself in basing her refusal on the question of proof which is a matter of evidence while the objection was strictly on a matter of law."

In his submission learned counsel for the appellant Mr *Kayondo* SC stated that paragraphs 3 and 4 of written statement of defence raised the issue of fraud, but did not state whether the imputation was against the appellant or somebody else. He said that he had written to the Attorney-General whose department was handling the case for particulars of fraud, but received no reply nor an amendment to the written statement of defence was never made. The requirement to give particulars was a matter of law and not a matter of evidence as the trial Judge indicated. He went on to say that the finding by the trial Judge on the instruments number 251162 and number 215386 purporting to re-enter and to effect the registration of the appellant respectively were insufficient as no dates were given.

Order 6, rule 2 of the Civil Procedure Rules reads:

> "In all cases in which the party pleading relies on any misrepresentation, fraud, breach of trust, wilful default or undue influence, and in all cases in which particulars may be necessary such particulars with dates shall be stated in the pleadings."

This rule is mandatory in that the particulars of fraud and dates regarding the alleged fraud should be given. The learned trial Judge, however, directed her attention to paragraphs 2 and 3 of the written statement of defence she said:

> "Paragraph 2 of the written statement of defence admits of paragraphs 2 and 7 of the plaint. The said paragraph 2 of the plaint merely identified and describes the defendant body. Paragraph 7 of the plaint merely reiterates that the statutory notice had been served on the defendant.
>
> I thus consider the objection to paragraph 2 of the written statement of defence to be deliberately frivolous and vexatious."

She then quoted the whole of paragraph 3 of the written statement of defence and remarked:

> "A mere gloss over this paragraph 3 of the written statement of defence indicates that two specific instruments are pointed out as allegedly being tainted with error. These are the instrument number 251162 purporting to effect re-entry by the Uganda Land Commission and instrument number 215386 purporting to effect transfer of the

> property into plaintiff's names. These would be the instruments giving effect to the entire transaction. It is these instruments that are being challenged. The charges of fraud have been given a definite character by pointing out these two particular instruments upon which the said charges rest."

With due respect to the learned trial Judge the instruments referred to in paragraph 3 of the written statement of defence are said to be "unlawful" and not fraudulent by the learned trial Judge "in that they were passed before the original lease was lawfully terminated". An act being unlawful does not mean it is fraudulent. If, however, it means the same thing, in this context, then no dates were given as to when they came into existence. These were the particulars that were sought for in the letter exhibit P5 dated 17 September 1987 to the Attorney-General by learned counsel for the appellant.

Moreover, the particulars of fraud, as it is in the case of negligence, must be under a definite head entitled "Particulars of Fraud". It was not so in the written statement of defence.

However, in his submission learned counsel pointed out that he directed the attention of the learned trial Judge to paragraphs 3 and 4 of the written statement of defence which alleged fraud and not to paragraph 2 of written statement of defence. Both paragraphs 3 and 4 alleged fraud and therefore particulars should have been given.

In conclusion, on this issue the learned trial Judge had this to say:

> "In the case before me it is the defence challenging the transaction on the ground of fraud. This does not lessen the plaintiff's burden of proof in establishing his case."

The learned trial Judge having directed herself properly on the issue of the burden of proof, she should have gone further to show fraud on the part of the appellant. There was nothing more the appellant could do, but to produce the certificate of title and leave the respondent to prove fraud.

The learned trial Judge misdirected herself on the question of striking out the written statement of defence when it was raised on a preliminary objection by counsel for the appellant. It was not necessary to defer the matter to a later stage in the proceedings before a finding on the matter was made. This was a fundamental objection which would affect the question whether the case proceeded further. This was a matter of law and not a matter of evidence. For these reasons this ground would succeed.

The second ground of appeal was that:

> "The learned trial Judge erred in striking out the issues on which the determination of the suit would depend."

In this ground learned counsel for the appellant submitted that the learned trial Judge struck out the issues which she had accepted and recorded, but struck them out without giving any reason why it was necessary to do so.

The issues that were recorded by the learned trial Judge were:

> "(1) Whether LHR Volume 1253 folio 9 plot M207 of Mabua Road, Kololo (the suit property) was lawfully registered into the names of the plaintiff and/or whether the plaintiff is a *bona fide* lessee for value of the suit property, or whether the registration was perpetuated by fraud and if so whether the fraud is attributable to the plaintiff and/or whether it affects the plaintiffs and/or whether it affects the Title?
>
> (2) Whether the defendant can legally claim succession of Title automatically or otherwise to the East African Examination Council's property and/or claims?

(3) Whether the defendant's claim over the suit property and physical interference with the same by its servants, officers and/or agents in the course of their employment with the defendant amounts to trespass?

(4) Whether the plaintiff is entitled to the declaration, permanent injunction and damages prayed from the Honourable Court and to how much general damages he is entitled?"

These issues which were framed by the learned trial Judge appear to be issues of law and fact and in accordance with Order 13, rule 1(4). I do not see anything wrong with that. In the judgment she said:

> "All in all I consider these issues to be wrongly framed I feel fortified by the above two provisions and am proceeding to strike them out. They are accordingly struck off the record."

The two provisions referred to in the above quotation are Order 13, rule 1(6) of the Civil Procedure Rules and Order 13, rule 5(2) of the Civil Procedure Rules. However it appears to me that the issues were struck out on the ground that they were wrongly framed and not on the ground that at the hearing of the suit the defendant made no defence or that the issues had been joined upon the pleadings. The learned trial Judge should have proceeded to indicate in what manner they were wrongly framed or introduced, in order to strike them out as the Court has a discretion in the matter under Order 13, rule 5(2) of the Civil Procedure Rules. It probably would have been a different matter if the learned trial Judge had said that she inadvertently framed the issues without due regard to the provision of Order 13, rule 5(1) of the Civil Procedure Rules which gives a right to amend if they were wrongly framed. This ground, therefore, would also succeed.

The third ground of appeal reads:

> "The learned trial Judge erred in law and in fact in disregarding or failing to appreciate or properly to evaluate the appellant's evidence of ownership and/or registered proprietorship of LHR volume 1253 folio 9 known as plot M207 of Mabua Road Kololo which under section 56 of the Registration of the Titles Act is conclusive evidence of the appellants Title being paramount and in not impeachable or defeasible."

On this ground counsel for appellant submitted that section 56 of the Registration of Titles Act is relevant to the question of proprietorship, and that the evidence of the appellant in the lower court was not challenged, nor did the trial Judge disbelieve it.

In his evidence in the lower court the appellant gave evidence on oath.

He stated:

> "I am the registered proprietor of L volume 1253 folio 9 plot M207 Mabua Road, Kololo. I applied for this lease, and was given the offer. I was eventually issued with a Title Deed after paying all the charges. The original Title Deed is mortgaged with Housing Finance (U). This is a copy of the Title Deed exhibit P1. I intended to erect a residential house on this plot. I had my plans approved by City Council. The original one is with the Housing Finance (U). I then started developing it in 1983. The guest wing is completed. The main house is not yet completed . . ."

This evidence was not challenged and the learned trial Judge appears to have believed it as a copy of the Title Deed was exhibited as exhibit P1 and accepted. It stands to reason, therefore, that the ownership of the lease in question

was not disputed especially in the light of the provisions of section 56 of the Registration of Titles Act which reads:

> "No certificate of Title issued upon an application to bring land under this Act shall be impeached or defeasible by reason or on account of any informality or irregularity in the application or in the proceedings previous to the registration of the certificate of Title issued under any of the provisions herein contained shall be received in all courts as evidence of the particulars therein set forth and of the entry thereof in the register book, and shall be conclusive evidence that the person named in such certificate as the proprietor of or having any estate or interest in or power to appoint or dispose of the land therein described is seized or possessed of such estate or interest or has such power."

The certificate of title was issued in the name of John Livingstone Okello-Okello, the appellant, on 1 July 1983. It was therefore incumbent upon the respondent to adduce evidence to prove that the issue of the certificate of title was tainted with fraud. This evidence was not tendered. Therefore, on the balance of probabilities the learned trial Judge should have found for the appellant.

This ground would also succeed.

The fourth ground of appeal was:

> "The learned trial Judge erred in law in failing to appreciate the extent and incidence of the burden and/or onus of the proof and thereby wrongly imputed mal or non-feasance (if any) in the duties and functions of the Uganda Land Commission in granting a lease to an individual upon the applicant."

Learned counsel for the appellant submitted on this ground that the appellant never submitted plans for building to the City Council and the trial Judge referred to the non-production of authenticated documents.

In her judgment the learned trial Judge said:

> "It is very interesting to note that plaintiff told the Court that he had applied for the plot for the purpose of erecting a residential house and that he had his plans approved by the City Council. It is to be noted the Court was not shown these plans. He never disclosed there was already a structure under construction as is now apparent according to exhibit P4 which is not disputed."

According to paragraph 3 of the plaint the main issue to be decided was whether:

> "The plaintiff is the rightful and *bona fide* lessee for value of volume 1253 folio 9 plot M207 off Mabua Road, Kololo, Kampala."

Even issue number 1 which was cancelled referred to the same thing. The defendant averred in his written statement of reference paragraph 3 that:

> "The defendant pleads that the property comprised in leasehold register volume 1253 folio 9 otherwise known as plot M207 Mabua Road has never been legally and effectively transferred to any person save the original proprietor thereof, East African Examination Council . . ."

The central averment of the plaintiff's and the defendant's pleadings to be adjudicated upon was whether the property belonged to the plaintiff or to the defendant and not whether the procedure of the City Council was adhered to. The appellant produced his certificate of title and that was evidence which could not be challenged in any court of law except on the group of fraud. No such evidence was adduced by the respondent. The onus of proof was squarely upon the respondent, and not upon the appellant, to produce evidence of fraud. This ground would therefore also succeed.

The submissions on grounds five and six have been covered above, nevertheless I reproduce them here:

> "5. The learned trial Judge misdirected herself on the facts and on the law in finding and/or assuming that merely because an extension of the lease had been applied for the East African Examination Council it was automatically granted which was not the case and the learned trial Judge ought on the primary and secondary evidence on record by the appellant which was unchallenged, to have found that the appellant is the registered and *bona fide* proprietor of the suit property."

And the sixth ground is as follows:

> "6. The learned trial Judge erred in law and misdirected herself in finding that the Uganda National Examination Board is the successor in title of the East African Examination Council and the trial Judge erred in failing that the relationship between the East African Examination Council and the Uganda National Examination Board under no circumstances fetters or affects the appellant's indefeasible and unimpeachable Title."

Now I come to the last ground of appeal which reads:

> "7. The learned trial Judge erred in law and on the facts in failing to avoid to the appellant general damages of UShs 500 000 as prayed for at the trial and she further erred in stating in her obiter dictum that if she was to hold otherwise she would have awarded general damages of UShs 50 000."

On this ground, although the learned trial Judge did not say on what principle she relied, she at least gave reasons for her decision. She said:

> "Were I to hold otherwise I would have awarded general damages of UShs 50 000 for the plaintiff has not indicated that his construction or development has ever had to stop at anytime because of the inconveniencies, disturbances caused by the servants and/or agents of the defendant."

Counsel for the appellant did not show us whether the principles of awarding general damages had been violated by the learned trial Judge, nor did he attack the reasons given by her. The plaint was filed on 2 July 1987 after the new currency had been introduced and judgment was delivered on 24 October 1987. This means that the element of inflation could not have been taken into consideration because the period between the introduction of the new currency and judgment was almost negligible. Moreover, the appellant failed to show the extent of inconvenience and disturbance. This ground would, therefore fail.

I would, therefore, allow the appeal with costs in this Court and the Court below.

I must mention, however, that we did not have the assistance of the State Attorney in this appeal.

Odoki JSC: I have had the benefit of reading in draft the judgment of Lubogo AJSC and I agree with him that this appeal must be allowed. I only wish to add a few observations.

While I agree with Lubogo AJSC that the respondent's pleadings did not strictly conform to the provisions of rule 2 of Order 6 with regard to the need to state the particulars of fraud, I am of the opinion that the written statement of defence was not so defective as to warrant being struck out. I agree with Wambuzi CJ that the statement of defence contained sufficient particulars of the alleged fraud. The numbers of the instruments which were alleged to have been tainted with fraud were given. The failure to give their dates was not a fatal defect nor prejudicial to the appellant who, being the registered proprietor,

must have known these dates. In my view, the trial Judge was justified in holding that the charges of fraud had been given a definite character by pointing out the two instruments upon which the charges rested.

I agree that it is the rule practice to specify the particulars of fraud under a definite reading entitled "Particulars of Fraud". But in my view that is only a requirement as to the form of pleading whose departure from will not necessarily vitiate the pleadings. In this connection, I would agree with what Spry Up said in *Castelino v Rodrigues* [1972] EA 223:

> "Of course rules are made to be observed, but irregularities of form may be ignored or cured by amendment where they have occasioned no prejudice. In these matters of form courts are much less strict today than formerly."

The main issue in this appeal was whether the appellant's certificate of title could be impeached on ground of fraud. The law is clear that a certificate of title is conclusive evidence of title (see section 56 of the Registration of Titles Act). The certificate can only be impeached on limited grounds including fraud as set out in section 184 of the same Act. Therefore in the absence of fraud, a court cannot go behind the fact of registration (see *Olinda De Souza Figueiredo v Kassamali Nanji* [1962] EA 756).

In *Waimiha Saw Milling Co Ltd v Waione Timber Co Ltd* [1926] AC 101, while dealing with Australian Statute similar to our Registration of Titles Act, the Privy Council said:

> "The cardinal principle of the statute is that the register is everything and that except in cases of actual fraud on the part of the person dealing with the registered proprietor, such person upon registration of title under which he takes from the registered proprietor has an indefeasible title against all the world."

The appellant produced a copy of his certificate of title which was conclusive evidence that he was the registered proprietor or owner of the suit property. It was upon the respondent to adduce evidence to substantiate his allegations of fraud against the appellant. But the appellant failed to do so leaving the title of the appellant unchallenged. The appellant was in those circumstances entitled to judgment. I agree with Wambuzi CJ that this ground alone was sufficient to dispose of the appeal in favour of the appellant.

I concur in the order for costs as proposed by Lubogo AJSC.

Wambuzi CJ: The appellant filed an action in the High Court against the respondent for trespass over the property comprised in volume 1255 Folio 9 plot M207 in Kampala of which the appellant claimed to the registered proprietor. The appellant prayed for a declaration that he was the registered proprietor, an injuction to restrain the respondent, its servants or agents from interfering with the appellant's quiet possession of the property and for general damages.

The respondent in its written statement of defence claimed that the registered proprietor of the property in question was the East African Examination Council and that the purported transfer of the property to the appellant was fraudulent.

At the trial the respondents did not appear, although served with a hearing notice. The appellant proceeded *ex parte* and the action was dismissed. He has now appealed to this Court against the dismissal on a number of grounds.

I would have allowed the appeal on the basis of ground 3 alone. Section 56 of the Registration of Titles Act is clear in its terms that a certificate of title shall

be conclusive evidence that the person named in such certificate as the proprietor is seized or possessed of such interest. In his evidence the appellant testified that he was the registered proprietor of the property in question. He produced the certificate of title or a copy thereof which was exhibit P1. There being no evidence whatsoever to contradict the appellant's evidence he was, with respect to the learned trial Judge, entitled to judgment. The learned trial Judge does not refer to the evidence of the title in her judgment. She stated, quite correctly in my view, that a party who avers a title must prove it. She, however, reviewed the appellant's evidence as to how he was granted a lease after re-entry by the Uganda Land Commission. In the process, the learned trial Judge found the appellant to have been deliberately untruthful because of contradictions and omissions in his evidence. That may be so but, with respect; there is no finding that the certificate of title exhibit P1 is not a valid certificate.

In point of fact, the respondent by its pleading in paragraph 3 of the written statement of defence admitted that the appellant was the registered proprietor of the property in question but alleged that he had obtained registration by fraud. It follows, in my view, that in the absence of fraud the appellant's title cannot be impugned.

In this connection the learned trial Judge said in her judgment that she felt constrained to mention that it was perplexing for the appellant to try to establish his rightful title without recourse to any authenticated document from the Registry of Titles. With respect, this is misdirection.

First, as already pointed out in this judgment, exhibit P1 which is a copy of the certificate of title was admitted in evidence and the appellant explained that the original certificate of title had been deposited with a bank to secure a loan. Second, again as already pointed out in this judgment, it is not denied that the appellant had title to the property.

The case for the respondent on the pleadings was that the appellant's title was void for fraud. In my view, therefore, the only issue before the Court was whether or not the appellant was properly registered as proprietor.

I find that grounds 4, 5 and 6 of this appeal are different manifestations of ground 3 and question findings of the learned trial Judge on matters strictly not in issue. For example, whether there were any extensions to the lease granted to the East African Examination Council or whether the Uganda National Examination Board was a successor to the East African Examination Council.

I agree with the observations of my learned brother Lubogo AJSC on the second ground of appeal. With respect, the issues as framed appear to be matters in controversy, particularly the first issue, whether the appellant obtained his registration as proprietor fraudulently.

I would like to make one or two observations on the first ground of appeal complaining about the refusal to strike out the pleadings of fraud due to absence of particulars. I agree that the relevant pleadings are paragraphs 3 and 4 of the written statement of defence and not 2 and 3. It would appear that the reference to paragraph 2 by the learned trial Judge must have been in error.

In paragraphs 3 and 4 the following facts are pleaded:

> "1. That the proprietor of the property in question is the East African Examination Council;
>
> 2. That instrument number 215162 purporting to re-enter was fraudulent;
>
> 3. That instrument number 215386 purporting to effect registration of the appellant as proprietor was fraudulent and illegal; and

4. That there was a re-entry and registration of another party before lawful termination of the original lease."

Wording apart as regards the last fact normally re-entry would determine the lease, it being a different matter whether the determination was or was not lawful. It may well be that this is a matter of language and that what was being pleaded was that there was no re-entry.

In fact, in paragraph 4 of the written statement of defence the respondent alleges that the registration was obtained by fraud and accordingly the appellant was not a *bona fide* purchaser. I must admit that the pleadings could have been worded better but in my view some particulars of fraud are given. What the respondent was saying is that the Land Commission leased the property to the East African Examination Council and that during the currency of that lease they also purported to lease the same property to the appellant. Both the leasor and the appellant are being accused of fraud, the leasor in respect of the re-entry and grant of the lease to another party and the appellant in effecting registration during the currency of an existing term. A further particular relating to knowledge of the existing term by the appellant would probably have put the matter beyond question but I would not have regarded the omission as fatal. As worded it is arguable that knowledge could be implied on the part of both the leasor and the appellant. It is sure no dates were supplied in defence regarding the alleged particulars but in my view nothing much turns on the Commission. The relevant numbers of the instruments were given and the instruments are therefore identifiable.

I am persuaded by the judgment of Sir Udo Udoma CJ in the case of *Musa Misango v Musigire and others* [1966] EA 390 where he cited the speech of Fletcher Moulten LJ, in an English case at 395 to the effect that a party will not be "driven from the judgment seat" without the Court having considered his right to be heard except in cases where the cause of action was "obviously and almost incontestably bad".

In my view, the first ground of appeal would fail. As Odoki JSC, agrees with the judgment of Lubogo AJSC, there will be an order in the terms proposed by Lubogo AJSC.

For the appellant:
Kayondo

For the respondent:
Information not available

Okelo and another v Osonga
[1986–1989] 1 EA 445 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	29 April 1988
Case Number:	165/86
Before:	Hancox, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Trespass to goods – Wrongful seizure of bull as contribution to school harambee drive – Appeal to High Court coupled with objection proceedings in High Court – Appeal rejected summarily by

different Judges – Applications to review summary

rejections to yet another Judge – Dismissal of applications for review for lack of jurisdiction – Power of summary dismissal of civil appeals to be sparingly exercised – Whether High Court has jurisdiction to review previous High Court decision on appeal – Validity of notice of appeal to Court of Appeal – Section 79B – Civil Procedure Act – Order XXXIX, rule 1, Order XLII, rule 1(1)(aa) and Order XLIV, rule 1 – Civil Procedure Rules.

Editor's Summary

During the plaintiff's absence in November 1981, the two defendants, who were respectively the chairman and a committee member of the local primary school, entered his premises and seized a bull, the value of which was disputed, in pursuance of contributions levied on the school parents as part of a *harambee* drive to raise funds. The plaintiff sued for the wrongful attachment and was awarded KShs 1 000 damages by the District Magistrate at Kisii. The defendants appealed to the High Court and the appeals were summarily rejected by Aganyanya J and Schofield J on 8 September 1982 and 14 February 1983, respectively, under section 79B of the Civil Procedure Act. In June 1984, the first defendant's brother brought objection proceedings in respect of the seizure of three cattle by the plaintiff and the Court broker in execution of the decree which the plaintiff had obtained in the High Court by virtue of the summary rejection of the two defendants' appeals. Schofield J granted a stay of the sale of the cattle, but these proceedings were never concluded. The defendants then filed a joint chamber summons, purporting to be under Order XXXIX of the Civil Procedure Rules (which deals with temporary injunctions) seeking the setting aside of the summary dismissals of their appeals, the reinstatement thereof, and a stay of the execution proceedings. On 30 May 1985, Masime J ruled that he had no jurisdiction to entertain that application. The defendants then appealed to the Court of Appeal against Masime J's decision, and their memorandum of appeal, *inter alia*, claimed that he had erred in law by refusing to "reinstate or review" the earlier summary rejections of their appeals without their having been afforded an opportunity of being heard in open court.

Held – No notice of appeal had been filed against the summary rejections of the first appeals by Aganyanya J and Schofield J, and, since this was the foundation for the Court of Appeal's jurisdiction, the instant appeal had to be treated as being against Masime J's decision not to review the earlier High Court decisions, and not against the earlier decisions themselves.

Following *Nzioka and another v Kitusa* [1982] LLR 1394 (CAK) the power of summary rejection of appeals in civil cases should be sparingly exercised and only in the clearest cases, such as where the appeal is based entirely on fact and no point of law arises. It is inappropriate where the memorandum raises substantial grounds of appeals (see also *Owiro v Wesonga* (1982–1988) 1 KAR 828).

Assuming that the decision appealed from was an application for review under Order XLIV of the Civil Procedure Rules, an appeal lay as of right to the Court of Appeal under Order XLII, rule 1(1)(*aa*) thereof.

The power of review by the High Court, either under section 80 of the Act or under rule XLIV, was not confined to reviewing earlier decisions made at first instance, but includes those on appeal from a subordinate court.

The Judge erred in deciding that he had no jurisdiction to entertain the application, which was in essence for review, and the case would be remitted for it to be heard.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Nzioka and another v Kitusa [1982] LLR 1394 (CAK)

Owiro v Wesonga (1982-1988) 1 KAR 828

Judgment

Hancox JA: In pursuance of a *harambee* drive to collect funds for the local primary school, the school committee of Kakwara Primary School passed a resolution in September 1981 that all parents should contribute to the school at the rate of KShs 200 for a man and KShs 50 for a woman. The appellants were respectively the chairman and a member of the school committee, and were charged with making individual collections and thus putting the resolution into effect.

It was not disputed during the hearing before the second class district Magistrate at Kisii that the two appellants, acting in pursuance of that which they thought was their duty, went to the respondents' home in Kamagamba location, during the morning of 12 November 1981, and in purported execution of that authority, took possession of one bull. There was equally no dispute that the animal was the property of the respondent, who was away cutting sugar cane at the time, but the incident was witnessed by his wife Kezia Akinyi who protested at the appellants' action but was unable to prevent them from removing it.

The respondents' case at the trial was first that he resided in the Siginina sub-location, that he had already contributed KShs 250 to the primary school there, and showed them the receipts, that the animal seized was a big bull worth KShs 1 000, and not KShs 320 only, as claimed in the appellants' defence to the suit and in the evidence. Three receipts totalling KShs 300, not 250 all dated 12 November 1981, and signed by the second appellant, were produced in evidence.

The learned Magistrate found that the appellants had seized the respondent's bull without colour of lawful authority, or under any written law, that their subsequent actions in selling it were equally unlawful, and he awarded damages of KShs 1 000 plus interest and costs as prayed in the plaint.

The appellants appealed to the High Court, and the record of the proceedings is a curious one. Concurrently with the appeal there seem to have been proceedings brought in the form of an application for an injunction under

Order XXXIX of the Civil Procedure Rules, by one Michael Ongoro Okungu, naming the respondent as the decree holder and the two appellants as the judgment debtors. These proceedings were in relation to three animals, none of which are shown in the record to have been wrongfully seized, but which, according to the affidavits filed, appear to have been attached at the instance of the respondent as the judgment creditor in purported execution of the decree he had obtained in the Magistrate's Court in the instant case.

These were treated as objection proceedings by Schofield J and a stay of execution was granted on 24 August 1984, but as the attempts to reach agreement between the parties proved unsuccessful he adjourned the matter, in effect *sine die*, and the record is thereafter silent as to what happened to the objection proceedings. It is difficult to see why they were included in the Record of this appeal.

At all events the two High Court appeals against the Magistrate's decision, numbered as civil appeals number 26A and 26B of 1982, came before Aganyanya J and Schofield J on 8 September 1982, and 14 February 1983, respectively, and both were rejected summarily under section 79B of the Civil Procedure Act (Chapter 21). Yet another application, to set aside the summary rejection and reinstate the appeals (by which time the two appeals had been combined), came before Masime J (as he then was) on 30 May 1985. He reached the conclusion that he had no jurisdiction to entertain it, with the result that it was dismissed with costs. A notice of appeal was filed against that decision on 26 March 1986, and the present appeal before this Court, according to the joint memorandum of appeal, is against the decision of Masime J and not against the earlier summary rejections by Aganyanya J and Schofield J (even though the cover of the Record mentions the name of Aganyanya J and not the date of his decision).

I therefore consider that this Court has not alternative but to deal with this as an appeal against the decision of Masime J dated 30 May 1985, and, accordingly, the short point for our determination is whether Masime J was right in saying he had no jurisdiction to entertain the application to reinstate the previously dismissed High Court appeals.

Some of the grounds in the memorandum of appeal seems to be more appropriate to an appeal against the summary rejections of the first appeals, which this Court said in *Nzioka and another v Kitusa* [1982] LLR 1394 (CAK) is a jurisdiction which should be sparingly exercised. In the first ground the appellants' complaint begins by saying that the Judge (Masime J) erred in dismissing the application to reinstate or review the summary rejection, and continues:

> ". . . and yet the appellants or their agents had not been served with Notice or without setting the said appeal to be heard in open court."

Ground 9 reiterates that the Judge erred in law in rejecting the appeal summarily, and both that and the intervening grounds are complaints against the conduct of the trial and on the merits and demerits of the fundraising exercise which gave rise to it.

That, however, is not, as I see it, the true issue on this appeal. It may be that the appellants have not been legally advised, and would easily misapprehend the nature of the decision against which they are endeavouring to appeal, but the position remains that, without a notice of appeal, this Court lacks jurisdiction to entertain an appeal against a decision of the High Court. The only notice of appeal in existence is the one against Masime J's decision. There is none against either the decision of Schofield J or of Aganyanya J.

It is therefore the validity of Masime J's refusal to reinstate the earlier appeal which is in question, and ordinarily it is quite impossible for one Judge of the High Court to set aside the decision of another Judge of equal jurisdiction, whether on appeal, or at first instance. The only such power is if an application for review is made under Order XLIV, rule 1 of the Civil Procedure Rules, under which certain conditions have to be satisfied.

It is not clear from the application and supporting affidavits dated 12 February 1985 at pages 28 and 29 of the record, under which Order or Rule the application to reinstate the appeal was made. At first sight it might be thought that the terms of Order XLIV, rule 1, by referring to a decree or order from which an appeal can be brought, (under the definition section in the Act a decree is only passed on the determination of a suit) that only decisions at first instance can be reviewed, and not those on appeal.

However, in *Nzioki and another v Kitusa* (*supra*), the appeal was against the dismissal of an application for review and not against the original dismissal of the appeal summarily under section 79B of the Civil Procedure Act (Chapter 21). The Court envisaged an application for review either under Order XLIV or under section 80 or the Act. The Court also said that Order XLII, rule 1(1)(*aa*) envisaged an appeal as of right against the dismissal of an application for review. The Court, composed of Law and Potter JJA and myself, said as follows:

> "Instead of fixing a date for the hearing of the application and again without hearing any argument on the merits, the learned Judge proceeded to dismiss the application for review with costs. From this order, the applicants have lodged the present appeal as of right, see Order XLII, rule 1(1)(*aa*). The principal ground of appeal, argued before us by Mr Patel, was that the learned Judge erred in dismissing the application for review without hearing the parties. Mr Mervyn Morgan, for the respondent, conceded that there had never been a hearing.
>
> We have no doubt that this appeal must succeed. The 16 March 1982, was fixed as a date for mention of the application, and not as a hearing date. The application for review has never been heard, and it would not therefore lawfully have been dismissed. We set aside the Order of Muli J dismissing that application. We order that the application for review be remitted to the High Court for hearing according to law."

From the foregoing it would appear that the power of review in the High Court is not limited to reviewing decisions at first instance but includes those on appeal. Such a decision is itself appealable under Order XLII, rule 1(1)(*aa*). Mr *Achayo*, for the respondent, supported the judgment of the High Court, and specifically that of Masime J on 30 May 1985. He also supported the Magistrate's decision and asked that the appeal be dismissed with costs. He did not deal with the point to which I have just referred.

For these reasons I consider Masime J should have heard the application for a review. I would allow the appeal, set aside the order of Masime J and direct that the application for review be remitted for hearing to the High Court according to law.

As Platt and Gachuhi JJA agree it is ordered that this appeal be allowed with costs in this Court, but that those in the High Court hearing should abide the event.

Platt and Gachuhi JJA concurred in the judgment of Hancox JA.

For the appellant:
In person

For the respondent:
Ominde Achayo

Okoyana v Musi and another
[1986–1989] 1 EA 450 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	20 June 1987
Case Number:	142/86
Before:	Platt, Gachuhi JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Practice and procedure – Consent order – Whether appealable on ground that it was null and void.

[2] Succession – Application for revocation of grant – Consent order distributing estate without any order for or against revocation of grant – Whether consent order valid – Consent order distributing estate calling for rectification of land register without first obtaining Land Control Board consent – Whether consent order valid.

Editor's Summary

The first respondent applied to the High Court to revoke or annul a grant of letters of administration issued to the appellant claiming that the appellant had omitted in his application for the grant information to the effect that the first respondent was a widow of the deceased and thus entitled to live on the deceased's land. She prayed that she may be appointed an administrator with the appellant.

When the first respondent's application came on for hearing, the following consent order was recorded:

> "By consent, land register to be rectified as follows:
>
> Land Register number Bunyala/Sirigoi/251 to be subdivided into 3 equal parts and given different numbers for Ibrahim Okonya Shiambiri, David Musa Wafumbi and Ziporah Musi and respective land certificates to be issued in respect thereof. The parties, of course, to comply with Land Control Act requirements before the said subdivision."

The appellant appealed against this order on the ground that it was "against all the facts of the case". The Court of Appeal understood the grounds of appeal to mean that on the actual application before the High Court, no such consent order could validly be entered and that it was therefore null and void.

Held – No distribution of the estate could validly take place until it was decided who should have the grant of letters of administration.

The parties could not by means of a consent order rectify the register without first obtaining the

consent of the Land Control Board. They could, however, agree to apply jointly to the Board for permission to subdivide and then seek to have the subdivisions carried into effect.

The consent order was therefore null and void.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Brooke Bond Liebig (T) Ltd v Mallya [1975] EA 266

United Kingdom

Burns v Campbell [1952] 1 KB 15

Judgment

Platt, Gachuhi JJA and Masime AJA: The appellant Ibrahim had obtained letters of administration on 7 March 1985. This grant was confirmed on 7 October 1985. But on 17 June 1986 Ziporah Musi (first respondent) summoned Ibrahim to defend her application to revoke or annul the grant of letters to Ibrahim. She claimed that Ibrahim had omitted important material in his application, because she, Ziporah, was a widow of the deceased and entitled to live on land, which was to be registered in the appellant's name. Therefore, she ought to be an administrator as well as Ibrahim. Not all the heirs had been mentioned in the appellant Ibrahim's application. The deceased, the father of Ibrahim and husband of Ziporah had divided the land; each of those left behind had their portions, but Ibrahim wanted to evict Ziporah from the land. Ibrahim denies that and claims to look after her.

Ziporah's application came on for hearing on 26 June 1986. The record does not disclose what occurred in chambers on 15 July 1986, the date to which the matter had been adjourned for the appearance of the appellant. On this latter day, a consent order was entered on the record.

It reads:

> "By consent, land register to be rectified as follows:
>
> Land registration number Bunyala/Sirigoi/251 to be subdivided into 3 equal parts and given different numbers for Ibrahim Okonya Shiambiri: David Musa Wafumbi and Ziporah Musi and respective land certificates to be issued in respect thereof. The parties of course, to comply with Land Control Act requirements before the said subdivision."

Each party then signed.

The appellant now appeals against this consent order claiming it to be against all the facts of the case. He adds that he was put in a cell to "soften" him up, and when he was cleared he was told to sign. The Court has understood the grounds of appeal to mean that on the actual application before the Court no such consent order could be entered. It was invalid and the terms of that order were null.

At any rate, that is the position taken now for two reasons. The first is that there could be no distribution of the estate of the deceased whilst it was uncertain who the administrator or administrators actually were. If the grant to Ibrahim was to be revoked, then the registration of the land in his name was in

doubt. If Ibrahim had no sole grant, he would act unlawfully. The same goes for Ziporah. She could not agree to distribute the estate before she had letters of administration (see *Burns v Campell* [1952] 1 KB 15). Neither of them could give David Wafumbi a share. It is not possible to enter into a consent judgment to carry out an unlawful purpose. Any such proceedings are null and void (see *Seton on Judgments and Orders* (7 ed) Volume 1 at 124 approved in *Brooke Bond Liebig (T) v Mallya* [1975] EA 266).

The second point is that the parties could not agree to rectify the register before the consent of the Land Control Board had been given. They could agree to apply for consent of the Land Control Board for subdivision. But it was premature to agree to rectification, a matter which concerned the Registrar. They could seek to subdivide and then seek to have the subdivision carried into effect. On the other hand, David Wafumbi was not a party to the proceedings, initiated by Ziporah. All that she asked for was to be made a joint administrator with Ibrahim.

This appeal succeeds on the ground that whether or not there was a true consent order the proceedings of 15 July 1986 were null and void, and must be set aside. It is so ordered. The record is remitted to the High Court, Kakamega, for a different Judge to hear and determine Ziporah's application according to law. Each party will bear his or her own costs of this appeal.

For the appellant:
In person

For the respondent:
In person

Omar v Republic
[1986–1989] 1 EA 452 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	11 March 1988
Case Number:	133/86
Before:	Platt, Gachuhi and Apaloo JJA
Sourced by:	LawAfrica

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[1] Criminal law – Capital robbery – Identification parade – Whether properly executed in view of prior sighting of the appellant by complainant and his wife – Whether parade of any evidential value.

Editor's Summary

The appellant, one of several co-accused, was acquitted on two counts on which it was alleged he had confessed but convicted on a third count of robbery on which he had not confessed, but had been identified at a parade. His grounds of appeal questioned the *bona fides* of the identification parade in view of his allegations that the complainant and his wife had seen him on two occasions prior to the parade. Indeed such an allegation by the appellant was noted on the prosecutor's parade notes. The trial court had found the parade proper. The prosecution case evidenced similar circumstances when

the appellant might have been sighted prior to the parade and did not attempt to rebut

the defence allegations. The parade was therefore the foundation of the identification of the appellant and if the defence stand was uncontroverted then the parade was rendered useless. A statement by the accused of a denial of any participation on its own would not be sufficient to convict, but if the parade identification was proper the appellant's statement would have been disparaged in part anyway.

Held – Though the identification parade was properly held, the effort is set at naught if witnesses had seen the appellant at the police station beforehand.

The defence allegation of prior sighting was never rebutted by the prosecution and the trial Court overlooked this. This was a non-direction on an issue going to the root of the identification parade.

The parade was thus rendered useless as evidence against the appellant.

If the identification parade afforded no evidence, then there was no evidence to illustrate the falsehood of the accused's statement of denial in participating in the robbery.

Appeal allowed, conviction on third count quashed. Sentence set aside.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Njoroge v Republic criminal appeal number 149 of 1986 (UR)

Judgment

Platt, Gachuhi and Apaloo JJA: Although charged with three offences of capital robbery, the appellant was acquitted by the High Court (Trevelyan and Scriven JJ) on counts 1 and 2, on which he was held to have confessed his guilt, but convicted on the third count, on which it was held that he had not confessed guilt.

That third count concerned the invasion of the house of Simon Kibitok (alias Murreh) at about 4:00am on 7 April 1978, during which Simon gave up the KShs 20 he had, while threatened by six men. Before they left he sustained a gun shot wound in his leg. Simon and his wife Rosebella (PW17 and 24 respectively) described the events of that awful morning, and later on pointed out this appellant (the sixth accused at the trial) at an identification parade. Simon alleged that it was the appellant who had first asked him for money, as the robbers took Simon all round his house, probably in search of gold. Rosebella did not apparently hear this. The money offered, KShs 10, was at first refused by the accused Aizack (number 4). Then husband and wife were pushed out of the house by the intruders for an inspection of the granary. At this juncture Rosebella says she went to her cows and escaped. Simon relates that she came back to the house and then escaped. After returning to the house, KShs 20 was accepted by Aizack; but Simon was shot in the leg by Aizack, no doubt, for good measure. The intruders escaped.

James arap Murgor (PW18), an employee of Simon, confirmed the general outline of the robbery, but did not notice nor identify the appellant.

The identification of this appellant depended upon the evidence of Simon and Rosebella. Apart from the discrepancy in the sequence of the events, there is the discrepancy that these witnesses alleged that they could identify all six the accused in court. But that was not the position at the identification parade, held very well by Inspector Mibei (PW23). Simon identified five, and Rosebella four. They were not above a little exaggeration, it would seem. Clearly the more accurate description of what they had seen was the result of the identification parade. But the indulgent lower courts allowed Rosebella to put her failure down to her confusion. Her confusion was of no value to the prosecution. The danger of auto-suggestion is so great in dock identification, that identification in this case was proved simply in accordance with the parades. That the High Court accepted, and rightly so (see *Njoroge v Republic* criminal appeal number 149 of 1986 (UR)).

Simon was consistent in saying that it was the appellant who had asked him for money, when he saw the appellant at the parade. Equally the appellant has been consistent throughout the trial in saying that the witnesses saw him at Webuye and Eldoret Police Stations before the parade. Inspector Mibei, in his evidence, claimed that the appellant had complained that Simon had seen him at the police station. The note on the identification parade form (exhibit 19) states:

> "That lady was there and she saw me there at Webuye Police Station. We were there sitting in one vehicle from Webuye to Eldoret. She was there and saw me at Eldoret."

This was part of the prosecution case. It was perhaps an embarrassment. It was never referred to again.

But it has surfaced in ground 3 of the memorandum of appeal. The appellant argued that three people had seen him at Webuye and Eldoret Police Stations. The grounds of appeal are all somewhat exaggerated. There is no need to mention three people – only two recognised him. It is difficult to see how the last allegation in this ground could be true, that the witnesses, according to the appellant, agreed in the High Court that they had seen the appellant before the parade. What happened in the High Court was that the appellant alleged that the answers to questions he had asked of the witnesses at the trial had not been recorded whereby the witnesses had agreed that they had seen him at the police station named. Nevertheless, the main point is that the allegation was made to Inspector Mibei, and he noted it down, as the statement of the appellant at the time of the parade. The High Court queried the propriety of exhibiting the parade forms. But this was the record of what the appellant said. When the appellant came to give his unsworn statement in defence, he said that on 10 April he had been picked out at the identification parade, because the witnesses had seen him earlier. It was a clear issue after that, whether Simon and Rosebella had seen him at the police stations. The appellant also set out the itinerary of his travels. He started his journey from Mbale, Uganda on 7 April and slept that night at Kakamega. The next day, 8 April, he was arrested at a road block and taken to Webuye Police Station. On that day he was taken in a vehicle to Eldoret to sign a statement. The next morning, 9 April, he was taken back to Webuye Police Station. He saw a man with a bandaged leg, who was with his wife. It was alleged that the appellant had beaten the man. He then says, "We were brought to Eldoret and again taken to Webuye." On 11 April he was at Kakamega Police Station. The parade was on 14 April at Kisumu.

The trial court found the allegation false. The Magistrate ruled:

> "I do not accept the allegation of Abdul accused 6 that the witnesses picked him out because they had seen him earlier implying that the parades were improper!"

The learned Magistrate held the parades proper. As we have been at pains to point out, Inspector Mibei carried out his parade very well, and quite in accordance with the rules. But all that effort was set at nought, if the witnesses had seen the appellant at the police stations beforehand. Therefore, it is of interest to ascertain upon what evidence for the prosecution the allegation had been disproved.

There is none. The prosecution showed that the appellant was arrested and taken to Webuye on 8 April. He was at Eldoret for his statements to be recorded at 2:00pm on 9 April and on 11 April in the morning. He was at Kakamega for a medical examination on 11 April. He was at Kisumu on 14 April for the identification parade. There is thus evidence that the appellant was sent from one station to another very much as he says. There is no evidence upon which the appellant's allegation can be faulted. We would observe that it would have been very easy to rebut the allegation. It came out in Inspector Mibei's evidence half way through the prosecution before Rosebella gave evidence. It was not raised and therefore not denied by her. Simon was not recalled. The officers who had dealt with the appellant came after Inspector Mibei. They never rebutted the point. There was no possibility of calling further evidence after the defence, because it could have been dealt with in the normal course of prosecution. There was no surprise. The inference is that it was tacitly admitted.

The High Court allowed the point to escape its attention. Of course, it claimed to have examined the record. It was a matter put directly to the High Court by the appellant in argument. Unfortunately, it turned out to be one of those grounds of appeal about which "nothing further" need to be said. With the greatest respect, that was a serious non-direction about an issue going to the root of the parade. It is not in doubt that the High Court did not rely on court identification, because Wani, the third accused, who was not identified at all on any parade, was acquitted. The Magistrate was influenced by the identification in court. But the High Court only relied on the parade. The High Court was certainly right in taking that particular course.

Thus, the parade being the foundation of the identification of the appellant, if it failed, there was no other evidence of identification. The defence must stand uncontroverted, and the parade rendered useless.

The appellant's next point is that his statements by themselves would not afford sufficient evidence upon which to convict the appellant. In a very forthright analysis of the appellant's statements, the High Court concluded, quite rightly, that the appellant did not admit robbing Simon Kibitok. He had been left out and was sitting in the car while the others intruded into Simon's house. This point overruled the Magistrate's analysis concluding that it was a confession. On the analysis of the High Court, the statements, though not confessions, served to disprove the appellant's alibi, but, together with the evidence of Simon, the statements could be seen to be false in part. The appellant was not only present but had participated in robbing Simon. Hence, once the identification parade afforded no evidence, then there was no evidence to illustrate the falsehood of the statement in part. It follows that all that the evidence amounted to was a denial of participation.

Consequently the appeal must be allowed, the last and only conviction of the appellant on count 3 squashed, and the sentence is set aside. The appellant is to be set at liberty forthwith unless held for any other lawful cause.

For the appellant:
D Opiyo-Odero

For the Republic:
JM Bwoumonga

Onyango v Attorney-General
[1986–1989] 1 EA 456 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	7 May 1987
Case Number:	152/86
Before:	Nyarangi, Platt and Gachuhi Jja
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[1] Natural justice – Rules of natural justice – Whether they need to be expressly provided for in statute – Commissioner of Prisons depriving prisoner of remission – Prisoner not afforded a hearing – Whether decision can stand.

Editor's Summary

The appellant filed suit in the High Court challenging the decision of the Commissioner of Prisons that had purported to deprive him of remission. The Commissioner had written to the officer in charge of Kamiti maximum prisons where the appellant was serving his sentence as stated that he (the Commissioner) considered that it was in the interest of the reformation and rehabilitation of the said prisoner that he be deprived of remission earned under section 46(1) of the Prisons Act. The appellant's case was that, prior to the receipt of the Commissioner's letter, he had not been charged, tried and found guilty or punished for any offence against prison discipline, that he was not informed what he had done to warrant reformation and rehabilitation over and above the lawful sentence, that he was not given any opportunity to be heard or to explain or make representations as to why he should not be deprived of his remission, that the decision by the Commissioner was arbitrary, in breach of natural justice and *ultra vires* section 46 of the Act, and, therefore, illegal, null and void. For the Commissioner it was argued that he was not bound to hear anybody and that there was no requirement under that Act that remotely suggested that an inmate had to be heard. It was further argued that if the legislator intended that the prisoner should be heard, there would be a specific provision in the Act providing for that. The High Court dismissed the appellant's action hence the appeal.

Held – The principle of natural justice applies where ordinary people would reasonably expect those making decisions which will affect others to act fairly.

Subsection (3A)(*a*) of section 46 of the Prisons Act does not expressly limit the Commissioner of Prisons as he considers whether or not to deprive an inmate of remission. That, however, does not free the Commissioner from acting fairly and the Commissioner could not have acted fairly without giving an inmate an opportunity to be heard before imposing loss of liberty.

It is implied unless the contrary appears that Parliament does not authorise the exercise of powers in breach of the principle of natural justice (*Fairmount v Environment Secretary* [1976] 1 WLR 1255 adopted).

A decision in breach of the rules of natural justice is not cured by holding that the decision would otherwise have been right. If the principle of natural justice is violated, it matters not that the same decision would have been arrived at (*De Souza v Tanga Town Council* [1961] EA 377 followed).

Notwithstanding that the Commissioner might regard the issue for his consideration under subsection (3A)(*a*) of section 46 as an internal disciplinary matter, all the same because the rights of an inmate would be affected, the Courts have a duty, unless their jurisdiction is clearly excluded by some statutory provision in the Prisons Act which excludes the jurisdiction of court to concern themselves with the rights of inmates, however circumscribed by a penal sentence.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

De Souza v Tanga Town Council [1961] EA 377 – **F**

United Kingdom

Associated Provincial Picture Houses Ltd v Wednesday Corporation [1948] KB 223

Fairmount Investment Ltd v Secretary for the Environment [1976] 1 WLR 1255 – **A**

HK (an Infant), Re [1967] 2 QB 617

O'Reilly v Mackman [1972] 3 All ER 680

R v Hull Prison Board of Visitors and others [1979] 1 All ER 701

Reg v Gaming Board ex parte Benalim [1970] 2 QB 417

Ridge v Baldwin [1964] AC 40

Judgment

Nyarangi JA: This is an appeal by the prisoner against a decision made by the High Court (Sheikh Amin J) on 14 October 1986 in favour of the respondent Republic.

The matter arises, quite shortly, in the following way. On 1 November 1982 the appellant was convicted of an offence under section 57(1) and (2) of the Penal Code by the Senior Resident Magistrate, Nairobi and sentenced to five years' imprisonment. Upon his admission into prison, the appellant was entitled under section 46(2) of the Prisons Act (Chapter 90):

> "To be credited with the full amount of remission to which he would be entitled at the end of his sentence if he lost no remission of sentence."

What happened later was this. On 17 February 1983, the Commissioner of Prisons wrote to the Officer-in-Charge, Kamiti Main Prison, at which prison

the appellant was serving the sentence of imprisonment and stated that he, the Commissioner of Prisons (the Commissioner) considered that it is in the interests of the reformation and rehabilitation of the said prisoner that he be deprived of remission earned under section 46(1) of the Prisons Act (the Act). The Commissioner continued "now, therefore, in exercise of the powers conferred by section 46(3A)(*a*) of the Prisons Act, I . . . do hereby direct, that the said prisoner convicted of the aforesaid offence be deprived of all remission granted to him under section 46(1) of the Prisons Act".

It would not be wearisome to state subsection (3A)(*a*) of section 46 which provides:

> "(3A) A prisoner may be deprived of remission . . .
>
> (*a*) Where the Commissioner considers that it is in the interests of the reformation and rehabilitation of the prisoner."

Before coming to the issue in this case, I will mention that in his plaint, the appellant averred that, prior to the receipt of the Commissioner's letter, he had not been charged, tried and found guilty or punished for any offence against prison discipline, that he was not informed what he had done to warrant reformation and rehabilitation over and above the lawful sentence, that he was not given any opportunity to be heard or explain or make representations as to why he should not be deprived of his remission, that the decision of the Commissioner of Prisons was arbitrary, in breach of natural justice, *ultra vires* section 46 of the Act, and therefore illegal, null and void. The further contention is that the appellant's continued imprisonment after 4 March 1986 is illegal and a false imprisonment. The appellant as plaintiff prayed for judgment against the defendant for:

> "(i) A declaration that the decision of the Commissioner of Prisons deprived the plaintiff of his remission was made in breach of the rules of Natural Justice and it is null and void *ab initio.*
>
> (ii) A declaration that the decision of the Commissioner of Prisons was nullity since it was unreasonable, *ultra vires*, and not based on any material facts.
>
> (iii) A declaration that the plaintiff was entitled to be released after serving two thirds of his sentence.
>
> (iv) A declaration that the imprisonment of the plaintiff after 4 March 1986 was/is illegal and a false imprisonment.
>
> (v) General damages for false imprisonment."

Sheikh Amin J found in favour of the respondent on the basis of arguments advanced in proceedings under a notice of motion which was taken under Order XIV, rule 2 and Order L, rule 1 of the Civil Procedure Rules and rule 3 of the High Court (Practice and Procedure) Rules and section 3A of the Civil Procedure Act. The issues of law on which the suit was to be disposed of were:

> "(i) Whether or not the plaintiff was entitled to be credited with full remission under section 46(2) of the Act.
>
> (ii) Whether or not the plaintiff was entitled to be released in accordance with rule 95(1) of the Prisons Rules.
>
> (iii) Whether or not the decision of the Commissioner of Prisons depriving the plaintiff of his remission is null and void for breach of the rules of natural justice and unreasonableness."

This appeal was argued on two grounds, ie:

> "1. That the learned trial Judge erred in law in holding that the decision of the Commissioner of Prisons depriving the appellant of remission was not null and void for breach of rules of natural justice.

2. That the learned trial Judge erred in law in not finding that the decision of the Commissioner of Prisons was null and void as it was not based on any of the material facts."

Mr Kiraitu *Murungi*, for the appellant, contended that the main issue is the interpretation of subsection (3A)(*a*) of section 46 of the Act and submitted that, even if there are no words limiting, the Commissioner is bound to follow rules of natural justice, that there was no evidence to support the view that the appellant required further rehabilitation and that the Commissioner could not impose this substantial loss of liberty without giving the appellant an opportunity to be heard. Finally, Mr K *Murungi* urged that the Commissioner's decision is erroneous because there is no evidence what matters the Commissioner took into account and so it is not possible to tell if correct matters were borne in mind.

For the respondent Republic, Mr *Chege*, in an able submission, argued that the trial Judge decided the case on the interpretation of section 46(3A)(*a*), gave the words in that provision their common meaning and applied common sense. Mr *Chege* boldly argued that the Commissioner has not got to hear anybody, that there is nothing in the section which even remotely suggests that an inmate has to be heard, that if the legislature intended that the prisoner should be heard, there would have been a specific provision such as sections 52 and 53 of the Act and that in the instant case the Commissioner considered what there was to consider and that it could not reasonably be said that the decision complained of is so unreasonable as no reasonable executive authority could make.

Mr K *Murungi* made much of the point, and properly made much of the point, that the Commissioner's decision has resulted in substantial loss of liberty.

The Commissioner's decision was an administrative act. Nevertheless rules of natural justice apply to the act insofar as it affects the rights of the appellant and the appellant's legitimate expectation to benefit from the remission by a release from prison some 20 months earlier than if he had to serve the full sentence of imprisonment. Lord Denning MR (as he then was) put it thus in *R v Gaming Board ex parte Benalim* [1970] 2 QB 417 at 430B:

> "It is not possible to lay down rigid rules as to when the principles of natural justice are to apply nor as to their scope and extent. Everything depends on the subject matter . . . At one time it was said that the principles only apply to judicial proceedings and not to administrative proceedings. That heresy was scotched in *Ridge v Baldwin* [1964] AC 40."

I would say that the principle of natural justice applies where ordinary people would reasonably expect those making decisions which will effect others to act fairly. In this instant case, reasonable people would expect the Commissioner to act fairly in considering whether or not to deprive an inmate of his right of remission earned in accordance with the provisions of the Prisons Act. Reasonable people would expect the Commissioner to act on reports, containing information concerning the appellant. The reports will obviously have been prepared by the Officer-in-Charge of the Kamiti Main Prison. The inmate may or may not be aware of the reports on him. There was no evidence here that he was made aware of what was afoot. An inmate has no right to come in at the stage when the Officer-in-Charge is gathering information for the purpose of preparing a report on him. However, in order to act fairly, the Commissioner is

expected to hear the inmate on whatever reports he has on him. Subsection (3A)(*a*) of section 46 does not expressly limit the Commissioner as he considers whether or not to deprive an inmate of remission. That, however, does not free the Commissioner from acting fairly and, in my judgment, the Commissioner could not act fairly and be seen to have acted fairly without giving an inmate an opportunity to be heard before imposing loss of the liberty and, in this case, it is substantial loss of liberty. As we said in *Fairmount Investment Ltd v Secretary for the Environment* [1976] 1 WLR 1255 at 1263:

> "For it is to be implied unless the contrary appears, that Parliament does not authorise . . . the exercise of powers in breach of the principle of natural justice . . ."

There is a presumption in the interpretation of statutes that rules of natural justice will apply and therefore that in applying the material subsection the Commissioner is required to act fairly and so to apply the principle of natural justice.

The Chambers Twentieth Century Dictionary New Edition at 276 defines the term "consider" as follows:

> "to look at attentively or carefully, to think or deliberate on, to take into account, to attend to, to regard as, to think, hold the opinion, . . ."

If the Commissioner were to act without hearing the affected inmate, there would be neither "deliberate" nor "taking into account". "Consider" implies looking at the whole matter before reaching a conclusion. The Commissioner is required to act objectively so as to act fairly. Decisions affecting rights of prisoners are subject to rules of natural justice just like rights of people at liberty. Mr *Chege* argued that, unless the decision of the Commissioner is wholly unreasonable, it should not be questioned or interfered with. The obvious answer to that argument is that one cannot tell if the Commissioner acted reasonably. To the extent that the appellant was not heard, one can say that the Commissioner acted subjectively and arbitrarily. A decision in breach of the rules of natural justice is not cured by holding that the decision would otherwise have been right. If the principle of natural justice is violated, it matters not that the same decision would have been arrived at (*De Souza v Tanga Town Council* [1961] EA 377 at 338E–G). In *Associated Provincial Picture Houses Ltd v Wednesday Corporation* [1948] KB 223 (a decision which was cited by both parties) at 228–229, Lord Greene MR distinguished judicial acts from an executive act, such as the act of the Commissioner in this case, and continued:

> "What, then, is the power of the Courts? They can only interfere with an act of executive authority it be shown that the authority has contravened the law . . . It is not to be assumed *prima facie* that responsible bodies . . . will exceed their powers."

Later in the judgment, Lord Greene had this to say:

> "It is true discretion must be exercised reasonably. Now what does that mean? Lawyers familiar with the phraseology commonly used in relation to exercise of statutory discretion often used the word 'unreasonable' in a rather comprehensive sense. It has frequently been used and is frequently used as a general description of things that must not be done. For instance person entrusted with a discretion must, so as to speak, direct himself properly in law. He must call his own attention to the matters which he is bound to consider. He must exclude from his consideration matters which are irrelevant to what he has to consider. If he does not obey these rules, he may truly be said and often is said to be acting 'unreasonably'. Similarly there may be something so absurd that no sensible person could ever dream that it lay within the powers of the authority. Warrington LJ in *Short v Poole* corporation gave the example of the red-haired teacher, dismissed because she had red hair. That is unreasonable in one sense. In another sense it is taking into consideration extraneous matters."

Relying on this passage, Mr *Chege* urged that the Commissioner's act has to be shown to be as unreasonable as the dismissal of the red-haired teacher because she had red hair before the act can be held to be unfair. That submission overlooks the fact that there is no evidence what matters the Commissioner took into consideration. Therefore, it is not possible to tell if matters which were irrelevant to what he had to consider were taken into account. It is not possible to say if any matters were taken into consideration. There simply is no way of knowing how the Commissioner acted. The executive decision to deprive the appellant of remission may or may not be as bad as that of the employer who dismissed the red-haired teacher. It is improper and not fair, that an executive authority who is by law required to consider, to think of all the events before making a decision which immediately results in substantial loss of liberty leaves the appellant and others concerned guessing about what matters could have persuaded him to decide to deprive an inmate of remission.

Mr *Chege* submitted further that it would be wrong in principle for the Commissioner to enquire of an inmate if he thought he should be further reformed. Even if it be wrong in principle for some such enquiry to be made, in the context of the subsection, that is not the task that has to be undertaken in the exercise of the Commissioner's discretion. The basic requirement is for the Commissioner to cause the inmate, the subject-matter of the consideration, to be given an opportunity to be heard so that the Commissioner is able to weigh the reports unfavourable to the inmate against the inmate's own explanation. That does not constitute a request by the Commissioner put to the inmate if he thinks he should be further reformed and rehabilitated before being released. In any case, with or without remission, an inmate is entitled to be released on completion of the sentence whether or not he will have reformed. The Commissioner would not lawfully keep him a minute longer in prison just because he thought he needed more reform.

It is not unusual for decisions affecting the rights of prisoners to be subjected to rules of natural justice. It would seem to me extraordinary that a conclusion such as we have here was reached without the appellant even knowing that the Commissioner was considering the matter. One has the advantage of knowing that the view being suggested is not new. In *R v Hull Prison Board of Visitors ex parte St Germain* [1979] 1 All ER 701 a board of visitors pursuant to their powers under the English Prisons Act heard charges against five applicants who had been involved in rioting. The board imposed various penalties including loss of remission. The applicants appealed to the Divisional Court on the ground that the board had failed to observe the rules of natural justice. The Divisional Court held that the board was a closed body dealing with private and domestic disciplinary matters and rejected the case of the applicants. There was a further appeal to the English Court of Appeal which held that the Courts were the ultimate custodians of the rights and liberties of people whatever the status, and that there was no rule of law that the Courts are to abdicate jurisdiction merely because the proceedings under review are of an internal disciplinary character. The decision in that case is persuasive authority for the proposition that notwithstanding that the Commissioner might regard the issue for his consideration under the subsection as an internal disciplinary matter, all the same because rights of an inmate would be affected, the Courts have a duty, unless their jurisdiction is clearly excluded by some statutory provision, to concern themselves with the manner in which the Commissioner considers

before he concludes. There is no provision in the Prisons Act which excludes the jurisdiction of Courts to concern themselves with the rights of inmates, however circumscribed by a panel sentence. In order to consider fairly, the Commissioner has to observe the basic principles of fundamental justice. That would require that the inmate affected be fully informed of the disciplinary offence which he is alleged to have committed, that he be given sufficient time to prepare and present his case, that in his consideration the Commissioner takes into account the material presented by the inmate and the Commissioner indicates that he has weighed all evidence before him before reaching the conclusion to deprive remission.

The fact that, with regard to subsection (3A)(*a*) of section 46, there is no specific reference to enquiry to be held as under section 52 and section 53 does not exclude the necessity for the Commissioner to act fairly and so follow rules of natural justice. To urge that the Commissioner can act subjectively and get away with it is in my judgment to urge that courts should retreat from their position as custodians of the rights of inmates.

Under section 53 no prisoner shall be punished for a prison offence he has not had an opportunity of hearing the charge against and making his defence. The disciplinary offence for which the Commissioner may by an administrative act deprive an inmate of remission would include minor and aggravated offences as well as any misbehaviour intended to disrupt the proper management of prisons.

If the Commissioner were to deprive a prisoner of remission under subsection (3A)(*a*) of section 46 and so impose a punishment, before hearing the prisoner, that would in my view conflict with section 53 which provides as under:

> "No prisoner shall be punished for a prison offence until he has had an opportunity of hearing the charge against him and making his defence."

To summarise and answer the principal substantive point of this appeal I would say the Commissioner erred in law in that he decided to deprive the appellant of his rights without affording him an opportunity to be heard. The Commissioner is required to act fairly towards the appellant. At the very least, the Commissioner ought to do the following acts:

1. To inform the appellant in writing in a language the appellant understand of the disciplinary offence he is alleged to have committed and the particulars of the offence.
2. To afford the appellant an opportunity to be heard in person and to fix a reasonable time within which the appellant (or an inmate) must submit his written answer to the officer-in-charge of the particular prison for onward transmission to the Commissioner.
3. Thereafter within reasonable time, the Commissioner should inform the appellant (or the inmate concerned) that pursuant to section 46(3A)(*a*) he has directed his mind at the allegation made against the appellant that he requires further reformation and rehabilitation, has considered the grounds for the allegation and the defence of the appellant (or inmate) and has decided to deprive the appellant of all remission granted to him under section 46(1) of the Prisons Act, but that he the appellant (or inmate) may petition the Minister in writing, through the Commissioner, to restore the forfeited remission in whole or in part under subsection 5 of section 46. The result of

> my conclusion is that the trial Judge misdirected himself in his statement on page 19 of the record of appeal that the High Court was "not in a position to launch an inquiry or investigation into the working of prisons. It is not equipped to . . . direct the Commissioner on these matters . . ."

In the upshot in my judgment the appeal should be allowed, the judgment of the High Court set aside and there will be substituted therefor a declaration that the decision of the Commissioner dated 17 February 1983 to deprive the appellant of his remission is null and void and is quashed. The Commissioner is required to follow rules of natural justice by giving the appellant a full opportunity of hearing what is alleged against him and of presenting his own case by doing the acts enumerated herein before and in default the inmate is to be released unless otherwise lawfully held.

As Platt and Gachuhi JJA have reached the same conclusion, it is ordered accordingly.

Costs to this appeal and of the High Court to the appellant.

Platt JA: In general I agree. It is only out of courtesy to the learned Judge and out of respect to the late Commissioner of Prisons that I venture to add a few comments of my own, on the nature of their decisions.

The facts have been amply set out by Nyarangi JA and I need not repeat them. I shall commence with the issue at stake in this important appeal. The first ground of the appeal will suffice for that purpose. It was:

> "That the learned trial Judge erred in law in not finding that the decision of the Commissioner of Prisons was null and void for breach of rules of natural justice."

It is therefore queried whether rules of natural justice applied to the making of the decision of the Commissioner in this case. In the course of decision making, the rules of natural justice may require an inquiry, with the person accused or to be punished, present, and able to understand the charge or accusation against him, and able to give his defence. In other cases it is sufficient if there is an investigation by responsible officers, the conclusions of which are sent to the decision-making body or person, who, having given the person affected a chance to put his side of the matter, and offer whatever mitigation he considers fit to put forward, may take the decision in the absence of the person affected. The extent to which the rules apply depends on the particular nature of the proceedings.

What rules, if any, would apply to the decision to be made by the Commissioner under section 46(3A)(*a*) of the Prisons Act (Chapter 90)? This piece of legislation forms part of Part VII of the Act entitled Remission of Sentence. It provides:

> "(3A) a person may be deprived of remission:
>
> (*a*) where the Commissioner considers that it is in the interest of the reformation and rehabilitation of the prisoner;
>
> (*b*) where the Minister for the time being responsible for internal security considers that it is in the interests of public security or public order."

It follows that the Commissioner must consider the prisoner's ability to perform as a citizen reformed and rehabilitated, while the Minister must consider the welfare of the public. It was the intention of Parliament to use imprisonment as a means of achieving these different purposes.

This now must be read in the context of the whole of section 46. Remission of sentence, we find is explained in subsection (1). Convicted criminal prisoners sentenced to imprisonment for a period exceeding one month, “may by industry and good conduct earn a remission of one-third of their sentence”. Certain exceptions are provided of which we need only notice that remission granted shall not result in the immediate release of the prisoner. He must undergo at least one month’s imprisonment. In those exceptional cases the prisoner will automatically lose some remission.

But to give effect to subsection (1), subsection (2) provides that each prisoner on admission shall be credited with the full amount of remission to which he would be entitled at the end of his sentence, if he lost no remission of sentence. In that case the industry and good conduct referred to in subsection (1), earn remission in the sense that the credited remission will not be withdrawn.

Subsection (3) explains how remission may be lost. It may be forfeited for an offence against prison discipline. But then it shall not be earned (as I think as an instance of lack of industry), for time spent in hospital through his own fault or while malingering or (as I think for lack of good conduct) for the period he undergoes confinement as a punishment in a separate cell.

Forfeiture in section 51 of the Prisons Act (Chapter 90) is one of the punishments prescribed for those found guilty of minor offences by a senior prison officer, and of aggravated prison offences, by a senior prison officer, or in both cases by an administrative officer. Section 52 prescribes for the hearing of charges brought against prisoners, and the full extent of the rules of natural justice is provided for. Section 53 makes sure of that; it provides that no prisoner shall be punished for a prison offence until he has had an opportunity of hearing the charge against him and making his defence. As Mr *Chege* pointed out for the Republic, the formal acknowledgement of the rules of natural justice is not provided for in subsection (3A) where a prisoner may be deprived of remission.

To complete the review of section 46 of the Act, interesting provisions are made for the Minister to grant even more than one third of the sentence as remission on grounds of exceptional merit, permanent ill-health or other special grounds and the Minister has power to restore forfeited remission in whole or in part.

This review prompts the question whether there is any difference between “forfeited” remission and “deprived” remission. If there is no difference then the appellant might have appealed to the Minister. But it seems to them that forfeited remission is especially aptly named, as being the punishment for the commission by the prisoner of prison offences, aggravated or minor. By such activities he forfeits remission for committing offences and he may not earn remission for lack of industry or good conduct. He has or may not have forfeited all remission in this latter case, but he has lost some remission for the periods provided in subsection (3), because he could not earn the remission during those periods.

What then is the purpose of subsection (3A)? For what reason is the Commissioner to deprive the prisoner of remission? It must at least cover cases where the prisoner has not forfeited remission;, or if his conduct is such that by reason of lack of industry or good conduct, the prisoner has demonstrated that he has not reformed or rehabilitated himself. Perhaps there are other reasons or

situations which might cause the Commissioner to act. For instance, it may be that the prisoner has committed a minor offence within the jurisdiction of a junior prison officer who cannot impose forfeiture. Perhaps there are cases of what is called colloquially "dumb insolence" or where a person disaffects his fellow prisoners. It would seem to me that it must be in this general area that the Commissioner may need to operate.

If this is correct, it follows that there must be some activity on the part of the prisoner which is the foundation of the Commissioner's order. These are the matters he may be called upon to consider before he makes his order. These matters are susceptible of description, perhaps definition. They are susceptible of being brought to the attention of the prisoner. As Nyarangi JA has pointed out, it is unlikely that the Commissioner himself will have seen or experienced the reprehensible conduct of the prisoner himself. He may do so of course, in which case he can inform the prisoner what it is that is held against him. But more often than not, the Commissioner will act upon reports made to him. It is especially in the area where the Commissioner must rely upon the judgment of others that he ought to consider both sides. Even in his own case, it would be wise to consider what the prisoner has to say, on a dispassionate occasion.

The word "consider", as Nyarangi JA has explained, conveys the idea of taking into account the different aspects of a problem. It would be absurd to hold that to take into account one side of the problem would be a "consideration" of it. That would only be half a consideration. Consequently, when subsection (3A)(*a*) requires that the Commissioner should "consider" the problem relating to the state of the prisoner, it would not be a full consideration of that state without hearing from the prisoner. It is especially the consideration of the prisoner's development that requires his participation. It is also this reason that requires the contents of the Minister's "consideration" to be left open in subsection (3A)(*b*). Whether that is the same type of consideration, I leave to the day when that problem is raised. But it is plain, in my judgment, that a consideration of the prisoner's likely reformation or rehabilitation must include a consideration of his side of the story upon which the decision is to be made; it requires the substance of the faults found with his conduct to be put to him, and for him to have the opportunity to answer and give his defence. In that way, the Commissioner will have before him both sides of the matter and can give full consideration to the case.

I have attempted to show that the substance of the consideration is one which is capable of being put to the prisoner, and that it is the statutory duty of the Commissioner to give consideration by both sides of the problem. It is not to be implied that the rules of natural justice are to be excluded, unless Parliament expressly so provides (see *Fairmount Investment Ltd v Secretary for the Environment* [1976] 1 WLR 1255). That involves following the rules of natural justice to the degree indicated. In this type of case, I would not find it necessary for the prisoner to be afforded a physical hearing by the Commissioner. His full case can be submitted in writing to the Officer Commanding the Prison where he is as long as he knows what fault it is that he has to defend. The last part of the argument now falls for consideration. It is whether this Court may interfere.

It is important to hold in mind first of all that is a matter of punishment. This is part of the process of exacting the penal sanction of imprisonment. It is a question whether the full sanction is to be excepted. It concerns the crediting

of remission against the prisoner earning his remission by industry and good conduct. The Commissioner entered into this process and decided to deprive the prisoner of the remission at first credited to him. That means that the punishment is to be extended to its full length. It is painful punishment, as it involves the loss of rights credited and hoped for. It is therefore a case where the Commissioner acting in an administrative capacity, has the discretion to interfere with the liberty of the subject. It is an area of discretion rightly guarded with jealousy by the Court. It is an area in which the Courts have the right to ensure that the procedure by which such discretion is exercised, gives assurance that the prisoner has been dealt with fairly; in short, that the Commissioner has exercised his discretion fairly by giving the prisoner a chance to understand the faults found with him and put forward his defence, so as to enable the Commissioner to complete his "consideration" before making his decision.

The learned Judge took another view, which was supported by the Republic that this would be an intolerable invasion of the Commissioner's proper responsibility for controlling the prisoners under his command. With respect I cannot take that view where the liberty of a citizen is at stake. No doubt the Commissioner will make his decision after consideration, and that decision will then be final. The Minister will not be able to interfere with the remission deprived, under subsection (5) of section 46. There is no appeal and the prisoner will have no redress. In these circumstances it must surely be right to construe this penal provision strictly. There is also the decision of the English Court of Appeal in *R v Hull Prison Board of Visitors ex parte St Germain and others* [1979] 1 All ER 701. It is clear that the English courts have taken the view that the Courts are not to abdicate jurisdiction merely because the proceedings are of an administrative nature or of an internal disciplinary character. It is a loan which I think the Courts in Kenya would do well to follow, in carrying out their tasks of balancing the interests of the executive and the citizen. It is to everyone's advantage if the executive exercises its discretion in a manner which is fair to both sides, and is seen to be fair. This process was started as long ago as 1966 when the Lord Parker, the Chief Justice of England decided in *Re HK (an Infant)* [1967] 2 QB 617, a decision which has been approved by the House of Lords in *O'Reilly v Mackman* [1972] 3 All ER 680. At 630 Lord Parker pointed out:

> "But at the same time, I must think that even if an immigration officer is not in a judicial or quasi judicial capacity, he must at any rate give the immigrant an opportunity of satisfying him of the matters in the subsection and for that purpose let the immigrant know what his immediate impression is so that the immigrant can disabuse him. That is not, as I see it, a question of acting or being required to act judicially, but of being required to act fairly. Good administration and an honest or *bona fide* decision must, as it seems to me, require not merely impartiality nor merely bringing one's mind to bear on the problem, but acting fairly; and to the limit extent that the circumstances of any particular case allow, and within the legislative framework under which the administrator is working, only to that limited extent do the so-called Rules of Natural Justice apply, which in a case such as this is merely a duty to act fairly."

That was a case in which an immigrant had to be under 16 before he could enter England. The Immigration Officer had power to refuse entry if he were not under 16. It was held that when the immigrant made his application he must be advised that the immigration officer did not find evidence that he was under 16, in order that the immigrant could disabuse him and so put his full

case. The case before this Court is not entirely similar, but it approaches the exercise of power by an administrator, the effect of which may be to affect the rights of a person in a serious manner. It is therefore wise to bear in mind that the usual method of acting fairly, and being seen to act fairly, is to give the person affected a chance to know what lies against him so that he can put his defence or objections to the course of action which may be taken.

It remains now to relate these principles to the facts of this case. They were taken from the plaint, the defence being a general denial; but they do not seem to have been denied. The appellant was imprisoned on 1 November 1982 for five years. If he served his full sentence he would be due for release on 31 October 1987. But with the normal remission accredited to him under section 46(1) and (2), he would have been due for release on 4 March 1986. One-third remission must have been credited to him on 1 November 1982; but in February 1983 the Commissioner's letter deprived him of remission. It was dated 17 February 1983 and served on 26 February 1983. There is no evidence to counter the appellant's complaint that he was not informed of the faults held against him nor afforded an opportunity to defend himself. It is not known on what ground the appellant was deprived of his remission. But lack of knowledge of this matter is not important. It leads to the position that the appellant might not or might have been dealt with fairly. Therefore fair play cannot be demonstrated; accordingly the second ground of appeal is not relevant. It is clear that unfortunately, the Commissioner did no employ the rules of natural justice so as to be seen to have acted fairly.

The Court must therefore interfere and declare that the Commissioner's decision is null and void, and thus the High Court's judgment must be set aside. It must then be decided what follows, which concerns the judgment to be substituted for that to be set aside.

Looking back at the plaint, it can be seen that the complaint that section 46(2) had not been complied with cannot be dealt with. It is presumed that on 1 November 1982 the remission was credited, of which the appellant was deprived in February 1983.

Secondly, it is argued that in accordance with rule 95(1) of the Prison Rules, the appellant is entitled to be released. That does not follow. The appellant is still in prison. The Commissioner can still act under section 46(3A)(*a*). It may still be that the appellant should be deprived of remission. It has not been accepted that if the Commissioner's decision is void, there would be no reason to detain the appellant. It is not clear that the prisoner was due for release on remission; that matter should be left to the Commissioner.

For these reasons, I confine myself to the specific issues before the Court, which I find best defined in issue (iii) framed in the High Court, and I would declare the decision of 17 February 1983 null and void. The Appeal should be allowed, the judgment of the High Court set aside and I also agree with the consequential orders proposed by Nyarangi JA and the order for costs.

Gachuhi JA: I had the advantage of reading the judgment prepared by Nyarangi JA in draft form and I agree with the reasoning therein stated.

However, I would add that in the absence of any material facts upon which the Commissioner had to consider, it is difficult to decipher upon what grounds the Commissioner based his decision that it was in the interest of the reformation and rehabilitation of the appellant that he be deprived of remission earned

under section 46(1) of the Prison Act (Chapter 90). One would expect that the Commissioner, in exercising powers confirmed by section 46(3A)(*a*) of the Prison Act, he would be acting reasonably within the rules of natural justice.

The appellant in his plaint stated that prior to the issue of the directive by the Commissioner, he had not been charged, tried, found guilty or punished for any offence against prison discipline as set out in the Prison Rules. If the appellant had not committed any offence, then the action taken by the Commissioner was arbitrary and made without consideration of natural justice. Without any offence committed how would the Commissioner know that an inmate required more time to reform and to be rehabilitated?

If an inmate is to be punished by the Commissioner, an inquiry has to be made by him as provided by section 52 of the Act. Section 53 is in conformity with natural justice. Denial of this statutory provision to an inmate renders any decision made affecting the inmate null and void *ab initio*. Because of this provision, the Commissioner cannot claim that he had not to make inquiry as Mr *Chege* submits. In my view, the steps taken by the Commissioner is *ultra vires* this section. It calls to be quashed. I would allow this appeal with costs. I also agree with orders Nyarangi JA proposes that this Court should make.

For the appellant:
Kiraitu Murungi

For the respondent/Republic:
Chege

Otieno v Ougo and another
[1986–1989] 1 EA 468 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	15 May 1987
Case Number:	31/87
Before:	Nyarangi, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Burial dispute – Customary law – Luo customary law – Burial customs – Whether Luo burial customs repugnant to justice and morality or inconsistent with written law – whether Luo customs unconstitutional for being discriminatory against women – Section 3(2) – Judicature Act – Section 82 – Constitution of Kenya.

[2] Common law – Applicability of the common law in Kenya – Circumstances of Kenya and its inhabitants to be considered – Section 3(2) – Judicature Act.

Editor's Summary

The appellant was the widow of SM Otieno, a Nairobi advocate of Luo origin who had died intestate.

After his death, a dispute arose between the appellant and the deceased's clan regarding who had the right to bury his body. The High Court found that although the deceased had adopted a Western lifestyle, he was subject to the customary law of his tribe and the issue of his burial was governed by that law. The Court found that the deceased had not at the time of his death established a home in accordance with the customs and traditions and where that was the case, Luo customary law required that such a person should be buried in his father's homestead at a place to be determined by the clan elders.

The appellant was aggrieved by the judgment of the High Court and appealed on the grounds, *inter alia*, that the trial Judge erred in rejecting the plaintiff's evidence and that of her two sons, in holding that the Luo customary law was applicable with regard to the burial of the deceased and in failing to find that the duty of burying the body of the deceased was on the appellant. Finally, the appellant contended that the trial Judge erred in failing to find that the Luo customary law relating to the family, home and burial of the deceased was repugnant to justice and morality, was inconsistent with or in conflict with the applied law and the written law of Kenya.

Held – Luo customary procedures do not permit for expression of wishes of where one is to be buried. A Luo who wishes to be buried outside his father's homestead takes steps to have a home elsewhere which is acceptable under custom. One's father or in his absence, an uncle, would perform the ceremony known as *Tudohem* in the new place. If, however, the emigrant dies in the new area before or after the ceremony is performed and his parents survive him, the emigrant must return home for burial.

Having not carried out any of the requisite customary procedures, the deceased did not have a home in the Luo sense anywhere. It mattered not that the deceased was sophisticated, urbanised and had developed a different lifestyle.

At the time of SM Otieno's death, there was no way in which an African citizen of Kenya could divest himself of the association with the tribe of his father if those customs were patrilineal. Therefore, Mr Otieno having been born and bred a Luo remained a member of the Luo tribe and subject to the customary law of the Luo people.

Although the common law is a source of law by which the High Court and the Court of Appeal "shall" exercise their jurisdiction, there is the proviso that they must be applied with care, first of all, not at all if the circumstances of Kenya and its inhabitants do not permit, and, secondly, subject to such qualifications as those circumstances may render necessary.

The place of customary law as the personal law of the people of Kenya is complementary to the relevant written laws. The place of the common law is generally outside the sphere of personal customary law with some exceptions. The common law is complementary to the written law in its sphere.

The main difference between the African customary law and the common law is that the former is still a set of individual rules adhered to by each tribe, whereas the common law is a synthesis of judicial general principles except for a small number of specific customs not yet integrated. Once customs have been overtaken by judicial decisions which have "harmonised" them, customs as such cease to have effect.

Generally speaking the personal laws of Kenyans is their customary laws in the first instance. Common law is not the primary source, but it may be resorted to if the primary source fails.

At common law, there was a public duty on the husband to bury his wife. That was because he acquired all her property, apart from the equitable doctrine of the wife's separate estate. The wife, at common law, had no power to dispose of property and only a limited power in equity. Hence, if a woman died, he husband was bound to discharge that duty, at his own expense, up to a

reasonable amount. But the converse could not arise. When a man died possessed of personal property the duty of burying his body fell primarily on his personal representative and not his wife as such (*Rees v Hughes* [1946] KB 517 followed).

The customs and customary procedures concerned with burial and establishment of a home among the Luo are rules of action which the Luo uniformly and voluntarily observe. These rules of action, therefore, constitute customary law within the meaning of section 3(2) of the Judicature Act.

Some of the customs which were established by evidence in accordance with section 51 of the Evidence Act were:

(*a*) Otieno was born and bred a Luo and as such under Luo customary law his wife on marriage became part and parcel of her husband's household as well as a member of her husband's clan. Their children were also Luo as well as members of their deceased father's clan.

(*b*) On the death of a married Luo man, the customs are that the clan takes charge of his burial as far as taking into account the wishes of the deceased and his family.

(*c*) A Luo who has not established his own home in accordance with customs would be buried at his father's home.

(*d*) Under the Luo custom to which the deceased's wife was bound she had no right to bury her husband and she did not become the head of the family upon the death of her husband.

(*e*) As with other African communities a man could not change his tribal origin.

(*f*) There were burial rights some of which were obligatory and some of which were not.

There was nothing repugnant or immoral about any of the above listed customary laws. The evidence on *Magenga*, the shaving of hair, *Tero bur* and other rites showed that the practices were innocent and were meant to underscore the deep loss to the clan, to distinguish the particular deceased from the other deceased who were not as prominent and the ceremony was intended to encourage members of a clan to aim high by doing good deeds in the community.

To the extent that a Luo man who does not wish to establish a home in Luo land may with the consent and blessings of his father or in his absence an uncle set up a home elsewhere or even outside Luo land, the customary laws are just since this accommodates the rebel and frees him to continue life as he wishes.

The appellant, as the deceased's wife, had to be considered in the context of all wives married to Luo men, irrespective of their lifestyle, who became subject to the customary laws. The fact that her marriage was a mixed one would not confer on her any special status under Luo customary law.

Repugnancy to justice and morality is not the same thing as inconvenience or hardship. Common law and its applicability must be tampered with and adjusted to the circumstances and views generally held in Kenya (*Sheikh Mushtaq Hassan v Nathan Mwangi Kamau Transporters* (1982–1988) 1 KAR 946).

In the course of developing a jurisprudence which ultimately will have a Kenya identity, the Courts are enjoined to turn to African customary law as well as to the applied common law, to decisions of the English courts and courts of commonwealth countries.

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Apeli and another v Buluku civil appeal number 12 of 1979 (UR)

Hassan v Nathan Mwangi Kamau Transporters and others (1982–1988) 1 KAR 946; [1985] LLR 250 (CAK)

I v I [1971] EA 278 – **F**

United Kingdom

Burns v Campbell [1952] 1 KB 15

Ingall v Moran [1944] KB 160

Rees v Hughes [1946] KB 517 – **F**

Wankford v Wankford [1699] 91 ER 265

Judgment

Nyarangi, Platt and Gachuhi JJA: This appeal from the decision of Bosire J by which he held that the first defendant and also the plaintiff have the right under Luo custom, to bury the deceased and to decide where the burial is to take place, and thereafter directed and ordered that the deceased's body be handed over to Joash Ochieng Ougo and Virginia Edith Wamboi Otieno jointly or to any one of them for burial at Nyamila Village, Nyalgunga sub-location, Siaya District. The nature of the action and the circumstances out of which it arises are set out in detail in her plaint which was filed in the High Court, Nairobi on 29 December 1986.

The plaintiff/appellant is aggrieved by the judgment of that High Court and has appealed on the grounds, *inter alia*, that the trial Judge erred in rejecting the plaintiff's evidence and that of her two sons, in holding that the late SM Otieno (the deceased) expressed his wishes as to where he should be buried to Albert Ongango, in accepting the defendant's case despite material contradictions by the defendants witnessed in their testimony and in finding that the first defendant became the head of the deceased's family after the death of SM Otieno. Further, it was contended that the plaintiff did not discharge the burden of proof on the balance of probabilities that the deceased expressed his wish to her and to her witnesses as to where he desired to be buried and that it was an error for the Judge to find in law and in fact that the deceased was governed by or subject to Luo customary law at the time of his death. The trial Judge further misdirected himself in law and in fact in holding that the Luo customary law is applicable with regard to the burial of the deceased and in failing to find that the duty of burying the body of the deceased is on or lies with the plaintiff as the personal representative of the deceased and her family. Also in failing to hold that the Luo customary law relating to the family, home and burial of the deceased was repugnant to justice and morality, is inconsistent with or in

conflict with the applied law and the written law of Kenya. He erred in holding that there are no authorities based on common law dealing with burial, in finding that the customary law relating to burial had been proved and that the defendants and their witnesses were competent of making legally binding Luo customs concerning burial of the deceased are present in the case and finally that the learned Judge misdirected himself in law in concluding that the defendants had a cause of action against the plaintiff.

The dispute arose in a somewhat simple way. Silvanus Melea Otieno, a prominent law practitioner in Nairobi, died in or about 20 December 1986 of acute myocardial infarct, acute coronary occlusion and coronary heart disease. His body was placed at the City Mortuary Nairobi, where it has been lying, having been additionally embalmed, pending today's judgment. A disagreement erupted between the parties to this action despite attempts to reconcile them as to who had the legal right to bury the body of the deceased and as to where the body should be buried. The plaintiff asserted that she wished to bury the body of her deceased husband at Upper Matasia, Kajiado District, or Langata. The defendants, however, contended that they were entitled to claim the body of the deceased and to cause it to be buried at Nyalgunga sub-location, Central Alego, Siaya District. That being so, the plaintiff filed the suit, the subject-matter of this appeal. So, the facts are simple as, according to the parties, the matter is monumental. To complete this short saga, we venture to observe that this is the third and final lap which will complete the march of events.

That leads us to what Mr *Khaminwa* said in his opening remarks which is that the case is of public interest and importance and that he would canvass that the judgment of the High Court was contrary to equity, contrary to fair play and contrary to justice. Counsel started with his second ground of appeal, took the Court through the evidence of Jairus Patrick Otieno, and of Wamboi Otieno, the appellant, whereupon Mr *Khaminwa* submitted that the learned Judge did not correctly assess that evidence, did not make any findings on the credibility and that the trial Judge misdirected himself on his finding that the witnesses were arrogant. Next, Mr *Khaminwa* referred to the testimony of Harry Mugo and that of Musa Muna and urged that the evidence of the two witnesses corroborated that of the appellant and her sons as to where the deceased wished to be buried. The complaint on the trial Judge's views of the evidence of Rahab Muhuni and of Ole Tameno was that the Judge did not say whether the two witnesses were truthful or not. It was submitted that the two were witnesses of truth but that Albert Ong'ong'o, Bishop Yahuma, Jafeth Yathuma, Joash Ougo, Magdalina Ougo and Johanes Mayamba gave fabricated contradictory evidence as the temptation not to tell the truth was high. Mr *Khaminwa* told us to place weight on what Adala Odongo said but to believe Godwin Wachira, Mama Koko, Jane Njeri Muchina, Timan Njugi, Juita Quade, Adema and Edwin Muni, a law clerk in the firm of the deceased. We were urged by Mr *Khaminwa* to hold that where a witness is shown to have deliberately made a false statement, such a witness is *prima facie* utterly unreliable and also that evidence that requires corroboration cannot be corroborated. It was the appellant's case that Omolo Siranga was not close to the deceased's family, that what Tago told the Court was incredible, that Professor Henry Oruka is not an expert witness on the Luo customs, and that the deceased whose family lived in Nairobi, could not have been a party of the customs of country folk and could not therefore be governed by the customs.

Mr *Khaminwa* contended that by virtue of section 3(1)(*c*) of the Judicature Act (Chapter 8), the law which applied to this is the common law, the residual primary law which courts here apply as the general law. Mr *Khaminwa* covered the rest of the grounds of appeal, ie 8 to 16, and also the supplementary grounds by making submissions identical to these grounds. The submissions included the contention that if the appellant is to be denied the body of her deceased husband it would amount to discrimination against her as a woman, thus violating her human rights and that in contemporary Kenya a woman of the appellant's standing has a right to bury her husband.

For the respondents Mr *Kwach* advanced his case on the basis, first, that the appellant has no cause of action under common law as the duty to bury a person lies with his executor, and therefore that the appellant, not being an executor, has no obligation to bury the deceased. Secondly, that the proviso to section 3(1) of the Judicature Act limits the application of common law to Kenya and, thirdly, that under section 3(2) of the Judicature Act, it is mandatory to be guided by African customary law and that where as here there is a conflict between common law and African customary law, the latter must prevail. Mr *Kwach* argued and submitted that the Judge properly rejected the evidence of Wamboi who, in the view of counsel, had parted with truth in her claim that she washed the dead body of her deceased father-in-law. As for the main thrust of the plaintiff's case that the deceased expressed his wishes and told her to ensure that his dead body is not taken to Nyalgunga, Mr *Kwach* said that if that were so, the deceased was bound to discuss with his eldest son, Tairus Waiyaki. Mr *Kwach* urged us to bear in mind that Tairus Waiyaki, Dr Kiano and Dr Karanja, each of whom was mentioned by the plaintiff's witness, were not called to testify and so we should draw the inference that their evidence would have been adverse to the plaintiff's case. Also, that as a matter of custom, the ultimate resting place of the deceased had nothing to do with his wife and children, that once the Judge rejected Wamboi Otieno's evidence as of no probative value there was nothing left for corroboration. Mr *Kwach* praised the evidence of Albert Ongango, which in his view showed that the deceased knew where he would be buried, and asked us to accept what Dalia Odongo, a Christian and in the mother's union who said she believed in God and that spirits could haunt her and to hold that Omolo Siranga, Joash Ochieng and Magdalina Ougo all knew what they were talking about and that they told the truth.

Mr *Kwach* said the respondents' case was simply that the deceased, a Luo, was subject to and governed by Luo customary law that for one to qualify for burial outside his father's home, one has to establish a home in accordance with custom and survive his father and so if one grew up without a hut and without a home, such one is presumed to be living in his mother's house, a category into which the deceased fell. Counsel submitted there is nothing repugnant about "Magenga" (the funeral fire), and that the clan is no more than stating the rules and that to set up a home is a phenomenon which involves one's father and, in his absence, an uncle. The Court was asked to regard the evidence of Professor Henry Oruka as providing the juridical and philosophical basis of the evidence on customary procedure and to consider that a rebel does not decide on his burial, the dead takes no part in the decision; the same having been ordained for everybody concerned, irrespective of status, that the wishes of a widow and children are relevant if consistent with custom, otherwise they

are irrelevant,and that the appellant having not led any evidence on customary law, could not argue that this Court should discard the evidence of the respondents. Counsel argued that an issue of burial is determined by personal laws as provided under section 82(3) of the Constitution of Kenya, that the deceased died intestate and that this Court should not rely on the views and wishes of the appellant who must take the Luo as she finds them, to strike out a custom which has not been shown to be detrimental to the welfare of the Luo, is not repugnant, to justice, is not contrary to written law and under which the appellant ought to have rights which other Luo widows could not ask for.

In considering this appeal, one must bear in mind the position of the deceased at the time. By all counts he was an able lawyer and possessed of sufficient funds to give effect to his decisions. Certain matters are reasonably plain in the evidence. The deceased was of the Luo tribe. He lived within the City of Nairobi with his family. He did not go to his home at Nyamila Village Nyalgunga Sub-Location often but he maintained real contact with his relatives and attended several burials. He had no house at his home and had no land registered in his name at his home. He was a member of the Ger Union, Kenya. He was a Christian. His clan is known as Umira Kager. He died intestate. The appellant, her two sons and the several witnesses have maintained that in 1980, in 1981 and 1986 the deceased expressed the wish to be buried in Nairobi, not in Siaya or anywhere in Luo land. Before he died, the deceased was already a member of the Ger Union, had spoken to Owour Tago of his intention to sub-divide his farm at Ngong, give one portion to Tairus Waiyaki and the other to Oyugi and then go to his home District to retire there if the worst came to the worst and had requested his cousin Albert Ong'ang'o to prepare a grave for him (the deceased) next to his late father's grave and that circumstance to the deceased's advice to the appellant that the Ger clan would oppose a will for burial elsewhere and to his membership of the Ger Union and it becomes clear that, though the deceased may well have expressed wishes as to his burial to his family, he could not have been wholly candid. We think that he was undecided and as a result his family has been misled but as we shall presently show the findings of fact on this issue are immaterial.

We think at this stage we should say that Luo customary procedures do not permit for expression of wishes such as the appellant mentioned. Under the particular custom, a Luo who wishes to be buried outside his father's homestead, takes steps to have a home elsewhere but acceptable under custom. One's father or, in his absence, an uncle, would perform the ceremony known as "Tudohem" in the new place. If, however, the emigrant dies in the new area before or after the ceremony is performed and his parents survive him, the emigrant must return home for burial. We pause there. If the deceased, who knew about the attitude of his clan to burial matters, wished to be buried at Upper Matasia, one would have expected him to ask his father before he died, to approve the establishment of the deceased's home. The deceased's father, who was a Christian would not, according to the evidence of Johanes Mayamba, also a Christian, have had to perform any ceremony but to consent to the deceased's wishes and as a consequence formally release the deceased from within his homestead and let it be known to the clan. Having not carried out any of the requisite customary procedures, the deceased did not have a home in the Luo tradition anywhere. It matters not that the deceased was sophisticated, urbanised and had developed a different lifestyle. It seems to us quite unsustainable on the grounds suggested by Mr *Khaminwa* that a different formal education, and urban lifestyle can affect adherence to one's personal law.

There is a further consideration, namely whether or not common law applies to this case. It was the contention of Mr *Khaminwa* that the issues in this case were to be entirely governed by common law to the exclusion of the customary law of the deceased Otieno. On the other hand, it was the contention of Mr *Kwach* that the issues in the case were to be decided entirely by the customary law of the Luo tribe because Mr Otieno was a member of that tribe. At present there is no way in which an African citizen of Kenya can divest himself of the association with the tribe of his father if those customs are patrilineal. It is thus clear that Mr Otieno having been born and bred a Luo remained a member of the Luo tribe and subject to the customary law of the Luo people. The Luos are patrilineal people (see *Restatement of African Law, Kenya* Volume II at 158). We are not dealing at this point with the case of a mixed marriage, of a Luo father and a mother of another tribe or race.

The common law comes in to this picture by virtue of the Judicature Act (Chapter 8). The provisions of section 3(1) of the Act are as follows:

> "3 (1) The jurisdiction of the High Court, the Court of Appeal and of all subordinate courts shall be exercised in conformity with:
>
> (*a*) the constitution;
>
> (*b*) subject thereto, all other written laws, including the Acts of Parliament of United Kingdom cited in Part I of the Schedule to this Act, modified in accordance with Part II of that Schedule;
>
> (*c*) subject thereto and so far as those written laws do no extend or apply, the substance of the common law, the doctrines of equity and the statutes of general application in force in England on the 12 August 1987, and the procedure and practice observed in courts of justice in England at that date;
>
> but the common law, doctrines of equity and statutes of general application shall apply so far only as the circumstances of Kenya and its inhabitants permit and subject qualification as those circumstances may render necessary."

Section 3 considers the position of African customary law in subsection (2):

> "(2) The High Court, the Court of Appeal and all subordinate courts shall be guided by African customary law in civil case in which one or more of the parties is subject to it or affected by it, so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law, and shall decide all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay."

The formal situation is that the common law and doctrines of equity as well as the statutes of general application which are relevant and the procedure and practice observed in Courts of Justice in England are to be applied to fill up what is not provided for in the written laws in conformity with the aims of the Constitution. But, although the common law is a source of law by which the High Court of Appeal "shall" exercise their jurisdiction, there is the proviso that they must be applied with care, first of all not at all if the circumstances of Kenya and its inhabitants do not permit, and, secondly, subject to such qualifications as those circumstances may render necessary. This is to state the proviso in negative terms so as to bring out the real meaning of the words that the application of the common law applies "so far only as the circumstances" permit. In practice, for example, almost the whole of the law of tort is common law which may be applied. But then it has been usual to take into account certain customs relating to cattle trespass as a qualification of the common law.

On the other hand, the superior courts are to be guided by African customary law. That is again a matter of considering the content of African customary law in the light of the circumstances in the case, and where the customary laws are repugnant to justice and morality or inconsistent with the written law and the African customary law will not be applied, or possibly will be qualified.

Mr *Khaminwa* is right that on construing these provisions according to the normal meaning of the words used, the common law is a source which shall be applied in the exercise of the jurisdiction of the superior courts whereas the customary law is a source of guidance. There is no doubt that these provisions may be indigenous as Mr *Kwach* submitted, but that they present a problem to the Courts when applying them. Fortunately for us the problem can be resolved, at least in the alternative.

On the first approach to the problem there is the general purpose of including common law, that of continuity. The agricultural and commercial basis to the economy of the emerging state required to be safeguarded as far as possible. The civil law had proceeded on the basis of common law and equity and that basis was to continue. Then was an important change towards the common law at least in the Contract Act (Chapter 23) enacted in 1961. It replaced an applied law the Indian Contract Act (1872) which its English authors had hoped would improve the common law of contract. It was replaced by common law as the title of the Act (Chapter 23) shows. Thus in 1963 it was the common law of contract which continued on. By 1967 when the Judicature Act (Chapter 8) was passed, the Parliament of Kenya decided to continue that process. Thus it can be said that relationships in the sphere of finance, transport, and commerce continued, and the law of tort went on to provide vehicles and tractors, for example, and to preserve their possession, or provide compensation in case of loss. There were written laws as well which went hand in hand like the Sale of Goods Act (Chapter 31), the Bills of Exchange Act (Chapter 27) and the Law Reform Act (Chapter 26) among others.

But continuity at one period may give way to a change in the laws in a succeeding period, and no doubt the substance of the common law and principles of equity will in due course be codified or replaced. But as they stood at the time when they were especially useful, there was little if any conflict as to their appropriateness to the circumstances of Kenya, and they are still reasonably relevant today, in the absence of comprehensively developed customary law in this area. But, the British Administration had preserved the personal laws of the people of Kenya. On the other hand, the customary law of crime was replaced, although there are those who would prefer the customary law values in punishment. There may well have been customs concerning trade. Whether ideas will come forward from these roots remains to be seen. The personal laws were the source of the jurisdiction of the African courts, from which appeals lay in stage to the court of review. These African courts decided disputes in accordance with the particular customs of the litigants. It was not possible to set out all the customs of any particular area or tribe, or harmonise them into general principles. That was attempted in the *Restatement of Customary Law, Kenya* Volume 1 and 2 by Cotran which are not in themselves final modifications of customary law. Nevertheless, they cover the personal law relating to the family, marriage, divorce and succession, the latter topic including references to matters on burial. The *Restatements* cover a period of work from before independence

until after independence and when complied and published they led to the integration of the system of the Courts. The operation of these personal laws is illustrated by the provisions of section 3(2) of the Judicature Act (Chapter 8).

Mr *Kwach* referred to the common law as the customary law of England. The judgment of Bosire J he claimed, had re-asserted the proper place of the African customary laws which were in effect binding on the Courts. In Mr *Kwach*'s world, customary law supervenes over common law. That said, we return to subsection (2) of section 3 of the Judicature Act which provides:

> "(2) The High Court, the Court of Appeal and all subordinate courts shall be guided by African customary law in civil cases in which one or more of the parties is subject to it or affected by it, so far as it is applicable and is not repugnant to justice and morality or inconsistent with any written law, and shall decide all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay."

Counsel addressed us on this provision and we feel bound to analyse it in relation to this appeal. Looking at the subsection, we ask ourselves: what does "guided" mean? The word "guided" which is not an altogether easy term to understand in our judgment means led by something and so courts must have in mind as the guiding light, as the principal law, African customary law. If, however, there are circumstances pertaining to a case to which African customary law does not apply, a court should feel free to apply common or statutory law. The Court having been guided by African customary law and having been satisfied about the other elements of the subsection is mandated, "to decide all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay".

That is a pointer to the necessity to be "guided" substantially by African customary law.

The place of customary law as the personal law of the people of Kenya is complementary to the relevant written laws. The place of the common law is generally outside the sphere of personal customary law with some exceptions. The common law is complementary to the written law in its sphere. Now suppose that exceptionally there is a difference between the customary and the common law in a matter of a personal law. First of all, if there is clear customary law on this kind of matter, the common law will not fit the circumstances of people of Kenya. That is because they would in this instance have their own customary laws. Then suppose by misfortune that in this instance those customs were held to be repugnant to justice and morality, and were thus discarded, there would be the common law to fall back upon, at least in a modified form. In this way these two great bodies of law, for that is what they truly are, complement each other. They may be different but the way to operate them is to use them as complementary to each other without conflict as laid down in section 3 of the Judicature Act (Chapter 8).

No one can say with anything like appreciation of the common law that it is nowadays the customary law of England, in the sense that the African customary law now exists in Kenya. The common law is, of course, based on the customs that sprang up several centuries ago. In the *Machinery of Justice* (3 ed) Jackson explains (at 10) that common law was a phrase used by canon lawyers to distinguish the general and ordinary law of the Universal Church from particular rules. The Judges were appointed to administer the law and custom of the realm, which meant that the Judges built up their own set of principles,

and rules. Their material consisted of general and local customs, and the periodical ideas of an age in which theology and law shared the harmony of intellectual effort. The different "laws" that governed various parts of England tended to disappear. There emerged a general body of rules that were applied in the King's Courts at Westminister and carried through the realm by Assize Judges on their circuits. This part of the law was common and to be contrasted with anything that was particularly extraordinary or special, such as surviving local custom or Roman Law. The essence of the common law was that it grew through judicial decisions recorded by lawyers. Insofar as customs is said to represent the adherence of people to a course of action or mode of behaviour, and through such adherence to exemplify their consent to it, the decisions of the Judges lay outside such adherence.

Professor Allen in his book *Law in the Making* (4ed) at 119 explains:

> "We have seen that every student of the Common Law constantly has to reckon with the large customary element which contains; but it is equally well-known to all legal historians nowadays that 'custom of the realm' was a very large measure the custom of the country, not of the people . . ."

At 120 he proceeds:

> "The cardinal fact in the settlement of our medieval law is the gradual domination of a permanent central tribunal over the jurisdiction of local courts . . .
>
> . . . royal justice establishes approximate uniformity in essentials as against the bewildering diversity of local custom of the King's Courts. There is still great variety of usage in manor boroughs and localities; but in what may be called the working basis of a general system of justice royal courts carry on, and have ever since continued a perpetual process of reconciliation and harmonisation, so that local divergencies, although always respected and often jealously safeguarded, do not impair the symmetry of the main fabric."

Such is the nature of the common law, in large part built up by the English Judges, just as in large part they built up the doctrines of equity later on. African customary law may now be at the beginning of such a process. The main difference between the African customary law and the common law is that the former is still a set of individual rules adhered to by each tribe, whereas the common law is a synthesis of judicial general principles except for a small number of specific customs not yet integrated. Once customs have been overtaken by judicial decisions which have "harmonised" them, customs as such cease to have effect. What occurred in the course of the development of common law was in some ways the kind of development which the late Minister Mr Mboya envisaged for customary law, when he addressed Parliament on the case for a unified court system, to which Mr *Khaminwa* referred (Republic of Kenya Official Report, *House of Representatives First Parliament First Session* Volume 1, Part II, 24 July 1963 Col 1484).

From this review it emerges that generally speaking the personal laws of Kenyans is their customary laws in the first instance. Common law is not the primary source, but it may be resorted to if the primary source fails.

That brings us to the case of *James Apeli and Enoka Olasi v Prisca Buluku* civil appeal number 12 of 1979. The dispute as to where the body was to be buried, was a dispute springing from the customs of the people of East Bunyore, where the deceased Simon Buluku was born and grew up. That dispute was never resolved. In its place, the wishes of the deceased became paramount. Reference was made to the English law and partly statute. It is difficult to see how the

Burial Act of 1857 of England could be relevant to the case before the Court; the Court went on to the consideration of a faculty granted by the Ecclesiastical Court and the licence from the Home Secretary. Adapting these matters by analogy it allowed the respondents to disinter the body to remove it from East Bunyore for burial in West Bunyore. The decision was subject to the discretion of the Minster of Health. This Court is bound by this decision, but it can be distinguished on the main ground, that there was no real decision as to what the relevant customary law was and how it applied to the circumstances of that case. In the instant case, there can be no such prevarication; the issues are sharp and clear, and the customary law declared. The best that can be done with the case of the burial of Simon Buluku is to restrict it to its special facts relating to exhumation.

The result is that we cannot whole-heartedly accept Mr *Khaminwa*'s thesis that Buluki's case supports the theory that common law is to be preferred to customary law. As far as one can tell, it was thought both laws common and customary had this in common that the wishes of the deceased, though not binding, must so far as is possible be given effect to. That may possibly be right for the circumstances of this case. Accordingly, we have to attend to the evidence of the Luo customs in this case, and answer the issues raised on them.

But supposing in the alternative, that Mr *Khaminwa* had persuaded us that the common law had to be preferred to the customary laws of the Luos, would he have fared any better?

The argument and judgment in *Rees v Hughes* [1946] KB 517 disposes of any argument that at common law the wife had a duty to bury her husband, the converse of the rule that the husband was under a duty to bury his wife. Mr Gerald Gardiner (as he then was) tried to put the case of the wife's duty to bury her husband. He argued at 521 that:

> "The only change in the law that has resulted from modern legislation is that whereas a wife having no property, was under no obligation to bury her husband, now that she may have property she is under that obligation."

That was rejected. Scott LJ preferred the argument of Sutton KC, to that of Gardiner. At common law, there was a public duty on the husband to bury his wife. That was because he acquired all her property, apart from the equitable doctrine of the wife's separate estate. The wife at common law had no power to dispose of property and only a limited power in equity. Hence, if a woman died, her husband was bound to discharge that duty, at his own expense, up to a reasonable amount. But the converse could not arise. When a man dies possessed of personal property the duty of burying his body fell primarily on his personal representative and not his wife as such. The Court pointed out to Mr *Khaminwa* during argument that the converse would not hold good. But after the Married Women's Property Act of 1882 the common law as regards the husband's duty ceased as well as the equitable doctrine of the wife's separate estate. The position of the married woman in England today has only emerged after the Administration of Estates Act 1925 and the Law Reform (Married Women and Tortfeasors) Act of 1953 neither of which apply to Kenya. Now where a married woman dies leaving an estate and a man dies leaving an estate, the burden of burying both of them falls upon their personal representatives. The categorical conclusion is that the wife never had any duty at common law to bury her husband. That was always the duty of his personal representatives. While the wife would no doubt be consulted as to the type of burial to be undertaken, it was the duty of the personal representative to bury the body of her husband within the means of the estate.

At common law before 1882 the wife would not have been able to take up letters of administration without the consent of her husband. It was after the Married Women's Property Act of 1882, sections 1(2), 18 and 24, that a married woman could take up administration without the consent of her husband and to act in all respects in the matter concerning the intestate as if she were a '*feme sole*" (see *Williams on Executors and Administrators* (14 ed) Volume I at paragraphs 238 and 733). It is not therefore the common law that Mr *Khaminwa* is really relying upon if he is relying upon the position of the appellant as a personal representative. The appellant as merely the wife has no case at common law. It is statute. Either one goes to the provisions of the Married Women's Property Act of 1882 which has been applied as a statute of general application in Kenya (see *I v I* [1971] EA 278) or one goes to the Law of Succession Act (Chapter 160). It seems that after 1971 a married woman could take up the administration of her husband's estate under the Act of 1882, but no doubt whether that was in fact the practise. However, she can certainly do so under the Law of Succession Act, which is now a written law, which must be supplementary to the customary law. The married woman is the preferred choice by virtue of section 66 of the Law of Succession Act.

But the difficulty remains that the general rule in relation to administration is that a party entitled to administration can do nothing as administrator before letters of administration are granted. Section 80(2) of the Law of Succession Act provides that a grant of letters of administration, with or without the will annexed, shall only take effect as from the date of the grant. In contrast, section 80(1) provides that a grant of probate shall establish the will as from the date of death, and shall render valid all intermediate acts of the executor or executors to whom the grant is made consistent with his or their duties as such. This means that in the case of an executor he may perform most of the acts appertaining to his office before probate including the bringing of a fresh action, because he derives title from the will and the property of the deceased vests in him form the moment of the intestate's death (see *Williams on Executors and Administrators* (14 ed) Volume I paragraphs 84 et seq and 230 *et seq*). But an administrator is not entitled to bring an action as administrator before he has taken out letters of administration. If he does, the action is incompetent at the date of its inception. The doctrine of the relation back of an administrator's title, on obtaining a grant of letters of administration, to the date of the intestate's death, cannot be invoked so as to render the action incompetent (see *Ingall v Moran* [1944] 1 KB and the case which follow, namely *Burns v Campbell* [1952] 1 KB). This doctrine is as old as *Wankford v Wankford* (1968) where Powys J said: "But an administrator cannot act before letters of administration granted to him."

If a person like the appellant acts before the grant she will be a volunteer.

In fact the appellant was prevented from acting. She has not yet gained letters of administration. Her application has been contested. While she may be the preferred choice in section 66 of the Law of Succession Act she has not yet received her grant and consequently cannot lawfully act in that predicament. She cannot legally claim the right to bury the body of her husband as his personal representative.

It follows that if that appellant relies on the common law itself it will not assist her. She is not yet able to sue as personal representative until the grant of

letters of administration to her (see *Williams* (*ibid*) Volume I at 151). The appellant therefore can only rely on the customary law. It is of importance perhaps to understand that the married woman at common law was something of a chattel belonging to her husband. No doubt the idea was her protection but it was by statute that her position has changed radically in England so that she is now on a level of equality with her husband. The statutory process appears to have begun in Kenya with the Law of Succession Act.

We return now to the customary law.

It is, we think, clear that the customs and customary procedures concerned with burial and establishment of a home amongst the Luo are rules of action which the Luo uniformly and voluntarily observe. So that the Luo have provided the rules for themselves and, by reason of their observance, the rules of action constitute customary law within section 3(2) of the Judicature Act. In accordance with section 51 of the Evidence Act the witnesses called were sufficient to prove the customs as being persons who would be likely to know of their existence. The deceased would be subject to the Luo customary law if it is not repugnant to justice and morality or inconsistent with written law. This requirement should be interpreted liberally. Some of the customs which have to be tested in this way are:

1. Otieno was born and bred a Luo and as such under Luo customary law his wife on marriage became part and parcel of her husband's household as well as a member of her husband's clan. Their children are also Luo as well as members of their deceased father's clan.
2. On the death of a married Luo man the customs are that the clan takes charge of his burial as far as taking into account the wishes of the deceased and his family.
3. But a Luo who has not established his own home in accordance with custom will be buried at his father's home.
4. Under the Luo custom to which, as we have said, she is bound she has no right to bury her husband and she does not become the head of the family upon the death of her husband.
5. As with other African communities a man cannot change his tribal origin.
6. There are the burial rights some of which are obligatory and some are not.

There is nothing repugnant or immoral about any of the above customary laws. The evidence on "magenga", the shaving of hair, "Tero Buru" and other rites shows that the practices are innocent and are meant to underscore the deep loss to the clan, to distinguish the particular deceased from the other deceased who are not as prominent and, no doubt, the ceremony is intended to encourage members of a clan to aim high by doing good deeds to the community.

But it has been queried whether these customary laws are just. There is evidence that the customary laws applied generally in Luo land. To the extent that one who does not wish to establish a home in Luo land may, with the consent and blessing of his father, or in his absence an uncle, set up a home elsewhere or even outside Luo land, the customary laws are just. This accommodates the rebel and frees him to continue life as he wishes. The mere fact that the deceased's father lived with him at his house in Langata is no evidence of the consent and blessing of the father for the deceased to establish a home in Langata or Upper Matasia. The appellant as the deceased's wife has to be

considered in the context of all wives married to Luo men irrespective of their lifestyles who become subject to the customary laws. The fact that her marriage was a mixed one would not confer on her any special status under the Luo customary law. Dealing with the argument of discrimination in general, we would refer to section 82(3) and (4)(*b*) of the Constitution of Kenya which allows for discriminatory rules respecting burial. At the moment there is no evidence of hardship felt by this particular community. Finally, as for the argument that the Luo customary laws are inconsistent with the written law namely the Law of Succession Act (Chapter 160), we are not persuaded that this is so. Section 66 of the Act, as we have pointed out, entitles the widow to be preferred as the personal representative for purposes of administration of the deceased estate, but that does not mean that the widow should not carry out the customs with regard to the burial of the deceased in conjunction with those who are responsible under customary law. We are persuaded from our perusal of the evidence from a summary of the ebb and flow of the argument on this aspect of the case that there is nothing in the Luo customary law which a reasonable man in Kenya would find repugnant to justice and morality. Repugnancy to justice and morality is not the same thing as inconvenience or hardship. This whole matter appears to have been presented as a direct conflict between African customary law in general and the applied common law. It may have been that the gist of the action was to finally oust African customary law and then proceed to apply common law and written law in all circumstances. However, that is not correct. This Court is not required or expected to decide to give African customary law or common law any new place in our jurisprudence as we have already explained. Under section 3(2) of the Judicature Act, the Courts of the country must be guided by African customary law provided such law is not repugnant to justice and morality or inconsistent with any written law. The Courts comply with that provision in proper circumstances. This Court had occasion as recently as 14 February 1986 in the case of *Hassan v Nathan Mwangi Kamau Transporters and others* (1982–1988) 1 KAR 946; [1985] LLR 250 (CAK) to caution that common law and its applicability must be tempered and adjusted to the circumstances and views generally held in Kenya. We can therefore state in the course of developing a jurisprudence which ultimately will have a Kenya identity, the Courts are enjoined to turn to African customary law as well as to the applied common law, to decisions of the English Courts and Courts of Commonwealth countries. The elders, who are the custodians of African customary law, assisted by the intelligentsia by the church and other organisations owe it to themselves and to their communities to ensure that customary laws keep abreast of positive modern trends so as to make it possible for Courts to be guided by customary laws.

We followed the argument on behalf of the appellant with the closest attention and we have carefully considered every point raised. We are respectfully of the view that the appellant’s case took no account of the Luo customary law, and has no answer against the claims or the respondents.

The appellant’s advocate confessed before us that he did not really understand the Luo customary law. Needless to say, it was his professional duty to carefully study and understand the Luo customary law and, if he thought it was in the appellant’s interest, to call evidence. As matters now stand, the Court has to confine to itself to the evidence on record on customary law which was adduced by the respondents.

We find ourselves in agreement with the Judge and we dismiss the appeal. It is ordered that the deceased's body shall be handed over to Joash Ochieng Ougo for burial at Nyamila Village, Nyalgunga Sub-location, Central Alego, Siaya District. The decision in Mburu's case is consistent with this decision. It does appear to us that in the course of time Parliament may have to consider legislating separately for burial matters covering a deceased's wishes and the position of his widow and so enabling courts to deal with cases related to burials expeditiously. It is now clear to us that it is not sufficient to write wills. There often are disputes about burials.

There will be no order as to costs.

Those are the orders of the Court.

For the appellant:
J Khaminwa

For the respondents:
R Kwach

Rajput v Rajput
[1986–1989] 1 EA 483 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	5 July 1988
Case Number:	7/88
Before:	Mustafa, Makame and Omar JJA
Sourced by:	LawAfrica

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[1] Children – Custody of a child – Presumption that mother best custodian of child – Factors to consider when deciding the parent who should have custody – Best interests of the child.

[2] Estoppel – Operation of equitable estoppel – Objection to admissibility of evidence not objected to in the lower court.

Editor's Summary

The appellant had applied for an order of custody of the child of his marriage and succeeded. However, this decision was overturned by the High Court. He therefore appealed arguing that his wife had been cruel to the child by refusing to rock the child when requested to do so by him; that his wife was illiterate and therefore incapable of adequately taking care of this child; that he lived in bigger premises than his wife; and that, since he had custody of the first issue of the marriage, he ought to have been similarly granted custody of the second issue.

Held – Since the appellant did not raise any objection to the admissibility of the respondent's affidavit in the lower court on the grounds that it was hearsay, he was now estopped from objecting to it in the appellate court since the Court, the parties and their respective advocates had conducted, argued and decided the matter on the allegations in the affidavit. Hence the appellant had led the

respondent to believe that her affidavit was in order and conducted her case on that basis.

Under the Law of Marriage Act, there is a rebuttable presumption that an infant below the age of seven should be with the mother. It is also common ground that the most important factor in custody is the welfare of the child.

There is no evidence of cruelty to the child on the respondent's part. Refusing to rock the child as alleged by the appellant does not amount to cruelty and if it is so, then the appellant is as guilty of it as the respondent.

While it is ideal to keep all the children of the marriage together, that factor has no great or particular significance in dealing with a child's custody.

The illiteracy or literacy of a mother is not a proper criterion for assessing the suitability of a woman as a mother.

Appeal dismissed.

No cases referred to in judgment

Judgment

Mustafa, Makame and Omar JJA: This appeal is concerned with the custody of an infant male child. The husband, who is the appellant in this appeal, had applied by way of Chamber Summons to a District Magistrate's Court in Dar-es-Salaam for an order of custody of the child to be made in his favour. He succeeded in the District Magistrate's Court, but that decision was overturned in the High Court on an appeal by the wife, who then obtained an order of custody in her favour. The appellant is appealing from the decision of the High Court.

Before us Mr *Lakha* appeared for the appellant husband and Mr *Kesaria*, with Mr *Marando*, appeared for the respondent wife.

We will begin with the short facts of the case. It would seem that the parties, who reside in Dar-es-Salaam, were married in 1980. There are two children of the marriage, one is now about six years old and the other being Keval, the subject of this appeal, is two years old. The wife had had occasion to stay away for two years from the husband, from June 1982 to May 1984, before the birth of Keval. The wife was supposed to have gone to her father in Tanga for a week or so, but stayed nearly two years. The wife had left her child with the husband during all that period.

The wife again left Dar-es-Salaam on 1 May 1988 for Tanga, with the child, Keval, with the permission of the husband, for a stay with her father for a short period, a month or so. The wife has refused to return with the child, Keval, to the matrimonial home in Dar-es-Salaam, until certain conditions were met, namely, that the husband should obtain accommodation on his own, and not live with his parents and his parent's family. As a result the husband applied for custody of the child, Keval.

At the Magistrate's Court the application of the husband was supported by an affidavit sworn to by the husband alleging acts of commission or omission on the part of the wife to indicate that she was not a proper or fit person to have custody of the child, Keval. The wife filed a counter-affidavit. However the counter-affidavit surprisingly enough, was not sworn to by the wife, but by Mr *Marando*, who was acting for her in the cause as her advocate. The counter-affidavit contained allegations of ill-treatment of her by the husband, her

mother-in-law and sisters-in-law. To the counter-affidavit the husband filed an affidavit in reply. At the hearing of the application the husband also testified, and called one witness, Chohan. The wife did not testify.

Before us Mr *Lakha* submitted that the counter-affidavit should not be looked at, as it was pure hearsay. In that event the only evidence available to the Court was that deponed to by the husband by way of his affidavits and the testimony given by him and his witness. However, no objection was raised by the appellant at the trial court to the admissibility of the counter-affidavit on the ground that it was hearsay or on any other ground. If such objection had been raised, we have, no doubt, a proper counter-affidavit would have been provided, after an adjournment, perhaps on terms, which could hardly have been refused. In the result the Court, the parties and their advocates conducted, argued and decided the matter on the allegations deponed to in the affidavits and counter-affidavit. Similarly on first appeal, the High Court decided the appeal on the basis that the matters deponed to in the counter-affidavit were validly before the Court. Both the Courts below had acted on that basis. The wife had certainly good ground for believing, and was so led by the way the appellant conducted the case to believe, that the counter-affidavit was in order and had been accepted as such and she had conducted her case on that basis.

The proper forum for raising the issue of hearsay was at the Magistrate's Court. In view of the course the matter has taken, we do not think at this stage we can allow this issue to be raised. The appellant would, on the basis of something in the nature of an equitable estoppel, be barred from doing so. It is a civil matter, and the appellant had waived his right to object to the admissibility of hearsay evidence in this appeal.

The wife on 28 April 1986 was physically assaulted by the husband. The wife apparently left the house after the assault. The husband and wife were reconciled by the members of their Hindu community and the wife was then "allowed to enter the petitioner's (husband) house", according to the evidence of the husband's witness, Chohan. On 1 May 1988 the wife left the matrimonial home and went to her father in Tanga with the child Keval and has refused to return unless the husband lived separately from his parents and family.

The wife had alleged that she was not able to suffer any longer the indignity and cruelty meted out to her by the husband's mother and sisters.

Since the trial court and the High Court had differed in their conclusions on the evidence adduced by the parties, we will have a look at the facts ourselves.

Mr *Lakha* at the outset of the appeal conceded that in terms of the Law of Marriage Act in Tanzania there is a rebuttable presumption that an infant below the age of seven should be with the mother. It is also common ground that the most important factor in custody proceedings is the welfare of the child.

Mr *Lakha* sought to rebut the presumption in favour of the mother on certain grounds. He submitted, *inter alia*:

> "(1) That the elder child is still with the husband and in his custody, and that indicates that he is a proper person to look after infant children. He wants both the children under his custody to keep them together, and not to have them separated.
>
> (2) That the wife had been cruel to the infant Keval and that the husband has so alleged. He referred to a paragraph in the husband's affidavit reading 'on 28 April 1986 Keval was crying from 8:30am to 9:00am and despite my instructions she did not pull the cradle and instead she absconded from the matrimonial home without the child'.

(3) The wife is illiterate and therefore incapable or unsuitable as a mother as she committed an error, due to her illiteracy, in giving the age of Keval to a doctor.

(4) The wife had, from June 1982 to May 1984, abandoned the elder child who was looked after by the husband's mother during that period.

(5) The accommodation in the wife's father's house in Tanga is insufficient and worse than that provided by the husband's parents' house."

We will deal with the allegation of cruelty against the child Keval made by the husband. Even if we accept as true the allegation made by the husband about what had happened on 28 April 1986, we are not persuaded that that incident established cruelty on the part of the wife. From the evidence supplied by the affidavits, counter-affidavit and testimony given, it seemed that on 28 April 1986 the husband assaulted the wife who left the house and was later "allowed to enter the petitioner's (husband's) house" after they were reconciled by members of their community. It would seem that there must have been some altercation or quarrel between the spouses before the husband struck the wife. It could have been, as alleged by the husband, that the wife had left the baby crying in the cradle without moving it to and fro. If that was "cruelty", which is open to doubt, we think the husband was equally "cruel". He could have himself moved the cradle to lull the child, instead of merely instructing the wife to do so. If leaving the child in a cradle to cry for half an hour was cruelty, then we think both were "cruel". That allegation, however, did not in our view establish that the wife was cruel to the child Keval on 28 April 1986.

It would have been ideal to keep the two children together if possible, but that factor has no great or particular significance in dealing with the custody of Keval. We do not think that literacy or illiteracy is a proper criterion for assessing the suitability of a woman as a mother. There was no evidence as to the relative space of the Dar-es-Salaam or Tanga accommodation, and that need not concern us. We do not think that the wife, in view of her allegations as to the living conditions she had had to endure at the husband's parents' house, was wrong to have insisted that she could not stay with the husband in the latter's parents' home.

We do not think that the grounds relied on by Mr *Lakha* could rebut the presumption in the wife's favour. We think that the wife should have custody of the child Keval in the circumstances of this case. An infant child of two should be with the mother, unless there are very strong reasons to the contrary. No such reasons exist here.

The High Court, on first appeal, made an order for maintenance of the child Keval in the sum of TShs 3 000 per month to be paid by the husband. Both Mr *Lakha* and Mr *Kesaria* agree that, if the custody of Keval was given to the wife, an order for maintenance was in order. However, Mr *Lakha* submitted that the sum fixed was manifestly excessive, and was not supportable on any evidence. There was no investigation as to means before the order was made. There was some evidence by the husband that his monthly net income was TShs 3 200. Both counsel accepted that was correct. On that basis we think that the sum should be TShs 1 200 per month and we accordingly set aside the sum of TShs 3 000 per month made by the High Court and substitute therefore a sum of TShs 1 200 per month.

Apart therefore from reducing the order of maintenance from TShs 3 000 to TShs 1 200 per month the appeal is dismissed with costs.

For the appellant:
Lakha

For the respondent:
Kesaria and *Marando*

Registrar of Buildings v Bwogi
[1986–1989] 1 EA 487 (CAT)

Division:	Court of Appeal of Tanzania at Dar-Es-Salaam
Date of judgment:	11 October 1989
Case Number:	19/88
Before:	Nyalali Cj, Mkame and Omar JJA
Sourced by:	LawAfrica

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[1] Special damages – Need for special damages to be specifically pleaded and proved – Jurisdiction of the Court to award special damages when not pleaded.

Editor's Summary

The respondent successfully sued the appellant for, *inter alia*, a declaration that he was the legal tenant of the suit premises, eviction of the first defendant and compensation at TShs 1 500 per day. In addition, the Court enhanced the amount of compensation to TShs 3 000 per day.

The appellant appealed on the jurisdiction of the Court to entertain the suit and the findings of the Court.

Held – It is trite law that special damages cannot be recovered unless specifically pleaded and specifically proved. It is thus not fair for the trial court to award compensation for loss not specifically alleged in the pleadings.

The High Court had no power to award compensation for a sum greater than that claimed by the respondent in the plaint.

Section 11A of the Rent Restriction Act number 17 of 1984 only deals with claims, proceedings or other matters of a civil nature arising out of the Act or any of the provisions of the Act. The suit filed in the High Court was not based on any grounds and did not seek any remedy, relief or legal right arising out of any provision of the said Act.

Although one of the reliefs sought by the respondent is eviction of the first defendant, section 19 of the Act, which also restricts the right to possession, deals with recovery of possession or ejectment in proceedings between landlord and tenant and does not encompass proceedings for eviction between tenant and tenant as is the case here. It follows therefore that the provisions of section 11A of the said Act do not apply here.

Order 23, rule 3 of the Civil Procedure Code apply only to a situation where a party withdraws the suit from a court of competent jurisdiction and subsequently seeks to reinstate the suit either in the

same court or in a court of concurrent jurisdiction. Since the subordinate court did not have concurrent jurisdiction with the High Court in this matter, the same does not apply here.

Since the orders made by the Taxing Master are made at the end of interlocutory proceedings consequent upon a decree, they cannot be part of the decree. No appeal therefore lies as of right against such orders without the leave

of the High Court or of the Court of Appeal according to section 5(1)(*c*) of the Appellate Jurisdiction Act of 1979. Since no leave was sought in this case, the appeal is incompetent.

Since the respondent was in occupation of the building from December 1975 to 18 June 1980 any reasonable person would conclude that the conditions attached to the offer made by the appellant must have been fulfilled by the respondent or waived by the appellant. It is unlikely that the respondent was in occupation for five years without a tenancy.

Since the tenancy agreement between the parties was for the purpose of carrying on business in the premises, the agreement contained an implied term that the respondent was to carry on that business lawfully. By failing to renew the trade licence and illegally carrying on business, the respondent was in breach of the tenancy agreement and the appellant was entitled to terminate the tenancy in order to stop the respondent using the premises illegally.

Appeal succeeds.

No cases referred to in judgment

Judgment

Nyalali CJ, Mkame and Omar JJA: The respondent Felix Bwogi t/a Eximpo Promotion and Services, instituted this suit in the High Court at Dar-es-Salaam against the appellant, that is, the Registrar of Buildings, who was the second defendant, and another person, who was the first defendant, for wrongful termination of a tenancy and certain tortius acts and sought the following reliefs, *inter alia*:

> "(*a*) A declaration that the plaintiff is the legal tenant;
>
> (*b*) Eviction . . . of the first defendant of the suit premises;
>
> (*c*) The return by the first defendant of all the plaintiff's licences and certificates, sign boards, contract agreements and all other documents of the plaintiff, and
>
> (*d*) Compensation to the plaintiff of loss caused be the plaintiff's business assessed at TShs 1 500 per day as from 26 November 1979;
>
> (*e*) Interest at 10% on the decretal amount to the date of judgment;
>
> (*f*) Compensation for damages on the business names as to be assessed by the Court;
>
> (*g*) Compensation for any damage caused in the suit premises;
>
> (*h*) Costs of the suit."

Prior to the institution of the suit in the High Court the respondent had instituted a similar suit in the Court of the Resident Magistrate in Dar-es-Salaam, but that suit was subsequently withdrawn. In the High Court Mapigano J gave judgment for the respondent and granted most of the reliefs sought, and enhanced the amount of compensation by awarding compensation at the rate of TShs 3 000 per day instead of TShs 1 500 per day as claimed by the respondent. The appellant was aggrieved by the judgment of the High Court, hence this appeal to this Court. Messrs *Kesaria* and *Lukwaro*, learned advocates, appeared for the appellant before us, whereas Mr *Maira*, learned advocate, appeared for the respondent. Eleven grounds of appeal were submitted by the appellant to this Court. Some of the grounds challenge the jurisdiction of the High Court to entertain the suit, others the findings of the Court and the reliefs granted by the High Court.

From the proceedings both in this Court and the Court below, the following matters are not in dispute between the parties. It is common ground that prior to 1975 the building at plot number 582/9 Samora Avenue/Independence Avenue, which belongs to the appellant, was let to and occupied by one Abdu Mwenge as a tenant of the appellant. It was a commercial building and was let and used for that purpose. Sometime in December 1975, the building became occupied by the respondent for business or commercial purposes upon payment of TShs 5 000. It is undisputed that during such occupancy various documents were issued by the appellant, including exhibit P2, a letter reference number DSM/IIA/310/34/AMI dated 28 November 1979 addressed "To Whom it May Concern" and signed by the Assistant Registrar of Buildings, Ilala; exhibit P3, that is, a letter reference number EB/ILA/I/Vol III/24/RAT dated 5 March 1982 addressed "To Whom it May Concern" and signed by the Estate Officer of the appellant and exhibit P11, that is, a letter reference number DSM/310/11/354/AMI dated 2 January 1976 also addressed "To Whom it May Concern" and signed for the Registrar of Buildings. Furthermore, it is not in dispute that the respondent was put in preventive detention by the government for a period of three years from 1979 to 1982. While the respondent was in such detention, his occupancy of the building in question was terminated by the appellant on 18 June 1980 as per the contents of exhibit P3. The building was thereafter allocated to the first defendant, as a new tenant of the appellant.

From the same proceedings both in this Court and the Court below the following matters are in dispute between the parties. It is the case for the respondent that the appellant wrongly terminated the tenancy agreement, which existed between the parties and that as a result of that wrongful termination, the first defendant fraudulently converted the respondent's business and property to his own use and the respondent suffered loss of earnings at the rate of TShs 1 500 per day. On the other hand, it is the appellant's case that no tenancy agreement existed between the parties but only a conditional offer made by the appellant to the respondent. The condition was that the respondent had to pay a sum of TShs 12 000 to clear arrears of rent owed by the former tenant, that is, Abdu Mwenge, to the appellant. It is part of the appellant's case that the respondent paid only a sum of TShs 5 000 but failed to pay the remainder. Furthermore, it is part of the appellant's case that the respondent has failed to pay any rent in respect of respondent's own occupancy of the building in question. The appellant contends therefore that the respondent's failure to fulfil the condition attached to the offer rendered that offer inoperative and thus incapable of constituting a contract between the parties. In the alternative it is the appellant's contention that he was entitled to terminate the tenancy under the provisions of section 12 of the Building Acquisition Act of 1971 upon the respondent's failure to pay rent.

The appeal before us raises a series of issues of jurisdiction and competency as well as issues on the merits of the case. We start first with the issues of jurisdiction and competency. The first one is whether the High Court is empowered to enhance the amount of compensation claimed in respect of special damages, as it was done in the present case. It is trite law that special damages cannot be recovered unless specifically pleaded and specifically proved. The respondent in his pleading specifically alleged a loss of earnings at the rate of TShs 1 500 per day. That was the allegation which the appellant faced at the trial in respect of special damages. That being the case, it is not fair for the trial court to award compensation for loss not specifically alleged in the pleadings. We are thus of the view that the High Court had no power to award compensation for a sum greater that that claimed by the respondent in the plaint.

The second issue concerns the jurisdiction of the High Court to entertain the suit. Mr *Kesaria*, learned advocate for the appellant, submitted before us that the High Court had no jurisdiction to hear the suit by virtue of the provision of section 11A subsections (1) and (2) of the Rent Restriction Act (Chapter 479) which applies to this case before it was repealed and replaced by the Rent Restriction Act number 17 of 1984. That section reads:

> "All claims, proceedings or other matters of a civil nature arising out of this Act or any of the provisions thereof and in respect of which jurisdiction is not specifically conferred upon the tribunal shall be commenced in the Court . . ."

The "court" is defined under the Act as a court of a Resident Magistrate of competent jurisdiction. Mr *Kesaria*, however, did not press his submission after his attention was drawn to the provisions of subsection (2) of section 11A, which gives the High Court discretion to hear such a suit. We are, however, of the considered opinion that the present case does not fall within the scope of section 11A of the Rent Restriction Act. That section deals only with claims, proceedings or other matters of a civil nature arising out of the Act or any of the provisions of the Act. The suit filed in the High Court was not based on any ground and did not seek any remedy, relief or legal right arising out of any provisions of the Rent Restriction Act. Although it is true that one of the reliefs sought by the respondent was eviction of the first defendant, and would appear to be a remedy regulated by section 19 of the Rent Restriction Act, which restricts the right to possession, a close examination of section 19 makes it plain that the section deals with recovery of possession or ejectment in proceedings between landlord and tenant only. That section does not encompass proceedings for eviction between tenant and tenant as is the case here where the respondent sought to evict the first defendant, who also claimed to be the lawful tenant of the appellant. It follows therefore that the provisions of section 11A of the Rent Restriction Act do not apply to the present case.

Mr *Kesaria* further submitted that the High Court had no jurisdiction to entertain the suit, by virtue of the provisions of Order 23, rule 3 of the Civil Procedure Code, which reads:

> "Where the plaintiff withdraws from a suit, or abandons part of a claim, without the permission referred to in sub-rule (2), he shall be liable for such costs as the Court may award and shall be precluded from instituting any fresh suit in respect of such matter or such part of claim."

It is Mr *Kesaria*'s contention that since the respondent had instituted the same suit in the Court of the Resident Magistrate at Dar-es-Salaam and had withdrawn it therefrom, he was precluded from instituting the suit in the High Court unless be can show that he was permitted by the Court so to do, as provided under subrule 3(2) of Order 23. With due respect to Mr *Kesaria*, we are satisfied that his submission is misconceived because the provisions of Order 23, rule 3 of the Civil Procedure Code apply only to a situation where a party withdraws the suit from a court of competent jurisdiction and subsequently seeks to reinstitute the suit either in the same court or in a court of concurrent jurisdiction. This is not the case here. The subordinate court did not have concurrent jurisdiction with the High Court in this matter in view of the value of the suit, which is not less than TShs 1 million.

The third issue concerns the competence of this Court to hear an appeal against the orders stated in grounds 9, 10 and 11 of the memorandum of appeal.

The order appealed against in ground 9 is an order of the Taxing Master of the High Court made on a bill of costs. Mr *Kesaria* has submitted that such an order is part of the decree of the High Court and is thus appeallable under the provisions of section 5(1)(*a*) of the Appellate Jurisdiction Act of 1979. With due respect to Mr *Kesaria* we do not think that he is correct. Under section 28 of the Civil Procedure Code, a decree always follows the judgment. A decree is defined under section 3 of the same Code to the effect as the formal embodiment of the judgment of the Court in the case. Since the orders made by the Taxing Master are made at the end of interlocutory proceedings consequent upon such a decree, they cannot be part of the decree. No appeal therefore lies against such orders to this Court without the leave of this Court or the High Court according to section 5(1)(*c*) of the Appellate Jurisdiction Act of 1979. Since no such leave was sought in this case, to that extent the appeal is incompetent. As to grounds 10 and 11 of the memorandum of appeal, these concerns orders made in execution of the decree. It is obvious from the provisions of section 5 of the Appellate Jurisdiction Act of 1979 that no appeal lies from such orders to this Court without the leave of either this Court or the High Court. Since no leave was sought, to that extent the appeal is incompetent.

Now we come to the merits of the case. The first issue on the merits is whether there was a tenancy agreement between the respondent and the appellant in respect of the building in question. Since it is common ground that the respondent was in occupation of the building from December 1975 to 18 June 1980, there can be no doubt in the mind of a reasonable person that the conditions attached to the offer made by the appellant to the respondent must either have been fulfilled by the respondent or waived by the appellant. It is unlikely that the respondent was in occupation of the building for a period of five years without tenancy. We are satisfied that a tenancy agreement existed between the respondent and the appellant and we so find.

The next issue is whether the appellant wrongfully terminated the tenancy in June 1980. The appellant contends that he was entitled to terminate the tenancy under the provisions of sections 12 and 15 of the Land Acquisition Act number 13 of 1971 upon failure by the respondent to pay rent in respect of the tenancy. This contention is, however, unfounded since the appellant adduced no evidence to show that the respondent had failed to pay the rent. The burden of proving such failure was upon him since it was he who was alleging such failure. Mr *Kesaria* submitted in the alternative that the appellant was entitled to terminate the tenancy as the respondent had failed to renew his business licence which had expired and respondent was consequently carrying on business illegally in the building, which was the subject of the tenancy agreement. Undoubtedly there was uncontroverted evidence adduced at the trial as exhibit D attached to the written statement of defence of the first defendant, that is, a letter reference number RFO/CR/BJ/GEN/Vol II/135 dated 26 February 1980 addressed “To Whom it May Concern” by the Regional Finance Officer, Dar-es-Salaam and Coast Region. The letter reads:

> “*M/S EXIMPO*
>
> The above mentioned business is ordered to stop operation with effect from 26 November 1979 because they were found in operation while their business licence had already expired on 31 March 1979 and it had not been renewed. They will go into business again after they had obtained a valid licence to cover the period from May 1979 to 30 April 1980 and after their offence for carrying on business illegally had been compounded under the Finance Act of 1972.”

We are of the view that since the tenancy agreement between the parties was for the purpose of carrying on business in the premises in question, that agreement contained an implied term to the effect that the respondent was to carry on that business lawfully. By failing to renew his trade licence and illegally carrying on business as stated in the contents of exhibit D the respondent was in breach of the tenancy agreement. We are satisfied that the appellant was entitled to terminate the tenancy to stop the respondent using the premises illegally. As the respondent had been carrying on business unlawfully in the premises since 26 November 1979, there could be no basis upon which he could properly succeed in this suit against the appellant. It follows therefore that this appeal must succeed. We hereby allow the appeal and set aside the judgment and decree of the High Court with costs.

For the appellant:
Kesaria and *Lukwaro*

For the *respondent*:
Maira

Rwamwaro v Uganda
[1986–1989] 1 EA 492 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	22 March 1989
Case Number:	13/88
Before:	Wambuzi CJ, Lubogo AJSC and Odoki JSC
Sourced by:	LawAfrica

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[1] Constitutional law – Fundamental rights and freedoms – Right to legal representation – Limitation to right – Article 15(2)(d) – Constitution of the Republic of Uganda.

Editor's Summary

The appellant was convicted by a Magistrate of robbery contrary to sections 272 and 273(1)(*a*) of the Penal Code and theft contrary to section 252 of the same Code. He was sentenced on the first count to imprisonment for two years and ordered to pay an unspecified amount of compensation to the complainant. He appealed to the High Court against both convictions and the order of compensation. The High Court dismissed the appeal against the convictions. The appellant preferred this second appeal principally on the ground that the High Court Judge erred when he held that the learned trial Magistrate had properly exercised his discretion when he refused to grant an adjournment to the appellant due to the absence of the appellant's advocate. The complaint was that, by failing to grant the appellant an adjournment, the trial Magistrate deprived the appellant of his constitutional right to defend himself by counsel of his own choice.

Held – Every accused person has a constitutional right to be defended by counsel of his choice, and if he is deprived of that right through no fault of his own or that of his counsel, and a conviction follows, the conviction will be quashed on appeal (*Galos Hired and another v Republic* [1944] AC

149; *Kingston v Republic* [1948] 32 criminal appeal R 183; *Yusufu Gitta v Republic* [1959] EA 211 referred to).

In determining whether or not the accused or his advocate is at fault, their conduct and all the circumstances of the case must be taken into account.

It is the duty of counsel to take all necessary steps to represent his client in court. If he fails to appear in court or to brief another counsel to hold his brief then he is clearly at fault. *Yusufu Gitta v Republic* [1959] EA 211 followed.

The grant of an adjournment involves an exercise of a judicial disconnection and an appellant court will not interfere with that exercise unless it was based on any wrong principle (*Yusufu Ahmed alias Fara v Republic* [1959] EA 615 followed).

Appeal dismissed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Halset v Republic [1967] EA 796

Kamabati v Uganda criminal appeal number 54 of 1975 (UR)

Mugema v Republic [1967] EA 676

Muhamed Byamugisha v Uganda criminal appeal number 4 of 1983 CA (UR)

Muyimba and others v Uganda [1969] EA 433

Nkera v Uganda [1984] HCB 3

Ogola v Republic [1973] EA 277

Sabani v Uganda [1974] EA 460

Yusufu Gitta v Republic [1959] EA 211 – **F**

Yusufu Ahmed alias Fara v Republic [1959] EA 615 – **F**

United Kingdom

Galos Hired and another v R [1944] AC 149

Jafferali [1947] 1 TLR 299

Kingston v R [1948] 32 Cr App R 183

Judgment

Wambuzi CJ, Lubogo AJSC and Odoki JSC: The appellant was convicted by a Magistrate grade I in Fort Portal of robbery contrary to section 272 and 273(1)(*a*) of the Penal Code on the fist count, and of theft contrary to section 252 of the same Code on the second count. He was sentenced on the first count to imprisonment for two years and ordered to pay an unspecified amount of compensation to the complainant. On the second count he was sentenced to 18 months' imprisonment, both sentences to run concurrently. He appealed to the High Court against both convictions and order for compensation. The appeal against the convictions was dismissed as the learned Judge was satisfied that there was ample evidence to support the convictions. The order of compensation was, however,

set aside on the ground that it was bad in law since it did not specify the amount of money to be paid to the complainant. It is against the decision of the learned Judge upholding the convictions that the appellant now appeals to this Court.

The appellant has filed two grounds of appeal, which are as follows:

> "1. The learned justice of the first appeal erred in law when he held that the learned trial Magistrate had properly exercised his discretion when he refused to grant an adjournment to the appellant due to the absence of the appellant's advocate.
>
> 2. The learned Justice of the first appeal erred in law and misdirected himself on the evidence when he held that belonging to different political parties cannot amount to a grudge and thus failed to consider this aspect in favour of the appellant."

We shall first deal with the second ground of appeal. At the trial it was submitted on behalf of the appellant that the case against him had been fabricated by the prosecution witnesses because of a grudge between the appellant and the witnesses based on political differences. The appellant was the chairman of the Kabalore North Constituency for the Uganda Peoples Congress at the material time, while the witnesses were supporters of the Democratic Party. The trial Magistrate considered this submission in his judgment but rejected it as he believed the prosecution evidence as true. The question of grudge was raised again on appeal before the High Court where the learned Judge said, in his judgment:

> "There was evidence that the appellant and some of the witnesses belonged to different political parties. Holding different political views in my view, does not amount to a grudge in the same way as holding different religious faiths would amount to a grudge. I find therefore that the trial court did not fail to consider the grudge aspect against the appellant."

In our view, the issue whether or not there was a grudge between the appellant and the prosecution witnesses was a question of fact which was adequately canvassed and dealt with by the High Court.

As it is not a matter of law, it cannot be raised on a second appeal as to do so would be to offend against the provisions of section 337(1) of the Criminal Procedure Code which provides:

> "Either party to an appeal from a Magistrate court may appeal against the decision of the High Court in its appellate jurisdiction to the Court of Appeal on a matter of law, not including the severity of sentence, but not on a matter of fact or of mixed fact and law."

Accordingly the second ground of appeal must fail.

We now turn to the first ground of appeal. The complaint here is basically that by refusing to grant the appellant an adjournment, he was, through no fault of his, deprived of his constitutional right to defend himself by counsel of his own choice as provided for in article 15(2)(*d*) of the Constitution of the Republic of Uganda which provides:

> "Every person who is charged with a criminal offence . . .
>
> (*d*) shall be permitted to defend himself before the Court in person or, at his expense, by a legal representative of his own choice."

Mr *Elue*, learned counsel for the appellant, submitted that since the appellant was deprived of his right to legal representation through no fault of his or that of his counsel, his trial was a nullity. He contended that had both the trial Magistrate and the learned Judge considered the history of the prior adjournment in the case, they would have come to the conclusion that neither the appellant nor his counsel was at fault.

The appellant first appeared in court on 7 October 1986 originally charged with two counts of capital robbery and was remanded in custody. On 18 December 1986, the charges were amended to simple robbery and the appellant through his counsel, the late Karwani, applied for and was granted bail.

On 16 February 1987 the prosecutor applied for a hearing date and the case was fixed on 16 March 1987 for hearing. On 16 March 1987 the hearing of the case could not proceed because the prosecution had not summoned their witnesses. Counsel for the appellant applied for the dismissal of the case but the trial Magistrate adjourned the case to 11 May 1987. On 11 May 1987 the hearing of the case did not proceed because the appellant was absent as he was attending court in another case, and the prosecution witnesses were absent and so the case was adjourned to 10 June 1987. But on that day the case could not proceed again because the State Attorney had not yet arrived from Kampala. The case was adjourned to 10 July 1987 but the State Attorney was still unavailable. On 24 August 1987 the appellant and his counsel were present. The State Attorney was absent and the prosecutor applied for adjournment to 5 October 1987. Defence counsel raised no objection.

On the fateful day of 5 October 1987 the appellant was present but his counsel was absent. The State Attorney had arrived from Kampala and was present to conduct the prosecution. The record of the relevant proceedings then reads:

> "Pro: I am ready to proceed and I have two witnesses in court.
>
> Accused: My advocate is not present. I apply for an adjournment. I suspect the advocate is sick.
>
> Pro: I object the application for adjournment on the grounds raised by the accused. That he suspects his counsel to be sick. Mere suspicion is not enough to move the Court to grant an adjournment. More so, today's date is within knowledge of the accused's counsel. I pray that the application for adjournment is rejected and the same proceeds.
>
> Court: From the Court record, on 24 September 1987 an application for adjournment of this case to today 5 October 1987 was made on the ground that the State Attorney was not present. Counsel for the accused person was present and he never objected to adjournment let alone on the date. On several occasions, the case has been adjourned because of State Attorney. Now that the State Attorney is present from Kampala and the advocate for the accused is not present for reasons not known to court, I uphold the objection by the State Attorney and order the case to proceed."

The prosecution then called three witnesses who were cross-examined by the appellant and the hearing adjourned for two days. On 7 October 1987 when the hearing resumed counsel for the appellant was still absent and four more prosecution witnesses were called three of whom were cross-examined by the appellant. Apparently the appellant did not wish to cross-examine the fourth witness. On the same day the prosecution closed its case, and the appellant gave evidence on oath and was cross-examined by the State Attorney. The hearing was adjourned to the following day when two defence witnesses were called, and the hearing adjourned to 11 November 1987 to enable the appellant to call two other witnesses. The hearing was, however, unable to proceed until 30 November 1987 when counsel for the appellant appeared. The case nevertheless proceeded until 18 February 1988 when the third defence witness testified and the defence closed its case. Submissions were then made by both counsel.

It is clear from the brief ruling of the trial Magistrate that he took into account the previous numerous adjournments which had been necessitated by the absence of the State Attorney, and was anxious to get on with the hearing of the case when the State Attorney appeared. In his judgment the learned Judge also considered this matter when he said:

> "On ground 1 of the appeal which is that the trial Magistrate erred in law when he refused to grant an adjournment to the appellant to enable him to be represented by an advocate, Mr *Elue* on behalf of the appellant argued that according to the trial proceedings the case had on several occasions been adjourned because of the absence of State Attorney to prosecute it. This was conceded by the trial Magistrate himself at page seven."

Although the learned Judge does not appear to have expressed his opinion about those previous adjournments, we are unable to say that he did not take them into account when he finally came to the conclusion that the learned trial Magistrate had exercised his discretion correctly in refusing to grant the adjournment sought by the appellant due to the fault of the appellant's counsel.

It is true that previous adjournments had been granted to the prosecution due to the absence of the State Attorney, but this did not mean that the trial Magistrate had to grant the defence an adjournment in turn without justifiable cause. The absence of the State Attorney had been explained on each occasion, but the absence of counsel for the appellant on that occasion had not been explained. The trial Magistrate said so. The learned Judge held that that amounted to a fault on the part of counsel for the appellant.

After considering the various authorities which were cited to him which were *Galos Hired and another v Republic* [1944] AC 149; *Kingston v R* [1948] 32 Cr App R 183; *Yusufu Gitta v Republic* [1959] EA 211 and *Muyimba and others v Uganda* [1969] EA 433, the learned Judge concluded:

> "From the case authorities I have referred to the above the law is quite clear. In this instant case conviction can only be quashed if refusal by the trial Magistrate to adjourn the case in which the appellant had engaged and was entitled as of right to be heard by his counsel was without any default on the part of the counsel for the appellant to appear in court on 5 October 1987 to which date the case was adjourned with his consent since he did not raise any objection to it.
>
> Neither did he consider it appropriate or courteous to inform the Court his reason for being unable to appear in court on that day. In the circumstances I would agree with the submission by counsel for the respondent that the trial Magistrate rightly exercised his discretion to order the hearing of the case in the absence of the appellant's counsel."

We think it is now well settled that every accused has a constitutional right to be defended by counsel of his choice, and that if he is deprived of that right through no fault of his own or that of his counsel, and a conviction follows, the conviction will be quashed on appeal (*Galos Hired and another v Republic* (*supra*); *Kingston v R* (*supra*); *Muyimba and others v Uganda* [1969] EA 433 (*supra*); *Mugema v Republic* [1967] EA 676 and *Ogola v Republic* [1973] EA 277).

Mr *Elue* submitted that while the above principle is well established, the authorities do not assist us in determining the degree of fault required. It seems to us that in determining whether or not the accused or his advocate was at fault, their conduct and all the circumstances of the case must be taken into account. It is the duty of counsel to take all necessary steps to represent his client in

court. If he fails to appear in court or to brief another counsel to hold his brief then he is clearly at fault. In *Yusufu Gitta v Republic* (*supra*) Bennett J said:

> "A contributory cause was the failure of the appellant's advocate to do his duty to his client. That duty is aptly described in the following judgment of the Court of Criminal Appeal in *Kingston v Republic* [1948] 32 Cr App R 183 (*supra*):
>
> > 'We have had a report in this case from the learned Recorder of Manchester and it is quite clear from that report that the primary cause of this unfortunate situation was the failure of the counsel who had been briefed to do his duty to his client and the Court in attending when the case was on the list for trial. If he was unable to attend his duty as everybody knows was to see that some other members of the Bar held his brief and was in a position to represent the accused person.'"

The case of *Mary Kamabati v Uganda* criminal appeal number 54 of 1975 (UR) illustrates some of the faults by counsel which may deprive an accused of his right to legal representation. In that case when the appellant appeared on 25 November 1974 the prosecutor and her counsel Mr Katembeko were present. The prosecutor applied for adjournment which Mr Katembeko did not oppose but said it should be for the last time. The case was adjourned to 10 December 1974 for hearing. On 10 December 1974 counsel for the appellant was absent and was recorded to be in the High Court at Mbarara. The case was adjourned to 29 January 1975 and appellant's bail was extended. On 29 January 1975 counsel for the appellant was absent. The prosecution opened their case and the complainant gave evidence. In the middle of her evidence, Mr Katembeko appeared and informed court that he represented the appellant. The Court informed him that the appellant had not informed it that she was represented. Mr Katembeko then said that the appellant never told him of the hearing date, and then went away saying that he would come back after appearing before the chief Magistrate and that he did not mind the case going on in his absence. The complainant continued giving her evidence and the appellant cross-examined her. Two more witnesses gave evidence and the case was adjourned to 18 February 1977. On that day counsel for the appellant appeared and applied for the recalling of the prosecution witnesses for cross-examination and copy of proceedings. The Court refused this application and ordered the hearing to proceed. The fourth witness gave evidence but counsel for the appellant refused to cross-examine the witness saying that the appellant could do so herself. He refused to withdraw, and maintained he was still representing the appellant. The prosecutor closed his case and the appellant gave her evidence. Counsel refused to make submissions and the Court reserved judgment, which it delivered later convicting the appellant.

It was argued on appeal that the appellant did not get a fair trial as the greater part of her trial was concluded in the absence of her counsel and the fact that she was represented was well known to the trial Magistrate. It was held by the High Court that it was the fault of the appellant that her advocate did not appear at the hearing because she is the one who failed to inform him of the hearing date and since she was not under any misapprehension that it was her duty to do so. It was also held that when counsel appeared he showed callous disregard for the right to services of counsel when he said that he did not mind the case proceeding in his absence, and in refusing to participate in the proceedings while maintaining that he was still representing the appellant. As the Judge rightly observed:

> "This was an unfortunate case. Through a combination of faults by the appellant and her counsel the appellant found herself without the services of her counsel. This was a case involving accounts where I think the appellant would have needed services of

> counsel. However after giving anxious considerations to the whole matter, and for the reasons I have given, I have come to the conclusion though not without considerable hesitation, that in all the circumstances of this case, the appellant could not be said to have been denied the right to be represented by counsel, and I so hold."

It is clear from the authorities that counsel must be engaged in time and given sufficient notice of the hearing date so as to prepare his client's defence and organise his engagements. If he is not given reasonable time, he cannot be held to be at fault if he fails to appear (see *Yusufu Gitta v Republic* (*supra*)).

In *Muyimba and others v Uganda* (*supra*) one of the three appellants charged jointly with an offence was represented by an advocate. He had been in custody since May 1968, and the police were aware that an advocate had been instructed in June 1968. On 5 September 1968, the hearing of the case was fixed for 10 September 1968 at Masaka, which is 80 miles from Kampala where the advocate was practising. The advocate was informed that the case was fixed for hearing by telephone only on the morning of the hearing. He was engaged in the High Court in Kampala. The Magistrate was not told that the advocate had been informed only that morning that the case was fixed for hearing. The Magistrate accordingly allowed the trial to proceed. The appellant appealed on the ground that he had been denied the right to legal representation given to him by the Constitution of Uganda. It was held that the appellant had been deprived of his right to legal representation through no fault of his counsel. Russel said:

> "I have no doubt the Magistrate was under the impression that his clerk or prosecution had promptly informed Kirenga of the hearing date and Mr Kirenga had at last moment phoned and said he was not coming. Be that as it may, as far as the first appellant and Mr Kirenga were concerned Mr Kirenga received the first notice of the hearing date on the morning of the trial.
>
> Masaka is a matter of eighty miles from Kampala and quite apart from Mr Kirenga being engaged in the High Court, it is quite unreasonable to expect a professional man to drop all appointments and duties at the drop of a hat and hasten eighty miles by road to defend client, and I am convinced that the Magistrate would not have even considered requesting him to do so if he had been aware of the facts. It is unfortunate the Magistrate did not question the prosecutor as to whether Mr Kirenga had received due notice, but he obviously assumed he had been so notified as otherwise Mr Kirenga would not allegedly have phoned the Court clerk.
>
> For these reasons it appears to me that the first appellant was unwillingly deprived by the Magistrate of his constitutional right to be legally represented. Although the trial lasted several days the Magistrate, in apparent ignorance of the facts failed to rectify the matter."

We think it is good sense that an accused should take all reasonable steps to ensure that his counsel appears for him and if he is unable to appear to offer a satisfactory explanation to court for his absence. Mr *Elue* argued that in the present case, the appellant can be excused because he did not know the procedure so that he could not apply for a short adjournment to find out why his counsel was absent. In *Mugema v Republic* (*supra*) at the conclusion of the evidence taken for the prosecution, the accused explained that he had briefed an advocate who was not at the trial. He said:

> "I have an advocate G Singh whom I expected was summoned. I did not know the procedure. I sent in a letter from my advocate."

The trial Magistrate took the view that the appellant had had opportunity of cross-examining the witness for the prosecution, and as he had not informed

the Court before the commencement of the trial that he wished to be represented, it was fit and proper and just and fair for the accused to be compelled to give his defence. Accordingly the appellant gave his evidence on oath and he was subsequently convicted. Learned counsel for the appellant confirmed that he had been briefed before the trial commenced and that he had written a letter to the Magistrate copied to the police commander stating that he had been briefed. He received no reply to his letter and none could be found on the record. On appeal, the High Court of Tanzania held that the Magistrate was wrong to have refused an adjournment when the accused had pointed out that an advocate had been briefed to defend him. Platt J said at 678:

> "Daniel informed the Court that he had engaged an advocate whom he had expected would be present to represent him and thought that the Court had been notified. This statement was correctly understood to imply an application for an adjournment. But the learned Magistrate . . . noted that the appellant was properly required to proceed to give his defence without representation because the appellant had had the opportunity of cross-examining the witnesses and because he had not informed the Court at the commencement of the trial that he wanted to be represented. The second point is relevant and it was conceded that the appellant should have informed the Magistrate at the beginning of the trial that he wished to be represented. But as he explained he had not known the proper procedure and thought that notification of his intention had already been given to the Court. It will be seen therefore that this is not a case where the appellant had taken no steps at all until a late stage of the trial, but one where he had taken steps although he had been confused as to what his position was. The learned Magistrate may well have thought that there was no letter on the record, the application did not have a very satisfactory basis, but as it turns out there must have been some administrative mishap which accounted for the fact that the appellant's letter did not reach the Court. Reviewing the situation therefore from the advantageous position of having all the facts before me it is clear that the appellant had taken proper steps to engage an advocate, but that the advocate did not appear through no fault of the appellant. As in *Jafferali* case [1947] I TLR 299 the remaining grounds of appeal show that the evidence was conflicting and there may well have been an important point of law. Accordingly with the facts before me, there is no doubt that the appellant should have been allowed an adjournment for counsel to be present and to represent him and that the denial of his right to be represented may well have occasioned a failure of justice."

We do not read in this passage that ignorance of procedure can excuse. It merely served to explain the appellant's confusion as to his position as is quite correctly stated by Platt J.

Having considered all the circumstances of this case we are satisfied that counsel for the appellant was at fault in not appearing on the hearing day or sending an explanation for his absence. He did not even instruct another advocate to hold his brief. When he appeared during the defence case he did not offer any apology or explanation for his absence. He continued with the case as if nothing wrong had happened. He seems to have been satisfied with the position of the case. In so doing, we think he failed in his duty to his client and to the Court.

We hold therefore that the learned Judge was justified in holding that the trial Magistrate had properly exercised his discretion when he refused to grant an adjournment due to the absence of the appellant's counsel who was at fault. The grant of an adjournment involves an exercise of a judicial discretion, and an appellate court will not interfere with that exercise unless it was based on any wrong principle (see *Yusufu Ahmed alias Fara v Republic* [1959] EA 615). In

the present case we are satisfied that the discretion was exercised upon correct principles, and that there was no miscarriage of justice. Accordingly, the first ground of appeal must also fail. In the result, the appeal against conviction is dismissed.

There was no appeal against sentence, but Mr *Kabega*, learned counsel for the State, pointed out that the learned Judge erred in law when he set aside the order of compensation against the appellant which was mandatory under section 273(3) of the Penal Code. Mr *Elue* for the appellant objected to Mr *Kabega*'s raising this point when he had not filed a cross-appeal. While Mr *Elue* is right in saying that Mr *Kabega* should have filed a cross-appeal against sentence, we think we are bound to consider the matter as it is a question of law affecting the legality of the sentence.

In the lower court, it was argued that since the order for compensation did not specify the amount payable, the appellant was prejudiced, as he did not know how much he had to pay. The learned Judge referred to the case of *Nkera v Uganda* [1984] HCB 3 where it was held that an order for compensation should specify the amount of compensation payable by the accused, and concluded:

> "On the authority of *Halsett v Republic* [1967] EA 796 it was necessary to prove the value of the stolen property or properties. This was not done in this case. In the circumstances, this court would have no discretion to vary the order for compensation by stating or specifying the amount payable. I have therefore no choice but to set aside the order to pay compensation."

With respect we think that the learned Judge misconstrued the authority he relied on and misdirected himself in law when he held that he had no power to vary the order for compensation.

The *Halsett v Republic* (*supra*) case is authority for the purpose of section 4 of the Minimum Sentences Act of 1963 of Tanzania. In the words of the Court of Appeal:

> "When a person is charged with an offence contained in Schedule 1 of the Act, of which the present offence is one, it is necessary in the case of a first offender like the appellant to prove strictly the value of the articles allegedly stolen because where the value is less than TShs 100 the Court has a discretion under section 5 of the Act, if there exists special circumstances to impose a lesser sentence."

This was not the position in this present case; secondly section 331(2)(*b*) and (*c*) of the Criminal Procedure Code provides:

> "(2) Subject to the provisions of subsection (1) of this section, the appellate court on any appeal may. . .
>
> (*b*) alter the finding and find the appellant guilty of another offence, maintaining the sentence or with or without altering the finding reduce or increase the sentence; or
>
> (*c*) with or without such reduction or increase and with or without altering the finding, alter the nature of the sentence."

In our view, those provisions empower an appellate court to vary the sentence imposed by the lower court. Indeed, in the case of *Nkera v Uganda* (*supra*), referred to by the learned Judge, the High Court did vary the order of compensation by specifying the amount payable by the appellant.

The order for compensation is provided under section 273(3) of the Penal Code, which provides in part:

> "Where a person is convicted of the felony of robbery the Court shall unless the offender is sentenced to death order the person convicted to pay such sum by way of compensation to any person to the prejudice of whom the robbery is committed."

An order for compensation under the above provision is mandatory although the amount is in the discretion of the Court (see *Sabani v Uganda* [1974] EA 460; *Muhamed Byamugisha v Uganda* criminal appeal number 4 of 1983 CA (UR)). The learned Judge was therefore wrong in setting aside the order of compensation instead of varying it by specifying the amount payable.

This Court has power under section 337(2) of the Criminal Procedure Code to impose any sentence in substitution to any unlawful sentence. In the case of *Muhamed Byamugisha v Uganda* (*supra*) this Court made an order for compensation where the trial Judge had omitted to do so after convincing the appellant of robbery.

Accordingly, we order that the appellant shall pay to Mary Rwaberire, the victim of the robbery, a sum of TShs 30 000 as compensation.

One other matter which we have to deal with is that the trial court and the appellate court did not consider the provisions of section 206 of the Magistrates' Courts Act of 1970, which provides:

> "Where any person to whom this section applies is sentenced to imprisonment, the Court shall at the time of passing sentence, order that he shall be subject to police supervision as hereinafter provided for a period not exceeding five years from the date of the expiration of such sentence."

These provisions are mandatory and they apply to a person convicted of robbery under section 272 of the Penal Code. The trial Magistrate should therefore have made an order of police supervision against the appellant. The first appellate court failed to correct this error. We therefore order that the appellant shall undergo police supervision for a period of two years from the date of expiration of his sentence.

For the appellant:
Elue

For the respondent:
Kabega

Sapra Studio v Kenya National Properties Ltd (1)

[1986–1989] 1 EA 501 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	25 April 1985
Case Number:	68/83
Before:	Hancox, Nyarangi JJA and Chesoni AJA
Sourced by:	LawAfrica

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[1] Landlord and tenant – Business premises – Head tenant letting to subtenant – Subtenant desirous

of becoming direct tenant of the landlord on expiry of the head tenancy – Tenancy agreement concluded between landlord and subtenant – Head tenant obtaining

declaration that premises were controlled – Mutual mistake of both parties – Whether mistake one of fact or of law – Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 301).

Editor's Summary

The head tenants were the assignees of a lease of shop and office accommodation in Kimathi Street, Nairobi which were demised under a lease dated 1 February 1961, for a term of 15 years expiring on 7 November 1975. In 1970 the head tenants subleased part of the premises to the subtenants. In 1973 the premises were acquired by the landlords, subject to the remainder of the lease, and, in August 1975, they agreed with the subtenants that the latter should become their direct tenants for a term of two years, with the option of renewal for a further year, at a rental of KShs 5 400 per month "at the expiry of our present lease with Kenya Cold Storage (1964) Limited in November 1975".

On 11 November 1975, the landlords' managing agents wrote to the head tenants stating that the latter were no longer their tenants and that the subtenants had been advised to pay their rent directly to the landlords. On 18 November, for the first time, the head tenants' advocates wrote to the landlord claiming that their tenancy was controlled under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act and that, since the lease had not been terminated in accordance with the Act, they remained the tenants of the premises under the statute. For some months the subtenants paid the agreed rent directly to the landlord, but thereafter for 35 months paid the higher rent of KShs 10 750 per month to the head tenants under threat of legal action, part of which was paid to another firm of advocates as stakeholders, pending the outcome of litigation between the head tenants and the subtenants.

In August 1976 the head tenants sued the landlords, *inter alia*, for a declaration that they occupied the premises under a controlled tenancy and, in July 1978, Todd J granted the declarations sought. In February 1980, the subtenants sued the landlords for breach of the agreement to let the premises directly to them. The landlords pleaded that the agreement was void or voidable for their mutual mistake that the head tenancy would expire on 7 November 1975, and counterclaimed for rescission of the agreement. Brar J held that the agreement was void for a mutual mistake of fact on the part of both parties, dismissed the suit and granted the relief sought by the landlords. He further held that, had he found for the subtenants, he would have awarded them damages of representing the difference between the respective rentals of KShs 10 700 and KShs 5 400 per month for 35 months, plus the legal costs of KShs 9 275 they had incurred. The subtenants appealed and the landlords cross-appealed on the issue of damages.

Held – The mistake which caused the parties to enter into the agreement was not one of facts that they knew existed, namely that the existing head lease, though it was expressed to expire on 7 November 1975, was such that it attracted the provisions of the Act and became a controlled tenancy thereunder.

A mistake of law did not have the effect of rendering the agreement between the subtenants and the landlords void or voidable and they were, accordingly, entitled to damages for breach of the agreement.

Chesoni AJA dissenting – The measure of the damages to which the sub-tenants were entitled was not the difference between the respective rents as that could not reasonably have been supposed to have been in the contemplation of the parties when they made the agreement. They should have a refund of the rent which the subtenants continued to pay to the landlords, namely KShs 27 000, plus the legal costs they had incurred amounting to KShs 19 750, plus nominal damages of KShs 2 000 for breach of the agreement (*Bain v Fothergill*) [1874] LR 7 HL 158 (considered)).

Per Chesoni AJA – The landlords should receive as part of their damages the difference between the two rentals, less an amount equivalent to 15% of the higher rent in respect of service charges.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

African Universal Merchandise Ltd v Kulia Investment Ltd [1980] LLR 19 (CAK)

United Kingdom

Bain v Fothergill [1874] LR 7 HL 200 – **C**

Bell v Lever Brothers [1932] AC 161

Bridgland v Shapter [1839] 8 LJ Ex 246

Cooper v Phibbs [1869] LR 2 HL 149

Day v Singleton [1899] 2 Ch 320

Engell v Fitch [1868] LR 3 QB 314; [1869] LR 4 QB 659

Flurean v Thorn Hill [1776] 96 ER 635

Hadley v Baxendale [1854] 9 Exch 341

Hanship v Padwick [1850] 5 Exch 615

Hollington Brothers v Rhodes [1951] 2 All ER 578

Hopkins v Grazebrook [1826] 108 ER 364

JW Cafes Ltd v Brownlow Trust Ltd [1950] 1 All ER 894

Lock v Furze [1866] LR 1 Cp 441

Marshall v Berridge [1881] 19 Ch D 233

Nicholson and Venn v Smith Marriott [1947] 177 LT 189

Re Negus [1895] 1 Ch 73

Rogers v Ingham [1876] 3 Ch D 351

Solle v Butcher [1949] 2 All ER 1107

Soper v Arnold [1887] 37 Ch D 96

Wroth v Tyler [1973] 1 All ER 897

Judgment

Hancox JA: On 1 February 1961, a company known as Mutos Limited leased shop and office accommodation on the ground and first floors respectively of Mutos Building at land registration number 209/612, Kimathi Street,

Nairobi (the premises) to the Kenya Cold Storage Company Limited for a term of 15 years to expire on 7 November 1975. In 1965 the unexpired portion of this lease was assigned to the Kenya Cold Storage Company (1964) Limited by an assignment in which Mutos Limited joined as a party. In 1973 the premises were acquired, presumably purchased, by Kenya National Properties Limited, who were the defendants in the action before Brar J and are the respondents to this appeal from his decision.

The respondents had acquired the premises subject to the remainder of the lease to Kenya Cold Storage (1964) Limited; and they had in turn subleased part of them to Sapra Studio, the appellants in this appeal, for a term of five years which was also due to expire on 7 November 1975; though it seems from the evidence of Mr Sapra, the appellant's only witness before Brar J, that Sapra had occupied the premises as early as 1967.

By 1975 Sapra were desirous of becoming the direct tenants of Kenya National Properties (Kenya National), and, so it seems from the exhibited correspondence to which Mr *Esmail*, appearing for Sapra, referred us in detail, in particular the letters from the Industrial and Commercial Development Corporation (Kenya Nationals' managing agents) on 4 and 14 August 1975, that Kenya National were equally happy for Sapra to be their direct tenants "after the expiry of our present lease with Messrs Kenya Cold Storage (1964) Limited" on 7 November 1975.

After that date Sapra continued to occupy the premises, supposedly in a different capacity, and paid their rent directly to Kenya National, and it was accepted by them for about six months. Unfortunately, as Lord Denning would doubtless describe it, Kenya Cold Storage, then threw a spanner into the works. They were also clients of Mr *Esmail*'s firm, a fact which has occasionally led to confusion in understanding the correspondence, and by their advocate's letter of 18 November 1975, they contended that the lease to them fell within the definition of a controlled tenancy in section 2(1) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 301), by reason in particular of clause 4(*d*) of the 1961 lease. As a result they purported to continue to pay rent to Kenya National and claimed that Sapra were their subtenants and were obliged to pay rent to them. Though this was refuted by Kenya National's advocates in their letter of 21 May 1976, it appears that as a result of suits either filed or threatened to be filed by Kenya Cold Storage (still represented by Esmail and Esmail), of which an example is shown by the plaint filed in High Court civil suit number 1978 of 1978 (exhibit 12) Sapra "were compelled" to occupy the premises as subtenants at a much higher rent of KShs 10 750 per month. For a time, at least, they paid this to Messrs Kaplan and Stratton as stakeholders pending the outcome of the suit which Kenya Cold Storage filed against Kenya National in High Court civil case number 1556 of 1976. In that suit they claimed declarations that their tenancy was a controlled tenancy (as they had previously contended) and that they were still the monthly tenants of Kenya National at a rent of KShs 9 174,40 per month.

In July 1978, Todd J granted the declarations which Kenya Cold Storage had sought and that event gave rise to the contention of the respondents in this case that any agreement which they had made to let the premises to the plaintiff was void, or at least voidable, on the ground of mutual mistake, namely:

> "The mistaken assumption or belief held by both the plaintiff and the defendant that the lease of Kenya Cold Storage (1964) Limited of whom the plaintiff was sub-tenant, would expire on or about 7 November 1975."

Mr *Esmail* made great play as to the distinction between the terms “lease” and “tenancy”, a matter on which we had to give a ruling in the course of his submissions, with reference to the definition of the latter term in section 2 of the Act. In this connection he referred to Potter JA’s judgment *African Universal Merchandise Ltd v Kulia Investment Ltd* [1980] LLR 19 (CAK) and also submitted that the mistake specified in paragraph 6 of the defence, which I have just set out, was “factually incorrect”, inasmuch as the lease between Kenya Cold Storage and Kenya National did expire on 7 November 1975. What happened as a result of Todd J’s decision was that the premises were declared to be within the Act and thus Kenya Cold Storage became, thereafter, a statutory tenant, and so the relationship of landlord and tenant continued to subsist between those two parties. Accordingly, Mr *Esmail* submitted, there was no mistake at all and the judge was wrong in finding, as he did, that the contract between Sapra and Kenya National was void for that reason. Moreover, the judge was also wrong in holding that even if it was not void, it was only valid and enforceable on termination of the lease to Kenya Cold Storage, because, if that had been a condition precedent, as alleged by the respondents in their defence, Sapra would not have sent the rent for the months of November and December 1975, in advance, only two days after the offer of the tenancy to them on 14 August, as is shown in exhibit 3.

Mr *Esmail* further argued that no misapprehension could have existed in the minds of the respondents, or indeed of the appellant, because in all the correspondence to which we were referred the word “lease” is used in relation to the formal registered lease between Kenya National (as the successors to Mutos Limited) and Kenya Cold Storage of 6 February 1961, whereas the word “tenant” or “tenancy” (and, sometimes, “letting”) is used in respect of the relationship that was intended to exist between Kenya National and Sapra. Furthermore, Kenya National, as was admitted by Mr Mumali, their managing agents’ chief valuer, in evidence were throughout acting on advice from their advocates, who wrote on at least two occasions to *Esmail* and *Esmail*, as advocates for Kenya Cold Storage, and because of this the defence of mutual or common mistake is not open to them, on the authority of *Soper v Arnold* [1887] 37 Ch D 96, and of *Rogers v Ingham* [1876] 3 Ch D 351 per James LJ at 357.

Mr *Esmail* was able to reduce the grounds put forward in his memorandum of appeal to the various heads of his submissions. Grounds 4, 5 and 9 relate to his contention that there was no mistake, since the lease did in fact expire on 7 November 1975; grounds 1 to 3 that the mistake, if any, was one of law (contrary to the learned Judge’s finding); ground 6 is the contention that Kenya National were acting on legal advice, which presumably also embraces ground 7; ground 8 relates to the point as to the condition precedent, which Mr *Esmail* said was inadequately dealt with by the Judge; and grounds 10 and 11 relate to his submission that any such condition precedent was waived (as alleged in paragraph 2 of the reply). Finally, under ground 12, Mr *Esmail* submitted that the first declaration sought in the counterclaim, and granted by the Judge, should not in any event have been granted because of the claim in paragraph 13 thereof for rescission of the agreement, which of course presupposes that there was an agreement which was capable of rescission. These heads of the appeal do not wholly coincide with the eight issues determined by Brar J but I think it can fairly be said that they cover all the issues canvassed in the High Court.

Mr *Wamae* displayed considerable skill in resisting Mr *Esmail*'s arguments. First he submitted that even if there is a formal distinction between the two terms "lease" and "tenancy", in reality they relate to one and the same state of affairs, that is to say the existence of the relationship of landlord (lessor) and tenant (lessee). This is supported, Mr *Wamae* said, by the definition of lease in *Stroud's Judicial Dictionary* (4 ed) which says:

> "The word 'lease' does not in law import a written instrument (per Abinger *Bridgland v Shapter* 8 LJ Ex 246)."

And by its description in *Words and Phrases Legally Defined* (2 ed):

> "An instrument in proper form by which the condition, of a contrary letting are finally ascertained . . ."

and further on:

> " 'Lease' includes an underlease and tenancy or agreement for a lease, under-lease or tenancy (Land Registration Act, 925, section 3)."

To this I would add a reference to the definition in *Jowitt's Dictionary of English Law* (2 ed), which points out that the term is derived from the French verb "laisser" meaning to let and that a lease is in effect a conveyance or grant of the possession of property to last for a term of years, or other fixed period, *or at will.* (I note in this connection the similarity of the definition of "tenancy" in *Words and Phrases* (2 ed) at 174 to which Mr *Wamae* referred us.) But, as Chesoni AJA pointed out in the course of the argument, the definition I have cited from *Words and Phrases*, like most of the other definitions set out in that work, are in relation to specific statutes, and the governing one here, if it can be said to govern, is contained in section 2 of the Act.

Mr *Wamae* further submitted that the evidence and correspondence showed, contrary to Mr *Esmail*'s argument on this aspect of the case, that the two words were being used interchangeably, neither being a term of art, and that there was no magic in the use of one term as opposed to the other.

I must admit that in the minds of many people, and probably in those of some lawyers when they are not specifically adverting to any point which hinges on one or either of the two terms, the term "lease" connotes a formal instrument or document and the term "tenancy" connotes a less formal document, and is wide enough to embrace the relationship between the two parties concerned. This indeed, is indicated by the definition of "tenancy" in section 2 of the Act to which I have recently referred. Nevertheless, the looser meaning contended for by Mr *Wamae* has received some degree of judicial sanctity in the following passage from the judgment of Chitty J in *Re Negus* (1895) I Ch. 73, in which he was dealing with the issue on an appeal from a taxation of a solicitor's bill, as to whether the item concerned was a lease or an agreement for a lease. He said at 78:

> "It is quite unnecessary for me to enter into a dissertation on the term 'lease', though I will state shortly that the term 'lease' is used in strict law so as to include any demise, for any period however short or however long, and it is sufficient for this purpose to refer to the *Statute of Frauds* (29 Car 2, c 3), the first section of which, as is well known, enacts that all leases by parol, and not put in writing and signed by the parties making or creating the same or their agents thereunto lawfully authorized by writing, shall have the force and effect of leases or estates at will only. The term 'lease' is well known to the old lawyers and, I hope, to the modern one. Then comes the second section, which contains a well-known exception, though it still speaks of the excepted things as 'lease': 'excepted all leases not exceeding the term of three years from

> the making thereof'. I need not read the rest. So that the *Statute of Frauds* shows upon the very face of it that that which is a demise for a term not exceeding three years still is properly called at law a 'lease', and that a lease may be made without any document whatever, but simply by word of mouth."

This authoritative pronouncement, then, would support Mr *Wamae*'s view as to the interchangeability of the two terms.

But we are not here dealing with the niceties of the distinction between a lease and a tenancy. It may be that the words were used loosely in the correspondence leading up to the intended direct relationship between Sapra and Kenya National in the latter part of 1975, but, in my judgment, whichever term was being used at the time, neither of the parties was under any misapprehension as to the fact that there was in existence a relationship, hallowed by a formal written instrument, between the Kenya National and Kenya Cold Storage, one which, in the contemplation of at least one of those two parties, and also in the contemplation of Sapra, was due to terminate on 7 November 1975. In my view, therefore, it matters not which of the two terms was being used in relation to the two sets of circumstances. As Mr *Wamae* very sensibly said, the conduct of the parties indicated that any reference to the expiration of the lease to Kenya Cold Storage on 7 November 1975 included not only the ceasing of the registered lease, but also the ceasing of the relationship of landlord and tenant between Kenya Cold Storage and Kenya National. Any other conclusion, he said, would be absurd because had Sapra and Kenya National thought otherwise they would not have agreed on a direct tenancy thereafter. The fact they did so is only explainable on the basis of the termination of the previous relationship between Kenya Cold Storage and Kenya National.

As Chesoni AJA remarked during the course of the submissions, it is a fallacy to say that the judgment of Todd J changed anything. The actual state of affairs did not change, and in my opinion Todd J's judgment was only declaratory of the state of affairs. Mr *Wamae* countered this by saying that he did not quarrel with the view that Todd J did not create the controlled tenancy between Kenya National and Kenya Cold Storage, but his argument was that until Todd J so declared the legal position the parties continued to labour under the misapprehension, or mistake, that the premises were not controlled, when, in fact, they were so controlled. Thus the mistake was as to the existence of a private right, the right in question being that of Sapra to obtain a lease pursuant to the concluded agreement therefor. As is demonstrated by the passage Mr *Wamae* cited from *Halsbury's Laws of England* (3 ed) paragraph 1656, ignorance of a private right, even though it be the result of a matter of law, does not amount to a mistake of law. Properly regarded, he said, Todd J's decision was relevant only to the discovery of the mistake. In view of the judgments in *Solle v Butcher* (*infra*) I do not agree with this argument, attractive though it is, but, before coming to that case, I propose to deal briefly with the other authorities to which Mr *Wamae* referred.

Mr *Wamae* commented that both *Rogers v Ingham* and *Soper v Arnold* (*supra*) (to which Mr *Esmail* referred in support of his contention that the defence of mistake is not available if the party concerned has acted on legal advice) were distinguishable, because they both related to the recovery of money, whereas here there was an agreement relating to real property of which specific performance could, but for the controlled tenancy that was declared to exist, be

ordered. In the former case he relied on the judgment of Mellish LJ at 357, where he said:

> "There is no doubt as to the rule of law that money paid with a full knowledge of all the facts, although it may be under a mistake of law on the part of both parties, cannot be recovered back; and I think it is equally clear that, as a general rule, the Court of Equity did not, in such cases, interfere with the courts of law. Nothing, in my opinion, would be more mischievous than for us to say that money paid, for instance, under a mercantile contract according to the construction which the parties themselves put upon that contract, might years afterwards, be recovered, because perhaps some Court of Justice, upon a similar contract, gave it a different construction from that which the parties had put on it."

In the latter case Mr *Wamae* referred to the judgment of James LJ at 99 and 100 where he pointed out that the contract had been avoided on a different ground from the mistake that was subsequently discovered as to the vendor's title. Properly understood, in my view, the former passage supports Mr *Esmail*'s case, and in the latter it is clear that the mistake had nothing to do with the rescission off the contract.

The question for our decision really is whether there was a common or mutual mistake which entitles Kenya National to say that there was no contract at all between Sapra and themselves. The learned Judge, basing himself very largely on the decision in *Bell v Lever Bros* [1932] AC 1, which is set out at length in *Chitty on Contracts* (23 ed) Volume 1 at 95 and 96, held that there was such a mistake, and that it was one of fact, and I quote from that portion of his judgment:

> "The common mistaken assumption of both parties was as to the existence of a fact which formed an essential and integral element of the subject matter of the agreement and I think it was sufficiently fundamental to avoid the contract."

Mr *Wamae* supported this passage by a reference to the evidence of Mr Sapra which I also set out:

> "I agree I approached the defendants for a direct lease sometime in August 1975. It was confirmed by Mr Mumali that the Lease was expiring in November 1975. Mr Mumali believed that the Kenya Cold Storage Lease was expiring in November 1975 and said that he would deal directly with the sub-tenants. I had the knowledge of the expiry of the Lease so I agreed with Mr Mumali's belief."

This passage, however, supports Mr *Esmail*'s contention that there was no misapprehension on the part of the appellant, Sapra, and, therefore, no mutual mistake.

Nevertheless, said Mr *Wamae*, the parties contracted on the basis of a certain state of affairs and a different state of affairs obtained. Accordingly he asked us to uphold the learned Judge's decision dismissing the suit. An added factor in his favour was that any lease, according to the passage he quoted from *Stroud*, must have a certain beginning and a certain ending (*Marshall v Berridge* [1881] 19 Ch D 233), and thus the expiry of the lease to Kenya Cold Storage on 7 November 1975 would lend further credence to the belief which the parties then held.

In my view, the circumstances of *Bell v Lever Brothers* were different from those obtaining in the instant case. In that case there was misapprehension by the company as to an existing fact, namely the loyalty of the directors of its subsidiary company, whereas they had been enriching themselves while they

were supposed to have been serving the company, a matter entitling the company to dismiss them without the compensation that they were paid. In any event, the majority of the House of Lords which held that the contract to pay compensation was not avoided by the mistake was itself divided as to the reasons for so holding.

A closer case to the present is *Solle v Butcher* [1949] 2 All ER 1107 in which the county court had held that the flat in question was within the Rent Restriction Acts of 1920 and 1939, whereas both the landlord and the tenant had entered into the lease on the basis that it was not at a rental of £250 per annum. The restricted rent was £140 per annum, that being the rent at which it had been let by the landlord's predecessor to tenants before the 1939–1945 war. The premises had, however, been damaged during the war and the landlord proposed to reconstruct them. The reconstruction that he carried out left the area and exterior of the flat unchanged, but reorganised the interior, in particular by subtracting from the main bedroom a space which was then incorporated into the dining room as an alcove or recess. If the reconstructed flat remained the same dwelling then the Rent Restriction Acts would have applied and the rent could only have been increased by serving a statutory notice of increase. If it had become a different flat and had changed its identity it would not have been within the Rents Acts. The danger of the premises being within those Acts was present to the parties' minds before the lease was entered into, but both concluded that the identity of the premises had changed. Subsequently the tenant sued for a declaration that the standard rent was only £140 a year and for recovery of the rent overpaid. The Court of Appeal by a majority held that the parties had contracted on a common misapprehension, so as to amount to a mutual mistake of fact on a matter of fundamental importance, and that the lease would be set aside.

It will be observed that the majority of the court in *Solle v Butcher* held that the mistake was clearly one of fact, namely as to whether the identity or character of the flat had changed or not, so as to lead to the result in law that it was within the Acts and the lease was liable to be set aside, that is to say that it was voidable and not void. This is clear from the judgment of Denning LJ (as he then was) at 1117 of the report, as follows:

> "Let me first consider mistakes which render a contract a nullity. All previous decisions on this subject must now be read in the light of *Bell v Lever Bros Limited* (14). The correct interpretation of that case, to my mind, is that once a contract has been made, that is to say, once the parties, whatever their inmost states of mind have to all outward appearances agreed with sufficient certainty in the same terms on the same subject-matter, then the contract is good unless and until it is set aside for breach of some condition expressed or implied in it, or for fraud, or on some equitable ground . . .
>
> Nor do I think that the contract in *Nicholson and Venn v Smith Marriott* (18) was void from the beginning. Applying these principles it is clear that here there was a contract. The parties agreed in the same terms on the same subject matter. It is true that the landlord was under a mistake which was to him fundamental. He would not for one moment have considered letting the flat for seven years if it meant that he could only charge £140 a year for it. He made the fundamental mistake of believing that the rent he could charge was not limited to a controlled rent, but, whether it was his own mistake or a mistake common to both him and the tenant, it is not a ground for saying that the lease was from the beginning a nullity. Any other view would lead to remarkable results, for it would mean that in the many cases where the parties

> mistakenly think the house is outside the Rent Acts when it is really within them, the tenancy would be a nullity, and the tenant would have to go, with the result that tenants would not dare to seek to have their rents reduced to the permitted amounts lest they should be turned out."

Jenkins LJ, however, in his dissenting judgment, highlighted the distinction between a mistake of fact and one of law. He said, at 1126 and 1127:

> "I see nothing in the evidence inconsistent with his explanation of the mistake, but, whether the parties failed to ask themselves the right question or, having asked it, answered it wrongly, I find it impossible to hold that a mutual mistake of the character here involved, affords a good ground for rescission . . . The landlord meant to grant and the tenant meant to take the lease in the terms in which the lease was actually granted of the premises which as granted actually comprised. They knew all the material facts bearing on the effect of the Rent Restrictions Acts on a lease of these premises, but they mutually misapprehended the effect which, in that state of facts, those Acts would have on such a lease. That is a mistake of law of a kind which, so far as I am aware, has never yet been held to afford good ground for rescission. It is a mistake, not as to the subject-matter, nature or purport of the contract entered into, nor as to any question of private rights affecting the basis of the contract entered into: see *Cooper v Phibbs* (6); but simply a mistake as to the effect of certain public statutes on the contract made, being in all respects precisely the contract the parties intended to make."

The passage seems to me to cover this case, and differentiates it from the latter part of Mr *Wamae*'s quotations from *Halsbury's Laws of England* (*infra*) which refers to a mistake arising through ignorance of a private right. I think the learned Judge misapprehended the effect of *Solle v Butcher* when he said:

> "I find that because the same mistake was made by both the plaintiff and the defendant in wrongly assuming that the Head Tenant's lease was to expire on 7 November, the agreement for direct tenancy to the plaintiff was void and unenforceable but if I am wrong in my finding then in my view such agreement was valid and enforceable only upon termination of the Head Tenant's lease and there was no waiver of that condition on the part of the defendant. Since there was no expiry either in November 1975 or at any other time until the suit premises were vacated by the plaintiff in 1978, the agreement became invalid and unenforceable for those reasons. On the question of rescission of the agreement (agreed issue number 8), as the mutual mistake was as to the belief in the existence of a state of facts it was liable to be rescinded at the suit of either party – See *Solle v Butcher* (*supra*)."

The position in fact was exactly as the parties thought it to be: that the lease to Kenya Cold Storage would expire on 7 November 1975. The mistake they made was as to the effect of a public statute, namely the Landlord and Tenant (Shops, Hotel and Catering Establishments) Act, and it was that which led them to conclude the agreement for a direct tenancy to Sapra. As is stated in *Halsbury's Laws of England* (3 ed) Volume 26 at 895, cited by Mr *Wamae*:

> "As a general rule relief will not be granted on the ground of mistake if the mistake is one of law as distinguished from one of fact. The distinction between the mistakes of law and mistakes must, if the grant of relief is to be prevented, be one of the general law, such, for example, as the legal interpretation of a contract or the construction of a statute."

In my judgment, therefore, Ground 2 of the memorandum of appeal, that the mistake was one of law, is entitled to succeed and the agreement for the future tenancy was not avoided as the respondents claimed. It would, in any event, not have been void, but only voidable, and therefore valid until disclaimed (see Denning LJ *supra*) had the mistake been one as to a fundamental fact. In my opinion, however, the contract between the parties to this appeal was not avoided and subsisted at the date of the action.

It is not therefore necessary for me to consider the other grounds of appeal, grouped as they were by Mr *Esmail* under various headings. I would allow the appeal on ground 2 and I would therefore set aside the judgment of Brar J dismissing the action with costs and giving judgment to the respondents and former defendants on their counterclaim. I would give judgment for the appellants on the claim.

There remains, however, the troublesome matter of damages which the trial Judge, Brar J, assessed, in the event of the appeal being allowed, at the difference between 35 months' rent at KShs 10 750 and the sum stated in the agreement, KShs 5 400 per month, plus the amount of legal costs incurred by the appellant (presumably in defending civil case number 1978 of 1978), which Mr Sapra gave in evidence as amounting to KShs 19 950, giving a total of KShs 207 200 altogether. The quantum of damages are at large because of the respondent's notice of cross-appeal filed on 26 October 1984, and this issue was argued at length before us on the adjourned hearing.

Mr *Wamae* submitted on the cross-appeal first, that even if the main appeal was successful we should hold that the appellant had not suffered any damage, Sapra would thus presumably only be entitled to nominal damages; secondly, that if Sapra has suffered any damage this should be limited to the amount of rent actually paid, that, again I presume, is the five months' rent at KShs 5 400 per month which Sapra paid to the respondents and which is referred to in *Esmail* and *Esmail*'s letter to them of 11 September 1979, making KShs 27 000, and, thirdly, if those propositions are wrong, we should consider, strictly against Sapra, what kind of lease it would have obtained from the respondents and for how long, bearing in mind that Sapra at no time replied to the notice of increase of the rent dated 27 June 1975, as in paragraph 4 thereof, neither did Sapra refer the matter to the Tribunal established under the Act for the purpose of determining a fair rent for the premises. If they were acting in good faith the only possible reason they did not oppose the notice was because they believed the Kenya Cold Storage tenancy was coming to an end. If they were not acting in good faith then Sapra must have known all along about the application of the Act to that tenancy.

Mr *Wamae* said that the respondents, even though mistaken, if they were mistaken, as to the effect of the law, had acted in good faith throughout whereas Sapra was seeking to extract the maximum possible sum in damages from the situation, particularly as it had not taken any steps such as I have just outlined. I would only note in this connection at this stage, that, although Sapra were not apparently being legally advised at the material time, they now have the same firm of advocates as the Kenya Cold Storage Company (1964) Limited had, and that it was they who acted for that company in suing the respondent in High Court civil case number 1556 of 1976, and in suing Sapra in High Court civil case number 1978 of 1978. By a further coincidence *Esmail* and *Esmail* issued the notice of increase of rent to Sapra, on behalf of Kenya Cold Storage, before the question of their becoming the direct tenants of the respondents was discussed in August 1975.

The first authority in support of Mr *Wamae*'s submission was *JW Cafes Ltd v Brownlow Trust Ltd* [1950] 1 All ER 894. This followed *Bain v Fothergill* [1874] LR 7 HL 200, which, in turn, adopted the rule in *Flureau v Thornhill* [1776] 96 ER 635, which was to the effect that where on a contract of sale the

title proves to be defective, the purchaser cannot, in the absence of fraud or of bad faith, recover as damages more than the expense that he has incurred in an action for breach of the contract. In other words, he does not get damages for the loss of his bargain. Thus in *Flureau v Thornhill*, the plaintiff could not recover the loss he alleged he had incurred by selling stocks in order to raise the purchase money. In explaining *Bain v Fothergill* in *JW Cafes v Brownlow*, Lord Goddard CJ said that the reasons for the rule are that the complications of the law of real property are so great that it is assumed that the parties contracted on the basis that it may be impossible for a vendor, or even a lessor, to implement. In *Bain v Fothergill* Lord Chelmsford said at 203:

> "But it must be borne in mind that this question as to damages depends, as Baron Alderson said in *Hadley v Baxendale*, upon what 'may reasonably be supposed to have been in the contemplation of both parties at the time they made the contract as the probable result of the breach of it'. Now, although the purchaser in *Engel v Fitch*, when he entered into the contract, may have contemplated a re-sale at an advance, it is not at all likely that the loss of this profit should have occurred to the vendor as the probable result of the breach of his contract. The judges were no doubt influenced by the fact of the profitable re-sale having actually taken place, and were, in consequence, drawn aside from considering what must have been in the minds of both parties at the precise time when they made the contract."

It is the emphasis on the contemplation of the youth of the parties which I regard as of some assistance to Mr *Wamae* on the issue of how the damages should be measured in this case. Before leaving *Bain v Fothergill* I will repeat the citation from the speech of Lord Hatherlery, which is partially reproduced in *McGregor on Damages* (13 ed) at paragraph 663, to which Mr *Esmail*, in replying generally on the main appeal and on the cross-appeal, drew our attention. It is as follows:

> "The foundation of the rule (is) . . . that, having regard to the very nature of this transaction in the dealings of mankind in the purchase and sale of real estates, it is recognised on all hands that purchaser knows on his part that there must be some degree of uncertainty as to whether, with all the complications of our law, a good title can be effectively made by his vendor; and taking the property with that knowledge, he is not to be held entitled to recover any loss on the bargain he may have made, if in effect it should turn out that the vendor is incapable of completing his contract in consequence of his defective title."

When the case report is consulted it will be seen that Lord Hatherley continued:

> "All that he is entitled to is the expense he may have been put to in investigating that matter. He has a right also to take the estate and complete the purchase with that defective title if he thinks proper so to do, but he is held to have bargained with the vendor upon the footing that he (the vendee) shall not be entitled, under all circumstances, to have that contract completed, and therefore he is not put in a position under such a contract to make a re-sale before the matter has been fully investigated, and before it is ascertained whether or not the title of his vendor is a good one."

It would almost seem, therefore, that under the old common law in England there was an implied condition that the contract to sell should be subject to the vendor being able to show a good title. This, I think, follows from this passage from *Lock v Furze* [1866] LR 1 CP 441, another case to which Mr *Esmail* referred and decided before *Bain v Fothergill* per Blackburn J:

> "Where the carrying out of the contract would give one of the contracting parties the enjoyment of a particular thing, and he has lost it, the damages he would be entitled

> to would be the value of that which he has lost. From that general rule so laid down by Parke B, there is an exception, the reason for which no doubt is this, that, from the complicated nature of our law of real property, no man can be certain that he has a perfect title to his estate, and therefore it is a prudent thing to make it part of every bargain for the sale of real property, that, if the vendor fails to make a good title according to the conditions, he shall not be liable to reimburse the intended purchaser the full measure of damages which would be awarded to him in an ordinary case; but that the bargain should be off, and the purchaser take back the amount of deposit he has paid, together with interest, and the expenses of investigating the title, if any."

Mr *Esmail* submitted that the rule in *Flureau v Thornhill*, and in *Bain v Fothergill*, did not apply to executory contracts, that is to say one where some future act is to be done (which is *in fieri*) as it was put in *Lock v Furze* which were expressly distinguished from the *Flureau v Thornhill* principle by Channel B in *Lock v Furze* in the following passage:

> "I take the indisputable rule of law to be, that, where a man enters into a contract, and fails to perform it, he must make compensation to the extent of injury sustained by the person with whom he has contracted. Several cases were adverted to in the court below which have no very close application to this case. Where a contract is *in fieri*, and the vendee chooses to rescind the contract, and sue for money had and received, he recovers only the money he has actually paid, *viz* the amount in the vendor's hands. So, again, if he elects to affirm the contract, and to sue for the breach, he is entitled only to nominal damages. The present case is perfectly distinguishable from those. The defendant is not sued in respect of a contract which is *in fieri* or which has been rescinded."

Next Mr *Esmail* said that the situation in this case was in reality a breach of the covenant for quiet enjoyment, and was thus quite apart from the defective title situation in *Bain v Fothergill*, a proposition which would appear to gain support from a later passage in the same edition of *MacGregor on Damages* at paragraphs 714–715, in which the learned author points out that once the lease has been executed there can be no question of a suit for specific performance, and that if thereafter the lessee has been compelled to give up possession he can recover damages, under the normal rule, for loss of his bargain and is not confined to the restrictive rule in *Bain v Fothergill*. From this followed Mr *Esmail*'s third proposition, that the cases relating to defective title were all decided against the background of the complex land situation in nineteenth century England and could not reasonably be applied to a set of circumstances such as obtain in this case, particularly in view of the proviso to section 3(1) of the Judicature Act (Chapter 8). Moreover, the defect in the respondent's capacity to grant a direct lease in this case was not a defect in title, such as occurred in *Bain v Fothergill* or *Flureau v Thornhill*, but a statutory impediment, as to which if the parties had troubled to look out for it, there is no uncertainty at all. It was plain for all to see in (Chapter 301) that the main tenants had a statutory right of occupation after their lease expired. That right is a creature of statute, as were the wife's rights in *Wroth v Tyler* [1973] 1 All ER 897 per Megarry J at 918F.

Fourthly, Mr *Esmail* submitted, the rule in *Bain v Fothergill* only applied where there was no default, in the sense of fraud or bad faith on the part of the vendor or landlord, and here it could be said that the respondents had taken no steps to try to determine the main or head tenancy under section 4 of the Act. That did not happen until 1978 when the respondents purported to determine Sapra's tenancy, not, be it noted, that of the Cold Storage Company, to whom alone the Act was applicable, with effect from 1 June 1978.

Finally, on the issue of quantum, Mr *Esmail* said that Sapra minimised their damages by remaining in the premises instead of seeking more expensive accommodation elsewhere, and the respondent at no stage in the proceedings before the Judge produced any evidence to rebut that on behalf of the appellant that KShs 10 750 per month was a reasonable sum to pay by way of rent. For my part, I regard this as a telling point on behalf of the appellant. The closest the only defence witness, Mr Mumali, who was the respondent's valuer, came to dealing with this issue was when he said:

> "If I had known that Sapra Studio were paying KShs 10 750 per month to Kenya Cold Storage, I would not have agreed to let the premises to it at the monthly rental of KShs 5 400.

Mr *Wamae* protested at the late introduction by Mr *Esmail* of the issue of a breach of the covenant for quiet enjoyment.

The distinction between the two situations he said was shown clearly at paragraph 705 of *MacGregor on Damages*. It was a straightforward breach of the agreement to execute the lease contemplated in August 1975, the reason for which was assuming good faith by Sapra, a mistake as to the loan to which they contributed. Why, therefore, should they obtain relief beyond the actual expense to which they had been put?

I think it is important to place the sequence of events in this case in their proper perspective. It is common ground that Kenya Cold Storage were respectively the tenant and subtenant of the premises owned by Kenya National and managed by ICDC under a valid lease and sublease until 7 November 1975. In June of that year Kenya Cold Storage, as lessees, had issued a statutory notice to increase Sapra's rent. In August Sapra negotiated directly with Kenya National for a lease on the expiry of both the previous lease and the sublease at a rent of KShs 5 400 per month, instead of the KShs 10 500 demanded by Kenya Cold Storage. They were notified by Kenya National on 17 September 1975 that their lease expired and their tenancy would be terminated, on 7 November. Yet Kenya Cold Storage did nothing about it until after the supposed expiry of the tenancy. In other words, they allowed their contractual tenancy to expire on 7 November, before writing to ICDC as Kenya National's agents setting out their contentions as to the statutory tenancy on 18 November and that only in response to a reminder on 11 November from ICDC.

Nothing, however, could be done or, at any rate, nothing was done to get rid of Sapra until after the decision of Todd J in July 1978 that Kenya Cold Storage were statutorily protected and that they were accordingly still the tenants of Kenya National. While the situation remained in limbo the increased rent was paid by Sapra to Messrs Kaplan and Stratton as stakeholders. It was said in *Wroth v Tyler* (*supra*), by Megarry J that the vendor (and Lord Goddard said in *JW Cafes v Brownlow Trust* that he could see no difference between a proposed vendor and a proposed lessor in actions respecting real property) must do his best to obtain all necessary consents to the sale, even to the point of taking proceedings to oust, for instance, a trespasser, but he continued at 913:

> "I do not think that the vendor will usually be required to embark on difficult or uncertain litigation in order to secure any requisite consent or obtain vacant possession. Where the outcome of any litigation depends on disputed facts, the court would be slow to make a decree of specific performance against the vendor which would require him to undertake such a case, the vendor cannot know where the litigation will end. If he succeeds at first instance, the defendant may carry him to appeal; if he fails at first instance, the purchaser may say that there ought to be an appeal."

Nevertheless, litigation was embarked upon, but by Kenya Cold Storage, not Kenya National.

With all respect to Mr *Esmail*, I do not regard this as a case of an infringement of the covenant for quiet enjoyment (which, as McGregor says, operates equally in leases as in sales of property) because the quiet enjoyment of the premises by Sapra was never infringed. Neither was it a defective title of the kind that obtained in the earlier English cases. The defect existed as a result of an overlooked statutory provision rather than of confusion over land law. Similarly in *Wroth v Tyler* Megarry J took the view, at 917, that the existence of the wife's unregistered charge did not amount to a defect in title. Neither, in my opinion, can the defect be said to have been as a result of a deliberate act or omission on the part of Kenya National or their managing agents. This, in my judgment, is where the case of *Day v Singleton* [1899] 2 Ch 320, also referred to by Mr *Esmail*, becomes relevant. In that case the representative of the deceased purchaser of the leasehold property concerned deliberately induced the lessor to refuse his consent to the sale, thus preventing it from taking place. At 328 and 329 of the report, Lord Lindley MR said:

> "Having regard to this circumstance, we do not think that *Bain v Fothergill* covers this case. There the vendors did all they could to obtain the lessors' consent to the assignment, and they failed to obtain it. The first question submitted to the judges shows that what was being considered was the rule as to damages on the sale of real estate where a vendor without his default is unable to make a good title. Lord Chelmsford's speech is addressed to that question; and his observations on fraud are part of his comment on *Hopkins v Grazebook,* which had decided that the exceptional rule laid down in *Flureau v Thornhill* did not apply where the vendor knew that he had not a good title, although he believed he could not get one, and had in fact an equitable title. Neither Lord Chelmsford's speech nor Lord Hatherley's is an authority for the application of that exceptional rule to the case of a vendor who can make good title but will not, or will not do what he can do and ought to do in order to obtain one."

Admittedly he goes on to say that the anomalous rule in *Bain v Fothergill* was based upon the difficulties of showing a good title to property in England, but, to my mind, there is a difference between a situation where some blame attached to the vendor or lessor on the ground of his conduct, and one where there is a genuine inadvertence as to the applicability of a statutory provision. Neither do I agree with Mr *Esmail* that this was not an executory contract. No lease was ever granted because, as Mr Mumali said:

> "I first came to know that I could not give direct lease to Sapra Studio sometime in November 1975. I learnt through a letter dated 18 November 1975 from Messrs *Esmail* and *Esmail* . . ."

It is true Sapra remained in the premises, but in a different character from that contemplated in the agreement between Kenya National and Sapra, so that that agreement was never perfected by the grant of a lease, but remained executory. Moreover, there is something repugnant to my mind in awarding substantial damages for a situation which was not clarified until Todd J's judgment in July 1978, one in which the respondents were not acting fraudulently or *mala fides* and for which both parties bore a share of the responsibility. There is the added factor, that the defendants did not compel him to remain in the premises and that:

> "If the defendants had not negotiated the lease to me we still would have remained at the same place."

Again it would seem contrary to principle to award substantial damages for a situation in which Sapra would have continued to act as they did whether or not they had the direct lease from Kenya National!

Accordingly, notwithstanding the distinctions that undoubtedly exist between this and the *Bain v Fothergill* group of cases, though these distinctions are not as great as Mr *Esmail* would have us believe, in my judgment the appellants should not have the difference between the rent paid and that agreed for the 35 months stated by Brar J, because this cannot be said, under the rule in *Hadley v Baxendale* [1854] 9 Exch 341 to have reasonably been supposed to have been in the contemplation of both parties at the time they made the contract as the probable result of a breach of it. They should have as their measure of damages, in my judgment at any rate, a refund of the rent Sapra continued to pay to Kenya National for five months after 7 November 1975, that is, as I understand it, KShs 27 000, plus the advocates' costs they incurred, which clearly flowed as a direct result of the legal situation in which they became embroiled, that is to say KShs 19 750. I would also give them relatively nominal damages of KShs 2 000 for the respondents' involuntary breach of their agreement with Sapra.

I would therefore, as I said, allow the appeal on liability on ground 2 of the memorandum in the main appeal. I would also allow the cross-appeal to the extent of substituting for the Judge's notional figure the total of the three amounts I have just set out, namely KShs 48 750. I would award the costs of the appeal and three-quarters of the costs of the proceedings in the High Court to the appellant. I would award the costs of the cross-appeal to the respondents.

As Nyarangi JA agrees the orders will be as proposed in this judgment.

Chesoni AJA: I have had the advantage of reading the draft judgment of Hancox JA which sets out in detail the history, facts and arguments advanced before this Court in this case.

The appellant and respondent knew or must have known that the lease of the premises land registration number 209/612 along Kimathi Street in Nairobi in favour of Messrs Cold Storage (1964) Limited and granted by the respondent landlord would expire on 7 November 1975, and it did expire on that date. That was a question of fact and there was no mistake about it between the parties.

The parties overlooked the difference between a lease and the relationship which arises therefrom which is a tenancy. The lease created a tenancy which came within the ambit of the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act (Chapter 310). That tenancy was controlled under section 2(1) of the Act and it did not come to an end at the expiry, on 7 November 1975, of the instrument creating it.

While Mr *Esmail* maintained that there is a difference between the two terms "lease" and "tenancy", Mr *Wamae* argued that they meant the same thing, and, even if they did not, they were used by the parties interchangeably. With respect to Mr *Wamae* these two terms are different as each has its own meaning. What each means is one thing and how one person may use or understand them is another. I would adopt for each of these two words the meaning given in *Black's Law Dictionary* (5 ed) and say that a lease is an agreement or instrument which gives rise to the relationship of landlord and tenant in real property

or lessor and lessee in real or personal property. It is a contract for exclusive possession of lands or tenements for a determinate period. It is a conveyance of interest in real property usually in consideration of rent or other recompense, for life, specified period of years or at will. I agree with the following further statement:

> "When used with reference to tangible personal property, the word 'lease' means a contract by which one owning such property grants to another the right to possess, use and enjoy it for specified period of time in exchange for periodic payment of stipulated price, referred to as rent. The person who conveys is termed the 'lessor', and the person to whom conveyed, the 'lessee', and when the lessor conveys land or tenements to a lessee, he is said to lease, demise, or let them."

A lease then creates a tenancy. In other words, it gives the exclusive possession so, as the learned authors of the said dictionary say, a tenancy involves an interest in reality which passes to the tenant, and a possession exclusive even of that of the landlord, except as the lease permits the landlord's entry, and saving his right to enter to demand rent or to make repairs. Tenancy means possession or occupancy of land or premises under a lease.

To me it is apparent that when the respondent agreed to grant a direct lease to the appellant after 7 November 1975 and the appellant agreed to take that lease both parties were mistaken as to the position of the head tenant, Messrs Cold Storage (1964) Limited, as a protected tenant under the Landlord and Tenant (Shops, Hotels and Catering Establishments) Act, after the expiration of the lease. That was a mutual mistake of law and not fact. The learned Judge was in error in holding that the mistake was one of fact. No relief is available to a plaintiff on the ground of a mistake of law (*Halsbury's Laws of England* (3 ed) Volume 26 at 895). The contract to grant the appellant a lease after 7 November 1975 was therefore not void and the appellant was entitled to relief for breach of failure to complete on the part of the respondents. Consequently this appeal must succeed on the second ground.

What damages is the appellant entitled to? Mr *Wamae* sought to rely on the rule in *Bain v Fothergill* [1874] LR 7 HL 158 which prevents a purchaser of land from recovering damages for loss of his bargain where the seller fails to complete through defect of his title. The rule has been applied to agreements for leases (see *McGregor on Damages* (14 ed) paragraph 761 and *Hanship v Padwick* (1850) 5 Ex 615). It is a good rule and in an appropriate case I would apply it in Kenya. However, although the instant case involves failure by the lessors to complete an agreement for lease, the reason for the failure was not a defect of the title for the title was good, but a mistake of law. Consequently, the rule in *Bain v Fothergill* (*ibid*) is not applicable to this case, and, in my view, Mr *Wamae*'s contention that the measure of damages is the amount of rent paid by the appellant to the respondent, with interest is unacceptable. The normal measure of damages for cases like this one which fall outside the *Bain v Fothergill* rule is the rental value of the premises less the contractual rent reserved by the lease (*McGregor on Damages* (*ibid*) at paragraph 763). So the appellant would be entitled to the difference between the rent he is paying to the third party and the contractual rent. That was the position in *Hollington Brothers v Rhodes* [1951] 2 All ER 578. In that case the plaintiff succeeded in obtaining a new lease of the same premises from a third party at a higher rent and the court said, *obiter*, that they would be entitled to the difference between the contractual rent and the amount they were paying the third party.

The appellant was in possession of the premises prior to 7 November 1975 as it appears they were subtenants of Messrs Cold Storage (1964) Limited since May 1966. Messrs Cold Storage (1964) Limited increased the rent to KShs 10 750 from 1 September 1975 and the tenant/appellant accepted the increase. It was not specified whether services were included or not, but since site tax was specifically excluded, I would assume the rent of KShs 10 750 was inclusive of services otherwise they also would have been expressly excluded. In August 1975 when the appellant approached the respondent for a direct lease it was paying a rent of KShs 6 028 per month inclusive of services. That rent had been fixed five years before August 1975. The appellant did not oppose the notice of increase of rent and there was no evidence that the KShs 10 750 was the rental value of the premises in the open market. The respondent made no attempt to establish the reasonable rental value other than the KShs 10 750.

It is to be noted that out of the monthly rent of KShs 6 028 about 11.65% was for services, if we assume for the purposes of this case that the rent without services was KShs 5 400. The increase in total rent was almost 44%. I would apportion 15% of the new rent to service charges. Thus the rental value of the premises is KShs 913,50. The contractual rent is KShs 5 400. The damages are KShs 9 137,50 per month. In his evidence Mr Sapra said that he stopped paying the rent to the respondent in April 1976. He must have then realised that he was unlikely to get the direct lease yet he did nothing to minimise the damages. I would, therefore, calculate his loss after April 1976 at half. The total sum works out as follows:

8 November 1975 to 7 May 1976	=	6 months
8 May to 30 September 1978	=	28½ months.
6 months @ KShs 3 737,50	=	KShs 22 424,50
28½ months @ KShs 1 868,75	=	KShs 53 259,40
Total	=	KShs 75 684,00

I would, for the reasons stated, allow the appeal, set aside the judgment of Brar J and give judgment for the appellant on the claim. Like Hancox JA, I would too allow the cross-appeal to the extent of substituting KShs 75 684 for the learned Judge’s notional figure. I agree with Hancox JA on the order proposed by him as to costs in this court and in the court below.

Nyarangi JA: The judgment prepared by Hancox JA, which I have read in draft deals with all the facts and the submissions of the advocates on those facts and the law.

The material lease created a tenancy as the term is defined in section 2(1) of the Landlord and Tenant (Shops, Hotels and Catering Establishments) (Chapter 301) (the Act). In common parlance, a lease is an agreement which gives rise to a relationship of landlord and tenant (real property) or lessor or lessee (real or personal property). Tenancy means an interest in reality which passes to the tenant (one who holds or possesses land or tenements by any kind of right or title etc) (see *Black’s Law Dictionary* (5 ed) at 800 and 1313). In my view, the definition of the terms “lease” and “tenancy” given above is the more accurate one in as much as it distinguishes one term from the other as does the Act which does not allow interchangeability of the two terms. On the evidence, there was a mutual mistake of law arising from a misapprehension on the part of both parties of the status under the Act of Messrs Cold Storage (1964) Limited. On the evidence the only inference which could properly be drawn is that the

parties did not fully appreciate the position of Messrs Cold Storage (1964) Limited (*Sole v Butcher* [1949] 2 All ER 1107 at 116D). In *Bell v Lever Bros* [1932] AC 161 the mutual mistake related to quality of the services contracts which is a matter of fact and therefore not concerned with a status as was the mutual mistake of the parties to this action.

As regards the damages to which the appellant is entitled, I would refer to the judgment in *JW Cafes Ltd v Brown Low Trust Ltd* [1950] 1 All ER 894 where two other earlier cases, that is, *Bain v Fothergill* and *Flureau v Thorn Hill* were referred to and then relate it all to the relevant provision in the Act which accorded a statutory right to Messrs Cold Storage (1964) Limited. The rule in *Bain v Fothergill* has to be applied subject to the relevant provision in the Act and consequently no question of difference between the rent paid and the rent agreed for the period of 35 months would arise because that would not simply have been in the contemplation of the parties at the time they made the contract as the likely consequence of a breach of the contract. The appellant's damages should therefore be assessed on the rent of the KShs 27 000 plus the necessary costs incurred of KShs 19 750. I would agree with Hancox JA that nominal damages of KShs 2 000 be paid to the respondents for the voluntary breach of the agreement with Sapra.

I too would allow the appeal on liability on ground 2 of the memorandum of appeal, also allow the cross-appeal to the extent suggested by Hancox JA and I agree with the order proposed by Hancox JA on costs.

For the appellants:
Mr AA Esmail

For the respondent:
Mr PM Wamae

Sapra Studio v Kenya National Properties Ltd (2)
[1986–1989] 1 EA 519 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	12 June 1985
Case Number:	68/85
Before:	Hancox, Nyarangi JJA and Platt AJA
Sourced by:	LawAfrica

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[1] Slip rule – Omission of court to deal with question of interest on damages in judgment – Whether slip rule applicable before formal order drawn up – Whether oversight amounted to an accidental slip or omission – Jurisdiction of reconstituted court to correct previous judgment – Rule 35(1) – Court of Appeal Rules.

Editor's Summary

On 25 April 1985, the Court of Appeal constituting of Hancox and Nyarangi JJA and Chesoni AJA allowed an appeal by subtenants of certain premises in Nairobi and awarded damages to them against

the respondent landlords for the breach of an agreement for a tenancy. The court also allowed a cross-appeal by the landlords against the notional figure of damages assessed by the trial judge in the event of the main appeal being allowed. The memorandum of appeal

included a prayer for interest on the damages, and it was referred to in argument by counsel for the appellant. By an oversight no decision was made in the judgment on the issue of interest and the appellant sought a further order of the court correcting its previous judgments so as to include a decision on the issue of interest.

Held – The failure of the court to deal with the question of interest amounted to errors arising in the judgments from an accidental omission and the omission could be corrected so as to deal subsequently with the issue.

However, as the court had been re-constituted with a different member, as Chesoni AJA, had retired, there was no means of knowing how he would have decided the contentious issue of interest, and neither the new court nor its two remaining members had jurisdiction to correct the previous judgments.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Lakhamshi v Assanand [1957] EA 82

Raniga v Jivraj [1965] EA 700

United Kingdom

Charles Bright and Co Ltd v Sellar [1904] 1 KB 6

Piyaratana Unnanse v Wahareke Sonuttara Unnanse [1950] AC 561

R v Cripps ex parte Muldoon [1984] QB 686

Re Inchcape [1942] Ch 394

Sutherland and Co v Hannevig Bros Ltd [1921] 1 KB 336

Tak Ming Co v Ye Sang Metal Supplies Co [1973] 1 WLR 300

Unnanse v Unnanse [1950] AC 561

Judgment

Hancox JA: We listed this matter for further mention because it was discovered, on delivery of the judgment of the members of the court who heard the appeal (by a single Judge under subrule (7) of rule 35 of this Court's Rules) that the issue of interest on the damages had not been included in any of the judgments.

There can be no doubt that a prayer for interest on the damages was included in the memorandum of appeal and that interest was sought by Mr *Esmail* in the course of his argument. He submitted that his clients should, if successful, be awarded interest under section 26 of the Civil Procedure Act, on that which he referred to as the special, as opposed to the general damages; so that on the KShs 2 000 awarded as nominal damages for breach of contract interest would be payable from the date of the judgment.

It is common ground that the decision of the court has not, as yet, been perfected by a formal order

being drawn up. Rule 35 is directed to the correction

of a clerical or arithmetical mistake in any judgment of the court, or any error arising in a judgment from an accidental slip or omission. The oversight as regards the interest was clearly not a clerical or arithmetical mistake. Was it therefore an error arising from an accidental slip or omission under the second limb of the rule, and, if so, can it be corrected by the court thereunder? I should add at this stage that Mr *Wamae*, who argued the appeal on behalf of the respondent, made it perfectly clear that, had he argued it on the appeal, he would have opposed any award of interest on the basis that the award was in the nature of general damages, that it was non-specific and therefore did not carry any interest.

The tenor of the East African and English authorities on the application of the so-called slip rule has been that the courts have an inherent power to recall a judgment before it is perfected by a formal decree or order. The first case cited to us by Mr *Esmail*, who appeared on behalf of the appellant on the main appeal, namely, *Raichand Lakhamshi and another v Assanand and Sons* [1957] EA 82 at 85C-F, makes this clear. The error in that case was that the magistrate had wrongly granted a new tenancy from 1 January 1955, and, as a result of a remark by the Supreme Court, drew up the formal order stating that it should commence on 3 July 1955. The second authority cited by Mr *Esmail*, *Raniga v Jivraj* [1965] EA 700, seems to say at 702, that the words "at any time" in section 99 of the Civil Procedure Act, which also appear in our rule 35, allows the court the power of amendment, even after the issue of the formal order.

In the recent English case of *R v Cripps ex parte Muldoon* [1984] QB 686, relating to the costs of a local government election petition, Sir John Donaldson MR said that a judge was fully entitled to reconsider and vary any decision at any time before the order embodying it had been perfected. In *Charles Bright and Co Ltd v Sellar* [1904] 1 KB 6, where the word "debentures" had been omitted from the order absolute charging certain assets of the defendants, Cozens-Hardy LJ recalled that the former right of rehearing to correct a decision could only be exercised before the decree or order had been enrolled, up to which time it was not considered to be, in the full sense, an order of the court.

This decision is cited in support of a passage on the identical English Rule, Order 20, rule 11, in the commentary to it in the 1982 White Book, Volume 1 at 395 which states that the error or omission must be an error in expressing the manifest intention of the court, and that the court cannot correct a mistake of its own, in law or otherwise, even though apparent on the face of the order. The implication there is that there must be an error which can be corrected so as to express the court's intention, so that the slip rule would not apply where there can have existed no intention, because the court completely overlooked the matter. *Bright v Sellar* did not, however, decide that. It decided that the High Court had not inherited the power of the former Court of Chancery to entertain an action for the review of its own decision where an appeal lay against the order it had made.

In the Privy Council of *Tak Ming Co v Yee Sang Metal Supplies Co* [1973] 1 WLR 300, the Judge in Hong Kong had also omitted to deal with the question of interest. When exercising the power under the slip rule he explained the omission by saying:

> "A most important matter for me to consider is what I would have done at the time I gave judgment had this matter of interest been in my mind. After a lengthy trial, in the course of which both sides asked me to confine my decision to the issue of liability, and having written a long judgment which occasioned me to no small difficulty,

> my mind was on the issue of liability rather than upon any figures. But had I thought the matter through further, as I should have done I am in no doubt whatever, having a very clear recollection of the case and at the evasiveness of Mr Cheng, witness for the second defendant company, that I would have made an award of interest."

In its judgment the Privy Council laid down the criteria to be applied, even if there was long delay, as follows:

> "In this case there was considerable delay by the respondents before they made their application under the slip rule. It does not appeal, however, that the delay caused the appellants to take any step which they would otherwise have refrained from taking or to omit any step which they would otherwise have taken. The liability for interest was of course dependent on the liability for the principal sum, the balance due to the respondents, and there was no final decision as to the appeal to Her Majesty in Council was dismissed by order in council on 27 October 1971. There were also factors in favour of making the order under the slip rule. The respondents had been kept out of their money – the balance due to them, for which the appellants have been held responsible – for several years, and it is just that they should have interest on it. Also they had asked for interest in their statement of claim, and had indicated when directions were given on 8 February 1969, that they intended to apply for interest 'at the appropriate time', and they had made the application for interest on 6 August 1969, which was rejected by Briggs J for want of jurisdiction on 16 August 1969, and they made their application under the slip rule on 26 May 1970. Thus they had taken several steps with a view to recovering carefully considered by both courts below, and no sufficient ground has been shown to their Lordships for interfering with the exercise of the discretion which was made by Pickering J and affirmed by the full court."

Their Lordships approved in *Re Inchcape* [1942] Ch 394 which was followed in *Raniga v Jivraj* (*supra*).

In my judgment the error of omission or, rather, the errors of omission in the instant case are of the same nature, as in *Tak Ming Co v Yee Sang Metal Supplies Co.* In an even more recent case, where the arbitrator had erroneously attributed the evidence of the shipowner's expert witness to that of the charterer, and vice versa, Sir John Donaldson MR said that it was a classic case of error in an award arising from an accidental slip and could be corrected under section 17 of the Arbitration Act of 1950, which is in narrower terms that of our rule 35. In my opinion here this is an equally obvious error arising from an accidental omission, and, if the jurisdictional question had not arisen, could be dealt with by each judge of the full court as it was constituted when the appeal was heard.

All the cases I have referred to concerned an error by a single Judge and not an appellate court. One would hope that an appellate court is incapable of error but, realistically, it can always occur. However, it does highlight the difficulties where one of the members of the court ceases to hold office or any other of the events occur which are mentioned in the recent amendment to subrule (3) of rule 32. Mr *Esmail* asked the present court, in which Platt AJA has replaced Chesoni AJA to invoke that subrule, but I do not think it is appropriate to the instant case where the judgments have already been delivered. In a case falling under rule 32(3) the argument will have been heard by all three Judges, the minimum number specified by the proviso to section 5(3) of the Appellate Jurisdiction Act (Chapter 9). In the instant case the question of interest was only touched on by Mr *Esmail* and there is no way of knowing how Chesoni AJA would have decided it, if it were opposed as Mr *Wamae* has indicated.

Accordingly, while in my view the slip rule could have been invoked in this case (so as to deal with the question of interest) by the same court before the decision had been perfected (for I do not, with respect agree with the decision of *Raniga v Jivraj* in this respect), neither the remaining two members, nor the three members constituting the present court, have any jurisdiction to do so now.

Has the reconstituted court power to reopen the question of interest by the court hearing it *de novo*, which was another alternative suggested by Mr *Esmail*? In my opinion it has not. I agree with Mr *Wamae* that we cannot have the matter of interest, a matter which is clearly contentious, argued in isolation. Consultation between the members of the court on all live issues is essential and we should not now deal with a matter which was not a separate and independent issue, but bound up with the question of damages.

In these circumstances, regrettable though it may be, I would hold that there is no jurisdiction vested in the remaining members of the original court, or in the three members as it is presently constituted, to decide on the issue of interest under the slip rule (which would otherwise be applicable); neither can we decide it *de novo* on further submissions.

As this matter was effectively raised by the court of its own motion, I would make no order as to costs. As Nyarangi JA agrees that is the order of the court.

Nyarangi JA: The purpose of further mentioning this matter is stated in the judgment prepared by Hancox JA which I have had the advantage of reading in draft.

Under rule 35(1) of the rules of this Court, a clerical or arithmetical mistake or any error arising from an accidental slip or omission may be corrected by the court before or after the judgment has been embodied in an order. That is in sharp contrast with the judgment in *Unnanse v Unnanse* [1950] AC 561 where the general rule was stated to be that once an order is passed and entered or otherwise perfected according to the practice of the court, the court is *functus officio* and cannot set aside or alter its order however wrong it may appear to be. No formal order has been drawn following the judgments.

It is clear from the memorandum of appeal that a prayer was made for interest and, equally clear from the notes of Mr *Esmail*'s submissions, that the court was urged to award interest to the appellant if it was successful. The court overlooked to deal with that particular matter. Something was therefore left out by accident resulting in an accidental omission (see *Sutherland and Co v Hannevig Bros Ltd* [1921] 1 KB 336 at 337, per Rowlatt J at 341).

I have no doubt that, but for the resignation of one of the members of the court which accidentally omitted to consider the issue of interest, the court would have had the jurisdiction under rule 35(1) to correct the omission to give effect to what was the intention of the court or of the majority of the court. The position now is that the court that heard the appeal no longer can exist. The decisions in *Raniga v Jivraji* [1965] EA 700 and *Raichand Lakhamishi and another v Assanand and Sons* [1957] EA 82 are each distinguishable from the present state of facts relative to this matter in so far as a reconstituted Court has to hear the application. The court which has to correct the accidental omission is the same court that gave the judgment(s) out of which the accidental omission arises. The matter of interest arises directly from the memorandum of appeal and the judgments on it and it could not possibly be argued as a separate item.

The question which arises for decision by this Court is whether it has power to amend the judgment(s). That question must be answered against the appellants.

I agree with the order proposed on costs.

Platt AJA concurred in the judgments of Hancox and Nyarangi JJA.

For the appellants:
Mr AA Esmail

For the respondents:
Mr PM Wamae

Sheikh v Highway Carriers Ltd
[1986–1989] 1 EA 524 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	10 March 1988
Case Number:	46/86
Before:	Gachuhi, Apaloo JJA and Masime AJA
Sourced by:	LawAfrica

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[1] Practice and procedure – Application to set aside judgment entered in default of defence – Judge including in his consideration of application his own previous experience of delaying tactics adopted by, and low level of efficiency in, advocates representing the Applicant – Whether a correct exercise of discretion.

Editor's Summary

On 19 February 1983, the respondent filed a suit against the appellant claiming KShs 171 602,80 for transport charges. On 19 March 1983, the appellant entered an appearance through his advocates. No defence was filed and in consequence judgment in default was entered for the entire claim on 29 April 1983. About a month later, the appellant applied to have the judgment set aside. In his affidavit in support of the application, the appellant deponed that the transport charges were incurred by him as agent for S Limited and that he was therefore not personally liable. On the hearing of the application, however, the appellant admitted liability for KShs 120 219,70. A consent order was accordingly recorded entering judgment for that amount in favour of the respondent, and the appellant was granted leave to file a defence for the remainder of the claim, such defence to be filed "not later than 11 July 1983" and the case was to be mentioned on 29 July 1983. The appellant failed to file his defence in time but the Court registry in Mombasa received, on 18 July 1983, a defence which was sent from Nairobi by registered post on 8 July 1983. The covering letter from the appellant's advocates stated that a blank cheque to cover the filing fees was enclosed but no cheque was in fact enclosed. When the case was mentioned on 29 July 1983, neither the appellant nor his advocate was present but the respondent was represented. The Judge thereupon recorded that the defence was not properly filed by the due date and he therefore entered judgment in favour of the respondent for the balance of KShs 51 383.

On 16 September 1983 the appellant filed a further application to set aside this judgment. The application was supported by an affidavit of Mrs K, member of the firm of advocates representing the appellant, in which she deponed that she had dispatched the defence on 6 July 1983 under a certificate of posting and she believed that the defence had reached the Court registry on or before 11 July 1983. A later supplementary affidavit sworn by another member of the firm claimed that the defence was sent by registered post on 8 July 1983 and that since it took one day for a registered letter to reach Mombasa, the defence ought to have been received on 9 July 1983. He further deponed that the post office had advised the Court registry in Mombasa of the registered envelope in time but the registry did not collect it until 18 July 1983.

The Judge, after hearing the parties, dismissed the appellant's application and refused him leave to appeal to the Court of Appeal. In doing so, he stated in his ruling, inter alia, that the term in the consent order relating to the mention of the case on 29 July 1983 was inserted by him because he was not satisfied with the genuineness of the reasons given by the appellant and of his (the Judge's) previous experience of the delaying tactics used by, and of the low level of efficiency in, the appellant's firm of advocates. He also considered the omission to enclose the cheque for filing fees to be deliberate and symptomatic of that firm's delaying tactics and lack of efficiency.

The appellant appealed, inter alia, on the grounds that in exercising his discretion, the Judge had taken extraneous matters into consideration and was biased against the appellant's advocates.

Held – (Apaloo JA dissenting) The exercise of the Judge's discretion was vitiated by the consideration of extraneous matters and in particular by derogatory and unwarranted remarks displaying hatred towards the appellant's advocates.

The Judge ought to have considered the defence which was on the Court file and had he done so he would have realised that it raised triable issues.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Kimani v McConnell and another [1966] EA 547

Maina v Mugira [1982] LLR 49 (CAK)

Mbogo v Shah [1968] EA 93

Patel v EA Cargo Handling Services Ltd [1974] EA 75

Shah v Allu (1947) 14 EACA 45

Shah v Mbogo and another [1967] EA 116

United Kingdom

Evans v Bartlam [1937] AC 473; [1937] 2 All ER 647

Judgment

Gachuhi JA: In this appeal the applicant has appealed to this Court against the ruling delivered by the High Court in exercise of the Judge's discretion in which he dismissed the appellant's application for extension of time to file defence out of time. The learned Judge also refused the application for leave to appeal. The grounds of appeal are:

1. The learned Judge erred in considering extraneous matters which had no relevance to matters in issue before him.
2. The learned Judge erred in allowing himself to be carried away by his great hatred of the appellant's lawyers to the prejudice of the appellant.
3. The learned Judge was mistaken in his finding that a delay of seven days in filing the defence was excessive delay and further erred in ignoring the explanation offered by the appellant.

The facts of this suit are that the respondent filed suit against the appellant on 19 February 1983 claiming the sum of KShs 171 602,80 for services rendered in transporting consignments of fuel oil on behalf of the appellant for the period February to May 1982 particulars whereof were known to the appellant. Summons were served and appearance was entered on 29 March 1983. Particulars of the claim were demanded and supplied before the filing of defence. They were forwarded to the appellant by his advocate on 29 March 1983. Judgment in default of defence was awarded on 20 April 1983.

The appellant, having defaulted in filing defence, filed on 24 May 1983 an application for extension of time to do so. The affidavit in support of the application sworn by the appellant himself contained a mere denial of the plaintiff's claim and claimed that particulars were supplied very late. When the application came before the Judge on 27 June 1983, Mr Gathuku for the defendant admitted liability to the extent of KShs 120 219,70 whereby a consent order in the following terms was recorded:

"1. That the *ex parte* judgment be and is hereby set aside.
2. That the defendant do pay to the plaintiff all thrown away costs.
3. That the Judgment be and is hereby entered for the plaintiff for KShs 120 219,70 with proportionate costs and interest at 12% per annum.
4. That the defendant be and is hereby granted leave to file defence relating to the balance of claim not later than 11 July 1983.
5. That the case to be mentioned on 29 July 1983."

The defence was not filed in terms of the consent order but was filed on 18 July 1983. On 29 July the mention date in the consent order, there was no representative for the defendant. The representative for the plaintiff was present. The Court record does not appear to be complete but it is recorded:

"Court: Defence not properly filed by due date. Hence I enter judgment in default for balance of claim of KShs 51 383,10 with costs plus interest at 12%."

The appellant filed a further application on 16 September 1983 seeking an order of the Court that the *ex parte* judgment entered herein on 29 July 1983 against the defendant be set aside and defendant be allowed to defend within such time as the honourable court may deem fit and that the execution proceedings be stayed. The application was supported by the affidavit of Joyce Nuku Khaminwa sworn on 13 September 1983, and supplemented by an affidavit of Gervase Buluma Kafwa Akhaabi Wara on 11 October 1983.

In her affidavit Mrs Khaminwa stated that she dispatched the defence and counterclaim under a certificate of posting on 6 July 1983. She verily believed that the defence could have reached Mombasa on or before 11 July 1983. She further stated that the defence reached the Court in time but the delay was caused by the Court. A letter forwarding the defence and counterclaim also claimed to have enclosed a blank cheque to cover fees is dated 6 July 1983 but didn't.

Mr Akhaabi stated in his affidavit that Mr Gathuku on leaving Mombasa on 27 June 1983 was assigned to proceed to Kakamega on the same day on a criminal case fixed for hearing from 28 June 1983 for two weeks. He did not at the time leave instructions with him to prepare and file defence before 11 July 1983. Mr Gathuku relayed the information on telephone from Kakamega on 4 July 1983. He then prepared defence to the balance of the claim together with a counterclaim and sent it off. Mr Akhaabi never doubted the defendant had a good defence and if the defendant would fail on his defence, he would succeed on the counterclaim.

According to Mr Akhaabi, unlike Mrs Khaminwa, the defence was duly posted under certificate of registration on 8 July 1983. According to him, there was still three clear days to the deadline. Since it takes only one day between Nairobi and Mombasa, the registered letter cover ought to have been received and was in Mombasa on 9 July 1983. According to him, the Post Office advised the High Court Registry of the registered parcel well within time. Ruling on this application was delivered on 11 July 1985 which is the subject of this appeal.

On the complaint that the appellant was refused leave to appeal against. Portions of the ruling complained of are:

> "As I was not entirely satisfied myself as to the genuineness of the reasons given by the defendant and as I had had a long and sad previous experience of the dilatory tactics used by, and of the rather low level of efficiency of the defendant's firm of advocates, I decided to order that the case be mentioned on the 29 July 1983.
>
> My apprehension turned out to be correct since by that date the defence had not been properly filed with the result that I entered judgment in default for the balance claimed with costs and interest."

And the other is:

> "I must also stress what I consider to be a deliberate omission in sending the cheque in payment of the filing fees. I have said earlier that I have had previous experience of the level of efficiency and devotion to duty towards clients evidenced by the defendant's firm of advocates. In fact on three separate occasions when I was stationed both in Eldoret and Nairobi I have had documents sent by post at the very last moment under a covering letter in which it was always stated that the relative cheque was enclosed when in fact it was not. This is the fourth time in my experience the same thing has happened. I believe this is a deliberate tactic used by those advocates to gain time for their clients."

On the complaint that the appellant was refused leave to appeal against the ruling, leave was not required under Order XLII, rule l(1)(*a*). This should not necessarily be a ground of appeal.

It is true that the learned Judge introduced some extraneous matters into the ruling and made derogatory remarks as to his past knowledge of this firm of advocates of its inefficiency in other matters. Such innuendo and dilatory remarks are unfortunate. He must have been influenced by those remarks in delivering his ruling.

During the hearing of the application on 11 March 1985, there was not much said as borne out by the record. Mr Gathuku who appeared for the defendant/applicant stated that he was relying on the affidavits and the defence filed. Mr *Maosa* who appeared for the appellant in this appeal also relied on the affidavits and the purported defence filed. He maintained before us that a letter sent under a registered cover would within three days reach Mombasa from Nairobi. Even if it took seven days, that delay is not inordinate. Extension should have been granted to cover these seven days. He maintained that the defence contained triable issues and that the appellant should not be made to suffer due to the mistake of the counsel. He also submitted that the ruling does not lie with established principles. He referred to *Maina v Mugira* [1982] LLR 49 (CAK), which I shall refer to later.

Mr *Inamdar* for the respondent submitted that the appeal is against the exercise of the discretion by the Judge and it cannot be said that the Judge exercised his discretion wrongly without looking into the facts of the case. In totality, discretion should not be interfered with because it ought to have been exercised in any other way.

The application was for setting aside the *ex parte* judgment and that the defendant be given leave to file defence out of time and for the stay of execution and an order for costs for the second time. Previous similar application resulted in a consent order being recorded which set aside an *ex parte* judgment already entered. Judgment was entered for the admitted amount. The appellant was given 14 days to file his defence for the balance of the claim. The defence was not filed within the prescribed time. An *ex parte* judgment was entered for the balance of the claim.

The affidavits relied upon were sworn by counsel. These affidavits are quite firm on their contention that a registered letter would take three days from Nairobi to Mombasa. This is based on their belief. No proof was produced on this. Maybe an affidavit from an official from the post office would have cleared any doubt.

There is also a further delay in preparing the defence. The affidavit of Mr Akhaabi stated that Mr Gathuku did not leave behind any instructions regarding the preparation of defence before he proceeded to Kakamega on a criminal case hearing. At the time of filing the application and the hearing of the same, Mr Gathuku was a member of the firm, yet he did not file an affidavit himself to confirm what Mr Akhaabi had stated in his affidavit was in fact the true position. In actual fact, what Mr Akhaabi stated would be hearsay which no court would accept in the light of the person offering information is still available to offer the explanation himself. Mrs Khaminwa’s affidavit is contradicted by that of Mr Akhaabi on the posting of the letter. The covering letter is alleged to have enclosed a blank cheque for fees. Mr *Inamdar* has pointed out, which has not been challenged before us, that there was no cheque enclosed and no filing fee has ever been forwarded to date. This is quite clear from the Court file. Even if it could be said that the purported defence was properly filed, it could not have been filed as such without the payment of fees. It was received by the registry on 18 July 1983 seven days out of time. It was on the file when the judgment was entered. In order to succeed the application must show that the entry of judgment was wrong in that it was entered while the defence was validly on the file and the Judge did not consider it. Once it was

on the file the Judge ought to have looked at it to see whether it had raised any triable issue, unless he heard submissions on it, and, if so, extend the time for filing. Other allegations in the affidavit that files are missing and/or that the registry staff failed to place the defence on the file before judgment was entered could not possibly be proved. As such no need to deal with them.

The powers of the Court in dealing with application under Order IX, rule 10, is to do justice to the parties. In *Maina v Mugira* [1982] LLR 49 (CAK) (*ibid*) (Porter, Kneller JJA and Chesoni AJA). Potter JA in quoting Duffus P in *Patel v EA Cargo Handling Services Ltd* [1974] EA 75 stated at 1 of his judgment this:

> "There are no limits or restrictions on the Judge's discretion except that if he does vary the judgment he does so or such terms as may be just . . . The main concern of the Court will not impose conditions on itself to fetter the wide discretion given to it by the rules."

In the same appeal Kneller JA, quoting Harris J, in *Shah v Mbogo and another* [1967] EA 116 at 123BC on the principles governing the exercise of the Court's discretion to set aside a judgment obtained *ex parte* stated:

> "The discretion is intended to be exercised to avoid injustice or hardship resulting from accident, inadvertence, or excusable mistake or errors, but is not designed to assist a person who has deliberately sought, whether by evasion or otherwise, to abstract or delay the cause of justice."

Looking at this, the purpose of the whole object of the application is to get the defence on the record. Thereafter the suit to proceed to hearing on its merit. Whether the defendant will succeed on his defence to the claim or on his counterclaim cannot be adjudicated at the time of the hearing of the application. It will depend on the evidence. Of course the applicant must be penalised in costs for the delay caused by the extension of time.

Dealing with the affidavit of the defendant claiming of good defence, it is clear that he originally denied the claim of KShs 171 602,80 and further stated that he was wrongly sued. He claimed to have been an agent of Shell Limited but claimed from the plaintiff 15% commission on the plaintiff's earnings. However, he admitted that the amount due to the plaintiff under the contract was KShs 35 732,40 and not KShs 171 602,80. Surprisingly, without any averment or indication from the defendant Mr Gathuku consented to judgment being entered for the plaintiff in the sum of KShs 120 219,70 leaving a balance of KShs 51 383,10. The affidavit of the defendant was then washed away on entering consent judgment to that amount. The defence for the balance of the claim of KShs 53 383,10 is a denial of the amount or any other sum. He admitted that the plaintiff rendered services at the instigation of the defendant but the defendant acted as agent for a known principal. He alleges that the plaintiff had been paid in full. He continued stating in the defence that the plaintiff's claim is in excess of the agreed amount and/or rates of payment to which the defendant denied the plaintiff was entitled to. The defendant introduced a counterclaim which was not in the affidavit referred to earlier and stated that the defendant rendered services to the plaintiff in Sudan which payment were to be made in Kenya. The plaintiff had paid some amount leaving a balance of KShs 136 000 which the plaintiff had refused to pay. No particulars of the claim could have been demanded for since the defence and the counterclaim was not filed.

Looking at these claims and the defences the appellant appears to set up a possible defence he could rely upon when the suit came up for hearing. There

are possible triable issues. If he cannot raise these issues in his defence then he may well be shut out. The defendant feels strongly that he has a good counterclaim for services in Sudan and a claim for commission which cannot be pursued independently because, having been introduced in these pleadings, it could be caught by the doctrine of *res judicata* or if not taken now, it may be caught by limitation. It may be that the sum of KShs 35 732,40 admitted in the affidavit was merged with the sum of KShs 120 219,70 for which judgment was entered. That being the position there are defences shown to the plaintiff's claim.

The issue of setting aside judgment is a daily occurrence in the Courts. Each application has to be dealt with on its merits. Harris J considered steps to be taken in the hearing of the application and stated in *Jesse Kimani v McConnell and another* [1966] EA 547 at 555F and G:

> "It seems to me that a reasonable approach to the application of these rules to any particular case would be for the Court, first to ask itself whether any material factor appears to have entered into the passing of the *ex parte* judgment which would not or might not have been present had the judgment not been *ex parte*, and then, if satisfied that such was or may have been the case, to determine whether, in the light of all the facts and circumstances both prior and subsequent and if the respective merits of the parties, it would be just and reasonable to set aside or vary the judgment, if necessary, upon terms to be imposed."

I appreciate Mr *Inamdar*'s arguments in opposing the application which he heavily relied on the two authorities he had relied in the High Court and referred to in the ruling, namely, *Patel v EA Cargo Handling Services Ltd* [1974] EA 75, particularly the quotation in *Evans v Bartlam* [1937] AC 473; [1937] 2 All ER 647 and *Mbogo v Shah* [1968] EA 93 which I have commented on.

The whole ruling appealed against was vitiated by extraneous matters and particularly derogatory remarks of hatred directed to the firm of advocates which remarks were uncalled for. These remarks cannot be expunged due to their tone in the whole ruling whereby injustice is reflected therein. Had the Judge not been carried away by his emotional conduct which tone dominated the whole ruling, and had he considered the interest of the appellant independently from the conduct of his advocates and considering the authorities on the subject, to my mind, he could have come to a different conclusion. In entering the judgment, the Judge was still carried away by his emotion because the defence was applied for. The words recorded imply that it was entered on the Judge's own motion.

It must be clear that the Court is to administer justice through the procedure laid down. It is important in administering justice that the suit in court is between two litigants and the counsel is merely putting the case for his client forward. The litigant may not be aware of the failure of his advocates in complying with the rules. He is at the mercy of his advocate. It is the law of agency that the principal is bound by the acts of his agent. Yet in administering justice, why should the litigant suffer due to the mistakes and errors of his advocate.

If the Court should be inclined to punish the advocate, it should state so and choose the appropriate punishment without injuring the litigant's rights. Mr *Maosa* relied on *Pithon Waweru Maina v Thuku Mugiria* (*ibid*) as an authority that a litigant should not be punished through the mistake of his counsel. This is what was referred to by Harris J in *Shah v Mbogo*, (*ibid*) so as to avoid miscarriage of justice. The Judge misdirected himself in importing extraneous matters

which caused miscarriage of justice. I would allow this appeal with costs. I would set aside the order of the High Court dismissing the application and the judgment entered for the plaintiff for the balance of the claim and substitute thereof with an order granting the defendant leave to defend the balance of the claim and direct that the defence already be taken as filed subject to the payment of fees and be served out of time within 14 days from the date of this judgment. I would award the costs in the High Court on the application to the respondent.

As Masime AJA agrees, the order now is that the appeal is allowed with costs. Costs in the High Court is awarded to the respondent in this appeal.

Apaloo JA: The only question in this case is whether the Judge below exercised his discretion judicially in refusing to set aside a judgment by default entered against the appellant. It is not suggested that the learned Judge misconceived or misstated the principles of law which should guide him in the exercise of that discretion. There is no dispute about the facts. So, whether the Judge ought to have exercised his discretion for or against the appellant, depends on the facts. If any theory is well settled in this branch of the law, it is that it is not for an appellate court to substitute its discretion for that of the trial court or set aside the Judge's discretion because if it had been the trial court it would have exercised it differently.

What then are the facts? On 19 February 1983, the respondent brought a plaint against the appellant and sought judgment for the sum of KShs 171 602,80 being freight due from the appellant to the respondent. The appellant, by counsel, entered appearance on 19 March 1983. But before doing this, sought particulars of the plaint.

These were supplied on 21 March 1983. Thereafter, the appellant appeared to have gone to sleep. He filed no defence to this somewhat straightforward claim. So the respondent requested for judgment in default of defence. This was duly entered in its favour on 29 April 1983.

Just over a month afterwards, the appellant sought to have that judgment set aside by a chamber summons. On 23 May 1983, the appellant swore a 20-paragraph affidavit in which he sought to explain the reason why defence was not lodged on his behalf in due time. In paragraphs 14 and 15 of that affidavit, he deponed to what the kernel of his defence to the action was, namely:

> "14. I believe that I am wrongly sued in this case.
>
> 15. The agreement to transport the fuel oils was between the plaintiff and Shell Limited with me acting merely as the agent of Shell Limited."

If the matter deponed to in paragraph 15 of the affidavit is true, it provides a complete answer to the respondent's claim because the appellant acted as agent for a known principal and incurs no personal liability on the contract. The appellant was then acting with full professional assistance and it is a reasonable inference that this affidavit was prepared by his legal advisers.

But barely five weeks after this, when the chamber summons came for hearing before Aragon J, counsel appearing on behalf of the appellant admitted liability in the sum of KShs 120 219,70. That amounts approximately to three-fourths of the sum claimed. An admission of this nature throws discredit on the averment that the appellant was merely a *conduit pipe* through which the contract was concluded and that the real debtor was Shell Limited but as the admission fell short of the total sum claimed, there was still a balance of KShs 51 383,10 in contention between the parties.

The respondent accepted that the appellant be granted leave to contest that sum. In view of what appears to be a *volte face*, on the part of the appellant, it would not take a great deal of perspicacity to see that the genuineness of the whole defence was suspect. The Judge felt that way and in order to prevent the appellant again going to sleep, granted him leave to file a defence to the contested sum not later than 11 July 1983. As the order was made on 27 June, it gave the appellant no fewer than 14 days to lodge his defence. The Court ordered that the case be mentioned on 29 July 1983.

It is common ground that this defence was not received before 18 July, that is seven days after the time fixed by the Court. Furthermore, although a letter accompanying the defence stated that a blank cheque was being enclosed to meet the cost of filing, no such cheque was sent. So the appellant was again in default. The case was duly mentioned before the Court on 29 July. The appellant was represented by counsel. Neither the appellant himself nor his counsel appeared. It was brought to the notice of the Court that the defence was not filed by the date ordered by the Court. The position then was that there was no proper defence before the Court, not only because it was filed in breach of the order limiting the time, but that fees due the Court for such filing have not been paid. The Court then proceeded to give judgment for the balance of KShs 51 383,10 with costs.

In September 1983 the appellant returned to the Court and prayed the Judge for yet another indulgence to set aside the judgment he entered in the respondent's favour on 29 June. In a supporting affidavit, he sought to excuse his failure to comply with the earlier order, on what can only be described as ineptitude in the conduct of the firm's business. No explanation was proffered why the cheque which was supposed to be sent with the defence to meet filing fees was not included. As I said, whether the Judge was wrong or right in declining to exercise his discretion in the appellant's favour depends on the facts presented to him.

In sum, those facts amount to this: The respondent prayed for judgment against the appellant for a liquidated sum on what appears a simple contract debt. The appellant made default in filing defence and *ex parte* judgment was given against him. He asked the Court to exercise its discretion in his favour to enable him to contest the claim. Before then, he deponed that he did not personally owe one cent of that debt. The respondent did not resist this application, and was agreeable to the Court exercising its discretion in the appellant's favour. During the hearing of the chamber summons, the appellant recoiled from the position. He took in his affidavit personal liability for about three-fourths of the debt and submitted to judgment for that amount. The Court in the exercise of its discretion granted him leave to file a defence to contest the balance on terms that were fair and reasonable. The appellant again breached those terms. The Judge then declined to exercise his discretion yet again in the appellant's favour. On the basis that justice is not a one-way street and that the Judge was obliged to look at the claims to justice of the appellant as well as that of the respondent, the learned Judge's decision to deny the appellant the exercise of his discretion a second time seems to be eminently just.

But, the appellant says, we should set that exercise of discretion aside in his favour on two main grounds formulated as follows:

> "1. The learned Judge erred in considering extraneous matters which had no relevance to the matters in issue before him.

2. The learned Judge further erred in allowing himself to be carried away by his great hatred of the appellant's lawyers to the prejudice of the appellant."

If in truth the learned Judge introduced into his consideration of this application extraneous matters and founded his decision either partly or wholly on them, then the exercise of his discretion can properly be faulted. What then are the extraneous matters to which the appellant took exception? First, the appellant points to an observation by the Judge that:

> "As I was not entirely satisfied myself as to the genuineness of the reasons given by the defendant and as I had a long and sad previous experience of the dilatory tactics used by and of the rather low level of efficiency of the defendant firm's advocates, I decided to order that the case be mentioned on the 29 July."

This passage was also pointed out as evidence of the Judge's hatred of the appellant's advocates. One must look at these observations carefully and objectively. There is evidence on the record to justify the Judge's feeling that the genuineness of the defence was open to suspicion. And that is, that shortly after swearing to an affidavit in which the appellant disclaimed any personal liability for the debt or any part thereof, his advocate admitted liability for a very substantial portion of that debt. On the basis on which the whole liability was sought to be repudiated, it was, to put it mildly, open to the gravest doubt whether the "agency story" put up in the affidavit can be sustained in relation to the small portion of the debt sought to be contested. There is nothing extraneous in this observation.

In the same sentence, the Judge also related his own personal experience with regard to this firm in two respects namely, first, the firm had, in the past, used dilatory tactics. It is not suggested that the Judge did not, in truth, incur that experience or that if the defendant's firm had adopted dilatory tactics in the past, it was not relevant for him to bear this in mind when the firm prayed for the exercise of his judicial discretion. Second, the Judge thought very little of the firm's efficiency. That is an expression of opinion which may or may not be shared by other Judges. The fact that the Judge had grave reservation about the firm's efficiency, was not the reason why he declined to exercise his discretion in favour of the appellant. Rather, that was one of the reasons which decided the Judge to grant leave to the appellant on terms that the defence be filed by 11 July and that the case be mentioned on 29 July. The appellant or his legal advisers breached both conditions and, in the process, put paid to the Judge's suspicions. The defence *ex concessis* was not filed by 11 July and neither the appellant nor his legal advisers turned up in Court on 29 July.

There was no suggestion that the Judge denied the appellant a fair hearing on his application to set aside the *ex parte* judgment or that, while hearing that application, the Judge showed hostility or exhibited any attitude or conduct which shows ill-will towards the appellant or his advocates. Throughout all this saga, the respondent was entirely blameless and was, in the circumstances, peculiarly deserving of the exercise of the Court's discretion. It would be odd if a discretion exercised in his favour to reject the application can justly be upset regardless of the facts of this case only because of the way in which the Judge chose to deliver himself when declining to exercise his discretion in the appellant's favour.

The Judge also felt that the omission to send the cheque was deliberate and then proceeded to relate his experience in these words:

> "In fact on three separate occasions when I was stationed both in Eldoret and Nairobi, I have had documents sent by post at the very last moment under a covering letter in which it was always stated that the relative cheque was enclosed when in fact it was not. This is the fourth time in my experience the same thing has happened. I believe this is a deliberate tactic used by those advocates to gain time for their clients."

Unless the learned Judge was relating falsehood, or unless a Judge ought not to relate relevant experience or be guided in the performance of his duties by it, it is difficult to see that any valid exception can be taken to this observation. It is not denied that although the covering letter forwarding the defence states that a blank cheque was being enclosed to meet the cost of filing, no such cheque was enclosed. And no explanation of any sort was offered. If the omission to include the cheque was due to oversight, it was clearly the firm's duty to say so. Having proffered no explanation of any sort for what can only be a misleading or inaccurate statement, there is no basis for taking umbrage at the Judge's belief, borne of past experience that this was a deliberate delaying tactic. Yet this perfectly legitimate observation was pointed to as evidence of the Judge's error in considering extraneous matters or as evidence of the Judge's hatred of the appellant's firm of advocates. What is extraneous about this? It seems to me extravagant and entirely fanciful to suggest that this observation evidences the Judge's hatred for the appellant's advocates.

One's experience teaches one that charges of bias or ill-will against a Judge or adjudicator are usually made by defeated litigants often motivated by disappointment at adverse verdicts. Where a party or his advocate's conduct is deserving of judicial censure, strong language by the Judge in condemnation of that conduct cannot properly be stigmatised as bias or judicial hatred. Nor, in my judgment, does it justify an appellate court in substituting its discretion for that of the trial court regardless of the facts, or provide such Court a warrant for exercising that discretion in favour of a party, who, on the facts, is entirely undeserving of it.

Some oblique criticism seems to have been directed at the Judge because he fixed the case for mention without an application by the parties and when the matter was mentioned on 29 July, he proceeded to give judgment without being formally requested to do so. It was implied therefore that this might justify a complaint of bias or hatred of the appellant's advocates. Such imputation is less than fair to the learned Judge. The Judge made no secret of the fact that he was suspicious of the genuineness of the defence. He had, as I have shown, valid reason for so feeling. It was he who gave his blessing for setting aside a judgment that was regularly obtained by the respondent. Instead of setting the judgment aside unconditionally, he felt it right to impose a condition that the defence be filed by a named date and he fixed yet another date to satisfy that this condition was met. So when on 29 July no defence was properly filed and neither the appellant nor his advocate was present to offer any explanation, he must have felt it right to restore in favour of the respondent that part of the judgment which was still in contention between the parties and which he had, in the exercise of his discretion, set aside at the appellant's instance.

Such a course, was, in my opinion eminently just. The Judge himself was under a statutory duty to do justice to the parties without "undue delay" (see section 3 of the Judicature Act). It was not and cannot be suggested that the Judge cannot properly do this. It was not suggested that in taking this course, he infringed any procedure rule or indeed any principle of justice. By what stretch of imagination can this normal judicial action be interpreted as bias or

hatred of the appellant's counsel? At all events, the judgment was not given against lawyers. It was given against a party whom the Judge believe, with good reason, was seeking to employ tactics of delay to avoid or postpone the payment of what seems a just debt.

Attention was also drawn to the fact that, without evidence, the Judge said that in 1983 a registered letter posted in Nairobi cannot reach Mombasa earlier than five days. The Judge said "this was a well known fact". True, there is no evidence of this, but I have always thought a Judge is always entitled to take judicial notice of notorious facts. The Judge said this fact was well known. It is not suggested that this was wrong or, if it was a well-known fact, it could not be within judicial knowledge.

What is so esoteric about the time a registered letter posted from Nairobi takes to reach Mombasa that it cannot be well known to a Judge or can only become "known" to him by the adduction of formal evidence? In *Shah v Allu* (1947) 14 EACA 45 at 51 Graham Paul thought the difficult of obtaining possession of premises could be taken judicial notice of. As he put it:

> "I am confirmed in this belief, by the fact well within judicial knowledge (emphasis is mine) that at the present time, possession of premises is valuable and difficult to obtain."

I think the time it takes for a registered letter posted from Nairobi to reach Mombasa in 1983 is a fact that can well be within judicial knowledge. In my opinion, therefore, the veiled criticism of the learned Judge for stating this, is unjustified.

It is conceded that Aragon J did not misstate or misapprehend the legal principles which govern the exercise of his discretion in this matter. He stated and applied them to the facts and reached a result which many fair-minded Judges would reach. It is impossible to say, to borrow the words of the Privy Council in *Shah v Allu* (1947) 14 EACA 45 at 46 that:

> "*There has been an unjudicial exercise of discretion or an exercise of discretion at which no Judge could reasonably arrive whereby injustice had been done to the party complaining*" (emphasis is mine).

That being so, well stated judicial authorities of which the *Allu* case cited (*supra*); *Shah v Mbogo* [1968] EA 93; *Patel v EA Cargo Handling Services Ltd* [1974] EA 75 are typical, preclude this Court from interfering with that result.

I think on the facts, Aragon J exercised his discretion correctly or, at the very least, the appellant has failed to show that he exercised it unjudicially. Accordingly, I do not feel it right to substitute my own discretion for his. I would therefore, for my part, dismiss this appeal with costs.

Masime AJA: This appeal concerns an order made in the exercise of discretion in application under Order IXA, rule 10 of the Civil Procedure Rules refusing to set aside a judgment obtained in default of the filing of a defence by the due date. The facts of the case appear clearly in the ruling appealed against and in the judgments of Gachuhi and Apaloo JJA (which I have had the advantage of seeing in draft). In the course of his ruling the learned trial Judge made the following unfortunate remarks:

> "As I was not entirely satisfied myself as to the genuineness of the reasons given by the defendant and as I had a long and sad previous experience of the dilatory tactics used by and of the rather low level of efficiency of the defendants firm of advocates I decided to order that the case be mentioned on the 29 July 1983. My apprehension

> turned out to be true since by that date the defence had not been properly filed with the result that I entered judgment in default for the balance claimed with costs and interest."

He then goes on to make observations for which no evidence was adduced as follows:

> "It was impossible in 1983 for a registered letter posted in Nairobi to reach Mombasa earlier than five days after the date of posting. That was a well-known fact that I find it difficult to believe that Mr Akhaabi did not know that. In any event why if the letter was written on 6 July 1983 did he wait until 8 July 1983 to post it? Why should the letter remain for two days in the office of Messrs Khaminwa and Khaminwa unposted?"

He goes further:

> "When I was in private practice I often went upcountry to conduct cases but I always kept someone in the headquarters office informed of what was going on. Had I not done so I would soon have been on the first ship back to UK from Calcutta.
>
> I must also stress what I consider to be a deliberate omission in sending the cheque in payment of the filing fees. I have said earlier that I have had previous experience of the low level of efficiency and devotion to duty towards clients evidenced by the defendants' firm of advocates. In fact on the three separate occasions when I was stationed both in Eldoret and Nairobi I have had documents sent by post at the very last moment under a covering letter in which it was always stated that the relative cheque was enclosed when in fact it was not. This is the fourth time in my experience the same thing has happened. I believe this is a deliberate tactic used by those advocates to gain time for their clients."

He then went on to consider and hold that the defence raised has no real substance and that even if the application were refused the defendant would not really suffer. He then refused the application.

The memorandum of appeal has two main grounds; that the learned Judge erred in considering extraneous matters in reaching his decision and that he permitted himself to be carried away by his great hatred of the appellants' lawyers to the prejudice of the appellant.

I have carefully considered the history of the whole case. It is true as the learned Judge says in his ruling that the suit had been characterised by delays throughout. In the preamble to his ruling the learned Judge sets out the law correctly. However, I agree with learned counsel for the appellants that the entire ruling was a criticism of the conduct of appellant's counsel and the alleged dilatory and inefficient tactics rather than a consideration of the application and affidavits in its support. I have perused the original court record from which it is apparent that:

(1) The learned Judge fixed the case for mention of his own motion without an application being made by the parties.

(2) When the case was mentioned he again of his own motion entered judgment against the defendant without an application being made by the plaintiff though there was a defence on the record admittedly not filed properly.

(3) When on 11 July 1985 he dismissed the application he refused an application erroneously made for leave to appeal though no leave to appeal is necessary – see Order XII, rule 1(1)(*a*) of the Civil Procedure Rules. In the fact of these incidents and the remarks in the ruling it is not surprising that the appellant's counsel has alleged bias and that the learned Judge has great hatred of the appellants' counsel.

On consideration of these matters I am of the respectful view that they have far-reaching effect on and indeed vitiate the exercise of discretion of the learned Judge. Not only has his attitude to defendants' counsel prevented him from really dealing with the application before him but it has made him wander so far away from it that it cannot be said that he has exercised his discretion judicially. In my view this appeal should be allowed and the ruling of the learned Judge be set aside. I would extend the time for filing the defence to the date when it was received in the registry subject to necessary filing fees being paid within seven days of today. I would also grant to the appellants the costs of this appeal.

For the appellant:
TM Maosa

For the respondent:
IT Inamdar

Small Simba Sports Club v Miembeni Sports Club
[1986–1989] 1 EA 537 (CAT)

Division:	Court of Appeal of Tanzania at Zanzibar
Date of judgment:	6 January 1988
Case Number:	47/87
Before:	Makame, Kisanga and Omar JJA
Sourced by:	LawAfrica

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[1] Jurisdiction – Jurisdiction of the High Court to entertain a claim – Procedure for approaching the High Court.

Editor's Summary

The parties are two sports clubs in Zanzibar. They both played a football match whereupon the appellants won. The respondents thereafter filed a complaint with the Zanzibar Football Association (ZFA) claiming that the appellants had fielded an illegal player and they were subsequently declared the winners. The appellants appealed to the Zanzibar Sports Council (Baraza la Michezo Zanzibar-BMZ) and the decision was reversed but this was later quashed by the High Court. Hence this appeal.

Held – Under section 3(1) of the High Court Act, 1985, the High Court of Zanzibar has unlimited jurisdiction.

It was not necessary for the respondents to have approached the High Court by way of an originating summons.

BMZ was non-existent at the time it made the decision that it did and however well meaning they might have been they were incapax and did not have the authority to stand in for an institution which had ceased to exist (Hemedi Marijani v Festo Ngowi [1975] LRT CN 66 distinguished).

At the material time there was no BMZ decision as there was no BMZ in existence. The so called

BMZ decision upsetting the ZFA decision is therefore null and void.

There can be no appeal from ZFA direct to the High Court. An appeal from a ZFA decision lies to a properly constituted BMZ.

Appeal dismissed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Hemedi Marijani v Festo Ngowi [1975] LRT CN 66 – D

Judgment

Makame JA: This eventful appeal is about football. Public interest in it was conspicuously evident and the urgency with which the appeal had to be disposed of was impressed upon us in court. It was heard during the Court vacation and when two members of the Court were on their annual leave.

The parties are two sports clubs in Zanzibar. For facility of brevity they will hereinafter be referred to simply as Small Simba and Miembeni, respectively. During the 1987 League Football season in Zanzibar they were matched against each other twice, in accordance with the rules. The first match was won by Miembeni and this was on 11 April 1987. On 23 June 1987 when the two teams clashed again the tables were turned. Small Simba won that match and Miembeni filed a complaint with the Zanzibar Football Association, hereinafter referred to as ZFA, the body charged with the duty of superintending the game of football in Zanzibar. Among other things, Miembeni alleged that Small Simba had illegally fielded a player called Shaaban Mussa whom they had acquired from Simba Football Club in Dar-es-Salaam without complying with the necessary transfer formalities obtaining in Zanzibar. Zanzibar Football Association found substance in the allegation and therefore declared Miembeni the winners of that controverted match. In turn Small Simba, being dissatisfied with that decision, appealed to the Zanzibar Sports Council, also known as Baraza la Michezo Zanzibar, or BMZ for short, created by the Zanzibar Sports Council Act, number 8 of 1983. Baraza la Michezo Zanzibar reversed the decision made by Zanzibar Football Association and declared Small Simba, who had won the match on the field, the winners of that game. The present appeal before us is by Small Simba, now from the decision of the High Court of Zanzibar, wherein Ramadhani CJ, on appeal by Miembeni, quashed the decision by Baraza la Michezo Zanzibar, making a number of findings, one of them being that at the material time when the Baraza la Michezo Zanzibar decision was purportedly made, the said Baraza la Michezo Zanzibar was itself non-existent. This seems to us to be the crux of the matter.

Before us Small Simba were represented by Mr *Maira*, learned advocate, while Miembeni were advocated for by Mr *Muccadam*, learned counsel. Both learned advocates fervently and strenuously argued the appeal and we are thankful to them for their useful assistance. We wish also to place on record our grateful thanks to both counsel for putting at our disposal the various documents they deemed useful for our consideration.

Mr *Maira* for the appellants advanced five grounds against the learned Chief Justice's decision and these may be grouped into three:

> "1. That the matter was not properly before the High Court for adjudication as it was not preceded by certain formalities of procedure. We incidentally note here, with satisfaction, that learned counsel did not pursue the stand adopted by

Baraza la Michezo Zanzibar in the High Court that in any event the High Court was devoid of power to hear the matter because it was provided that Baraza la Michezo Zanzibar decisions are final. The learned Chief Justice correctly construed Regulation 17 of GN 155 of 1985 to mean that such decisions can only be final within certain limits and limitations, beyond which the High Court's power to enquire into such decisions is not ousted.

2. That the learned Chief Justice applied inappropriate Football Regulations and was wrong to sustain the Zanzibar Football Association decision, and

3. That the learned Chief Justice should have directed that the matter be heard by a properly constituted Baraza la Michezo Zanzibar."

For the purpose of determining this appeal we think there was a good deal of chaff from which we must separate the grain. The two really relevant and important issues we have to consider and decide upon are whether the matter was properly before the High Court, in terms of procedure that is, as already indicated and, secondly, whether or not we can sustain the learned Chief Justice's holding that "*Hivyo ninakubaliana kabisa na uamuzi wa* Zanzibar Football Association *na nitatofautiana na ule wa Balaza AMBALO KWA KWELI HALIKUWA LA HALALI*"(capital letters employed for the sake of emphasis).

Mr *Muccadam* urged that the procedure adopted to reach the High Court was quite in the circumstances and further submitted that the learned Chief Justice's finding that there was not in existence of Baraza la Michezo Zanzibar to which Small Simba could have appealed was quite justified.

According to Mr *Maira*, the respondents should have sought to have the matter removed into the High Court by way of originating summons and obtain leave to apply for an order of *certiorari*. They should not have come by way of chamber summons and proceeded the way they did. During the learned exchanges in Court, however, Mr *Maira* conceded that *certiorari* was not the only remedy in such a situation. Instead of obtaining leave to apply for that order a party can reach the High Court, for example by way of review or by way of a suit. Under section 3(1) of the High Court Act, 1985, the High Court of Zanzibar has unlimited jurisdiction and we do not agree with Mr *Maira*'s suggestion that Miembeni could only have gone there by way of originating summons. This was in effect a suit brought in substantial compliance with the Civil Procedure Decree.

On the second vital issue the learned Chief Justice had this to say:

"Ni dhahiri kwangu pia kuwa muda wa miaka miwili wa hawa wajumbe umekwisha. Kwa niaba ya Miembeni imeelezewa kuwa Baraza lilianza kazi tarehe 1 Julai 1984. Tarehe hiyo haikukanushwa kwa niaba ya Baraza na wala haikutolewa tarehe ye yote. Hivyo nachukulia kuwa tarehe ni hiyo ya 1 Julai 1984."

Computing two years from 1 July 1984 we find that the lifespan of the Baraza la Michezo Zanzibar ended on 30 June 1984. The purported Baraza la Michezo Zanzibar decision was made on 28 July 1987. We do not wish to spend argument on the position of *ex officio* members in the Baraza la Michezo Zanzibar, how many of these were on the executive committee which made the purported Baraza la Michezo Zanzibar decision et cetera, because these matters would only be relevant only if we were satisfied that there was at the material time a Baraza la Michezo Zanzibar in existence. The evidence available establishes that the learned Chief Justice was correct in holding that Baraza la Michezo Zanzibar was non-existent at the material time. If there was any doubt over this, and we are satisfied there was none, it was removed by a government

press release made available one day after the High Court Judgment was delivered. The High Court judgment was delivered on 19 August 1987, the press release was on the morrow. According to the press release, a new Baraza la Michezo Zanzibar was constituted on that day, 19 August 1987, to take over from the previous one which had lapsed the previous 12 February 1987. So that even by this reckoning there was no Baraza la Michezo Zanzibar in existence when the purported Baraza la Michezo Zanzibar decision was made on 28 July 1987. If, as Mr *Maira* says, the old Baraza la Michezo Zanzibar was filling a vacuum before the new appointment, we only wish to say that, however well-meaning they might have been they were *incapax*, they simply had no authority to stand in for an institution which had ceased to exist. Mr *Maira* conceded that to extend the lifespan of Baraza la Michezo Zanzibar is not one of the powers conferred on the Minister responsible for Sports and, in any event, the Minister did not pretend to have such powers. As there was no Baraza la Michezo Zanzibar in existence, Mr *Maira* cannot rely on the authority of *Hemedi Marijani v Festo Ngowi* [1975] LRT CN 66 for the proposition that Ramadhani Chief Justice should have remitted the matter back to a properly – constituted Baraza la Michezo Zanzibar. There was none in existence at the material time and the learned CJ had of course no powers to order the formation of a Baraza la Michezo Zanzibar. It would have been futile for the High Court to make orders it had no power to follow up. In *Hemedi Marijani v Festo Ngowi* (*supra*) there was already the Rent Tribunal in existence.

The position is now therefore that because there was no Baraza la Michezo in existence at the material time, there was no Baraza la Michezo Zanzibar decision. The so-called Baraza la Michezo Zanzibar decision upsetting the Zanzibar Football Association decision declaring Miembeni the winners is therefore null and void. The Zanzibar Football Association decision therefore stands. There can be no appeal directly from Zanzibar Football Association to the High Court. Appeal from a Zanzibar Football Association decision lies to a properly-constituted Baraza la Michezo Zanzibar.

This appeal by Small Simba is without merit and is hereby dismissed with costs.

By way of postscript and hopefully without stepping on anybody’s toes, we wish to associate ourselves with the suggestion made by the learned Chief Justice that Baraza la Michezo Zanzibar would do well to avail itself of legal guidance. We wish to add that we were practically bewildered by the labyrinth of almost perennial crops of Regulations and Addenda issuing from Zanzibar Football Association which is an institution under Baraza la Michezo Zanzibar.

For the appellants:
Maira

For the respondents:
Muccadam

Southern Engineering Co Ltd v Mutia
[1986–1989] 1 EA 541 (CAK)

Division:	Court of Appeal of Kenya at Mombasa
Date of judgment:	10 September 1985
Case Number:	46/83
Before:	Hancox, Nyarangi JJA and Gachuhi AJA

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[1] Quantum of damages – Injury to left hand of employee by circular saw – No specific training and no guard provided – Loss of three fingers rendering the left hand functionally useless – Whether trial Judge correct in applying two previous High Court decisions, which relied on the English authorities, in measuring damages.

Editor's Summary

The plaintiff was employed as a mason by the defendant company, but worked in the carpentry section on an average of two days per month. On one such occasion, while attempting to split a length of timber by moving it towards a circular saw, the saw caught a knot in the wood, pulling the piece of timber and the plaintiff's left hand on to the saw, with the result that his hand was severely mutilated with the loss of the thumb and two fingers. No specific instruction in the operation of the saw was given to the plaintiff and no guard was provided.

The trial Judge found that the injury was caused by the defendant's negligence and breach of statutory duty and that the plaintiff was not guilty of any contributory negligence or breach of statutory duty. He awarded him the agreed special damages of KShs 17 040, KShs 86 400 for loss of future earnings and KShs 225 000 for pain, suffering and the loss of amenities of life. The defendant appealed, contending that the Judge had erred in relying on two previous decisions of Kneller J in the High Court at Mombasa dealing with hand injuries, particularly as those decisions were themselves based on authorities decided in England, where conditions differed substantially from those obtaining in Kenya in the social, economic and industrial spheres.

Held – Kneller J (as he then was) had not erred in paying regard in August 1982, to the English decisions cited to him in Otieno v Cabroworks Ltd Mombasa High Court civil case number 628 of 1978, and in Mutuya v Mbwika and another Mombasa High Court civil case number 442 of 1980, which he had in effect used as helpful indicators, a course which Madan JA had approved in Juma v Kenya Glass Works Ltd civil appeal number 1 of 1980.

Accordingly Schofield J had not erred in the instant case in considering the two decisions of Kneller J in the course of his judgment delivered in January 1983.

However, the position at the present day is that there exist sufficient decisions of the Kenyan courts on most of the aspects of the quantum of damages in personal injury cases. It is only where there are no Kenyan decisions on the specific injury in issue that resort should be had to English or other authorities, and then only as helpful indicators, bearing in mind the widely differing conditions that exist in other jurisdictions.

In future in personal injury cases, where there are Kenya decisions on the point, in which the main essentials bear in comparison with the facts of the one before the Court, and they otherwise bear a reasonable measure of similarity to it,

Kenyan decisions should be used to the exclusion of the others, save those from a neighbouring jurisdiction with similar conditions to those obtaining in Kenya.

Schofield J had, however, erred in failing to appreciate that the injuries in the two cases to which he paid attention were more serious than those in the instant case and accordingly the award for pain, suffering and loss of amenities would be reduced to KShs 160 000.

Per Nyarangi JA – Where there are Kenya decisions on the point, particularly when this Court has decided the matter, if there are no valid grounds for distinguishing on the facts, the Kenya decision should be preferred and used to the exclusion of the others with the exception of decisions of the highest courts of the two neighbouring countries of Uganda and Tanzania.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bhogal v Burbridge [1975] EA 285

Butt v Khan (1982–1988) 1 KAR 1

Gakere v Ngigi [1980] LLR 1286 (CAK)

Gugu v Pan Afric Hauliers Ltd High Court civil case number 213 of 1981

Juma v Kenya Glass Works Ltd [1980] LLR 1271 (CAK) – APP

Kimothia v Bhamra Tyre Retreaders [1971] EA 81

Mugo v Attorney-General High Court civil case number 1698 of 1980

Mariga v Musila civil appeal number 66 of 1982

Mutuya v Mbwika and another Mombasa High Court civil case number 442 of 1980 – **APP**

Mworia v Corrugated Sheets [1975] EA 240

Nyambai v Njagi High Court civil case number 579 of 1980

Opuka v Akamba Road Services Ltd High Court civil case number 1084 of 1976

Otieno v Cabroworks Ltd Mombasa High Court civil case number 628 of 1978 – **APP**

Shabani and another v City Council of Nairobi [1984] LLR 208 (CAK)

Ugenya Bus Services v Gachoki [1981] LLR 1316 (CAK)

Zablon Mariga v Morris Wambua [1983/4] 2 KCA 204

United Kingdom

Beadle v Letraset [1981] CLY 637

Chan Wai Tong v Li Peng Sum [1985] 1 WLR 396

Clare v Lambeth, Southwark and Lewisham Area Health Authority [1978] CLY 753

Dharam Kaur v Samuel Groves and Co [1980] CLY 698

Dimmock v Miles [1969] CA 436

H West and Son Ltd v Shepherd [1964] AC 326

Harris v Empress Motors [1983] 1 WLR 65

Lee Ting-Lam v Leung Kam-Ming [1980] HKLR 657

Pickett v British Rail Engineering Ltd [1979] 1 All ER 774

Selvanyagam v University of the West Indies [1983] 1 WLR 1235

Singh v Toong Fong Omnibus Co Ltd [1964] 1 WLR 1382

Skelton v Collins [1966] 115 CLR 94

Tomes v West Midland Area Health Authority [1977] CLY 789

Judgment

Hancox JA: The respondent, who was aged 39 years at the material time and was a family man with six children, was employed by the appellant company, the Southern Engineering Company Limited, as a casual labourer in 1976. The appellants are marine engineers, ship repairers, boat builders, and have a factory and shipyard at Mbaraki.

From 1 March 1978, the respondent was engaged on permanent terms by the company as a mason and also to assist in the carpentry part of the business. When there was no masonry work he would be assigned to the carpentry section, the foreman of which was Mr Andrew Muli. Mr Muli would detail the work which the respondent was to do when he was engaged in the carpentry section, which was, on average, two days per month. This work included the operation of a circular saw in which the respondent received no specific training, but he did obtain instructions from Mr Muli. He also watched other persons working on the machine and learned how to use it. It appears that there was no guard provided on the circular saw, and that nobody told him to use a guard.

On 27 March 1979, over a year after he was employed on a permanent basis, the respondent met with an accident while attempting to split a length of timber with the circular saw by pushing it towards the rotating blade. The piece of timber had a knot in it, and suddenly moved forward, and the respondent's left hand was caught by the saw. He had no prior instruction as to how to deal with timber which had a knot in it.

The respondent suffered severe mutilation of his left hand, losing the thumb, ring and middle fingers by amputation. The remaining fingers have a permanent deformity and the index finger can only be moved passively but not actively. The result is that, according to the orthopaedic surgeon who treated him, Mr DS Brahmbhatt, the respondent's left hand is functionally useless. The degree of disability which he suffered was stated by Mr Brahmbhatt to be 30% on 4 May 1979, just over a month after the accident, but this was revised upwards in the next report dated 4 March 1981, almost two years after the accident, at approximately 45%.

The respondent gave evidence as to the state of his incapacity as a result of the accident. He lost the job he previously had and was eventually given work in the company's store. He cannot do any work or activity which involves both hands. He cannot, for instance, ride a bicycle. He cannot cook or cut meat, and he has difficulty in dressing. He can do some work on his shamba with a panga, and this was rightly taken into account by the trial Judge in considering the loss of his future earning capacity, which he assessed at KShs 86 400. There was no appeal against this part of the learned Judge's decision, or as regards the special damages, which were agreed. Neither was there any appeal on the issue of liability.

The only matter, therefore, with which we are concerned in this appeal is the learned Judge's award of KShs 225 000 for pain, suffering and loss of amenities of life, which the appellant company claim in grounds 2 and 5 of the

memorandum of appeal is so inordinately high as to represent an error of principle in awarding them, and to be an entirely erroneous estimate.

Since, as I understood him, Mr *Inamdar*, who appeared for the appellant in the appeal, conceded that some allowance had to be made for inflation in any comparison with previous awards for similar injuries, and eventually abandoned ground 4, the only other ground of appeal which is realistically for our decision is the third one, which is couched in somewhat curious terms. It first says, correctly, that the trial Judge in this case (Schofield J) relied on two awards in respect of similar injuries to the right and left hand respectively which had been made also in Mombasa, by Kneller J (as he then was), in *Otieno v Cabroworks Ltd* High Court civil case number 628 of 1978, and *Mutuya v Mbwika and another* High Court civil case number 442 of 1980. However, this ground goes on to say that Schofield J erred in failing to appreciate that those two awards were based on faulty reasoning and inadequate evidence and were themselves out of line with the general level of awards made in Kenya for comparable injuries. Framed as it was, it would lead all but the most perspicacious to conclude that this was an attack on Kneller J's reasoning in those cases.

It turned out, however, when Mr *Inamdar* developed his argument, that the gravamen of his complaint was not against Kneller J's intrinsic reasoning, but against his reliance on English decisions when he was measuring the damages in those cases. Moreover, Mr *Inamdar* was able to point to a number of decisions of this Court, some of them very recent, in which English case law had been, if not used, certainly referred to for the purpose of the assessment of damages, notably *Mariga v Musila* civil appeal number 66 of 1982. In *Shabani and another v City Council of Nairobi* [1984] LLR 208 (CAK) all three Judges of Appeal cited *Mativo Mutuya*'s case, apparently with approval, which implied that this Court accepted in principle that English awards were relevant to the conditions obtaining in this country, which are in truth vastly different.

Mr *Inamdar* submitted that there was a considerable body of case law in Kenya regarding awards for damages. Accordingly, whatever moment in time may have been the starting point for this to happen, the time had now arrived when its court should no longer pay regard to cases from the United Kingdom if they were concerned, as in the instant case, with that which he called "value judgments" that is to say those which were expressed in monetary terms. These should reflect the values and conditions existing in the country in which the award is being made.

It was apparent, Mr *Inamdar* said, that in many cases until now in the High Court and Court of Appeal regard had been had to English decisions, to be used, at the very least, as a guide in arriving at an award. This, he submitted, was a bad practice because conditions in Kenya differed socially, economically and industrially, and, indeed, in almost every sphere, from those applicable in Britain. He conceded that it may still be right to follow and apply English decisions in Kenya, since they are both common law countries, where some principle of law is involved, as for instance in *Zablon Mariga v Morris Wambua* [1983/4] 2 KCA 204 where this Court applied the *Pickett v British Rail Engineering Ltd* [1979] 1 All ER 774 concept of the lost years in upholding the decision of the Judge at first instance on this aspect. But in a case concerning the quantum of damages it was incumbent on the Court, when considering the case of

the average Kenyan, as opposed to a highly skilled person such as a surgeon or a lawyer, to award him a sum which is his due in accordance with the conditions prevailing in Kenya, and with his concept of the value of money and that which a particular monetary unit would buy. Any other course, Mr *Inamdar* said, would result in the award not being fair to both parties to the case. There is support for Mr *Inamdar*'s view in the opinion of Lord Morris in *Singh v Toong Fong Omnibus Co Ltd* [1964] 1 WLR 1382 at 1386, when he said:

> "As far as possible it is desirable that two litigants whose claims correspond should receive similar treatment just as it is desirable that they should both receive fair treatment. Those whom they sue are no less entitled."

Accordingly, apart from the exceptional instance where no local decision is available, on the point at issue (and even then, Mr *Inamdar* said, it should be possible, if confronted with an unusual situation, for a Judge to be able to rely on his own ingenuity and skill to arrive at a correct figure) he invited this Court to rule that in future regard should only be had to Kenya decisions, and not to English awards, even by way of guidance.

In the instant case it is said that there were five decisions cited to Schofield J of which he in effect discarded three. All these were Kenya decisions and it appears that no English cases were cited to Schofield J on the issue of the quantum of damages. There is no dispute about that. However, the two decisions on which the learned Judge relied in assessing quantum, and on which he obviously based his award, were those of Kneller J sitting in Mombasa at first instance, to which I have referred. In *Otieno v Cabroworks* the injured plaintiff was a labourer aged 29 at the time of the accident in which his right hand was severely injured by being caught in the rollers of an embossing machine. The injuries to that hand were, if anything, worse than in the instant case, except that the thumb remained intact, and it was of course an injury to the right and he was said to have been right handed. The general damages for pain, suffering and loss of amenities awarded by Kneller J were KShs 225 000, as in this case. Three English decisions were cited to him by Mr Talati who then appeared for the plaintiff. These were *Dharam Kaur v Samuel Groves and Co* [1980] CLY 698, where the female plaintiff aged 47 suffered amputation of two fingers of the right hand, and received £13 500, that is to say the equivalent KShs 270 000 if parity is assumed; *Beadle v Letraset* [1981] CLY 637, where a man aged 36 suffered amputation through the metacarpals of his right hand, leaving him with an unsightly mobile stump, and was awarded £20 000 (KShs 400 000); and *Tomes v West Midland Regional Health Authority* [1977] CLY 789 in which a married woman of 42 lost all the fingers and half the thumb of her right hand and received £12 000 (KShs 240 000).

Although Kneller J cited two local decisions of his own at Mombasa, *Yongo Nyambai v Francis Njagi* High Court civil case number 579 of 1980, and *Sevillino Gugu v Pan Afric Hauliers* High Court civil case number 213 of 1981, these involved much less serious injuries (the latter being undisputed evidence on formal proof) and a reading of the relevant portion of his judgment in *Joanes Otieno*'s case in any view shows very clearly that Kneller J paid attention to the English decisions as bearing a reasonable degree of similarity to the one he was considering.

The position was similar in the second case on which Schofield J relied, *Mativo Mutuya v Wilfred Mbwika and another*. That was a traffic accident in which the plaintiff had his left hand and forearm crushed and the award for pain,

suffering and loss of amenities was KShs 250 000. However, Kneller J's approach to the problem in that case was slightly different. He paid regard to two English cases, *Clare v Lambeth, Southwark and Lewisham Area Health Authority* [1978] CLY 753, and *Beadle v Letraset*, which I have already set out. In the former a boy of 8 was incorrectly treated in hospital for a fracture and was left with a mutilated, stiff and almost useless left forearm and hand. He was awarded £15 000 (KShs 300 000). The Judge, after making due allowance for inflation, considered that the appropriate award in England in August 1982 would be between £24 000 and £25 000. He then halved that figure so as to reflect the differences between the circumstances of artisans and manual workers in England and Kenya, and awarded KShs 250 000.

Mr *Inamdar* argued that the mere fact the Kneller J used the English decisions in *Mativo Mutuya*'s case, as the basis for his award, notwithstanding that he divided it by two so as to bring the figure into line with local conditions, showed that he was considerably guided by those decisions, and that there was no warrant for dividing that sum by two, or by any other arbitrary figure, which would not have the same effect as if the figure had been arrived at by basing it upon local awards and conditions. The fallacy of this approach, Mr *Inamdar* said, was manifest if the test stated by Law JA in *Kimothia v Bhamra Tyre Retreaders and another* [1971] EA 81, namely the relation of the plaintiff's gross annual earnings to the figure awarded, is adopted, because the amount of the awards in the English cases cited in *Mativo Mutuya*'s case was taken to be £25 000, in 1982, which was only just over three times the average gross income for an English workman, as shown by the cutting from *The Times* included in his bundle of authorities. In the instant case the respondent's gross income before the accident was KShs 14 400 per annum. If divided into the award that would represent over fifteen-and-a-half times the respondent's gross income. An approach Mr *Inamdar* favoured in this case was a comparison with the case of *Selmith Mugu v Attorney-General* High Court civil case number 1698 of 1980, a decision of my own at first instance, in which a youth of 14 had his entire right arm amputated and was awarded KShs 180 000 in November 1982, just two months before the decision in this case. On that basis he said, plus the two earlier cases of *Kimothia v Bhamra Tyre Retreaders* (*supra*) and *Mworia v Corrugated Sheets Ltd* [1975] EA 240, as increased to take account of the fall in the value of money, a just and fair award in the instant case would be in the region of KShs 150 000.

Finally, Mr *Inamdar* emphasised the undesirability of very high awards and the consequent injury to the body politic in a country like Kenya, and that the Courts have a duty to avoid the obvious danger that sums award by way of damages will get out of hand. Unless local decisions only were consulted it would be impossible to achieve that decree of uniformity which is so essential when awards of damages are being considered.

Having, I hope, summarised Mr *Inamdar*'s submissions in this case adequately and fairly, bearing in mind the manifest importance of the proposition he advanced, I now turn to those of Mr *Gautama* on behalf of the respondent. He said the time had not yet come to depart from the practice which this Court had followed for the past 80 or 90 years and which was obviously derived from both the English and Indian systems of law, and to jettison all the English authorities on a quantum of damages. To do this, he said, would be to adopt an

isolated and insular approach which was out of place for a country like Kenya in a modern and fast-changing world.

The Courts in Kenya, Mr *Gautama* said, had never blindly or slavishly followed English decisions but had paid regard to them as part of the exercise of their discretion in assessing the right amount to be awarded in personal injury cases, and that the real value of these decisions had been in their reasoning. To lay down as a rule of law that the Courts may not in future look to English decisions for guidance would be unreasonably to circumscribe or fetter the essential element of the discretion of each Judge as he approaches the difficult task of measuring damages in any given case. Indeed, many of the common-law countries such as Australia, Canada, the United States of America and even India, still relied on English cases in the development of the law in their respective countries.

It is trite law that the measurement of the quantum of damages is a matter for the discretion of the individual Judge, which of course has to be exercised judicially and with regard to the general conditions prevailing in the country generally, and to prior decisions which are relevant to the case in question. This is shown by a passage from an English case in the house of Lords to which reference has often been made in this Court, but I think illustrates Mr *Gautama*'s point that it is the quality and calibre of the judgment in question which is its most important factor, and that the reference to other and possibly to outside decisions is, in a sense, incidental to that. That passage is from Lord Morris's speech in *H West and Son v Shephard* [1964] AC 326 at 353, and reads as follows:

> "The difficult task of awarding money compensation in a case of this kind is essentially a matter of opinion of judgment and of experience. In a sphere in which no one can predicate with complete assurance that the award made by another is wrong the best that can be done is to pay regard to the range and limits of current thought. In a case such as the present it is natural and reasonable for any member of an appellate tribunal to pose for himself the question as to what award he himself would have made. Having done so, and remembering that in this sphere there are inevitably differences of view and of opinion, he does not however proceed to dismiss as wrong a figure of an award merely because it does not correspond with the figure of his own assessment."

As Mr *Gautama* rightly said the onus is on the appellant company in this case to show that the award of Schofield J was so inordinately high as to represent an entirely erroneous estimate of the compensation to which the respondent is entitled – see Law JA in *Butt v Khan* (1982–1988) 1 KAR 1 – a test which has since been accepted as the standard one to be applied by this Court in approaching the difficult question of considering the correctness or otherwise of an award of damages on an appeal therefrom.

Of course, as Mr *Gautama* said, it is inevitable in any system of law that there will be disparity in awards made by different courts for similar injuries. No two cases are precisely the same, either in the nature of the injury or in the age, circumstances of, or other conditions relevant to, the person injured. The most that can be done is to consider carefully all the circumstances of the case in question, and to consider other reasonably similar cases when assessing the award. The duty in this respect is well stated, again by Lord Morris in *Jag Singh*'s case (*supra*) at 1385, as follows:

> "It need hardly be emphasised that caution has to be exercised when paying heed to the figures of awards in other cases. This is particularly so where cases are merely

> noted but not fully reported. It is necessary to ensure that in main essentials the facts of one case bear comparison with the facts of another before comparison between the awards in the respective cases can fairly or profitably be made. If, however, it is shown that cases bear a reasonable measure of similarity then it may be possible to find a reflection in them of a general consensus of judicial opinion. This is not to say that damages should be standardised or that there should be any attempt to rigid classification. It is but to recognise that since in a court of law compensation for physical injury can only be assessed and fixed in monetary terms the best that courts can do is to hope to achieve some measure of uniformity by paying heed to any current trend of considered opinion."

The award in the present case was in any case, Mr *Gautama* submitted, by and large in line with the other decisions in Kenya on similar injuries. The award in *Joanes Otieno v Cabroworks*, where the accident occurred on 14 September 1978 and the date of judgment 27 August 1982, was KShs 225 000, and that in *Mativo Mutuya v Wilfred Mbwika and another*, in which the accident took place on 31 March 1980, and the judgment on 20 August 1982, was KShs 250 000. Even the award in *Selmith Mugo*'s case, in which judgment was given three months later, was not grossly disparate to the present one, given the individual exercise of discretion by different Judges. Even if the award of Sheridan J ten years ago in *Mworia v Corrugated Sheets Ltd* (*supra*) was considered the KShs 50 000 assessed in that case for serious injury to the plaintiff's left hand would probably have been even greater than the instant award today, bearing in mind the incidence of inflation, which it is now well settled should be taken into account when comparing earlier awards. Going even further back in time, the KShs 20 000 awarded by Harris J in *Kimothia v Bhamra Tyre Retreaders* [1970] EA 408, which was upheld on appeal, and in which Law JA made that which seems to have been the first pronouncement regarding foreign awards, was commensurate with the present sum, bearing in mind an even greater fall in the value of money since then. I observe that, even, in the "useless claw" case (*Opuka v Akamba Public Road Services Ltd* High Court civil case number 1084 of 1976), Muli J made an award of KShs 170 000 in July 1977.

After taking us through an exercise of comparing the prices paid by the average man in the street for certain basic commodities over the years, the next case Mr *Gautama* referred to was *Gakere v Ngigi* [1980] LLR 1286 (CAK) in which there were quite different injuries from an accident to the respondent on 13 July 1975. Simpson AJA, as he then was, who delivered the leading judgment, upheld an award of KShs 220 000 for general damages (less 10% for contributory negligence). At page 8 of his judgment Simpson AJA, in reference to the earlier case of *Bhogal v Burbridge* [1975] EA 285, said:

> "The learned Judge in the present case made no mention of inflation. Whether or not he had it in mind there is no doubt that, had the case been heard today (ie January 1981) the Court could have awarded Mr Burbidge a very much higher figure."

In that same case Madan JA made the pronouncement to which Schofield J referred at the end of his judgment in the instant case which, Mr *Gautama* submitted, showed a very definite upward trend in the thinking of this Court as regards sums to be awarded in personal injury cases.

Even more definite regarding the upward trend was the statement made by Madan JA 21 months later in *Ugenya Bus Services v Gachoki* [1981] LLR 1316 (CAK) where there was a hand injury but also the amputation of the right leg, as follows:

> "I also know that the days of small and stingy awards are gone. They were decidedly miserly in any event, like KShs 20 000 for loss of a forearm or KShs 50 000 for loss of an eye. Even without the course of inflation they were niggardly. I remember but ignore them. We have inflation with us. We all have to live with the exorbitance which inflation has brought into our lives."

The foregoing was further reinforced, if such reinforcement were needed, Mr *Gautama* said, by the citation of the words of Sachs LJ in *Kemp and Kemp on Damages* (4 ed) Volume 1, where he said: in *Dimmock v Miles* [1969] CA 436:

> "The notional scales applied by Judges when assessing damages in personal injury cases are nowadays apt to change with ever-increasing rapidity. One, but only one, of the causes of such changes is the ever-decreasing worth of monetary units."

This indeed was no more, and no less, what the learned Judge said in the instant case at the very end of his judgment. Accordingly Mr *Gautama* urged us to uphold the learned Judge's figure in this case and to dismiss the appeal with costs.

Notwithstanding the phraseology of ground 3 of the memorandum of appeal, to which I have already made reference, it seems to me that Schofield J could not be criticised for considering the decisions of his predecessor in Mombasa in *Joanes Otieno*'s case and in *Mativo Mutuya*'s case, both of which involved injuries which, to use Lord Morris's, words bore a reasonable measure of similarity to the instant one, notwithstanding that one case involved the right hand and in the other the arm was crushed as well as the hand; always remembering that the range of such cases, at this stage of the development of Kenya common law, is of necessity much narrower than in England.

Neither do I think that it is correct to say that Schofield J discarded or disregarded the three earlier Kenya cases, but rather that he considered them in the way I indicated when summarising Mr *Gautama*'s submissions on behalf of the respondent, namely that they occurred several years ago, and that in the light of recent authorities some allowance for the effects of the fall in the value of the Kenya Shilling has to be made when comparing those awards with the present day.

However, that, as I said, is not the burden of Mr *Inamdar*'s argument, which is that Schofield J, as it were, secondarily relied on English authorities by applying Kneller J's two decisions, which, as I think I have shown, clearly did apply them directly. Mr *Gautama* argued that there was all the difference between halving the English awards by a simple arithmetic, and stating that the pattern of the awards in Kenya is "usually about half" those in England. He said it was a perfectly proper exercise for Kneller J to have undertaken in relation to the authorities cited to him in *Mativo Mutuya*'s case.

I have already referred to Law JA's words in *Kimothia v Bhamra Tyre Retreaders and another*, in which he also said that awards made by foreign courts, though helpful as a guide, do not necessarily represent the standards which should prevail in Kenya, where the conditions relevant to the assessment of damages, such as wages, rents and cost of living generally, may be very different. More recently Madan JA said in *Juma v Kenya Glass Works Ltd* [1980] LLR 1271 (CAK) at 6 of his judgment:

> "I treat with respect the awards of general damages for injuries made in other jurisdictions as helpful indicators. Those awards are made taking into account the socio-economic conditions in their own country which are usually not close enough to the conditions in Kenya to be reasonably comparable. We are mature. We have to reach our own measures of damages for different types of injuries and compensations for personal loss such as will fit in with the demands, the conditions, the exigencies, the

> circumstances and our peculiarities so that they will groove in realistically with the pattern of life in Kenya."

When I was considering a similar submission in *Shabani v City Council of Nairobi* (*supra*) I said, after referring to *Chan Wai Tong v Li Peng Sum* [1985] 1 WLR 396, that since the most conveniently assembled awards of damages in injury cases appeared in the reports and collections of reports of English authorities, which are widely available in Kenya, it was natural that practitioners would gravitate towards them: a practice which I thought then should not be discouraged, provided the differences between the conditions obtaining in Kenya and England were borne in mind.

Mr *Inamdar* was good enough to say that he only has a limited quarrel with that which I said in that case, in the light of *Chan Wai Tong*'s case, in which the Privy Council quoted Lord Morris's words in *Jag Singh*'s case at 1385 of the report, as follows:

> "In deciding this appeal their Lordships think that three considerations may be had in mind:
>
> (1) That the law as to the factors which must be weighed and taken into account in assessing damages is in general the same as the law in England.
>
> (2) That the principles governing and defining the approach of an appellate court that is invited to hold that damages should be increased or reduced are the same as those of the law in England.
>
> (3) That to the extent to which regard should be had to the range of awards in other cases which are comparable such cases should as a rule be those which have been determined in the same jurisdiction or in a neighbouring locality where similar social, economic and industrial conditions exists."

So there are two pronouncements of considerable weight, the Privy Council's decision and the words of Madan JA in Juma v Kenya Glass Works Ltd (supra), regarding the use of the case decided in other jurisdictions for the purpose of assessing damages, the one in which it is said that it should be limited to those from a neighbouring jurisdiction where similar conditions exist, and the other that those from, for example, the United Kingdom, may be treated as helpful indicators.

Chan Wai Tong's case (*supra*) concerned an award for pain, suffering and loss of amenities of HK$27 500 to a female passenger in a minibus who, as a result of the negligence of the driver, suffered severe back injuries. This was increased to HK$90 000 on appeal on the ground that the disability fell into the category of "serious injury", within the guidelines laid down by a parallel division of the Court of Appeal, and the Privy Council upheld that award. In the course of the opinion, delivered by Lord Fraser, the Board referred to two other recent Privy Council cases, *Selvanayagam v University of the West Indies* [1983] 1 WLR 585 and *Ratnasingam v Kow Ah Dek* at 1235 of the same volume. In the former a university professor suffered severe injury to his ankle by falling into an unlighted trench. The Board declined to substitute its own figure for the erroneous award of the trial Judge on the ground that they lacked sufficient knowledge of local circumstances, and, indeed, of the character and personality of the claimant, and therefore remitted the case for reassessment to the High Court of Trinidad and Tobago.

However, in the latter case, which involved a teacher who was seriously injured in a motor accident, the Board held that the protracted delay in the conclusion of the claimant's case was such that finality had become a priority in

order to do justice. They in effect inverted the test they had themselves used in the earlier, 1983, case and decided that they:

> ". . . would not be deterred from making their own assessment of damages unless it can be demonstrated that they do not have the material or the knowledge of the circumstances to reach a reasonable and just conclusion . . . If therefore the need arises, their lordships are in a position to make their own assessments and will do so."

It does not appear, however, in that case that they needed to do so as regards the award for pain, suffering and loss of amenities, for the only question in dispute remaining for the Board's decision was the award for loss of future earnings; a matter not now in dispute in the instant appeal.

In confirming the award of the Court of Appeal of Hong Kong in *Chan Wai Tong*'s case the Privy Council specifically approved this statement of Cons JA, in an earlier case:

> "We think it is now accepted without question that in this (ie the Hong Kong) jurisdiction the appropriate standards are to be found in the decision of the Courts of this Colony and not in those of England and Wales or any other jurisdiction."

They therefore, as if by express disapproval, rejected the Court of Appeal's disagreement in the case which they were considering with the earlier statement of Cons JA in *Lee Ting-Lam v Leung Kam-Ming* [1980] HKLR 657, which I have just set out. They, however, decided that the wording of the passage in which the disagreement was expressed showed that the opinion of the Court of Appeal in favour of paying attention to the level of awards outside Hong Kong, and especially in England, had not affected their reasoning in arriving at the HK$90 000 figure, which was on the basis of it being bracketed into the serious injury category.

I revert to the issue which has been raised, directly for the first time in Kenya as far as I am aware, in the instant case. I do not know what the position is in Hong Kong regarding the sufficiency or otherwise of local decisions. There was no material adduced to guide us on that point. I have demonstrated that both the decisions of Kneller J, not only "paid attention" to the English cases cited but in fact allowed them to be used as guidelines, even if in the first case the level of the awards was halved, whereas no such fraction was applied in the second, in which the Judge expressly referred to Law JA's earlier test in *Kimothia v Bhamra Tyre Retreaders* (*supra*). The question for our decision is, was he right in so doing?

For my part I cannot say that in my opinion Kneller J (as he then was) erred in paying regard to the English decisions cited to him in those two cases. But they were three years ago. Madan JA's observation in *Juma*'s case, that they were to be used as helpful indicators, was made two years before that, and I think with respect that that was all Kneller J did. He did not apply the same yardstick in both cases. In the former he referred to *Clare*'s case in which, in 1978, the plaintiff was awarded £15 000 (KShs 300 000, assuming parity) and *Beadle v Letraset* in which, in 1981, the plaintiff received £20 000 (KShs 400 000). He brought that up to 1982 and reduced the sum so arrived at fortuitously by half so as to take account of Kenya conditions. In the latter case, *Joanes v Cabroworks*, he referred additionally to *Dharam Kaur v Groves*, a 1980 case, where the plaintiff received £13 500 (KShs 270 000), and to *Tomes v West Midland Health Authority* where the award in 1977 was £12 000 (KShs 240 000). In that case his award was similar to the English cases. This analysis shows that all Kneller J did in my opinion, was to use those English decisions as helpful indicators.

What, then, is the position at the present day, fortified as we are by more decisions of the Courts of record and an ever-increasing number of claims for personal injuries before them? In my judgment the position should in future be that in the cases in which there are Kenya decisions on the point, in which, as Lord Morris said, the main essentials bear comparison with the facts of the one before the Court, they otherwise bear reasonable measure of similarity to it, Kenya decisions should be used to the exclusion of the others, save those from a neighbouring jurisdiction with similar conditions to Kenya. Only when there are no local decisions on the point should resort be had to English or other authorities, and then only as helpful indicators, as Madan JA said. I refer of course to awards for personal injuries only. To that extent only, then, do I reiterate that which I said on the subject in *Shabani v City Council of Nairobi* (*supra*).

Applying the principles I have endeavoured to extract to the present situation I find not only that Schofield J did not err (save in the respects stated below) in referring to Kneller J's two decisions less than six months earlier, but that Kneller J did not err in his decisions, both of which, in August 1982, paid attention to the English decisions cited to him by way of helpful indicators.

Accordingly did Schofield J erred in his award, apart from his secondary reliance on the English decisions cited by Kneller J? The injury was undoubtedly a severe one but the respondent retains his mobility, his ability to work on his shamba and his general enjoyment of the amenities of life. True he cannot work at his former trade as a mason or carpenter, according to the evidence, but there are still many things he can do. Moreover, the injury was not to his right hand, he being a right-handed man, but to his left. In that respect Schofield J failed to appreciate that there was an essential distinction between *Joanes v Cabroworks* and the instant case, and that in that case the injuries to the hand were more severe. The degree of disability in that case was assessed at only 32% to 35%. In the instant case it was, incredibly, assessed at 45%. Whether this was of the hand only, or overall disability, is not clear.

As regards *Mativo Mutuya*'s case not only the hand, but, the left arm also, was crushed in the accident. This involved lacerations to the arm and subsequent skin grafting. There was a loss of movement in the left elbow. Those were all in addition to the left hand injury which involved loss of movement in all the fingers save the little finger. The only use the left arm had was to push or pull objects or to move from side to side something in both hands.

In my view Schofield J did not err in referring to Kneller J's decisions but he did err in failing to appreciate that there were essential differences in degree between the injuries in those cases and in the instant one, I would regard the injuries in this case as less serious than in either of Kneller J's cases, and, had Schofield J appreciated this, he would have awarded considerably less by way of damages for pain, suffering and loss of amenities than he did. On all the available material in the case I would award the respondent KShs 160 000 under his head and I would substitute that figure for Schofield J's award. I would therefore allow the appeal to that extent only.

As regards costs we have not heard of any specific argument thereon. The award I have proposed is approximately 70% of the High Court award. In these circumstances I would make no order as to the costs of this appeal.

Nyarangi JA: The facts giving rise to this appeal, the submissions of the advocates for the parties and the law have been related in such detail by Hancox JA, whose judgment I have had the advantage of reading in draft, as renders it unnecessary for me to add anything in that regard.

To my mind there is considerable merit in Mr *Gautama*'s general contention that we should not become inward-looking, parochial, insular and isolated in the course of developing a Kenyan jurisprudence. Decisions of English courts are never blindly accepted and applied here. The quality of the judgments and the approach adopted by the English courts in dealing with issues raised under legislation similar to some of our own persuade Kenyan courts to adopt a similar approach whenever and whenever local circumstances permit. Not that Kenya courts are alone in taking that course.

In *Harris v Empress Motors Ltd* [1983] 1 WLR 65 at 70, McCowan J referred to the case of *Skelton v Collins* [1966] 39 ALJ 480 a decision of the High Court of Australia when dealing with the aspect of "lost years" and awards under that head in respect of an adolescent, just embarking upon the process of earning. McCowan J found assistance in the view of the High Court of Australia that in those circumstances the value of "lost year", might be real but would probably be assessable as small. It would appear from the judgment of McCowan J that earlier decisions of English courts had not had an opportunity to consider that particular aspect of "lost years" as a head for claim by a newly employed adolescent. Reliance on ingenuity *per se* would in my view stultify argument and thought. Mr *Inamdar,* who argued the novel submissions ably and ingeniously had yet to support his contention with decided cases.

I completely agree with Hancox JA in his view that as regards awards for personal injuries, where there are Kenya decisions on the point, particularly where this Court of last resort has decided on the point, and if there are no valid grounds for distinguishing on facts, then the Kenya decision should be preferred and used to the exclusion of the others, with the exception of decisions of the highest courts of the neighbouring countries of Uganda and Tanzania whose conditions are similar to Kenya. To that extent, I would approve the principle in *Chan Wai Tong*'s case and hold that the proper standards for awards for personal injuries are to be found in the appropriate decisions of the Courts of Kenya or exceptionally, decisions of the Highest Courts of Uganda and Tanzania.

If there are no Kenyan decisions on the point, English or Commonwealth or USA authorities may be used as some sort of parameter.

I agree with Hancox JA for the reason he gives that the award of KShs 225 000 was plainly based on a mistaken view of the material injuries and this Court should interfere and reduce the award to KShs 160 000. I agree with the order proposed by Hancox JA on costs.

Gachuhi AJA concurred in the judgments of Hancox and Nyarangi JJA.

For the appellant:
IT Inamdar

For the respondent:
Satish Gautama and *KM Pandya*

Specialised Engineering Co Ltd v Kenya Commercial Bank Ltd
[1986–1989] 1 EA 554 (CAK)

Division: Court of Appeal of Kenya at Nairobi

Date of judgment: 11 March 1988

Case Number:	131/84
Before:	Platt, Apaloo JJA and Masime AJA
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[1] Compromise – Whether a consent order on an interlocutory application for an injunction could result in a compromise of the main suit – Order XXIV, rule 6 – Civil Procedure Rules.

Editor's Summary

The plaintiff bank (KCB) granted a loan to Morris and Company Limited, the repayment of which was secured by a charge over a piece of land and a debenture on its movable assets. In January 1978, KCB appointed a receiver under a power contained in the debenture and when the receiver sought to take possession of the movable assets, he noticed that the defendant (SECL), who was a tenant of a portion of the building on the land charged, was in the process of removing certain fixtures and fittings from the leased premises. KCB thereupon filed a suit against SECL claiming an injunction restraining the defendant from removing any fixtures (without identifying them) from the premises and obtained an *ex parte* interim injunction to that effect. SECL counterclaimed for an injunction restraining KCB from preventing SECL from removing "tenant's fixtures, fittings and chattels" (which it listed in an exhibit marked exhibit "A"), and damages. The defendant also applied for the discharge of the *ex parte* injunction obtained by KCB. On the application coming on for hearing, the following consent order was recorded.

> "Order by consent:
>
> 1. The defendant (applicant) to have released to it forthwith the fittings, fixtures and chattels as per particulars given in exhibit 'A' attached to the affidavit of JAP Morris dated 3 August 1979 and for this purpose the defendant (applicant) to have free access to premises land registration number 209/8201 Mogadishu Road to remove the said fitting, fixtures and chattels without any interference by the plaintiff and or its agents
> 2. Order dated 31 May 1979 varied to the said extent
> 3. Costs of this motion to the defendant (applicant)."

Some time later, KCB applied to have the consent order set aside or varied but failed both in the High Court and in the Court of Appeal with the latter court "adopting" as its own judgment the order of the High Court dismissing KCB's application. The defendant SECL then applied to the High Court, *inter alia*, for orders that:

> "1. KCB's suit be dismissed with costs on the ground that as a result of the consent order, the sub-stratum of the suit had gone;
> 2. KCB should return the fixtures and chattels referred to in the consent order; and
> 3. SECL's counterclaim for damages be allowed to proceed to hearing."

KCB resisted the application on its hearing, the High Court dismissed it, principally, on the grounds firstly that the "main" suit could not, in law, be disposed of by an order made on an interlocutory application and, secondly, that it was impossible to say whether the consent order related to the fixtures referred to in KCB's plaint and it could not therefore be said that the sub-stratum of the suit had disappeared.

SECL appealed.

Held – A consent judgment or order may be entered either on the hearing of a suit or on the hearing of an interlocutory application eg for an interim injunction.

The ambiguity resulting from the lack of identification of the "fixtures" in the plaint was, in the events which happened, cured by the defendant's exhibit "A" and the consent order therefore required KCB to redeliver the items listed in that exhibit to SECL.

The consent order estopped KCB from denying that the fixtures and chattels mentioned in exhibit "A" belonged to SECL or that SECL was entitled to their peaceable return.

The consent order could be formalised in a decree and thereafter enforced by execution under Order XXIV, rule 6 of the Civil Procedure Rules.

The substratum of KCB's suit had disappeared and it should therefore be dismissed.

SECL should have leave to list its counterclaim for hearing.

Per Platt JA – A court ought to be very careful before finding that an order on an interlocutory matter is metamorphosed into a final decree. That can however happen if there is a compromise of the suit by the parties in the shape of a consent order which ends the dispute.

No cases referred to in judgment

Judgment

Platt JA: I have had the advantage of studying the judgment of Apaloo JA in draft and I agree in the result. As we are differing from the opinion of the learned Judge, I add a few comments of my own.

I agree with the underlying approach of the learned Judge that the Court ought to be very careful before finding that an order on an interlocutory matter is metamorphosed into a final decree. That can, however, happen if there is a compromise of the suit by the parties in the shape of a consent order which ends the dispute. As Apaloo JA has demonstrated with the support of comments in *Halsbury's Laws of England* (3 ed) Volume 22 at 765:

> "A consent judgment or order may be taken on the hearing of an action commenced by writ or on some interlocutory application therein such as a motion for injunction."

There are then the further steps to be taken under Order XXIV, rule 6 of the Civil Procedure Rules. But, of course, there must truly be a consent order, which has the effect of a compromise of the issues in the suit. Again it is well for the Court to be fully satisfied that is the position. The High Court was not sure that was the position and gave the parties the opportunity to have the case determined on its merits. The burden of this appeal is whether the situation was

so clear that the plaintiff had forfeited his right to put evidence before the Court, that the High Court had exercised its discretion wrongly (however desirable it may be in general to lean towards a trial on the merits, where there is doubt that all the issues have been resolved by the consent order). The appellant/defendant claims that the judgment by this Court dismissing an appeal from an order of Harris J had the effect of determining the issues on the plaint.

What then were the issues, and what were the terms of the consent order and the subsequent orders in this case?

The plaintiff bank, which is the respondent to this appeal was owed money by Morris and Company. To secure itself, the bank took a registered charge over the land of Morris and Company being land registration number 209/8201, dated 13 May 1977. Morris and Company had also charged its assets to the bank by a debenture dated 15 February 1977. The bank appointed a receiver under the debenture on 18 January 1978.

Pausing there for a moment, the charge and the debenture are not before the Court. But generally speaking, the land and buildings and all things affixed to the land would stand to fall under the charge, which belonged to Morris and Company; and the debenture would provide for a charge over the assets and the moveables and chattels of Morris and Company.

The difficulty in the case arises from the fact that the defendant, Specialised Engineering Company Limited, who now appeals to this Court, took a lease of part of the premises owned by Morris and Company. According to Mr Page Morris, a director of the latter company, Specialised Engineering Company Limited, occupied a certain workshop and office premises on land registration number 209/8201 as a monthly tenant of Morris and Company, and during this tenancy Specialised Engineering Company Limited erected certain temporary structures and fixed certain fixtures and fittings in the said workshop and offices, at its own expense and with the knowledge and consent of Morris and Company Limited. The tenant, Specialised Engineering Company Limited, considered these fittings and fixtures to belong to it, so entitling it to remove them as it wished. Accordingly Morris and Company and the tenant declared that the charge in favour of the bank did not cover the tenant’s fixtures and fittings, and the debenture did not cover the movables and chattels belonging to the tenant, when the debenture charge crystallised.

There was therefore an ostensible division of property. The land and its fixtures belonging to Morris and Company, and the latter’s movables and chattels on the one hand; whilst on the other hand, there were the fixtures and fittings as well as the chattels and movables belonging, so it was said, to the tenant, Specialised Engineering Company Limited.

The tenant’s lease lasted until 31 May 1979. It was on this very day that the respondent bank sued the tenant, Specialised Engineering Company Limited. Paragraphs 6 and 7 of the plaint explain why:

> “6. After the premises on the charged land had been erected the debtor leased part of the premises to the defendant.
>
> 7. The defendant is in the process of moving out of the premises, and has started to remove fixtures charged to the plaintiff from the premises.”

So the bank asked for an injunction restraining the defendant tenant from severing or removing any fixtures from the premises. Secondly, it asked for damages in respect of fixtures removed and damage done to the premises. It must be emphasised that the plaint only concerned fixtures which by their nature had to be severed to be removed. It was not concerned with movables which were attached.

It is useful to be clear what is at stake. Following the statement of the Law in *Woodfall Landlord and Tenant* (27ed) Volume 1 at 69 *et seq*, the word "fixtures" is applied to articles of a personal nature which have been affixed to land. In general, whatever has been fixed to the freehold becomes part of it, and is subjected to the same rights of property as the land itself. But this presumption may be rebutted by circumstances showing the intention of the parties to the contrary, depending on the degree of annexation. As between landlord and tenant, fixtures may be divided between tenant's fixtures and landlord's fixtures. Tenant's fixtures are personal chattels annexed to the freehold by the tenant during the term either for the purpose of his trade or business of agriculture, or for mere ornament and convenience, and which he has a right to sever and remove during the term, in the absence of any express stipulation or local custom to the contrary. On the other hand, landlord's fixtures are chattels which are put up by the landlord and affixed to the structure, before or during the term, or by any previous owner or tenant, or by any other person, but do not form part of the structure. This term includes such fixtures put up by the tenant during the term as the tenant has no right to remove. All these constitute part of the freehold, and also part of the premises demised. The basic idea is that the article in question has been let into or united with the land, or to some substance previously connected with the land. The general rule as to annexation is that, once a tenant has affixed an article to the demised premises, he can never sever it without the consent of the landlord; it becomes the property of the freeholder, and the tenant is considered to abandon all future right in it, so that it would be waste in the tenant to remove it. But there are general exceptions, for the purpose of trade, for ornament and convenience, and for agricultural purposes. The greatest latitude, it is said, has always been allowed in favour of the tenant, who claims that particular articles are personal chattels as against the claims of the freeholder.

Applying these principles to the facts of this case, whatever fixtures Morris and Company had affixed to the premises in question, would be landlord's fixtures and subject to the charge and presumably had to be protected by the receiver. Secondly, any fixtures made by the tenant, Specialised Engineering Company Limited, which became landlord's fixtures, and could not be severed, were subject to the charge. These fixtures were the subject matter of the plaint. The bank would be able to class as part of the premises charged, fixtures put in by the tenant which became landlord's fixtures in the hands of Morris and Company Limited. While the principles are thus quite clear, the bank has not put on record clearly what fixtures in particular it claims.

It is this ambiguity which perturbed the learned Judge. He said he would not say whether "any fixtures" referred to in the plaint, were the same as those given in exhibit "A" aforesaid. The Judge was referred to the consent order, which concerned "fittings, fixtures and chattels" as per particulars given in exhibit "A" attached to the affidavit of JAP Morris dated 3 August 1979. That brings me to the defence by Specialised Engineering Company Limited.

The latter company pleaded that in the course of its tenancy with Morris and Company it had erected certain temporary structures and fixed fixtures and fittings in the workshop and offices it occupied. The defendant company claimed that these were tenant's fixtures and fittings, which it was entitled to remove. It also owned other chattels absolutely. The tenant's fixtures and fittings were never charged to the plaintiff and consequently formed no part of the charge mentioned in the plaint. Therefore, the bank was not entitled to an injunction or damages; indeed, it denied having removed or having intended to remove any fixtures.

As a further consequence, the bank having obtained a temporary injunction restraining Specialised Engineering Company Limited from removing any fixtures and fittings, and having thereby looked up the premises, the defendant, Specialised Engineering Company, claimed that it had been wronged and attached a list of tenant's fixtures and fittings and other chattels wrongly detained. This list was marked exhibit "A". The detention continued and therefore as the defendant, Specialised Engineering Company Limited had been deprived of its chattels, it had suffered loss. It claimed that any damages to which the bank was entitled would be set off against the defendant company's loss and, over and above that, the defendant counterclaimed for the return of the tenant's fixtures and other chattels, or their value and damages for their detention.

The injunction granted on 31 May 1979, the last day of the tenancy, is not actually before the Court. But there was an application to discharge or set aside the *ex parte* injunction dated 6 August 1979. The result of this application was the consent order, which is the foundation of the present appeal. I need not set it out in full, as Apaloo JA has done so. The order was given on 9 November 1979 and varied the *ex parte* order of 31 May 1979 to the extent that the fittings, fixtures and chattels as per the particulars in exhibit "A" were to be released to the defendant forthwith, and the defendant was to be given free access to the premises to remove the fittings, fixtures and chattels.

Two matters immediately attract attention. The first is that one wonders why one is concerned with any chattels outside the fixtures which were the subject of the plaint. The second is why the order of 31 May 1979 was only "varied".

On the first query a glance at exhibit "A" reveals that most of the items were not fixtures at all. It is in fact difficult for the non-engineer to spot which of these 27 items could have been fixed; but I take it that some were. Nevertheless, most were chattels like dismantled cranes, ladders, articles of equipment and spare-parts, articles of furniture, welding regulators, two vehicles and an oil stove. It may be, at a guess, that the main switchboard had been fixed; but I do not know. There is nevertheless such a preponderance of chattels, that one can see that they lay outside the plaint, and the difficulty is to know what fixtures are in dispute. I presume that it was this ambiguity which at first led Harris J to accept that the consent order he entered, only "varied" the *ex parte* order, in case there were any landlord's fixtures and tenant's fixtures still outstanding. It is certainly this partial lifting of the injunction that must have caused trouble for the learned Judge in this case. The later view of Harris J is still more perplexing.

A little later the bank sought to rid itself of the consent order. On 16 January 1980, Harris J refused to do so. He held that whatever mistakes had been made by the advocates, the bank was bound by the actions of the advocates, who had

implied general authority to enter into the "compromise", and who had not acted against any negative instruction from the bank. The latter appealed against this refusal to set aside the consent order, and this Court dismissed the appeal. It held that the advocates had had both implied and ostensible general authority to bind the bank "in effecting the compromise", and this Court adopted the judgment of Harris J.

That is the next aspect of this problem. Here is a partially discharged injunction by a consent order which was said by this Court to effect a compromise. I have now to discover what was compromised.

By the application filed on 11 May 1983, Specialised Engineering Company Limited applied by Motion under Order XXIV, rule 6 of the Civil Procedure Rules all other enabling provisions of law, and section 3A of the Civil Procedure Act for orders that:

> "1. The consent order recorded by Justice Harris on 9 November 1979 (and which he refused to discharge, set aside or vary by his further order of 16 January 1980, and which refusal was confirmed by the Court of Appeal at Nairobi on 6 May 1981 in civil appeal number 43 of 1980 against it) effectively extinguishes and determines the allegations and substratum whereof has gone and the same should be dismissed with costs;
>
> 2. Alternatively the plaintiff's suit be marked 'adjusted wholly' and 'satisfied';
>
> 3. The defendant's counterclaim be listed for hearing on a date convenient to the Court; and
>
> 4. The plaintiff be ordered to return forthwith the fixtures and chattels forming the subject matter of the aforesaid consent order."

This motion was supported by an affidavit of Mr Ambalal Jiwabhai Patel. He swore to all the steps in this action set out above. All that emerges is that the consent order of 9 November 1979 was based on exhibit "A" annexed to the affidavit of Mr Page Morris, and had not been complied with. But this consent order, he asserted, after the refusal to set it aside by both Harris J and the Court of Appeal, had the effect of discharging "finally" the *ex parte* injunction of 31 May 1979. Yet these articles in exhibit "A" had not been given back.

The interest now lies in how the "varied" injunction order became "finally discharged". The key to this problem is the ambiguity in the bank's case as to what fixtures it alleged had been covered by its charges, or had been added to the premises of the defendant company, and then removed or were about to be removed by the defendant company. It is extraordinary that Mr Ambalal Jiwabhai Patel's affidavit was not answered, as far as the record of appeal is concerned. At an early stage of the hearing of this appeal, Mr *Le Pelley* complained that the record of appeal was not complete. But he had the right under rule 89 of the Court of Appeal Rules to put in a supplementary record of appeal containing the documents he added. The result of his not having done so is that the matter has to be judged from what is on the record of appeal as it now exists.

If this Court in appeal number 43 of 1980 adopted Harris J's judgment of 16 January 1980 as its own, then we are now bound by the findings of Harris J. He explained that the receiver, Mr Sinclair, had sworn the affidavit upon which the *ex parte* order had been made on 31 May 1979. Mr Sinclair again came to the bank's aid in trying to get the consent order of 9 November 1979 set aside. He swore that considerable damage would be done to the premises if the fixtures

referred to in the injunction were removed. He admitted, however, that with the exception of some articles which he had been unable to find, all the moveables referred to in the affidavit of Mr Morris dated 3 August 1979 were in his possession as receiver of Morris and Company. These were substantially the articles referred to in both the defence and the consent order. Two items were claimed by Morris and Company from the defendant company and the dispute was then still unresolved. But apparently that did not affect the real issues. Harris J held that the bank had brought within the jurisdiction what it described as "fixtures charged to the plaintiff," and the defendant company, Specialised Engineering Company Limited, had brought within the suit, what it had described as the "tenant's fittings and fixtures" and also the "tenant's other chattels." All the items in the consent order fell within the ambit of the suit, (which I suppose must mean the plaint and counterclaim). But the crucial finding now appears:

> "The only items comprised in the injunction are such of the fixtures as are charged to the plaintiff, the discharge of which by the consent order the plaintiff now suggests should be left undisturbed. The issue is as to whether there exists any reason for interfering with so much of that order as relates either to fixtures which are not so charged to the plaintiff or to fittings and chattels which are not fixtures."

That I am afraid ends the matter. Whatever Harris J meant by the consent order varying the *ex parte* injunction, he has now stated that the only items comprised in that injunction were such of the fixtures as were charged to the bank, and that the bank had suggested that the discharge of the injunction regarding these fixtures by the consent order should be left undisturbed. He went on to differentiate fixtures not so charged and fittings and chattels which were not even fixtures. How Harris J arrived at this conclusion is far from clear now. There may, of course, have been material upon which he made that statement, and which explains the approval of this Court. Once the bank, according to Harris J agreed that the consent order had discharged the injunction to the fixtures charged to the bank, there was nothing left.

It seems a surprising and unexpected conclusion when the order was simply "varied" but of course there was no need to vary or discharge the consent order in these other circumstances described by Harris J. The consent order gave back to the defendant company what belonged to it. In addition, it is said that the bank decided to leave undisturbed the discharge of the injunction concerning what belonged to the bank. The most logical basis for the statement of Harris J would be that there were no such landlord's fixtures in reality, and that Mr Sinclair only held the items in exhibit "A" which did not apparently qualify. Mr Sinclair certainly never made out a claim to any particular landlord's fixtures. Harris J declared that he did not know whether Mr Sinclair was lawfully in possession of anything and, throughout the case, no landlord's fixtures had ever been specified, as far as the record of appeal goes, by anyone at all. The conclusion to which one is driven in the end is that there were no landlord's fixtures, that the bank's case must have been misguided, and that the bank could not claim damages. The warrant for this conclusion is Harris J's explanation that the bank gave up the protection of its injunction, and there were no other fixtures which the bank could claim. This seemingly has been approved by this Court which called the consent order a "compromise".

So then I have no alternative, I must agree with the defendant company, who has appealed, that the order of Harris J as confirmed and adopted as the

judgment of the Court of Appeal, finally disposed of the cause of action of the bank against the defendant/appellant company. I agree that the appeal must be allowed and with the order proposed by Apaloo JA in this event; and as Masime AJA also agrees, it is so ordered.

Apaloo JA: The main controversy in this suit has received the consideration of both the High Court and this Court before. In dismissing the appeal on 6 May 1981, this Court characterised this litigation as unfortunate, protracted and a largely unnecessary one. In view of what has since transpired and the rival arguments presented to us on this appeal, this Court's description of the nature of this litigation was peculiarly apt.

The facts are simple. The plaintiff bank (hereinafter called the bank) at sometime prior to May 1979, granted a company called Morris and Company Limited a loan. To secure the repayment of the loan, the company charged to the bank a piece of land described as land registration number 209/8201. There was a building on the charged land. Morris and Company leased part of the charged land to the appellant whose name suggests that it is an engineering company. The appellant occupied a workshop and office premises on the land as a monthly tenant. It appeared to have erected certain structures and also brought on the land with the consent of its landlord, certain fittings and fixtures apparently for its own business purposes.

In addition to charging the land to the bank, Morris and Company also executed a debenture on its movable properties to the bank. In January 1978, the bank appointed a receiver in respect of the Morris Company with the result that the floating charge crystallised on the movable property. It appears that upon entering into the duties of his office, the receiver noticed that the appellant was in the process of removing certain fixtures and fittings from the charged property.

So the bank brought a suit against it claiming an injunction to restrain it from "severing or removing any fixtures from the premises". The appellant's position was that the fittings and fixtures belonged to itself and was not charged with the rest of the property to the bank. It says that it was entitled to remove them and for its part counterclaimed against the bank for an injunction restraining it from preventing it from removing "tenant's fixtures, fittings and chattels" and damages. Although the bank did not specify or provide any description or definition of the fixtures it seeks to enjoin the respondent from removing, the latter provided a rather comprehensive list of the fixtures and fittings which it said it owned and which it claimed it was entitled to remove.

As is usual in these cases, the bank obtained an *ex parte* injunction against the appellant restraining it from removing the fixtures and fittings. Upon being served with the order, the appellant, for its part, sought to have the *ex parte* order discharged. This application came before Harris J on 9 November 1979. Instead of making an order on the motion, counsel for both parties requested the Judge to make an order by consent. The Judge obliged and proceeded to record as follows:

> "Order by Consent:
>
> 1. The defendant (applicant) to have released to it forthwith the fittings, fixtures and chattels as per particulars given in exhibit "A" attached to the affidavit of JAP Morris dated 3 August 1979 and for this purpose the defendant (applicant) to have free access to premises land registration number 209/8201 Mogadishu Road to remove the said fittings, fixtures and chattels without any interference by the plaintiff and or its agents.

2. Order dated 31 May 1979 varied to the said extent.

3. Costs of this motion to the defendant (applicant)."

It is to be noticed that apart from damages, this was precisely what the appellant sought by its counterclaim. The position was that the action was compromised and, in a very real sense, the bank must be held to submit to judgment for the reliefs the appellant sought. Such a course in permissible as a matter of procedure. At 765 of *Halsbury's Laws of England* (3 ed) Volume 22 in footnote (*b*), the learned author states under judgment by consent:

> "A consent judgment or order may be taken on the hearing of an action commenced by writ or on some interlocutory application therein such as a motion for injunction."

Here, the consent order was obtained in a motion to set aside an *ex parte* injunction. Furthermore, rule 6 of Order XXIV of the High Court rules obliges a court when it is shown to its satisfaction that a suit has been adjusted wholly or in part by lawful agreement or compromise, on the application of any party to record and enter judgment in accordance with that agreement or compromise. In this case, according to the Judge, the application to make the consent order was jointly sought by both parties.

It seems clear that the bank or their legal advisers must have appreciated that this consent order or judgment practically knocked the bottom of the bank's suit against the appellant. So they sought to have it set aside or varied. The bank failed both in the High Court and before this Court. I think there is some point as to whether this was a judgment or an order. It does not seem to me to matter a great deal by what name it is called. Its legal effect seems to me to be the same.

In declining to disturb the High Court, this Court said:

> "We will take the unusual step of dismissing this appeal without writing considered judgments of our own but adopting as the judgment of this court the order of Harris J dated 16 January 1980."

It is to be noted that what the parties consented to was described by them as an order, this Court gave a judgment affirming the correctness of that order. It seems therefore that this Court conceived, that at any rate, on the facts of this case, the words consent "order" or consent "judgment" were interchangeable.

In view of the points taken by the respondent bank on this appeal and the view expressed by the learned Judge in the Court below, one must look at the situation posed by this case carefully. One must ask the question; on the pleadings what issues were joined between the bank and the appellant in the Court below? If I appreciate them aright, they were:

1. Who was entitled to the possession of the fittings and fixtures in dispute?

2. And has the party so entitled a right to remove them with let or hindrance from the other party?

3. If he is, what is the measure of damages to which he is entitled by reason of the interference with such right by his opponent?

The vagueness which characterised the *res litigosa* in bank's plaint was put right by the appellant which provided a full inventory of them in exhibit "A". It seems to me that the consent order concludes the first two issues in the appellant's favour. And subject to formalising them in a decree, the appellant can apply to the Court under rule 6 of Order XXIV to have them enforced by execution. But the fact that the appellant did not draft a formal decree to make

the order enforceable by execution, did not make the consent order any less binding. It seems to me that it is the judgment or order that determined the rights and obligations of parties not their formalisation into a decree. In my opinion, the only outstanding issue between the parties is the consequential issue of damages which the appellant could pursue or abandon as it chose.

When the bank's attempt to get rid of the consent order finally failed, the appellant seems to have been desirous of proceeding with its counterclaim. But in order to do so untroubled by the bank's claim which had not formally been dismissed, it applied to the Court for a number of orders. The most crucial of it was one which was formulated as follows:

> "that the consent order recorded by Justice Harrison the 9 November 1979 . . . and which was affirmed by the Court of Appeal . . . effectively extinguishes and determines the allegations and pleas contained in the plaint the substratum whereof has gone and the same should be dismissed with costs."

Notwithstanding the consent order, the bank apparently declined to release the fittings and fixtures covered by the order so the appellant also sought an order that:

> "(4) The plaintiff be ordered to return forthwith the fixtures and chattels forming the subject matter of the aforesaid order."

These orders were opposed by the bank and in the result, successfully. I will consider the grounds urged by the bank presently. The learned Judge, persuaded by the bank's contention, dismissed the motion. As I read his ruling, his grounds for so holding seem to be the following:

> "1. A civil suit can only be dealt with summarily in certain specified grounds, like want of jurisdiction, limitation, lack of reasonable cause of action and 'so forth'. Otherwise a decision on an interlocutory application 'has never been known to dispose of the issues in the main suit'.
>
> 2. The Court cannot say whether any fixtures referred to in the plaint are the same as those in exhibit 'A' . . .
>
> 3. It is not possible to find at the conclusion of the case that the defendant tampered with the fittings and fixtures on the disputed premises other than those in exhibit 'A' . . .
>
> 4. Order XXIV, rule 6(1) and (2), Order L and section 3A of the Civil Procedure Act 'are not relevant to the present argument'."

With great respect to the learned Judge, not one of the four grounds on which he dismissed the motion hold water. As to ground 1, the Judge concedes that a civil suit can be disposed of summarily on grounds which he specifically named and others which he did not name. Those are covered by his expression "and so forth". In my opinion, a civil suit can be compromised and that done, litigation insofar as the issues compromised are concerned, is at an end. The common law position is stated at 403 paragraph 756 of Volume 30 of *Halsbury's Laws of England* (3 ed) as follows:

> "All or any of the questions in dispute in an action may be settled between the parties by compromise without trial, and if such compromise is *bona fide* and validly entered into, the Court does not allow the question so settled to be again litigated between the parties to the settlement."

As I have endeavoured to show, the main question in controversy between the bank and the appellant was, which of them was entitled to the furniture and fittings in dispute. Counsel for both parties, having discussed this matter, reached an agreement. They therefore prepared and signed a consent order

which they asked the Court to adopt. The Court did so and that compromise shows that the bank accepted that the appellant was entitled to the possession of those items and they conceded their right to remove them without interference.

The Judge also thought the issue which the appellant raised cannot as a matter of procedural law be raised by interlocutory application. He must be wrong because I have already shown that a consent order can properly be taken on an interlocutory application. If it can be taken at that stage, it can also be asserted in interlocutory application.

With regard to the Judge's second ground, he seems to imagine some disparity between the *res litigosa* when the parties themselves found none. The bank merely sought an injunction restraining the appellant from severing or removing some nondescript fixtures. The appellant said those fixtures belonged to itself and was entitled to remove them. It then provided a detailed list of these. On seeing them, the bank capitulated and consented to an order against itself. In the present motion, the appellant merely sought the return of those fixtures that formed the subject of the consent judgment. What possible doubt can there be about this? Indeed, even the bank did not have any doubt about the fixtures whose delivery the appellant sought. Mr *Le Pelley*, for the bank, is recorded to have submitted to the Judge below that the appellant, having already got that order, the application was unnecessary.

He said:

> "How can defendant get order for return of chattels once more. This court has no jurisdiction to make fresh order on that issue."

This shows quite plainly that the parties were *ad idem* on the furniture and fittings sought in the chamber summons and the Judge was in error in thinking there was any difficulty in identifying them.

The Judge's third reason is even less defensible than the second. He says that it is not possible to find that the defendant tampered with the fixtures besides those shown in exhibit "A". But the fixtures shown in exhibit "A" are those whose return was sought in the motion and it was in respect of them that the bank submitted to judgment or to a consent order. The Judge cannot have known of any other fittings because the bank did not identify by affidavit or otherwise anything else.

At all events, Harris J thought that both the fixtures contemplated by the bank and those specifically described by the appellant were covered by the consent order, He said:

> "The plaintiff has brought within the jurisdiction of the Court in this suit what he described as 'fixtures charged to the plaintiff' and the defendant by its counterclaim has brought within the suit what it has described as the tenants fittings and fixtures and also the tenants 'other chattels'.
>
> It is clear therefore, that all the items comprised in the consent order, are quite apart from that order within the ambit of the suit."

I think therefore that the Judge's third reason which implies that the appellant's motion sought some other fittings and fixtures beyond those specifically described in the consent judgment is unsound.

Lastly, the learned Judge considered that Order XXIV, rule 6(1) and (2) are not relevant to the motion before him as well as Order L and the oft-cited

section 3(*a*) of the Civil Procedure Act. I am inclined to agree that the object of invoking the omnibus section 3(*a*) does not appear obvious. But Order L dealt with motions and this application was made by notice of motion. I am not clear what other rule properly applies. The ruling is unenlightening under what order an application such as this can otherwise be brought.

But unlike the Judge, I am clearly of opinion that Order XXIV, rule 6(1) and (2) govern this application. It is the rule that empowers a court to record and enter judgment in accordance with a lawful agreement or compromise, and it is this same subrule that enables a court to make an order for the implementation or execution of a consent judgment or order. And the order in respect of which the appellant seeks direction is a consent one. Beyond the bald statement that Order XXIV, rule 6(1) and (2) are not relevant, the Judge ventured no opinion as to what order or rule applies to a case like the present and gave no reason for summarily rejecting that order as irrelevant. I respectfully differ. The correct order and rules are the ones the appellant invoked.

If the view I formed of the learned Judge's reasons for rejecting the motion is right, then I am impelled to hold that all those reasons are invalid. In my opinion, the appellant set on foot a proper application firmly bottomed on Order XXIV, rule 6(1) and (2) of the Civil Procedure Rules. If that is right, it is entitled to the orders which it sought on the motion.

With regard to the orders numbered 1 and 4 which relate to the effect of the consent order and the return of the furniture and fittings listed in the inventory, my opinion is that the consent order estops the bank from denying that those furniture or fittings belong to the appellant, or that it was entitled to their peaceable return. Since that was the basis of the bank's action, I should hold that the substratum of the action disappeared and that the appellant was entitled to an order for return of the items shown in the inventory. The only issue joined between the parties which was not the subject of the consent order is the appellant's right to damages against the bank for detention of its chattels. No principle of *res judicata* can be invoked in relation to that claim. So, I would hold that the appellant was entitled to have that part of its counterclaim listed for hearing.

In view of my holdings, I should conclude that the learned Judge's contrary decision was wrong and that the appellant must succeed on this appeal. But Mr *Le Pelley* who appeared for the respondent bank has sought to defend that conclusion by argument which I must briefly examine. First, counsel says, the consent order is not a decree and cannot be drawn as such and a consent order should not be turned into a consent judgment. Second, he submits that there is no evidence that the bank agreed to release the goods, nor is there evidence who was in possession of the fixtures or who should hand them over. Third, he submits, one should look at the application on which the consent order was based and, fourth, he asks if this is a consent judgment why was it not executed? I hope I have done justice to Mr *Le Pelley*'s careful contentions.

With regard to counsel's first contention. I think the matter of substance is whether the right to possession of the fixtures and their return to the appellant were two of the questions in dispute between the parties and if they were, whether they were covered by the compromise which culminated in the consent order. If they were, the bank was estopped by it. The fact that it was not drawn subsequently as a decree does not matter a bit. After all, a decree is a

mere formal expression of the judgment and must conform with it. Whatever stops the parties, is not the decree but the actual decision whether or not the decree accurately reflects it. In the context of this case, the difference between a consent order or a consent judgment is a distinction without a difference. Both have the same legal effect of precluding the bank from seeking to re-open the question who was entitled to the possession of the fixtures and fittings covered by the consent order and whether such party should have peaceable possession of them.

With regard to the second submission that there is no evidence that the bank agreed to release the fixtures and who had possession of them at the time, my view is, this contention is not now open to the bank. Rightly or wrongly, the bank submitted to these orders and whether there was evidence on which the appellant would have succeeded if the matter had gone to trial, is not relevant so long as the consent order stood. It is to be remembered the bank's attempts to relieve itself of these orders failed.

In my opinion, the answer to the third contention that one must look at the nature of the application which resulted in the consent order is equally irrelevant. A consent order can be obtained in an interlocutory application for injunction and the order was mutually sought and obtained at one such motion. That is the end of the matter. The nature of the application which culminated in the consent order is for present purposes of no moment. Then, lastly, counsel for the bank asked the rhetorical question, why this so-called consent judgment was not executed?

If indeed the consent order has the same legal effect as a consent judgment, as I believe it has, then the fact that the judgment creditor did not take steps to execute it does not impair its legal quality as estopped per *rem judicatam*. But Order XXIV, rule 6(2) makes special enforcement provisions for judgments or orders obtained by compromise. It says:

> "The Court, on the application of any party may make any further order necessary for the implementation and execution of the terms of the decree."

The mechanics appears to be that the consent order must be framed in the form of a decree and executed as any other decree, or if there should be difficulty in executing it because of its special nature as a compromise judgment, the judgment creditor or decree holder is authorised to return to the Court and seek any order that may aid the implementation and execution. And the Court is empowered to make any such order. In this particular case, had the appellant drafted the consent order as a decree in the form laid down by rule 6 of Order XX and thereafter sought the Court's aid to execute it, I cannot see how such aid could have been denied. But the fact that the appellant did not seek to execute it, provides no assistance to the bank in its contention that it is entitled to re-agitate the issue of the right to the possession and surrender of the fixtures which form the subject of the consent order.

While I acknowledge Mr *Le Pelley*'s full and courteous submissions, I think, on the whole Mr *Gautama*'s contention is the right one and I agree with him. It follows that I would allow the appeal and set aside the ruling appealed from. In lieu of it, I would make the several orders sought in paragraphs 1, 3 and 4 of the appellant's notice of motion with costs here and below.

Masime AJA: I have had the advantage of reading in draft the judgments of my Lords Platt and Apaloo JJA. I agree with them that this appeal should be

allowed and that the ruling of Aganyanya J should be set aside and be substituted with the orders prayed for in the notice of motion dated 11 May 1983. The costs of this appeal and the superior court should go to the appellants.

For the appellant/defendant:
Satish Gautama and *SP Vaid*

For the respondent/plaintiff:
Peter Le Pelley

Sure and others v Nyamaiko
[1986–1989] 1 EA 567 (CAK)

Division:	Court of Appeal of Kenya at Kisumu
Date of judgment:	29 April 1988
Case Number:	94/86
Before:	Hancox, Platt and Gachuhi JJA
Sourced by:	LawAfrica

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[1] Execution – Wrongful attachment of cattle under warrant and proclamation of sale – Admission by decree holder of knowledge that four cattle attached did not belong to judgment-debtors – Objection proceedings brought by rightful owners of cattle – Dismissal of objection proceedings by Deputy Registrar – Whether a proper evaluation of objectors' evidence – Whether a sufficient re-evaluation of that evidence on first appeal – Failure of lower courts to appreciate importance of finding as to location of attachment – Order XXI, rules 53 to 57 – Civil Procedure Rules.

Editor's Summary

After a successful civil suit against two brothers, David and Kengere Mayaka, the plaintiff commenced execution proceedings against their movable property. She died before those proceedings were concluded, and they were continued by her grandson and legal representative. Acting under a court warrant and a proclamation of sale pursuant thereto, the Court broker proceeded to a village in Kisii District on 13 December 1980, and attached 19 head of cattle, 31 corrugated iron sheets and items of furniture. There was a dispute as to whether this took place at Amariba Village where the judgment debtors lived, or at Matunwa Village, where the appellants, who brought the objection proceedings to the attachment, lived.

Shortly after the attachment, while the cattle were being driven away, it was realised that four of the cattle (which in fact belonged to the appellants/objectors 7, 8 and 9) did not belong to the judgment debtors and they were returned to their rightful owners on 23 December 1980. They jointly paid the Court brokers' fee of KShs 710.

The ten appellants consulted an advocate and each filed a separate objection under Order XXI, rule 53 on 16 December 1980. The respondent decree holder gave notice of this intention to proceed with execution under rule 56 on 12 January 1981. The first nine objectors took proceedings to establish

their claim by a joint chamber summons, supported by individual affidavits, and the hearing of the objections by appellants 1 to 6 and 10 took place before the Deputy Registrar on 29 December 1982. He dismissed all the objections and found that

each objector had planned a false case and claimed that the cattle belonged to them in order to assist "their kinsman", the first judgment debtor, whom he also found "had a closed mind" and was "most unreliable". As regards the tenth appellant the Deputy Registrar found that "he was brought into these proceedings for convenience to attempt to save the property of . . . his uncle". He did not make any individual analysis or assessment of the evidence of the several objectors in order to assess their respective credibility. He did, however, make a positive finding that the attachment had taken place at Matunwa Village.

The appellants submitted that this finding was wrong in view of clear evidence that the attachment had occurred at Amariba, near the judgment debtors' home, but on the first appeal the Judge discarded this objection as immaterial, and said that the true issue was the ownership of the attached property. He also said that he had himself considered the evidence and had formed the view that the objectors (the appellants) had not established their respective claims on the balance of probabilities.

Accordingly, he dismissed all the first appeals. Each appellant then preferred a second appeal attacking the findings of both lower courts and in particular with regard to the geographical location of the attachment.

Held – As regards the four cattle belonging to appellants 7, 8 and 9, there was clear evidence that their attachment was wrongful to the knowledge of both the decree holder and the Court broker, if not at the moment of the attachment, then very shortly after.

Despite this they persisted in the attachment and retention of the four cattle for ten days and were liable at common law for trespass to goods and wrongful execution (*Simiyu v Sinino* (1982–1988) 1 KAR 630 followed).

There was no claim for general damages on the objection proceedings (in contrast to *Simiyu*'s case) and these appellants were therefore only entitled to recover the KShs 710 paid to the Court broker to secure the release of their cattle.

As regards appellants 1 to 6, the Deputy Registrar's findings were made without any individual treatment of their evidence which, coupled with the finding, against the weight of the evidence, as to the geographical location of the attachment, meant that there was no valid finding on the credibility of the appellants as witnesses. Accordingly, their objections should be remitted to the Deputy Registrar for rehearing and assessment of their individual evidence.

There was an insufficient re-evaluation of the evidence of these appellants on the first appeal, which was all the more necessary because of the Deputy Registrar's failure to do so at first instance. This, added to the failure to appreciate the relevance of the geographical finding to the witnesses' credibility, meant that there had been no satisfactory analysis of the evidence by either court (*Peters v Sunday Post* [1958] EA 424 applied).

As to appellant 10 (Hancox JA dissenting) there was much confusion regarding his evidence as well and his objection, as with appellants 1 to 6 should be remitted to the Deputy Registrar for a rehearing. (*Per Hancox JA* – the Deputy Registrar did make a specific finding, after evaluation, on his evidence and there was a proper assessment of it. His appeal should accordingly be dismissed.)

All appeals allowed. Cases of the first, second, third, fourth, fifth, sixth and tenth appellants remitted for a rehearing.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Simiyu v Sinino (1982–1988) 1 KAR 630 – **F**

United Kingdom

Morris v Salberg [1889] 22 QBD 614

Peters v Sunday Post [1958] EA 424 – **AP**

Watt v Thomas [1947] AC 484

Judgment

Hancox JA: As a result of a civil action in High Court civil appeal 47 of 1977 at Kisii between Gesare w/o Nyamaiko, who was referred to as the plaintiff, and two brothers, David and Kengere Mayaka (who were referred to as the defendants, notwithstanding that the proceedings were said to be by way of an appeal) execution proceedings were taken out by Daniel Nyamau, who was the plaintiff's grandson, and presumably her legal representative after her death, against the two brothers. When they failed to satisfy the decretal sum of KShs 5 283,15, an application for attachment of their movable property was made, and on 13 December 1980, Daniel Nyamau accompanied by the Court broker, one Richard Muchai, and some police officers, descended on a village in the Kisii District and attached several cattle and other goods, all of which were listed in the Proclamation of the same date and issued by the Court broker under Order XXI, rule 61 of the Civil Procedure Rules. I refer to it as "a village in the Kisii District" because there was a conflict of evidence as to whether the attachment took place at Amariba Village (where the two defendants lived) or at Matunwa Village, where the applicants, who were originally the objectors to the attachment, are said to have lived.

This conflict of evidence as to where the attachment took place has persisted even into this Court, and since there was evidence that the two villages were about two and a half miles apart, Mr *Osoro*, who appears for all the appellants on this appeal, strongly submitted that the findings of the Deputy Registrar in the objection proceedings that the attachment took place at Matunwa was wrong, in view of the clear evidence from the judgment creditor that the animals "were found on land parcel number 1070 at Amariba near the cattle dip and the home of David Mayaka".

Mr *Osoro* equally complained of the finding of the learned Judge, from whom this appeal is brought, which was to the effect that Mr *Osoro*'s submissions in the High Court at to the importance of the geographical location of the attachment were brushed aside as "immaterial", the Judge saying: "in my view what was an issue in this case was the ownership of the property that was attached".

Mr *Osoro* said that the failure by both the lower courts to resolve this question meant that neither could have arrived at a credible finding as to the ownership of the movable property concerned.

Unfortunately neither of the defendants (and original judgment debtors) was called in evidence as a witness before the Deputy Registrar, but, nevertheless, Mr *Osoro* said, the judgment creditor was likely to have been an impartial witness, at least as between the judgment-debtors and the objectors, and his evidence as to where the attachment took place should therefore have been given adequate consideration.

The importance of a clear finding on this issue is that it would have resolved the question as to whether the judgment creditor and the Court broker proceeded to the premises of the judgment debtors and attached their property in accordance with the warrant of attachment dated 23 September 1980, or whether, in disregard of the warrant of attachment (whether at the instigation of either of the parties to the original case or not) they proceeded to a different place, and then took possession of the wrong property belonging to persons who were not involved in the original action, as happened in *Simiyu v Sinino* (1982–1988) 1 KAR 630. The resolution of this question was thus central to all the other questions in the case.

Of the cattle attached, according to the appellant's affidavits supporting their respective claims under Order XXI, rule 53, 17 belonged to appellants/objectors 1 to 6, and four were stated in evidence to have belonged to the appellants 7 to 9 and not to the judgment debtors. The judgment creditor, Daniel Nyamau, however, did not realise this until the party had travelled about 50 yards from where the cattle were attached, when he sought to return these four extra cattle. At that stage the rest of the crowd intervened and prevailed upon those present not to accept the return of the four cattle unless all the cattle attached were returned to them. Obviously this was impossible, and so they were all taken away.

The four cattle which, admittedly, did not belong to the judgment debtors/defendants, were returned to their owners ten days later on 23 December 1980. This resulted in objectors 7 to 9, Justus Matundura, Delilah Bosibori Tumbo and Gilbert Agecha having to share the Court broker's fees of KShs 710. This formed the basis for the second portion of the claim in the chamber summonses issued by all the objectors on 20 March 1981, seeking the raising of the attachment on the 13 head of cattle remaining with the Court broker.

I observe at this stage that though the total of the cattle mentioned in the respective notices of objection amounts to 17, the number of cattle stated to be attached in the Proclamation is 19, and this accords both with the details set out in the Deputy Registrar's ruling on the objection proceedings dated 13 June 1984, and with the evidence of the judgment creditor, Daniel Nyamu. It is difficult, when comparing the details of the cattle, to discern which were the two additional ones which were not the subject of an objection by the individual appellants, but one of them would appear to be the brown and white small bull appearing as item 6 in the proclamation. A further discrepancy emerges when these lists are compared with that set out in the letter from the advocate, appearing for appellants 4 and 6, Mr James Nyamweya, dated 15 December 1980. Only 14 cattle are there specified, which, moreover, are only stated to belong to two of the objectors (four being attributed to Henry Ondieki and ten to Japheth Gwonda) whereas these are split up individually in nine of the notices of objection filed the following day, that is to say 16 December 1980. These discrepancies are referred to in paragraph 5(*c*) of the appellant's first

memorandum of appeal to the High Court, and the point is additionally taken that it was self-evident from the proceedings that there had been a misdescription in the cattle to be seized, because the four cattle belonging to objectors Justus Matundura, Delilah Bosibori and Gilbert Agecha were included, and yet almost at the very moment of seizure the judgment creditor, that is to say Daniel Nyamau, "remembered" that those four did not belong to the defendants, with the result I have already stated.

If there was an error in the number of cattle pointed out by the judgment creditor, amounting to nearly one quarter of those seized, then I find it strange that the learned Deputy Registrar who determined the objection proceedings should say, as he did in the ruling:

> "The respondent/decree holder Daniel Nyamau, as it has clearly transpired in evidence, is a man who knows each of these objectors very well.
>
> He has given evidence on oath and from his testimony I have been left in no doubt at all that on the 13 December 1980 when he led the Court broker and his team into the home of David Motuka Mayaka (PW3) the judgment-debtor at the Matunga village, he the (respondent) had done a thorough research and he knew where exactly to take the Court broker for the property of the judgment-debtor."

He then proceeded to dismiss the claim of appellant number 10, Silvanus Ogega (who was the only one whose objection related to items other than cattle) to the tables, chairs and iron sheets valued at KShs 4 880-40, because he found that there had in effect been collusion between the judgment debtor and objector, which led the latter to claim those items as his.

The first judgment debtor, David Mayaka was also regarded as an unreliable witness by the Deputy Registrar who said of him:

> "David Motuka Mayaka (PW3) who is the judgment-debtor was placed in the witness box by Mr *Osoro* soon after the testimony of Mr Japheth Gwonda (PW4). Motuka was an important witness in this case. As a witness David Motuka Mayaka impressed me as most unreliable. He was a man who came here with a closed mind to deny everything that may suggest that any of the properties attached belonged to him."

Finally the Deputy Registrar felt that none of the other objectors could be believed, and he dealt with their evidence collectively as follows:

> "The whole of the case for each of objector is such that it gives you an impression from the very day of the attachment ie 13 December 1980 to the date each appeared in the witness box, of a village which sat down, planned a false case, assigned people to properties that were not his and asked each to come here and file an objection, all in my opinion, in a conspiracy to defeat the course of justice.
>
> In my judgment each of the objectors case is a fabricated claim to attempt to save the property of their kinsman David Motuka Mayaka."

He then dismissed all the objections and held, accordingly, that the movable properties which were the subject thereof (with the exception of objections 7 to 9) had been rightly attached by the Court broker.

While the Deputy Registrar did mention the evidence of the individual objectors, particularly that of Japheth Gwonda (number 4), and Henry Ondieki (number 6), he did not, in my view give individual treatment to the testimony of each of them, as he should have done when assessing their credibility on the balance of probabilities. It therefore seems to me that there is justification for the appellants' complaint in ground 4 of their joint memorandum of appeal to the High Court that:

> "The learned Deputy Registrar erred in not considering the case of each of the appellants and deciding the same according to law, giving reasons therefor."

This led to the complaint in the memorandum of appeal to this Court that the learned first appellate Judge had erred in accepting the Deputy Registrar's findings of fact without himself evaluating the evidence of each objector, as he should have done on a first appeal. As was said in *Peters v Sunday Post Ltd* [1958] EA 424 at 429, by O'Connor P:

> "An appellate court has, indeed, jurisdiction to review the evidence in order to determine whether the conclusion originally reached upon the evidence should stand."

The test in deciding whether to uphold the trial court's conclusions on fact is set out in the quotation from Lord Simon's speech in *Watt v Thomas* [1947] AC 484 at 485 as follows:

> ". . . an appellate court has, of course, jurisdiction to review the record of the evidence in order to determine whether the conclusion originally reached upon that evidence should stand; but this jurisdiction has to be exercised with caution. If there is no evidence to support a particular conclusion (and this is really a question of law) the appellate court will not hesitate so to decide. But if the evidence as a whole can reasonably be regarded as justifying the conclusion arrived at the trial and especially if that conclusion has been arrived at on conflicting testimony by a tribunal which saw and heard the witnesses, the appellate court will bear in mind that it has not enjoyed this opportunity and that the view of the trial Judge as to where credibility lies is entitled to great weight . . ."

In the instant case it was in my opinion eminently necessary for the Judge to re-evaluate the evidence of the individual objectors, but he was hampered in doing this because the Deputy Registrar had not done so at first instance. Indeed he seemed to condone the collective treatment of the objectors' evidence, for he said:

> "The learned Deputy Registrar considered all this evidence and he came to the conclusion that it was all a fabrication made with a view to assisting the judgment-debtor against the attachment which was levied against him."

He then said that he had himself considered this evidence against that of the decree holder and had reached the same conclusion as the Deputy Registrar. He continued by saying that it had been alleged that there were improbabilities, contradictions and untruths by the respondent (meaning the original plaintiff's representative), but that it was "not unusual" that there should be such contradictions, that these were "not material" and "neither had they occasioned injustice".

Mr *Achayo* who appeared for the respondent on this appeal, as he did in the objection proceedings and in the first appeal, has submitted that taking all the contradictions in the evidence, the evidence itself, and the demeanour of the witnesses into account, the lower courts' findings that the cattle stated in the proclamation (except the four belonging to objectors 7 to 9) were justified and should be supported. Moreover it was perfectly obvious, he said, from the fact that Mr Nyamweya had written the initial letter before action stating that the cattle belonged as to four to Henry Ondieki, and as to ten to Japheth Gwonda, coupled with the fact that only a day latter the objectors took proceedings in relation to the cattle individually, that the initial objection was taken by two persons that the cattle were later apportioned amongst all the objectors.

I agree that there is some force in this submission, but having taken that and Mr *Achayo's* references to the various passages in the record into account I consider that the passages from the learned Judge's judgment on the first appeal that I have set out do not amount to a sufficient re-evaluation of the evidence

of the individual objectors, or of the judgment debtors', or of the decree holder, such as should take place on a first appeal, particularly where it was apparent that the Deputy Registrar had not given adequate individual treatment to the evidence of the objectors.

Moreover, I consider Mr *Osoro* was right when he submitted, on behalf of the appellants, that the resolution of the conflict on the evidence as to where the attachment took place (at Matunwa or at Amariba) was central to a finding of fact as to the correctness or otherwise of the attachment, and as to the credibility of the witnesses.

With the utmost respect, I cannot agree with the learned Judge's conclusion that the location of the attachment was immaterial, and on the ground above I would be inclined to allow this appeal, insofar as it relates to the objections of the first six appellants.

I therefore turn to the case of appellants 7, 8 and 9. There can be no doubt, in my view, that the four cattle belonging to these appellants were wrongfully attached, and this was realised almost immediately the attachment had taken place. The Deputy Registrar recognised this but attributed the inability of the Court broker to return those four cattle to the fault of the judgment debtor, David Mayaka, in refusing to retake possession of them, or to sign for those attached on the Proclamation.

The Deputy Registrar said, however, that it was the "unnecessary state of tension" which caused the Court broker to drive the four cattle in question, with all the others, to Kisii, that he was entitled to his charges therefor and that he "saw no reason why I should make the respondent/decree holder responsible". He accordingly dismissed their claim for the costs consequent on the wrongful attachment, and this finding was upheld by the learned Judge who said: "These appellants who were present rejected (the Court . . . broker's) offer to release the animals."

With respect there was no evidence that it was the appellants 7 to 9 who rejected the Court broker's offer to return the four cattle. The Court broker said he asked the people "who were around" if they could take back the four animals, and they insisted that all should be returned. He does not appear to have been asked which of the people said this, still less if it was the appellants 7 to 9 or any one of them.

The Court broker said he found it odd that the judgment creditor had first pointed out the four animals to him, as being some of those to be attached, and this should certainly have put him on inquiry. But far stronger is the evidence of Daniel Nyamau who said:

> "The animals were attached during my presence and driven to Kisii. The Court broker attached them on my instructions. *I knew that 4 did not belong to the judgment-debtor*. I even informed the Court broker there and then that the four h/c did not belong to the judgment-debtor. The four animals were also attached and brought to Kisii. I was present when they were being attached." (emphasis is mine)

In those circumstances it seems to me impossible to hold otherwise than that the four cattle belonging to the appellants 7 to 9 were wrongfully attached, that both the Court broker and the decree holder knew this, and that these appellants are entitled to their reasonable costs occasioned by that wrongful attachment. Their claim in this respect is expressed in paragraph 3 of the chamber summons taken out by the first nine appellants on 20 March 1981. Only two of

the three testified in the objection proceedings and neither gave evidence of the expenses he or she had incurred, but the Court broker said that they paid his charges of KShs 710. That is the amount, then, in the absence of any other claim, or any other evidence, to which I would hold that the three appellants numbers 7 to 9 are entitled if their cause of action is established.

In the case of *Simiyu v Sinino* (1982–1988) 1 KAR 630 this Court, basing itself on several authorities, held that a court broker is completely protected in respect of his acts in executing a warrant of attachment, under section 6 of the Judicature Act (Chapter 8), provided they were in respect of the property of the person against whom, according to the warrant, it was directed to be executed. The Court also held that to set proceedings for execution and attachment of property in motion wrongfully was actionable as the tort of trespass, and that the defendants in that case (one of whom was the respondent in the Court) were liable in damages to the appellant.

In *Simiyu*'s case the proceedings were begun by summons and plaint in the usual way, and the property attached was not that of the unsuccessful plaintiff, Dorcas, but of her father. We held that by inserting in the application for execution the name of the wrong person, or by directing the Court broker to the wrong house, or pointing out the wrong goods, so that the Court was misled into attaching the wrong property rendered the instigator liable in damages for trespass to goods. The clear authority for this was *Morris v Salberg* [1889] 22 QBD 614.

In the instant case the decree holder, the respondent's legal representative, said explicitly that the Court broker attached the cattle, including the four in question, on his instructions and that he knew that the four cattle did not belong to the judgment debtor. Though we held in *Simiyu*'s case that it was not essential to establish malice to succeed in an action of this nature the foregoing comes very close to showing that malice existed on the part of the decree holder. At all events he knowingly misled the Court broker.

In those circumstances there is clear authority for us to hold that the seventh, eighth and ninth appellants are entitled to succeed and to recover damages for the unlawful attachment of their four cattle, as to one in respect of Justus Matundura, one in respect of Delilah Bosibori Tumbo, and as to two in respect of Gilbert Agecha. Unfortunately they did not, as the appellant Blassio Simiyu did, make any claim for general damages. Whether this is possible on the objection procedure, as opposed to plaint, in view of the terms of Order XXI, rule 60(2) of the Civil Procedure Rules, is not essential for us to decide. But, at all events, I would allow the appeals of appellants 7, 8 and 9. I would set aside the judgment of the High Court and the ruling of the Deputy Registrar, and substitute therefor an order that the respondent pays them KShs 710 jointly and severally. I would also give them the costs of this appeal, of the High Court appeal and of the proceedings before the Deputy Registrar. As Platt and Gachuhi JJA agree it is so ordered.

I accordingly return to the case of appellants 1 to 6. The reason for my disagreement with the two lower courts in these cases are different. It was not necessarily because their cattle were wrongfully attached, but because the findings that they were not were based on that which was, in my judgment, defective treatment of the evidence, and the failure to appreciate the importance of the geographical location at which they were seized. For these reasons

I would ordinarily order that the case be remitted to the Deputy Registrar with directions to reach a conclusion on the evidence as it stands. As this is not now possible, I see no alternative but to order a new trial of the cases of appellants 1 to 6, with a view to a proper assessment of their individual evidence. As Platt and Gachuhi JJA agree it is so ordered. I agree with Platt JA that they should have the costs of their appeals and those in the High Court and that the costs of the objection proceedings should be costs in the event of a new trial.

The only remaining appellant, Silvanus Ogega, number 10 is in a different category. In this case the Deputy Registrar did make a specific finding on his evidence, and there was therefore a proper assessment of it. Though he did not wholly believe the judgment debtor, David Mayaka, he held that this appellant's claim was a false claim. Despite the defective assessment of the other appellants' evidence, I do not think this finding is tainted or vitiated thereby. I would uphold the dismissal of the objection by the Deputy Registrar, and its confirmation, even though brief, by the learned Judge. I would therefore dismiss the appeal of appellant number 10, Silvanus Ogaga, with costs. As, however Platt and Gachuhi JJA think differently, the order in his case is that appeal be allowed, and that his case be reheard, as proposed by Platt JA.

The appeals of appellants 1 to 10 are therefore allowed, with the results I have stated.

Orders accordingly.

Platt JA: I have had the advantage of reading the judgment of Hancox JA in draft.

I agree that the appeal must be allowed in the case of the objectors Justus Matundura (Appellant 7), Delilah Bosibori Tumbo (Appellant 8) and Gilbert Agecha (Appellant 9) and with the orders proposed by Hancox JA in respect of their appeals.

I also agree that the appeals of Aroni Sure (Appellant 1), Neftali O Kebasi (Appellant 2), Thomas Maranga (Appellant 3), Japheth Gwomba (Appellant 5), and Henry Ondieki (Appellant 6) should be allowed and a new trial ordered. But I would add the order that these six appellants be awarded the costs of this appeal and the costs in the High Court, whilst the costs of the objection proceedings be costs in the event of the new trial.

Lastly with great respect I would not dismiss the appeal in the case of the tenth appellant, one Sylvanus Ogega. I would order his case to be reheard as well, for there is much confusion about it.

His claim concerned his "wooden chairs, 31 corrugated iron sheets, 2 wooden stools, 1 spotted bull, 1 goat, 1 torch and batteries and cash of KShs 4 880,40", in accordance with his notice of objection. In his affidavit he added two wooden tables.

The evidence of both Sylvanus Ogega and his wife Eunice (PW6) was that there had been three head of cattle at home, and they had all been taken away at the time of execution. Johana Matundura (PW7) saw the three cattle and one goat taken away.

According to the decree holder's representative, Daniel Nyamau, some 19 cattle were attached. According to the proclamation 20 cattle were attached, including one black and white goat.

Mr *Osoro* who appeared for the first six appellants made the statement at the commencement of the proceedings that the items 4, 6 and 7 were alleged to belong to the appellant Sylvanus Ogega (number 10), and items 8 to 23 belonged to the first six appellants. He stated that items 1 to 3 were the property of the judgment debtor, "and no one is complaining". That meant that, item 1 the two wooden tables, item 2, the wooden stool, and item 3, the four chairs, were admitted to belong to the judgment debtor. The trial Magistrate pointed out that Mr Mainye who represented Sylvanus Ogega was present and apparently raised no objection. Hence whether these articles were in the house of Sylvanus, they were admittedly the property of the judgment debtor, David Mayaka. The dispute continued, as the Magistrate understood the situation, over the 31 iron sheets, as well as the brown and white small bull, and the black and white goat.

But, during the evidence, the concessions made by Mr *Osoro* were not adhered to. Mr Mainye allowed his witness to give evidence against the concession. It was never taken up by the Court what the position was then. Mr *Osoro* was not acting for Sylvanus Ogega. Sylvanus and his wife did not agree with Mr *Osoro*. Mr Mainye, unfortunately, never clarified the issues, and never appeared to make a final address for Sylvanus, and the latter added nothing more.

In my opinion this was an unsatisfactory situation, which the trial court ought to have clarified. The Court ought to have required Mr Mainye to indicate what the issues were at the beginning, and again after Sylvanus and Eunice gave evidence. Certainly Sylvanus and Eunice never felt bound by Mr *Osoro*'s statement and gave evidence directly against it. It would appear that Sylvanus and Eunice were let down by Mr Mainye who never appeared to address the Court. In place of Mr Mainye the Court should have asked Sylvanus and Eunice whether they accepted Mr *Osoro*'s statement and indeed whether he had had any authority from them to make it.

The lack of clarification led to the evidence of Sylvanus being rejected as altogether untrue. His claims about the tables, stool and chairs, having been taken as abandoned, the claim for the corrugated iron sheets, bull and goat were disbelieved. But the claims might not have been abandoned.

Moreover, as Hancox JA has pointed out there are discrepancies in the lists of the cattle actually attached. Yet item 6, the small brown and white bull, was certainly claimed by Sylvanus, who was not only concerned with objects other than cattle.

The High Court did not inquire into this aspect of the case.

For these reasons, the trial was unsatisfactory in the case of Sylvanus, and I would order a retrial along with the cases of the first six appellants with the same consequential orders.

Gachuhi JA: I have read the draft judgments of Hancox and Platt JJA. I agree with the reasons therein stated that the appeal should be allowed:

(*a*) In the case of objectors 1 to 6 and 10 as their claims are subject of a retrial, will have costs of the appeal and of the High Court but the cost of the proceedings before the Deputy Registrar, will be costs in the retrial.

(*b*) In the case of objectors number 7 to 9, they will have costs in the appeal, in the High Court and before the Deputy Registrar. The order for damages is as proposed by Hancox JA.

For the appellants:
JM Osoro

For the respondent:
Ominde Achayo

Wachira v Ndanjeru
[1986–1989] 1 EA 577 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	5 November 1987
Case Number:	44/84
Before:	Platt, Gachuhi and Apaloo JJA
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[1] Land dispute – Reference to arbitration by consent – Award filed in court – Judgment entered before the expiry of 30 days – Misconduct alleged against the arbitrators – Whether the judgment is a nullity – Order XLV, rules 16 and 17.

Editor's Summary

The plaintiff filed suit claiming land from the defendant on the ground that the land was registered in his name as trustee for her late husband. Both parties agreed by consent to refer the matter to arbitration; each party was to appoint two elders and were to nominate an umpire. The award was filed in court where the Senior Resident Magistrate entered judgment in terms of the award contrary to rule 17 of Order XLV which required that the judgment be entered upon request at the expiry of 30 days.

The appellant (defendant) in the original suit applied for review of the judgment but at the hearing argued that the award ought to be set aside because the Chief interfered with the hearing and he was not given an opportunity to be heard.

His application was dismissed both in the Resident Magistrate's court and on appeal to the High Court on the ground that it did not disclose any reason to set aside the award.

On appeal.

Held – (Apaloo JA dissenting) Judgment entered in breach of the provision of the law may be set aside. Where judgment has been entered on an award the Courts can only set aside the judgment for sufficient reason.

A question of law may be raised for the first time in a court of last resort upon a construction of a document or upon facts admitted or proved beyond controversy.

In this case the judgment on the award had been entered before the expiry of 30 days as required by Order XLV rules 10, 16 and 17.

Per Apaloo JA – A second appellate court would not allow a ground of appeal which was open to the appellant and which he omitted to argue in first appellate court to be raised in a second appeal except where it touches on the jurisdiction of the Court.

Where breach of the rules is not fundamental the proceedings will not be set aside.

Appeal allowed.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bains v Chogley [1949] 16 EACA 27

Damodar Jinbhai and Co Ltd v Eustace Sisal Estates Ltd [1967] EA 153

Githinji v Kinyanjui and others [1984] LLR 2280 (CAK)

Madhavji v Savilal Ltd [1977] KLR 8

Overseas Finance Corporation Ltd v Administrator General [1942] 9 EACA 1

Tanganyika Farmers Association Ltd v Kanyamwegi Development Corporation Ltd [1960] EA 320

Warehousing and Forwarding Co of E Africa Ltd v Jafferali and Sons Ltd [1963] EA 385

United Kingdom

Asante (Chief) v Tawia (Chief) [1949] WN 40

Coles v Ravensher, Re [1907] 1 KB 1

Connecticut Fire Insurance Co v Kavanagh [1892] AC 473

Macfoy v United Africa Co Ltd [1962] AC 152

Pontin v Wood [1962] 1 QB 594

Pritchard Deed [1963] 2 WLR

Judgment

Apaloo JA: I have the misfortune of reaching a conclusion diametrically opposite to the one reached by my learned brothers. In my opinion, the learned Judge on the material and complaint presented to him arrived at a just result and no good ground exists for disturbing his conclusion.

The memorandum of appeal to this Court lists three grounds on which the judgment of the Court below was to be contested. The third ground was abandoned. So there were left only two grounds. Of these the second ground was hardly argued. Counsel said it was an alternative ground which deserves the serious consideration of this Court only if the Court should be against him on the first. As formulated, it reads:

> "That the learned Judge erred in law and in principal (*sic*) in that he failed to consider that although the parties agreed to be bound by the arbitration award, the arbitrator's proceedings were necessary in determining whether there was:
>
> (*a*) Corruption or misconduct of the arbitrators or umpire.
>
> (*b*) Either party had fraudulently concealed any matter he ought to have disclosed, or had wilfully misled or deceived the arbitrators or umpire."

It does not surprise me that counsel for the appellant did not press this ground. The only grievance ventilated in the Court below was some imaginary inadequacies of the chief and arbitrators. A number

of affidavits were sworn to in

support of these failings. The assertions made in those affidavits were disputed by counter affidavits. But the question of substance was whether the arbitration was in truth held by the designated arbitrators and whether they published an award. That an award was made and signed by the arbitrators was established beyond the possibility of controversy. The signed award was made part of the record. The main and only relief the appellant sought before the Court below was the setting aside of the award. The learned Judge found no ground for doing so. This, indeed was the main and only relief the appellant sought both in the Magistrate's Court and in the High Court.

The appellant had good reason for seeking to be relieved of the arbitral award. It obliged him to give two acres of the land in dispute to the respondent. He was averse to doing that. So it is fair to say that the only issue of substance which the appellant sought both in the Magistrate's Court and in the High Court were decided against him. He was permitted to ventilate his grievance against the conduct of the arbitrators and the umpire in full. It is worthy of note that he made no procedural complaint in the High Court.

Although he filed no fewer than six grounds of appeal in that court, his counsel told the Judge that:

> "There are six grounds of appeal but I shall argue them under two heads – the role of the chief in the arbitration and denial of the right to be heard during the arbitration."

After addressing argument to the Court under these two heads, he ended with supplication to the Court in these terms:

> "The appellant humbly prays that this case be allowed to be heard afresh either by this court or by way of arbitration."

In this court, the head and front of his complaint was that there had been breaches of various rules of Order XLV. These breaches were not induced or occasioned by the respondent. It was not the appellant's case that these transgressions resulted in any failure of justice, or prejudiced him in any way. That being so, I would, for my part, decline to allow a mere procedural complaint which was not raised in the Court below to be debated in this Court. At all events, it seems to me to accord with principle that a second appellate court would not allow a ground of appeal which was open to the appellant and which he omitted to urge in the first appellate court to be raised in the second appellate court. This common-law principle has support in statutory law of this country.

Section 79A of the Civil Procedure Act, enacts that:

> "No decree shall be reversed or substantially varied . . . on account of any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the Court."

It must be conceded at once that some procedural irregularities occurred in respect of the arbitration before the Magistrate. It was in part the Court's fault in part the appellant's. And the irregularity arose in this way. When the arbitration award was filed in court, the parties were summoned thither. This was on 27 November 1980. The Court then explained the nature of the award to the parties. The appellant then immediately came out against it. He said: " I do not agree with the award".

He was entitled under Order XLV, rule 15 to have the award set aside on two grounds set out by rule 15. But he has 30 days from 27 November 1980 to do

this. But as soon as he made his dissatisfaction known to the Court, the learned senior Magistrate noted:

> "I will make an order in terms of the award. The defendant to give 2 acres of the land to the plaintiff. If he does not sign the transfer papers, the same to be signed by the executive officer 1. Costs to the plaintiff."

It is unclear whether the Court conceived itself as giving judgment on the award. The learned Magistrate did not, in terms say, he was giving "judgment". The appellant however, thought so and sought to have the "judgment" vacated. Although the Court had power to give judgment in terms of the award, it could not do so unless the period of 30 days had elapsed. The clear object of this is to enable the party dissatisfied by the award and who could bring himself within rule 15 of Order XLV to have it set aside. So on my reckoning, the Court could not give judgment until 26 December 1980, and could only properly do so at the request of the respondent. In delivering the judgment on 27 November, the Court acted prematurely and the judgment was on that score, irregularly entered. It is plain to me that this is merely a procedural irregularity which the appellant could waive either expressly or by implication. He was not obliged to move for setting aside the "judgment".

Within a fortnight of the entry of "judgment", the appellant moved the Court to review its judgment under Order XLIV, rule 1. He has good and sufficient reason for this. In giving judgment on 27 November the Court disabled the appellant from exercising his right of having the award set aside under rule 15 of Order XLV and had he confined his prayer to this and drew the Court's attention to his right under rule 16 of Order XLV, it is difficult to see how the Court could have done otherwise than to accede to the prayer.

But the appellant tacked to the application for review, the prayer clearly close to his heart, namely, the setting aside of the "arbitration award". He was not able to pinpoint any procedural rule, apart possibly from rule 15 of Order XLV, which empowers the Court to do this. So he fell on the inherent jurisdiction of the Court conferred by section 3A of the Civil Procedure Act. He then prayed for setting aside the award on the two grounds specified by rule 15 of Order XLV.

It is not clear whether the learned Magistrate appreciated that without setting the judgment aside, he could not properly entertain a plea for setting aside the award. But in the context of this case, it seems both the Court and the parties conceived that setting aside the award and setting aside the judgment were one and the same thing. In a very real sense it was. The judgment under rule 17 of Order XLV must conform with the award. So the award and the judgment must speak the same language. If the award is set aside, then there can be no foundation for the judgment. Although there is no procedural warrant for this, the appellant or his adviser must have thought that as the judgment merely formalised the award, it was the one thing to get rid of. So in inviting the Court to set aside the award, the appellant produced affidavit evidence which, had it been accepted, would have justified setting aside the award under rule 15 of Order XLV. The respondent replied with a counter-affidavit.

In these circumstances, it seems reasonable to hold that the parties were anxious that the Court should determine on the merits on the basis of the affidavit evidence they produce, whether good grounds existed for setting aside the award, which in their contemplation, was coterminous with setting aside the

judgment. If this is a correct way of looking at the matter, then it seems reasonable to hold that the appellant waived the irregularity, namely, the Court's premature entry of judgment. The Magistrate then proceeded to examine in some depth the grounds urged by the appellant for setting aside the award. In the end, the Court held that there was no merit in the application and dismissed it. The appellant does not now complain that on the merits, the award should have been set aside. His complaint is now directed against the premature entry of judgment. As it is a mere procedural irregularity which does not affect the merits of the case, section 79A provides a statutory injunction against this Court interfering with the judgment.

As I said, the appellant appealed against the judgment of the Magistrate to the High Court as he was entitled to do. It is to be noted that he acted throughout with professional assistance. The only complaints he made and on the basis of which the respondent was called upon to defend the judgment, were about the role of the chief in the arbitration and the alleged denial by the arbitrators of his right to be heard. Both complaints were adjudged to be unmeritorious. He now abandons the complaint of substance and takes his stand on procedural irregularities which he must be deemed to have waived. He should be held estopped from so doing.

At all events, it seems to me the appellant is merely standing on bare technicalities. Nobody has a vested right in procedure and a court, must, at least, at the present day, strive to do substantial justice to the parties, undeterred by technical procedure rules. As is often said, rules of procedure are good servants but bad masters. These rules have their origin in England and the philosophy there is to move from form to substance. Lord Denning, the celebrated English Judge has said *ad nauseam* that technicalities are a blot in the administration of justice. English courts have on numerous occasions refused to set aside process for technical irregularities. See *Macfoy v United Africa Co Ltd* [1962] AC 152; *Pontin v Wood* [1962] 1 QB 594 to mention only two.

In *Pritchard Deed* [1963] 2 WLR, Lord Denning, regretting a technical decision by the majority of the Court, said:

> "My brethren take a different view. They think the defect is fatal and the widow must be driven from the judgment seat without a hearing. I greatly regret that this should be so."

Quite recently in *Pontin v Wood*, Holroyd Pearce LJ recalled the proud boast of Bowen LJ that:

> "It may be asserted without fear of contradiction that it is not possible in the year 1887 for an honest litigant in Her Majesty's Supreme Court to be defeated by any mere technicality, any slip, any mistaken step in his litigation."

It would be strange if the principle today were otherwise in this or any of the newer Commonwealth countries where professional and judicial standards are less high than in England.

In the same case, Upjohn LJ who wrote the leading judgment, examined the cases in which defects or irregularities were held to be fatal and those in which they were not and proceeded:

> "I do not think that the earlier cases or the latter *dicta* upon them prevent me from saying that the law when properly understood, is that Order 70 applies to all defects in procedure unless if can be said that is fundamental to the proceedings. A fundamental defect will make it a nullity.

> The Court should not readily treat a defect as fundamental and so a nullity and should be anxious to bring the matter within the umbrella of Order 70 when justice can be done as a matter of discretion, still bearing in mind that many cases must be decided in favour of the person entitled to complain of the defect *ex debito justitiae.*"

I think that exemplifies the present liberal approach to breaches of procedure rules. It is plain to me that the original breach of rule 16 of Order XLV was committed by the Court and was compounded by the faulty steps taken by the appellant himself. To use the cumulative breach of the rules by the Court and the appellant to oblige the blameless respondent to another spate of litigation, would, to my way of thinking, be wrong and unjust.

Although I am wholly satisfied that the breach of the rules complained of in ground 1 of the memorandum of appeal was not fundamental, I have asked myself whether it in any way affected the jurisdiction of the Court.

I think it is settled law that the point of jurisdiction can be taken at any stage and even on appeal since the result of an order made without jurisdiction is that it is a nullity (see the Privy Council case of *Chief Asante v Chief Tawia* [1949] WN 40).

But the term "jurisdiction" has no fixed legal meaning. It is used in different senses in different contexts. But its basic meaning is legal authority or the extent of legal power. *Jowitt's Dictionary of English Law* defines it as "the power of a court or Judge to entertain an action, petition or other proceedings".

In *Halsbury's Laws of England* (3 ed) Volume 9 at 350 appears the following:

> "Jurisdiction is meant the authority which a court has to decide matters that are litigated before it or to take cognisance of matters presented in a formal way for decision."

The appellant did not contend and cannot, with the slightest plausibility, contend that the Magistrate's Court had no power either to set the arbitration award aside or to enter judgment thereon. Properly analysed, the appellant's complaint is that by giving judgment before the 30 days' grace period so to say, granted him by rule 16 of Order XLV, elapsed, the Court took a faulty procedural step. He was entitled to have that judgment set aside *ex debito justitiae.* Instead of seeking only that, he also at the same time, sought the setting aside of the arbitration award. He thus obliged the respondent to defend the validity of the award on the merits. I cannot see how it can be said that the Court lacked jurisdiction either to enter judgment or to set aside the award. It clearly has.

As I understood the judgment of the majority of this Court, once a faulty procedural step was taken at some stage for which the respondent was in no way blameable, the whole process is nought. The parties must commence afresh. With respect, that approach runs counter to modern notions. I think a final court should not appear to be astute in making a fetish of procedure rules. I should have thought the days when procedure was given pre-eminence over substance were gone. The Court, I think, should be loath to resurrect any of the older niceties and refinements of procedure for which there is no present justification.

To oblige the parties in 1987 to commence all over again a litigation which was commenced in 1979 when the substance of the dispute was determined and fairly determined because at some point in the litigation a faulty procedural step was taken, ill-accords with one's notions of justice and clearly runs counter

to the statutory directive given to the Courts by subsection (2) of section 3 of the Judicature Act that:

> "The High Court, Court of Appeal and all subordinate courts . . . shall decide all such cases according to substantial justice without due regard to *technicalities of procedure and without undue delay.* (emphasis is mine)

It must be for some reason and not for no reason that the legislature has seen fit to direct in mandatory terms that the Courts shall decide cases according to "substantial justice" and abjure "technicalities of procedure" and "undue delay".

As I have said already, whether the respondent was entitled to a portion of the suit land was decided at an arbitration to which the parties voluntarily submitted. The decision was in favour of the respondent. The appellant took steps, procedurally faulty in part, to have the award set aside. But in the process, his main grounds for seeking to have the award set aside were examined on the merits by the different courts. Both found against him. He does not now contend that those concurrent holdings were wrong, but says, at some point in the litigation, both he and one of the Courts below took a faulty procedural step. For this reason, he says the judgment should be vacated so he could have another go at setting the award aside. In my opinion, accession to such plea will not only give the appellant a fresh and undeserved opportunity to reagitate a twice-failed case, but would be oppressive to the twice-successful respondent. For myself, I cannot think of anything more opposed to the concept of "substantial justice" or more productive of "undue delay".

I also think, assenting to the appellant's present contention, would be tantamount to running a pencil through a sensible legislative provision which seeks to prevent pointless formalism and promote expeditious administration of justice.

In this connection, I believe I can do no better than quote the sentiment expressed by Collins MR 80 years ago in *Coles v Ravensher* [1907] 1 KB 1. The learned master of the Rolls said:

> "Although I agree that a court cannot conduct its business without a Code of Procedure, I think that the relation of rules of practice to the work of justice, is intended to be that of handmaid rather than mistress and the Court ought not to be so far bound and tied by rules, which are after all intended as general rules of procedure as to be compelled to do what will cause injustice in the particular case."

That seems to me, if I may respectfully say so, good sense. That observation so effectively expressed my views, that I do not scruple in adopting it as my own. In my opinion, in view of the facts of this case and the events which have happened, the appellant's complaint of breach of Order XLV, rule 16 ought not to be listened to. It would be inequitable to do so. If it is rejected, as I think it should, there can be nothing left of this appeal, which in my judgment, ought to be dismissed with costs.

Platt JA: The appellant, Ndegwa Wachira, has brought this appeal against the judgment of the High Court dated 11 May 1982. That is a very long time ago. The appellant complains that the learned Judge on first appeal was wrong to dismiss the appeal to him, from the decision of the Senior Resident Magistrate, refusing to review his own judgment, given in terms of an award by arbitrators. The learned Senior Resident Magistrate had conducted proceedings on 27 November 1980 at which counsel for the present respondent (but then

plaintiff) and counsel for the appellant (defendant) were present. The Court said that it would explain the award to each party. The appellant (defendant) said straight away: "I do not agree with award."

The Court then remarked that the matter had been referred to arbitrators by consent. The Court then made the following orders:

> "I will make an order in terms of the award.
>
> The defendant to give 2 acres of land to the plaintiff. If he does not sign the transfer papers the same to be signed by the executive officer 1. Costs to the plaintiff. defendant informed of his right."

That entirely misinformed and wrong judgment is the cause of all this ensuing litigation. The appellant/defendant was effectively deprived of his rights. Now it is said that nothing can or should be done for him. That is a matter which must be observed closely.

It is not disputed that the learned Senior Resident Magistrate misunderstood the process of passing judgment upon the award, as provided by rule 16 of Order XLV of the Civil Procedure Rules. He ought, under rule 16, to have allowed 30 days from the date of notifying the parties of the award under rule 10 of that Order. That might have been 8 November 1980, but it was reasonable to notify them by reading the award to them as the new practice is. I presume the award was read though the record is silent on that point, and that it was after reading the award that the appellant made his remark. He was telling the learned Magistrate that he would try to avoid the award. It was the appellant himself informing the Court, not just his advocate. It was especially a case where the learned Magistrate should have allowed the appellant time to act in accordance with rule 16. He did not. He gave judgment at once. If he had acted correctly, then under rule 17 there would have been no appeal. Rule 17(1) especially provides that time under rule 16 must have elapsed before judgment can be entered. It is an unusual situation in which the learned Magistrate notified the parties of their right to appeal, because he was actually right, through his own mistake. It has been held that where rule 16 has not been complied with, rule 17 will not allow judgment to be lawfully entered. It is a nullity and appealable. But I doubt whether learned Magistrate's indication that the parties could appeal was intended as an indication that he had entered a judgment null and void. Allow me to refer to the terms of rule 17:

> "17 (1) The Court shall on request enter judgment according to the award:
>
> (*a*) when no application has been made within the time allowed by rule 16; or
>
> (*b*) when an application under rule 12 or 13 has been heard and determined and no other application has been made within the time allowed by rule 16; or
>
> (*c*) when every application under rules 14 and 15 has been heard and refused and no leave to appeal against any such refusal has been granted within fourteen days of that refusal.
>
> (2) Upon the judgment so entered a decree shall follow and no appeal shall lie from such decree except is so far as the decree is in excess of, or not in accordance with, the award.
>
> (3) Order XLVIII, rule 2 shall apply to the entry judgment under sub-rule (1)."

So there it is; judgment could not be entered, and it should have been set aside. Rule 17 is in mandatory form.

But the appellant was woefully advised; so badly, indeed, that his advocate did not know whether to bring a review of the invalid judgment, or proceedings to set aside the award under the rule in Order XLV. He started off on the right foot. He headed his notice of motion as falling under Order XLIV, rule 1 of the Civil Procedure Rules. His first prayer was for a review of the judgment of 27 November 1980 based on the arbitration award. But then he added the misleading second prayer that the arbitration award filed in court should be set aside, and the dispute heard by the Court on its merits. The affidavit in support was full of the errors that allegedly had taken place during the arbitration, and making the award. The chief, who was neither an arbitrator nor the umpire, had interfered in the arbitration. He had exceeded his position as convenor of the arbitration. There was not one complaint about the lack of time to set aside the award.

The position was clearly this. Judgment had been entered without jurisdiction since 30 days had not been accorded to the appellant. But by entering judgment, the award had been merged in the judgment. There was no longer an award to set aside, whilst judgment remained on the record. It is because the parties have consented to go to arbitration, that when judgment has been entered, it is like a consent judgment. There is no appeal because the parties have had their dispute decided in the way they have chosen and have agreed to be bound by arbitration. Judgment is entered therefore upon an agreed basis, and the award which in that basis, is not open to question, anymore than the judgment. There are exceptions in rules 13 to 15. There is an appeal if judgment is not in accordance with the terms of the award. The parties have not agreed to be bound by these things which the arbitrator or court have done wrong. But outside these exceptions, when the exceptions have been catered for, then the award is merged in the judgment and binds the parties.

In these circumstances, a review will lie against a judgment, like the one in this case for error upon the face of the record. The Court had no jurisdiction to pass judgment under rule 17 or Order XLV because 30 days had not passed. But while judgment remained on the record, obviously, no application could lie to set aside the award. The learned Magistrate in entertaining the appellant's motion considered the matter as one for setting aside the award. He merely noted the two prayers in the application, ignored the review, and concentrated fully on the setting aside of the award. That was again very wrong, and a complete nullity. He could only deal with review and not the setting aside of the award. But counsel did not put the right case before the Court, and misled it.

The long-suffering appellant appealed to the High Court. The advocate got it all wrong once again. The appeal challenged the findings that the award should not be set aside. But the respondent's advocate, Mr *Ghadially*, began to sense the illegal drift of these proceedings. When the motion was heard by the learned Senior Resident Magistrate, he questioned what the proceedings were supposed to be about. Was it review or setting aside the award, he queried? The answer given him was that it should be setting aside the award, using section 3A of the Civil Procedure Act to give the Court power to convert a motion for review into one for setting aside the award. Mr Ghadially repeated his objection to the learned Judge. He said that the appeal was misconceived, and so was the application to set aside the arbitration award. He was quite right. Of course it is impossible to use section 3A of the Civil Procedure Act to

convert a proper review into an illegal setting aside of an award. The grounds of appeal were as misconceived as the request to set aside the award. But the learned Judge would have none of that. He actually reversed the situation. He held that the application for review was wrong and the application for setting aside the award was properly considered, since section 3A of the Civil Procedure Act had allowed the learned Magistrate to do so. In fact, all that the latter had done was properly done, and the appeal was dismissed.

Now the matter is before this Court. During the application for leave to appeal out of time this Court observed:

> "A moment's reflection would have revealed that only the first prayer for review could stand at that stage because, obviously, you cannot set aside an award after judgment has been given upon it. In such circumstances, to set aside an award, one must first set aside the judgment and then give time to the aggrieved party to set aside the award under rule 16. After hearing that application, the trial court could then decide on merits whether or not the award should be set aside."

The Court of Appeal held that judgment had been prematurely entered and that Mr Macharia would have had good grounds upon which to ask for review.

But Mr *Gautama* for the respondent forcefully contended that this Court could do nothing about all these mistakes. He reduced all of them to mere irregularities and said that they had been cured because the lower courts had decided that there was nothing wrong with the arbitration proceedings or award.

The first point to be noticed is that the grounds of appeal do not adequately cover all these errors. Mr *Gautama* contended that the Court could not raise a matter of law at this stage, for the first time. It was a matter which went to jurisdiction.

Mr *Muriithi* has not taken up the points raised by Mr *Ghadially* nor this Court in its ruling extending time to appeal. In ground one Mr *Muriithi* has set out the reasons why the judgment entered on 27 November 1980 was wrong. That is conceded. But Mr *Muriithi* has not taken the next point that the order refusing to set aside the award was null, since only review could lie. Thirdly, the error of law on the part of the learned Judge that setting aside the award could be entertained in memorandum dealt with the merits of setting aside, of which this Court cannot take cognisance.

But this Court took the points which were omitted. The Court itself raised them and thereby allowed additional arguments to be canvassed. Speaking for myself, I was not at all affected by Mr *Gautama*'s derogatory description of this Court engaging in a useless "safari" of its own. I must say with all the emphasis that I can muster, that the premature judgment was null, the proceedings to set aside the award null, and the High Court totally wrong not to have recognised the force of Mr *Ghadially*'s address to it. If the respondent knew these proceedings were wrong, the Court should have taken heed, even if the appellant did not know. It amounted to a concession by the respondent. How strange that the appellant was to lose in proceedings which his opponent conceded were wrong. And Mr *Ghadially* had warned the Judge, and this Court had warned the parties of the true position in the interlocutory ruling, it is not true to say that the omissions in the memorandum of appeal have only been raised by this Court at the hearing of the appeal. What is a fair comment is that the appellant, through bad advice, did not raise the original nullity, before it was set out in ground 1 of memorandum, and Mr *Ghadially* perhaps did not raise that particular point.

But this Court had done so in its ruling. It had said that the judgment had been entered prematurely. That meant that it was null. This Court has taken this view from the beginning. There has been no surprise. These proceedings are not just irregular. They are fundamentally wrong at every stage, and the quicker this sort of procedure is seen as such the better.

Mr *Gautama* referred to the cases when a new point of law cannot be raised on second appeal for first time.

The principles can be summarised as follows: The discretion to allow a point of law to be taken for the first time on appeal will not be exercised unless full justice can be done between the parties. It will not usually be allowed when to do so could involve disputed facts which were not investigated or tested at the trial. Nor will a party be allowed to raise on appeal, a case totally inconsistent with that which he raised in the trial court, even though the evidence taken in that court supports the new case (see *Tanganyika Farmers Association Ltd v Kanyamwegi Development Corporation Ltd* [1960] EA 320 and *Overseas Finance Corporation Ltd v Administrator General* (1942) 9 EACA 1). But the Court will allow a new question concerning the construction of a document or the legal effect of admitted facts, since no question of evidence arises, and it will usually be regarded as expedient in the interests of justice to do so. The most relevant principles to this case however are those which apply when the Court itself raises a question of its own motion. This is almost invariably done where there is any question as to jurisdiction *Damodar Jinbhai and Co Ltd v Eustace Sisal Estates Ltd* [1967] EA 153 at 158 or when the Court is asked to give a judgment which would be contrary to statute (*Bains v Chogley* (1949) 16 EACA 27). As Law AP said in *Madhavji v Savilal Ltd* [1977] KLR 8 at 14:

> "It would be intolerable for a court of last resort to be bound by a lower court's decision on a question of law which is manifestly wrong."

This case proceeded upon the principles set out by Lord Guest in Warehousing and Forwarding Co of East Africa Ltd v Jafferali and Sons Ltd [1963] EA 385 (following Connecticut Fire Insurance Co v Kavanagh [1892] AC 473 at 482):

> "When a question of law is raised for the first time in a court of last resort, upon a construction of a document, or upon (facts) admitted or proved beyond controversy, it is not only competent but expedient, in the interest of justice to entertain the plea."

In this case, there are no disputes on the facts. The facts lie upon the record. Mr *Gautama* does not dispute that the judgment of 27 November 1980 was wrongly entered. Mr *Ghadially* did not dispute that setting aside the award was wrong, and that the appeal was wrongly brought. Can this Court then ignore all this illegality? In my opinion, it is expedient in this Court of last resort to ventilate the questions of law conceded by the respondent.

Next Mr *Gautama* contended that these are merely irregularities of procedure as has been seen above. Rule 17 of Order XLV is mandatory. There is no discretion about it. There is no question of irregularity once judgment has been entered. If the award is to be attacked, the judgment must be set aside first. There is no question that section 3A of the Civil Procedure Act can cure any of these errors.

But if Mr *Gautama* were right, would it be realistic to argue that what should have been a review of judgment is cured by setting aside proceedings? The principles which apply to review do not apply to setting aside an award, and vice versa. Even if there is material for setting aside an award, if judgment is

entered properly under rule 17, judgment cannot be set aside, simply because the award is wrong. It is not possible to decide whether judgment should or should not be vacated, by reference to the merits of setting aside the award. Conversely, however, proper the award may appear to be, if the judgment is not entered properly and no time has been allowed, it must be set aside in order to provide time, if that objection is taken. Courts cannot know what the parties may know behind the scenes, which may unsettle an apparently proper award. All these steps must be taken in proper order, because the law says so. Moreover, after all the muddles at every step I cannot persuade myself that the advocates properly concentrated on what they were supposed to be doing, so that I would feel justified in informing the appellant that, although his advocates misconceived all the procedures, and did not take up for him the vital issues; nevertheless all is really right in the case, even if the lower courts misdirected themselves, and so he should give up his chance to follow the procedure correctly. I do not see how anybody could believe that. I think that it would generally be held to be right to set aside all these mistakes and start again late as it is. A similar view was taken in *Githinji v Kinyanjui and others* [1984] LLR 2280 (CAK). There, the question was, what effect would the lack of consent to go to arbitration have on the award. The award was also out of time. These improprieties caused the award, and subsequently orders for execution, to be null and void. All these orders were set aside and the parties were ordered to start again.

Consequently I would allow the appeal on the first ground and the points allowed to be argued by this Court. I would set aside the High Court's decision as wrong in law. I would substitute therefor an order that the Senior Resident Magistrate's order, refusing review, should be set aside, and that these should be substituted therefor an order allowing the application for review, in terms that the judgment of 27 November 1980 be set aside. I would allow the appellant 30 days from the date of this order to bring proceedings for setting aside the award under rule 16 of Order XLV. I would allow the appellant the costs of this appeal, in the High Court, and both proceedings in the Senior Resident Magistrates court.

As Gachuhi JA agrees, it is so ordered.

Gachuhi JA: I have read the judgment of Platt JA which I am in full agreement with. However, I would add that the procedure as laid down is meant to be strictly followed. Failure to do so would result in a miscarriage of justice.

The arbitration, the subject matter of these proceedings is under Order XLV. Rules 15, 16 and 17 are very important. The Senior Resident Magistrate overlooked the requirement of rule 16 that the parties must be allowed 30 days within which to file application for setting aside the award. Judgment could only be entered after 30 days if it has to be a valid judgment. Any judgment entered prematurely is a nullity.

The argument by Mr *Gautama* that the Court should not consider any point of law not previously raised, cannot be entertained by this Court. There are circumstances that allow it. This is the Court of last resort. If it cannot correct any point of law that had not been considered, which caused a bad decision to be reached, then if that decision remains on record it will be referred to as an authority in the future. Then what would be the purpose of the Court of the last resort? It would be the duty of this Court to interpret the law and to give

its effect in the best possible way. The instant appeal is a clear precedent. The judgment entered by the Senior Resident Magistrate is a nullity and cannot be allowed to remain on record. It has to be set aside to allow the operation of rule 16 of Order XLV of the Civil Procedure Rules (Chapter 21). I am in agreement with the orders Platt JA proposes the Court should make.

For the appellant:
J Muriithi

For the respondent:
Satish Gautama

Wakahihia and others v Thiongo
[1986–1989] 1 EA 589 (CAK)

Division:	Court of Appeal of Kenya at Nyeri
Date of judgment:	9 October 1986
Case Number:	58/85
Before:	Hancox, Nyarangi JJA and Gachuhi AJA
Sourced by:	LawAfrica

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[1] Civil procedure – Appeal against refusal to review a judgment upholding an arbitration – Not all defendants present at hearing of arbitration – Judgment given against all defendants with costs – Whether new facts is the only ground for review or whether the nullity of the proceedings on the face of the record is sufficient cause for review.

Editor's Summary

The appellants were summoned to court and invited to transfer their land to the respondents who was aggrieved by the result of a succession case from which he had not benefited but which he claimed by virtue of an oral sale agreement and part performance of the price. The matter was referred to arbitration, which proceeded in the absence of certain appellants, second, fourth and fifth, who were not given an opportunity to cross-examine witnesses. An application was made for judgment in terms of the award against the five appellants whereupon two appellants sought a review of the judgment and setting aside and/or a retrial on merits on the grounds that they had had no audience. The respondents' contention was that there was no new evidence to effect the arbitration decision and the decision should be left intact. It was up to the Court to conclude that judgment against parties without a hearing rendered the arbitration proceedings a nullity and therefore should be reviewed.

Held – It was manifest that all parties were not given a proper opportunity of being heard at the arbitration proceedings. Appeal allowed with costs, order for review granted.

Judgment of High Court confirming arbitrator's award set aside together with the proceedings before the arbitrator. Suit returned to High Court, Nyeri, to proceed afresh to hearing and determination.

Cases referred to in judgment

Roboi Holdings Ltd v Sita [1982] LLR 63 (CAK)

Ruithibo v Njingi [1982] LLR 1383 (CAK)

Judgment

Gachuhi AJA: The appellants have appealed to this Court against the ruling of the High Court (JS Patel AJ) in dismissing the application for review.

The appellants were respondents in an originating summons filed by the respondent in this appeal (Mwangi Thiongo) requiring the respondents to the summons to transfer four acres from a parcel of land Mahiga/Kihome/9, which was held in trust for the applicant by the respondents.

The appellants were registered as proprietors of the said piece of land on succession to the title Mahiga/Kihome/95 in place of their father who died on 10 August 1974. It was in 1979, when succession case number 3 of 1979 was instituted at Othaya by the Land Registrar Nyeri under section 120 of the Registered Land Act (Chapter 300) to determine the heirs. The appellants were cited as the claimants while the applicant/respondent was cited as the objector. After the hearing the district Magistrate appointed the appellants as heirs and determined their respective shares as:

> "1. Adolf Gitonga Wakahihia to get 7 acres
>
> 2. Zakaria Karanja Wakahihia to get 8 acres
>
> 3. Peter Muraguri Gitonga to get 7 acres
>
> 4. Gichuki Wakahihia to get 3 acres
>
> 5. Adolf Gitonga Wakahihia as trustee for himself and the other two to get 2.5 acres."

The names of the other two were not given. Charles Gitonga seems to have not been allocated any share of land though a party to these proceedings. The objector having got nothing filed this originating summons. In his affidavit in support of the summons, he stated in the following paragraphs:

> "4. That sometime in 1964 or thereabout the said Wakahihia Gitonga agreed to sell to me a portion of land approximately four acres out of his said parcel of land at an agreed price of KShs 4 200 more or less at KShs 1 050 per acre.
>
> 5. That pursuant thereto I paid to the said registered owner a sum or price of KShs 1 900 and I have been ready and willing to pay the balance of purchase price being KShs 2 300.
>
> 6. That upon receipt of the said sum of purchase price, I was put into possession of the said four acres and have carried out considerable improvements thereon and I have also constructed a permanent building thereon where myself and my family are staying."

In reply to this affidavit the appellants denied paragraphs 4, 5 and 6 above and stated that there was no agreement to sell any portion of the land or at all and that there was no money paid to the deceased. In answer to paragraph 6 they said that if there was any agreement for sale, the same became null and void for lack of the Land Board consent. They also said that the respondent came into the land in 1970 through his mother who was allowed by the deceased to cultivate and build a semi-permanent building there. The record does not contain any other affidavit. Those affidavits constituted the pleadings in this matter.

On 12 November 1982, the matter came before O'Kubasu J where a consent was recorded referring the dispute to two advocates, Mr Mahan and

Mr Mukunya, who were to appoint an umpire. On 13 October 1983 the matter came before VV Patel J whereby the order made on 12 November 1982 was cancelled and a fresh order made referring the dispute to arbitration by the District Officer Othaya assisted by four elders, two to be appointed by each side. Mention date was fixed for 9 February 1984.

On the mention date, the award was read and explained in the presence of the parties. There is no date mentioned when the arbitration took place but there is nothing that turns on this. There is a further mention date on 13 March 1984. It does not appear the matter had been mentioned on 13 March 1984 but when the matter came up the advocate for appellants asked for an adjournment to 17 April 1984. Before the mention date, application to set aside the arbitration award was filed on 2 April 1984. The affidavit in support sworn by Adolf Gitonga Wakahihia complained that they were not afforded a chance to cross-examine the respondent herein or his witnesses, the arbitrators did not consider whether the applicant (respondent) was entitled to land as purchaser for over 12 years and that the award did not specify the acreage the respondent was to get and further that the arbitrators were imposing a sale on the appellants.

It is worthwhile to note that at the time the matter was heard by the arbitrators, only two of the five defendants, namely Adolf Gitonga Wakahihia and Peter Muraguri Gitonga, first and third defendants and the plaintiff as parties were present. Zakaria Karanja, the second defendant, must have arrived later since his name does not appear on the first page. Gichuhi Wakahihia and Charles Gitonga, the fourth and fifth defendants, do not appear anywhere in the proceedings.

On 17 April 1984 the application to set aside the award was abandoned by the then counsel for the appellant, but no reasons were stated in court for doing so. Immediately the counsel for the respondent applied for the judgment to be entered in terms of the arbitration award, which the Court did. The Court then proceeded to give an order that the defendant do execute the necessary documents to affect the subdivision and transfer of the portion of land occupied by the plaintiff and in default the executive officer of the Court do sign all necessary documents. Further order was directed to the Land Registrar to register the subdivision and transfer. At the time of the order only three defendants were present whose names were not given.

On 2 January 1985 two of the appellants, Gichuki Wakahihia and Charles Gitonga Wakahihia, filed an application through an advocate seeking for review of the judgment and prayer for consequential orders after the judgment to be set aside and the case to be heard on merit. The application was grounded on the fact that they being some of the defendants they were not summoned to appear before the arbitration panel and that judgment was given against them and were made to pay costs in a matter in which they had not been heard. At the same time the respondent filed an application seeking further orders that the Land Registrar be ordered to register the subdivision and that the respondent be issued with a separate title and that the appellants be at liberty to apply to court for their titles and a further order for costs. Both applications were listed for hearing on the same day 10 April 1985. For reasons only known to the appellants, all five appellants according to a notice filed in court on 20 February 1985, dropped their advocates, Messrs Kaburu and Company, and decided to act by themselves. One of the appellants, Zakaria Karanja Wakahihia, filed

another motion on 27 February 1985 which was also to be heard on 10 April 1985 seeking for the review of the judgment entered in terms of the arbitration award and also seeking the restoration of the order made in Othaya DM's Court Succession Case. The affidavit in support of the motion sworn by him details their grievances in the manner the arbitration was conducted as their witnesses and two appellants were not summoned to attend.

On 10 April 1985, the appellants appeared in person when the three motions were adjourned to be heard on 19 April 1985. In the meantime, Zakaria filed a supplementary affidavit in which he stressed that two of the appellants were not present before the DO and that their affidavit to protest had already been filed.

The appellants elected to pursue the motion filed by them stressing the irregularities of the arbitration and requested the arbitration to be conducted by another District Officer. Mr *Ghadialy* for the respondent argued that review could only be based on discovery of new and important matters or evidence. In spite of the appellants complaining that they were unaware how their advocate conducted the case which led to withdrawal of instructions, their motion was dismissed with costs.

Then the respondent's motion was heard but the appellants maintained their stand that the matter should be reheard. The respondent's application was heard and allowed with costs.

In their appeal to this Court against the refusal to review the judgment, the appellants through Zakaria stated that the DO Othaya did not give them audience. They maintain that the matter should be heard again. To this Mr *Ghadialy* in supporting the Judge's ruling stated that the application for review did not contain any material and that the decision of the DO was within the knowledge of the appellants.

With due respect, here is a claim of a piece of land in the name of six people, five of whom are parties to the suit. When the hearing went on before the arbitration, they were not present and yet the District Officer proceeded to hear the matter in their absence, giving away a piece of land to the claimant. When judgment was delivered, all defendants including those who were not present were condemned to pay costs to the plaintiff. As a matter of law, is it just that judgment should be imposed on them without being heard? Their complaint was laid before the Judge on an application to review the judgment but the Court overlooked this vital allegation that vitiates the judgment. It was up to the Court, when it was pointed out in an application for review that judgment was entered against some defendants without being heard, to hold that the whole arbitration proceedings were a nullity in the interest of justice and the judgment should be set aside. Setting aside an award under Order XLV, rule 15 is where there is misconduct and corruption. To conduct arbitration without all the parties present, and while some had no notice of the hearing is also a misconduct of the arbitrator under the same order and rule. On the face of it the legality of the award was questionable because all the parties were not present. The award could have also been set aside under rule 15(1)(*b*) as the arbitrator misconducted themselves by allowing the proceeding to commence and in the end made an award that affected parties who were not before them to give evidence.

The Judge was able to observe this when he heard the application and was able to investigate by looking at the award to see whether all parties were present and as to why they claimed that the DO was biased to them by not allowing them to direct questions to the respondents and his witness.

It is basic law that no one should be condemned to a judgment passed against him without being afforded a chance of being heard (*Ruithibo v Njingi* [1982] LLR 1383 (CAK)). The chance is by being summoned but if he is served and chose not to attend, then he should be bound by the judgment unless he can show cause why he failed to attend (*Roboi Holdings Ltd v Sita* [1982] LLR 63 (CAK)).

Mr *Ghadialy* argues that application for review should be on fresh facts which were not available at the time. The point here is not of fresh evidence but the point of law which underlie the proceedings the effect of which render the proceedings a nullity.

It is my view that this appeal should be allowed with costs and also costs in the proceedings in the High Court on 19 April 1985. I would order that the judgment of the High Court be set aside and the proceedings before the arbitrators are also set aside. I would also order that the suit be remitted to the High Court at Nyeri to be proceeded according to law.

Hancox JA: I have had the advantage of reading in draft the judgment of Gachuhi AJA. I agree that the application for review by the High Court of its earlier judgment of 17 April 1984, where judgment was entered in terms of the arbitrator's award, should have been allowed for the reasons stated by Gachuhi AJA. It is manifest that all the parties were not given a proper opportunity of being heard at the arbitration.

As Nyarangi JA also agrees the order of this Court is that the order of the High Court, dated 19 April 1985, is set aside, the order for review is granted and the judgment of the High Court dated 17 April 1984 is, accordingly, also set aside. The case is remitted to the High Court for hearing and determination according to law. Costs of the appeal and of the proceedings on 19 April 1985, before the High Court, are to be the appellant's in any event.

Nyarangi JA concurred in the judgment of Gachuhi AJA.

For the appellant:
In person

For the respondent:
ATD Ghadialy

Wanguku v Kania
[1986–1989] 1 EA 593 (CAK)

Division:	Court of Appeal of Kenya at Nakuru
Date of judgment:	30 May 1985
Case Number:	101/84
Before:	Hancox, Nyarangi JJA and Platt AJA
Sourced by:	LawAfrica

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[1] Ruling dismissing application undated but formal order stating correct date – Whether absence of date rendered ruling invalid or merely irregular and curable – Whether bringing second application claiming same or similar relief as first application competent while order of dismissal of first application still in force – Whether court has power to reinstate an application for the setting

aside of a default judgment after dismissal for non-appearance of Applicant's counsel – Order IX, rules 8, 9 and 10, Order IXA, rules 3 and 10 and Order XX, rule 3 – Civil Procedure Rules.

Editor's Summary

The plaintiff (respondent) filed a suit in the Resident Magistrate's Court at Eldoret claiming a sum of KShs 13 500 from the defendant (appellant) by way of balance of the purchase price of a plot of land. No appearance having been filed, the plaintiff obtained judgment in default and applied for execution of the decree in consequence of which a warrant of attachment was issued to the Court broker.

The defendant then applied to have the judgment and all consequential proceedings set aside. In support of the application, the defendant's then advocate swore an affidavit that, although a memorandum of appearance and defence had been prepared by him, they were not filed owing to an oversight on the part of his staff. On the first hearing of the application, it was discovered that a copy of the application had not been served on the plaintiff's advocate. The hearing was therefore adjourned to another date on the undertaking of defendant's advocate to serve the papers on the plaintiff's advocate. When the application came on again for hearing, the defendant's advocate could not attend and asked for a further adjournment through another advocate who held his brief. This was opposed by the plaintiff's advocate and the Magistrate dismissed the application to set aside the default judgment on the ground that, as the defendant's advocate had not complied with his undertaking to serve a copy of the application on the plaintiff's advocate, he was not entitled to any further adjournment.

The defendant thereafter engaged another advocate who filed a further application before the Magistrate asking for the *ex parte* judgment to be set aside and for a stay of execution and for unconditional leave to defend. The Magistrate dismissed this application on the ground that he had previously dismissed a similar application on the part of the defendant and until that order was removed by an appeal or review it remained in force.

The ruling dismissing the second application was not dated but a formal order was subsequently extracted showing the date on which the ruling was given.

The defendant appealed to the High Court which upheld the ruling on the ground that the second application was in substance the same as the first application and was therefore an abuse of the process of the Court until the order made on the first application had been dealt with, for instance, by an application for reinstatement of the first application giving reasons for the non-attendance of counsel on its hearing date.

The defendant appealed to the Court of Appeal.

Held – Order XX which refers to judgments offers a guide to the manner in which orders should be made. Orders should be dated but the failure to date the order made by the Magistrate on the second application was in the circumstances of this case, an irregularity which did not vitiate the order as it did not inconvenience any party in any way. It was a curable step and was indeed cured by the drawing of the formal order.

The bringing of a second application, although not *res judicata* by reason of the first application not having been decided on its merits was an abuse of the process of the Court as it amounted to ignoring the order of dismissal of the first application while it continued to be in force.

Per Platt AJA, Hancox and Nyarangi JJA, dubitante – The defendant should (and could) have applied to the Court under its inherent jurisdiction to have the first application reinstated and the order made thereon recalled by offering a satisfactory explanation for the defendants' advocate's omission.

Appeal dismissed with costs.

Cases referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

East Africa

Bank of India Ltd v Manibhai M Patel Ltd [1965] EA 638

Kibogy v Chemweno [1980] LLR 24 (CAK)

Kinyua v Tute civil appeal number 25 of 1977

Matemba v Matemba [1968] EA 646

Mukisa Biscuit Co v West End Distributors [1969] EA 696

Mulji v Jadavji [1963] EA 217

Patel Ltd [1965] EA 638

Rawal v Mombasa Hardware Ltd [1968] EA 392

Saldanha and others v Bhailal and Co [1968] EA 28

Sheikh v Halima [1959] EA 500

United Kingdom

Lawrence v Lord Norreys [1888] 39 Ch D 221

Onslaw v Commissioner of Inland Revenue (1890) 25 PBD 465

Symbol Park-Lane v Steggles Palmer (1985) *Law Society Gazette* (13 March)

Judgment

Platt JA: The High Court came to the right conclusion on first appeal. The problem arose out of a judgment by default having been entered under Order IXA, rule 3 of the Civil Procedure Rules, and two subsequent attempts to set that judgment aside. The claim was for a liquidated sum and the defendant failed to enter appearance. Consequently on 12 June 1983 judgment was signed. An application for execution of the decree followed, and a warrant of attachment was served upon the Court broker.

An application was then brought to set aside the default judgment together with all subsequent orders and process issued pursuant to the judgment. It was brought under Order IX, rules 8 and 10 and Order XXI, rule 22 of the Civil Procedure Rules. Mr *Njuguna* for the appellant criticised this heading rightly but to no great effect. The application should have been headed Order IXA, rules 3 and 10. That great favourite of counsel when in doubt, Order XXI, rule 22 had no application whatsoever, because the stay of execution to be granted there is granted only when a decree has been sent from one court to another for execution. That had no application to the present circumstances. It is of mild

interest to note that Mr *Njuguna* himself fell into the same error, as will

presently be seen. Probably some of these errors would have been corrected, if the application had been heard. Unfortunately, on 12 August 1983, counsel for the appellant was unable to attend, and asked for an adjournment through another counsel. That was opposed, and the Senior Resident Magistrate took the view that as the applicant's counsel had undertaken to serve counsel for the respondent with all the papers which undertaking he had not complied with, he was not entitled to a further adjournment. So the adjournment application was disallowed and the chamber summons dismissed.

Mr *Njuguna* then brought a second application asking for the "*ex parte* judgment" to be set aside, a stay of execution, and unconditional leave to defend.

The Senior Resident Magistrate dismissed this application saying that a similar application had been dismissed, and until that order was removed by an appeal or review, it stood, and it was not possible therefore to deal with the new application.

The applicant appealed from that order to the High Court, which upheld the ruling. The central finding was that the second application was in substance the same as the first application, and it was therefore an abuse of the process of court to bring the second application until the problem of the first application had been dealt with. For instance, the reinstatement of the first application could have been considered, with reasons for non-attendance on its hearing date. The High Court therefore dismissed the appeal.

The applicant appeals again to this Court with some 12 grounds of appeal. They may be condensed to the following propositions. The learned Magistrate's order was undated. It was required to be dated by Order XX, rule 3 of the Civil Procedure Rules. It not being dated, it was not an order, and the lapse could not be explained away as an accidental slip. Even if it were an order, which the High Court could uphold, it was wrong to hold that the two applications were substantively the same. Therefore it would have been proper to allow the second application to be heard upon its merits. The next topic need not be adverted to, namely, that ground 7 had not been dealt with, because it was in the findings by the learned Judge, that the learned Magistrate gave brief but effective reasons for dismissing the second application. That is so, and nothing more need to be said. Finally, there are the issues of *res judicata* and an abuse of the process of court.

While Order XX specifically refers to judgments, it may be taken as offering a guide to the manner in which interlocutory orders should be given and, of course, orders should be dated. It is true to say that the order in question, presumably given on 2 September 1983, was not dated. That irregularity, however, did not vitiate the ruling, having in mind the nature of the complaints raised in the appeal. Nothing is said as to any fundamental effect of a lack of date. It has not inconvenienced any party in taking any procedural step; it has not inconvenienced the parties in appearing at the time of delivering the order; it is not darkly suggested that the order was not in fact given. It is simply an irregularity which embarrassed no one, and cannot be dressed up to the extent of vitiating the order. It was, as the High Court held, a curable slip and indeed, the formal order drawn up gave the date, the 2 September 1983.

The arguments of greater interest lie in the circumstances in which successive interlocutory applications of the same sort can or cannot be made.

It will be right to emphasise at the beginning that the first application was not heard upon its merits. It was dismissed because the applicant had not complied with his undertaking to serve Mr Anassi (for the respondent) with the papers, and because he was seeking to adjourn the hearing. The impression left upon the Court must have been that the applicant was not seriously attending to this application, which therefore ought to be dismissed for want of prosecution.

It has been questioned whether the dismissal of the application could lead to reinstatement as the learned Judge thought to be correct. In his view, the simple procedure of reinstatement should be taken first, before resort to review and appeal as the learned Magistrate mentioned in his short ruling. Both lower courts were at one, however, in principle, that the first order dismissing the application should be removed before the second application was brought. In that there is no doubt that they are right, as will be explained shortly. At stake at the moment, is the method by which this result can be achieved.

Under what process did the learned Magistrate dismiss the application, and under what powers did the learned Judge suggest reinstatement? The application was made under Order IXA. Judgment by default had been entered under rule 3 and it was now to be set aside under rule 10, of the Civil Procedure Rules. Order IXA does not envisage that the applicant for setting aside will find himself in the position of the applicant in the case. There is no sanction of dismissal set out in the rule and it follows that there is no provision for reinstatement. One must then consider Order L which deals with applications. There are several powers dealing with adjournments. There is almost a power of dismissal in rule 4. But “dismissal” in the marginal note is not borne out by the text; so there is no power of dismissal and therefore of reinstatement in that order.

There is no other power specifically given. Does it mean therefore that the Court faced with the position of the learned Magistrate in this case can only adjourn the matter? If that were so, it would follow that any party to an interlocutory matter could appear or not appear as he wishes. That surely cannot be the position. There are the powers of a court to control its proceedings and prevent abuse. It would lead to very serious injustice if a court could not control a party who appeared to be failing to prosecute an application. Equally it would be a serious failure of justice not to restore the application to hearing if there were good reasons why the applicant had been prevented from moving or applying to the Court.

The Court is not powerless. It is an inherent power in the Court to control its process for the ends of justice. Section 3A of the Civil Procedure Act (Chapter 21) preserves the inherent powers when there are no rules. It is within the discretion of the Court to dismiss for want of prosecution, and to reinstate the application after receiving a satisfactory explanation. The learned Magistrate in this case found that the applicant had failed in an undertaking and had failed to appear. It seemed to the Magistrate that the applicant was guilty of negligence and want of prosecuting his application. He decided to dismiss it. That was within his discretion, whether or not it was wise to do so. But the High Court was also right to point out that the home-spun method of reconsidering this matter would be by an application for reinstatement. At this level the facts would emerge and the Magistrate would be able to fully control the process of his court.

Applications for review and appeal take longer and are more difficult and expensive. The High Court has rightly pointed to the most expeditious and economic procedure.

This is not of course the first time that this has happened. Dismissal and reinstatement have been methods of control even from the days of the application of the Indian Civil Procedure Code. Mulla in his commentaries on the *Code of Civil Procedure* (13 ed) Volume 1 under section 151 (the predecessor of section 3A of the Civil Procedure Act) has set out examples of the use of the inherent powers. He notes cases where such powers were used to restore a suit dismissed for default in cases not provided for by Order IX, rule 9. That was a very similar rule to the present Order IXA, rule 10 which is relevant to this case. If a court can restore a suit, surely it can restore an application! It proceeds to note (31) to restore a suit dismissed for not furnishing particulars; note (32) to restore a civil revision petition dismissed for default; note (33) to restore an application under Order IX, rule 13 which had been dismissed for default. Equally note (46) reveals that it is within the inherent power to refuse to restore an execution dismissed for default. There is note (48) where power to set aside an order dismissing an application under Order XXI, rule 66 for non-appearance was used, ie in objection proceedings to execution. There are many examples from the Indian practice.

As far as East Africa is concerned, *Rawal v Mombasa Hardware Ltd* [1968] EA 392 may be compared. It was a case concerned with the dismissal of a case for want of prosecution under Order XVI, rule 6 of the Rules. That is a cognate problem to the present case, since in this case dismissal followed a want of prosecution. Of course action under Order XVI, rule 6 of the Rules, is a different action to the dismissal of an application on the failure of a request for an adjournment. But it was held by this Court that the trial court had the power to reinstate in its inherent jurisdiction. Sir Charles Newbold said at 394:

> "I do not think that rule 6 should be so construed. I would agree entirely with the very clear and able judgment of Rudd J to which my brother Law has already referred as showing that this Rule shall be construed in a way which would not take away the jurisdiction of the Court to remedy an injustice should it be satisfied that such an injustice exists. Rudd J emphasised that the Rule related to an informal order of the Court itself. We all know that a court has control over its order until it is perfected. Even if the order is made in the presence of the parties and after argument, it is argued that rule 6 is to be construed in such way as to prevent the Court from exercising control over its own order made, not only without argument, but, indeed, without even the knowledge of the parties and informally. I cannot accept such a construction."

The principle must extend to the present situation *a fortiori* where dismissal has been ordered to safeguard the controlling process of the Court, in circumstances where the prosecution of proceedings has not lapsed to the great extent as envisaged by Order XVI.

On the other hand, if there is still doubt that there is inherent jurisdiction to dismiss for want of prosecuting an application, and reinstatement for cause shown, then Order L should be immediately reconsidered, and direct power granted to the lower courts who will otherwise be unable to control the process of interlocutory applications before them. But it is my opinion that Patel J was entirely right to point out that the simplest course would have been for the applicant to apply for reinstatement.

There is perhaps a further aspect. After the adjournment was refused, it is not clear whether the order was given *ex parte* or still a part of the *inter partes* argument. Supposing it to have been made *ex parte*, once again the Court could reinstate the matter for good reason being shown by the applicant.

The next inquiry concerns the content of the two applications. The only real addition in the second application is the prayer to be allowed to defend unconditionally. Now how is that a matter which did not arise under the first application? If the judgment is set aside under Order IXA, rule 10 of the Rules, does it not follow that leave to appear and defend will be granted; or leave to defend will be granted where there has been an appearance but no defence files? The adjective "unconditionally" adds nothing of significance in the circumstances of this case, because the advocate was attempting to explain that the lack of appearance and defence was entirely an oversight in his office and no fault of the defendant himself at all. If that were accepted, then leave would be granted to appear and defend as a necessary corollary of setting aside the judgment. Once again the learned Judge was right.

The final hurdle is whether the second application had been taken on a matter which was *res judicata*, or whether it amounted to an abuse of the process of the Court. The first application was not decided upon its merits. It was dismissed after an application for an adjournment was refused, and neither side was heard upon the merits. It was therefore not a *res judicata* (*Kibogy v Chemweno* civil appeal number 41 of 1980 (UR)). It was not a matter finally disposed of and without redress by way of reinstatement. If a party to a suit does not appear to prosecute his application, and it is dismissed can he be allowed to bring a second application? Obviously not, since there would be no end to litigation. Having failed to appear, he must seek to explain to the Court why he failed to appear and thus pray for reinstatement. It is an abuse of the process of the Court to ignore its order given when the party is at fault and simply bring further proceedings without explaining or redeeming the fault (compare *Lawrence v Lord Norreys* [1888] 39 Ch D 221 at 237 as to an abuse of the Court in duplicated proceedings). It might also lead to later Judges sitting on appeal over their previous decisions or those of other Judges; on the question of whether an adjournment should have been granted (compare *Kinyua v Tute* civil appeal number 25 of 1977).

If reinstatement were refused, there would be an appeal with leave under Order XLII of the Rules. There could also be review of the orders. No steps to remedy the situation were taken. Nothing new emerged on the second application. It was rightly dismissed.

In the result, I would dismiss the appeal with costs to the respondent.

Nyarangi JA: I have read the judgment prepared by Platt AJA in draft. I desire to add my own comments.

The first four grounds of appeal which were argued together were the basis of a submission that the ruling of the learned Senior Resident Magistrate, the subject-matter of this appeal, is invalid because the ruling was not dated and not signed in open court as required under Order XX, rule 3 of the Civil Procedure Rules. The failure to date and sign the ruling was a serious omission capable of being exploited mischievously and unlawfully. The language in Order XX, rule 3 has a mandatory tone and I think it must have been intended

to convey the message of the importance of strict compliance with the particular order. However, failure to sign a judgment which has been pronounced is not so significant as to invalidate the judgment (*Matemba v Matemba* [1968] EA 646).

The ruling notwithstanding its brevity satisfies rule 4 of Order XX because in its totality it is a decision obtained in an action (*Sheikh v Halima* [1959] EA 500 and *Onslaw v Commissioner of Inland Revenue* (1890) 25 PBD 465 at 466).

The chamber summons under Order IX, rules 8 and 10 was dismissed on the ground that Mr Ndegwa had not served Mr Anassi with the application. In opposing the application Mr Anassi specifically asked for dismissal and for execution to proceed. The Senior Resident Magistrate agreed with Mr Anassi to the extent of granting the dismissal.

When a matter is dealt with in the rules, the Courts should regard that as excluding their inherent power some of the exceptions being where there is evidence of new and important matter or evidence (*Mulji v Jadavji* [1963] 217 at 218I and *Bank of India Ltd v Manibhai M Patel Ltd* [1965] EA 638). Also inherent powers could not be invoked where there is another remedy available (*Saldanha and others v Bhailal and Co* [1968] EA 28). The decision in *Rawal v Mombasa Hardware Ltd* [1968] EA 392 turned "in the special circumstances of this case" (see at 393H). I agree with Hancox JA that there is no circumstance in this case which would warrant the invocation of inherent power, which jurisdiction can only properly be exercised not always, but after a basis is laid down, to prevent abuse of the process of court and to avoid injustice (*Mukisa Biscuit Co v West End Distributors* [1969] EA 696). I too am doubtful if the second application was valid.

I agree that the appeal should be dismissed with costs.

Hancox JA: I agree in substance, subject to that which I shall say below, with the judgment of Platt AJA, which I have had the advantage of reading in draft and that VV Patel J was right in making the order he did. The reasons he gave for doing so were otherwise unexceptionable.

I do not, however, agree that this was a case where the Court's inherent jurisdiction under section 3A of the Civil Procedure Act could be invoked. It is a residual jurisdiction which should only be used in special circumstances, (see *Symbol Park-Lane v Steggles Palmer* [1985] *Law Gazette* 13 March) in order to put right that which would otherwise be a clear injustice. Such circumstances were not present here.

Moreover, I doubt whether there was any power to reinstate an application to set aside, as seems to have been envisaged by Law JA in *Kinyua v Tute* civil appeal number 25 of 1977, and as VV Patel J said in this case. I note that in *Kinyua*'s case Wambuzi JA reached the conclusion, after considering the authorities cited, that there was nothing in law to justify the second application.

I agree that the appeal should be dismissed with costs. As Nyarangi JA, also agrees it is so ordered.

For the appellant:
K Njuguna

For the respondent:
In person

Were v Republic
[1986–1989] 1 EA 601 (CAK)

Division:	Court of Appeal of Kenya at Nairobi
Date of judgment:	9 September 1985
Case Number:	70/85
Before:	Kneller, Nyarangi JJA and Platt AJA
Sourced by:	LawAfrica

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[1] Criminal Procedure Code – Summary rejection of appeal – When it is permissible.

Editor's Summary

The appellant was convicted by the First Class District Magistrate in Nairobi of forgery, altering a false document and obtaining money by false pretence contrary to sections 313, 349 and 353 of the Penal Code. He was sentenced to three years' imprisonment on each count to run consecutively.

The appellant's petition of appeal to the High Court was summarily rejected. He appeals against that order of the High Court.

Held – The learned Judge was entitled to reject summarily the appeal if he found when reading the record of the Magistrate that the appeal had been lodged without any sufficient ground for complains which means among other things that he found there was no material in the circumstances of the case which could raise a reasonable doubt whether the conviction was right or lead him to the opinion that the sentence(s) ought to be reduced.

No cases referred to in judgment

Judgment

Kneller, Nyarangi JJA and Platt AJA: Stephen Atito Were, the appellant, was convicted by the First Class District Magistrate in Nairobi on 25 February 1983 of forgery, uttering a false document and obtaining money by false pretences contrary to sections 313, 349 and 353 of the Penal Code and sentenced the same day to three years' imprisonment on each count to run consecutively and these are the maximum sentences for each of these offences.

On 8 March 1983 his petition of appeal to the High Court was filed but summarily rejected by Abdullah J in Nairobi on 12 July 1983 although the typed notice about this signed by the learned Deputy Registrar declares that it was issued on 21 May 1982. There may be some error there. The appellant filed a memorandum of appeal against this decision on 17 October 1983 in this Court's Registry but it was not until 5 June 1985 that the record of the trial before the Magistrate together with the notice of the summary rejection of his appeal to the High Court were received in the registry of this Court.

The appellant's memorandum in this Court declares that the learned Judge misdirected himself by not admitting the appeal for hearing in the High Court. The second ground is that the learned Magistrate erred when he convicted the appellant of forgery on 25 February 1983 because he had acquitted him of it on 10 February the same year since the Republic had not established a *prima facie* case against him on that first count. The third ground is that there was no

evidence anyway to substantiate the charge that the appellant had forged anything so far as this charge against him was concerned. The next two grounds are matters which are concerned with whether or not there were contradictions in the evidence of two witnesses, namely, Stephen Munderu Njoroge and Andrew Onyango, about who packed some goods into boxes or cartons in the Mercantile Printers shop on Tom Mboya Street in Nairobi on 16 April 1981. The seventh is a submission that the Republic should have called Onyango's workmate, Mwangi, to support what Onyango said about the appellant moving the goods in the carton to and, later, off-loading them at Harambee House. Likewise, in ground eight, the appellant complains that the General Manager of the press, Mr Gicheru, was not called to give evidence. The ninth ground declares that the trial Magistrate should have called these witnesses. The tenth is incomprehensible. The eleventh contradicts the first because in it the appellant asks this Court to uphold the decision of the High Court Judge who rejected his first appeal. We believe that what he meant to have typed for him was a prayer for this Court to reverse what the learned Judge had done. Then the appellant claimed that his sentences should have been made to run concurrently with the one of ten years which he was then serving. The thirteenth and final ground was that the sentences of three years on each count were manifestly excessive.

Now, in our respectful view, this appeal must succeed in part on the first ground in the memorandum before us. The learned Judge should not have summarily rejected the appeal but admitted it to hearing and heard it. This is because the second and third grounds which allege that the Magistrate went on to convict the appellant of forgery when a fortnight before he had acquitted him at the end of the prosecution case, were issues that went to the jurisdiction of the learned Magistrate and therefore were matters of law.

The fifth and sixth grounds raise the point of whether or not the evidence of Mundero and Onyango on any alleged fact were contradictory and, if so, whether the contradictions affected the quality and quantity of the evidence on any count with which the appellant was charged.

Then the matters in grounds seven and eight bring up the questions of whether or not the evidence of Mwangi and Gicheru might have affected these convictions.

The trial Magistrate is bound to summon and examine a witness if his evidence appears to the Magistrate to be essential to the just decision of the case according to section 150 of the Criminal Procedure Code. And we believe that in ground nine the appellant is submitting that the trial Magistrate should have called both Mwangi and Gicheru even though the Republic and the appellant did not do so. All these matters are also questions of law.

The learned Judge was entitled to reject summarily the appeal if he found when reading the record of the Magistrate that the appeal has been lodged without any sufficient ground for complaint which means, among other things, that he found there was no material in the circumstances of the case which could raise a reasonable doubt whether the conviction was right or lead him to the opinion that the sentence(s) ought to be reduced. And this is only permissible when the appeal is brought on the ground (or what amounts to the ground) that the conviction is against the weight of the evidence, see section 352(2) of the Criminal Procedure Code.

So the order of this Court is that this appeal must be allowed in part, the summary rejection of the Judge set aside and the matters sent back to the High Court to admit the appeal to hearing and for another Judge to hear it.

We hope this can all be accomplished soon because the alleged offences are said to have occurred between 15 April and 23 April 1981, the trial began on 8 July 1982 (almost a year after the alleged offences) and the appellant was convicted on 25 February 1983 (just two months short of a year from the beginning of the trial). Then there seems to have been about a year and five months before the learned Judge summarily rejected the appeal which we have now found he should not have done. We know that there may be all sorts of most reasonable excuses for these delays in the Court of the Magistrate and in the High Court, and for the two-year delay in this Court receiving the record, but it is apparent, we think, that the appeal should be heard with alacrity.

For the appellant:
Information not available

For the respondent:
Information not available

Zoreka and another v Uganda
[1986–1989] 1 EA 603 (SCU)

Division:	Supreme Court of Uganda at Mengo
Date of judgment:	
Case Number:	3/88
Before:	Manyindo DCJ, Odoki and Platt JJSC
Sourced by:	LawAfrica

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[1] Criminal procedure – Assessors – Excusing an assessor from attending proceedings – Assessor resuming and participating in subsequent proceedings – Trial a nullity.

Editor's Summary

The two appellants were jointly convicted of murder contrary to section 183 of the Penal Code and sentenced to death by the High Court. Their appeal was based on the ground that the learned Judge had been in error to allow one of the assessors to resume his seat and participate in the proceedings after the Judge had excused him from attendance. During his absence, the hearing continued. He later resumed his seat and the appellant besought the Court to declare the trial a nullity for this subsequent participation.

Held – Where the Court excuses an assessor from attending trial, to proceed with the hearing of the case in the absence of the assessor is lawful. However, it is unlawful to allow the absent assessor to resume his seat and give his opinion (Obura v Uganda criminal appeal number 1 of 1981 (UR) followed).

Appeal allowed.

Case referred to in judgment

("**A**" means adopted; "**AL**" means allowed; "**AP**" means applied; "**APP**" means approved; "**C**" means considered; "**D**" means distinguished; "**DA**" means disapproved; "**DT**" means doubted; "**E**" means explained; "**F**" means followed; "**O**" means overruled)

Kabui v Reg (1954) 21 EACA 260

Kashaija v Uganda EACA criminal appeal number 131 of 1976 cited in HCB 1977

Kottaya v Emperor [1947] AIR (34) 67

Obura v Uganda criminal appeal number 1 of 1981 – **F**

Republic v Assa Singh (1937) 4 EACA 41

Judgment

Manyindo DCJ, Odoki and Platt JJSC: The two appellants, Zoreka Adonia and Detective Constable Kikwemba, were jointly convicted of murder contrary to section 183 of the Penal Code, and sentenced to death by the High Court at Mbarara on 20 April 1988. At the hearing we allowed the appeal, quashed the conviction and set aside the death sentence. We ordered a retrial. These are the reasons for those orders.

The first ground raised by learned counsel for the appellant Zoreka, Mr *Ayiguhugu*, stated that the learned Judge had been in error to allow the second assessor, Mr Basiga, to resume his seat and participate in the proceedings after the trial Judge had excused him from attendance. During his absence, it is said the hearing continued. Nevertheless, he resumed his seat and this rendered the whole trial a nullity.

Mrs *Bosa* for the appellant Kikwemba wished to associate herself with the above ground of appeal.

The record reveals that on 29 January 1988 the hearing continued with the appellant Zoreka commencing his defence on oath. During the morning of that day, the examination-in-chief was completed and the appellant was cross-examined by State Counsel. The morning session ended before the completion of that cross-examination, and the Court adjourned until 2:30pm. The two assessors had both been present. However at 2:30pm when the Court re-convened, the Court recorded:

> "Mr Basiga one of the assessors has fallen sick and has asked to be excused for at least seven days. He is excused under schedule 7 of the Assessors Rules."

The Court was then invited to continue by counsel for the appellant Zoreka. The Court agreed and continued with the cross-examination of the appellant Zoreka by State Attorney. This cross-examination lasted all afternoon. In terms of space in the record, it occupied another five and a half pages of typescript. It seems that counsel for the second appellant did not cross-examine the appellant Zoreka. The defence of the appellant, Mr Kikwemba, was then given on 18 February 1988 after an adjournment. By this time, Mr Basiga the second assessor had recovered, and was present, resumed his seat and continued to listen to the rest of the evidence. Consequently, apart from the evidence on the afternoon of 29 January 1988, Mr Basiga had listened to the remainder of the evidence in the case. At the end, Mr Bikwatisizireho and Mr Basiga gave their opinions, the first advising an acquittal and the second advising a conviction. The result is that Mr Basiga advised that the appellant Zoreka should be convicted without hearing the whole of his defence evidence, and that at once raises the spectre of unfairness.

The appellant Kikwemba was not affected directly. The whole of his defence was heard by Mr Basiga.

Counsel for the appellant Zoreka submitted that the trial was a nullity. Mrs *Bosa* for the appellant Kikwemba associated herself with that submission, as we have said, and submitted that, due to the nature of the case, the interlocking facts affecting the appellants in their separate capacities, it would result in unfairness if only the trial against the appellant Zoreka were set aside, and a new trial ordered in his case alone. We agreed with Mrs *Bosa*.

Counsel for the Republic agreed that a small error had crept into the proceedings, but submitted that the trial had not been nullified. The error had caused no miscarriage of justice. Those then were the broad issues for the Court to determine.

The learned Judge referred to what he called Schedule 7 of the assessors rules. The Schedule to the Trial on Indictments Decree contains the Assessors Rules. Rule 7 provides as follows:

> "7. A Judge of the High Court may, for reasonable cause, excuse any assessor from attendance at any particular sessions, and may, at the conclusion of any trial direct that the assessors who have served at such trial shall not be summoned to serve again as assessor for such period as may appear proper."

This general power is exercised at the beginning of any sessions. At this stage a person summoned as an assessor may be excused from attending during the session. Rule 7 provides against hardship in having to attend a particular session, as well as for having to attend sessions too often. But there are other problems mentioned in rule 9 which occur during a trial at which an assessor has been chosen. There may be cases of failure to attend without lawful excuse, or having attended, defects without having obtained the permission of the Court to do so. Fines may be imposed for such infringements. There then comes the question as to what procedure should be followed if an assessor has been given leave of absence. That question is approached by section 67(1) of the Trial on Indictments Decree. It reads:

> "67 (1) If, in the course of a trial before the High Court at any time before the verdict, any assessor is from sufficient cause prevented from attending throughout a trial, or absents himself and it is not practicable immediately to enforce his attendance, the trial shall proceed with the aid of the other assessors."

Where an assessor has been given leave of absence, it is obvious that an assessor is prevented by sufficient cause from attending, and it would not be practicable to enforce his attendance during the period of his absence with leave. In that case the trial proceeds with the aid of the other assessors. That part of section 67 has received judicial interpretation. It means that the word "assessors" includes one assessor and, further, it means that once an assessor has been absent during the continuation of the trial, he cannot return to continue with the trial (see *Moses Kashaija v Uganda* EACA criminal appeal number 131 of 1976 cited in HCB 1977 at 51; *Obura v Uganda* criminal appeal number 1 of 1981).

Once an assessor has been given leave of absence and the trial continues, the absent assessor ceased to be an assessor. The Court is not properly constituted if the absent assessor returns and resumes his seat, after he has not heard all the evidence. Until the case of *Obura v Uganda* criminal appeal number 1 of 1981 it was not doubted that such resumption caused the trial to be a nullity.

The classic statement of that position was set out by Sir Roger Hall, Chief Justice of Uganda, when sitting in the Court of Appeal for Eastern Africa, in *Republic v Assa Singh* (1937) 4 EACA 41. Sir Roger explained that the trial in

question had duly proceeded for two days, but that on the third day of the trial, the third assessor had been taken ill, and had been excused with instructions to attend on the tenth day of that month. Whilst this gave the third assessor four days in which to recover, the trial continued with the aid of two other assessors, and evidence was taken for one day. The trial was then adjourned. On the date on which the Court reconvened, the third assessor reappeared, and he took part with the other two assessors until the trial was completed. The assessors gave their opinions in due course. The two assessors who had been present throughout the trial advised an acquittal, but the third assessor who had been absent for one day advised that the accused person was guilty.

The procedure adopted by that court in 1936 had been accepted by both counsel in the case.

The conclusion to which the Court came was that the trial was null and void and the absence of the assessor was not a mere error, omission, or irregularity, which could be cured. The reason given was that the Court was not of competent jurisdiction because the assessor had not heard all the evidence, it being immaterial whether the assessor was absent for one day or more than one, or whether the witnesses heard in his absence were prosecution or defence witnesses, or whether the witnesses could be described as merely formal witnesses.

The facts of *Republic v Assa Singh* (*supra*) are very similar to the present appeal. The question was agitated again in 1954 in *Kabui v Reg* (1954) 21 EACA 260. An assessor absented himself after an adjournment. Later he returned and was allowed to give his opinion at the end of the trial, although he had not heard all the evidence. It was held that *Republic v Assa Singh* (*supra*) was rightly decided. The reason given was that if an assessor has ceased to be a constituent part of the Court which is trying the accused, he cannot thereafter resume that character, and if he gives an opinion as to guilt or innocence, the accused was being tried to that extent *a non judice* (not in accordance with the law).

We then pass on to the judgment of this Court in *Obura v Uganda* (*supra*) to which we have already referred. The facts were that one assessor did not appear at the stage of the trial, when, after the evidence had been taken, submissions were to be made by counsel. The trial continued and submissions were made on behalf of the accused in the assessor's absence. The following day counsel for the State had just begun addressing the Court, when the absent assessor returned and resumed his seat. After the Judge had summed up the law and the evidence in the case, each assessor advised the Judge that the accused was guilty of murder as charged. The Judge agreed with the "unanimous" opinions of the assessors.

The Court of Appeal agreed that to proceed with the hearing of the case in the absence of one assessor was lawful. But it was not lawful to allow the absent assessor to resume his seat and give his opinion. The Court overruled the submission of counsel for the State in specific terms, that section 67(1) of the Trial on Indictments Decree envisaged an assessor being absent and then returning, provided he did not miss any evidence. In the Court's view, the section did not allow him to interfere in the decision, even though he had heard all the evidence. So far, the Court followed the earlier decisions. However, the Court then proceeded to deal with the assessor's absence as an irregularity which could be cured under section 137 of the Trial on Indictments

Decree. It purported to do so on the basis of *Kottaya v Emperor* [1947] AIR (34) 67. The argument became one of deciding the effect on non-observance of a mandatory provision of the Criminal Procedure Code. In *Kottaya v Emperor* (*supra*) the prosecution had failed to supply the defence at the proper time with copies of statements made by important witnesses, during the course of the preliminary police investigation. The Privy Council decided that the trial had been substantially conducted in the manner prescribed. The defect was a curable irregularity which had occasioned no miscarriage of justice. The Court of Appeal in Uganda then differentiated between a case where an assessor had not heard evidence, and a case where he had, but missed another part of the trial, such as the address of counsel. Where the evidence had been heard, the other type of infringement might be a curable irregularity under section 137 of the Trial on Indictments Decree. The Court concluded that it could cure the irregularity in that case.

As far as this appeal is concerned, it is sufficient that the decision in *Obura v Uganda* (*supra*) left the principle in *Republic v Assa Singh* (*supra*) standing, in a trial where the absent assessor did not hear some part of the evidence. With respect, that seems to us to be sound in principle. The Court process is designed to carry into effect the principle of natural justice, that the Court gives a hearing to each side and, having done so, decides the controversy between them. Justice must also be seen to be done. No accused person could feel that justice has been done to him if part of his evidence is not listened to. This appellant had given his defence on oath, and was willing to face cross-examination. No doubt he wasted the Court to hear him answer the prosecutor. Nor could he ever feel satisfied if the assessor who did hear his whole defence advised an acquittal, while the assessor who did not hear him fully, found him guilty. It is clear that the Court was not properly constituted and was not competent to Judge. The trial was a nullity, and had to be set aside on general principles. To hold otherwise, and to try and distinguish which types of evidence would not vitiate the trial, was to be on the thin end of the wedge leading to cases where it would be possible to ignore some evidence, and cure the defect. Sir Roger Hall, CJ, set the Courts in the right direction in 1937, when he held that it was immaterial whether the evidence was given in the absence of an assessor during one day or several days, whether the evidence given was for the prosecution or for the defence, or whether it was merely formal. The result of that direction is that all the evidence must be heard by the full Court, and that is the only way that the legal process can be a rational basis in order that justice cannot only be done, but also be seen to be done.

Apart from the great principles at stake, upon which Mr *Ayiguhugu* relied, he also pointed out that it is remarkable in these cases how easily an adjournment could have saved the situation. In the present case, the impugned evidence was taken on the afternoon of 29 January, after which there was an adjournment to 15 February. In *Republic v Assa Singh* (*supra*) the trial was also adjourned immediately after the impugned evidence was taken. In *Obura v Uganda* (*supra*) the absence of the assessor was for one day. The practical solution to the problem may well be an adjournment. But if it is imperative that the trial continues, then it should continue with the remaining assessor alone.

For those reasons we quashed the conviction and set aside the death sentence. But we ordered a re-trial. That should be held by a different Judge. The appellants will of course be remanded in custody pending that retrial.

For the first appellant:
Ayiguhugu

For the second appellant:
Bosa

For the respondent:
Information not available